

DOMESTIC ANNALS OF SCOTLAND

From the Revolution to the Rebellion of 1745.

BY ROBERT CHAMBERS,

F.R.S.E., F.S.A.Sc., &c.



Bargarran House.

W. & R. CHAMBERS, EDINBURGH AND LONDON.

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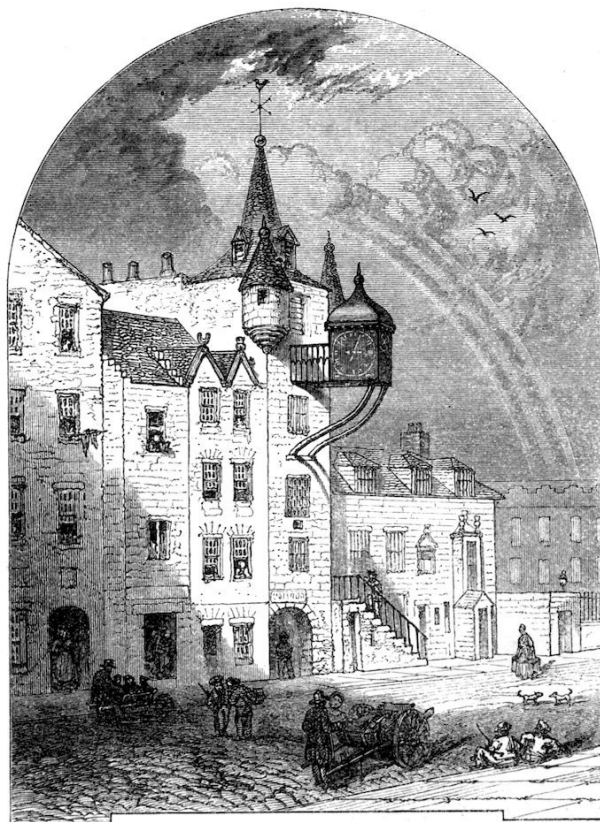
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ANNALS OF SCOTLAND ***

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CANONGATE TOLBOOTH.

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PREFACE.

THE DOMESTIC ANNALS OF SCOTLAND FROM THE REFORMATION TO THE REVOLUTION having experienced a favourable reception from the public, I have been induced to add a volume containing similar details with regard to the ensuing half-century. This is in many respects an interesting period of the history of Scotland. It is essentially a time of transition—transition from harsh and despotic to constitutional government; from religious intolerance and severity of manners to milder views and the love of elegance and amusement; from pride, idleness, and poverty, to industrious courses and the development of the natural resources of the country. At the same time, the tendency to the wreaking out of the wilder passions of the individual is found gradually giving place to respect for law. We see, as it were, the dawn of our present social state, streaked with the lingering romance of earlier ages. On these considerations, I am hopeful that the present volume will be pronounced in no respect a falling off in contrast with the former two.

It will be found that the plan and manner of treatment pursued in the two earlier volumes are followed here. My object has still been to trace the moral and economic progress of Scotland through the medium of domestic incidents—whatever of the national life is overlooked in ordinary history; allowing the tale in every case to be told as much as possible in contemporary language. It is a plan necessarily subordinating the author to his subject, almost to the extent of neutralising all opinion and sentiment on his part; yet, feeling the value of the self-painting words of these dead and gone generations—so quaint, so unstudied, so true—so corrective in their genuineness of the glozing idolatries which are apt to arise among descendants and party representatives—I become easily reconciled to the restricted character of the task. If the present and future generations shall be in any measure enabled by these volumes to draw from the errors and

misjudgments of the past a lesson as to what is really honourable and profitable for a people, the *tenuis labor* will not have been undergone in vain.

EDINBURGH, *January 1861*.

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DOMESTIC ANNALS OF SCOTLAND.

REIGN OF WILLIAM AND MARY: 1689–1694.

Our narrative takes up the political story of Scotland at the crisis of the Revolution, when, King James having fled in terror to France, his nephew and daughter, the Prince and Princess of Orange, were proclaimed king and queen as William and Mary, and when the Episcopacy established at the Restoration, after a struggling and unhonoured existence of twenty-eight years, gave way to the present more popular Presbyterian Church. It has been seen how the populace of the west rabbled out the alien clergy established among them; how, notwithstanding the gallant insurrection of my Lord Dundee in the Highlands, and the holding out of Edinburgh Castle by the Duke of Gordon, the new government quickly gained an ascendancy. It was a great change for Scotland. Men who had lately been in danger of their lives for conscience' sake, or starving in foreign lands, were now at the head of affairs—the Earl of Melville, Secretary of State; Crawford, President of Parliament; Argyle restored to title and lands, and a privy-councillor; Dalrymple of Stair, Hume of Marchmont, Steuart of Goodtrees, and many other exiles, come back from Holland to resume prominent positions in the public service at home—while the instruments of the late unhappy government were either captives under suspicion, or living terror-

struck at their country-houses. Common sort of people, who had last year been skulking in mosses from Claverhouse's dragoons, were now marshalled in a regiment, and planted as a watch on the Perth and Forfar gentry. There were new figures in the Privy Council, and none of them ecclesiastical. There was a wholly new set of senators on the bench of the Court of Session. It looked like the sudden shift of scenes in a pantomime, rather than a series of ordinary occurrences.

Almost as a necessary consequence of the Revolution, a war with France commenced in May 1689. Part of the operations took place in Ireland, where James II., assisted with troops by King Louis, and supported by the Catholic population, continued to exercise sovereignty till his defeat at the Boyne (July 1, 1690). The subjugation of Ireland to the new government was not completed till the surrender of Limerick and other fortified places by treaty (October 3, 1691). Long before this time, the Jacobite movement in Scotland had come to a close by the dispersion of the Highlanders at Cromdale (April 1690). A fortress and garrison were then planted at Inverlochy (Fort William), in order to keep the ill-affected clans Cameron, Macdonald, and others, in check. At the same time, the Earl of Breadalbane was intrusted with the sum of twelve thousand pounds, with which he undertook to purchase the pacification of the Highlands. In 1691, there were still some chiefs in rebellion, and a threat was held out that they would be visited with the utmost severities if they did not take the oaths to the government before the 1st of January next. This led to the massacre of the Macdonalds of Glencoe (February 13, 1692), an affair which has left a sad shade upon the memory of King William.

In Scotland, it gradually became apparent that, though the late changes had diffused a general sense of relief, and put state control more in accordance with the feelings of the bulk of the people, there was a large enough exception to embarrass and endanger the new order of things. There certainly was a much larger minority favourable to Episcopacy than was at first supposed; whole provinces in the north, and a majority of the upper classes everywhere, continued to adhere to it. A very large portion of the nobility and gentry maintained an attachment to the ex-king, or, like the bishops, scrupled to break old oaths in order to take new. Even amongst those who had assisted in the Revolution, there were some who, either from disappointment of personal ambition, or a recovery from temporary fears, soon became its enemies. Feelings of a very natural kind assisted in keeping

alive the interest of King James. It was by a nephew (and son-in-law) and a daughter that he had been displaced. A frightful calumny had assisted in his downfall. According to the ideas of that age, in losing a crown he had been deprived of a birthright. If he had been guilty of some illegal doings, there might be some consideration for his age. Anyhow, his infant son was innocent; why punish him for the acts of his father? These considerations fully appear as giving point and strength to the Jacobite feeling which soon began to take a definite form in the country. The government was thus forced into severities, which again acted to its disadvantage; and thus it happened that, for some years after the deliverance of Scotland from arbitrary power, we have to contemplate a style of administration in which arbitrary power and all its abuses were not a little conspicuous.

In the very first session of the parliament (summer of 1689), there was a formidable opposition to the government, headed chiefly by politicians who had been disappointed of places. The discontents of these persons ripened early next year into a plot for the restoration of the ex-king. It gives a sad view of human consistency, that a leading conspirator was Sir James Montgomery of Skelmorley, who was one of the three commissioners sent by the Convention in spring to offer the crown to William and Mary. The affair ended in Montgomery, the Earl of Annandale, and Lord Ross, informing against each other, in order to escape punishment. Montgomery had to flee to the continent, where he soon after died in poverty. The offences of the rest were overlooked.

Amongst the events of this period, the ecclesiastical proceedings bear a prominent place—efforts of statesmen for moderate measures in the General Assembly—debates on church-patronage and oaths of allegiance—tramplings out of old and rebellious Episcopacy; but the details must be sought for elsewhere.^[1] During 1693, there were great alarms about invasion from France, and the forcible restoration of the deposed king; and some considerable severities were consequently practised on disaffected persons. By the death of the queen (December 28, 1694), William was left in the position of sole monarch of these realms.

The first emotions of the multitude on attaining confidence that the Prince of Orange would be able to maintain his ground, and that the reigning monarch would be brought low, that the Protestant

1688. Nov.

religion would be safe, and that perhaps there would be good times again for those who loved the Presbyterian cause, were, of course, very enthusiastic. So early as the close of November, the populace of Edinburgh began to call out 'No pope, No papist,' as they walked the streets, even when passing places where guards were stationed. The students, too, whose pope-burning enthusiasm had been sternly dealt with eight years back, now broke out of all bounds, and had a merry cremation of the pontiff's effigy at the cross, ending with its being 'blown up with art four stories high.' This, however, was looked upon as a hasty business, 1688. wanting in the proper solemnity; so, two days after, they went to the law-court in the Parliament Close, and there subjected his Holiness to a mock-trial, and condemned him to be burned ceremoniously on Christmas Day, doubtless meaning by the selection of the time to pass an additional slight upon the religion over which they were now triumphing.

On the appointed day, the students had a solemn muster to execute the sentence. Arranged in bands according to their standing, each band with a captain, they marched, sword in hand, to the cross, preceded by the janitor of the college, carrying the mace, and having a band of hautbois also before them. There, in presence of the magistrates and some of the Privy Council, they solemnly burned the effigy, while a huge multitude looked on delighted.^[2]

There were similar doings in other parts of the country; but I select only those of one place, as a specimen of the whole, and sufficient to shew the feeling of the time.

A Protestant town-council being elected at 1689. JAN. 11. Aberdeen, the boys of the Marischal College resolved to celebrate the occasion with a burlesque *Pope's Procession*. They first thought proper to write to the new magistrates, protesting that their design was not 'tumultuary,' neither did they intend to 'injure the persons or goods of any.' The ceremonial reminds us slightly of some of the scenes in Lyndsay's *Satire of the Three Estates*. Starting from the college-gate at four in the afternoon, there first went a company of men carrying links, six abreast; next, the janitor of the college, with the college-mace, preceding six judges in scarlet robes. Next marched four fifers playing; then, in succession, four priests, four Jesuits, four popish bishops, and four cardinals, all in their robes; then a Jesuit in embroidered robes, carrying a great cross. Last came

the pope, carried in his state-chair, in scarlet robes lined with ermine, his triple crown on his head, and his keys on his arm; distributing pardons and indulgences as he moved along.

Being arrived at the market-cross, the pope placed himself on a theatre, where a dialogue took place between him and a cardinal, expressing the pretensions commonly attributed to the head of the Catholic Church, and announcing a doom to all heretics. In the midst of the conference, Father Peter, the ex-king's confessor, entered with a letter understood to convey intelligence of the late disastrous changes in 1689. London; whereupon his holiness fell into a swoon, and the devil came forward, as to help him. The programme anticipates that this would be hailed as a merry sight by the people. But better remained. The pope, on recovering, began to vomit 'plots, daggers, indulgences, and the blood of martyrs,' the devil holding his head all the time. The devil then tried in rhyme to comfort him, proposing that he should take refuge with the king of France; to which, however, he professed great aversion, as derogatory to his dignity; whereupon the devil appeared to lose patience, and attempted to throw his friend into the fire. But this he was prevented from doing by the entry of one ordering that the pope should be subjected to a regular trial.

The pontiff was then arraigned before the judges as guilty of high treason against Omnipotence, in as far as he had usurped many of its privileges, besides advancing many blasphemous doctrines. 'The court adduced sufficient proofs by the canons of the church, bulls, pardons, and indulgences, lying in process;' and he was therefore pronounced guilty, and ordered to be immediately taken to the public place of execution, and burned to ashes, his blood to be attainted, and his honours to be blotted out of all records. The procession was then formed once more, and the sentence was read from the cross; after which 'his holiness was taken away from the theatre, and the sentence put in execution against him. During the time of his burning, the spectators were entertained with fireworks and some other divertisements.

'After all was ended, the Trinity Church bell—which was the only church in Scotland taken from the Protestants and given to the papists, wherein they actually had their service—was rung all the night.'^[3]

Patrick Walker relates,^[4] with great relish, the close of the political existence of the unhappy episcopate of Scotland, amidst the tumults attending the sitting of the Convention at Edinburgh, during the process of settling the crown on William and Mary. For a day or two after this representative body sat down, several bishops attended, as a part of the parliamentary constitution of the country, and by turns took the duty of saying prayers. The last who did so, the Bishop of Dunkeld, spoke pathetically of the exiled king as the man for 1689. whom they had often watered their couches, and thus provoked from the impetuous Montgomery of Skelmorley a jest at their expense which will not bear repetition. They were 'put out with disdain and contempt,' while some of the members expressed a wish that the 'honest lads' knew of it, 'for then they would not win away with hale gowns.' And so Patrick goes on with the triumph of a vulgar mind, describing how they 'gathered together with pale faces, and stood in a cloud in the Parliament Close. James Wilson, Robert Neilson, Francis Hislop, and myself were standing close by them. Francis Hislop with force thrust Robert Neilson upon them; their heads went hard upon one another. But there being so many enemies in the city, fretting and gnashing their teeth, waiting for an occasion to raise a mob, where undoubtedly blood would have been shed; and we having laid down conclusions among ourselves to guard against giving the least occasion to all mobs; kept us from tearing off their gowns.

'Their graceless graces went quickly off; and neither bishop nor curate was seen in the streets; this was a surprising change not to be forgotten. Some of us would have been rejoiced more than in great sums, to see these bishops sent legally down the Bow, that they might have found the weight of their tails in a tow, to dry their hose-soles, that they might know what hanging was; they having been active for themselves, and the main instigators to all the mischiefs, cruelties, and bloodshed of that time, wherein the streets of Edinburgh, and other places of the land, did run with the innocent, precious, dear blood of the Lord's people.'

A more chivalric adversary might have, after all, found something to admire in these poor prelates, who permitted themselves to be so degraded, purely in consequence of their reverence for an oath, while many good Presbyterians were making little of such scruples. On the other hand, a more enlightened bench of bishops might have seen that the political status which they now forfeited had all along been a worldly distinction working

against the success of spiritual objects, and might thus have had some comfortable re-assurances for the future, as they ‘stood in a cloud in the Parliament Close,’ to receive the concussion of Robert Neilson pushed on by Francis Hislop.

Since Christmas of the past year, there had been constant mob-action against the Episcopal clergy, especially in the western shires, about three hundred having been rudely expelled or forced to 1689. flee for safety of their lives. On the rebound of such a spring, nothing else was to be expected; perhaps there is even some force in the defence usually put forward for the zealous Presbyterians on this occasion, that their violences towards those obnoxious functionaries were *less* than might have been expected. I do not therefore deem it necessary to go into ‘the Case of the present Afflicted Clergy,’^[5] or to call attention to the similar case of the faithful professors of the Edinburgh University, expelled by a commission in the autumn of 1690. There is, however, one anecdote exemplifying Christian feeling on this occasion, which it must be pleasant to all to keep in green remembrance. ‘The last Episcopal clergyman of the parish of Glenorchy, Mr David Lindsay, was ordered to surrender his charge to a Presbyterian minister then appointed by the Duke [Earl] of Argyle. When the new clergyman reached the parish to take possession of his living, not an individual would speak to him [public feeling on the change of church being here different] except Mr Lindsay, who received him kindly. On Sunday, the new clergyman went to church, accompanied by his predecessor. The whole population of the district were assembled, but they would not enter the church. No person spoke to the new minister, nor was there the least noise or violence till he attempted to enter the church, when he was surrounded by twelve men fully armed, who told him he must accompany them; and, disregarding all Mr Lindsay’s prayers and entreaties, they ordered the piper to play the march of death, and marched away the minister to the confines of the parish. Here they made him swear on the Bible that he would never return, or attempt to disturb Mr Lindsay. He kept his oath. The synod of Argyle were highly incensed at this violation of their authority; but seeing that the people were fully determined to resist, no further attempt was made, and Mr Lindsay lived thirty years afterwards, and died Episcopal minister of Glenorchy, loved and revered by his flock.’^[6]

A little incident connected with the accession of King William and Queen Mary was reported to Wodrow as ‘beyond all question.’ When the magistrates of Jedburgh were met at their market-cross to proclaim the new sovereigns, and drink their healths, a Jacobite chanced to pass by. A bailie asked him if he would drink the king’s health; to which he answered no, but he was willing to take a glass of the wine. They handed him a little round glass full of wine; and he said: ‘As surely as this glass will break, I drink confusion to him, and the restoration of our sovereign and his heir;’ then threw away the glass, which alighted on the tolbooth stair, and rolled down unbroken. The bailie ran and picked up the glass, took them all to witness how it was quite whole, and then dropping some wax into the bottom, impressed his seal upon it, as an authentication of what he deemed little less than a miracle.

APR.

1689.

Mr William Veitch happening to relate this incident in Edinburgh, it came to the ears of the king and queen’s commissioner, the Earl of Crawford, who immediately took measures for obtaining the glass from Jedburgh, and ‘sent it up with ane attested account to King William.’^[7]

The sitting of the Convention brought out a great amount of volunteer zeal, in behalf of the Revolution, amongst those extreme Presbyterians of the west who had been the greatest sufferers under the old government. They thought it but right—while the Highlanders were rising for James in the north—that they should take up arms for William in the south. The movement centered at the village of Douglas in Lanarkshire, where the representative of the great House of that name was now devoted to the Protestant interest. On the day noted, a vast crowd of people assembled on a holm or meadow near the village, where a number of their favourite preachers addressed them in succession with suitable exhortations, and for the purpose of clearing away certain scruples which were felt regarding the lawfulness of their appearing otherwise than under an avowed prosecution of the great objects of the Solemn League and Covenant.

APR. 28.

After some difficulties on these and similar points, a regiment was actually constituted on the 14th of May, and nowhere out of Scotland perhaps could a corps have been formed under such unique regulations. They declared that they appeared for the preservation of the Protestant religion, and for ‘the work of reformation in Scotland, in opposition to

popery, prelacy, and arbitrary power.’ They stipulated that their officers should exclusively be men such as ‘in conscience’ they could submit to. A minister was appointed for the regiment, and an elder nominated for each company, so that the whole should be under 1689. precisely the same religious and moral discipline as a parish, according to the standards of the church. A close and constant correspondence with the ‘United Societies’—the *Carbonari* of the late evil times—was settled upon. A Bible was a part of the furniture of every private’s knapsack—a regulation then quite singular. Great care was taken in the selection of officers, the young Earl of Angus, son of the Marquis of Douglas, being appointed colonel; while the second command was given to William Cleland, a man of poetical genius and ardent soldierly character, who had appeared for God’s cause at Bothwell-brig. It is impossible to read the accounts that are given of this Cameronian Regiment, as it was called, without sympathising with the earnestness of purpose, the conscientious scrupulosity, and the heroic feelings of self-devotion, under which it was established, and seeing in these demonstrations something of what is highest and best in the Scottish character.

It is not therefore surprising to learn that in August, when posted at Dunkeld, it made a most gallant and successful resistance to three or four times the number of Highlanders, then fresh from their victory at Killiecrankie; though, on this occasion, it lost its heroic lieutenant-colonel. Afterwards being called to serve abroad, it distinguished itself on many occasions; but, unluckily, the pope being concerned in the league for which King William had taken up arms, the United Societies from that time withdrew their countenance from the regiment. The Cameronians became the 26th Foot in the British army, and, long after they had ceased to be recruited among the zealous in Scotland, and ceased to exemplify Presbyterian in addition to military discipline, they continued to be singular in the matter of the Bible in the knapsack.^[8]

There had been for some time in Scotland a JUNE 7. considerable number of French Protestants, for whom the charity of the nation had been called forth. To these was now added a multitude of poor Irish of the same faith, refugees from the cruel wars going on in their own country, and many of whom were women, children, and infirm persons.

Slender as the resources of Scotland usually were, and sore pressed upon at present by the exactions necessary for supporting the new government, a collection was going on in behalf of the refugee Irish. It was now, however, represented, that many in the western counties 1689. were in such want, that they could not wait till the collection was finished; and so the Lords of the Privy Council ordered that the sums gathered in those counties be immediately distributed in fair proportions between the French and Irish, and enjoining the distributors ‘to take special care that such of those poor Protestants as stays in the remote places of those taxable bounds and districts be duly and timeously supplied.’ Seventy pounds in all was distributed.

Five days before this, we hear of John Adamson confined in Burntisland tolbooth as a papist, and humanely liberated, that he might be enabled to depart from the kingdom.^[9]

This morning, being Sunday, the royal orders for JUNE 23. the appointment of fifteen new men to be Lords of Session reached Edinburgh, all of them being, of course, persons notably well affected to the new order of things. Considering the veneration professed for the day by zealous Presbyterians in Scotland, and how high stood the character of the Earl of Crawford for a religious life, one is rather surprised to find one of the new judges (Crossrig) bluntly telling that that earl ‘sent for me in the morning, and intimated to me that I was named for one of them.’ He adds a curious fact. ‘It seems the business had got wind, and was talked some days before, for Mr James Nasmyth, advocate, who was then concerned for the Faculty’s Library, spoke to me to pay the five hundred merks I had given bond for when I entered advocate; which I paid. It may be he thought it would not be so decent to crave me after I was preferred to the bench.’^[10]

It is incidental to liberating and reforming parties that they seldom escape having somewhat to falsify their own professions. The Declaration of the Estates containing the celebrated Claim of Right (April 1689) asserted that ‘the imprisoning of persons, without expressing the reasons thereof, and delaying to put them to trial, is contrary to law.’ It also pronounced as equally illegal ‘the using of torture without evidence in ordinary crimes.’

Very good as a party condemnation of the late government, or as a declaration of general principles; but, for a time, nothing more.

One of the first acts of the new government was for the ‘securing of suspect persons.’ It could not but be vexing to the 1689. men who had delivered their country ‘from thralldom and poperie, and the pernicious inconveniences of ane absolute power,’ when they found themselves—doubtless under a full sense of the necessity of the case—probably as much so as their predecessors had ever felt—ordering something like half the nobility and gentry of the country, and many people of inferior rank, into ward, there to lie without trial—and in at least one notorious case, had to resort to torture to extort confession; thus imitating those very proceedings of the late government which they themselves had condemned.

All through the summer of 1689, the register of the Privy Council is crammed with petitions from the imprisoned, calling for some degree of relief from the miseries they were subjected to in the Edinburgh Tolbooth, Stirling Castle, Blackness Castle, and other places of confinement, to which they had been consigned, generally without intimation of a cause. The numbers in the Edinburgh Tolbooth were particularly great, insomuch that one who remembers, as the author does, its narrow gloomy interior, gets the idea of their being packed in it much like the inmates of an emigrant ship.

Men of the highest rank were consigned to this frightful place. We find the Earl of Balcarres petitioning (May 30) for release from it on the plea that his health was suffering, ‘being always, when at liberty, accustomed to exercise [his lordship was a great walker];’ and, moreover, he had given security ‘not to escape or do anything in prejudice of the government.’ The Council ordained that he should be ‘brought from the Tolbooth to his own lodging in James Hamilton’s house over forgainst the Cross of Edinburgh,’ he giving his parole of honour ‘not to go out of his lodgings, nor keep correspondence with any persons in prejudice or disturbance of the present government.’ With the like humanity, Lord Lovat was allowed to live with his relative the Marquis of Athole in Holyroodhouse, but under surveillance of a sentinel.

Sir Robert Grierson of Lagg—who, having been an active servant of the late government in some of its worst work, is the subject of high popular disrepute as a *persecutor*—was seized in his own house by Lord Kenmure,

and taken to the jail of Kirkcudbright—thence afterwards to the Edinburgh Tolbooth. He seems to have been liberated about the end of August, on giving security for peaceable behaviour.

The most marked and hated instrument of King James was certainly the Chancellor Earl of Perth. He had taken an early 1689. opportunity of trying to escape from the country, so soon as he learned that the king himself had fled. It would have been better for all parties if his lordship had succeeded in getting away; but some officious Kirkcaldy boatmen had pursued his vessel, and brought him back; and after he had undergone many contumelies, the government consigned him to close imprisonment in Stirling Castle, ‘without the use of pen, ink, or paper,’ and with only one servant, who was to remain close prisoner with him. Another high officer of the late government, John Paterson, Archbishop of Glasgow, was placed in close prison in Edinburgh Castle, and not till after many months, allowed even to converse with his friends: nor does he appear to have been released till January 1693.

Among the multitude of the incarcerated was an ingenious foreigner, who for some years had been endeavouring to carve a subsistence out of Scotland, with more or less success. We have heard of Peter Bruce before^[11] as constructing a harbour, as patentee for a home-manufacture of playing-cards, and as the conductor of the king’s Catholic printing-house at Holyrood. It ought likewise to have been noted as a favourable fact in his history, that the first system of water-supply for Edinburgh—by a three-inch pipe from the lands of Comiston—was effected by this clever Flandrian. At the upbreak of the old government in December, Bruce’s printing-office was destroyed by the mob, and his person laid hold of. We now (June 1689) learn, by a petition from him to the Privy Council, that he had been enduring ‘with great patience and silence seven months’ imprisonment, for no other cause or crime but the coming of one Nicolas Droomer, skipper at Newport, to the petitioner’s house, which Droomer was likewise on misinformation imprisoned in this place, but is released therefra four weeks ago,’ He adds that he looks on his imprisonment to be ‘but ane evil recompense for all the good offices of his art, has been performed by him not only within the town of Edinburgh, but in several places of the kingdom, to which he was invited from Flanders. He, being a stranger, yet can make it appear [he] has lost by the rabble upwards of twenty thousand merks of writs and papers, besides the destruction done to his house and

family, all being robbed, pillaged, and plundered from him, and not so much as a shirt left him or his wife.’ He thinks 1689.

‘such barbarous usage has scarce been heard [of]; whereby, and through his imprisonment, he is so out of credit, that himself was like to starve in prison, [and] his family at home in the same condition.’ Peter’s petition for his freedom was acceded to, on his granting security to the extent of fifty pounds for peaceable behaviour under the present government.

Another sufferer was a man of the like desert—namely, John Slezer, the military engineer, to whom we owe that curious work the *Theatrum Scotiae*. The Convention was at first disposed to put him into his former employment as a commander of the artillery; but he hesitated about taking the proper oath, and in March a warrant was issued for securing him ‘untill he find caution not to return to the Castle [then held out for King James].’^[12] He informed the Council (June 3) that for some weeks he had been a close prisoner in the Canongate Tolbooth by their order, till now, his private affairs urgently requiring his presence in England, he was obliged to crave his liberation, which, ‘conceiving that he knew himself to be of a disposition peaceable and regular,’ he thought they well might grant. They did liberate him, and at the same time furnished him with a pass to go southward.

One of the petitioning prisoners, Captain Henry Bruce, states that he had been in durance for nine months, merely because, when the rabble attacked Holyroodhouse, he obeyed the orders of his superior officer for defending it. That superior officer himself, Captain John Wallace, was in prison on the same account. He presented a petition to the Council—February 5, 1691—setting forth how he had been a captive for upwards of a year, though, in defending Holyrood from the rabble, he had acted in obedience to express orders from the Privy Council of the day, and might have been tried by court-martial and shot if he had not done as he did. He craved liberation on condition of self-banishment. The Council ordered their solicitor to prosecute him; and on a reclamation from him, this order was repeated. In the ensuing November, however, we find Wallace still languishing in prison, and his health decaying—although, as he sets forth in a petition, ‘by the 13th act of the Estates of this kingdom, the imprisoning persons without expressing the reasons, and delaying to put them to a trial, is utterly and directly contrary to the known statutes, laws, and freedoms of this kingdom.’ He was not subjected to trial till August 1689.

6, 1692, when he had been nearly four years a prisoner. The laborious proceedings, extending over several days, and occupying many wearisome pages of the Justiciary Record, shew the anxiety of the Revolution government to be revenged on this gallant adversary; but the trial ended in a triumphant acquittal.

Several men and women were imprisoned in the Tolbooth for giving signals to the garrison holding out the Castle. One Alexander Ormiston petitioned for his liberation as innocent of the charge. He had merely wiped his eyes, which were sore from infancy, with his napkin, as he passed along the Grassmarket; and this had been interpreted into his giving a signal. After a confinement of twelve days, Alexander obtained his liberation, 'free of house-dues.'

John Lothian petitioned, August 19, for liberation, having been incarcerated on the 8th of July. He declared himself unconscious of anything that 'could have deserved his being denied the common liberty of a subject,' A most malignant fever had now broken out in the Tolbooth, whereof one prisoner died last night, and on all hands there were others infected beyond hope of recovery. He, being reduced to great weakness by his long confinement, was apprehensive of falling a victim. John Rattray, on the ensuing day, sent a like petition, stating that he had lain six weeks 'in close prison, in a most horrible and starving condition, for want of meat, drink, air, and bedding,' A wife and large family of small children were equally destitute at home, and likely to starve, 'he not having ane groat to maintain either himself or them.' Lothian was liberated, but the wretched Rattray was only transferred to 'open prison'—that is, a part of the jail where he was accessible to his family and to visitors.

Amongst the multitude of political prisoners was one James Johnstone, who had been put there two years before, without anything being laid to his charge. The new government had ordered his liberation in June, but without paying up the aliment due to him; consequently, he could not discharge his prison-dues; and for this the Goodman—so the head-officer of the jail was styled—had detained him. He was reduced to the most miserable condition, often did not break bread for four or five days, and really had no dependence but on the charity of the other scarcely less miserable people around him. The Council seem to have felt ashamed that a friend of their own should have been allowed to lie nine months in jail after the

Revolution; so they ordered his immediate dismissal, with payment of aliment for four hundred and two days in arrear.

1689.

[\[13\]](#)

Christopher Cornwell, servitor to Thomas Dunbar, stated to the Privy Council, March 19, 1690, that he had been in the Edinburgh Tolbooth since June last with his master, ‘where he has lived upon credit given him by the maid who had the charge of the provisions within the prison, and she being unable as well as unwilling to furnish him any more that entertainment, mean as it was, his condition hardly can be expressed, nor could he avoid starving.’ He was liberated upon his parole.

David Buchanan, who had been clerk to Lord Dundee’s regiment, was seized in coming northward, with some meal believed to be the property of his master, and he was thrown in among the crowd of the Tolbooth. For weeks he petitioned in vain for release.

The Privy Council, on the 13th May 1690, expressed anxiety about the prisoners; but it was not regarding their health or comfort. They sent a committee to consider how best the Tolbooth might be made secure—for there had been an escape from the Canongate jail—and for this purpose it was decreed that close prisoners should be confined within the inner rooms; that the shutters towards the north should be nightly locked, to prevent communications with the houses in that direction; and that ‘there should be a centinel all the daytime at the head of the iron ravell stair at the Chancellary Chamber, lest letters and other things may be tolled up.’[\[14\]](#)

The chief of the clan Mackintosh, usually called the Laird of Mackintosh, claimed rights of property over the lands of Keppoch, Glenroy, and Glenspean, in Inverness-shire, ‘worth five thousand merks of yearly rent’—a district interesting to modern men of science, on account of the singular impress left upon it by the hand of nature in the form of water-laid terraces, commonly called the Parallel Roads of Glenroy, but then known only as the haunt of a wild race of Macdonalds, against whom common processes of law were of no avail. Mackintosh—whose descendant is now the peaceable landlord of a peaceable tenantry in this country—had in 1681 obtained letters of fire and sword as a last desperate remedy against Macdonald of Keppoch and others; but no good had come of it.

JUNE.

1689.

In the year of the Revolution, these letters had been renewed, and about the time when Seymour and Russell were inviting over the Prince of Orange for the rescue of Protestantism and liberty, Mackintosh was leading a thousand of his people from Badenoch into Glenspean, in order to wreak the vengeance of the law upon his refractory tenants. He was joined by a detachment of government troops under Captain Mackenzie of Suddy; but Keppoch, who is described by a contemporary as ‘a gentleman of good understanding, and of great cunning,’ was not dismayed. With five hundred men, he attacked the Mackintosh on the brae above Inverroy, less than half a mile from his own house, and gained a sanguinary victory. The captain of the regular troops and some other persons were killed; the Laird of Mackintosh was taken prisoner, and not liberated till he had made a formal renunciation of his claims; two hundred horses and a great quantity of other spoil fell into the hands of the victors.^[15] The Revolution, happening soon after, caused little notice to be taken of this affair, which is spoken of as the last clan-battle in the Highlands.

Now that Whiggery was triumphing in Edinburgh, it pleased Keppoch to rank himself among those chiefs of clans who were resolved to stand out for King James. Dundee reckoned upon his assistance; but when he went north in spring, he found this ‘gentleman of good understanding’ laying siege to Inverness with nine hundred men, in order to extort from its burghers at the point of the sword some moneys he thought they owed him. The northern capital—a little oasis of civilisation and hearty Protestantism in the midst of, or at least close juxtaposition to, the Highlands—was in the greatest excitement and terror lest Keppoch should rush in and plunder it. There were preachings at the cross to animate the inhabitants in their resolutions of defence; and a collision seemed imminent. At length the chieftain consented, for two thousand dollars, to retire. It is alleged that Dundee was shocked and angry at the proceedings of this important partisan, but unable or unwilling to do more than expostulate with him. Keppoch by and by joined him in earnest with his following, while Mackintosh held off in a state of indecision.

This gave occasion for a transaction of private war, forming really a notable part of the Scottish insurrection for King James, though it has been scarcely noticed in history. It was when Dundee, in the course of his marching and countermarching that summer, chanced to come within a few miles of Mackintosh’s house of Dunachtan, on Speyside,

that Keppoch bethought him of the opportunity it afforded for the gratification of his vengeful feelings. He communicated not with his commander. He took no counsel of any one; he slipped away with his followers unobserved, and, stooping like an eagle on the unfortunate Mackintosh, burned his mansion, and ravaged his lands, destroying and carrying away property afterwards set forth as of the value of two thousand four hundred and sixty-six pounds sterling.

This independent way of acting was highly characteristic of Dundee's followers; but he found it exceedingly inconvenient. Being informed of the facts, he told Keppoch, in presence of his other officers, that 'he would much rather choose to serve as a common soldier among disciplined troops, than command such men as he; that though he had committed these outrages in revenge of his own private quarrel, it would be generally believed he had acted by authority; that since he was resolved to do what he pleased, without any regard to command and the public good, he begged that he would immediately be gone with his men, that he might not hereafter have an opportunity of affronting the general at his pleasure, or of making him and the better-disposed troops a cover to his robberies. Keppoch, who did not expect so severe a rebuke, humbly begged his lordship's pardon, and told him that he would not have abused Mackintosh so, if he had not thought him an enemy to the king as well as to himself; that he was heartily sorry for what was past; but since that could not be amended, he solemnly promised a submissive obedience for the future.'

^[16]

The preceding was not a solitary instance of private clan-warfare, carried on under cover of Dundee's insurrection. Amongst his notable followers were the Camerons, headed by their sagacious chief, Sir Ewen of Locheil, who was now well advanced in years, though he lived for thirty more. A few of this clan having been hanged by the followers of the Laird of Grant—a chief strong in the Whig cause—it was deemed right that a revenge should be taken in Glen Urquhart. 'They presumed 1689. that their general would not be displeased, in the circumstances he was then in, if they could supply him with a drove of cattle from the enemy's country.' Marching off without leave, they found the Grants in Glen Urquhart prepared to receive them; but before the attack, a Macdonald came forward, telling that he was settled amongst the Grants, and claiming, on that account, that none of the people should be injured. They told him that, if he was a true Macdonald, he ought to be with his chief, serving his

king and country in Dundee's army; they could not, on his account, consent to allow the death of their clansmen to remain unavenged. The man returned dejected to his friends, the Grants, and the Camerons made the attack, gaining an easy victory, and bearing off a large spoil to the army in Lochaber.

Dundee consented to overlook this wild episode, on account of the supplies it brought him; but there was another person grievously offended. The Macdonald who lived among the Grants was one of those who fell in the late skirmish. By all the customs of Highland feeling, this was an event for the notice of his chief Glengarry, who was one of the magnates in Dundee's army. Glengarry appeared to resent the man's death highly, and soon presented himself before the general, with a demand for satisfaction on Locheil and the Camerons. 'Surprised at the oddness of the thing, his lordship asked what manner of satisfaction he wanted; "for," said he, "I believe it would puzzle the ablest judges to fix upon it, even upon the supposition that they were in the wrong;" and added, that "if there was any injury done, it was to him, as general of the king's troops, in so far as they had acted without commission." Glengarry answered that they had equally injured and affronted both, and that therefore they ought to be punished, in order to deter others from following their example.' To this Dundee replied with further excuses, still expressing his inability to see what offence had been done to Glengarry, and remarking, that 'if such an accident is a just ground for raising a disturbance in our small army, we shall not dare to engage the king's enemies, lest there may chance to be some of your name and following among them who may happen to be killed.' Glengarry continued to bluster, threatening to take vengeance with his own hand; but in reality he was too much a man of the general world to be himself under the influence of these Highland feelings—he only wished to appear before his people as eager to avenge what they felt to be a just offence. The affair, therefore, fell asleep.^[17]

1689.

The Earl of Balcarres, having failed to satisfy the government about his peaceable intentions, was put under restraint in Edinburgh Castle, which was now in the hands of the government. There, he must have waited with great anxiety for news of his friend Lord Dundee.

JULY 4.

‘After the battle of Killiecrankie, where fell the last hope of James in the Viscount of Dundee, the ghost of that hero is said to have appeared about daybreak to his confidential friend, Lord Balcarres, then confined to Edinburgh Castle. The spectre, drawing aside the curtain of the bed, looked very steadfastly upon the earl, after which it moved towards the mantel-piece, remained there for some time in a leaning posture, and then walked out of the chamber without uttering one word. Lord Balcarres, in great surprise, though not suspecting that which he saw to be an apparition, called out repeatedly to his friend to stop, but received no answer, and subsequently learned that at the very moment this shadow stood before him, Dundee had breathed his last near the field of Killiecrankie.’^[18]

On the news of the defeat of the government troops, his lordship had some visits from beings more substantial, but perhaps equally pale of countenance. In his Memoirs, he tells us of the consternation of the new councillors. ‘Some were for retiring to England, others to the western shires of Scotland ... they considered whether to set at liberty all the prisoners, or make them more close; the last was resolved, and we were all locked up and debarred from seeing our friends, but *never had so many visits from our enemies*, all making apologies for what was past, protesting they always wished us well, as we should see whenever they had an opportunity.’

Lord Balcarres was liberated on the 4th of March 1690, on giving caution for peaceable behaviour, the danger of Jacobite reaction being by that time abated.

A poor young woman belonging to a northern county, wandering southwards in search of a truant lover, like a heroine of one of the old ballads, found herself reduced to the last extremity of distress when a few miles south of Peebles. Bewildered and desperate, she threw her babe into the Haystown Burn, and began to wander back towards her own country. A couple of the inhabitants of Peebles, fishing in the burn, soon found the body of the infant, and, a search being made, the wretched mother was discovered at a place called Jedderfield, brought into town, and put in confinement, as a suspected murderess. The magistrates of the burgh applied to the sheriff, John Balfour of Kailzie, to have the supposed culprit taken off their hands, and tried; but he refused to interfere, owing to ‘the present surcease of justice’ in the

JULY 10.

1689.

country. Consequently, the magistrates were ‘necessitate to cause persons constantly guard the murderer, the prison not being strong enough to secure her.’ On their petition, the Privy Council allowed the Peebles authorities to send Margaret Craig, with a guard, to Edinburgh, and ordained her to be received into the Tolbooth of Leith, till she be processed for the murder.^[19]

This miserable young woman must have lain in prison three years, for she was tried by the Court of Justiciary in June 1692, and condemned to be hanged.^[20]

There is something interesting in the early JULY 26. difficulties of so valuable an institution as the Post-office. John Graham had been appointed postmaster-general for Scotland in 1674, with a salary of a thousand pounds Scots (£83, 6s. 8d. sterling), and had set about his duty with great spirit. He had travelled to many towns for the purpose of establishing local offices, thus incurring expenses far beyond what his salary could repay. He had been obliged on this account to encroach on money belonging to his wife; also to incur some considerable debts; nor had he ever been able to obtain any relief, or even the full payment of his salary from the late state-officers. He was now dead, and his widow came before the Privy Council with a petition setting forth how she had been left penniless by her husband through his liberality towards a public object. It was ordained that Mrs Graham should get payment of all debts due by provincial offices to her husband, and have the income of the general office till Martinmas next.

It is to be feared that Mrs Graham did not profit much by this order, as on the subsequent 19th of October we find her complaining that William Mean of the Edinburgh letter-office, and others, had 1689. refused to pay her the arrears declared to be due to her; wherefore the order was renewed.

The general post-mastership was at this time put upon a different footing, being sold by roup, July 24, 1689, to John Blair, apothecary in Edinburgh, he undertaking to carry on the entire business on various rates of charge for letters, and to pay the government five thousand one hundred merks (about £255 sterling) yearly, for seven years. The rates were, for single letters to Dumfries, Glasgow, and Ayr, Dundee, Perth, Kelso, and Jedburgh, two

shillings; to Carlisle, Portpatrick, Aberdeen, and Dunkeld, three shillings; to Kirkcudbright and Inverness, four shillings, all Scots money.

In October of this year, the above-mentioned OCT. 8.
William Mean was sent with a macer to the Tolbooth for keeping up letters sent from Ireland ‘untill payment of the letters were paid to him, albeit the postage were satisfied in England, and that he had sent back packets to London which were directed for Ireland.’ Also, ‘notwithstanding the former order of Council appointing him to deliver in to them any letters directed for James Graham, vintner, he had kept up the same these eight or ten days, and had never acquainted any member of Council therewith.’ He was liberated two days after, on caution for reappearance under 500 merks. It may be surmised that William Mean was disposed to take advantage of some regulations of his office in order to give trouble to the existing government.

In the course of 1690, besides a deliberate robbery of the post-boy on the road between Cockburnspath and Haddington (see under August 16th of that year), the fact of the bag frequently coming with the seals broken, is adverted to in angry terms by the Privy Council. An edict for the use of official seals and the careful preservation of these was passed; nevertheless, we soon after hear of the bag or box coming once more into Edinburgh with the seals broken, Mrs Gibb, the post-mistress at the Canongate post,^[21] sent for, Mrs Mean of the letter-office also called up, and much turmoil and fume for a while, but no sort of decisive step taken in consequence. It is to be observed that the post from the English to the Scottish capital was at this time carried on horseback with a fair degree of speed. English parliamentary proceedings of Saturday are noted to be in the hands of the Edinburgh public on the ensuing Thursday.^[22]

Alexander Irvine of Drum, the representative of 1689. SEP.
a distinguished historical family in Aberdeenshire, was unfortunately weak both in mind and body, although it is related that he could play well on the viol, and had picked up the then popular political tune of *Lullibullero* in the course of a few days. Under sanction of the Privy Council, Dr David Mitchell of Edinburgh undertook to keep him in his house in a style befitting his quality, and with the care required by his weakly condition, and for this purpose hired some additional rooms, and made other necessary furnishings and preparations. The laird came to him at the close of July, but

before the end of August, Marjory Forbes had induced the laird to own her as his wife, and it became necessary that Drum should leave his medical protector. A petition being presented by Dr Mitchell for payment of board and recompense for charges thus needlessly incurred, he was allowed by the Lords £500 Scots, or £41, 13s. 4d. sterling, over and above twenty pieces he had received for a professional visit paid to the laird's Aberdeenshire castle, to arrange for his migration to Edinburgh.^[23]

James Broich, skipper of Dundee, was proceeding in his scout to Norway with a small parcel of goods, and a thousand pounds Scots wherewith to buy a larger vessel. In mid-sea he fell in with a French privateer, who, after seizing cargo and money, having no spare hands to leave on board, proceeded to cut holes in the vessel, in order to sink her, proposing to put the unfortunate crew to their boat, in which case they must have perished, 'there being then a great stress.' By the prayers and tears of the skipper and his people, the privateer was at length induced to let them go in their vessel, but not without first obtaining a bond from Broich, undertaking to remit six hundred guelders to Dunkirk by a particular day. As a guarantee for this payment, the rover detained and carried off the skipper's son, telling him he would hear no good of him if the money should fail to be forthcoming.

Poor Broich got safe home, where his case excited much commiseration, more particularly as he had suffered from shipwreck and capture four times before in the course of his professional life. He was penniless, and unable to support his family; his son, also—'the stay and staff of his old age'—had a wife and small children of his own left desolate. Here was a little domestic tragedy very naturally arising out of the wars of the *Grand Monarque*! Beginning in the council-room of Versailles, such was the way they told upon humble industrial life in the port of Dundee in Scotland. It was considered, too, that the son was in 'as bad circumstances, in being a prisoner to the French king, as if he were a slave to the Turks.'

On the petition of Broich, the Privy Council ordained a voluntary contribution to be made for his relief in Edinburgh, Leith, Borrowstounness, and Queensferry, and in the counties of Fife and Forfar.

In a contemporary case, that of a crew of Grangepans, carried by a privateer to Dunkirk, and confined in Rochefort, it is stated that they were

each allowed half a sous *per diem* for subsistence, and were daily expecting to be sent to the galleys.^[24]

It was now acknowledged of the glass-work at OCT. 10.
Leith, that it was carried on successfully in making green bottles and ‘chemistry and apothecary glasses.’ It produced its wares ‘in greater quantity in four months than was ever vended in the kingdom in a year, and at as low rates as any corresponding articles from London or Newcastle.’ The Privy Council therefore gave it the privileges of a manufactory, and forbade introduction of foreign bottles, only providing that the Leith work should not charge more than half-a-crown a dozen.

The magistrates of Edinburgh were ordered to DEC. 2.
put William Mitchell upon the Tron, ‘and cause the hangman nail his lug [ear] thereto,’ on Wednesday the 4th instant, between eleven and twelve in the forenoon, with a paper on his breast, bearing ‘that he stands there for the insolencies committed by him on the Guards, and for words of reflection uttered by him against the present government.’^[25]

A large flock of *mere-swine* (porpoises?) having 1690. FEB. 2.
entered the Firth of Forth, as often happens, and a considerable number having come ashore, as seldom happens, at Cramond, the tenants of Sir John Inglis, proprietor of the lands there, fell upon them with all possible activity, and slew twenty-three, constituting a prize of no inconsiderable value. After fastening the animals with ropes, so as to prevent their being carried out to sea—for the scene of slaughter was 1690.
half a mile in upon a flat sandy beach—the captors sold them for their own behoof to Robert Douglas, soapboiler in Leith, fully concluding that they had a perfect right to do so, seeing that mere-swine are not royal fish, and neither had they been cast in dead, in which case, as wrack, I presume, they would have belonged to the landlord.

The greater part of the spoil had been barrelled and transported to Leith—part of the price paid, too, to the captors—when John Wilkie, surveyor there, applied to the Privy Council for a warrant to take the mere-swine into his possession and dispose of them for the benefit of such persons as they

should be found to belong to. He accordingly seized upon the barrels, and disposed of several of them at eleven pounds four shillings per barrel, Douglas protesting loudly against his procedure. On a petition, representing how the animals had been killed and secured, Wilkie was ordained to pay over the money to Douglas, deducting only his reasonable charges.

A few hot-headed Perthshire Jacobites, including [George] Graham of Inchbrakie, David Oliphant of Culteuchar, and George Graham of Pitcairns, with two others designed as ensigns, met to-day at the village of Dunning, with some other officers of the government troops, and, getting drink, began to utter various insolencies. They drank the health of King James, 'without calling him the late king,' and further proceeded to press the same toast upon the government officers. One of these, Ludovick Grant, quarter-master of Lord Rollo's troop, was prudentially retiring from this dangerous society, when Ensign Mowat cocked a pistol at him, saying: 'Do you not see that some of us are King William's officers as well as you, and why will ye not drink the health as well as we?' Grant having asked him what he meant by that, Inchbrakie took the pistol, and fired it up the chimney—which seems to have been the only prudential proceeding of the day. The party continued drinking and brawling at the place, till James Hamilton, cornet of Rollo's troop, came with a party to seize them, when, drawing their swords, they beat back the king's officer, and were not without great difficulty taken into custody. Even now, so far from being repentant, Inchbrakie 'called for a dishful of aqua vitæ or brandy, and drank King James's health,' saying 'they were all knaves and rascals that would refuse it.' He said 'he hoped the guise would turn,' when Lord Rollo would not be able to keep Scotland, and he would get

FEB. 28.

1690.

Duncrub [Lord Rollo's house and estate] to himself. His fury against the soldiers extended so far, that he called for powder and ball to shoot the sentinels placed over him, and 'broke Alexander Ross's face with ane pint-stoup.' Even when borne along as prisoners to Perth, and imprisoned there, these furious gentlemen continued railing at Lord Rollo and his troop, avowing and justifying all they had done at Dunning.

The offenders, being brought before the Privy Council, gave in defences, which their counsel, Sir David Thores, advocated with such rash insolency that he was sent away to prison. The culprits were punished by fines and

imprisonment. We find them with great difficulty clearing themselves out of jail six months after.^[26]

In religious contentions, there is a cowardice in the strongest ascendancy parties which makes them restlessly cruel towards insignificant minorities. The Roman Catholics in Scotland had never since the Reformation been more than a handful of people; but they had constantly been treated with all the jealous severity due to a great and threatening sect. Even now, when they were cast lower than at any former time, through the dismal failure of King James to raise them, there was no abatement of their troubles.

It was at this time a great inconveniency to any one to be a Catholic. As a specimen—Alexander Fraser of Kinnaries, on the outbreak of the Revolution, to obviate any suspicion that might arise about his affection to the new government, came to Inverness, and put himself under the view of the garrison there. Fears being nevertheless entertained regarding him, he was sent to prison. Liberated by General Mackay upon bail, he remained peaceably in Inverness till December last, when he was sent to Edinburgh, and there placed under restraint, not to move above a mile from town. He now represented the hardship he thus suffered, ‘his MAR. 2. fortune being very small, and the most of his living being only by his own labouring and industry.’ ‘His staying here,’ he added, ‘any space longer must of necessity tend to his own and his family’s utter ruin.’ With difficulty, the Lords were induced to liberate him under caution.

Mr David Fairfoul, a priest confined in prison at Inverness, only regained his liberty by an extraordinary accident. James Sinclair of Freswick, a Caithness gentleman, had chanced a twelvemonth 1690. before to be taken prisoner by a French privateer, as he was voyaging from his northern home to Edinburgh. Having made his case known to the Scottish Privy Council, he was relieved in exchange for Mr Fairfoul (June 5, 1690).

About the end of the year, we find a considerable number of Catholics under government handling. Steven Maxwell, who had been one of the two masters in the Catholic college at Holyroodhouse, lay in durance at Blackness. John Abercrombie, ‘a trafficker,’ and a number of other priests recently collected out of the Highlands, were immured in the Tolbooth of Edinburgh. Another, named Mr Robert Davidson, of whom it was admitted

that 'his opinion and deportment always inclined to sobriety and moderation, shewing kindness and charity to all in distress, even of different persuasions, and that he made it no part of his business to meddle in any affairs, but to live peaceably in his native country for his health's sake,' had been put into Leith jail, with permission to go forth for two hours a day, under caution to the amount of fifty pounds, lest his health should suffer.

At this very time, a fast was under order of the General Assembly, with sanction of the government, with a reference to the consequences of the late oppressive government, citing, among other things, 'the sad persecutions of many for their conscience towards God.'^[27]

It was declared in the legislature that there were APR. 25.
'frequent murders of innocent infants, whose mothers do conceal their pregnancy, and do not call for necessary assistance in the birth.' It was therefore statute, that women acting in this secretive manner, and whose babes were dead or missing, should be held as guilty of murder, and punished accordingly.^[28] That is to say, society, by treating indiscretions with a puritanic severity, tempted women into concealments of a dangerous kind, and then punished the crimes which itself had produced, and this upon merely negative evidence.

Terrible as this act was, it did not wholly avail to make women brave the severity of that social punishment which stood on the other side. It is understood to have had many victims. In January 1705, no fewer than four young women were in the Tolbooth of Aberdeen at once for concealing pregnancy and parturition, and all in a state of such 1690.
poverty that the authorities had to maintain them. On the 23d July 1706, the Privy Council dealt with a petition from Bessie Muckieson, who had been two years 'incarcerat' in the Edinburgh Tolbooth on account of the death of a child born by her, of which Robert Bogie in Kennieston, in Fife, was the father. She had not concealed her pregnancy, but the infant being born in secret, and found dead, she was tried under the act.

At her trial she had made ingenuous confession of her offence, while affirming that the child had not been 'wronged,' and she protested that even the concealment of the birth was 'through the treacherous dealing and abominable counsel of the said Robert Bogie.' 'Seeing she was a poor

miserable object, and an ignorant wretch destitute of friends, throwing herself at their Lordships' footstool for pity and accustomed clemency'—petitioning that her just sentence might be changed into banishment, 'that she might be a living monument of a true penitent for her abominable guilt'—the Lords looked relentingly on the case, and adjudged Bessie to pass forth of the kingdom for the remainder of her life.^[29]

It was seldom that such leniency was shewn. In March 1709, a woman named Christian Adam was executed at Edinburgh for the imputed crime of child-murder, and on the ensuing 6th of April, two others suffered at the same place on the same account. In all these three cases, occurring within four weeks of each other, the women had allowed their pregnancy and labour to pass without letting their condition be known, or calling for the needful assistance, Adam acting thus at the entreaty of her lover, 'a gentleman,' who said it would ruin him if she should declare her state. Another, named Bessie Turnbull, had been entirely successful in concealing all that happened; but the consciousness of having killed her infant haunted her, till she came voluntarily forward, and gave herself up. At the scaffold, Adam 'gave the ministers much satisfaction;' Margaret Inglis 'did not give full satisfaction to the ministers;' Turnbull 'seemed more affected than her comrade, but not so much as could be wished.'^[30]

Our old acquaintance, Captain John Slezer, turns up at this time in an unexpected way. Three or four months before, he had obtained a commission as captain of artillery from their majesties, and now he was about to leave Edinburgh on duty; but, lo, John Hamilton, wright, burgess of Edinburgh, 'out of a disaffection to their majesties and the present government,' gave orders to George Gilchrist, messenger, to put in execution letters of caption against the captain, for a debt due by him, 'albeit he [Slezer] the night before offered him satisfaction of the first end of the money.' The Council, 'understanding that the same has been done out of a design to retard their majesties' service, called for Hamilton, and, in terms of the late act of parliament, desired him to take the oath of allegiance and assurance, which he refused to do.' They therefore ordained him to be committed prisoner to the Tolbooth of Edinburgh, and 'declares Captain Slezer to be at liberty to prosecute his majesty's service.' The debtor and creditor might thus be said to have changed places: one can

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imagine what jests there would be about the case among the Cavalier wits in the Laigh Coffee-house—how it would be adduced as an example of that vindication of the laws which the Revolution professed to have in view—how it would be thought in itself a very good little Revolution, and well worthy of a place in the child's toy picture of *The World Turned Upside Down*.

After a six weeks' imprisonment, Hamilton came before the Council with professions of peaceable inclination to the present government, and pleaded that he was valetudinary with gravel, much increased by reason of his confinement, 'and, being a tradesman, his employment, which is the mean of his subsistence, is altogether neglected by his continuing a prisoner,' and he might be utterly ruined in body, family, and estate, if not relieved. Therefore the Lords very kindly liberated this delinquent creditor, he giving caution to live inoffensively in future, and reappear if called upon.

We find a similar case a few years onward. Captain William Baillie of Colonel Buchan's regiment was debtor to Walter Chiesley, merchant in Edinburgh, to the extent of three thousand merks, for satisfaction of which he had assigned his estate, with power to uplift the rents. He was engaged in Edinburgh on the recruiting service, when Chiesley, out of malice, as was insinuated, towards the government of which Baillie was the commissioned servant, had him apprehended on caption for the debt, and put into the Tolbooth of Edinburgh. Thus, as his petition to the Privy Council runs (February 7, 1693), 'he is rendered incapable of executing that important duty he is upon, which will many ways prejudice 1690. their majesties' service;' for, 'if such practices be allowed, and are unpunished, there should not ane officer in their majesties' forces that owes a sixpence dare adventure to come to any mercat-town, either to make their recruits or perform other duty.' For these good reasons, Baillie craved that not only he be immediately liberated, but Walter Chiesley be censured 'for so unwarrantable ane act, to the terror of others to do the like.'

The Council recommended the Court of Session to expedite a suspension, and put at liberty the debtor; but they seem to have felt that it would be too much to pass a censure on the merchant for trying to recover what was justly owing to him.

But for our seeing creditors treated in this manner for the conveniency of the government, it would be startling to find that the old plan of the

supersedere, of which we have seen some examples in the time of James VI., was still thought not unfit to be resorted to by that *régime* which had lately redeemed the national liberties.

James Bayne, wright in Edinburgh—the same rich citizen whose daughter’s clandestine nuptials with Andrew Devoe, the posture-master, made some noise a few years back^[31]—had executed the carpentry-work of Holyroodhouse; but, like Balunkin in the ballad, ‘payment gat he nane.’ To pay for timber and workmen’s wages, he incurred debts to the amount of thirty-five thousand merks (about £1944 sterling), which soon increased as arrears of interest went on, till now, after an interval of several years, he was in such a position, that, supposing he were paid his just dues, and discharged his debts, there would not remain to him ‘one sixpence’ of that good stock with which he commenced the undertaking.

At the recommendation of ‘his late majesty [Charles II.?],’ the Lords of the Treasury had considered the case, and found upwards of £2000 sterling to be due to James Bayne, ‘besides the two thousand pounds sterling for defalcations and losses, which they did not fully consider,’ and they consequently ‘recommended him to the Lords of Session for a suspension against his creditors, ay, and while the money due to him by the king were paid.’ This he obtained; ‘but at present no regard is had to it.’ Recently, to satisfy some of his most urgent creditors, the Lords of the Treasury gave him an order for £500 upon their receiver, Maxwell 1690. of Kirkconnel; but no funds were forthcoming. His creditors then fell upon him with great rigour, and Thomas Burnet, merchant in Edinburgh, from whom he had been a borrower for the works at the palace, had now put him in jail, where he lay without means to support himself and his family.

Bayne craved from the Privy Council that the two thousand pounds already admitted might as soon as possible be paid to him, and that, meanwhile, he should be liberated, and receive a protection from his creditors, ‘whereby authority will appear in its justice, the petitioner’s creditors be paid, and no tradesman discouraged to meddle in public works for the advancement of what is proper for the government to have done.’ The Privy Council considered the petition, and recommended the Lords of Session ‘to expedite ane suspension and charge to put to liberty’ in favour of James Bayne, on his granting a disposition of his effects in favour of his creditors.^[32]

It was, after all, fitting that the government which interfered, for its own conveniency, to save its servants from the payment of their just debts, should stave off the payment of their own, by similar interpositions of arbitrary power.

The ‘happie revolution’ had not made any AUG.
essential change in the habits of those Highlanders who lived on the border of the low countries. It was still customary for them to make periodical descents upon Morayland, Angus, the Stormont, Strathearn, and the Lennox, for ‘spreaths’ of cattle and other goods.

Sir Robert Murray of Abercairney, having lands in Glenalmond and thereabouts, employed six men, half of whom were Macgregors, as a watch or guard for the property of his tenants. These men, coming one day to the market of Monzie, were informed that a predatory party had gone down into the low country, and ‘fearing that they might, in their return, come through Sir Robert’s lands, and take away ane hership from his tenants,’ they lost no time in getting the land, over which they were likely to pass, cleared of bestial. They were refreshing themselves after their toil at the kirk-town of Monzie, when the caterans came past with their booty. Enraged at finding the ground cleared, the robbers seized the six men, and carried them away as prisoners.

A few days after, having regained their liberty, they were apprehended by Lord Rollo, on a suspicion of having been 1690.
accomplices of the robbers, by whom it appeared his lordship’s tenants had suffered considerably; and they were immediately dragged off to Edinburgh, and put into the Canongate jail. There they lay for two months, ‘in a very starving condition, and to the ruin of their poor families at home;’ when at length, Lord Rollo having failed to make good anything against them, and Sir Robert Murray having undertaken for their appearance if called upon, they were allowed to go home, with an order to the governor of Drummond Castle for the restoration of their arms.

On the 22d January 1691, Lord Rollo represented to the Privy Council that ‘in the harvest last, the Highland robbers came down and plundered his ground, and because of his seeking redress according to law, they threaten his tenants with ane other depredation, and affrights them so as they are like

to leave the petitioner's lands, and cast them waste.'^[33] The matter was remitted to the Commander of the Forces.^[34]

Andrew Cockburn, the post-boy^[35] who carried the packet or letter-bag on that part of the great line of communication which lies between Cockburnspath and Haddington, had this day reached a point in his journey between the Alms-house and Hedderwick Muir, when he was assailed by two gentlemen in masks; one of them 'mounted on a blue-gray horse, wearing a stone-gray coat with brown silk buttons;' the other 'riding on a white horse, having a white English gray cloak coat with wrought silver thread buttons.' Holding pistols to his breast, they threatened to kill him if he did not instantly deliver up 'the packet, black box, and by-bag' which he carried; and he had no choice but to yield. They then bound him, and, leaving him tied by the foot to his horse, rode off with their spoil to Garlton House near Haddington.

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As the packet contained government communications besides the correspondence of private individuals, this was a crime of a very high nature, albeit we may well believe it was committed on political impulse only. Suspicion seems immediately to have alighted on James Seton, youngest son of the Viscount Kingston, and John Seton, brother of Sir George Seton of Garlton; and Sir Robert Sinclair, the sheriff of the county, immediately sought for these young gentlemen at their father's and brother's houses, but found them not. With great hardihood, they came to Sir Robert's house next morning, to inquire as innocent men why they were searched for; when Sir Robert, after a short examination in presence of the post-boy, saw fit to have them disarmed and sent off to Haddington. It was Sunday, and Bailie Lauder, to whose house they came with their escort, was about to go to church. If the worthy bailie is to be believed, he thought their going to the sheriff's a great presumption of their innocence. He admitted, too, that Lord Kingston had come and spoken to him that morning.^[36]

Anyhow, he concluded that it might be enough in the meantime if he afforded them a room in his house, secured their horses in his stable, and left them under charge of two of the town-officers. Unluckily, however, he required the town-officers, as usual, to walk before him and his brother-magistrates to church; which, it is obvious, interfered very considerably with their efficiency as a guard over the two gentlemen. While things were in this posture, Messrs Seton took the prudent course of making their escape. As soon as the bailie heard of it, he left church, and

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took horse after them with some neighbours, but he did not succeed in overtaking them.

The Privy Council had an extraordinary meeting, to take measures regarding this affair, and their first step was to order Bailie Lauder and the two town-officers into the Tolbooth of Edinburgh as close prisoners. A few days afterwards, the magistrate was condemned by the Council as guilty of plain fraud and connivance, and declared incapable of any public employment. William Kaim, the smith at Lord Kingston's house of Whittingham, was also in custody on some suspicion of a concern in this business; but he and the town-officers were quickly liberated.^[37]

John Seton was soon after seized by Captain James Denholm on board a merchant-vessel bound for Holland, and imprisoned in the Castle of Edinburgh. He underwent trial in July 1691, and by some means escaped condemnation. A favourable verdict did not procure his immediate liberation; but, after three days, he was dismissed on caution to return into custody if called upon. This final result was the more remarkable, as his father was by that time under charge of having aided in the betrayal of the Bass.^[38]

William Bridge, an Englishman, had come to Scotland about ten years ago, at the invitation of a coppersmith and a founder in Edinburgh, to 'give them his insight in the art of casting in brass;' and now they had imparted their knowledge to James Miller, brasier in the Canongate. Bridge petitioned the Privy Council for some charity, 'seeing he left his own kingdom for doing good to this kingdom and the good town of Edinburgh.' The Council took that way of proving their benevolence on which Mr Sidney Smith once laid so much stress—'they recommend to the magistrates of Edinburgh to give the petitioner such charity as he deserves.'^[39]

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The monopoly of the manufacture and sale of playing-cards, which was conferred some years back on Peter Bruce, engineer, had been transferred by him to James Hamilton of Little Earnock, together with a paper-mill which he had built at Restalrig, and two machines for friezing cloth. Hamilton now petitioned for, and obtained the

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Privy Council's confirmation of this exclusive right, in consideration of his great expenses in bringing home foreign workmen, and putting his little manufactory in order.^[40]

Many gentlemen and others, who for several months had been prisoners in the Edinburgh Tolbooth, were transported to Blackness, Leith, and Bass, leaving George Drummond, the 'Goodman' of the prison, unpaid for their aliment and house-dues. The Council ordained the keepers of the prisons of Blackness and Bass to detain these gentlemen till they had satisfied Drummond, whatever orders might come for their enlargement.

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In another case, which came before them in the ensuing January, the Council acted much in the spirit of their late ordinance in favour of William Bridge the brass-founder. Gavin Littlejohn, a prisoner in the Edinburgh Tolbooth, had been ordered by them to be set at liberty, but he was detained by his jailer for fourscore pounds Scots of house-dues. Being poor, 'he was no ways able to make payment, albeit he should die in prison,' and he therefore craved the Lords that they would, as usual in such cases, recommend the discharge of his debt by the treasury. The Lords, having considered this petition, 'recommend to George Drummond, master of the Tolbooth, *to settle with the petitioner*, that he may be set at liberty.'^[41]

Law had not yet so well asserted her supremacy in Scotland as to entirely banish the old inclination to enforce an assumed right by the strong hand. Of the occasional violences still used in debatable matters of property, a fair specimen is presented by a case which occurred at this time between Andrew Johnstone of Lockerby and Mrs Margaret Johnstone, the widow of his eldest son. For a year

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or two past, Mrs Margaret, supported by her father, Sir James Johnstone of Westerhall, and with the aid of sundry servants of her own and her father, had been accustomed to molest Andrew Johnstone, his friends and tenants, in the possession of their lands, and to threaten them with acts of violence. They had been obliged to take out a writ of lawborrows against the wrathful lady and her 'accomplices;' but it had proved of no avail in inducing peaceful measures.

One day in the last spring, as Johnstone's tenants were labouring their lands at Turrie-muir, his furious daughter-in-law and her 'accomplices' came upon them, loosed the horses from their ploughs and harrows, cut the harness, and beat the workmen. James Johnstone, a younger son of Lockerby, was present, and on his trying to prevent these outrages, they fell upon him violently, and wounded him under the eye with a penknife, 'to the great hazard of the loss of his eye.'

In June, a set of Mrs Margaret's friends, headed by David Carlyle, and his sons William and Robert, took an opportunity of making a deadly personal assault upon Mrs Mary Johnstone, wife of the Laird of Lockerby. The poor lady was cut down, and left as dead, while her friend, Mrs Barbara Hill, was run through the thigh with a sword. These ladies had since lain under the care of surgeons, and it was uncertain whether they would live or die. Janet Geddes, servant of Mungo Johnstone of Netherplace, a friend of Lockerby, had also been assailed by the Carlyles, pulled to the ground by the hair of her head, cruelly beaten and wounded, and nearly choked with a horn snuff-box which they endeavoured to force down her throat.

In May, a group of Mrs Margaret's friends came armed to the lands of Hass and Whitwyndhill, with 'horrid and execrable oaths,' and 'masterfully drove away the sheep and bestial.' The poor tenants and their wives came to rescue their property, when the assailing party rode them down, and beat them so sore, that several had to be taken home in blankets. Not long after, Westerhall's servants came to the same lands, and took by violence from Robert Johnstone of Roberthill fourteen kine and oxen, 'which were reset by Sir James, being carried home to his house and put in his byres, and set his mark upon them, and thereafter sold ten of the said beasts, ilk ane being worth forty pounds.'

Last, and worst of all, Walter Johnstone, brother of Mrs Margaret, had come with attendants to the house of Netherplace by night, broke in, and beat the owner, Mungo Johnstone, in a most 1690. outrageous manner, besides squeezing the hands of his son, a boy, that the blood sprung below his nails.

The matter was brought before the Privy Council by complaints from both parties, and as the awards went rather against Lockerby and his son for keeping his daughter-in-law out of her rights, than against her and her

friends for their violent procedure on the other side, we may reasonably infer that the James VI. style of justice was far from extinct in the land.

A case of violent procedure on the part of a landlord towards a tenant occurred about the same time. Catherine Herries possessed the lands of Mabie, in the stewartry of Kirkcudbright, in liferent. In the early part of 1689, she entered into a communing with one Robert Sturgeon, to set to him the small farm of Crooks, promising him a nine years' lease; and he was admitted to possession, though upon a verbal agreement only. He immediately addressed himself to the improvement of the ground by ditching and draining, and in a year laid out upon it two hundred merks, or something more than eleven pounds sterling. Meanwhile, the lady united herself to John Maxwell of Carse, 'a notorious papist,' who had not long before been searched for as a person dangerous to the new government. When the lady learned that Sturgeon had been active among the searchers, she seems to have resolved to discontinue his connection with her estate. At Lammas 1690, alleging that he had been warned away at the preceding Pasch, she caused him to be summoned before the steward-depute of Kirkcudbright, who decreed him to remove within an irregularly brief period. He had no resource but to go to Edinburgh, and sue for a suspension of the decree; but when he returned with this document, he found that the lady, the day before, had violently ejected his wife, bairns, and bestial, 'whereof many were lost.' He intimated the suspension; but Lady Mabie, disregarding it, obtained a precept from the steward-depute, ordering him to answer for a thousand merks on account of his unlawful intrusion upon her estate, and authorising his imprisonment till this was paid. Without any other warrant, as Sturgeon complains to the Council, the lady, under cloud of night, sends fifteen or sixteen persons, whereof John Lanerick, writer in Dumfries, was ringleader, with swords and staves, and takes the complainer out of his bed, as if he had been a notorious malefactor, and carries him bound prisoner to the Tolbooth of Kirkcudbright, where he lay six weeks, his wife, bairns, and goods being again ejected, and his house shut up.

In such a relation of parties, even had the 1690. proceedings of Lady Mabie and her husband been more regular, the Lords of the Privy Council could have no difficulty in deciding. They fined the lady and her husband in two hundred merks, one half to go as compensation to the ejected tenant.^[42]

If the author could be allowed to indulge in a SEP. little personality, he would recall a walk through the streets of Edinburgh with Sir Walter Scott in the year 1824—one of many which he was privileged to enjoy, and during which many old Scottish matters, such as fill this work, were discussed. Sir Walter, having stopped for a moment in the crowd to exchange greetings with a portly middle-aged man, said, on coming up to continue his walk: ‘That was Campbell of Blythswood—we always shake hands when we meet, for there is some old *cousinred* between us.’ Let this occurrence, only redeemed from triviality by its bringing up a peculiar Scotch phrase unknown to Jamieson, be introduction to a characteristic letter of the year 1690, which seems worthy of a place here. First be it noted, the ‘cousinred’ between the illustrious fictionist of our century and the great laird of the west, took its origin two centuries earlier, thus forming a curious example of the tenacity of the Scottish people regarding relationships. The paternal great-grandfather of Sir Walter Scott was a person of his own name, the younger of the two sons of that Scott of Raeburn whom we have seen in 1665 set aside from the use of his property, the education of his family, and the enjoyment of his liberty, in consequence of his becoming a Quaker. The young Walter Scott spent his mature life in Kelso; we find him spoken of in a case under the attention of the Privy Council as a ‘merchant’ there: from devotion to the House of Stuart, he never shaved after the Revolution, and consequently acquired the nickname of *Beardie*. It was his fortune, in the month of September 1690, to ride to Glasgow, and there wed a lady of a noted mercantile family, being daughter to Campbell of Silvercraigs, whose uncle was the first Campbell of Blythswood, provost of Glasgow in 1660. The house of the Campbells of Silvercraigs in the Saltmarket was a handsome and spacious one, which Cromwell had selected for his residence when he visited Glasgow.^[43] Here, of course, took place the wedding of this young offshoot of Roxburghshire gentility with Mary Campbell, the niece of 1690. Blythswood, the result, most probably, of a line of circumstances originating in that tyrannical decret of the Privy Council which ordained the Quaker Raeburn’s bairns to be taken from him, and educated in a sound faith at the schools of Glasgow (see under July 5, 1666).

The letter in question is one which Walter Scott wrote to his mother immediately after his marriage, stating the fact, and giving her directions about horses and certain articles to be sent to him against his intended

return home with his bride. It is merely curious as illustrating the personal furnishings of a gentleman in that age, and the manner in which he travelled.

‘DEAR MOTHER—The long designed marriage betwixt Mary Campbell and mee was accomplished upon the 18th of this instant, and I having stayed here longer than I thought to doe, thought fitt to lett you know soe much by this. I have sent home Mr Robert Ellott his mare with many thanks, and tell him she has been fed since I came from home with good hay and corne, and been more idle as rideing. I have sent you the key of the studdy, that you may send mee with Rob^t Paterson and my horses my two cravatts that are within, and one pare I suppose within my desk the key and keep till I come home. As also send mee ane clene shirt, my hatt that is within my trunk send hither, and give to Robert Paterson, to putt one, another hat that is in itt—the trunk is open already. Send me out of ane bagge of rix dollars that you shall find in my desk, 30 rix dollars, and my little purse with the few pieces of gold. You will find there also two pairs of sleives and a plain cravatt: give with my hatts to Rot. my coat and old , to putt one, if they bee meet for him. Let Rot. come in by Ed^r and call at Dykes the shoe maker for my boots and one of the pairs of the shoes he has making for me, if they be ready, and bring them with him hither. Let him bring my own sadle and pistolls upon the one horse, and borrow my good sisters^[44] syde sadle and bring upon the other. Lett him be sure to bee here upon Tuesday the thirteenth [thirtieth?] instant and desire him to be careful of all thir things. William Anderson^[45] says he will come home with us. We are all in good health here. My wife with all the rest of us gives our service to you. Wee hope to see you upon the Saturday night after Rot. Paterson comes hither. We pray for God’s blessing and 1690.
yours. I have writt to desire my brother to come again thatt time hither and come home with us. God be with you, dear mother. I am your loving sonne,

‘W. SCOTT.

‘GLASGOW, *Sept. 22^o*, 1690.

‘Iff my brother could bee here sooner, I wish he would come, and Robt. also, for I mean to stay from home, and our time will much depend on their coming.’

For a notice of a visit paid by Beardie to Glasgow in February 1714, on the occasion of the death of his father-in-law, see under that date.

The Bible, New Testament, and a catechism, Nov. 11.
having recently been prepared in the Irish language, mainly for the use of the Irish population, it was thought by some religiously disposed persons in England, including some of Scottish extraction, that the same might serve for the people of the Highlands of Scotland, whose language was very nearly identical. It was accordingly part of the duty of the General Assembly to-day to make arrangements for receiving and distributing throughout the Highlands a gift of three thousand Bibles, one thousand New Testaments, and three thousand catechisms, which was announced to be at their disposal in London. A thousand pounds Scots was petitioned for from the Privy Council, to pay the expense of transporting the books from London and sending them to the various northern parishes.^[46] It is to be regretted that so important an event as the first introduction of an intelligible version of the Scriptures to a large section of our population should be so meagrely chronicled. We shall hereafter have much to tell regarding further operations of the same kind in the northern portion of Scotland.

The domestic condition of the people is so much DEC.
affected by certain sacred principles of law, that the history and progress of these becomes a matter of the first consequence. We have seen how the new rulers acted in regard to the sacredness of the subject from imprisonment not meant to issue in trial; we shall now see how they comported themselves respecting the unlawfulness of torture, which they had proclaimed as loudly in their Declaration or Claim of Rights.^[47] We find the Duke of Hamilton, within three months of his presiding at the passing of this 'Declaration,' writing to Lord Melville about a 1690.
little Jacobite conspiracy—'Wilson can discover all: if he does not confess freely, it's like he may get either the boots or the thumbikens.'^[48] When, at the crisis of the battle of the Boyne, the plot of Sir James Montgomery of Skelmorley, the Earl of Annandale, Lord Ross, and Robert Fergusson, for the restoration of King James, broke upon the notice of the new government, a Catholic English gentleman named Henry Neville Payne,

who had been sent down to Scotland on a mission in connection with it, was seized by the common people in Dumfriesshire, and brought to Edinburgh. Sir William Lockhart, the solicitor-general for Scotland, residing in London, then coolly wrote to the Earl of Melville, secretary of state at Edinburgh, regarding Payne, that there was no doubt he knew as much as would hang a thousand; 'but,' says he, 'except you put him to the torture, he will shame you all. Pray you *put him in such hands as will have no pity on him*; for, in the opinion of all, he is a desperate cowardly fellow.'

The Privy Council had in reality by this time put Payne to the torture; but the 'cowardly fellow' proved able to bear it without confession. On the 10th of December, under instructions signed by the king, and countersigned by the Earl of Melville, the process was repeated 'gently,' and again next day after the manner thus described by the Earl of Crawford, who presided on the occasion: 'About six this evening, we inflicted [the torture] on both thumbs and one of his legs, with *all the severity that was consistent with humanity*, even unto that pitch that *we could not preserve life and have gone further*, but without the least success.... He was so manly and resolute under his suffering, that such of the Council as were not acquainted with all the evidences, were brangled and began to give him charity, that he might be innocent. It was surprising to me and others, that flesh and blood could, without fainting, and in contradiction to the grounds we had insinuated of our knowledge of his accession in matters, *endure the heavy penance he was in for two hours*.... My stomach is truly so far out of tune, by being a witness to an act so far cross to my natural temper, that I am fitter for rest than anything else.'

The earl states, that he regarded Payne's constancy under the torture as solely owing to his being assured by his religion that it would save his soul and place him among the saints. His lordship 1690. would never have imagined such self-consideration as supporting a westland Whig on the ladder in the Grassmarket.^[49] The conviction doubtless made him the more resolute in acting as 'the prompter of the executioner to increase the torture to so high a pitch'—his own expression regarding his official connection with the affair. It is curious that none ever justly apprehend, or will admit, the martyrdoms of an opposite religious party. Always it is obstinacy, vanity, selfishness, or because they have no choice. Sufferings for conscience' sake are only acknowledged where one's

own views are concerned. It must be admitted as something of a deduction from the value of martyrdom in general.

We after this hear of Payne being in a pitiable frame of body under close confinement in Edinburgh Castle, no one being allowed to have access to him but his medical attendants. For a little time there was a disposition to give him the benefit of the rule of the Claim of Rights regarding imprisonment, and on the 6th January 1691, it was represented to King William that to keep Payne in prison without trial was ‘contrare to law.’ Nevertheless, and notwithstanding repeated demands for trial and petitions for mercy on his part, Neville Payne was kept in durance more or less severe for year after year, until *ten* had elapsed! During this time, he became acquainted with the principal state-prisons of Scotland, including the Edinburgh Tolbooth.

At length, on the 4th of February 1701, the wretched man sent a petition to the Privy Council, shewing ‘that more than ten years’ miserable imprisonment had brought [him] to old age and extreme poverty, accompanied with frequent sickness and many other afflictions that are the constant attendants of both.’ He protested his being all along wholly unconscious of any guilt. He was then ordered to be liberated, without the security for reappearace which was customary in such cases.^[50]

Scotland is sometimes alluded to in the south, 1691. JAN.
with an imperfect kind of approbation, as an excessively strait-laced country; but if our neighbours were to consult the records of the General Assembly on the subject, they would find it 1691.
powerfully defended from all such charges. An act was passed by that venerable body for a national fast to be held on the second Thursday of this month, and the reasons stated for the pious observance are certainly of a kind to leave the most free-living Englishman but little room for reproach. It is said: ‘There hath been a great neglect of the worship of God in public, but especially in families and in secret. The wonted care of sanctifying the Lord’s day is gone ... cities full of violence ... so that blood touched blood. Yea, Sodom’s sins have abounded amongst us, pride, fulness of blood, idleness, vanities of apparel, and shameful sensuality.’ Even now, it is said, ‘few are turned to the Lord; the wicked go on doing wickedly, and there is found among us to this day shameful ingratitude for our mercies [and]

horrid impenitency under our sins.... There is a great contempt of the gospel, and great barrenness under it ... great want of piety towards God and love towards man, with a woful selfishness, every one seeking their own things, few the public good or ane other's welfare.'

The document concludes with one noble stroke of, shall we say, self-portraiture?—'the most part more ready to censure the sins of others, than to repent of their own.'^[51]

John Adair, mathematician, had been proceeding JAN. 20. for some years, under government patronage and pay, in his task of constructing maps of the counties of Scotland, 'expressing therein the seats or houses of the nobility and gentry, the most considerable rivers, waters, lochs, bays, firths, roads, woods, mountains, royal burghs, and other considerable towns of each shire'—a work 'honourable, useful, and necessary for navigation.' He was now hindered in his task, as he himself expressed the matter, 'by the envy, malice, and oppression of Sir Robert Sibbald, Doctor of Medicine, who, upon pretence of a private paction and contract, extorted through the power he pretended, took the petitioner [Adair] bound not to survey any shire or pairt thereof without Sir Robert his special advice and consent, and that he should not give copies of these maps to any other person without Sir Robert his special permission, under a severe penalty.'

The Lords of the Privy Council, on Adair's petition, were at no loss to see how unjust the Jacobite Sir Robert's proceedings 1691. were towards the nation, which, by parliamentary grant, was paying Adair for his work. They therefore ordered the hydrographer to go on with his work, notwithstanding Sibbald's opposition, ordering the latter to deliver up the contract on which it rested.

Sir Robert Sibbald afterwards reclaimed against the award of the Privy Council, setting forth a great array of rights connected with the case; but he spoke from the wrong side of the hedge, and his claim was refused.^[52]

Captain Burnet of Barns was now recruiting in JAN. 21. Edinburgh for a regiment in Holland. As the service was so much to be approved of, it was the less important to be scrupulous about the means of

promoting it. A fatherless boy of fourteen, named George Miller, was taken up to Burnet's chamber, and there induced to accept a piece of money of the value of fourteen shillings Scots, which made him a soldier in the captain's regiment. He seems to have immediately expressed unwillingness to be a soldier; but the captain caused him instantly to be dragged to the Canongate Tolbooth, and there kept in confinement. Some friend put in a petition for him to the Privy Council, setting forth that he had been trepanned, and 'had no inclination to be a soldier, but to follow his learning, and thereafter other virtuous employments for his subsistence.' It was even hinted that the boy's father, Robert Miller, apothecary in Edinburgh, had been 'a great sufferer in the late times.' All was in vain; two persons having given evidence that the boy had 'taken on willingly' with Captain Burnet, the Council ordained him to be delivered to that gentleman, 'that he may go alongst with him to Holland in the said service.'

Burnet's style of recruiting was by no means a singularity. A few days after the above date, as John Brangen, servant to Mr John Sleigh, merchant in Haddington, was going on a message to a writer's chamber in Edinburgh with his master's cloak over his arm, he was seized by Sergeant Douglas, of Douglas of Kelhead's company, carried to the Canongate Tolbooth, and thence hurried like a malefactor on board a ship in the road of Leith bound for Flanders. This man, though called servant, was properly clerk and shopman to his master, who accordingly felt deeply aggrieved by his abduction. At the same time, Christian Wauchope 1691. petitioned for the release of her husband, William Murdoch, who had been 'innocently seized' and carried off eight days ago by Captain Douglas's men, 'albeit he had never made any paction with them;' 'whereby the petitioner and her poor children will be utterly starved.' Even the town-piper of Musselburgh, James Waugh by name, while playing at the head of the troop, and thinking of no harm, had been carried off for a soldier. 'If it was true,' said his masters the magistrates, 'that he had taken money from the officers, it must have been through the ignorance and inadvertency of the poor man, thinking it was given him for his playing as a piper.' He had, they continued, been 'injuriously used in the affair by sinistrous designs and contrair to that liberty and freedom which all peaceable subjects ought to enjoy under the protection of authority.'

The government seems to have felt so far the necessity of acting up to their professions as the destroyers of tyranny that, in these and a few other

cases, they ordered the liberation of the prisoners.

A few months later, occurred a private case in which something very like manstealing was committed by one of the parties in connection with this unscrupulous recruiting system.

Robert Wilson, son of Andrew Wilson in Kelso, AUG.
was servant to Mrs Clerkson, a widow, at Damhead (near Edinburgh?). On finding that his mistress was about to take a second husband, he raised a scandal against her, in which his own moral character was concerned, and she immediately appealed for redress to Master David Williamson, minister of St Cuthbert's parish. Two elders came to inquire into the matter—Wilson evaded them, and could not be found. Then she applied for, and obtained a warrant from a justice of peace to apprehend Wilson, who now took to hiding. Four friends of hers, James Bruntain, farmer at Craig Lockhart; David Rainie, brewer in Portsburgh; James Porteous, gardener at Saughton; and James Borthwick, weaver at Burrowmuirhead, accompanied by George Macfarlane, one of the town-officers of Edinburgh, came in search of Wilson, and finding him sleeping in the house of William Bell, smith in Merchiston, dragged him from bed, and in no gentle manner hurried him off to Macfarlane's house, where they kept him *tanquam in privato carcere* for twenty-four hours. On his pleading for permission to go to the door for but a minute, swords were drawn, and he was threatened with instant death, if he offered to stir. Professedly, they were to take him before the justices; but a better conclusion to the adventure occurred to them. Captain Hepburn, an officer about to sail with his corps to Holland, was 1691.
introduced to the terror-stricken lad, who readily agreed to enlist with him, and accepted a dollar as earnest. Before he quitted the care of his captors, he signed a paper owning the guilt of raising scandal against his late mistress.

The father of the young man complained before the Privy Council of the outrage committed on his son, as an open and manifest riot and oppression, for which a severe punishment ought to be inflicted. He himself had been 'bereaved of a son whom he looked upon to be a comfort, support, and relief to him in his old age.' On the other hand, the persons complained of justified their acts as legal and warrantable. The Lords decided that Robert Wilson had 'unjustly been kept under restraint, and violence done to him;'

but the reparation they allowed was very miserable—a hundred merks to the aggrieved father.^[53]

Nothing, in the former state of the country, is more remarkable in contrast with the present, than the miserable poverty of the national exchequer. The meagreness and uncertainty of the finances required for any public purpose prior to those happy times when a corrupt House of Commons was ready to vote whatever the minister wanted—the difficulties consequently attendant upon all administrative movements—it is impossible for the reader to imagine without going into an infinity of details. At a time, of course, when Scotland had a revenue of only a hundred thousand pounds a year, and yet a considerable body of troops to keep up for the suppression of a discontented portion of the people, the troubles arising from the lack of money were beyond description. The most trivial furnishings for the troops and garrisons remained long unpaid, and became matter of consideration for the Lords of the Privy Council. A town where a regiment had lain, was usually left in a state of desolation from unpaid debt, and had to make known its misery in the same quarter with but small chance of redress; and scores of state-prisoners in Edinburgh, Blackness, Stirling, and the Bass, were starving for want of the common necessities of life.

On the 18th of April 1690, the inhabitants of Kirkcaldy, Dysart, and Pathhead complained to the Privy Council, that for ten weeks of this year they had had Colonel Cunningham's regiment quartered amongst them. The soldiers, 'having nothing to maintain themselves, were maintained and furnished in meat and drink, besides all other necessars, by the petitioners,' who, 'being for the most part poor and mean tradesmen, seamen, and workmen, besides many indigent widows and orphans,' were thus 'reduced to that extreme necessity as to sell and dispose of their household plenishing, after their own bread and anything else they had was consumed for maintenance of the soldiers.' They regarded the regiment as in their debt to the extent of £336, 6s. sterling, of which sum they craved payment, 'that they might not be utterly ruined, and they and their families perish for want of bread.' Payment was ordered, but when, or whether at all, it was paid, we cannot tell.

Another case of this nature, going far to justify the jokes indulged in by the English regarding the contemporary poverty of Scotland, occurs in the ensuing August, when the Council took up the case of James Wilkie of Portsburgh (a suburb of Edinburgh), complaining that the soldiers of three regiments lately quartered there, had gone away indebted to him for meat and drink to the extent of seventeen pounds Scots (£1, 8s. 4d.). ‘Seeing the petitioner is very mean and poor, and not in a capacity to want that small sum, having nothing to live by but the trust of selling a tree of ale, his credit would be utterly broke for want thereof, unless the Council provide a remeed.’ The Council ordained that the commanders of the regiments should see the petitioner satisfied by their soldiers.

In January 1691, the Council is found meditating on means for the satisfaction of James Hamilton, innkeeper, Leith, who had sent in accounts against officers of Colonel Cunningham’s regiment for board and lodging, amounting to such sums as eight pounds each. At the same time, it had to treat regarding shoemakers’ accounts owing by the same officers, to the amount of two and three pounds each. Even Ensign Houston’s hotel-bill for ‘thretteen shillings’ is gravely deliberated on. And all these little bills were duly recommended to the lords of their majesties’ treasury, in hopes they might be paid out of ‘the three months’ cess and hearth money.’^[54]

That such small bills, however, might infer a considerable amount of entertainment, would appear by no means unlikely, if we could believe a statement of Mr Burt, that General Mackay himself was accustomed, during his commandership in Scotland, to dine at public-1690. houses, ‘where he was served with great variety, and paid only two shillings and sixpence Scots—that is, twopence half-penny—for his ordinary.’^[55] The fact has been doubted; but I can state as certain, that George Watson, the founder of the hospital in Edinburgh, when a young man residing in Leith, about 1680, used to dine at a tavern for fourpence. Even in the middle of the eighteenth century, Mr Colquhoun Grant, writer to the Signet, and a friend who associated with him, dined every day in a tavern in the Lawnmarket, for ‘twa groats the piece,’ as they used to express it.

Amongst other claims on which the Council had to deliberate, was a very pitiable one from Mr David Muir, surgeon at Stirling. When General Mackay retreated to that town from ‘the ruffle at Killiecrankie,’^[56] Muir had taken charge of the sick and wounded of the government troops, ‘there

being none of their own chirurgeons present,' He 'did several times send to Edinburgh for droggs and other necessaries,' and was 'necessitat to buy a considerable quantity of claret wine for bathing and fomenting of their wounds.' His professional efforts had been successful; but as yet—after the lapse of eighteen months—he had received no remuneration; neither had he been paid for the articles he had purchased for the men; at the same time, the salary due to him, of ten pounds a year as chirurgeon of the castle, was now more than two years in arrear. It was the greater hardship, as those who had furnished the drugs and other articles were pressing him for the debt, 'for which he is like to be pursued.' Moreover, he protested, as something necessary to support a claim of debt against the state, that 'he has been always for advancing of his majesty's interest, and well affected to their majesties' government.'

The Council, in this case too, could only recommend the accounts to the lords of the treasury.^[57]

Sinclair of Mey, and a friend of his named James Sinclair, writer in Edinburgh, were lodging in the house of John Brown, vintner, in the Kirkgate of Leith, when, at a late hour, the Master of Tarbat and Ensign Andrew Mowat came to join the party. The Master, who was eldest son of the Viscount Tarbat, a statesman of no mean note, was nearly related to Sinclair of Mey. There was no harm meant by any one that night in the hostelry of John Brown; but before midnight, the floor was reddened with slaughter.

1691. MAR. 8.

The Master and his friend Mowat, who are described on the occasion as excited by liquor, but not beyond self-control, were sitting in the hall drinking a little ale, while beds were getting ready for them. A girl named Jean Thomson, who had brought the ale, was asked by the Master to sit down beside him, but escaped to her own room, and bolted herself in. He, running in pursuit of her, blunderingly went into a room occupied by a Frenchman named George Poiret, who was quietly sleeping there. An altercation took place between Poiret and the Master, and Mowat, hearing the noise, came to see what was the matter. The Frenchman had drawn his sword, which the two gentlemen wrenched out of his hand. A servant of the house, named Christian Erskine, had now also arrived at the scene of strife, besides a gentleman who was not afterwards identified. At the woman's urgent request, Mowat took away the Master and the other gentleman, the

latter carrying the Frenchman's sword. There might have now been an end to this little brawl, if the Master had not deemed it his duty to go back to the Frenchman's room to beg his pardon. The Frenchman, finding a new disturbance at his door, which he had bolted, seems to have lost patience. He knocked on the ceiling of his room with the fire-tongs, to awaken two brothers, Elias Poiret, styled Le Sieur de la Roche, and Isaac Poiret, who were sleeping there, and to bring them to his assistance.

These two gentlemen presently came down armed with swords and pistols, and spoke to their defenceless and excited brother at his door. Presently there was a hostile collision between 1691. them and the Master and Mowat in the hall. Jean Thomson roused her master to come and interfere for the preservation of the peace; but he came too late. The Master and Mowat were not seen making any assault; but a shot was heard, and, in a few minutes, it was found that the Sieur de la Roche lay dead with a swordwound through his body, while Isaac had one of his fingers nearly cut off. A servant now brought the guard, by whom Mowat was soon after discovered hiding under an outer stair, with a bent sword in his hand, bloody from point to hilt, his hand wounded, and the sleeves of his coat also stained with blood. On being brought where the dead man lay, he viewed the body without apparent emotion, merely remarking he wondered who had done it.

The Master, Mowat, and James Sinclair, writer, were tried for the murder of Elias Poiret; but the jury found none of the imputed crimes proven. The whole affair can, indeed, only be regarded as an unfortunate scuffle arising from intemperance, and in which sudden anger caused weapons to be used where a few gentle and reasonable words might have quickly re-established peace and good-fellowship.^{[\[59\]](#)}

The three Frenchmen concerned in this affair were Protestant refugees, serving in the king's Scottish guards. The Master of Tarbat in due time succeeded his father as Earl of Cromarty, and survived the slaughter of Poiret forty years. He was the father of the third and last Earl of Cromarty, so nearly brought to Tower-hill in 1746, for his concern in the rebellion of the preceding year, and who on that account lost the family titles and estates.

Down to this time, it was still customary for gentlemen to go armed with walking-swords. On the borders of the Highlands, dirks and pistols seem to have not unfrequently been added. Accordingly, when a quarrel happened, bloodshed was very likely to take place. At this time we have the particulars of such a quarrel, serving to mark strongly the improvements effected by modern civilisation.

Some time in August 1690, a young man named William Edmondstone, described as apprentice to Charles Row, writer to the Signet, having occasion to travel to Alloa, called on his master's brother, William Row of Inverallan in passing, and had an interview with 1691. him at a public-house in the hamlet of Bridge of Allan. According to a statement from him, not proved, but which it is almost necessary to believe in order to account for subsequent events, Inverallan treated him kindly to his face, but broke out upon him afterwards to a friend, using the words rascal and knave, and other offensive expressions. The same unproved statement goes on to relate how Edmondstone and two friends of his, named Stewart and Mitchell, went afterwards to inquire into Inverallan's reasons for such conduct, and were violently attacked by him with a sword, and two of them wounded.

The proved counter-statement of Inverallan is to the effect that Edmondstone, Stewart, and Mitchell tried, on the 21st of April 1691, to waylay him, with murderous intent, as he was passing between Dumblane and his lands near Stirling. Having by chance evaded them, he was in a public-house at the Bridge of Allan, when his three enemies unexpectedly came in, armed as they were with swords, dirks, and pistols, and began to use spiteful expressions towards him. 'He being all alone, and having no arms but his ordinary walking-sword, did rise up in a peaceable manner, of design to have retired and gone home to his own house.' As he was going out at the door, William Edmondstone insolently called to him to come and fight him, a challenge which he disregarded. They then followed him out, and commenced an assault upon him with their swords, Mitchell, moreover, snapping a pistol at him, and afterwards beating him over the head with the but-end. He was barely able to protect his life with his sword, till some women came, and drew away the assailants.

A few days after, the same persons came with seven or eight other 'godless and graceless persons' to the lands of Inverallan, proclaiming their

design to burn and destroy the tenants' houses and take the laird's life, and to all appearance would have effected their purpose, but for the protection of a military party from Stirling.

For these violences, Edmondstone and Mitchell were fined in five hundred merks, and obliged to give large caution for their keeping the peace.^[60]

Upon petition, Sir James Don of Newton, knight-baronet, with his lady and her niece, and a groom and footman, were permitted 'to travel with their horses and arms from Scotland to Scairsburgh Wells in England, and to return again, without trouble or molestation, they always behaving themselves as becometh.'^[61]

JUNE 25.

1691.

This is but a single example of the difficulties attending personal movements in Scotland for some time after the Revolution. Owing to the fears for conspiracy, the government allowed no persons of eminence to travel to any considerable distance without formal permission.

An act, passed this day in the Convention of Royal Burghs for a commission to visit the burghs as to their trade, exempted Kirkwall, Wick, Inverary, and Rothesay, *on account of the difficulty of access to these places!*

JULY 8.

The records of this ancient court present many curious details. A tax-roll of July 1692, adjusting the proportions of the burghs in making up each £100 Scots of their annual expenditure on public objects, reveals to us the comparative populousness and wealth of the principal Scottish towns at that time. For Edinburgh, it is nearly a third of the whole, £32, 6s. 8d.; for Glasgow, less than a half of Edinburgh, £15; Perth, £3; Dundee, £4, 13s. 4d.; Aberdeen, £6; Stirling, £1, 8s.; Linlithgow, £1, 6s.; Kirkcaldy, £2, 8s.; Montrose, £2; Dumfries, £1, 18s. 4d.; Inverness, £1, 10s.; Ayr, £1, 1s. 4d.; Haddington, £1, 12s.

All the rest pay something less than one pound. In 1694, Inverary is found petitioning for 'ease' from the four shillings Scots imposed upon them in the tax-roll, as 'they are not in a condition by their poverty and want of trade to pay any pairt thereof.' The annual outlay of the Convention was at this time about £6000 Scots. Hence the total impost on Inverary

would be £240, or twenty pounds sterling. For the ‘ease’ of this primitive little Highland burgh, its proportion was reduced to a fourth.

The burghs used to have very curious arrangements amongst themselves: thus, the statute Ell was kept in Edinburgh; Linlithgow had charge of the standard Firlot; Lanark of the Stoneweight; while the regulation *Pint-stoup* was confided to Stirling. A special measure for coal, for service in the customs, was the *Chalder of Culross*. The burgh of Peebles had, from old time, the privilege of seizing ‘all light weights, short ellwands, and other insufficient goods, in all the fairs and mercats 1691. within the shire of Teviotdale.’ They complained, in 1696, of the Earl of Traquair having interfered with their rights, and a committee was appointed to deal with his lordship on the subject.^[62]

To these notices it may be added that the northern burgh of Dingwall, which is now a handsome thriving town, was reduced to so great poverty in 1704 as not to be able to send a commissioner to the Convention. ‘There was two shillings Scots of the ten pounds then divided amongst the burghs, added to the shilling we used formerly to be in the tax roll [that is, in addition to the one shilling Scots we formerly used to pay on every hundred pounds Scots raised for general purposes, we had to pay two shillings Scots of the new taxation of ten pounds then assessed upon the burghs], the stenting whereof was so heavy upon the inhabitants, that a great many of them have deserted the town, which is almost turned desolate, as is weel known to all our neighbours; and there is hardly anything to be seen but the ruins of old houses, and the few inhabitants that are left, having now no manner of trade, live only by labouring the neighbouring lands, and our inhabitants are still daily deserting us.’ Such was the account the town gave of itself in a petition to the Convention of Burghs in 1724.^[63]

Though Dingwall is only twenty-one and a half miles to the northward of Inverness, so little travelling was there in those days, that scarcely anything was known by the one place regarding the other. It is at this day a subject of jocose allusion at Inverness, that they at one time sent a deputation to see Dingwall, and inquire about it, as a person in comfortable circumstances might send to ask after a poor person in a neighbouring alley. Such a proceeding actually took place in 1733, and the report brought back was to the effect, that Dingwall had no trade, though ‘there were one or two inclined to carry on trade if they had a harbour;’ that the place had *no*

prison; and for want of a bridge across an adjacent lake, the people were kept from both kirk and market.^{[\[64\]](#)}

Licence was granted by the Privy Council to Dr Andrew Brown to print, and have sole right of printing, a treatise he had written, entitled *A Vindicatorie Schedule about the New Cure of Fevers*.^{[\[65\]](#)}

JULY 23.

This Dr Andrew Brown, commonly called 1691.
Dolphington, from his estate in Lanarkshire, was an Edinburgh physician, eminent in practice, and additionally notable for the effort he made in the above-mentioned work to introduce Sydenham's treatment of fevers—that is, to use antimonial emetics in the first stage of the disorder. 'This book and its author's energetic advocacy of its principles by his other writings and by his practice, gave rise to a fierce controversy, and in the library of the Edinburgh College of Physicians there is a stout shabby little volume of pamphlets on both sides—"Replies" and "Short Answers," and "Refutations," and "Surveys," and "Looking-glasses," "Defences," "Letters," "Epilogues," &c., lively and furious once, but now resting as quietly together as their authors are in the Old Greyfriars' Churchyard, having long ceased from troubling. There is much curious, rude, hard-headed, bad-Englised stuff in them, with their wretched paper and print, and general ugliness; much also to make us thankful that we are in our own *now*, not their *then*. Such tearing away, with strenuous logic and good learning, at mere clouds and shadows, with occasional lucid intervals of sense, observation, and wit!'^[66]

Dolphington states in his book that he visited Dr Sydenham in London, to study his system under him, in 1687, and presently after returning to Edinburgh, introduced the practice concerning fevers, with such success, that of many cases none but one had remained uncured.

Some idea of an amateur unlicensed medical practice at this time may be obtained from a small book which had a great circulation in Scotland in the early part of the eighteenth century. It used to be commonly called *Tippermallochs Receipts*, being the production of 'the Famous John Moncrieff of Tippermalloch' in Strathearn, 'a worthy and ingenious gentleman,' as the preface describes him, whose 'extraordinary skill in physic and successful and beneficial practice therein' were so well known, 'that few readers, in this country at least, can be supposed ignorant thereof.'^[67]

When a modern man glances over the pages of this dusky ill-printed little volume, he is at a loss to believe that it ever could 1691.
have been the medical *vade-mecum* of respectable families, as we are assured it was. It has a classification of diseases under the parts of the human system, the head, the breast, the stomach, &c., presenting under each

a mere list of cures, with scarcely ever a remark on special conditions, or even a tolerable indication of the quantity of any medicine to be used. The therapeutics of Tippermalloch include simples which are now never heard of in medicine, and may be divided into things capable of affecting the human system, and things of purely imaginary efficacy, a large portion of both kinds being articles of such a disgusting character as could not but have doubled the pain and hardship of all ailments in which they were exhibited. For cold distemper of the brain, for instance, we have snails, bruised in their shells, to be applied to the forehead; and for pestilential fever, a cataplasm of the same stuff to be laid on the soles of the feet. Paralysis calls for the parts being anointed with 'convenient ointments' of (among other things) earthworms. For decay of the hair, mortals are enjoined to 'make a lee of the burnt ashes of dove's dung, and wash the head;' but 'ashes of little frogs' will do as well. Yellow hair, formerly a desired peculiarity, was to be secured by a wash composed of the ashes of the ivy-tree, and a fair complexion by 'the distilled water of snails.' To make the whole face well coloured, you are coolly recommended to apply to it 'the liver of a sheep fresh and hot.' 'Burn the whole skin of a hare with the ears and nails: the powder thereof, being given hot, cureth the lethargy perfectly.' 'Powder of a man's bones burnt, chiefly of the skull that is found in the earth, cureth the epilepsy: the bones of a man cure a man; the bones of a woman cure a woman.' The excreta of various animals figure largely in Tippermalloch's pharmacopœia, even to a bath of a certain kind for iliac passion: 'this,' says he, 'marvellously expelleth wind.' It is impossible, however, to give any adequate idea of the horrible things adverted to by the sage Moncrieff, either in respect of diseases or their cures. All I will say further on this matter is, that if there be any one who thinks modern delicacy a bad exchange for the plain-spokenness of our forefathers, let him glance at the pages of John Moncrieff of Tippermalloch, and a change of opinion is certain.

In the department of purely illusive recipes, we have for wakefulness or *coma*, 'living creatures applied to the head to dissolve the humour;' for mania, amulets to be worn about the neck; and a girdle of wolf's skin certified as a complete preventive of epilepsy. We 1691. are told that 'ants' eggs mixed with the juice of an onion, dropped into the ear, do cure the oldest deafness,' and that 'the blood of a wild goat given to ten drops of carduus-water doth powerfully discuss the pleurisy.' It is

indicated under measles, that ‘many keep an ewe or wedder in their chamber or on the bed, because these creatures are easily infected, and draw the venom to themselves, by which means some ease may happen to the sick person.’ In like manner, for colic a live duck, frog, or sucking-dog applied to the part, ‘draweth all the evil to itself, and dieth.’ The twenty-first article recommended for bleeding at the nose is hare’s hair and vinegar stuffed in; ‘I myself know this to be the best of anything known.’ He is equally sure that the flowing blood of a wound may be repelled by the blood of a cow put into the wound, or by carrying a jasper in the hand; while for a depraved appetite nothing is required but the stone *ætites* bound to the arm. *Sed jam satis.*

In *Analecta Scotica* is to be found a dream about battles and ambassadors by Sir J. Moncrieff of Tippermalloch, who at his death in 1714, when eighty-six years of age, believed it was just about to be fulfilled. The writer, who signs himself William Moncrieff, and dates from Perth, says of Tippermalloch: ‘The gentleman was, by all who knew him, esteemed to be eminently pious. He spent much of his time in reading the Scripture—his delight was in the law of the Lord. The character of the blessed man did belong to him, for in that he did meditate day and night, and his conversation was suitable thereto—his leaf did not wither—he was fat and flourishing in his old age.’^[68]

Dame Mary Norvill, widow of Sir David AUG. 11.
Falconer, president of the Court of Session, and now wife of John Home of Ninewells, was obliged to petition the Privy Council for maintenance to her children by her first husband, their uncle, the Laird of Glenfarquhar, having failed to make any right arrangement in their behalf. From what the lords ordained, we get an idea of the sums then considered as proper allowances for the support and education of a set of children of good fortune. David, the eldest son, ten years of age, heir to his father’s estate of 12,565 merks (about £698 sterling) per annum, over and above the widow’s jointure, was to be allowed ‘for bed and board, clothing, and other necessities, and for educating him at schools and colleges as becomes 1691.
his quality, with a pedagogue and a boy to attend him, the sum of a thousand merks yearly (£55, 11s. 1½d. sterling).’ To Mistress Margaret, twelve and a half years old, whose portion is twelve thousand merks, they

assigned an aliment for ‘bed and board, clothing, and other necessities, and for her education at schools and otherwise as becomes her quality,’ five hundred merks per annum (£27, 15s. 6½d. sterling). Mistress Mary, the second daughter, eleven years of age, with a portion of ten thousand merks, was allowed for ‘aliment and education’ four hundred and fifty merks. For Alexander, the second son, nine years of age, with a provision of fifteen thousand merks, there was allowed, annually, six hundred merks. Mistress Katherine, the third daughter, eight years of age, and Mistress Elizabeth, seven years of age, with portions of eight thousand merks each, were ordained each an annual allowance of three hundred and sixty merks. George, the third son, six years old, with a provision of ten thousand merks, was to have four hundred merks per annum. These payments to be made to John Home and his lady, while the children should dwell with them.^[69]

‘Mistress Katherine’ became the wife of Mr Home’s son Joseph, and in 1711 gave birth to the celebrated philosopher, David Hume. Her brother succeeded a collateral relative as Lord Falconer of Halkerton, and was the lineal ancestor of the present Earl of Kintore. It is rather remarkable that the great philosopher’s connection with nobility has been in a manner overlooked by his biographers.

That the sums paid for the young Falconers, mean as they now appear, were in accordance with the ideas of the age, appears from other examples. Of these, two may be adduced:

The Laird of Langton, ‘who had gotten himself served tutor-of-law’ to two young persons named Cockburn, fell about this time into ‘ill circumstances.’ There then survived but one of his wards—a girl named Ann Cockburn—and it appeared proper to her uncle, Lord Crossrig, that she should not be allowed to stay with a broken man. He accordingly, though with some difficulty, and at some expense, got the tutory transferred to himself. ‘When Ann Cockburn,’ he says, ‘came to my house, I did within a short time put her to Mrs Shiens, mistress of manners, where she was, as I remember, about two years, at £5 sterling in the quarter, besides presents. Thereafter she stayed with me some years, and 1691. then she was boarded with the Lady Harvieston, then after with Wallyford, where she still is, at £3 sterling per quarter.’^[70]

In 1700, the Laird of Kilravock, in Nairnshire, paid an account to Elizabeth Straiton, Edinburgh, for a quarter’s education to his daughter

Margaret Rose; including, for board, £60; dancing, £14, 10s.; ‘singing and playing and virginalls,’ £11, 12s.; writing, £6; ‘satin seame,’ £6; a set of wax-fruits, £6; and a ‘looking-glass that she broke,’ £4, 16s.; all Scots money.^[71]

It thus appears that both Mrs Shiens and Mrs Straiton charged only £5 sterling per quarter for a young lady’s board.

The subject is further illustrated by the provision made by the Privy Council, in March 1695, for the widowed Viscountess of Arbuthnot (Anne, daughter of the Earl of Sutherland), who had been left with seven children all under age, and whose husband’s testament had been ‘reduced.’ In her petition, the viscountess represented that the estate was twenty-four thousand merks per annum (£1333 sterling). ‘My lord, being now eight years of age, has a governor and a servant; her two eldest daughters, the one being eleven, and the other ten years of age, and capable of all manner of schooling, they must have at least one servant; as for the youngest son and three youngest daughters, they are yet within the years of seven, so each of them must have a woman to wait upon them.’ Lady Arbuthnot was provided with a jointure of twenty-five chalders of victual; and as her jointure-house was ruinous, she desired leave to occupy the family mansion of Arbuthnot House, which her son was not himself of an age to possess.

The Lords, having inquired into and considered the relative circumstances, ordained that two thousand pounds Scots (£166, 13s. 4d. sterling) should be paid to Lady Arbuthnot out of the estate for the maintenance of her children, including the young lord.

The lady soon after dying, the earl her father came in her place as keeper of the children at the same allowance.^[72]

The Quakers residing at Glasgow gave in to the Privy Council a representation of the treatment they received at the hands of their neighbours. It was set forth, that the severe dealings with the consciences of men under the late government had brought about a revolution, and some very tragical doings. Now, when at last the people had wrestled out from beneath their grievances, ‘it was matter of surprise that those who had complained most thereupon should now be found acting the parts of their own persecutors against the

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petitioners [the Quakers].’ It were too tedious to detail ‘what they have suffered since the change of the government, through all parts of the nation, by beating, stoning, and other abuses,’ In Glasgow, however, ‘their usage had been liker French dragoons’ usage, and furious rabbling, than anything that dare own the title of Christianity.’ Even there they would have endured in silence ‘the beating, stoning, dragging, and the like which they received from the rabble,’ were it not that magistrates connived at and homologated these persecutions, and their continued silence might seem to justify such doings. They then proceeded to narrate that, on the 12th of November, ‘being met together in their hired house for no other end under heaven than to wait upon and worship their God,’ a company of Presbyterian church elders, ‘attended with the rude rabble of the town, haled them to James Sloss, bailie, who, for no other cause than their said meeting, dragged them to prison, where some of them were kept the space of eight days.’ During that time, undoubted bail was offered for them, but refused, ‘unless they should give it under their hand [that] they should never meet again there.’ At the same time, their meeting-house had been plundered, and even yet the restoration of their seats was refused. ‘This using of men that are free lieges would, in the case of others, be thought a very great riot,’ &c.

The feeling of the supreme administrative body in Scotland on this set of occurrences, is chiefly marked by what they did not do. They recommended to the Glasgow magistrates that, if any forms had been taken away from the Quakers, they should be given back!^[73]

There were no bounds to the horror with which sincere Presbyterians regarded Quakerism in those days. Even in their limited capacity as disowners of all church-politics, they were thought to be most unchristian. Patrick Walker gravely relates an anecdote of the seer-preacher, Peden, which powerfully proves this feeling. This person, being in Ireland, was indebted one night to a Quaker for lodging. Accompanying his host to the meeting, Peden observed a raven come down from 1691. the ceiling, and perch itself, to appearance, on a particular person’s head, who presently began to speak with great vehemence. From one man’s head, the appearance passed to another’s, and thence to a third. Peden told the man: ‘I always thought there was devilry amongst you, but I never thought he appeared visibly to you; but now I see it.’ The incident led to the conversion of the Quaker unto orthodox Christianity.^[74]

On the 5th of April 1694, there was a petition to the Privy Council from a man named James Macrae, professing to be a Quaker, setting forth that he had been pressed as a soldier, but could not fight, as it was contrary to his principles and conscience; wherefore, if carried to the wars, he could only be miserable in himself, while useless to others. He was ordered to be liberated, provided he should leave a substitute in his place.^[75]

It would have been interesting to see a contemporary Glasgow opinion on this case.

Irregularities of the affections were not now 1692.
punished with the furious severity which, in the reign of Charles I., ordained beheading to a tailor in Currie for wedding his *first wife's half-brother's daughter*.^[76] But they were still visited with penalties much beyond what would now be thought fitting. For example, a woman of evil repute, named Margaret Paterson, having drawn aside from virtue two very young men, James and David Kennedy, sons of a late minister of the Trinity College Church, was adjudged to stand an hour in the jousts at the Tron, and then to be scourged from the Castle Hill to the Netherbow, after which a life of exile in the plantations was her portion. The two young men, having been bailed by their uncle, under assurance for five thousand merks, the entire amount of their patrimony, broke their bail rather than stand trial with their associate in guilt. There was afterwards a petition from the uncle setting forth the hardship of the case, and this was replied to with a recommendation from the lords of Justiciary to the lords of the treasury for a modification of the penalty, 'if their lordships shall think fit.' In the case of Alison Beaton, where the co-relative offender was a man who had married her mother's sister, the poor woman was condemned to be scourged in like manner with Paterson, and then transported 1692.
to the plantations. It was a superstitious feeling which dictated such penalties for this class of offences. The true aim of jurisprudence, to repress disorders which directly affect the interests of others, and these alone, was yet far from being understood.

In January 1694, there came before the notice of the Court of Justiciary in Edinburgh, a case of curiously complicated wickedness. Daniel Nicolson, writer, and a widow named Mrs Pringle, had long carried on an infamous connection, with little effort at concealment. Out of a bad spirit towards the

unoffending Jean Lands, his wife, Nicolson and Pringle, or one or other of them, caused to be forged a receipt as from her to Mr John Elliot, doctor of medicine, for some poison, designing to raise a charge against her and a sister of hers, of an attempt upon her husband's life. The alleged facts were proved to the satisfaction of a jury, and the court, deeming the adultery aggravated by the forgery, adjudged the guilty pair to suffer in the Grassmarket—Nicolson by hanging, and Pringle by 'having her head severed from her body.'

There were, however, curious discriminations in the judgments of the Justiciary Court. A Captain Douglas, of Sir William Douglas's regiment, assisted by another officer and a corporal of the corps, was found guilty of a shocking assault upon a serving-maid in Glasgow, in 1697. A meaner man, or an equally important man opposed to the new government, would have, beyond a doubt, suffered the last penalty for this offence; Captain Douglas, being a gentleman, and one engaged in the king's service, escaped with a fine of three hundred merks.^[77]

King William felt impatient at the FEB. 13. unsubmissiveness of the Jacobite clans, chiefly Macdonalds of Glengarry, Keppoch, and Glencoe, the Grants of Glenmoriston, and the Camerons of Locheil, because it caused troops to be kept in Scotland, which he much wanted for his army in Flanders. His Scottish ministers, and particularly Sir John Dalrymple, Master of Stair, the Secretary of State, carried towards those clans feelings of constantly growing irritation, as latterly the principal obstacle to a settlement of the country under the new system of things. At length, in August 1691, the king issued an indemnity, promising pardon to all that had been in arms against him before the 1st 1692. of June last, provided they should come in any time before the 1st of January next year, and swear and sign the oath of allegiance.

The letters of Sir John Dalrymple from the court at London during the remainder of the year, shew that he grudged these terms to the Highland Jacobites, and would have been happy to find that a refusal of them justified harsher measures. It never occurred to him that there was anything but obstinacy, or a hope of immediate assistance from France to enable them to set up King James again, in their hesitation to swear that they sincerely in their hearts accepted King William and Queen Mary as the sovereigns of

the land equally by right and in fact. He really *hoped* that at least the popish clan of the Macdonalds of Glencoe would hold out beyond the proper day, so as to enable the government to make an example of them. It was all the better that the time of grace expired in the depth of winter, for ‘that,’ said he (letter to Colonel Hamilton, December 3, 1691), ‘is the proper season to maul them, in the cold long nights.’ On the 9th of January, under misinformation about their having submitted, he says: ‘I am sorry that Keppoch and M’Ian of Glencoe^[78] are safe.’ It was the sigh of a savage at the escape of a long-watched foe. Still he understood Glengarry, Clanranald, and Glenmoriston to be holding out, and he gave orders for the troops proceeding against them, granting them at the utmost the terms of prisoners of war. In the midst of a letter on the subject, dated the 11th January,^[79] he says: ‘Just now my Lord Argyle tells me that Glencoe hath not taken the oaths; at which *I rejoice*—it’s a great work of charity to be exact in *rooting out that damnable sect*, the worst in all the Highlands.’ Delighted with the intelligence—‘it is very good news here,’ he elsewhere says—he obtained that very day a letter from the king anent the Highland rebels, commanding the troops to cut them off ‘*by all manner of hostility*,’ and for this end to proclaim high penalties to all who should give them assistance or protection. Particular instructions subscribed by the king followed on the 16th, permitting terms to be offered to Glengarry, whose house was strong enough to give trouble, but adding: ‘*If M’Ian of Glencoe and that tribe can be well separated from the rest, it will be a proper vindication of the public justice to extirpate that sect of thieves.*’ On the same day, Dalrymple himself wrote to Colonel 1692. Hill, governor of Inverlochy, ‘I shall entreat you that, for a just vengeance and public example, the thieving tribe of Glencoe be *rooted out to purpose*. The Earls of Argyle and Breadalbane have promised they shall have no retreat in their bounds.’ He felt, however, that it must be ‘quietly done;’ otherwise they would make shift both for their cattle and themselves. There can be no doubt what he meant; merely to *harry* the people, would make them worse thieves than before—they must be, he elsewhere says, ‘*rooted out and cut off.*’

In reality, the old chief of the Glencoe Macdonalds had sped to Inverlochy or Fort William before the end of the year, and offered his oath to the governor there, but, to his dismay, found he had come to the wrong officer. It was necessary he should go to Inverary, many miles distant, and

there give in his submission to the sheriff. In great anxiety, the old man toiled his way through the wintry wild to Inverary. He had to pass within a mile of his own house, yet stopped not to enter it. After all his exertions, the sheriff being absent for two days after his arrival, it was not till the 6th of January that his oath was taken and registered. The register duly went thereafter to the Privy Council at Edinburgh; but the name of Macdonald of Glencoe was not found in it: it was afterwards discovered to have been by special pains obliterated, though still traceable.

Here, then, was that 'sect of thieves' *formally* liable to the vengeance which the secretary of state meditated against them. The commander, Livingstone, on the 23d January, wrote to Colonel Hamilton of Inverlochy garrison to proceed with his work against the Glencoe men. A detachment of the Earl of Argyle's regiment—Campbells, hereditary enemies of the Macdonalds of Glencoe—under the command of Campbell of Glenlyon, proceeded to the valley, affecting nothing but friendly intentions, and were hospitably received. Glenlyon himself, as uncle to the wife of one of the chief's sons, was hailed as a friend. Each morning, he called at the humble dwelling of the chief, and took his morning-draught of usquebaugh. On the evening of the 12th of February, he played at cards with the chief's family. The final orders for the onslaught, written on the 12th at Ballachulish by Major Robert Duncanson (a Campbell also), were now in Glenlyon's hands. They bore—'You are to put all to the sword under seventy. You are to have a special care that the old fox and his son do on no account escape your hands. You're to secure all avenues, that none escape; this you are to put in execution at five o'clock precisely, and by that 1692. time, or very shortly after it, I'll strive to be at you with a stronger party. If I do not come to you at five, you are not to tarry for me, but to fall on.'

Glenlyon was but too faithful to his instructions. His soldiers had their orders the night before. John Macdonald, the chief's eldest son, observing an unusual bustle among the soldiers, took an alarm, and inquired what was meant. Glenlyon soothed his fears with a story about a movement against Glengarry, and the lad went to bed. Meanwhile, efforts were making to plant guards at all the outlets of that alpine glen; but the deep snow on the ground prevented the duty from being fully accomplished. At five, Lieutenant Lindsay came with his men to the house of the chief, who, hearing of his arrival, got out of bed to receive him. He was shot dead as he was dressing himself. Two of his people in the house shared his fate, and his

wife, shamefully treated by the soldiers, died next day. At another hamlet called Auchnaion, the tacksman and his family received a volley of shot as they were sitting by their fireside, and all but one were laid dead or dying on the floor. The survivor entreated to be killed in the open air, and there succeeded in making his escape. There were similar scenes at all the other inhabited places in the glen, and before daylight, thirty-eight persons had been murdered. The rest of the people, including the chief's eldest son, fled to the mountains, where many of them are believed to have perished. When Colonel Hamilton came at breakfast-time, he found one old man alive mourning over the bodies of the dead; and this person, though he might have been even formally exempted as above seventy, was slain on the spot. The only remaining duty of the soldiers was to burn the houses and harry the country. This was relentlessly done, two hundred horses, nine hundred cattle, and many sheep and goats being driven away.

A letter of Dalrymple, dated from London the 5th March, makes us aware that the Massacre of Glencoe was already making a sensation there. It was said that the people had been murdered in their beds, after the chief had made the required submission. The secretary professed to have known nothing of the last fact, but he was far from regretting the bloodshed. 'All I regret is that any of the sect got away.' When the particulars became fully known—when it was ascertained that the Campbells had gone into the glen as friends, and fallen upon the people when they were in a defenceless state and when all suspicion was lulled asleep—the transaction assumed the character which it has ever since borne in the public estimation, as one of the foulest in modern history.

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The Jacobites trumpeted it as an offset against the imputed severities of the late reigns. Its whole details were given in the French gazettes, as an example of the paternal government now planted in Britain. The government was compelled, in self-defence, to order an inquiry into the affair, and the report presented in 1695 fully brought out the facts as here detailed, leaving the principal odium to rest with Dalrymple. The king himself, whose signature follows close below the savage sentence, 'If M'Ian of Glencoe,' &c., did not escape reproach. True it is, that so far from punishing his secretary, he soon after this report gave him a full remission, and conferred on him the teinds of the parish in which lay his principal estates.^[80]

The Privy Council had before them a petition from Lieutenant Brisbane of Sir Robert Douglas's regiment, regarding one Archibald Baird, an Irish refugee, imprisoned at Paisley for housebreaking. The sheriff thought the probation 'scrimp' (scanty), and besides, was convinced that 'extreme poverty had been a great temptation to him to commit the said crime.' Seeing he was, moreover, 'a proper young man fit for service,' and 'willing and forward to go over to Flanders to fight against the French,' the sheriff had hitherto delayed to pronounce sentence upon him. Without any ceremony, the Council ordered that Baird be delivered to Brisbane, that he might be transported to Flanders as a soldier.

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The reader will probably be amused by the sheriff's process of ideas—first, that the crime was not proved; and, second, that it had been committed under extenuating circumstances. The leniency of the Privy Council towards such a culprit, in ordering him out of the country as a soldier, is scarcely less characteristic. The truth is, the exigencies of the government for additional military force were now greater than ever, so that scruples about methods of recruiting had come to be scarcely recognisable. Poor people confined in jail on suspicion of disaffection, were in many instances brought to a purchase of liberty by taking on as soldiers; criminals, who had pined there for months or years, half-starved, were glad to take soldiering as their punishment. Sturdy vagrants were first gathered into the jails for the offence of begging, and then made to know that, only by taking their majesties' pay, could they regain their freedom. But freedom was not to be instantly gained even in this way. The recruits were kept in jail, as well as the criminals and the disaffected—little distinction, we may well believe, observed between them. Not till ready to go on board for Flanders, were these gallant Britons permitted to breathe the fresh air.

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An appearance of regard for the liberty of the subject was indeed kept up, and on the 23d February 1692, a committee of the Privy Council was appointed to go to the prisons of Edinburgh and Canongate, and inspect the recruits kept there, so as to ascertain if there were any who were unjustly detained against their will. But this was really little more than an appearance for decency's sake, the instances of disregard for individual rights being too numerous even in their own proceedings to allow any different conclusion being arrived at.^[81]

Two ministers at Dumfries, who had been FEB.
'preachers before prelacy was abolished,' gave displeasure to the populace by using the Book of Common Prayer. On a Sunday, early in this month, a party of about sixteen 'mean country persons living about four or five miles from Dumfries, who disowned both Presbyterian and Episcopal ministers, and acknowledged none but Mr Houston,' came and dragged these two clergymen out of the town, took from each his prayer-book, and gave them a good beating, after which they were liberated, and allowed to return home. At an early hour next morning, the same party came into the town and burned one of the books at the Cross, on which they affixed a placard, containing, we may presume, a declaration of their sentiments. The Privy Council indignantly called the provost of Dumfries before them, and while censuring him for allowing such a riot to take place, enjoined him to take care 'that there be no occasions given for the like disorders in time coming.' That is to say, the Privy Council did not desire the Dumfries magistrates to take any measures for preventing the attacks of 'mean country persons' upon unoffending clergymen using the forms of prayer sanctioned in another and connected kingdom not thirty miles distant, but to see that such clergymen were not allowed to give provocations of that kind to 'mean country persons.'

Dumfries had at this time another trouble on its 1699. MAR.
hands. Marion Dickson in Blackshaw, Isobel Dickson in Locherwood, Agnes Dickson (daughter of Isobel), and Marion Herbertson in Mousewaldbank, had for a long time been 'suspected of the abominable and horrid crime of witchcraft,' and were believed to have 'committed many grievous malefices upon several persons their neighbours and others.' It was declared to be damnifying 'to all good men and women living in the country thereabouts, who cannot assure themselves of safety of their lives by such frequent malefices as they commit.'

Under these circumstances, James Fraid, John Martin, William Nicolson, and Thomas Jaffrey in Blackshaw, John Dickson in Slop of Locherwoods, John Dickson in Locherwoods, and John Dickson in Overton of Locherwoods, took it upon them to apprehend the women, and carried them to be imprisoned at Dumfries by the sheriff, which, however, the sheriff did not consent to till after the six men had granted a bond engaging to prosecute. Fortified with a certificate from the presbytery of Dumfries, who were 'fully convinced of the guilt [of the women] and of the many

malefices committed by them,' the men applied to the Privy Council for a commission to try the delinquents.

The Lords ordered the women to be transported to Edinburgh for trial.^[82]

The government beginning to relax a little the severity it had hitherto exercised towards captive Jacobites, the Earl of Perth, on a showing of the injury his health was suffering from long imprisonment in Stirling Castle, was liberated on a caution for five thousand pounds sterling, being a sum equal to the annual income of the highest nobles of the land.

William Livingstone, brother to the Viscount Kilsyth, and husband of Dundee's widow, had been a prisoner in the Edinburgh Tolbooth from June 1689 till November 1690—seventeen months—thereafter, had lived in a chamber in Edinburgh under a sentry for a year—afterwards was allowed to live in a better lodging, and to go forth for a walk each day, but still under a guard. In this condition he now continued. The consequence of his being thus treated, and of his rents being all the time sequestered, was a great confusion of his affairs, threatening the entire ruin of his fortune. On his petition, the Council now allowed him 'to go abroad under a sentinel each day from morning to evening furth of the house of Andrew Smith, periwig-maker, at the head of Niddry's Wynd, in Edinburgh, to which he is confined,' he finding caution under fifteen hundred pounds sterling to continue a true prisoner as heretofore; at the same time, the sequestration of his rents was departed from.

On the 19th April, Mr Livingstone was allowed to visit Kilsyth under a guard of dragoons, in order to arrange some affairs. But this leniency was of short duration. We soon after find him again in strict confinement in Edinburgh Castle; nor was it till September 1693, that, on an earnest petition setting forth his declining health, he was allowed to be confined to 'a chamber in the house of Mistress Lyell, in the Parliament Close,' he giving large bail for his peaceable behaviour. This, again, came to a speedy end, for, being soon after ordered to re-enter his strait confinement in the Castle, he petitioned to be allowed the Canongate Jail instead, and was permitted, as something a shade less wretched than the Castle, to become a prisoner in the Edinburgh Tolbooth. On the 4th of January 1693, he was again allowed the room in the Parliament Close, but on the 8th of February

this was exchanged for Stirling Castle. In the course of the first five years of British liberty, Mr Livingstone must have acquired a tolerably extensive acquaintance with the various forms and modes of imprisonment, so far as these existed in the northern section of the island.

Captain John Crichton, once a dragoon in the service of King James, and whose memoirs were afterwards written from his own information by Swift, was kept in jail for twenty-one months after June 1689; then for ten months in a house under a sentinel; since that time in a house, with permission to get a daily walk; ‘which long imprisonment and restraint has been very grievous and expensive to the petitioner (Crichton),’ and ‘has redacted him and his small family to a great deal of misery and want, being a stranger in this kingdom.’ His restraint was likewise relaxed on his giving caution to the extent of a hundred pounds to remain a true prisoner.

Soon after arose the alarm of invasion from France, and all the severities against the suspected Jacobites were renewed. William Livingstone was, in June, confined once more to his chamber at the periwig-maker’s, and Captain John Crichton had to return to a similar restraint. The Earl of Perth, so recently liberated from Stirling Castle, was 1691. again placed there. At that time, there were confined in Edinburgh Castle the Earls of Seaforth and Home, the Lord Bellenden, and Paterson, Ex-archbishop of Glasgow. In Stirling Castle, besides Lord Perth, lay his relation, Sir John Drummond of Machany,^[83] and the Viscount Frendraught, the latter having only six hundred merks per annum (about £34), so that it became of importance that his wife should be allowed to come in and live with him, instead of requiring a separate maintenance; to so low a point had civil broils and private animosities brought this once flourishing family. Neville Payne lay a wretched prisoner in Edinburgh Castle. Sir Robert Grierson of Lagg was contracting sore ailments under protracted confinement in the Canongate Jail. A great number of other men were undergoing their second, and even their third year of confinement, in mean and filthy tolbooths, where their health was unavoidably impaired.

On the 2d of June, Crichton gave in a petition reciting that he had been again put under restraint, and for no just cause, as he had always since the Revolution been favourable to the new government, and on the proclamation of the Convention, had deserted his old service in the Castle, bringing with him thirty-nine soldiers. He was relieved from close

confinement, and ordered to be subjected to trial. On the 10th of June, he was ordered to be set at liberty, on caution. Less than two months after, failing to appear on summons, his bond for £100 was forfeited, and the money, when obtained from his security, to be given to Adair the geographer.

On the 14th of June 1692, Captain Wallace represented that he had now been three years a captive, ‘whereby his health is impaired, his body weakened, and his small fortune entirely ruined.’ ‘Yet hitherto, there has been no process against him.’ He entreated that he might be liberated on signing ‘a volunteer banishment,’ and he would ‘never cease to pray that God may bless the nation with ane lasting peace, of [which] he would never be a disturber.’ An order for a process against him was issued.

It was difficult, however, even for the Scottish Privy Council to make a charge of treason against an officer whose only fault was that, being appointed by a lawful authority to defend a post, he had performed the duty assigned to him, albeit at the expense of a few lives 1692. to the rabble which he was commanded to resist. Still, when the solicitor-general, Lockhart, told them he could not process Captain Wallace for treason ‘without a special warrant to that effect,’ they divided on the subject, and the negative was only carried by a majority.^[84]

Happened an affair of private war and violence, APR. 25. supposed to be the last that took place in the county of Renfrew. John Maxwell of Dargavel had ever since the Reformation possessed a seat and desk in the kirk of Erskine, along with a right to bury in the subjacent ground. William Hamilton of Orbieston, proprietor of the estate of Erskine, disputed the title of Dargavel to these properties or privileges, and it came to a high quarrel between the two gentlemen. Finding at length that Dargavel would not peaceably give up what he and his ancestors had so long possessed, Orbieston—who, by the way, was a partisan of the old dynasty, and perhaps generally old-fashioned in his ideas—resolved to drive his neighbour out of it by force. A complaint, afterwards drawn up by Dargavel for the Privy Council, states that William Hamilton of Orbieston, George Maxwell, bailie of Kilpatrick, Robert Laing, miller in Duntocher, John Shaw of Bargarran, Gavin Walkingshaw, sometime of that ilk, came, with about a hundred other persons, ‘all armed with guns, pistols, swords,

bayonets, and other weapons invasive,' and, having appointed George Maxwell, 'Orbieston's own bailie-depute,' to march at their head, they advanced in military order, and with drums beating and trumpets sounding, to the parish kirk of Erskine, where, 'in a most insolent and violent manner, they did, at their own hand, and without any order of law, remove and take away the complainer's seat and dask, and sacrilegiously bring away the stones that were lying upon the graves of the complainer's predecessors, and beat and strike several of the complainer's tenants and others, who came in peaceable manner to persuade them to desist from such unwarrantable violence.'

Dargavel instantly proceeded with measures for obtaining redress from the Privy Council, when his chief, Sir John Maxwell of Pollock, a member of that all-powerful body, interfered to bring about an agreement between the disputants. With the consent of the Earl of Glencairn, principal heritor of the parish, Dargavel 'yielded for peace-sake to remove his seat from that place of the kirk, where it had stood for many 1692. generations;' while Orbieston on his part agreed that Dargavel 'should retain his room of burial-place in the east end of the kirk, with allowance to rail it in, and strike out a door upon the gable of it, as he should see convenient.' This did not, however, end the controversy.

The first glimpse of further procedure which we obtain is from a letter of John Shaw of Bargarran, professing to be a friend of both parties, though he had appeared amongst the armed party led by Orbieston's bailie-depute. He writes, 23d August, as follows to William Cunningham of Craigends, a decided friend of Dargavel: 'SIR—The Laird of Orbieston heard when he was last here that Dargavel was intendit to put through a door to his burial-place, which will be (as he says) very inconvenient for Orbieston's laft [gallery]; so he desired me to acquaint you therewith, that ye wold deall with Dargavel to forbear; otherways he wold take it very ill, and has given orders to some people here to stop his design, if he do it not willingly; wherefor, to prevent further trouble and emulation betwixt the two gentlemen, ye wold do well to advyse him to the contrair either by a lyn or advyse, as ye think most proper. I desyre not to be seen in this, because they are both my friends, and I a weel-wisher to them both. I thought to have waited on you myself; bot, being uncertain of your being at home, gives you the trouble of this lyne, which is all from, sir, your most humble servant, J. SHAW. Ye wold do this so soon as possible.'

There are letters from Craigends to Dargavel, strongly indicating the likelihood that violent measures would again be resorted to by Orbieston, and advising how these might best be met and resisted. But the remainder of the affair seems to have been peaceable. Orbieston applied to the Privy Council for an order to stop Dargavel, apparently proceeding upon the rule long established, but little obeyed, against burying in churches; and the Council did send an order, dated the 29th August, ‘requiring you to desist from striking any door or breaking any part of the church-wall of Erskine, until your right and Orbieston’s right be discusst by the judges competent for preventing further abuse.’ Dargavel immediately sent a petition, shewing how he was only acting upon an agreement with Orbieston, and hereupon the former order was recalled, and Dargavel permitted to have the access he required, however incommodious it might be to Orbieston’s ‘laft.’^[85]

The prisoners in the Canongate Tolbooth forced the key from the jailer, and took possession of their prison, which they held out against the magistrates for a brief space. A committee of Privy Council was ordered to go and inquire who had been guilty of this act of rebellion.^[86] Viewing the manner in which jails were provided, there can be no doubt that it was a rebellion of the stomach.

1692. MAY 10.

Under our present multiplication of newspapers, a piece of false intelligence is so quickly detected, that there is no temptation for the most perverse politician to put such a thing in circulation. In King William’s days, when the printed newspaper barely existed, and the few who were curious about state-affairs had to content themselves with what was called a *news-letter*—a written circular emanating from a centre in London—a falsehood would now and then prove serviceable to a party, particularly a depressed one.

MAY 17.

We get an idea of a piece of the social economy of the time under notice, from a small matter which came under the attention of the Privy Council. William Murray kept a tavern in the Canongate. Each post brought him a news-letter for the gratification of his customers, and which doubtless served to maintain their allegiance to his butt of claret. Just at this time, when there were alarms of an invasion from France, a lie about preparations on the French shore was worth its ink. The lord high chancellor now

informed the Council that Murray's letter was generally full of false news; that he caused destroy the one brought by last post, merely to keep Murray out of trouble; and he had kept up the one just come, 'in respect there is a paper therein full of cyphers which cannot be read.' Matters having now become so serious, he had caused Murray to be brought before the Council.

Murray declared before a committee 'he knows not what person writes the news-letter to him ... he never writes any news from this to London ... he knows not what the cyphers in the paper sent in his letter with this post does signify.' They sent him under care of a macer to the Tolbooth, to be kept there in close prison, and his papers at home to be searched for matter against their majesties or the government.

On the 2d of June, William Murray represented that he had now been a fortnight in jail, and his poor family would be 1692. ruined if he did not immediately regain his liberty. The Council caused him to be examined about the cypher-letter, and asked who was his correspondent. We do not learn what satisfaction he gave on these points; but a week later, he was liberated.

On the 15th November, the Privy Council ordered the magistrates of Edinburgh to shut up the Exchange Coffee-house, and bring the keys to them, 'in respect of the seditious news vented in and dispersed from the said coffee-house.' A month after, the owners, Gilbert Fyfe and James Marjoribanks, merchants, shewed that, some of their news-letters having once before been kept up from them on account of the offensive contents, they had changed their correspondent, in order that the government might have no such fault to find with them. Moved, however, by malice against them, their old correspondent had addressed to them a letter sure by its contents to bring them into trouble with the officers of state, and it had been the cause of their house being shut up accordingly. Seeing how innocently on their part this had come about, and how prejudicial it was to their interest, the men petitioned for re-possession of their house, which was granted, under caution that they were to vent no news until it was approved of by their majesties' solicitor, or whoever the Privy Council might appoint, 'the reviser always setting his name thereto, or at least ane other mark, as having revised the same.'

Not long after, we find the Council in such trouble on account of false news as to be under the necessity of considering some general measure on

the subject.

In December, one William Davidson, described as a ‘writer,’ was taken up and put into the Tolbooth of Edinburgh, ‘for writing and spreading of lies and false news;’ and the Privy Council issued an order ‘for delivering of the said William to ane of the officers come from Flanders, to have been carried there as a soldier.’ On its appearing, however, that William ‘is but a silly cripple boy, having had his leg and thigh-bones broke,’ they ordered the magistrates of Edinburgh to banish him from their city, ‘in case they shall find him guilty of the said crime.’

On the 12th of July 1694, we hear something more of this William Davidson. For inadvertently adding to a news-letter a postscript ‘bearing some foolish thing offensive to the government, without affirming whether it was true or false, but only that it was reported,’ he had been condemned to banishment from the city, and also disinherited by a Whiggish father, now deceased. He had since lived upon the charity 1692. of his relations and acquaintances; but these were now weary of maintaining him, and he was consequently ‘redacted to extream misery.’ Having broken his thigh-bone six several times, he was incapable of any employment but that of writing in a chamber, from which, however, he was debarred by his banishment from Edinburgh. He therefore craved a relaxation of his sentence, offering ‘to take the oath of allegiance and subscribe the assurance, to evidence his sincerity towards the government.’ The poor lad’s petition was complied with.^[87]

Sir James Carmichael of Bonnyton, a minor, was JULY. proprietor of the lands of Thankerton, lying on the north side of the river Clyde, in the upper ward of Lanarkshire. The Clyde had been the march between his estate and those of the adjacent proprietors—Chancellor of Shieldhill, and George Kellie in Quothquan; but ‘rivers are bad neighbours and unfaithful boundaries, as Lucan says of the Po,’^[88] and there had happened a *mutatio alvei* about fifty years before, in consequence of a violent flood, and now a part of Bonnyton lands was thrown on the opposite side. Under the name of the Park-holm, it had lain neglected for many years; but at length, in 1688, the present laird’s father sowed and reaped it; whereupon the opposite neighbours, considering it as theirs, resolved to assert their right to it. At the date noted, they came eighty strong, ‘resolved

to take advantage of Sir James his infancy, and by open bangstry and violence to turn him and his tenants out of his possession.’ Their arms were ‘pitchforks, great staves, scythes, pistols, swords, and mastive dogs.’ In a rude and violent manner, they cut down ‘the whole growth of fourteen bolls sowing of corn or thereby,’ drove it home to their own houses, and there made use of it in bedding their cattle, or threw it upon the dunghills. Thus, ‘corns which would have yielded at least nine hundred bolls oats at eight pounds Scots the boll, were rendered altogether useless for man or beast.’ During the progress of this plunder, the tenants were confined to their houses under a guard. So it was altogether a riot and oppression, inferring severe punishment, which was accordingly called for by the curators of the young landlord.

The Council, having heard both parties, found the riot proven, and ordained Chancellor of Shieldhill to pay three hundred merks to the pursuer. ^[89] Afterwards (December 26, 1695), the Lords of 1692. Session confirmed the claim of Bonnyton to the Park-holm. ^[90]

In this year died the Viscountess Stair—born Margaret Ross of Balniel, in Wigtonshire—the wife of the ablest man of his age and country, and mother of a race which has included an extraordinary number of men of talent and official distinction. The pair had been married very nearly fifty years, and they were tenderly attached to the last. The glories of the family history had not been quite free of shade; witness the tragical death of the eldest daughter Janet, the original of Lucy Ashton in *The Bride of Lammermoor*. ^[91] Lady Stair is admitted to have been a woman of a soaring mind, of great shrewdness and energy of character, and skilled in the ways of the world; and to these qualities on her part it was perhaps, in part, owing that her family, on the whole, prospered so remarkably. The public, however, had such a sense of her singular power over fortune, as to believe that she possessed necromantic gifts, and trafficked with the Evil One. An order which she left at her death regarding the disposal of her body, helped to confirm this popular notion. ‘She desired that she might not be put under ground, but that her coffin should stand upright on one end of it, promising that, while she remained in that situation, the Dalrymples should continue to flourish. What was the old lady’s motive for the request, or whether she really made such a promise, I shall not take upon me to determine; but it’s

certain her coffin stands upright in the aile of the church of Kirkliston, the burial-place of the family.’^[92]

A local historian attributes to her ladyship ‘one of the best puns extant. Graham of Claverhouse (commonly pronounced Clavers) was appointed sheriff of Wigtonshire in 1682. On one occasion, when this violent persecutor had been inveighing, in her presence, against our illustrious reformer, she said: “Why are you so severe on the character of John Knox? You are both reformers: he gained his point by clavers [talk]; you attempt to gain yours by knocks.”’^[93]

The boy carrying the post-bag on its last stage from England was robbed by ‘a person mounted on horseback with a sword about him, and another person on foot with a pistol in his hand, upon the highway from Haddington to Edinburgh, near that place thereof called Jock’s Lodge [a mile from town], about ten hours of the night.’ The robbers took ‘the packet or common mail with the horse whereon the boy rode.’ The Privy Council issued a proclamation, offering a reward of a hundred pounds for the apprehension of the offenders, with a free pardon to any one of them who should inform upon the rest.

AUG. 13.

1692.

The troubles arising from corporation privileges were in these old times incessant. Any attempt by an unfreeman to execute work within the charmed circle was met with the sternest measures of repression and punishment, often involving great suffering to poor industrious men. Indeed, there is perhaps no class of facts more calculated than this to disenchant modern people out of the idea that the days of old were days of mutual kindness and brothership.

OCT. 1.

At the date noted, one William Somerville, a wright-burgess of Edinburgh, was engaged in some repairs upon the mansion of the Earl of Roxburgh, in the Canongate, when Thomas Kinloch, deacon of the wrights of that jurisdiction, came with assistants, and in a violent manner took away the whole of the tools which the workmen were using. This was done as a check to Edinburgh wrights coming and doing work in a district of which they were not free. Somerville, two days after, made a formal demand for the restoration of his ‘looms;’ but they were positively refused. The Earl of

Roxburgh was a minor; but his curators felt aggrieved by Kinloch's procedure, and accordingly concurred with Somerville in charging the Canongate deacon, before the Privy Council, with the commission of riot and oppression in the earl's house. Apparently, if the Roxburgh mansion had been subject to the jurisdiction of the Canongate, the Council could not have given any redress; but it so happened, that when the earl's ancestor, in 1636, gave up the superiority of the Canongate, he reserved his house as to be holden of the crown; therefore, the Canongate corporations had no title to interfere with the good pleasure of his lordship in the selection of workmen to do work in his house. The Council remitted this point of law to the Court of Session; but meanwhile ordered the restoration of Somerville's tools.^[94]

As an example of the troubles connected with 1692. mercantile privilege, it may be well to introduce one simple case of the treatment of an interloper by the Merchant Company of Edinburgh, the members of which were the sole legalised dealers in cloth of all kinds in the city. In June 1699, it was reported to the Company that one Mary Flaikfield, who had formerly been found selling goods 'off the mercat-day,' and enacted herself to desist from the practice, had been found sinning again in the same manner. She was detected in selling some plaids and eight pieces of muslin to a stranger, and the goods were seized and deposited in the Merchants' Hall.

The poor woman at first alleged that she had only been conversing with this stranger, while the goods chanced to be lying beside her, and the Company was wrought upon to give back her goods, all except two pieces of the muslin, which they said they would detain till Mary could prove what she alleged.

Presently, however, there was a change in their mood, for John Corsbie came forward with information that Mary Flaikfield was really a notable interloper. The very person she was lately detected in dealing with, she had wiled away from Corsbie's own shop, where he was about to buy the same goods. She was accustomed to sell a good deal to the family of Lord Halcraig. Then she had not appeared to prove her innocence. 'The vote was put: "Roup the two pieces of muslin or not?" and it carried "Roup." Accordingly, the muslin being measured, and found to be twenty-two ells, and ane hour-glass being set up, several persons bid for the same. The

greatest offer made was fourteen shillings per ell, which offer was made by Francis Brodie, treasurer—the time being run—the said offer was three several times cried out, and the said two pieces of muslin were declared to belong to him for £15, 8s. [Scots]; but if she compear and relieve the same before the next meeting, allows her to have her goods in payment of the above sum.’

At the meeting of the ensuing week, Mary Flaikfield not having come forward to redeem her muslin, the treasurer was instructed to dispose of it as he should think fit, and be comptable to the Company for £15, 8s. Two days later, however, there was another meeting solely on account of Mary, when the Master, Bailie Warrender, and his assistants, felt that Christian charity would not allow them to proceed further. ‘Considering that Mary Flaikfield is a poor woman, big with child, and has been detained here about a fortnight, they, in point of pity and 1692. compassion for her, order that her two pieces of muslin be given her back upon payment of fourteen shillings to the officer.’ She was not dismissed without a caution as to her future behaviour.^{[\[95\]](#)}

The stranding of whales in the Firth of Forth Nov. was of such natural and frequent occurrence in early times, that a tithe of all cast ashore between Cockburnspath and the mouth of the Avon, was one of the gifts conferred by the pious David upon the Canons Augustine of Holyrood. In modern times, it may be considered as an uncommon event. At this time, however, one had embayed itself in the harbour of Limekilns, a little port near Queensferry. A litigation took place regarding the property of it, between the chancellor, the Earl of Tweeddale, as lord of the regality of Dunfermline, and Mr William Erskine, depute to the admiral, and the Lords finally adjudged it to the chancellor, with seven hundred merks as the price at which it had been sold.^{[\[96\]](#)}

The Earl of Moray, being pursued at law for a DEC. 1. tradesman’s account, which was referred to his oath, craved the Court of Session to appoint a commission to take his oath at Dunnibrissle, on the ground that, if he were obliged to come to Edinburgh for the purpose, he should incur as much expense as the whole amount of the alleged debt. As

Dunnibrissle is visible from Edinburgh across the Firth of Forth, this must be looked upon as an eccentrically economical movement on his lordship's part. The court granted the commission, but ordained his lordship to pay any expense which might be incurred by the debtor, or his representative, in travelling to Dunnibrissle to be present at the oath-taking.^[97]

The court had occasionally not less whimsical cases before it. In February 1698, there was one regarding a copper caldron, which had been pouldred, but not first taken to the Cross to be 'appreciate.' The defenders represented that they had done something equivalent in carrying thither a part of it—the ledges—as a symbol; following here a rule applicable with heavy movables, as where a salt-pan was represented by two nails; nay, a symbol not homogeneous, as a wisp of straw for a flock of sheep, fulfilled the law. The defence was sustained, and the pouldring affirmed.^[98]

The Privy Council had under its hands three 1692. DEC.
Protestant clergymen—namely, Mr John Hay, late minister at Falkland; Mr Alexander Leslie, late minister at Crail; and Mr Patrick Middleton, late minister at Leslie—in short, three of the 'outed' Episcopal clergy—for not praying for William and Mary. They acknowledged that they prayed 'only in general terms' for the king and queen, and were therefore discharged from thereafter exercising any clerical functions, under severe penalties. Soon after, the Council judged, in the case of Mr Alexander Lundie, late minister of Cupar, who stated that, 'having a mixed auditory, he prayed so as might please both parties.' This style of praying, or else the manner of alluding to it, did not please the Privy Council, and Mr Lundie was ordered 'to be carried from the bar, by the macers, to the Tolbooth, there to remain during the Council's pleasure.' Having lain there four days, far from all means of subsistence, while his wife was ill of a dangerous disease at home, and his family of small children required his care, Mr Lundie was fain to beg the Council's pardon for what he had said, and so obtained his liberation also, but only with a discharge from all clerical functions till he should properly qualify himself according to act of parliament.

On the 22d of May 1693, Mr David Angus, minister of Fortrose, was before the Council on a charge that, although deprived for not praying for their majesties in terms of the act of parliament, 'he has publicly preached and exercised the ministerial function within his own house, and parish where the same lies, and elsewhere, without qualifying himself by signing

the oath of allegiance.’ So far from evidencing the sense he ought to have had of the grievous circumstances from which the nation had been relieved, by reading the proclamation of estates, he had neglected it, and prayed for King James, thus stirring up the disaffected in opposition to their majesties’ government, and discouraging their loyal subjects. These were ‘crimes which ought to be severely punished for the terror of others.’ The Lords, therefore, finding him unable to deny the alleged facts, and indisposed to engage for a different behaviour in future, confirmed his deprivation, and discharged him from preaching or exercising any ministerial function within the kingdom.

As a specimen of the equivocating prayers—Mr Charles Key, one of the ministers of South Leith, was charged, in September 1694, with using these expressions, “‘That God would bless our king and queen, and William and Mary,” or “our king and queen, William and Mary, and the rest of the royal family.””^[99]

1692.

A great number of recruits were now drawn together to be sent to Flanders, but the vessels for their transportation were not ready. The Privy Council therefore ordered their distribution throughout the jails of Lothian and Fife, sixty, eighty, a hundred, and even more, to each tolbooth, according to its capacity—for example, two hundred and forty-four to the jails of Musselburgh, Haddington, and Leith—there to be furnished with blankets to lie on by the various magistrates. When it is known that two Jacobite gentlemen had lately petitioned for liberation from Musselburgh jail, on the ground that it did not contain a fireroom, and their health was consequently becoming ruined, it will not seem surprising that a competent troop of horse and foot had to be ordered ‘to keep guard upon the said recruits, and take care that none of them escape.’

DEC. 31.

That a good many, induced either by the hardships of their situation, or the enticements of disaffected persons, did desert the service, is certain: a strict proclamation on this subject came out in April 1694. At the same time, John M’Lachlan, schoolmaster in Glasgow, was before the Privy Council on a charge of having induced a number of soldiers in the regiments lying at that city to desert. ‘Being disaffected,’ it was said, ‘to their majesties’ government, he has, so far as possible for thir three or four years past, made it his business to weaken the government, and to instigate and persuade

several soldiers to run away.’ He did ‘forge passes for them.’ In particular, in January last, he did ‘persuade John Fergusson and John M’Leod, soldiers in Captain Anderson’s company in Lord Strathnaver’s regiment, then lying at Glasgow, to run away and desert ... telling them that they were but beasts and fools for serving King William, for that he was sure that the late King James would be soon here again.... He had given passes to several of the regiment formerly in garrison at Glasgow, and offered to go with them to a gentlewoman’s house without the Steeple-green port, who was a cousin of his, who would secure them and receive their clothes, and furnish them with others to make their escape; and told them they were going to Flanders, and would be felled there, and so it was best for them to desert, and that he would hide their firelocks underground, and give 1692. them other coats and money, and a pass to carry them safe away.’

The Council, having called evidence, and found the charge proven, sentenced M’Lachlan to be whipped through the city of Edinburgh, and banished to the American plantations. They afterwards altered the sentence, and adjudged the Jacobite schoolmaster, instead of being whipped, to stand an hour on the pillory at Edinburgh, and an hour on the pillory at Glasgow, under the care of the hangman, with a paper on his brow, with these words written or printed thereon—‘John M’Lachlan, schoolmaster at Glasgow, appointed to be set on the pillory at Edinburgh and Glasgow, and sent to the plantations, for seducing and debauching soldiers to run away from their colours, and desert their majesties’ service.’

Two days later, the Privy Council recommended their majesties’ advocate to prosecute M’Lachlan before the committee anent pressed men, ‘for the disloyal and impertinent speeches uttered by him yesterday while he stood upon the pillory of Edinburgh.’ What came of this, we do not learn; but on the 3d of July there is a petition from M’Lachlan, setting forth that, after a nineteen weeks’ imprisonment, he is sinking under sickness and infirmity, while his family are starving at home, and craving his liberty, on giving assurance that he shall not offend again against the government. His liberation was ordered.

James Hamilton, keeper of the Canongate Tolbooth (July 16, 1696), represented to the Privy Council that it had been customary for him and his predecessors to receive two shillings Scots per night for each recruit kept in the house, with a penny sterling to the servants (being 3d. sterling in all),

and their lordships, in consideration of his ‘great trouble in keeping such unruly prisoners in order’—he ‘being liable to the payment of ten dollars for every man that shall make his escape’—had authorised him to take ‘oblemements’ from the officers for the payment of these dues, till lately when the authority was withdrawn. This had led to loss on the part of the petitioner, who had now spent all his own means, and further run into debt, so that, ‘through continual hazard of captions,’ he was threatened with becoming a prisoner in his own jail. He entreated payment of some arrears for General Mackay’s recruits, as well as these recent arrears, and likewise for the proper allowance for ‘the coiners and clippers,’ latterly an abundant class of prisoners, on account of the tempting condition of the coin of the realm for simulation. The Lords recommended 1693. Hamilton to the treasury for payment of the monies due to him.^[100]

Though Scotland had long enjoyed the services FEB. 2. of four universities, the teaching of any of the natural sciences was not merely unknown in the country, but probably undreamed of, till the reign of Charles II. The first faint gleam of scientific teaching presents itself about 1676, when, under the fostering care of Dr (afterwards Sir) Robert Sibbald, a botanic garden was established near the Trinity College Church, as a means of helping the medical men of Edinburgh to a better knowledge of the pharmacopœia. It was put under the care of James Sutherland, who had been a common gardener, but whose natural talents had raised him to a fitness for this remarkable position. In his little garden in the valley on the north side of the city, he taught the science of herbs to students of medicine for small fees, receiving no other encouragement besides a salary from the city of twenty pounds, which did not suffice to pay rent and servants’ wages, not to speak of the cost of new plants. At the time of the siege of Edinburgh Castle in the spring of 1689, it had been thought necessary, for strategic reasons, to drain the North Loch, and, as the water ran through the Botanic Garden, it came to pass that the place was for some days under an inundation, and when left dry, proved to be covered with mud and rubbish, so that the delicate and costly plants which Sutherland had collected were nearly all destroyed. It had cost him and his assistants the work of a whole season to get the ground cleared, and he had incurred large charges in replacing the plants.

At this date, the Privy Council, on Sutherland's petition, took into consideration his losses, his inadequate salary, and the good service he was rendering, 'whereby not only the young physicians, apothecaries, and surgeons, but also the nobility and gentry, are taught the knowledge of the herbs, and also a multitude of plants, shrubs, and trees are cultivated which were never known in this nation before, and more numerous than in any other garden in Britain, as well for the honour of the place as for the advantage of the people.' They therefore declared that they will in future allow Mr Sutherland fifty pounds a year out of fines falling to them, one half for expenses of the garden, and the other half by way of addition to his salary.^[101]

Mr Stephen Maxwell, 'alleged to be a Romish priest,' prisoner in Blackness Castle, Mr George Gordon, Mr Robert Davidson, and Mr Alexander Crichton, 'also alleged to be popish priests,' and prisoners in the Edinburgh Tolbooth, were ordered to be set at liberty, provided they would agree to deport themselves from the kingdom 'in the fleet now lying under convoy of the man-of-war lying in the Road of Leith,' and give caution to the extent of a hundred pounds that they would never return. On the 17th, Mr James Hepburn, 'alleged to be a popish priest,' was ordered to be liberated from the Canongate Tolbooth on the same terms. All of these gentlemen had been for many months deprived of their liberty.

1693. APR. 13.

There still lay in Blackness Castle one John Seaton, who had been apprehended in December 1688, on suspicion of being a priest, and confined ever since, being four and a half years. He had been offered the same grace with the rest; but he was prevented by his personal condition from accepting it. According to his own account, he was seventy years of age. He 'has not only spent any little thing he had, but his health is likewise entirely ruined, beyond any probability of recovery.' He was most willing to have gone abroad, 'where he might have expected better usage for one in his condition than he can reasonably propose to himself anywhere in this kingdom;' but 'when the rest went away above a month ago, finding his health so totally broken by sickness, old age, and imprisonment, and his infirmity still growing worse,' he was 'necessitated to continue prisoner, rather than hazard a long sea-voyage, whereby he could expect no less than an unavoidable painful death, the petitioner, when formerly in health and strength at sea, being still in hazard of his life.' John Seaton further represented that he had never, during his long imprisonment, received any

support from the government, but been maintained by the charity of his friends. He now prayed the Council that they would take pity on him, and ‘not permit him, ane old sickly dying man, to languish in prison for the few days he can, by the course of nature and his disease, continue in this life,’ but let him retire to ‘some friend’s house, where he may have the use of some help for his distressed condition, and may in some measure mitigate the affliction he at present lies under by old age, sickness, poverty, and imprisonment.’

The Council ordered Seaton to be liberated.^[102]

For some time past there had been an unusual and alarming number of highway robberies. One case, of a picturesque character, may be particularised. William M’Fadyen, who made a business of *droving* cattle out of Galloway and Carrick to sell them in the English markets, had received a hundred and fifty pounds sterling at Dumfries, and was on his way home (December 10, 1692), about four miles from that town, when at sunrise he was joined by two men, ‘one in a gentleman’s habit, mounted on a dark-gray horse, with a scarlet coat and gold-thread buttons. He was of extraordinary stature, with his own hair, sad-coloured, ane high Roman nose, slender-faced, thick-lipped, with a wrat [wart] above one of his eyes as big as ane nut, and the little-finger of his left hand bowed towards his loof’—a peculiarity, by the way, which the Duke of Lauderdale believed to denote a man who would come to some sad and untimely end. ‘The other appeared to be his servant, and was also mounted upon ane dark-gray horse, and carried a long gun.’ ‘After they had travelled about half a mile on the way, the servant said he was going through the muir, and desired [M’Fadyen] to go along with him, which he refused; whereupon he beat [M’Fadyen] with the but-end of his gun, and said he would make him go. Immediately thereafter, the other came up, and presented a pistol to his breast; and so, after he had made what defence he was able, and had received several wounds, they carried him about a quarter of a mile off the way, and cut the cloak-bag from behind his saddle, and carried away his money.’

1693. APR.

Among other steps taken by the Privy Council in consequence of this daring robbery, was to ‘recommend Sir James Leslie, commander-in-chief for the time of their majesties’ forces within this kingdom, to cause make trial if *there be any such person, either officer or soldier, amongst their*

majesties' forces, as the persons described.' They sent the same recommendation to the Earl of Leven with regard to 'the officers which are come over from Flanders to levy recruits.'

This seems to have put the military authorities upon their mettle, and they engaged a certain Sergeant Fae, of Sir James Leslie's regiment, as a detector of the robbers, 'upon his own expenses, except five pounds allowed him by the [Privy Council].' The sergeant, an enterprising fellow, with 'a perfect abhorrence of such villainies,' went into the duty assigned him with such zeal and courage, that he soon, at the hazard of his life, made seizure of several robbers, of whom two were convicted. Three months of this work having, however, exhausted his means, he was

1693. APR. 5.

obliged to petition for further encouragement, and the Privy Council ordered him ten pounds for the past service, and five pounds for every robber whom he might apprehend, and who should be convicted in future.

[\[103\]](#)

A great number of the smaller lairds of Fife were Jacobite; among the rest, David Boswell of Balmouto. On the other hand, the Earl of Leven, one of the nobility of the county, stood high in office under the Revolution government. Besides a general quarrel with the earl on this ground, Balmouto had probably some private cause of offence to exasperate him; but on this point we only have conjecture.

APR. 11.

At the date noted, there was a horse-race at the county town, Cupar; and both gentlemen attended. It is alleged that Balmouto first waited near a house in the town where the earl was, in expectation of his coming forth, but afterwards went away to the raceground. There, as the earl was quietly riding about, Balmouto came up to him behind his back, and struck him twice or thrice over the head and shoulders with a baton. On his lordship turning to defend himself, the assailant struck the horse on the face, and caused it to rear dangerously. Balmouto then fired a pistol at the earl without effect, and was immediately seized by the bystanders, and prevented from doing further mischief.

In a debate before the Privy Council on this case, after hearing representations from both parties, it was held that the earl's complaint was proved, while an attempt of Balmouto to make out a counter-charge of assault against Lord Leven was declared to have failed. Balmouto was

obliged to beg the earl's pardon on his knees, and, on pain of imprisonment, give caution for future good-behaviour.

On the ensuing 13th of March 1694, Balmouto is found representing to the Council that 'his misfortune has been so great, that his friends are unwilling to interest themselves in his liberation, whereby his family is in hazard to be ruined, and himself to die in prison;' and he craved that they would accept his personal obligation, and allow him his liberty. The Earl of Leven having concurred in desiring this, the petition was complied with.^[104]

A broadside published this month at Glasgow, 1693. JUNE.
under the title of the *Scottish Mercury*, 'by Mr John Stobo, student in astrologophysick,' being dated, however, 'from Kirkintilloch, where I dwell,' makes us aware that the almanac-making charlatanry was not unknown in Scotland. We learn from it that the French nation are near a sad calamity; that there were fears of conspiracies about Rome and Milan; and Constantinople not likely to be free from tumultuous uproars of the soldiery. 'The conjunction of Venus with Jupiter relates to some great lady's marriage.' The author professes to ground upon natural causes, but not to conclude positively about anything—'that belongs to God's providence.' Finally, there is an advertisement informing the world that John Stobo, as is known in many parts of this kingdom, cures infallibly all diseases, couches cataracts, amputates, &c., working for the poor gratis, and imposing upon the rich 'as little cost as may be.'

To promote the making of linen in Scotland, an JUNE 14.
act was passed in 1686, ordaining that 'no corps of any persons whatsoever be buried in any shirt, sheet, or anything else, except in plain linen,' the relatives of deceased persons being obliged, under heavy penalties, to come to their parish minister within eight days of the burial, and declare on oath that the rule had been complied with.^[105] Another act was now passed, ordaining that, for the same end, no lint should be exported from the kingdom; that lint imported should be duty free; and making sundry arrangements for a uniformity in the breadth of the cloth produced. There was likewise still another act conferring particular privileges on two companies which carried on the linen manufacture in Paul's Work, Edinburgh, and in the Citadel of Leith, as an encouragement which was required for their success.

An act was passed at the same time for encouraging James Foulis, John Holland, and other persons named, in setting up a manufactory of ‘that sort of cloth commonly called *Colchester Baies*’ in Scotland; ‘which baies will consume a great deal of wool which cannot be profitable neither at home nor abroad.’

On the same day, there was an act in favour of William Scott, cabinet-maker, who designed to set up a coach-work, 1693. being, as would appear, the first of the kind that had been proposed in Scotland, though the use of the article ‘not only occasions the yearly export of a great deal of money out of the kingdom, but likewise that the lieges cannot be furnished with such necessaries when they have occasion for them, without bringing them from abroad at a double charge, beside sea-hazard.’ It was ordained that William Scott should have the privileges of a manufactory ‘for making of coaches, chariots, sedans, and calashes, harness and grinding of glasses,’ for eleven years.

On the 28th May 1694, articles of agreement were concluded between Nicolas Dupin, acting for a linen company in England, and the royal burghs and others in Scotland, for the formation of a company to carry on the linen manufacture in this kingdom. It was arranged that the enterprise should rest in a capital of six thousand five-pound shares, one half of which should be held by Englishmen, the rest by Scotsmen, the burghs being each allowed certain shares in proportion to their standing and wealth. The money to be paid in four instalments within the ensuing two years.^[106]

The linen manufacture is spoken of in 1696 as established, and two years later we find the bleaching was executed at Corstorphine.

Dupin conducted works in England and Ireland for the manufacture of paper, and the establishment of another in Scotland was one of the objects for which he had come to the north. Several of the Scottish nobility and gentry whom he met in London encouraged him in his enterprise, telling him that ‘some persons have already attempted to work good writing-paper, but could not effect the same.’ In July we find him addressing the Privy Council for permission to erect and carry on a paper-work in this kingdom, setting forth that he had arrived at ‘the art of making all sorts of fine paper moulds as good, or better, as any made beyond seas, and at a far cheaper rate, insomuch that one man can make and furnish more moulds in one week than any other workman in other nations can finish in two months’

time:’ moreover, ‘whereas large timber is scarce in this kingdom,’ he and his associates ‘have arts to make the greatest mortar and vessel for making of paper without timber;’ they ‘have also provided several ingenious outlandish workmen to work and teach their art in this kingdom.’

On this shewing, Dupin and his friends obtained ‘protection and liberty to set up paper-mills in this kingdom, without 1693. hindering any other persons who are already set up;’ also permission ‘to put the coat of arms of this kingdom upon the paper which shall be made by them at these mills.’^[107]

By an act of Estates two years later, Dupin’s project was sanctioned as a joint-stock concern.^[108]

A rope-manufactory had been some years before established at Newhaven by James Deans, bailie of the Canongate, and one of his sons; but it had been discontinued for want of encouragement, after a considerable loss had been incurred. In November 1694, Thomas Deans, another son of the first enterpriser, expressed himself as disposed to venture another stock in the same work, at the same place, or some other equally convenient, provided he should have it endowed with the privileges of a manufactory, though not to the exclusion of others disposed to try the same business. His wishes were complied with by the Privy Council.

On the 7th May 1696, the privileges of a manufactory, according to statute, were granted by the Privy Council to Patrick Houston and his partners for a rope-work at Glasgow. This copartnery was to set out with a stock of forty thousand pounds Scots, and introduce foreign workmen to instruct the natives.

One David Foster had set up a pin-work at Leith in 1683, and was favoured by the Privy Council with the privileges assigned by statute to manufactories. In January 1695, Foster being dead, his successor, James Forester, came forward with a petition for a continuance of these privileges, professing that he meant to ‘carry on the work to a further degree of perfection, and bring home foreigners to that effect.’ This request was complied with.^[109]

The parliament, in May 1695, granted privileges for the encouragement of James Lyell of Gairden, in setting up a manufactory of oil from seeds, and of hare and rabbit skins for hats, the raw materials having formerly been exported from the country and re-imported in a manufactured state.

The Estates at the same time encouraged in like manner certain persons proposing to set up a gunpowder and an alum manufactory, the latter of which arts was stated to have been heretofore not practised in the kingdom.

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In July 1697, we hear of the paper-manufactory going on prosperously under a joint-stock company, producing ‘good 1693. white paper,’ and only requiring a little further encouragement to be ‘an advantage to the whole kingdom.’ On the petition of the adventurers, the Lords of Privy Council ordained that candlemakers should not use rags for making of wicks, and that the company should have the same power over its instructed servants as had been given to the cloth-work at Newmills. We may infer that the paper-work established at Dalry in 1679^[111] was no more, as this manufactory was now spoken of as the only one in the kingdom ‘that has either work or design for white paper.’^[112]

A pamphlet in favour of the African Company, in 1696, remarked that Scotland had lately been falling upon true and lasting methods of increasing her trade, by erecting companies ‘to manufacture our own natural commodities.’ ‘thus we have the woollencloth manufactory at Newmills, and the baise-manufactory for our wool, the linen-manufactory, several for leather, and others.’ It was likewise remarked that ‘soap, cordage, glass, gilded leather, pins, ribands, cambrics, muslins, paper,’ and some other articles, which used to be brought from abroad, were now made at home by companies, individuals having heretofore failed to establish them.’^[113]

Alexander Hamilton, ‘formerly merchant in DEC. 7. Rouen, now in Edinburgh,’ was about to set up ‘a bank or profitable adventure for the fortunate in the city of Edinburgh, of twenty-five thousand crowns, in imitation of that lately set up and finished at London with so great ane applause.’ It was to consist of ‘fifty thousand tickets, each ticket to be bot half ane crown.’ He had obtained a licence for it from the Master of Revels, and expended considerable sums ‘in making the books, publishing prints, and doing other things necessar.’ All that was now wanting was an exclusive privilege for six months from the Privy Council, lest he should be ‘prejudged in his undertaking or damnified by the expenses and charges thereof,’ from any other person setting up a similar adventure. This privilege was granted.^[114]

We learn from a prospectus addressed to the public by Hamilton, that the lottery was to include one ticket of each of the following sums, two hundred, three hundred, one thousand, fifteen 1693. hundred, two thousand, two thousand five hundred, and three thousand crowns, besides smaller prizes, of which a hundred at two hundred crowns were conspicuous. Provided the tickets were taken up in time, the drawing to take place in Alexander Crombie's great room, opposite to the entry of the Parliament Close, on the 1st of March 1694.

It is pleasant, amidst the general details of 1694. JAN. 10. Scottish life at this period, to find that at least one of the civilising arts was beginning to assert its existence. A man named Beck, with some associates, had now 'erected a concert of music.' We learn the fact in consequence of an attempt on the part of one Maclean, a dancing-master, holding the office of Master of the Revels in Scotland, to obtain a sum from the enterprisers for a licence to be taken out from him, 'before they could set up and exact money, seeing his office was to inspect and regulate all games and sports, and see that nothing immoral or indecent should be allowed.' The judges of the Court of Session refused to enforce Maclean's claim, on the ground that music was only mentioned in his gift in connection with plays and puppet-shows, and that 'musicians were not subject to Masters of the Revels abroad,' where the office was best known, and that Maclean only 'used it to drain money from them, without restraining immoralities, if they paid him.'^[115]

The Privy Council had before them the case of JAN. 11. Mr Thomas Blackwell, student of theology, lately chaplain to Lady Inglis of Cramond at Barnton House. He seems to have felt his spirit galled by some circumstances of his situation, his poor garret-lodging and attendance, the lady's pedantry in criticising his prayers, the necessity of courting the parish clergyman, and so forth, and thus was provoked to pen a long and sorry pasquil in verse, purporting to be *The Humble Advice of a Weel-wisher to all Dominies*, in which he discharged his bile in sufficiently scurrilous terms. This libel he sent circuitously by the Glasgow carrier to Lady Cramond, who soon discovered his authorship, and taxed him with it. At first he made a solemn denial, but he afterwards owned his offence; and the

lady now came for redress to the Privy Council. The young satirist made the most humble professions of penitence for his offence, but in vain. He was ordained by the Council to be banished from Scotland!

We find on the 20th February that Lady Cramond had forgiven Thomas Blackwell, and he on his petition was consequently absolved from his former sentence.^[116]

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Matthew Forsyth, cook and innkeeper in Edinburgh, represented to the Privy Council that he had been apprehended in September 1691, under cloud of night, by order of Bailie Robert Blackwood, and along with his wife thrown into the Tolbooth, 'for what he knew not,' and was detained there till the 11th of May 1692, 'in a most miserable, penurious, and starving condition, he being put in the Iron House, and his wife in the Woman House.' Though 'the cold of the winter' was well known to be 'most violent,' 'they did not see any fire except a candle;' and during the whole time 'they never got a bed, but lay on the cold floor,' 'Having no mean of subsistence, they were necessitat to sell the clothes off their backs to maintain them, and all they got in the day was two plack-loaves betwixt them [a plack being the third of a penny].' Meanwhile, the officers who apprehended them took from their house everything they had 'for back, bed, or board,' leaving nothing but 'two great raxes [spits], a dropping-pan, and some chests and bedsteads.' The entire value of what was taken away was not less than two thousand pounds Scots. Matthew had called on the magistrates to say what was at his charge; but they turned him over to the Privy Council, which again turned him to the Lords of Justiciary. These afterwards, finding that the magistrates would not proceed, ordered his liberation and that of his wife. Being reduced by this treatment to 'extreme poverty,' he was now unable to prosecute for redress, unless the Court of Session should put him upon their gratis-roll. At his petition, the Privy Council recommended the Court to extend to him this benefit.

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On a subsequent occasion, June 7, 1694, Forsyth and his wife came before the Privy Council with a charge against the persons by whom he had been so severely treated, as also for defaming him as a reseller of stolen goods. It appeared that the whole affair arose from a suspicion entertained against him respecting a missing silver standish belonging to the Duke of Queensberry, and some other articles belonging to Cornet Drummond of

Lord Newbottle's dragoons. We see no trace of any legal attempt to substantiate this charge; nevertheless, Forsyth having failed to appear in order to make good his complaint, the Lords 1694. ordered him to be denounced rebel, searched for, and if found, committed to prison, 'for contempt and disobedience,' his movable goods to be forfeited, and his wife, in the meantime, to be 'incarcerat.'^[117]

A petition from the Commissioners of Supply MAR. 6. for the county of Inverness to the Privy Council, sets forth the hardships they were subjected to by the failure of many to pay their shares of cess and other public burdens. The complaint referred more particularly to certain 'inaccessible' parts of the shire, as the Isle of Skye, Uist, Barra, and Raasay. All methods hitherto taken to enforce payment had proved ineffectual, for 'when parties were sent out to intimate quartering, they must instantly return, seeing they can have no conveniency either for themselves or their horses; and when parties have been again sent to poind for cess or deficiency, the heritors always get intelligence, and drive away the cattle, and what further remains in their houses or on their land is of no value.' Assistance was craved from the government troops to seize and imprison the heritors deficient, of whom M'Kinnon of M'Kinnon is mentioned as owing 'for seven by-run [monthly] terms,' Kenneth Milquo in Uist for nine, and Donald M'Donald, brother to M'Donald of Slait, for twenty terms. The petition was complied with.^[118]

Another example of the difficulties of taxation in the Highlands in those times is afforded by a letter addressed, at Ruthven in August 1697, to some unknown person by twenty-five Strathspey gentlemen, remonstrating against a claim for gratuitous coal and candle. The principal persons here concerned were William M'Intosh of Borlum, A. M'Pherson of Killiehuntly, Alexander M'Pherson of Phones, J. M'Pherson of Benchar, J. Gordon in Kingussie, and William M'Pherson of Nuid. They say: 'We understand by Borlum, our bailie, that you desire to know this day our resolutions anent the furnishing you coal and candle without payment. You know very weel how heavy that burden has lyen upon us, and that it has so exhausted us, that much of our country is wasted, and therefore we do assure you by these that we will not advance you any more coal and candle without pay, because there is no law for it, and you may as well take away

all our property by force and violence, as impose upon us any taxes arbitrary without authority or law. Property and liberty is the thing we contend for against arbitrary power, and resolves to 1694. adhere to the act of Council and secretary's letter in our favours, as the final resolutions of,' &c.^[119]

It is a great pity that we have not the name of the party addressed; but it may be suspected that it was that of a feudal superior, probably the Duke of Gordon. The language about liberty and property must have sounded strange in such ears from a set of Strathspey vassals.

Mr John Dysart was inducted as minister of the MAR. 24. parish of Coldingham, in place of the previous Episcopalian minister, Mr Alexander Douglas, who retired with a considerable number of the parishioners to worship in a barn near the church. Dysart, a man of strenuous opinions and great resoluteness of character, was determined to carry out the Presbyterian discipline with vigour. He caused a deputation to go to Mr Douglas and demand the pulpit Bible, communion-cups, baptismal-basin, the boxes for the collection or offertory, and the box for the communion-cloth and mortcloth [pall for funerals]; but Douglas seems to have considered himself entitled to retain most of these articles as private property, and only surrendered the box for the mortcloth. The existence of the dissenting body headed by this gentleman afterwards proved very troublesome to Mr Dysart, as it interfered sadly with that moral sway which he, as a properly constituted Presbyterian clergyman, and he alone, was entitled to exercise.

One of his first acts was the setting up of 'a seat for scandalous persons to sit on when they appeared before the congregation.' Here every lapse of virtue was duly expiated by exposure and rebuke. The general vigour of the minister's discipline may be inferred from the fact that, in sixteen years, he held 1169 meetings of his little consistory or session, being at the rate of about one and a half per week. Every particular of private life was open to be investigated by this local inquisition. The elders made regular 'visitations' among the people. For example—'The town was visited, and the visitors report that in William Spur's house there were Gavin Dale in this parish, and John Dale in the parish of Ayton, his brother, in time of divine service, at drink; and being reproved by the aforesaid elders for

misspending the Lord's Day, Gavin answered that their kirk (meaning the meeting-house set up and kept up in contempt of the government) was but just now scaled [dismissed], and that they were but refreshing themselves. Elizabeth Cockburn, wife to William Spur, expressed her concernedness to the elders, that such a thing had fallen out in her house, and promised to the elders never to do the like. The session, considering the wickedness of the persons, and the disadvantage they [the session] are [under] by the said meeting-house, by which they fortify themselves against censure, concluded to pass this, and to accept of the promise aforesaid from the woman, who seemed to be grieved for the offence.'^[120]

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A large class of cases arose out of quarrels among neighbours. Elizabeth Trunnoch, spouse to John Paulin, had aggrieved Elizabeth Brotherstone, spouse of Archibald Anderson, by calling her a thief. Brotherstone complained to the session, and being summoned, did, according to rule, deposit ten groats, to be forfeited if she should fail in her probation. Trunnoch was interrogate whether she had called the complainer a thief. She answered: 'That she said that George Blair gave her the commendation of a thief by rubbing [robbing] away folk's eldin [fuel], and that she found something of it by taking away her heather at her door, and that she said it in a passion when the complainer had blamed her for worrying of a chicken of hers. After some interrogatories to both the parties, they were removed, and after some reasoning it was found that the complainer was equally guilty in scolding at the time, and if the one must be publicly rebuked before the congregation, the other must be also there rebuked. Two elders, Thomas Aitchison and John Smith, were sent out to confer with them, and to exhort them to take up their private quarrels, and to tell them that [as] the scolding was known to but a few, and so had not given offence to the public congregation, the session was willing that it should go no further. The elders having returned from them, [*i. e.*] Archibald Anderson and Elizabeth Brotherstone his wife, did report, that, say what they could, the foresaid Archibald insisted to have a rebuke given to Elizabeth Trunnoch before the congregation, and to have her fined for the fault. The session, having maturely considered the affair, concluded that Elizabeth Trunnoch should, upon her knees, before the session, beg pardon of God for the sin of scolding and taking away her neighbour's good name, and after being on her feet, she should crave the complainer's pardon,

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and restore her her good name again. Likewise it was concluded that, seeing the complainer was equally guilty in scolding, she should, upon her knees, before the session, beg pardon of God for that sin. They being asked in, the sentence of the session was intimated to them, which was obeyed by both, as was appointed; which being done, they were gravely rebuked for their scandalous speeches one to another, and exhorted to agree better for the future, and to make conscience of bridling their tongues, certifying them that if they should be found guilty again of the like, they should meet with a more public reproof.'

Considering the style of public feeling which dictated and sanctioned such strictness, one is surprised at the character of the offences, as well as their frequency. How was it that, while such a view was taken of the Sunday, there were so many instances of breaking it by 'gaming at the bob and penny game,' by gathering fuel, cutting cabbage, drying nets, and rioting in public-houses? Why, while drunkenness was so hardly looked on, were there so many instances of it at all times of the week? Seeing, too, that the elders had so much power, how should it have been that one challenged by an elder with cabbage-gathering on a Sunday, answered insolently, 'What have ye to do with it?' and, 'Who will nail my lug to the Tron for it?' When society bore so generally a Christian tone, how happened it that William Dewar, farmer in Horsley, should have been so pagan-like as to take a lamb from his flock, and put its head on the top of his chimney, as a charm against the liver-crook in his flock? We must suppose that there was always in those days a great party in the opposition against the religious and moral authorities of the land, its force being what at once called forth and seemed to justify the severity we now remark upon with so much surprise. In short, the barbarous tendencies of the country were still very great.

Cases of imputed witchcraft occupied a large share of attention at the session of Coldingham. The parish had been rather remarkable for its witches. Soon after Mr Dysart's induction as minister, Sir Alexander Home of Renton, an heritor of the parish, but notably a weak man, wrote to Lord Polwarth, informing him of the late great increase of this offence in the district. His father, as sheriff, had at one time 'caused burn seven or eight of them;' but none had been apprehended since, and it was owing to 'the slackness of judges' that there were now so many of bad fame for that crime in the parish. 'I know,' says Sir Alexander, 'your lordship is inclined to do justice,' being of the now predominant professions

in religion; so ‘it is only proper for your lordship to take notice of it.’ He adds: ‘If some were apprehended, more would come to light;’ and he ends by offering to send a list. In September 1698, Mr Dysart got into great vigour about this class of cases. ‘Margaret Polwart, in Coldingham, having a sick child, was using charms and sorcery for its recovery; and Jean Hart, a suspected witch, was employed in the affair; and also Alison Nisbet, who had been lately scratched, or had blood drawn above the breath, by some one who had suspected her of witchcraft. One of the witnesses declared, that she saw Jean Hart holding a candle in her left hand, and moving her right hand about, and heard her mutter and whisper much, but did not understand a word that she said. Another declared, that “she (the witness) did not advise Margaret Polwart to send for Jean Hart; but she heard her say, That thief, Christian Happer, had wronged her child, and that she would give her cow to have her child better; and that witness answered, that they that chant cannot charm, or they that lay on cannot take off the disease, or they that do wrong to any one cannot recover them.” Margaret Polwart was publicly rebuked.’^[121]

Till this day, it could not be said that Great APR. 20.
Britain had wholly submitted to William and Mary. For nearly three years past, one small part of it—situated within one-and-twenty miles of the capital of Scotland—had held out for King James; and it only now yielded upon good terms for the holders. This was the more remarkable, as the place was no ancestral castle, resting on the resources of a great lord, but, in reality, one of the state fortresses, which fortune had thrown into the hands of a few bold spirits, having no sort of authority to take or retain possession of it.

The place in question was that singular natural curiosity, the islet of the Bass, situated a couple of miles off the coast of East Lothian, in the mouth of the Firth of Forth. As well known, while rising a column of pure trap straight out of the sea, it shelves down on one side to a low cliff, where there is a chain of fortifications, with a difficult landing-place underneath. The late government had employed this fortalice as a state-prison, chiefly for troublesome west-country clergymen. After the 1694.
Revolution, the new government sent some of Dundee’s officers to undergo its restraints. On the 15th of June 1691, while most of the little garrison

were employed outside in landing coal, four of these prisoners, named Middleton, Halyburton, Roy, and Dunbar, closed the gates, and took possession of the fortress. Next evening, they were joined by Crawford younger of Ardmillan, with his servant and two Irish seamen. The Privy Council at Edinburgh was greatly enraged, but it had no means of reducing the place. It could only put a guard on the shore to prevent intercourse with the land, and make a couple of armed boats cruise about to intercept marine communications.

Months elapsed. The Jacobite garrison led a merry life amidst the clouds of sea-birds which were their only associates. There was no lack of stirring adventure. Young Ardmillan went off in a boat, and brought in a load of provisions. Others contrived to join them, till they were sixteen men in all. A Danish galliot came under their guns one day, ignorant of what had happened, and was sacked of all it contained. Predatory boat-parties, which went out by night, laid all the coast between the Tyne and the Tay under contribution. The government, for a time, seemed powerless. The island was too far from the land to be thence bombarded; ships' cannon could not mark at its cliff-built towers. The garrison, having plenty of ammunition, were on their own part formidable. After an ineffectual beleaguerment of upwards of two years, a small war-vessel called the *Lion*, with a dogger of six guns, and a large boat from Kirkcaldy, came to cruise off the island; but by this time their friends in France were interested in their welfare, and in August 1693, a frigate of twelve guns came up to the Bass, and anchored under its cannon. At sight of it, the government vessels disappeared. Large succours were thus given. Some months after, a Dunkirk privateer came in like manner, but was attacked by the *Lion*, and beaten.

The only very painful occurrence for the besieged was the seizure of a person named Trotter, who had supplied them with provisions. To frighten them, his execution was ordered to take place at Castleton, in sight of the isle. While the preparations were making, a shot from the Bass broke up the assemblage, but did not prevent the sacrifice being made at another place.

It was not till the spring of this year that the measures of the government for cutting off supplies from the Bass began sensibly to tell upon the besieged. When reduced to a point near starvation, and treating with the enemy, Middleton and his companions contrived 1694. still to appear well off, and full of good spirits. When the commissioners

came to the rock, the governor gave them what appeared a hearty lunch of French wine and fine biscuit, telling them to eat and drink freely, as there was no scarcity of provisions. On their departure, he had the walls bristling with old muskets, with hats and coats, as if there had been a large garrison. The consequence was, that the cavaliers of the Bass finally came off with life, liberty, and property—even with payment of their arrears of aliment as prisoners—and, it is needless to say, the unmixed admiration and gratitude of the friends of King James.

The Hon. William Livingstone of Kilsyth, after MAY 3.
enduring almost every form of captivity for several years, was now at length liberated, along with the Lord Bellenden, both on similar conditions—namely, that they should leave their native land for ever within little more than a month, under security to the extent of a thousand pounds sterling each, and engage thereafter in no movement of any kind against the existing government. We hear of the two gentlemen soon after asking a short respite, as the Dutch vessel in which they had hired a passage from Leith for Holland, was not yet ready to sail; and this grace they obtained, but only till the vessel should be ready.

Livingstone, in his forlorn voyage, was accompanied by his wife, Jean Cochrane, of the Ochiltree family, and the widow of Lord Dundee. This union had happened about a year after Killiecrankie, in consequence of Mr Livingstone meeting the lady on a visit at Colzium House, in Stirlingshire. As a pledge of his love, he presented her with a ring, which, unluckily, she lost next day while walking in the garden. This was considered an evil omen. A reward was offered to any one who should find the bijou, but all in vain.

The pair now went with their only child, an infant, to Rotterdam. One afternoon, the lady attended the Scotch church there, when Mr Robert Fleming, the minister, was officiating. This is a divine of some celebrity, on account of a singular work he published in 1701 on *The Rise and Fall of the Papacy*, in which he announced the likelihood that the French monarchy would experience a humbling about the year 1794. On the present occasion, if we are to believe a story reported by Wodrow, he stopped in the middle of his discourse, and declared that ‘he was, he knew not how, impressed with the thought that some heavy and surprising 1694.

accident was, within a few hours, to befall some of the company there present.’^[122]

This vaticination, if it ever was uttered, was sadly fulfilled. That afternoon, Kilsyth, his wife, and another gentleman, went into the room where the child lay with its nurse, Mrs Melville. Suddenly, the roof, which was thickly covered with turf-fuel, fell down, and buried the whole party. Kilsyth and his male visitor got out alive and unhurt, after being under the ruins for three-quarters of an hour. The lady, the nurse, and child, were all found dead. The bodies of Lady Dundee and her infant were carefully embalmed, and sent to be interred in their own country.^[123]

Much interest was felt a century after, when it was announced (May 1795) that the body of this unfortunate lady and her babe had been found in perfect preservation in the vault of the Viscounts of Kilsyth in Kilsyth Church. Some idle boys, having made their way into the vault, tore up a lead coffin, and found a fresh one of fir within, enclosing the two bodies embalmed, and looking as fresh as if they were only asleep. The shroud was clean, the ribbons of the dress unruffled, not a fold or knot discomposed. The child, plump, and with the smile of innocence arrested on its lips, excited pity and admiration in every beholder. A patch on the lady’s temple concealed the wound which had caused her death. When the face was uncovered, ‘beautiful auburn hair and a fine complexion, with a few pearly drops like dew upon her face, occasioned in the crowd of onlookers a sigh of silent wonder;’ so says the contemporary account. There was no descendant of the family to enforce respect for these remains: the husband of the lady had, as Viscount Kilsyth, forfeited title and estate in the insurrection of 1715,^[124] and his name was no more. But after public curiosity had been satisfied, a neighbouring gentleman caused the vault to be again closed.

There was not yet an end to the curious circumstances connected with Dundee’s widow. The year after the discovery of the embalmed corpses in Kilsyth Church, a tenant of Colzium garden, 1694. digging potatoes, found a small glittering object in a clod of earth. He soon discovered it to be a ring, but at first concluded it was a bauble of little value. Remembering, however, the story of Lady Dundee’s ring, lost upwards of a century before, he began to think it might be that once dear pledge of affection, and soon ascertained that in all probability it was so, as

within its plain hoop was inscribed a posy exactly such as the circumstances would have called for—*Zovrs onlly & Euer*. The lover and his family and name were all gone—his chosen lay silent in the funeral vault: but here was the voice of affection still crying from the ground, and claiming from another generation of men the sympathy which we all feel in each other's pure emotions.

James Young, writer in Edinburgh, stated to the JUNE 14.
Privy Council that he had been at great pains and expense in bringing to perfection 'ane engine for writing, whereby five copies may be done at the same time, which it is thought may prove not unuseful to the nation.' He requested and obtained a nineteen years' privilege of exclusively making this 'engine' for the public.

Young seems to have been a busy-brained man of the inventive and mechanical type, and as such, of course, must have been a prodigy to the surrounding society of his day. In January 1695, we find him again coming before the Privy Council, but this time in company with Patrick Sibbald, locksmith, the one as inventor, the other as maker, of a new lock of surprising accomplishments. It 'gives an account of how oft it is opened, and consequently may be very useful in many cases'—for example, 'though the key were lost, and found by another person, it discovers if that person has opened the lock; if your servant should steal the key, and take things out of the room or cabinet, it discovers how oft they have done it; if you find one of your servants is dishonest, but know not whom to challenge, this lock may set you on the right man; if you have any rooms with fine furniture, pictures, glasses, or curiosities, if you desire your servants not to let any of their acquaintances in to see the room, lest they abuse or break anything in it, though you leave them the key, as in some instances it is necessary, yet this lock discovers if they break your orders, and how oft; if you be sick, and must intrust your keys to a servant, this lock discovers if he takes occasion when you are asleep, to look into your cabinet, and how oft.' It was conceived that this clever lock 'would be for 1694.
the public good,' if it were only 'to frighten servants into honesty.' Wherefore the inventor and maker had no hesitation in asking for an exclusive privilege of making it for fifteen years, at the same time agreeing

that the price of the simplest kind should be not more than fifteen shillings sterling. The petition was complied with.^[125]

There was at this time at Grange Park, near Edinburgh, a house called the *House of Curiosities*, the owner of which made an exhibition of it, and professed to have new articles on view every month of the passing summer. A colloquy between Quentin and Andrew^[126] gives an account of it, from which it appears that one of the most prominent articles was the ingenious lock above described. Another was the aforementioned writing-engine, but now described as calculated to produce fifteen or sixteen copies by one effort with the pen, and so proving ‘an excellent medium between printing and the common way of writing.’ A third was thus described by Andrew: ‘They took me up to a darkened room, where, having a hole bored through the window, about an inch in diameter, upon which they had fixed a convex lens, the objects that were really without were represented within, with their proper shapes, colours, and motions, reversed, upon a white board, so that, it being a very clear sunshiny day, I saw men, women, and children walking upon the road with their feet upwards; and they told me, the clearer the day, it does the better.’ It may be inferred with tolerable confidence that this House of Curiosities was a speculation of James Young, the inventor of the lock and writing-engine.

It is curious to trace the feeling of strangeness expressed in this brochure towards scientific toys with which we are now familiar. Much is made of a *Magical Lantern*, whereby pictures of Scaramouch, Actæon, and Diana, and twenty others, ‘little broader than a ducatoon,’ are ‘magnified as big as a man.’ *Eolus’s Fiddle*, which, being hung in a window, ‘gives a pleasant sound like an organ, and a variety of notes all the day over,’ is descanted upon with equal gusto. ‘Sometimes it gives little or no satisfaction,’ Andrew admits; ‘but when I was there, it happened to do very well.’ There is also a very animated account of a machine for telling how far you have travelled—the modern and well-known pedometer.

One of the articles for the month of June was of 1694. such a kind that, if reproduced, it would even now be original and surprising. It is a *Horizontal Elastic Pacing Saddle*—horizontal, because it had four pins to keep it level; elastic, because of four steel springs; and pacing, because designed to make one have the sensation and experiences

of pacing while in reality trotting. 'I saw it tried by three or four gentlemen, who all gave good approbation of it.'

Another of the June articles serves to shew that the principle of the *revolver* is no new invention. It is here called *David Dun's Machine*, being a gun composed of ten barrels, with forty breeches adapted to the ends of the barrels, 'somewhat like that of a rifled gun.' 'The breeches are previously charged, and in half a minute you may wheel them all about by tens, and fire them through the ten barrels.'

Amongst the other articles now well known are—a *Swimmingbelt*—a *Diving Ark*, identical with the *Diving Bell* since re-invented—a *Humbling Mirror*, the object of which is to reflect a human being in a squat form—and the *Automatical Virginals*, which seem neither more nor less than a barrel-organ with clock-work. 'It plays only foreign springs, but I am told it might be made to play Scots tunes.' There was also the now little-heard-of toy called *Kircher's Disfigured Pictures*. A sheet of strangely confused colouring being laid down on a table, a cylinder of polished metal is set down in the midst of it, and in this you then see reflected from the sheet a correct picture of some beautiful object. 'There happened to be an English gentleman there, who told it was one of the greatest curiosities now in Oxford College.' It was a toy, be it remarked, in some vogue at this time among the Jacobites, as it enabled them to keep portraits of the exiled royal family, without apprehension of their being detected by the Lord Advocate.

Not long after, we find Young coming forward with an invention of a much more remarkable kind than either the detective-lock or the manifold writing-engine. He stated (July 23, 1696) that he had invented, and with great expense perfected, 'ane engine for weaving, never before practised in any nation, whereby several sorts of cloths may be manufactured without manual operation or weaving-looms.' He had 'actually made cloth thereby, before many of the ingenious of this kingdom.' He believed that this engine might, with due encouragement, prove highly useful, 'especially for the trade to Africa and the Indies,' and therefore

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petitioned the Privy Council for the privileges of a manufactory and for a patent right. The Lords complied with his request, giving him exclusive use of his machine for thirteen years.

On the 12th December 1695, Nicolas Dupin, whom we have seen engaged in preparations for the manufacture of linen and of paper in

Scotland, comes before us in the character of a mechanical inventor. He professed, in association with some ingenious artists, and after much cost and travel in foreign parts, to have ‘brought to perfection the yet never before known art and mystery of drawing water out of coal-pits.’ ‘In twenty fathoms deep,’ says he, ‘we can raise in two minutes’ time a ton of water, provided the pit or *sheft* will admit of two such casks to pass one another.’ It was done easily, the work being performed ‘by the true proportions and rules of hydrostaticks, hydronewmaticks, and hydrawliacks.’^[127] The machine was calculated to be useful for ‘all manner of corn-mills work, where water is scarce or frozen,’ for ‘we can grind by one man’s hand as much as any water-mill doth.’ It was adapted ‘for draining of lochs [lakes] or bringing of water to any place where water is wanting,’ and ‘for clearing of harbour-mouths from great rocks or sand.’ ‘In a short time, any vast weight that seems to be past lifting by men’s strength, this our engine shall lift by one man’s strength, more than twenty men shall do, being present altogether to the same lift.’ Our mechanist had also a smaller engine, with the same economy of power, for a more household sort of work, such as mincing of tallow for candles, ‘ane very exact way of cutting tobacco,’ for cutting of tanner’s bark, &c., ‘without the assistance of either wind or water.’ Several noblemen and gentlemen were said to be ready to treat with the inventor for the draining of certain drowned coal-pits; but it was necessary, before such work was undertaken, that the engines should be protected by a patent. On his petition, the Privy Council granted a patent for eleven years.^[128]

Two years later (1696) Mr David Ross, son of a deceased provost of Inverness, succeeded, to his own satisfaction, in discovering a *perpetuum mobile*. He divulged his plan to certain persons, his neighbours, who consequently prepared to enter into a bond or oath, giving assurance that they should not, by word, write, or sign, divulge the secret before the inventor should obtain a patent, unless he should 1694. himself do so, or should be removed from the world, ‘in which it shall be both lawful and expedient that we discover the same.’^[129]

We get an idea of what was at this time JULY 10. considered a fair price for land in proportion to rent in Scotland, from a case now before the Court of Session. Sir John Clerk of Pennecuik and

Archibald Primrose of Dalmeny had bought the baronies of Nicolson and Lasswade at a roup or auction, the one estate at *twenty-four*, the other at *twenty-two years' purchase*, which they afterwards represented as 'a dear rate.' There being a doubt as to the party who should receive the price, the purchasers would have to pay six per cent. on the purchase-money, by way of interest, until that point was settled, while only realising about four per cent. for their outlay: hence they applied to the court for leave to consign the money—which was refused.^[130]

Among numberless symptoms of dissatisfaction AUG. with the church now established by law, one of a trivial yet characteristic nature occurred in this and the preceding month, when several students and others made a practice of interrupting the minister of Old Aberdeen by striking up the doxology in several corners of the church, at the moment he was pronouncing the benediction. In the charge brought against them, October 3, before the Privy Council, it was alleged that this must have been done merely to disturb the congregation and vex the minister, as being a Presbyterian, albeit they could not but know that Presbyterians do nowhere condemn the doxology, 'which, where it is in use, is reverently regarded, and never offered to be interrupted by any good Christian.' It was likewise alleged of the same young men that they were in the custom of offering affronts and indignities to the elders at their meetings 'by hootings, bellowings, throwing of stones, and offering to rabble them when they walk on the streets.'

Three of the accused, having appeared and made submission, were absolved. The other three, not having appeared, were put to the horn, and their goods escheat.^[131]

Lord Lindsay's regiment was now quartered in Glasgow, under the temporary command of Major James Menzies, whom, from his name, we may conclude to have been of Highland birth. Some of the towns-people had been apprehended by the major as deserters, and put into confinement, whence they claimed the protection of the magistrates, who quickly interceded in their behalf, requesting that the alleged culprits might be brought before them for an investigation of the case. This being pointedly refused by the major, the magistrates issued a formal edict demanding that the men might be produced; but this the major treated with the same contempt. They then sent a civil request for a conference on the case, and the major having consented, the provost, two bailies, and Mr Robert Park, the town-clerk, met Menzies and three of his captains in the town-clerk's chamber.

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The conference commenced with a request in gentle terms from the provost, that the people might be brought forward, and in this request Mr Park very civilly joined. An altercation then took place between the major and the town-clerk, the former calling the latter a fool, the latter in return calling the major an ass, who, then losing patience, struck the man of peace with his cane. A heavy blow of the fist of the town-clerk was instantly replied to by the major with a lunge of his sword, whereupon Mr Park fell dead at his feet.

There was immediately a great hubbub in the chamber, and it soon spread to the streets, into which Menzies rushed without hat or wig, and with the bloody sword in his hand. He called his men—he planted them three-deep across the chief line of street, to stop the mob, and, mounting his horse at the Gorbals, fled amain.

Mr Francis Montgomery, a member of the Privy Council, was in Glasgow at the time. He readily concurred with the magistrates in authorising three citizens to pursue the murderer. They were John Anderson of Dowhill,^[132] John Gillespie, merchant, and Robert Stevenson, glazier. As they travelled along the line of the Clyde on Menzies's track, they were joined by Peter Paterson, late bailie of Renfrew. Anderson alone was armed; he had two pistols.

The unfortunate major was traced to the house of Rainhill, where, entering the garden, the pursuers soon found him. Gillespie, who had got one of Anderson's pistols, accompanied by Stevenson, advanced upon the murderer, who came up with a fierce countenance, 1694. asking what was the matter. Paterson told him there had been a man slain in Glasgow, and the murderer was supposed to be here: 'If you be he,' added Paterson, 'may God forgive you!' Menzies replied: 'It is no business of yours;' whereupon one of the others called out: 'Dowhill, here is the man.' Then the major, drawing his sword, and using a horrible imprecation, came forward, crying: 'What have the rascals to do with me?' The men retreated before him, and a pistol was fired in self-defence, by which Menzies was slain. When Paterson returned a minute after, he found him lying on his back, dead, with his drawn sword across his breast.

Strange to say, Henry Fletcher, brother of Lord Salton, and Lieutenant-colonel Hume, for the interest of his majesty's forces, raised a prosecution against the three Glasgow citizens for murder. It ended in a verdict of *Not proven*.^[133]

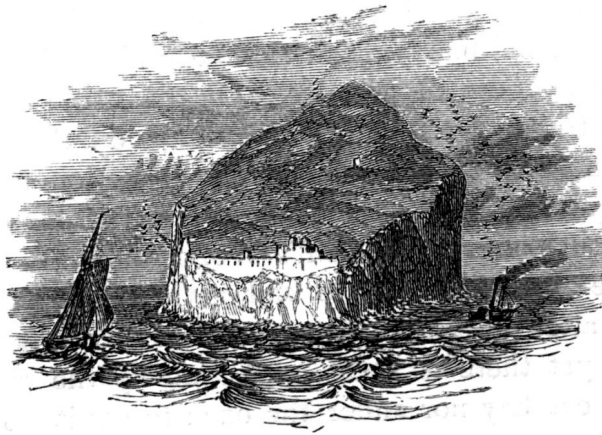
Previous to 1705, when the first professor of OCT. anatomy was appointed in the university of Edinburgh, there were only a few irregular attempts in the Scottish capital to give instructions in that department of medical education. We first hear of dissection of the dead body in our city in the latter part of the year 1694, a little before which time the celebrated Dr Archibald Pitcairn had left a distinguished position as professor of medicine in the university of Leyden, and marrying an Edinburgh lady, had been induced finally to settle there in practice. On the 14th October, Pitcairn wrote to his friend, Dr Robert Gray of London, that he was taking part in an effort to obtain subjects for dissection from the town-council, requesting from them the bodies of those who die in the correction-house called Paul's Work, and have none to bury them. 'We offer,' he says, 'to wait on these poor for nothing, and bury them after dissection at our own charges, which now the town does; yet there is great opposition by the chief surgeons, who neither eat hay nor suffer the oxen to eat it. I do propose, if this be granted, to make better improvements in anatomy than have been made at Leyden these thirty years; for I think most

or all anatomists have neglected or not known what was most useful for a physician.'

The person ostensibly moving in this matter was Mr Alexander Monteith, an eminent surgeon, and a friend of Pitcairn. In compliance with his request, the town-council (October 24) gave him a 1694. grant of the dead bodies of those dying in the correction-house, and of foundlings who die on the breast, allowing at the same time a room for dissection, and freedom to inter the remains in the College Kirk cemetery, but stipulating that he bury the intestines within forty-eight hours, and the remainder of the body within ten days, and that his prelections should only be during the winter half of the year.

Monteith's brethren did not present any opposition to his movement generally; they only disrelished his getting the Council's gift exclusively to himself. Proposing to give demonstrations in anatomy also, they preferred a petition to the town-council, asking the unclaimed bodies of persons dying in the streets, and foundlings who died off the breast; and the request was complied with, on condition of their undertaking to have a regular anatomical theatre ready before the term of Michaelmas 1697.^{[\[134\]](#)}

Such were the beginnings of the medical school of Edinburgh.



The Bass.

REIGN OF WILLIAM III.: 1695–1702.

During this period, the affairs of Scotland were in a marked degree subordinate to those of England. The king, absorbed in continental wars and continental politics, paid little attention to his northern kingdom; he left it chiefly to the care of its state-officers, using as a medium of his own influence, William Carstairs, a Presbyterian minister of extraordinary worth, sincerity, and prudence, who had gained his entire esteem and confidence, and who usually attended him wherever he was. A parliament which sat in May 1695, was chiefly occupied with the investigation of the Glencoe massacre, and with measures connected with the rising commercial enterprise of the country, including the formation of a native bank, and that of a company for trading with Africa and the Indies. The latter of these speculations was worked out in an expedition to Darien, and an attempted settlement there, which, through English mercantile jealousy, and the king's indifference to Scottish interests, ended so unfortunately as greatly to incense the Scottish nation, and increase the party disaffected to the Revolution government. The misery hence arising was increased by a dearth from a succession of bad seasons. Nevertheless, this period will be found in our chronicle to have been remarkable for the establishment of manufactories of various kinds, and for various other industrial enterprises, shewing that the national energies were beginning to take a decidedly new direction. At the same time, instances of deplorable superstition, cruelty, and intolerance were sufficiently numerous to attest that the days of barbarism were not past.

Incessant efforts were made by the Jacobite party to procure the restoration of King James, and the discontents excited by Darien were greatly favourable to their views. Yet the heart of the middle class throughout the more important provinces remained firm in Presbyterianism,

for which the Revolution government was the sole guarantee; and in this lay an insuperable bar to all reactionary projects. A war against France, which had begun immediately after the Revolution (May 1689), was brought to a conclusion in September 1697, by the treaty of Ryswick, which included an acknowledgment by Louis XIV. of the title of King William to the English throne. The exiled king, old and abandoned to ascetic devotion, indulged a hope that he would outlive William, and be then quietly recalled. He died, however, in September 1701, with only the assurance of the French king in favour of the restoration of his son. William survived him but a few months, dying of a fever and ague on the 8th March 1702. His vigorous talents, his courage, his essential mildness and tolerance, abated as they were by an unpopular coldness of manners, are amply recognised in English history; among the Scots, while Presbyterians thank him for the establishment of their church, there is little feeling regarding the Dutch king, besides a strong resentment of his concern in the affairs of Glencoe and Darien.

This day, being Sunday, the Catholics of 1695. FEB. 17. Edinburgh were so bold as to hold a meeting for worship in the Canongate. It was fallen upon and ‘dissipat’ by the authorities, and the priest, Mr David Fairfoul, with James De Canton and James Morris, fencing-masters, and John Wilson of Spango, were committed to prison, while the Lord Advocate obtained a list of other persons present. The Privy Council ordered the four prisoners to be carried from the Canongate to the Edinburgh Tolbooth, and appointed a committee to take what steps it might think meet regarding the list of worshippers.

On the 28th February, the Council permitted the liberation of the two fencing-masters, on assurance of their doing nothing offensive to the government in future, under a penalty of five hundred merks. At the same time, they ordained ‘Harry Graham, and his landlord, James Blair, periwig-maker in Niddry’s Wynd; James Brown, son to Hugh Brown, chirurgion, and the said Hugh his father; John Abercrombie, merchant in Edinburgh, and John Lamb in the Water of Leith, to give bond in the same terms and under the same penalty;’ else to be kept in prison. Orders were given to search for John Laing, writer, John Gordon, writer, and James Scott in the Canongate, ‘who, being also at the said meeting, have absconded.’ The priest Fairfoul was treated with unexpected mercy, being liberated on

condition of banishment, not to return under a penalty of three hundred pounds sterling.^[135]

Robert Davidson, merchant in Ellon, FEB. 19. Aberdeenshire, represented to the Privy Council that he had been in a good way of merchandise, and proprietor of a two-story house, when in the beginning of December last some of Lord Carmichael's dragoons were quartered upon him, and deposited their powder in one of his low rooms. As they were one morning dividing the powder, it 1695. caught fire, and demolished the house, together with his whole merchandise and household plenishing, carrying the bed whereon he and his family lay to the top of the house, and seriously injuring a relative who was living with him at the time, and for the cost of whose cure he was answerable. Robert petitioned for some compensation, and the Council—following its rule of a vicarious beneficence—allowed him to raise a voluntary collection at the church-doors of Aberdeenshire and the two adjacent counties.^[136]

There never, perhaps, was any mystic history FEB. better attested than that of 'the Rerrick Spirit.' The tenant of the house, many of his neighbours, the minister of the parish, several other clergymen, the proprietor of the ground living half a mile off, all give their testimonies to the various things which they 'saw, heard, and felt.' The air of actuality is helped even by the local situation and its associations. It is in the same parish with Dundrennan Abbey, where Queen Mary spent her last night in Scotland. It is upon the same rock-bound coast which Scott has described so graphically in his tale of *Guy Mannering*, which was indeed founded on facts that occurred in this very parish. Collin, the house of the laird, still exists, though passed into another family. Very probably, the house of Andrew Mackie himself would also be found by any one who had the curiosity to inquire for it; nor would he fail, at the same time, to learn that the whole particulars of this narration continue to be fresh in popular recollection, though four generations have passed away since the event. Few narrations of the kind have included occurrences and appearances which it was more difficult to reconcile with the theory of trick or imposture.

Andrew Mackie, a mason, occupied a small farm, called Ring-croft, on the estate of Collin, in the parish of Rerrick, and stewartry of Kirkcudbright. He is spoken of as a man 'honest, civil, and harmless beyond many of his neighbours,' and we learn incidentally that he had a wife and some children. In the course of the month of February 1695, Andrew was surprised to find his young cattle frequently loose in the byre, and their bindings broken. Attributing it to their unruliness, he got stronger bindings; but still they were found loose in the morning. Then he removed the beasts to another place; and when he went to see them next morning,

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he found one bound up with a hair *tether* to the roof-beam, so strait, that its feet were lifted off the ground. Just about this time, too, the family were awakened one night with a smell of smoke; and when they got up, they found a quantity of peats lying on the floor, and partially kindled. It seemed evident that some mischievous agent was at work in Ring-croft; but as yet nothing superhuman was in the surmises of the family.

On Wednesday, the 7th of March, a number of stones were thrown in the house—'in all places of it'—and no one could tell whence they came, or who threw them. This continued during day and night, but mostly during the night, for several days, the stones often hitting the members of the family, but always softly, as if they had less than half their natural weight. A kind of fear began to take possession of the little household, and the father's fireside devotions waxed in earnestness. Here, however, a new fact was developed: the stone-throwing was worst when the family was at prayers. On the Saturday evening, the family being for some time without, one or two of the children, on entering, were startled to observe what appeared a stranger sitting at the fireside, with a blanket about him. They were afraid, and hesitated; but the youngest, who was only nine or ten years of age, chid the rest for their timidity, saying: 'Let us sain [bless] ourselves, and then there is no ground to fear it!' He perceived that the blanket around the figure was his. Having blessed himself, he ran forward, and pulled away the blanket, saying: 'Be what it will, it hath nothing to do with my blanket.' It was found to be a four-footed stool set on end, and the blanket cast over it.

Attending church on Sunday, Andrew Mackie took an opportunity, after service, of informing the minister, Mr Telfair, how his house had been disturbed for the last four days. The reverend gentleman consequently visited Ring-croft on Tuesday. He prayed twice, without experiencing any trouble; but soon after, as he stood conversing with some people at the end

of the barn, he saw two stones fall on the croft near by, and presently one came from the house to tell that the pelting within doors had become worse than ever. He went in, prayed again, and was hit several times by the stones, but without being hurt. After this there was quiet for several days. On Sunday it began again, and worse than before, for now the stones were larger, and where they hit, they gave pain. On the ensuing Wednesday, the minister revisited the house, and stayed a great part

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of the night, during which he was 'greatly troubled.' 'Stones and several other things,' says he, 'were thrown at me; I was struck several times on the sides and shoulders very sharply with a great staff, so that those who were present heard the noise of the strokes. That night it threw off the bed-side, and rapped upon the chests and boards as one calling for access. As I was at prayer, leaning on a bed-side, I felt something pressing up my arm. I, casting my eyes thither, perceived a little white hand and arm, from the elbow down, but presently it evanished.'

The neighbours now began to come about the house, to gratify their curiosity or express sympathy; and both when they were within doors, and when they were approaching or departing, they were severely pelted. Mackie himself got a blow from a stone, which wounded his forehead. After several apparent efforts of a visionary being to seize him by the shoulder, he was griped fast by the hair of the head, and 'he thought something like nails scratched his skin.' This, however, was little in comparison to what happened with some of the neighbours, for, as attested by 'Andrew Tait in Torr,' they were seized and dragged up and down the house by the clothes. 'It griped one John Keig, miller in Auchencairn, so by the side, that he entreated his neighbours to help: it cried it would rive [tear] the side from him. That night it lifted the clothes off the children, as they were sleeping in bed, and beat them on the hips as if it had been with one's hand, so that all who were in the house heard it. The door-bar and other things would go thorough the house, as if a person had been carrying them in his hand; yet nothing seen doing it. It also rattled on chests and bed-sides with a staff, and made a great noise.' 'At night it cried, "Whisht! whisht!" at every sentence in the close of prayer; and it whistled so distinctly, that the dog barked and ran to the door, as if one had been calling to hound him.'

At the request of the laird, Charles M'Lellan of Collin, a number of ministers put up public prayers on account of these strange occurrences, and on the 4th of April two came to the house to see what they could do in

behalf of the family. They spent the night in fasting and prayer, but with no other apparent effect than that of rendering the supposed spirit more 'cruel.' One of the reverend gentlemen got a wound in the head from a stone, and the other had his wig pulled off, and received several sore blows, which, however, were healed quickly. A fiery peat was 1695. thrown amongst the people, and in the morning when they arose from prayer, 'the stones poured down on all who were in the house to their hurt.'

Two days after, the affair took a new turn, when Mackie's wife was induced to lift a stone which she found loose at the threshold of the house, and perceived underneath 'seven small bones, with blood, and some flesh, all closed in a piece of old soiled paper;' the blood being fresh and bright. She presently ran to the laird's house, about a quarter of a mile distant, to fetch him; and while she was gone, the spirit became worse than ever, 'throwing stones and fire-balls in and about the house; but the fire, as it lighted, did evanish. It thrust a staff through the wall above the children in bed, shook it over them, and groaned.' The laird came and lifted the bones and flesh, after which the trouble ceased for a little time. Next day, however, being Sunday, it recommenced with throwing of stones and other heavy articles, and set the house twice on fire. In the evening, when the eldest boy was coming home, 'an extraordinary light fell about him, and went before him to the house, with a swift motion.'

On the ensuing morning, the 8th April, Mackie found in his close a letter written and sealed with blood, superscribed thus: '*3 years tho shall have to repent a net it well.*' Within he read: '*Wo be to the Cotlland Repent and tak warning for the door of haven ar all Redy bart against the I am sent for a warning to the to fllee to god yet troublt shallt this man be for twenty days a 3 rpent rpent Scotland or els tow shall.*'^{[\[137\]](#)}

Following up the old notion regarding the touching of a murdered person in order to discover the murderer, all the surviving persons who had lived in the house during the twenty-eight years of its existence, were convened by appointment of the civil magistrate before Charles M'Lellan of Collin, 'and did all touch the bones,' but without any result.

On a committee of five ministers coming two days after to the house, the disturbing agency increased much in violence. According to the parish minister, Telfair, who was present on this occasion, 'It came often with such force, that it made all the house shake; it brake a hole through the timber

and thatch of the roof, and poured in great stones, one whereof, more than a quarter weight, fell upon Mr James Monteath his back, yet he was not hurt.' When a guard was set upon the hole in the roof, outside, it broke another hole through the gable from the barn, and threw stones in through that channel. 'It griped and handled the legs of some, as with a man's hand; it hoised up the feet of others, while standing on the ground; thus it did to William Lennox of Millhouse, myself, and others.'

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After this, the disturbances went on with little variation of effect for a week or more. A pedler felt a hand thrust into his pocket. Furniture was dragged about. Seeing a meal-sieve flying about the house, Mackie took hold of it, when the skin was immediately torn out. Several people were wounded with the stones. Groaning, whistling, and cries of *Whisht—Bo, bo*—and *Kuck, kuck!* were frequently heard. Men, while praying, were over and over again lifted up from the ground. While Mackie was thrashing in the barn, some straw was set fire to, and staves were thrust at him through the wall. When any person was hit by a stone, a voice was heard saying: 'Take that till you get more;' and another was sure to come immediately.

On the 24th of April, there was a fast and humiliation in the parish on account of the demonstrations at Ring-croft; and on that day the violences were more than ever extreme, insomuch that the family feared they should be killed by the stones. 'On the 26th, it threw stones in the evening, and knocked on a chest several times, as one to have access, and began to speak, and call those who were sitting in the house witches and rooks, and said it would take them to hell. The people then in the house said among themselves: "If it had any to speak to it, now it would speak." In the meantime, Andrew Mackie was sleeping. They wakened him, and then he, hearing it say: "Thou shalt be troubled till Tuesday," asked, "Who gave thee a commission?" It answered: "God gave me a commission, and I am sent to warn the land to repent, for a judgment is to come, if the land do not quickly repent;" and commanded him to reveal it upon his peril. And if the land did not repent, it said it would go to its father, and get a commission to return with a hundred worse than itself, and it would trouble every particular family in the land. Andrew Mackie said: "If I should tell this, I would not be believed." Then it said: "Fetch [your] betters; fetch the minister of the parish, and two honest men on

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Tuesday's night, and I shall declare before them what I have to say." Then it said: "Praise me, and I will whistle to you; worship me, and I will trouble

you no more.” Then Andrew Mackie said: “The Lord, who delivered the three children out of the fiery furnace, deliver me and mine this night from the temptations of Satan!” It replied: “You might as well have said, Shadrach, Meshach, and Abednego.” On a humble person present here putting in a word, the voice told him he was ill-bred to interfere in other people’s discourse. ‘It likewise said: “Remove your goods, for I will burn the house.”’

The house was actually set on fire seven times next day, and the care of the inmates preventing damage of this kind from extending, the end of the house was pulled down in the evening, so that the family was forced to spend the night in the barn. On the second next day, the house being again set fire to several times, Mackie carefully extinguished all fires about the place, and poured water upon his hearth; yet after this, when there was no fire within a quarter of a mile, the conflagrations, as was alleged, were renewed several times.

The period announced in the bloody letter of the 8th instant was now approaching, and in a conversation with Mackie, the supposed spirit good-naturedly informed him that, ‘except some casting of stones on Tuesday to fulfil the promise,’ he should have no more trouble. Tuesday, being the 30th of April, was the twenty-third day from the finding of the letter. That night, Charles M’Lellan of Collin and several neighbours were in the barn. As he was at prayer, he ‘observed a black thing in the corner of the barn, and it did increase, as if it would fill the whole house. He could not discern it to have any form, but as if it had been a black cloud; it was affrighting to them all. Then it threw bear-chaff and mud in their faces, and afterwards did grip severals who were in the house by the middle of the body, by the arms, and other parts of their bodies, so strait, that some said for five days thereafter they thought they felt those grips.’ Such, excepting the firing of a sheep-cot next day, was the last that was seen, heard, or felt of the Rerrick Spirit.

So great was the impression made by these incidents, that early in the ensuing year Mr Telfair published an account of them in a small pamphlet, which went through a second edition in Scotland, and was reprinted, with alterations of language, in London.^[138] At the end 1695. appeared the attestations of those who ‘saw, heard, and felt’ the various things stated—namely, ‘Mr Andrew Ewart, minister at Kells; Mr James Monteath, minister at Borgue; Mr John Murdo, minister at Crossmichael;

Mr Samuel Stirling, minister at Parton; Mr William Falconer, minister at Kelton; Charles M'Lellan of Collin, William Lennox of Millhouse, Andrew and John Tait in Torr, John Cairns in Hardhills, William Macminn, John Corsby, Thomas Macminn, Andrew Paline, &c.' It may be remarked, that for each particular statement in the Relation, the names of the special witnesses are given; and their collected names are appended, as to a solemn document in which soul and conscience were concerned.

The degree of respect felt by the authorities of MAR. 19.
this age for the rights of the individual, is shewn very strikingly in a custom which was now and for a considerable time after largely practised, of compromising with degraded and imputedly criminal persons for banishment to the American plantations. For example, at this date, thirty-two women of evil fame, residing in Edinburgh, were brought before the magistrates as a moral nuisance. We do not know what could have been done to them beyond whipping and hard labour; yet they were fain to agree that, instead of any other punishment, they should be banished to America, and arrangements for that purpose were immediately made.

In the ensuing June, a poor woman of the same sort, named Janet Cook, residing in Leith, was denounced for offences in which a father and son were associated—a turpitude which excited a religious horror, and caused her to be regarded as a criminal of the highest class. The Lord Advocate reported of Janet to the Privy Council, that she had been put under the consideration of the Lords of Justiciary, as a person against whom ‘probation could not be found,’ but that the Lords were nevertheless ‘of opinion she might be banished the kingdom,’ and she herself had ‘consented to her banishment.’ The Lords of the Privy Council seem to have had no more difficulty about the case than those of the 1695.
Court of Justiciary had had; they ordered that Janet should depart furth of the kingdom and not return, ‘under the highest pains and penalties.’

In January 1696, a woman named Elizabeth Waterstone, imprisoned on a charge identical in all respects with the above, was, in like manner, without trial, banished, with her own consent, to the plantations.

On the 7th of February 1697, four boys who were notorious thieves, and eight women who were that and worse, were called before the magistrates of Edinburgh, and ‘interrogat whether or not they would consent freely to

their own banishment furth of this kingdom, and go to his majesty's plantations in America.' 'They one and all freely and unanimously consented so to do,' and arrangements were made by the Privy Council for their deportation accordingly. It was only ordained regarding the boys that Lord Teviot might engage them as recruits for Flanders, in which case he was immediately to commence maintaining them.

On the 15th February 1698, Robert Alexander, 'a notorious horse-stealer,' now in prison, was willing to appease justice by consenting to banishment without trial. He likewise made discoveries enabling several countrymen to recover their horses. The Privy Council therefore ordained him to be transported by the first ship to the plantations of America, not to return thence under pain of death.

William Baillie, 'ane Egyptian,' prisoner in the Tolbooth of Edinburgh, but regarding whom we hear of no specific offence and no trial, was summarily ordered (Sep. 12, 1699) to be transported in the first ship going to the plantations, the skipper to be allowed a proper gratuity from the treasury, and at the same time to give caution for five hundred merks that he would produce a certificate of the man being landed in America.^[139]

It was long before justice in Scotland took any qualm about this free-and-easy way of dealing with accused persons. So late as 1732, two men of humble rank—Henderson, a sedan-carrier, and Hamilton, a *street-cadie*—suspected of being accessory to the murder of an exciseman, having *petitioned* for banishment before trial, were sent from the jail in Edinburgh to Glasgow, there to wait a vessel for the plantations.^[140]

The Earl of Home, as a dangerous person, had 1695. APR. 3. for some time been confined to his house of the Hirsell, near Coldstream; but now he was required to enter himself prisoner in Edinburgh Castle. He represented himself as under such indisposition of body as to make this unendurable, and the Council therefore ordered Dr Sir Thomas Burnet, the king's physician, to take a surgeon with him to the Hirsell, and inquire into the state of his lordship's health. The doctor and surgeon reported in such terms that the earl was allowed to remain at the Hirsell, but not without caution to the extent of two thousand pounds sterling. For their pains in travelling fifty miles and back, and giving this report, the Council allowed Dr Burnet two hundred merks (£11, 2s. 2d.), and Gideon Elliot, surgeon, one hundred merks.^[141]

A *her ship* of cattle having taken place on the lands of Lord Rollo, in Perthshire, the Master of Rollo was pleased to prosecute the matter a little more energetically than was convenient to some of his neighbours. He seems to have particularly excited the resentment of James Edmonstoun of Newton, one of whose tenants was found in possession of a cow reclaimed as part of the *her ship*. Newton, being soon after at the house of Clavidge, spoke some despiteful words regarding the Master, which were afterwards taken notice of. At the same house, about the same time, Patrick Graham, younger of Inchbrakie, spoke in the like angry terms of the Master. 'It has been noised in the country,' said he, 'that I have courted the Master of Rollo, and fawned upon him; but when occasion serves, something different will be seen.'

MAY 20.

These two hot-headed men spent a couple of days together at Ryecroft, a house of young Inchbrakie, and probably there inflamed their common resentment by talking over their grievances. On the day noted in the margin, hearing that the Master of Rollo was to go in the afternoon to Invermay House, they rode to his house of Duncrub, and from that place accompanied him to Invermay, together with the Laird of Clavidge and a gentleman named M'Naughton. Inchbrakie was remarked to have no sword, while his companion Newton was provided with one. Supping at the hospitable board of Invermay, these two conducted themselves much in the manner of men seeking a quarrel. Inchbrakie said to the Master: 'Master, although John Stewart killed and salted two of your kine, you surely will not pursue him, since your father and his Miss ate them!' Hereupon Clavidge remarked that this was not table-talk; to which Newton made answer: 'I think you are owning that.' Then Inchbrakie and Newton were observed to whisper together, and the latter was heard saying: 'I will not baulk you, Inchie.' Afterwards, they went out together, and by and by returned to table. What was the subject of their conversation during absence, might only too easily be inferred from what followed.

1695.

At ten o'clock the party broke up, and the strangers mounted their horses, to ride to their respective homes. The Laird of Invermay, having observed some mischief brewing in the mind of Newton, endeavoured to make him stay for the night, but without success. The Master, Clavidge, and M'Naughton rode on, with Inchbrakie a little in front of them. When Newton came up, Inchbrakie and he turned a little aside, and Newton was then observed to loose his belt and give his sword to Inchbrakie. Then

riding on to the rest of the party, he contrived to lead Clavidge and M'Naughton a little ahead, and commenced speaking noisily about some trivial matter. Hearing, however, the clashing of two swords behind them, Clavidge and M'Naughton turned back, along with Newton, and there saw the Master of Rollo fallen on his knees, while Inchbrakie stood over him. The latter called out to Newton, 'He has got it.' Clavidge rushed to sustain the sinking man, while Inchbrakie and Newton went apart and interchanged a few hurried sentences. Presently Newton came up again, when Clavidge, perceiving that the Master was wounded to the death, cried out: 'O God, such a horrid murder was never seen!' To this Newton, standing coolly by, said: 'I think not so—I think it has been fair.' The poor Master seems to have died immediately, and then Newton went again aside with Inchbrakie, gave him his own hat, and assisted him to escape. In the morning, when the two swords were found upon the ground, the bloody one proved to be Newton's.

Inchbrakie fled that night to the house of one John Buchanan, whom he told that he had killed the Master of Rollo, adding, with tokens of remorse: 'Wo worth Newton—wo worth the company!' and stating further that Newton had egged him on, and given him a weapon, when he would rather have declined fighting.

Inchbrakie escaped abroad, and was outlawed, but, procuring a remission, returned to his country in 1720.^[142] 1695. James Edmonstoun of Newton was tried (Aug. 6, 1695) for accession to the murder of John Master of Rollo, and condemned to banishment for life.^[143] It is stated that, nevertheless, he carried the royal standard of James VIII. at the battle of Sheriffmuir, and even after that event, lived many years on his own estate in Strathearn.^[144]

The Estates at this date advert to the fact that MAY. sundry lands lying along the sea-coast had been ruined, in consequence of their being overwhelmed with sand driven from adjacent sand-hills, 'the which has been mainly occasioned by the pulling up by the roots of bent, juniper, and broom bushes, which did loose and break the surface and scroof of the sand-hills.' In particular, 'the barony of Cowbin and house and yards thereof, lying in the sheriffdom of Elgin, is quite ruined and overspread with sand,' brought upon it by the aforesaid cause. Penalties

were accordingly decreed for such as should hereafter pull up bent or juniper bushes on the coast sand-hills.^[145]

A remarkable geological phenomenon, resulting in the ruin of a family of Morayland gentry, is here in question. We learn from an act of parliament, passed two months later, that, within the preceding twenty years, two-thirds of the estate of Culbin had been overwhelmed with blown sand, so that no trace of the manor-house, yards, orchards, or mains thereof, was now to be seen, though formerly 'as considerable as many in the country of Moray.' Alexander Kinnaird of Culbin now represented to the parliament, that full cess was still charged for his lands, being nearly as much as the remainder of them produced to him in rent; and he petitioned that his unfortunate estate might, in consideration of his extraordinary misfortune, be altogether exempted from cess. Three years after this date, we hear of the remaining *fourth* part of Culbin as sold for the benefit of the creditors of the proprietor, and himself suing to parliament for a personal protection. In time, the entire ruin of the good old barony was completed. Hugh Miller says: 'I have wandered for hours amid the sandwastes of this ruined barony, and seen only a few stunted bushes of broom, and a few scattered tufts of withered bent, occupying, amid utter barrenness, 1695. the place of what, in the middle of the seventeenth century, had been the richest fields of the rich province of Moray; and, where the winds had hollowed out the sand, I have detected, uncovered for a few yards-breadth, portions of the buried furrows, sorely dried into the consistence of sun-burned brick, but largely charged with the seeds of the common cornfield weeds of the country, that, as ascertained by experiment by the late Sir Thomas Dick Lauder, still retain their vitality. It is said that an antique dove-cot, in front of the huge sand-wreath which enveloped the manor-house, continued to present the top of its peaked roof over the sand, as a foundered vessel sometimes exhibits its vane over the waves, until the year 1760. The traditions of the district testify that, for many years after the orchard had been enveloped, the topmost branches of the fruit-trees, barely seen over the surface, continued each spring languidly to throw out bud and blossom; and it is a curious circumstance, that in the neighbouring churchyard of Dike there is a sepulchral monument of the Culbin family, which, though it does not date beyond the reign of James VI., was erected by a lord and lady of the lost barony, at a time when they seem to have had

no suspicion of the utter ruin which was coming on their house. The quaint inscription runs as follows:

VALTER : KINNAIRD : ELIZABETH : INNES : 1613 :
THE : BVILDARS : OF : THIS : BED : OF : STANE :
AR : LAIRD : AND : LADIE : OF : COVBINE :
QVHILK : TVA : AND : THARS : QVHANE : BRAITHE IS : GANE :
PLEIS : GOD : VIL : SLEIP : THIS : BED : VITHIN :

I refer to these facts, though they belong certainly to no very remote age in the past history of our country, chiefly to shew that in what may be termed the geological formations of the human period, very curious fossils may be already deposited, awaiting the researches of the future. As we now find, in raising blocks of stone from the quarry, water-rippled surfaces lying beneath, fretted by the tracks of ancient birds and reptiles, there is a time coming when, under thick beds of stone, there may be detected fields and orchards, cottages, manor-houses, and churches—the memorials of nations that have perished, and of a condition of things and a stage of society that have for ever passed away.’^[146]

The same advantages of situation which are now thought to adapt Peterhead for a harbour of refuge for storm-beset vessels—placed centrally and prominently on the east coast of Scotland—rendered it very serviceable in affording shelter to vessels pursued by those French privateers which, during the present war, were continually scouring the German Ocean. Very lately, four English vessels returning from Virginia and other foreign plantations with rich commodities, would have inevitably been taken if they had not got into Peterhead harbour, and been protected there by the fortifications and the ‘resoluteness’ of the inhabitants. The spirit manifested in keeping up the defences, and maintaining a constant guard and watch at the harbour, had incensed the privateers not a little; and one Dunkirker of thirty-four guns took occasion last summer to fire twenty-two great balls at the town, nor did he depart without vowing (as afterwards reported by a Scottish prisoner on board) to return and do his endeavour to set it in a flame. The people, feeling their danger, and exhausted with expensive furnishings and watchings, now petitioned the Privy Council for a little military protection—which was readily granted.^[147]

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1695.

As political troubles subsided in Scotland, the spirit of mercantile enterprise rose and gained strength. The native feelings of this kind were of course stimulated by the spectacle of success presented in England by the East India Company, and the active trade carried on with the colonies. These sources of profit were monopolies; but Scotland inquired, since she was an independent state, what was to hinder her to have similar sources of profit established by her own legislature. The dawnings of this spirit are seen in an act passed in the Scottish parliament in 1693, wherein it is declared, 'That merchants may enter into societies and companies for carrying on trade as to any sort of goods to whatsoever countries not being at war with their majesties, where trade is in use to be, and particularly, besides the kingdoms of Europe, to the *East and West Indies*, to the Straits and Mediterranean, or upon the coast of Africa, or elsewhere,' and promising to such companies letters-patent for privileges and other encouragements, as well as protection in case of their being attacked or injured. Amongst a few persons favouring this spirit, was one of notable character and history—WILLIAM PATERSON—a native of Scotland, but now practising merchandise in London—a most active genius, well acquainted with distant countries, not visionary, animated, on the contrary, by sound commercial principles, yet living, unfortunately for himself, before the time when there was either intelligence or means for the successful carrying out of great mercantile adventures. Paterson, in the early part of this year, had gained for himself a historical fame by projecting and helping to establish the Bank of England. For his native country he at the same time projected what he hoped would prove a second East India Company.

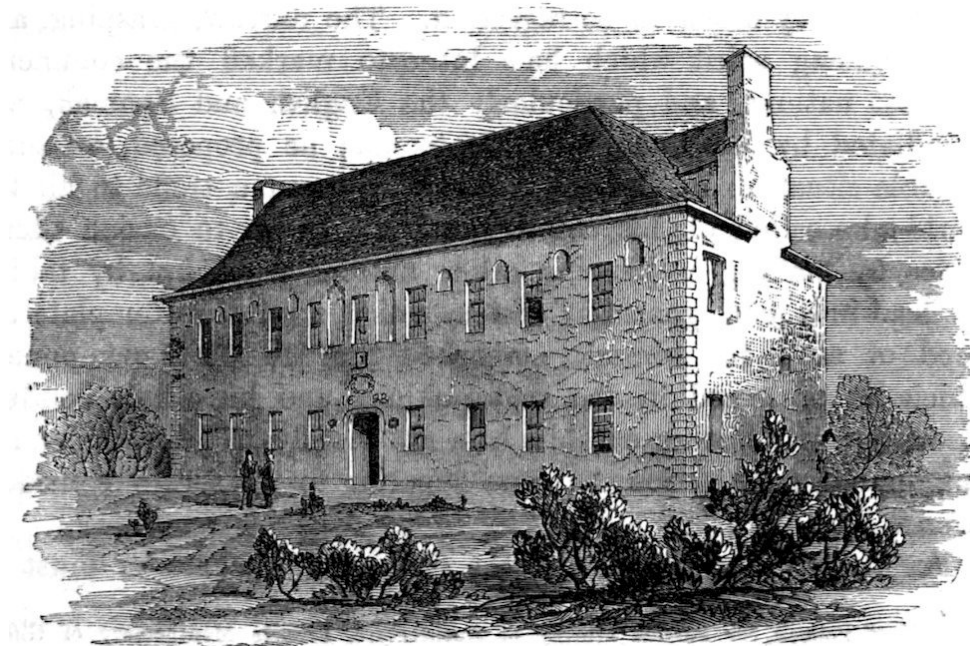
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At the date noted, an act passed the Scottish parliament, forming certain persons named into an incorporation, under the name of *The Company of Scotland Trading to Africa and the Indies*, who should be enabled to 'plant colonies, and build cities and forts, in any countries in Asia, Africa, or America, not possest by any European sovereign,' 'by consent of the natives and inhabitants thereof,' and to take all proper measures for their own protection and the advancement of their special objects, only acknowledging the supremacy of the king by the annual payment of a hogshead of tobacco. It was scrupulously arranged, however, that at least one half of the stock of this Company should be subscribed for by Scotsmen residing either at home or abroad.

Although the war pressed sorely on the resources of England, Paterson calculated securely that there was enough of spare capital and enterprise in London to cause the new Scottish trading scheme to be taken up readily there. When the books for subscription were opened in October, the whole £300,000 offered to the English merchants was at once appropriated. By this time, the fears of the East India Company and of the English mercantile class generally had been roused; it was believed that the Scottish adventurers would compete with them destructively in every place where they now enjoyed a lucrative trade. The parliament took up the cry, and voted that the noblemen and gentlemen named in the Scottish act were guilty of a high crime and misdemeanour. Irritated rather than terrified by this denunciation, these gentlemen calmly proceeded with their business in Scotland. The subscription books being opened on the 26th of February 1696, the taking up of the stock became something like a national movement. It scarcely appeared that the country was a poor one. Noblemen, country gentlemen, merchants, professional men, corporations of every kind, flocked to put down their names for various sums according to their ability, till not merely the £300,000 devoted to 1695. Scotsmen was engaged for, but some additional capital besides.^[148] In a list before me, with the sums added up, I find the total is £336,390 sterling; but, of course, the advance of this large sum was contemplated as to be spread over a considerable space of time, the first instalment of 25 per cent. being alone payable within 1696.

Meanwhile the furious denunciations of the English parliament proved a thorough discouragement to the project in London, and nearly the whole of the stockholders there silently withdrew from it; under the same influence, the merchants of Hamburg were induced to withdraw their support and co-operation, leaving Scotland to work out her own plans by herself.



African Company's House at Bristo Port, Edinburgh.

She proceeded to do so with a courage much to be admired. A handsome house for the conducting of the Company's business was erected; schemes for trade with Greenland, with Archangel, with the Gold Coast, were considered; the qualities of goods, possible 1695. improvements of machinery, the extent of the production of foreign wares, were all the subject of careful inquiry. Under the glow of a new national object, old grudges and antipathies were forgotten. William Paterson, indeed, had set the pattern of a non-sectarian feeling from the beginning, for, writing from London to the Lord Provost of Edinburgh in July 1695, we find him using this strain of language, hitherto unwonted in Scotland: 'Above all, it is needful for us to make no distinction of parties in this great undertaking; but of whatever nation or religion a man be, he ought to be looked upon, if one of us, to be of the same interest and inclination. We must not act apart in anything, but in a firm and united body, and distinct from all other interests whatsoever.'

The design of Paterson presents such indications of a great, an original, and a liberal mind, as to make the obscurity which rests on his history much to be regretted. The narrow, grasping, and monopolising spirit which had hitherto marked the commerce of most nations, and particularly the English and Spanish, was repudiated by this remarkable Scotsman; he proposed, on

some suitable situation in Central America, to open a trade to all the world; he called on his countrymen not to try to enrich themselves by making or keeping other nations poor, but by taking the lead in a more generous system which should contemplate the good of all. He himself embarked the few thousand pounds which he possessed in the undertaking, and his whole conduct throughout its history exhibits him not merely as a man of sound judgment and reflection, but one superior to all sordid considerations.

For the further progress of the Company, the reader must be referred onward to July 1698, when the first expedition 1695. sailed from Leith.

Further to improve the system of correspondence throughout the kingdom, the parliament passed an act for establishing a General Post-office in Edinburgh, under a postmaster-general, who was to have the exclusive privilege of receiving and despatching letters, it being only allowed that carriers should undertake that business on lines where there was no regular post, and until such should be established. The rates were fixed at 2s. Scots for a single letter within fifty Scottish miles, and for greater distances in proportion. It was also ordained that there should be a weekly post to Ireland, by means of a packet at Portpatrick, the expense of which was to be charged on the Scottish office. By the same law, the postmaster-general and his deputies were to have posts, and furnish post-horses along all the chief roads ‘to all persons,’ ‘at 3s. Scots for ilk horse-hire for postage for every Scots mile,’ including the use of furniture and a guide.^[149] It would appear that, on this footing, the Post-office in Scotland was not a gainful concern, for in 1698 Sir Robert Sinclair of Stevenston had a grant of the entire revenue, with a pension of £300 sterling per annum, under the obligation to keep up the posts, and after a little while gave up the charge, as finding it disadvantageous.^[150]

It is to be observed that this post-system for Scotland was provided with but one centre—namely, the capital. Letters coming from London for Glasgow arrived in Edinburgh in the first place, and were thence despatched westwards at such times as might be convenient. At one time, the letters were detained twelve hours in Edinburgh before being despatched to Glasgow! It seems at present scarcely credible that, until the establishment of Palmer’s mail-coaches in 1788, the letters from London to Glasgow

passed by this circuitous route, and not by a direct one, although the western city had by that time a population of fifty thousand, and was the seat of great commercial and manufacturing industry.

Glasgow—which in 1556 stood eleventh in the roll of the Scottish burghs, contributing but £202, while Edinburgh afforded £2650—appears, in the list now made up for a monthly cess to defray the expenses of the war, as *second*, Edinburgh giving £3880; Glasgow, £1800; Aberdeen, £726; Dundee, £560; Perth, £360; Kirkcaldy, £288, &c. ‘To account for this comparative superiority of the wealth of Glasgow at this time, I must take notice that since before the Restoration the inhabitants had been in possession of the sale of both refined and raw sugars for the greater part of Scotland; they had a privilege of distilling spirits from their molasses, free from all duty and excise; the herring-fishery was also carried on to what was, at that time, thought a considerable extent; they were the only people in Scotland who made soap; and they sent annually some hides, linen, &c., to Bristol, from whence they brought back, in return, a little tobacco—which they manufactured into snuff and otherwise—sugars, and goods of the manufacture of England, with which they supplied a considerable part of the whole kingdom.’—*Gibson’s History of Glasgow*, 1777.

It is probable that the population did not then exceed twelve thousand; yet the seeds of that wonderful system of industry, which now makes Glasgow so interesting a study to every liberal onlooker, were already sown, and, even before the extension of English mercantile privileges to Scotland at the Union, there was a face of business about the place—a preparation of power and aptitude for what was in time to come. This cannot be better illustrated than by a few entries in the Privy Council Record regarding the fresh industrial enterprises which were from time to time arising in the west.

December 21, 1699.—A copartnery, consisting of William Cochran of Ochiltree, John Alexander of Blackhouse, and Mr William Dunlop, Principal of the University of Glasgow, with Andrew Cathcart, James Colquhoun, Matthew Aitchison, Lawrence Dunwoodies, William Baxter, Robert Alexander, and Mungo Cochran, merchants of Glasgow, was prepared to set up a woollen manufactory there, designing to make ‘woollen

stuffs of all sorts, such as damasks, half-silks, draughts, friezes, drogats, tartains, craips, capitations, russets, and all other stuffs for men and women's apparel, either for summer or winter.' Using the native wool, they expected to furnish goods equal to any imported, and 'at as easie a rate;' for which end they are 'providing the ablest workmen, airtiests, from our neighbouring nations.' They anticipated that by such means 'a vast soum of ready money will be kept within the kingdom, which these years past has been exported, it being weel known that above ten thousand pound sterling in specie hath been exported from the southern and western parts of this kingdom to Ireland yearly for such stuffs, and 1695. yearly entered in the custom-house books, besides what has been stolen in without entering.'

In the same year, John Adam, John Bryson, John Alexander, and Harry Smith, English traders, had brought home to Glasgow 'English workmen skilled to work all hardware, such as pins, needles, scissors, scythes, tobacco-boxes, and English knives, for which a great quantity of money was yearly exported out of the kingdom.' They designed so far to save this sending out of money by setting up a hardware-manufactory in Glasgow. On their petition, the Privy Council extended to their designed work the privileges and immunities provided by statute for manufactories set up in Scotland.

In the ensuing year, William Marshall, William Gray, John Kirkmyre, and William Donaldson, merchants in Glasgow, projected the setting up of a work there for making of 'pins and needles,^[151] boxes, shears, sysches, knives, and other hardware,' whereby they expected to keep much money within the country, and give employment to 'many poor and young boys, who are and have been in these hard and dear times a burden to the kingdom.' To them likewise, on petition, were extended the privileges of a manufactory.

February, 1701.—Matthew and Daniel Campbell, merchants in Glasgow, designed to set up an additional sugar-work, and, in connection with it, a work 'for distilling brandy and other spirits from all manner of grain of the growth of this kingdom.' With this view, they had 'conduced and engaged several foreigners and other persons eminently skilled in making of sugar and distilling of brandy, &c., whom, with great travel, charges, and expense, they had prevailed with to come to Glasgow.' All this was in order that 'the

nation may be the more plentifully and easily provided with the said commodities, as good as any that have been in use to be imported from abroad,' and because 'the distillery will both be profitable for consumption of the product of the kingdom, and for trade for the coast of Guinea and America, seeing that no trade can be managed to the places foresaid, or the East Indies, without great quantities of the foresaid liquors.'

On their petition, the privileges of a manufactory were granted to them.

1695.

In the progress of manufacturing enterprise in the west, an additional soap-work connected with a glass-work came to be thought of (February 1701). James Montgomery, younger, merchant in Glasgow, took into consideration 'how that city and all the country in its neighbourhood, and further west, is furnished with glass bottles.' The products of the works at Leith and Morison's Haven 'cannot be transported but with a vast charge and great hazard.' He found, moreover, 'ferns, a most useful material for that work, to be very plenty in that country.' There was also, in the West Highlands, great abundance of wood-ashes, 'which serve for little or no other use, and may be manufactured first into good white soap, which is nowhere made in the kingdom to perfection; and the remains of these wood-ashes, after the soap is made, is a most excellent material for making glass.' He had, therefore, 'since March last, been with great application and vast charge seeking out the best workmen in England,' and making all other needful preparations for setting up such a work.

On his petition, the Council endowed his work with the privileges of a manufactory, 'so as the petitioner and his partners may make soap and glass of all kinds not secluded by the Laird of Prestongrange and his act of parliament.'^[152]

The Bank of England, projected by the noted William Paterson, amidst and by favour of the difficulties of the public exchequer during King William's expensive continental wars, may be said to have commenced its actual banking operations on the first day of this year. Considerable attention was drawn to the subject in London, and the establishment of a similar public bank in both Ireland and Scotland became matter of speculation. There was in London an almost retired merchant named John Holland, who thought hereafter of spending his time chiefly in

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rural retirement. To him came one day a friend, a native of Scotland, who was inspired with a strong desire to see a bank established in his country. He desired that Mr Holland would think of it. ‘Why,’ said the latter, ‘I have nearly withdrawn from all such projects, and think only of how I may spend the remainder of my days in peace.’ ‘Think of it,’ said his Scottish friend, ‘and if you will enter into the scheme, I can assure 1695. you of having an act of our parliament for it on your own conditions.’

Mr Holland accordingly drew out a sketch of a plan for a bank in Scotland, which his friend, in a very few days thereafter, had transfused into a parliamentary bill of the Scottish form. He had also spoken, he said, to most of his countrymen of any mercantile importance in London to engage their favour for the scheme. Mr Holland was readily induced to lend his aid in further operations, and the project appears to have quickly come to a bearing, for, little more than six months from the opening of the Bank of England, the act for the Bank of Scotland had passed the native parliament.

In our country, as in England, exchanges and other monetary transactions, such as are now left to banking companies, had hitherto been solely in the hands of a few leading merchants; some such place as the back-shop of a draper in the High Street of Edinburgh, or an obscure counting-room in the Saltmarket of Glasgow, was all that we could shew as a bank before this period; and the business transacted, being proportioned to the narrow resources and puny industry of the country, was upon a scale miserably small. Yet there was now, as we have seen, an expansive tendency in Scotland, and the time seems to have arrived when at least a central establishment for the entire country might properly be tried in the capital.

While, unluckily, we do not know the name of the Scottish gentleman who propounded the scheme to Mr Holland, we are enabled, by the recital of the act, to ascertain who were the first patrons and nurses of the project generally. Of merchants in London, besides the English name of Mr Holland, we find those of Mr James Foulis,^[153] Mr David Nairn, Mr Walter Stuart, Mr Hugh Frazer, Mr Thomas Coutts, and Mr Thomas Deans, who were all of them probably Scotsmen. Of Edinburgh merchants, there were Mr William Erskine, Sir John Swinton, Sir Robert Dickson, Mr George Clark, junior, and Mr John Watson. Glasgow was wholly unrepresented. These individuals were empowered by the act to receive subscriptions

between the ensuing 1st of November and 1st of January. The whole scheme was modest, frugal, and prudential in a high degree. It was contemplated that the Bank of Scotland should 1695. start with a subscribed capital of £1,200,000 Scots—that is, £100,000 sterling, in shares of £1000 Scots each; two-thirds to be subscribed by individuals residing in Scotland, and one-third by individuals residing in England, no person to hold more than two shares. The company was to be under the rule of a governor, deputy-governor, and twenty-four directors, of the last of whom twelve should be English, these being ‘thought better acquainted with the nature and management of a bank than those of Scotland.’ As a further encouragement to English assistance, the act ordained that any person subscribing for a part of the stock, should be considered as *ipso facto* naturalised.

The subscription of the £66,666, 13s. 4d. allowed to Scotland began at the appointed time, the Marquis of Tweeddale, his majesty’s commissioner to parliament, and his son, Lord Yester, being the first who put down their names. The subscription of the remaining £33,333, 6s. 8d. was effected in London in one day, the chief adventurers being Scotsmen resident there. The heads of the concern in Edinburgh felt themselves sadly ignorant of the arrangements required for a public bank, and deemed it absolutely necessary that Mr Holland should come down to advise and superintend their proceedings. He very generously agreed to do so, reside for some time in Edinburgh, and return upon his own charges; while they, as liberally, took care, by a rich present to his wife, that he should be no loser by the journey. He relates^[154] that his proposals were all at first objected to and controverted by the Scotch managers, in consequence of their utter ignorance of banking, yet all in perfect good-humour, and manifestly from a pure desire to get at the expedients which were best; and all were ultimately agreed to. This occasioned a difficulty at starting, and to this was added no small amount of jealous opposition and distrust; nevertheless, Mr Holland remarks that, within two months, and even while the Bank of England was notoriously unable to pay its bills, those of the Scottish establishment had attained to a surprising degree of credit. It may here be remarked, that, ere long, by consent of the English proprietors, the whole twenty-four directors were elected from the Scottish shareholders, leaving thirteen English ones to act as trustees, ‘to manage what affairs the company 1695.

should have at London;’ and in time, when there were no longer so many as thirteen proprietors in England, even this arrangement was abandoned.

Several of the prominent Scottish shareholders were members of the African Company; but it appears that there was anything but a concert or good agreement between the two sets of projectors. Paterson regarded the Bank of Scotland as in some degree a rival to his scheme, and talked of the act appointing it as having been ‘surreptitiously gained.’ While so sanguine about the African Company, he thought the bank unlikely to prove a good thing to those concerned in it, little foreseeing that it would flourish for centuries after the Indian Company had sunk in its first calamitous venture.

The Bank of Scotland set up in a floor in the Parliament Close, with a moderate band of officials, and *ten thousand pounds sterling of paid-up capital*. It had scarcely started, when the African Company added a banking business to its other concerns, meaning thus to overpower the project of Mr Holland. That gentleman was in Edinburgh at the time. He saw that the African Company was in the highest vogue with the public, while few took any notice of his modest establishment. As governor, he prudently counselled that they should make no attempt to enforce the exclusive privilege which the statute had conferred upon them for twenty-one years, but to limit themselves to standing on their guard against ‘that mighty Company,’ lest it should try to injure or ‘affront’ them by a run upon their cash. For this reason, by his advice, twenty thousand pounds of the capital was called up, in addition to the ten thousand lodged at first. The smallness of these sums is amusing to men who know what banking in Scotland now is; yet it appears that from the first the Bank of Scotland had five, ten, twenty, fifty, and hundred pound notes. After a little while, it was found that banking did not succeed with the African Company, chiefly because they lent money in too large sums to their own shareholders, and the Bank of Scotland was then allowed to go on without any competition. The capital lately called up was then paid back, leaving the original sum of £10,000 alone in the hands of the bank.

The chief business of the bank at first was the lending of money on heritable bonds and other securities. The giving of bills of exchange—the great business of the private bankers—was, after deliberation at a general meeting of the ‘adventurers,’ tried, with a view to extending the usefulness of the concern as far as possible. In pursuance of

the same object, and ‘for carrying the circulation of their notes through the greatest part of the kingdom,’ branch-offices were erected at Glasgow, Dundee, Montrose, and Aberdeen, ‘with cashiers and overseers at each place, for receiving and paying money, in the form of inland exchange, by notes and bills made for that purpose.’ But, after what appeared a fair trial, the directors ‘found that *the exchange trade was not proper for a banking company.*’ A bank they conceived to be ‘chiefly designed as a common repository of the nation’s cash—a ready fund for affording credit and loans, and for making receipts and payments of money easy by the company’s notes.’ To deal in exchange was ‘to interfere with the trade and business of private merchants.’ The Bank of Scotland found it ‘very troublesome, unsafe, and improper.’ One reason cited some years afterwards, by a person connected with the bank, was—‘There is so much to be done in that business without doors, at all hours by day and night, with such variety of circumstances and conditions, as are inconsistent with the precise hours of a public office, and the rules and regulations of a well-governed company; and no company like the bank can be managed without fixing stated office-hours for business, and establishing rules and regulations which will never answer the management of the exchange trade.’ As for the branch-offices, the inland exchange contemplated there failed from another cause, strikingly significant of the small amount of commercial intercourse then existing between the capital and the provinces of Scotland. The bank, we are told, found it impracticable to support the four sub-offices ‘but at an expense far exceeding the advantage and conveniency rising therefrom; for, though the company would willingly have been at some moderate charge to keep them up, if they could thereby have effectuated an answerable circulation of bank-notes about these places, for accommodating the lieges in their affairs, yet they found that those offices did contribute to neither of those ends; for the money that was once lodged at any of those places by the cashiers issuing bills payable at Edinburgh, *could not be redrawn thence by bills from Edinburgh*’—of course, because of there being so little owing in Edinburgh to persons residing in the provinces. So, after a considerable outlay in trying the branch-offices, the directors were obliged to give them up, and ‘bring back their money to Edinburgh by horse-carriage.’^[155]

The company’s business was thenceforward for 1695.
many years ‘wholly restricted to lending money, which seems to be the only proper business of a bank, and all to be transacted at Edinburgh.’^[156]

The estates of Duncan Forbes of Culloden, in JULY 17.
sundry parishes near Inverness, having been much wasted in 1689 and 1690, both by the ravages of the king's enemies and the necessary sustentation of his troops, he now gave in a petition shewing that his damages had in all amounted to the sum of £47,400, 6s. 8d. Scots. The parliament recommended his case to the gracious consideration of his majesty,^[157] and the result was a requital, not in money, but in the form of a perpetual privilege to the Laird of Culloden of distilling from the grain raised on his estate of Ferintosh, upon paying of only a small composition in lieu of excise.

The estate of Ferintosh consisted of about eighteen hundred arable acres,^[158] and the produce of barley was so considerable that a very large quantity of whisky came to be produced within its bounds; Hugo Arnot says nearly as much as in all the rest of Scotland together—but Hugo, it must be admitted, is a remarkably unstatistical author. Whatever might be the exact truth, there was certainly a surprising quantity of usquebaugh issued forth from the domains of Forbes, insomuch that *Ferintosh* came to be that *quasi* synonym for whisky which 'Kilbagie' and 'Glenlivet' afterwards were in succession. The privilege of course yielded a large revenue to the family, and in time made ample compensation for all their patriotic sufferings past and potential. In 1784, when at length the government was inclined to purchase it back, there was such a demonstration made of its lucrativeness, that the capital sum of £21,500 assigned for it was thought to be but a poor equivalent.

The minister of Dingwall, in his account of the parish, written a few years after the abolition of the Ferintosh privilege, tells of a remarkable consequence of that measure. During the continuance of the privilege, quarrels and breaches of the peace were abundant among the inhabitants, yielding a good harvest of business to the procurators (i. e. solicitors) of Dingwall. When the privilege ceased, the people became more peaceable, and the prosperity of attorneyism in Dingwall sustained a marked abatement.

It was not so *subscribing* a world at the close of 1695. MAY 16.
the seventeenth century as it is now; yet, poor as our country then was, she kept her heart open for important public objects, and for works in which faith and charity were concerned.

There was no bridge over the Clyde between Bothwell Bridge and Little-gill Bridge, a space of eighteen miles. At Lanark, there was a ferry-boat; but the river was frequently impassable, and there were repeated instances of the whole passengers being swept down and engulfed in the Stonebyres Linn. Arrangements were now made, chiefly by a collection at all the church-doors in the kingdom, for building ‘a sufficient stone bridge’ at the foot of the Inch of Clydeholm—this charitable measure being rendered necessary by the poverty to which the burgh of Lanark had been reduced by spoliation during the late reign, ‘by exactions of fines, free quarters for soldiers, and the like.’

By order of parliament, a collection of money was made, in July 1695, in the parish churches of the kingdom, for the benefit of Andrew Watson, skipper, and eight mariners of his vessel, who, in a voyage from Port Glasgow to Madeira, on the 19th of November in the preceding year, in latitude 38 degrees, had been attacked by two Salee rovers, and by them carried as captives to Mamora, in Marocco. In their petition to parliament, they described themselves as resting in a slavery more cruel and barbarous than they could express, without the proper necessities of life, and ‘above all, deprived of the precious gospel, which they too much slighted when they enjoyed it,’ with no prospect before them but to die in misery and torment, unless they have some speedy relief. The contributions were to be handed to John Spreul, merchant in Glasgow, he finding caution to apply them to their proper end.

‘Those of the Scots nation residing at 1697. APR. 15. Königsberg, in Prussia,’ petitioned the Privy Council by their deputy, Mr Francis Hay, for assistance in building a kirk for their use, for which they had obtained a liberty from the Duke of Brandenburg. A collection at all the church-doors in the kingdom was ordained for this purpose; and it is surprising with what sympathy the poor commons of Scotland would enter on a movement of this kind. We find that the little parish of Spott, in East Lothian, contributed nearly three pounds sterling towards the Königsberg kirk.

At the ‘break of a storm’—by which is meant the melting of a great fall of snow—in November 1698, the southern streams were flooded, and the bridge of Ancrum was so broken and damaged that it could be no longer serviceable. This being the only bridge upon the 1698.

water of Teviot, on an important line of communication between the north and south in the centre of the Borders, and there being no ferry-boat on the river but one seven miles further up, it was most desirable that it should be rebuilt; but the calculated expense was betwixt eight and nine thousand merks (from £450 to £500 sterling), and an act of Council offering a pontage to any one who would undertake this business altogether failed of its object. In these circumstances, the only alternative was a collection at all the church-doors in the kingdom, and permission to make such a levy was accordingly granted by the Privy Council.

The vicissitudes of witchcraft jurisprudence in 1695. AUG. Scotland are remarkable. While Presbyterianism of the puritanic type reigned uncontrolled between 1640 and 1651, witches were tortured to confession and savagely burnt, in vast numbers, the clergy not merely concurring, but taking a lead in the proceedings. During the Cromwell ascendancy, English squeamishness greatly impeded justice in this department, to the no small dissatisfaction of the more zealous. On the Restoration, the liberated energies of the native powers fell furiously on, and got the land in a year or two pretty well cleared of those vexatious old women who had been allowed to accumulate during the past decade. From 1662 to the Revolution, prosecutions for witchcraft were comparatively rare, and, however cruel the government might be towards its own opponents, it must be acknowledged to have introduced and acted consistently upon rules to some extent enlightened and humane with regard to witches—namely, that there should be no torture to extort confession, and no conviction without fair probation. I am not sure if the opposite party would not have ascribed it mainly to the latitudinarianism of Episcopacy, that the whole history of witchcraft, throughout the two last Stuart reigns, betrayed an appearance as if the authorities were not themselves clear for such prosecutions, and, in dictating them, only made a concession to the popular demands.

For a few years after the Revolution, the subject rested in the quiescence which had fallen upon it some years before. But at length the General Assembly began to see how necessary it was to look after witches and charmers, and some salutary admonitions about these offenders were from time to time issued. The office of Lord Advocate, or public prosecutor, had

now fallen into the hands of Sir James Steuart of Goodtrees, a person who shared in the highest convictions of the religious party at present in power, including reverence for the plain meaning of the 1695. text, 'Thou shalt not suffer a witch to live.' The consequence was, that the reign of William III. became a new Witch Period in Scotland, and one involving many notable cases.

In August 1695, two married women, named AUG. 8. M'Rorie and M'Quicken, residing respectively at the Mill-burn and Castlehill of Inverness, were in the Tolbooth of that northern burgh, under a suspicion of being witches; and the Privy Council, seeing the inconvenience of having them brought to an inquest in Edinburgh, issued a commission for their being tried on the spot by David Polson of Kinmilnes, sheriff-depute of Inverness; William Baillie, commissar there; Alexander Chisholm, bailie to Lord Lovat; Duncan Forbes of Culloden; — Cuthbert of Castlehill; and — Duff, provost of Inverness, any three of them to be a quorum. The arrangements for the trial were all carefully specified in this commission; and it was intimated in the end that, 'in case the said judges shall find the said panels guilty of the said horrid crime laid to their charge,' the commissioners should adjudge them 'to be burned or otherwise execute to death.'

In March 1696, a commission was issued in similar terms for the trial of 'Janet Widdrow, in the parish of Kilmacolm, presently prisoner in the Tolbooth of Paisley, alleged guilty of the horrid crime of witchcraft.' Two months later, the Lord Advocate applied to the Council for an extension of power to the commission against Janet Widdrow, as 'it is now informed that the said Janet doth fyle and put out several others, and as there are some persons in these bounds against whom there are probable and pregnant grounds of suspicion.' The request was complied with.

Some months later (December 3, 1696), we hear of some informalities in the process against Janet Widdrow and Isobel Cochrane, and the Lord Advocate was requested to report on the matter.^[159]

So much for the present; but let the reader see onward under February 1697, March 1, 1698, &c.

AUG.

It is remarked by a Presbyterian historian of the popular class, that the time of the 'Persecution' was one of general abundance. God, he believed, did not choose to let his people suffer in more ways than one. But, not long after King William had brought days of religious security, the seasons began to be bad, and much physical suffering ensued. According to this historian, Alexander Peden foretold how it would 1695. be. 'As long,' said he, 'as the lads are upon the hills, you will have bannocks o'er night; but if once you were beneath the bield of the brae, you will have clean teeth and many a black and pale face in Scotland.'^[160]

Nevertheless, the country was so much at its ease in the matter of food in July 1695, that the Estates then passed an act for encouraging the export of grain, allowing it to go out duty free, and ordaining that so it should be whenever wheat was at or under twelve pounds (Scots) the boll; bear, barley, and malt under eight; pease and oats, under six; provided these grains should be carried in Scottish ships.

By an act passed in 1672, it was forbidden to import meal from Ireland while the price in Scotland remained below a certain rate. And that this was a serious matter, is proved by an order of Council in April 1695, for *staving* the grain brought from Carrickfergus in two vessels, named the *James* and the *Isobel*, and for handing over the vessels themselves to Sir Duncan Campbell of Auchinbreck, who had seized them on their way to a Scottish port. It never occurred to a legislator of those days that there was a kind of absurdity, as well as a glaring selfishness, in arranging for his own country receiving while it should not give.

As if to rebuke such policy, the very month after good food prospects had induced the Scottish Estates to permit of exportation, the crop was stricken in one night by an easterly fog, and 'got little more good of the ground.'^[161] The corn was both bad and dear. So early as November, this produced a disorder of the cholera type, accompanied by severe fevers: 'all our old physicians had never seen the like, and could make no help.' It was not in all cases the direct result of bad unwholesome victual, for several, who used old corn, or sent to Glasgow for Irish meal, were nevertheless smitten with the prevailing malady, 'in a more violent and infectious manner than the poorest in the land.'^[162]

The price of victual having, in the western shires, ascended beyond the importation rate fixed in 1672, the Privy Council (December 13), 'in

consideration of the present scarcity in those parts, and the distress ensuing upon it,' gave allowance for the importation of meal, 'but of no other grain,' from Ireland, to 'any port between the mouth of Annan and the head of Kintyre,' between this date and the 1st of February exclusive.

A few days later, the Council took measures for 1695. fining certain baxters of Glasgow and others who had imported grain before the issue of the above licence.

On the 7th of February 1696, the Council extended the period during which Irish meal might be imported to the 15th of April, seeing that the price of the article in the western shires still continued above that set down in the act of 1672. On the 25th of February, the period was farther extended to the 15th of May.

In June, the evil having become more serious, the whole ports of the kingdom were opened to foreign grain, while the usual denunciations were launched against persons keeping up victual in girnels and stacks. Now the summer was passing into autumn, and the weather 1696. AUG. was of such a character, or, as the Privy Council expressed it, the season was so 'unnatural,' 'as doth sadly threaten the misgiving and blasting of the present crop, to the increase of that distress whereby the kingdom is already afflicted.' For these reasons, at the request of the church, a fast was proclaimed for the 25th of August in churches south of the Tay, and on the 8th of September in 'all the planted churches of the rest of this kingdom.'

Viewing the 'pinching straits and wants' of the poor at this crisis, and the demands which these make upon Christian charity and compassion, the Council recommended that on the day of the fast, and the Lord's Day thereafter, there should be a 'cheerful and liberal contribution' at the church-doors for the indigent, 'as the best and most answerable expression of earnestness in the aforesaid duty.' Another edict held out a bounty of one pound Scots for every boll of foreign victual imported.^[163]

Some Englishmen having brought a parcel of corn to the market of Kelso, William Kerr of Chatto's servants exacted from them a custom he had a right to from all victual there sold—this right being one of which his family had been 'in immemorial possession.' The Englishmen resisted the exaction with scorn and violence, and Chatto was obliged to appeal for protection of his right to the Privy Council. Such, however, was at that time

the need for foreign grain, that the Council suspended Chatto's right for the next three months.

Some gentlemen in Edinburgh received JULY 30.
information from their correspondents in Aberdeenshire, that that county and the one next adjacent were nearly destitute of victual, and that 'if they be not speedily supplied, and victual transported 1696.
[thither], a good part of that and the next county will undoubtedly starve.' Already, within the last fortnight, several had died from want. In these circumstances, George Fergusson, bailie of Old Meldrum, and Alexander Smith, writer in Edinburgh, proposed to purchase a thousand or twelve hundred bolls of corn and bear in the north of England, and have it carried by sea to Aberdeen, there to sell it at any rate the proper authorities might appoint above the cost and the expense of carriage, and the surplus to be used for any suitable public object, the proposers having no desire of profit for themselves, 'but allenarly the keeping of the poor in the said shire from starving.' They were anxious, however, to be protected from the risk of losing their outlay, in case the vessel should be taken by the French privateers, and they petitioned the Privy Council accordingly. Their wishes were recommended to the consideration of the Lords of the Treasury.

It was reported from Roxburghshire, on the 22d December 1696, that, in consequence of the 'great frosts, excessive rains, and storms of snow,' the corns in many places 'are neither cut down nor led in, nor is the samen ripened nor fit for any use, albeit it were cut down and led in.' The boll of meal was already at twenty-four pounds Scots, and bear, wheat, and rye at fourteen or fifteen pounds per boll. Already many poor people and honest householders were 'reduced to pinching straits and want,' and still more extreme scarcity was to be expected.

In these circumstances, the Lords of the Privy Council granted permission to Thomas Porteous, late provost, and Robert Ainslie, late bailie in Jedburgh, to import victual from England without duty, *overland*. If any of the said victual should be imported by sea, it would be confiscated for the use of the poor, 'unless it can be made appear that the victual imported by sea was bought and paid for by the product of this kingdom, and not by transporting money out of the kingdom for the same.' ^[164]

1695. Nov. 22.

The Feast of St Cecilia was celebrated in Edinburgh with a concert of vocal and instrumental music, shewing a more advanced state of the art than might have been expected.^[165] The scheme of the performances exhibits a series of pieces by Italian masters, as Corelli and 1695. Bassani, to be executed by first and second violins, flutes and hautbois, and basses; the opening piece giving seven first violins, five second violins, six flutes and two hautbois. There were thirty performers in all, nineteen of them gentlemen-amateurs, and eleven teachers of music. Among the former were Lord Colville, Sir John Pringle, Mr Seton of Pitmedden, Mr Falconer of Phesdo, Mr John (afterwards General) Middleton, Lord Elcho, and Mr John Corse, keeper of the Low Parliament House Records. Some of these gentlemen are described as having been skilled in music, and good players on the violin, harpsichord, flute, and hautbois. Among the professional men were Henry Crumbden, a German, ‘long the Orpheus in the music-school of Edinburgh;’ Matthew M‘Gibbon, father of William M‘Gibbon, noted for his sets of Scots airs with variations and basses; Adam Craig, a good orchestra-player on the violin; Daniel Thomson, one of the king’s trumpets; and William Thomson, a boy, son of the above, afterwards editor of a well-known collection (being the first) of Scots songs, with the music.^[166]

See under 1718 for further notices of the rise and progress of music in Scotland.

In this age, every person of any note who died Nov. became the subject of a metrical elegy, which was printed on a broadside, and cried through the streets. Allan Ramsay, a few years later, makes satiric allusion to the practice:

None of all the rhyming herd
Are more encouraged and revered,
By heavy souls to theirs allied,
Than such who tell who lately died.
No sooner is the spirit flown
From its clay cage to lands unknown,
Than some rash hackney gets his name,
And through the town laments the same.
An honest burgess cannot die,
But they must weep in elegy:
Even when the virtuous soul is soaring
Through middle air, he hears it roaring.^[167]

The poetry of these mortuary verses is usually as bad as the typography, and that is saying a great deal; yet now and then one 1695. falls in with a quaint couplet or two—as, for example, in the piece:

ON THE MUCH TO BE LAMENTED DEATH OF WORTHY
UMPHREY MILNE, WATCHMAKER, BURGESS OF THE
METROPOLITAN CITY OF SCOTLAND, WHO DEPARTED
THIS LIFE, NOVEMBER THE 18TH, 1695.

In gloomy shades of darksome night, where Phœbus hides his head,
I heard an echo cry aloud, that Umphrey Milne was dead.
My stupid senses rose aloft and wakened with a cry,
Let Pegasus, the Muses' horse, go through the air and fly,
To tell the ends of all the earth that he has lost his breath—

.

I will not name his parentage, his breeding, nor his birth;
But he that runs may read his life—he was a man of worth.
He valued not this earth below, although he had it *satis*,
He loved to lay his stock above, and now he is *beatus*.

.

Since none can well describe his worth that in this land doth dwell,
He'll waken at the trumpet's blow, and answer for himself.

The street elegists got a capital subject in July 1700, when Lady Elcho died in youth and beauty, in consequence of her clothes catching fire.^{[\[168\]](#)} Of her it is said:

Were it the custom now to canonise,
We might her in the Alb of Saints comprise.
She either was as free from faults as they,
Or had she faults, the flame purged these away.

As to her ladyship's surviving husband:

Only well-grounded hopes of her blest state
Can his excessive agonies abate,
And the two hopeful boys she left behind,
May mitigate the sorrows of his mind.

The dies and punches required for the new DEC. 13. coinage now about to be issued, were the work of James Clarke, being the first time the work had ever been executed within the kingdom. James had done the whole business in less than a year, 'which used to take no less than

two or three years when executed in England, and cost the general and master of the Mint great attendance and much expenses;’ but as yet ‘he had not received one farthing for his work,’ although it had been agreed that he should have a half of his charges beforehand. The Privy Council, on his petition, *recommended* the Treasury to pay him 1695. two hundred pounds sterling, being the sum agreed upon.^[169]

In Scotland, justice had at this time, as DEC. heretofore, a geographical character. It did not answer for a Highlander to be tried too near the lands of his feudal enemies. If, on the other hand, he was to be tried in Edinburgh, his accusers were likely to find the distance inconveniently great, and prefer letting him go free.

James Macpherson of Invernahaven was under citation to appear before the Lords of Justiciary at Inverness, on a charge of having despoiled John Grant of Conygass of certain oxen, sheep, and other goods in June or July 1689, ‘when Dundee was in the hills.’ The Laird of Grant being sheriff of Inverness, and other Grants engaged in the intended trial, Macpherson, though protesting his entire innocence, professed to have no hope of ‘impartial justice;’ yet he appeared at the citation, and was immediately committed close prisoner to the Tolbooth of Inverness, where he was denied the use of pen and ink, and the access of his friends, so that he ‘expected nothing but a summary execution.’

On his petition, the Privy Council ordained (December 10) that he should be liberated under caution, and allowed to undergo a trial before the Court of Justiciary in Edinburgh. He accordingly presented himself before the Lords on the last day of the year, and was committed to the Tolbooth of Edinburgh. On the 28th of January, he petitioned for entire liberation, as Grant of Conygass failed to appear to urge the prosecution; and, with the concurrence of the Laird of Grant, a member of the Privy Council, this petition was complied with.^[170]

Not content with the proper Physic Garden assigned to him at the end of the North Loch,^[171] James Sutherland had, in February last, extended his operations to ‘the north yard of the Abbey where the great Dial stands, and which is near to the Tennis Court.’ Under encouragement from the Lords of

the Treasury, he had been active in levelling and dressing the ground. He 'had there this summer a good crop of melons;' he had 'raised many other curious annuals, fine flowers, and other plants not ordinary in this country.' He entertained no doubt of being able in a few 1695. years 'to have things in as good order as they are about London,' if supplied with such moderate means as were required to defray charges and make the needful improvements, 'particularly reed-hedges to divide, shelter, and lay the ground *lown* and warm, and a greenhouse and a store to preserve oranges, lemons, myrtles, with other tender greens, and fine exotic plants in winter.'

Fifty pounds sterling had been assigned to Sutherland out of the vacant stipends of Tarbat and Fearn in Ross-shire; but of this only about a half had been forthcoming, and he had expended of his own funds upwards of a thousand pounds Scots (£83, 13s. 4d. sterling). He entreated the Lords of the Privy Council to grant reimbursement and further encouragement, 'without which the work must cease, and the petitioner suffer in reputation and interest, what he is doing being more for the honour of the nation, the ornament and use of his majesty's palace, than his own private behoof.'

The Council recommended the matter to the Lords of the Treasury.^{[\[172\]](#)}

Margaret Balfour, Lady Rollo, had brought her 1696. JAN. 14. husband relief from a burden of forty thousand merks resting on his estate, being a debt owing to her father; and without this relief he could not have enjoyed the family property. She had, according to her own account, endeavoured to live with him as a dutiful and loving wife, and they had children grown up; yet he had been led into a base course of life with a female named Isobel Kininmont, and in October last he had deserted his family, and gone abroad. The lady now petitioned the Privy Council for aliment to herself and her six children. The estate, she said, being eight thousand merks per annum (£444, 8s. 10d.²/₃), she conceived that four thousand was the least that could be modified for her behalf, along with the mansion of Duncrub, which had been assigned to her as her jointure-house.

The Lords of the Council ordained that Lord Rollo should be cited for a particular day, and that for the time past, and till that day, the tenants should pay her ladyship a thousand pounds Scots, she meanwhile enjoying the use of Duncrub House. Lord Rollo, failing to appear on the day cited, was

declared rebel, and the lady's petition was at the same time complied with in its whole extent.^[173]

William Murray, tavern-keeper in the 1696. JAN.
Canongate, was again a prisoner on account of an offensive news-letter. He had suffered close imprisonment for twenty-one weeks, till 'his health is so far decayed, that, if he were any longer where he is, the recovery thereof will be absolutely desperate.' His house having been shut up by the magistrates, his liquors and furniture were spoiled, and 'his poor wife and family exposed to the greatest extremity and hazard of being starved for cold and hunger in this season of the year.' He represented to the Privy Council that he was willing to be tried for any crime that could be laid to his charge. 'Ane Englishman's directing,' however, 'of ane news-letter to him was neither a crime nor any fault of his.... In case there was anything unwarrantable in the letter, the postmaster was obliged in duty to have suppressed the same, after he had read and perused it.' His having, on the contrary, delivered it, 'after he had read and perused it,' was 'sufficient to put him *in bonâ fide* to believe that the letter might thereafter be made patent.'

Murray went on to say that 'this summar usage of himself and his poor family, being far above the greatest severity that ever was inflicted by their Lordships or any sovereign court of the nation, must be conceived to be illegal, arbitrary, and unwarrantable, and contrair both to the claim of right and established laws and inviolable practice of the nation.'

The Council did so far grant grace to Murray as to order him out of jail, but to be banished from Lothian, with certification that, if found in those bounds after ten days, he should be taken off to the plantations.^[174]

The imbecile Laird of Drum was recently dead, JAN. 16.
and the lady who had intruded herself into the position of his wife—Marjory Forbes by name—professed a strong conviction that she would ere long become the mother of an heir to the estate. For this consummation, however, it was necessary that she should have fair-play, and this she was not likely to get. Alexander Irvine of Murtle, heir of tailzie to the estate in default of issue of the late laird, had equally strong convictions regarding the hopes which Lady Drum asserted herself to entertain. He deemed himself entitled to take immediate possession of the castle, while Marjory,

on her part, was resolved to remain there till her expected accouchement. Here arose a fine case of contending views regarding a goodly succession, worthy to be worked out in the best style of the country and the time.

1696.

Marjory duly applied to the Privy Council with a representation of her circumstances, and of the savage dealings of Murtle. When her condition and hopes were first spoken of some months ago, ‘Alexander Irvine, pretended heir of tailzie to the estate of Drum’—so she designated him—‘used all methods in his power to occasion her abortion, particularly by such representations to the Privy Council as no woman of spirit, in her condition, could safely bear.’ When her husband died, and while his corpse lay in the house, Murtle ‘convocat a band of armed men to the number of twenty or thirty, with swords, guns, spears, fore-hammers, axes, and others, and under silence of night did barbarously assault the house of Drum, scaled the walls, broke up the gates and doors, teared off the locks, and so far possessed themselves of all the rooms, that the lady is confined in a most miserable condition in a remote, obscure, narrow corner, and no access allowed to her but at an indecent and most inconvenient back-entry, not only in hazard of abortion, but under fear of being murdered by the said outrageous band of men, who carouse and roar night and day to her great disturbance.’

The lady petitioned that she should be left unmolested till it should appear in March next whether she was to bring forth an heir; and the Lords gave orders to that effect. Soon after, on hearing representations from both parties, four ladies—namely, the spouses of Alexander Walker and John Watson of Aberdeen, on Murtle’s part, and the wife of Count Leslie of Balquhain and the Lady Pitfoddels, on Lady Drum’s part—were appointed to reside with her ladyship till her delivery, Murtle meanwhile keeping away from the house.^[175]

If I am to believe Mr Burke, Marjory proved to have been under a fond illusion, and as even a woman’s tenacity must sometimes give way, especially before decrees of law, I fear that Murtle would have her drummed out of that fine old Aberdeenshire château on the ensuing 1st of April.

Sir Robert Grierson of Lagg, the notable ‘persecutor,’ who had been not a little persecuted himself after the Revolution as a person dangerous to the new government, was now in trouble on a different 1696. score. He was accused of the crimes of ‘clipping of good money and coining of false money, and vending the samer when clipped and coined,’ inferring the forfeiture of life, land, and goods.

It appears that Sir Robert had let his house of Rockhill to a person named John Shochon, who represented himself as a gunsmith speculating in new modes of casting lead shot and stamping of cloth. A cloth-stamping work he had actually established at Rockhill, and he kept there also many engraving tools which he had occasion to use in the course of his business. But a suspicion of clipping and coining having arisen, a search was made in the house, and though no false or clipped coin was found, the king’s advocate deemed it proper to prosecute both Shochon and his landlord on the above charge.

The two cases were brought forward separately JUNE 22. at the Court of Justiciary, and gave rise to protracted proceedings; but the result was, that Sir Robert and Shochon appeared to have been denounced by enemies who, from ignorance, were unable to understand the real character of their operations, and the prosecution broke down before any assize had been called. [176]

Shochon was residing in Edinburgh in 1700, and then petitioned parliament for encouragement to a manufactory of arras, according to a new method invented by him, ‘the ground whereof is linen, and the pictures thereof woollen, of all sorts of curious colours, figures, and pictures.’ [177]

‘Lagg’—who had drowned religious women at stakes on the sands of Wigton—had the fortune to survive to a comparatively civilised age. He died in very advanced life, at Dumfries, about the close of 1733.

Some printed copies of certain ‘popish books’— APR. 10. namely, *The Exposition of the True Doctrine of the Catholic Church in Matters of Controversy*, *An Answer to M. Dereden’s Funeral of the Mass*, and *The Question of Questions, which is, Who ought to be our Judges in all Differences in Religion?*—having been seized upon in a private house in Edinburgh, and carried to the lodging of Sir Robert Chiesley, lord provost of the city, the Privy Council authorised Sir Robert ‘to cause burn the said

books in the back-close of the town council by the hand of the common executioner, until they be consumed to ashes.'

Six months later, the Privy Council ordered a 1696. search of the booksellers' shops in Edinburgh for books 'atheistical, erroneous, profane, or vicious.'

We find the cause of this order in the fact, that John Fraser, book-keeper to Alexander Innes, factor, was before the Council on a charge from the Lord Advocate of having had the boldness, some day in the three preceding months, 'to deny, impugn, argue, or reason against the being of a God;' also he had denied the immortality of the soul, and the existence of a devil, and ridiculed the divine authority of the Scriptures, 'affirming they were only made to frighten folks and keep them in order.'

Fraser appeared to answer this charge, which he did by declaring himself of quite a contrary strain of opinions, as became the son of one who had suffered much for religion's sake in the late reigns. He had only, on one particular evening, when in company with the simple couple with whom he lived, recounted the opinions he had seen stated in a book entitled *Oracles of Reason*, by Charles Blunt; not advertng to the likelihood of these persons misunderstanding the opinions as his own. He professed the greatest regret for what he had done, and for the scandal he had given to holy men, and threw himself upon their Lordships' clemency, calling them to observe that, by the late act of parliament, the first such offence may be expiated by giving public satisfaction for removing the scandal.

The Lords found it sufficiently proven, that Fraser had argued against the being of a God, the persons of the Trinity, the immortality of the soul, and the authority of the Scriptures, and ordained him to remain a prisoner 'until he make his application to the presbytery of Edinburgh, and give public satisfaction in sackcloth at the parish kirk where the said crime was committed.' Having done his penance to the satisfaction of the presbytery, he was liberated on the 25th of February.

The Council at the same time ordered the booksellers of Edinburgh to give in exact catalogues of the books they had for sale in their shops, under certification that all they did not include should be confiscated for the public use.^{[\[178\]](#)}

In the austerity of feeling which reigned through the Presbyterian Church on its re-establishment, there had been but little disposition to assume a clerical uniform, or any peculiar pulpit vestments. It is reported, that when the noble commissioner of one of the first General Assemblies was found fault with by the brethren for wearing a scarlet cloak, he told them he thought it as indecent for them to appear in gray cloaks and cravats.^[179] When Mr Calamy visited Scotland in 1709, he was surprised to find the clergy generally preaching in ‘neckcloths and coloured cloaks.’^[180] We find at the date here marginally noted, that the synod of Dumfries was anxious to see a reform in these respects. ‘The synod’—so runs their record—‘considering that it’s a thing very decent and suitable, so it hath been the practice of ministers in this kirk formerly, to wear black gowns in the pulpit, and for ordinary to make use of bands, do therefore, by their act, recommend it to all their brethren within their bounds to keep up that laudable custome, and to study gravitie in their apparel and deportment every manner of way.’

APR. 15.

1696.

From a poem of this time, in which a Fife laird, returned from the grave, gives his sentiments on old and new manners, we learn that formerly

We had no garments in our land,
 But what were spun by th’ goodwife’s hand,
 No drap-de-berry, cloths of seal,
 No stuffs ingrained in cochineal;
 No plush, no tissue, cramosie,
 No China, Turkey, taffety;
 No proud Pyropus, paragon,
 Or Chackarally there was none;
 No figurata, water shamlet,
 No Bishop sattin, or silk camblet;
 No cloth of gold or beaver hats,

.

No windy-flourished flying feathers,
 No sweet, permusted shambo leathers, &c.

And things were on an equally plain and simple footing with the ladies; whereas now they invent a thousand toys and vanities—

As scarfs, shefroas, tuffs, and rings,
 Fairdings, facings, and powderings,
 Rebats, ribands, bands, and ruffs,
 Lapbends, shagbands, cuffs, and muffs;
 Folding o’erlays, pearling sprigs,

Atries, fardingales, periwigs;
Hats, hoods, wires, and also kells,
Washing balls and perfuming smells;
French gowns cut and double-banded,
Jet rings to make her pleasant-handed;
A fan, a feather, bracelets, gloves—
All new-come busks she dearly loves.^[181]

The spirit which dictated these lines was one 1696.
which in those days forced its way into the legislation of the country. In September 1696, an overture was read before parliament ‘for ane constant fashion of clothes for men, and another for ane constant fashion of clothes for women.’ What came of this does not appear; but two years later, the parliament took under consideration an act for restraining expenses of apparel. There was a debate as to whether the prohibition of gold and silver on clothes should be extended to horse-furniture, and carried that it should. Some one put to the vote whether gold and silver lace manufactured within the kingdom might not be allowed, and the result was for the negative. It was a painful starving-time, and men seem to have felt that, while so many were wretched, it was impious for others to indulge in expensive vanities of attire. The act, passed on the 30th August 1698, discharged the wearing of ‘any clothes, stuffs, ribbons, fringes, tracing, loops, *agreements*, buttons, made of silver or gold thread, wire, or philagram.’

Two young men, Matthew M’Kail, son of an APR.
advocate of the same name, and Mr William Trent, writer, hitherto intimate friends, quarrelled about a trifling matter, and resolved to fight a duel. Accompanied by John Veitch, son of John Veitch, ‘presentee of the signator,’ and William Drummond, son of Logie Drummond, youths scarcely out of their minority, they went two days after—a Sunday having intervened—to the park of Holyrood Palace, and there fought—it does not appear with what weapons—but both were slain on the spot; after which the seconds absconded.^[182]

A preacher named John Hepburn, who had been JULY.
called to the parish of Urr in Galloway, before the regular establishment of the church in 1690, continued ever since to minister there and in the neighbouring parish of Kirkgunzeon, without any proper authority.

Enjoying the favour of an earnest, simple people, and cherishing scruples about the established church, he maintained his 1696.
ground for several years, in defiance of all that presbyteries, synods, and general assemblies could do for his suppression. Holding a fast amongst his own people (June 25, 1696), he was interrupted by a deputation from the presbytery of Dumfries, but nevertheless persisted in preaching to his people in the open air, though, as far as appears, without any outward disorderliness. It affords a curious idea of the new posture of Presbyterianism in Scotland, that one of the deputation was Mr William Veitch, a noted sufferer for opinion in the late reign.

The Privy Council took up this affair as a scandalous tumult and riot, and had Mr Hepburn brought before them, and condemned to give bond under a large forfeiture that he would henceforth live in the town of Brechin and within two miles of the same—a place where they of course calculated that he could do no harm, the inhabitants being so generally Episcopalian. Meanwhile, he was laid up in the Old Tolbooth, and kept there for nearly a month. There were people who wished to get in to hear him. There were individuals amongst his fellow-prisoners also anxious to listen to his ministrations. The Council denied the necessary permission. We hear, however, of Mr Hepburn preaching every Sunday from a window of his prison to the people in the street. He was then conducted to Stirling Castle, and kept in durance there for several months. It was three years before he was enabled to return to his Galloway flock.^[183] The whole story reads like a bit of the history of the reign of Charles II. misplaced, with presbyteries for actors instead of prelates.

A crew of English, Scots, and foreigners, under SEP.
an Englishman named Henry Evory or Bridgman, had seized a ship of forty-six guns at Corunna, and had commenced in her a piratical career throughout the seas of India and Persia. Having finally left their ship in the isle of Providence, these pirates had made their way to Scotland, and there dispersed, hoping thus to escape the vengeance of the laws which they had outraged. The Privy Council issued a proclamation, commanding all officers whatsoever in the kingdom to be diligent in trying to catch the pirates, ‘who may probably be known and discovered by the great quantities of Persian and Indian gold and silver which they have with them,’

a hundred pounds of reward being offered for apprehending Bridgman, and fifty for each of the others.^[184]

1696.

Since the Reformation, there had been various public decrees for the establishment of schools throughout Scotland; but they had been very partially successful in their object, and many parishes continued to be without any stated means of instruction for the young. The Presbyterian or ultra-Protestant party, sensible how important an ability to read the Scriptures was for keeping up a power in the people to resist the pretensions of the Romish Church, had always, on this account, been favourable to the maintenance of schools whereby the entire people might be instructed. Now, that they were placed securely in ascendancy, they took the opportunity to obtain a parliamentary enactment ‘for settling of schools,’ by virtue of which it was ordered that the heritors (landowners) of each parish in the realm should ‘meet and provide a commodious house for a school, and settle and modify a salary to a schoolmaster, which shall not be under one hundred nor above two hundred merks [£5, 11s. 1d.⅓ and £11, 2s. 2d.⅔].’^[185] It was thus made a duty incidental to the possession of land in each parish, that a school and schoolmaster should be maintained, and that the poorest poor should be taught; and, in point of fact, the community of Scotland became thus assured of access to education, excepting in the Highlands, where the vast extent of the parishes and other circumstances interfered to make the act inoperative. The history of the commencement of our parochial school establishment occupies but a page in this record; but the effects of the measure in promoting the economic and moral interests of the Scottish people are indefinite. It would be wrong to attribute to that act solely, as has sometimes been done, all the credit which the nation has attained in arts, in commerce, in moral elevation, and in general culture. But certainly the native energies have been developed, and the national moral character dignified, to a marked extent, through the means of these parish schools—an effect the more conspicuous and unmistakable from the fact of there having been no similar institution to improve the mass of society in the sister-kingdom.

SEP.

It is a rather whimsical association of ideas, that Sir David Dunbar, the hero of the sad story of the

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1696.

Bride of Baldoon^[186]—the bridegroom in the case—was an active improver of the wretched rural economy of his day. Some years before his unfortunate death in 1682, he had formed the noted *park* of Baldoon, for the rearing of a superior breed of cattle, with a view to the demands of the market in England. It was, as far as I can learn, the first effort of the kind made in Scotland, and the example was not without imitation in various parts of the southwestern province of Scotland.

Andro Sympson, in his gossiping *Description of Galloway*, written before the Revolution, speaks of the park of Baldoon as a rich pastoral domain, of two and a half miles in length and one and a half in breadth, to the south of the river Blednoch. It ‘can,’ he says, ‘keep in it, winter and summer, about a thousand bestial, part whereof he [Sir David Dunbar] buys from the country, and grazeth there all winter, other part whereof is his own breed; for he hath nearly two hundred milch kine, which for the most part have calves yearly. He buys also in the summer-time from the country many bestial, oxen for the most part, which he keeps till August or September; so that yearly he either sells at home to drovers, or sends to St Faith’s, and other fairs in England, about eighteen or twenty score of bestial. Those of his own breed at four year old are very large; yea, so large, that, in August or September 1682, nine-and-fifty of that sort, which would have yielded betwixt five and six pound sterling the piece, were seized upon in England for Irish cattle; and because the person to whom they were intrusted had not witnesses there ready at the precise hour to swear that they were seen calved in Scotland, they were, by sentence of Sir J. L. and some others, who knew well enough that they were bred in Scotland, knocked on the head and killed.’

The estate of Baldoon having, by the marriage of the heiress, Mary Dunbar, come into the possession of Lord Basil Hamilton, a younger son of the Duke and Duchess of Hamilton, we now find that young nobleman petitioning the Privy Council for permission to import from Ireland ‘six score young cows of the largest breed for making up his lordship’s stock in the park of Baldoon,’ he giving security that he would import no more, and employ these for no other end.^[187]

The example of the Baldoon park was followed by the Laird of Lochnaw and other great proprietors, and the growing importance of the cattle-rearing trade of Galloway is soon after marked by a

demand for a road whereby the stock might be driven to the English market. In June 1697, the matter came before the Privy Council. It was represented that, while there was a customary way between the burgh of New Galloway and Dumfries, there was no defined or made road. It was the line of passage taken by immense herds of cattle which were continually passing from the green pastures of the Galloway hills into England—a branch of economy held to be the main support of the inhabitants of the district, and the grand source of its rents. Drovers of cattle are, however, apt to be troublesome to the owners and tenants of the grounds through or near which they pass; and such was the case here. ‘Several debates have happened of late in the passage of droves from New Galloway to Dumfries, the country people endeavouring by violence to stop the droves, and impose illegal exactions of money upon the cattle, to the great damage of the trade; whereby also riots and bloodsheds have been occasioned, which had gone greater length, if those who were employed to carry up the cattle had not managed with great moderation and prudence.’

On a petition from the great landlords of the district, James Earl of Galloway, Lord Basil Hamilton, Alexander Viscount of Kenmure, John Viscount of Stair, Sir Andrew Agnew of Lochnaw, Sir Charles Hay of Park, &c., a commission was appointed by the Privy Council ‘to make and mark a highway for droves frae New Galloway to Dumfries,’ holding ‘the high and accustomed travelling way betwixt the said two burghs.’^[188]

Amongst Sir David Dunbar’s imitators, it appears that we have to class Sir George Campbell of Cessnock, in Ayrshire, so noted for his sufferings under the late reign. The parks of Cessnock had formerly been furnished with ‘ane brood of great cattle’ and a superior breed of horses, both from Ireland; but, on the unjust forfeiture of the estate, the stock had been taken away and destroyed, so that it was ‘entirely decayed out of that country.’ Sir George, to whom the estate had been restored at the Revolution, obtained, in March 1697, permission from the Privy Council ‘to import from Ireland sixty cows and bulls, thretty-six horses and mares, and six score of sheep, for plenishing of his park.’ Soon after, the Council

1696.

recalled the permission for the sheep.

The rolls of parliament and the books of the

OCT.

Privy Council contain about this time abundant proofs of the tendency to

manufacturing enterprise. Sir John Shaw of Greenock and others were encouraged in a proposed making of salt ‘after a new manner.’ There was a distinct act in favour of certain other enterprising persons who designed to make ‘salt upon salt.’ John Hamilton, merchant-burgess of Edinburgh, was endowed with privileges for an invention of his, for mills and engines to sheel and prepare barley. James Melville of Halhill got a letter of gift to encourage him in a manufacture of sail-cloth. Inventions for draining of mines are frequently spoken of.

William Morison of Prestongrange was desirous of setting up a glass-work at a place within the bounds of his estate, called Aitchison’s Haven or New Haven, ‘for making of all sorts of glass, as bottles, vials, drinking, window, mirror, and warck [?] glasses.’ ‘In order thereto, he conduced with strangers for carrying on the said work, who find great encouragement for the same, within the said bounds.’ On his petition, this proposed work, with the workmen and stock employed, was endowed by the Privy Council (April 27, 1697) with the privileges accorded to manufactories by acts of parliament.

Connected with Prestongrange in this business was a French refugee named Leblanc, who had married a Scotchwoman, and got himself entered as a burgess and guild-brother of Edinburgh, designing to spend the remainder of his life in the country of his adoption. It was his part to polish the glass for the making of mirrors, an art never before practised in Scotland; and this business he carried on in a workshop in the Canongate. It was found, however, that ‘the glasses must have mullers and head-pieces of timber, and sometimes persons of honour and quality desired also tables, drawers, and stands agreeable to the glass for making up a suit.’ Leblanc offered to employ for this work the wrights of the corporation of the Canongate; but they plainly acknowledged that they could not execute it. He was obliged to employ wrights of Edinburgh. Then came forth the same Canongate wrights, with complaints of this infraction of their rights. It was a plain case of the dog in the manger—and the consequence was the stoppage of a branch of industry of some importance to the community. On Leblanc’s petition, the Privy Council gave him 1696. permission to make up the upholstery work connected with his mirrors, on the simple condition of his making a first offer of it to the wrights of the Canongate.

One George Sanders had obtained, in 1681, an exclusive privilege, for seventeen years, for a work for the twisting and throwing all sorts of raw silk; but he never proceeded with the undertaking. ‘Joseph Ormiston and William Elliot, merchants,’ proposed (June 1697) to set up such a work, which they conceived would be useful in giving employment to the poor, and in opening a profitable trade between Scotland and Turkey; also in ‘advancing the manufactories of buttons, galloons, silk stockings, and the like.’ They designed ‘to bring down several families who make broad silks, gold and silver thread, &c.,’ and entertained ‘no doubt that many of the Norwich weavers may be encouraged to come and establish in this country, where they may live and work, at easy rates.’ On their petition, the adventurers had their proposed work invested by the Privy Council with the privileges and immunities of a manufactory.

On the 22d February 1698, David Lord Elcho, for himself and copartners, besought the favour of the Council for a glass-work which they proposed to erect at Wemyss. They were to bring in strangers expert in the art, and did not doubt that they would also afford considerable employment to natives and to shipping; besides which, they would cause money to be kept at home, and some to come in from abroad. They asked no monopoly or ‘the exclusion of any others from doing their best, and setting up in any other part of the kingdom they please;’ all they craved was a participation in the privileges held out by the acts of parliament. Their petition was cordially granted.

Viscount Tarbat and Sir George Campbell of Cessnock, ‘being resolved to enter into a society for shot-casting, whereby not only the exportation of money for foreign shot will be restrained, but also the product of our own kingdom considerably improved,’ petitioned (February 1698) for and obtained for the said society all the privileges accorded by statute to a manufactory for nineteen years.

It was well known, said a petition in September 1698, ‘how much the burgh of Aberdeen and inhabitants thereof had in all times been disposed to the making of cloth and stuffs, stockings, plaids, and all other profitable work in wool.’ It therefore appeared reasonable to certain persons of that burgh—Thomas Mitchell, John Allardyce, Alexander Forbes, John Johnstone, and others—that a woollen manufactory 1696. should be set up there, and they petitioned the Privy Council for permission

to do so, and to have the usual privileges offered by the statute; which were granted.^[189]

In 1703, a cloth manufactory was in full operation at Gordon's Mills, near Aberdeen, under the care of Mr William Black, advocate. Though established but a year ago, it already produced broad cloths, druggets, and stuffs of all sorts, 'perhaps as good in their kind as any that have been wrought in this kingdom.' Mr Black had French workmen for the whitening and scouring of his cloths, and boasted that he had created a new trade in supplying the country people with sorted fleece-wool, 'which is a great improvement in itself.' Amongst his products were 'half-silk serges, damasks, and plush made of wool, which looks near as fine as that made of hair.' Unlike most enterprisers in that age, he desired to breed up young people who might afterwards set up factories of the same kind, 'which,' he said, 'will be the only way to bring our Scots manufactories to reasonable prices.' But he did not propose to do this upon wholly disinterested principles. He petitioned parliament to make a charge upon the county of Aberdeen, for the support of boys working at his manufactory, during the first five years of their apprenticeships,^[190] and his desire was in a modified manner complied with.

About the same time, William Hog of Harcarse had a cloth manufactory at his place in Berwickshire, where he 'did make, dress, and lit as much red cloth as did furnish all the Earl of Hyndford's regiment of dragoons with red cloaths this last year, and that in a very short space.'^[191]

It would appear that up to 1703 there was no such thing in Scotland as a work for making earthenware; a want which, of course, occasioned 'the yearly export of large sums of money out of the kingdom,' besides causing all articles of that kind to be sold at 'double charges of what they cost abroad.' William Montgomery of Macbie-hill, and George Linn, merchant in Edinburgh, now made arrangements for setting up 'a Pot-house and all conveniences for making of laim, purslane, and earthenware,' and for bringing home from foreign countries the men required for such a work. As necessary for their encouragement in this undertaking, the parliament gave them an exclusive right of making laim, purslane,^[192] and earthenware for fifteen years.

1696.

DEC 1.

On a low sandy plain near the mouth of the Eden, in Fife, in sight of the antique towers of St Andrews, stands the house of Earlshall, now falling into decay, but in the seventeenth century the seat of a knightly family of Bruces, one of whom has a black reputation as a persecutor, having been captain of one of Claverhouse's companies. The hall in the upper part of the mansion—a fine room with a curved ceiling, bearing pictures of the virtues and other abstractions, with scores of heraldic shields—testifies to the dignity of this family, as well as their taste. Some months before this date, Andrew Bruce of Earlshall had granted to his son Alexander a disposition to the corns and fodder of the estate, as also to those of the 'broad lands of Leuchars;' and Alexander had entered into a bargain for the sale of the produce to John Lundin, younger of Baldastard, for the use of the army. Against this arrangement there was a resisting party in the person of Sir David Arnot of that Ilk.

Sir David, on the day noted, came with a suitable train to Earlshall, and there, with many violent speeches, proceeded to possess himself of the keys of the barns and stables; caused the corns to be thrashed; brought his own oxen to eat part of the straw; and finally forced Earlshall's tenants to carry off the whole grain to Pitlithie. The produce thus disposed of is described as follows: 'The Mains [home-farm] of Earlshall paid, and which was in the corn-yard at the time, six chalders victual, corn, and fodder, estimat this year [1697] at fourteen pounds the boll, is ane thousand three hundred and forty-four pounds Scots; and nine chalders of teind out of the lands of Leuchars-Bruce, corn and fodder, estimat at the foresaid price to two thousand and sixteen pounds.'

The Privy Council took up this case of 'high and manifest oppression and bangstrie,' examined witnesses on both sides, and then remitted the matter to the Court of Session.

A similar case of violently disputed rights occurred about the same time. John Leas had a tack from the Laird of Brux in Aberdeenshire, for a piece of land called Croshlachie, and finding it a prosperous undertaking, he was 'invyed' in it by Mr Robert Irving, minister of Towie. The minister frequently threatened Leas to cause the laird 1696. dispossess him of his holding, possibly expecting to harass him out of it. Leas stood his ground against such threats; but, being simple, he was induced to let Mr Irving have a sight of his 'assedation,' which the minister

no sooner got into his hands, than he tore it in pieces. A few weeks after, May 8, 1693, Irving came to Croshlachie, and causing men to divide the farm, took possession of one part, put his cattle upon it, and pulled down two houses belonging to Leas, who was thus well-nigh ruined.

Still unsatisfied with what he had gained, Irving came, in March 1694, with Roderick Forbes, younger of Brux, whom he had brought over to his views, and made a personal attack upon Leas, as he was innocently sowing his diminished acres. 'Tying his hands behind his back, [Irving] brought him off the ground, and carried him prisoner like a malefactor to his house.' While they were there preparing papers which they were to force him to subscribe, Leas 'did endeavour to shake his hands loose of their bonds; but Mr Robert Irving came and ordered the cords to be more severely drawn, which accordingly was done.' He was detained in that condition 'till he was almost dead,' and so was compelled to sign a renunciation of his tack, and also a disposition of the seed he had sown.

On a complaint from Leas coming before the Privy Council, Irving and young Brux did not appear; for which reason they were denounced rebels. Afterwards (June 16, 1698), they came forward with a petition for a suspension of the decret, alleging that they had come to the court, but were prevented from appearing by accident. 'It was the petitioners' misfortune,' they said, 'that the time of the said calling they were gone down to the close, and the macers not having called over the window, or they not having heard, Maister Leas himself craved [that] the letters might be found orderly proceeded.' On this petition, the decret was suspended.

In August 1697, we are regaled with an example of female 'bangstrie' in an elevated grade of society. It was represented to the Privy Council that the wife of Lumsden of Innergellie, in Fife—we may presume, under some supposed legal claim—came at midnight of the 22d July, with John and Agnes Harper, and a few other persons, to the house of Ellieston, in Linlithgowshire—ostensibly the property of the Earl of Rutherglen—which was fast locked; and there, having brought ladders with them, they scaled the house, and violently broke open the windows, at which they entered; after which they broke open the doors. Having thus 1696. taken forcible possession of the mansion, they brought cattle, which they turned loose, to eat whatever fodder the place afforded.

On the petition of the Earl of Rutherglen, this affair came before the Council, when, the accused lady not appearing, the Lords gave orders that she and her servants should be cast out of the house of Ellieston, and that John and Agnes Harper should pay a hundred pounds Scots as damages, and to be confined (if caught) until that sum was paid.^{[\[193\]](#)}

Jean Douglas, styled Lady Glenbucket, as being 1697.
the widow of the late Gordon of Glenbucket, had been endowed by her husband, in terms of her marriage-contract, with a thousand pounds Scots of free rent out of the best of his lands ‘nearest adjacent to the house.’ At his death in 1693, she ‘entered on the possession of the mains and house of Glenbucket, and uplifted some of the rents, out of which she did aliment her eight children till May [1696],’ when an unhappy interruption took place in consequence of a dispute with her eldest son about their respective rights.

According to the complaint afterwards presented by the lady—though it seems scarce credible—‘she was coming south to take advice regarding her affairs, when her son, Adam Gordon, followed her with an armed force, and, on her refusal to comply with his request that she would return, avowed his determination to have her back, though he should drag her at a horse’s tail. Then seizing her with violence, he forced her to return to Glenbucket, three miles, and immured her there as a prisoner for thirty days, without attendance or proper aliment; indeed, she could have hardly eaten anything that was offered for fear of poison; and ‘if it had not been for the charity of neighbours, who in some part supplied her necessity, she must undoubtedly have starved.’ The young man meanwhile possessed himself of everything in the house, including the legal writings of her property; he left her and her children no means of subsistence, ‘yea, not so much as her wearing clothes,’ and she ‘was glad to escape with her life.’ He also proceeded to uplift her rents.

The lady craved redress from the Privy Council, which seems to have become satisfied of the truth of her complaint; but 1697.
what steps they took in the case does not appear.^[194]

Every now and then, amidst the mingled 1696. DEC. 12.
harmonies and discords proceeding from the orchestra of the national life, we hear the deep diapason of the voice of the church, proclaiming universal hopeless wickedness, and threatening divine judgments. At this time, a solemn fast was appointed to be held on the 21st of January next, to deprecate ‘the wrath of God,’ which is ‘very visible against the land, in the judgments of great sickness and mortality in most parts of the kingdom, as

also of growing dearth and famine threatened, with the imminent hazard of an invasion from our cruel and bloody enemies abroad; all the just deservings and effects of our continuing and abounding sins, and of our great security and impenitency under them.’

It was while the public mind was excited by the complicated evils of famine and threatened invasion, that an importation of atheistical books was found to have been made into Edinburgh, and several young men were denounced to the authorities as having become infected with heterodox opinions. At a time when every public evil was attributed to direct judgment for sins, we may in some faint degree imagine how even an incipient tendency to irreligion would be looked upon by the more serious-minded people, including the clergy, and how just and laudable it would appear to take strong measures for the repression of such wickedness. We have to remember, too, the temper of Sir James Steuart, the present public prosecutor. One delinquent—John Fraser—had, upon timely confession and penitence, been lightly dealt with; but there was another youthful offender, who, meeting accusation in a different frame of mind, at least at first, was to have a different fate.

Thomas Aikenhead, a youth of eighteen, ‘son to the deceased James Aikenhead, chirurgeon in Edinburgh,’ was now tried by the High Court of Justiciary for breach of the 21st act of the first parliament of Charles II., ‘against the crime of blasphemy,’ which act had been ratified by the 11th act of the fifth session of the parliament of the present reign. It was alleged in the indictment that the young man had, for a twelvemonth past, been accustomed to speak of theology as ‘a rhapsody of feigned and ill-invented nonsense,’ calling the Old Testament *Ezra’s fables*, and the New *the history of the Impostor Christ*, further ‘cursing Moses, Ezra, and Jesus, and all men of that sort.’ ‘Likeas,’ pursued this document, ‘you reject the mystery of the blessed Trinity, and say it is not worth any man’s refutation, and you also scoff at the mystery of the incarnation of Jesus Christ ... as to the doctrine of redemption by Jesus, you say it is a proud and presumptuous device ... you also deny spirits ... and you have maintained that God, the world, and nature, are but one thing, and that the world was from eternity.... You have said that you hoped to see Christianity greatly weakened, and that you are confident it will in a short time be utterly extirpat.’

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Aikenhead, though impenitent at first, no sooner received this indictment in prison, than he endeavoured to stop proceedings by addressing to the Lords of Justiciary a 'petition and retraction,' in which he professed the utmost abhorrence of the expressions attributed to him, saying he trembled even to repeat them to himself, and further avowing his firm faith in the gospel, in the immortality of the soul, in the doctrine of the Trinity, and in the divine authority of Scripture. He alleged, like Fraser, that the objectionable expressions had only been repeated by him, as sentiments of certain atheistical writers whose works had been put into his hands by a person now cited as a witness against him, and 'who constantly made it his work to interrogate me anent my reading of the said atheistical principles and arguments.' 'May it therefore please your Lordships,' said the petitioner in conclusion, 'to have compassion on my young and tender years (not being yet major), and that I have been so innocently betrayed and induced to the reading of such atheistical books ... that I do truly own the Protestant religion ... and am resolved, by the assistance of Almighty God, to make my abhorrence of what is contained in the libel appear to the world in my subsequent life and conversation ... to desert the diet against me.' This appeal, however, was in vain.

The case was conducted by Sir James Steuart, the king's advocate, and Sir Patrick Hume, the king's solicitor.

The witnesses were three students, and a 'writer,' all of them about twenty years of age, being the companions of the culprit, and one of them (named Mungo Craig) known to be the person who had lent Aikenhead the books from which he derived the expressions charged in the indictment. It was proved by the ample depositions of these young men, that Aikenhead had been accustomed to speak opprobriously of the 1696. Scriptures and their authors, as well as of the doctrines of Christianity; by Mungo Craig alone it was averred that he had cursed Jesus Christ, along with Moses and Ezra. Thus there was not *full* proof against the accused on the principal point of the statute charged upon—namely, the cursing of God or any other person of the blessed Trinity. The jury nevertheless unanimously found it proven 'that the panel, Thomas Aikenhead, has railed against the first person, and also cursed and railed our blessed Lord, the second person, of the holy Trinity.' They further found 'the other crimes libelled proven—namely, the denying the incarnation of our Saviour, the holy Trinity, and scoffing at the Holy Scriptures.' Wherefore the judges

‘decern and adjudge the said Thomas Aikenhead to be taken to the Gallowlee, betwixt Leith and Edinburgh, upon Friday the eighth day of January next to come, and there to be hanged on a gibbet till he be dead, and his body to be interred at the foot of the gallows.’

It struck some men in the Privy Council that it was hard to take the life of a lad of eighteen, otherwise irreproachable, for a purely metaphysical offence, regarding which he had already expressed an apparently sincere penitence; and this feeling was probably increased when a petition was received from Aikenhead, not asking for life, which he had ceased to hope for, but simply entreating for delay of a sentence which he acknowledged to be just, on the ground that it had ‘pleased Almighty God to begin so far in His mercy to work upon your petitioner’s obdured heart, as to give him some sense and conviction of his former wicked errors ... and he doth expect ... if time were allowed ... through the merits of Jesus, by a true remorse and repentance, to be yet reconciled to his offended God and Saviour.’ I desire, he said, this delay, that ‘I may have the opportunity of conversing with godly ministers in the place, and by their assistance be more prepared for an eternal rest.’

Lord Anstruther and Lord Fountainhall, two members of the Council, were led by humane feeling to visit the culprit in prison. ‘I found a work on his spirit,’ says the former gentleman, ‘and wept that ever he should have maintained such tenets.’ He adds that he desired for Aikenhead a short reprieve, as his eternal state depended on it. ‘I plead [pleaded] for him in Council, and brought it to the Chan[cellor’s] vote. It was told it could not be granted *unless the ministers would intercede*.... The ministers, out of a pious, though I think ignorant zeal, spoke and preached for cutting him off ... our ministers being,’ he adds, ‘generally of a 1696. narrow set of thoughts and confined principles, and not able to bear things of this nature.’ It thus appears that the clergy were eager for the young man’s blood, and the secular powers so far under awe towards that body, that they could not grant mercy. The Council appears in numberless instances as receiving applications for delay and pardon from criminals under sentence, and so invariably assents to the petition, that we may infer there having been a routine practice in the case, by which petitions were only sent after it was ascertained that they would probably be complied with. There being no petition for pardon from Aikenhead to the Council

after his trial, we may fairly presume that he had learned there was no relaxation of the sentence to be expected.

As the time designed for his execution drew nigh, Aikenhead wrote a paper of the character of a 'last speech' for the scaffold, in which he described the progress of his mind throughout the years of his education. From the age of ten, he had sought for grounds on which to build his faith, having all the time an insatiable desire of attaining the truth. He had bewildered himself amongst the questions on morals and religion which have bewildered so many others, and only found that the more he thought on these things the further he was from certainty. He now felt the deepest contrition for the 'base, wicked, and irreligious expressions' he had uttered — 'although I did the same out of a blind zeal for what I thought the truth.' 'Withal, I acknowledge and confess to the glory of God, that in all he hath brought upon me, either one way or other, he hath done it most wisely and justly.... Likeas I bless God I die in the true Christian Protestant apostolic faith.' He then alluded in terms of self-vindication to aspersions regarding him which had been circulated in a satire by Mr Mungo Craig, 'whom I leave,' said he, 'to reckon with God and his own conscience, if he was not as deeply concerned in those hellish notions for which I am sentenced, as ever I was: however, I bless the Lord, I forgive him and all men, and wishes the Lord may forgive him likewise.' Finally, he prayed that his blood might 'give a stop to that raging spirit of atheism which hath taken such a footing in Britain both in practice and profession.' Along with this paper, he left a letter to his friends, dated the day of his execution, expressing a hope that what he had written would give them and the world satisfaction, 'and after I am gone produce more charity than [it] hath been my fortune to be trysted hitherto with, and remove the apprehensions which 1696. I hear are various with many about my case.'

There was at that time in Edinburgh an English Nonconformist clergyman, of Scottish birth, named William Lorimer, who had come to fill the chair of divinity at St Andrews. While Aikenhead was under sentence, Mr Lorimer preached before the Lord Chancellor and other judges and chief magistrates, *On the Reverence due to Jesus Christ*, being a sermon apropos to the occasion; and we find in this discourse not one word hinting at charity or mercy for Aikenhead, but much to encourage the audience in an opposite temper. It would appear, however, that the preacher afterwards found some cause for vindicating himself from a concern in bringing about

the death of Aikenhead, and therefore, when he published his sermon, he gave a preface, in which he at once justified the course which had been taken with the youth, and tried to shew that he, and at least one other clergyman, had tried to get the punishment commuted. The prosecution, he tells us, was undertaken entirely on public grounds, in order to put down a 'plague of blasphemous deism' which had come to Edinburgh. The magistrates, being informed of the progress of this pestilence among the young men, had two of them apprehended. 'One [John Fraser] made an excuse ... humbly confessed that it was a great sin for him to have uttered with his mouth such words of blasphemy against the Lord; professed his hearty repentance ... and so the government pardoned him, but withal ordered that he should confess his sin, and do public penance in all the churches in Edinburgh. And I believe the other might have been pardoned also, if he had followed the example of his companion; but he continued sullen and obstinate, I think for some months; and the party were said to be so very bold and insolent, as to come in the night and call to him by name at his chamber-window in the prison, and to tell him that he had a good cause, and to exhort him to stand to it, and suffer for it bravely. This influenced the government to execute the law.'

With regard to efforts in favour of Aikenhead, Mr Lorimer's statement is as follows: 'I am sure the ministers of the Established Church used him with an affectionate tenderness, and took much pains with him to bring him to faith and repentance, and to save his soul; yea, and some of the ministers, to my certain knowledge, and particularly the late reverend, learned, prudent, peaceable, and pious Mr George Meldrum, then minister of the Tron Church, interceded for him with the government, and solicited for his pardon; and when that could not be obtained, he desired a reprieve for him, and I joined with him in it. This was the day before his execution. The chancellor was willing to have granted him a reprieve, but could not do it without the advice of the Privy Council and judges; and, to shew his willingness, he called the Council and judges, who debated the matter, and then carried it by a plurality of votes for his execution, according to the sentence of the judges, that there might be a stop put to the spreading of that contagion of blasphemy.'^[196]

Mr Lorimer's and Lord Anstruther's statements are somewhat discrepant, and yet not perhaps irreconcilable. It may be true that, at the last moment, *one* of the city clergy, accompanied by an English stranger, tried to raise his

voice for mercy. It is evident, however, that no very decided effort of the kind was made, for the records of the Privy Council contain no entry on the subject, although, only three days before Aikenhead's execution, we find in them a reprieve formally granted to one Thomas Weir, sentenced for housebreaking. The statement itself, implying a movement entirely exceptive, only makes the more certain the remarkable fact, derived from Lord Anstruther's statement, that the clergy, *as a body*, did not intercede, but 'spoke and preached for cutting him off,' for which reason the civil authorities were unable to save him. The clergy thus appear unmistakably in the character of the persecutors of Aikenhead, and as those on whom, next to Sir James Steuart, rests the guilt of his blood.

The *Postman*, a journal of the day, relates the last moments of the unhappy young man. 'He walked thither [to the place of execution—a mile from the prison] on foot, between a strong guard of fusiliers drawn up in two lines. Several ministers assisted him in his last moments; and, according to all human appearance, he died with all the marks of a true penitent. When he was called out of the prison to the City Council-house, before his going to the place of execution, as is usual on such occasions, he delivered his thoughts at large in a paper written by him, and signed with his own hand, and then requested the ministers that were present to pray for him, which they did; and afterwards he himself 1696. prayed, and several times invoked the blessed Trinity, as he did likewise at the place of execution, holding all the time the Holy Bible in his hand; and, being executed, he was buried at the foot of the gallows.'

There had been for two years under process in 1697. JAN. 16. the Court of Session a case in which a husband was sued for return of a deceased wife's *tocher* of eight thousand merks (£444, 8s. 10d.²/₃), and her *paraphernalia* or things pertaining to her person. It came, on this occasion, to be debated what articles belonging to a married woman were to be considered as *paraphernalia*, or *jocalia*, and so destined in a particular way in case of her decease. The Lords, after long deliberation, fixed on a rule to be observed in future cases, having a regard, on the one hand, to 'the dignity of wives,' and, on the other, to the restraining of extravagances. First was 'the *mundus* or *vestitus muliebris*—namely, all the body-clothes belonging to the wife, acquired by her at any time, whether in this or any

prior marriage, or in virginity or viduity; and whatever other ornaments or other things were peculiar or proper to her person, and not proper to men's use or wearing, as necklaces, earrings, breast-jewels, gold chains, bracelets, &c. Under childbed linens, as *paraphernal* and proper to the wife, are to be understood only the linen on the wife's person in childbed, but not the linens on the child itself, nor on the bed or room, which are to be reckoned as common movables; therefore found the child's spoon, porringer, and whistle contained in the condescendence [in this special case] are not paraphernal, but fall under the communion of goods; but that ribbons, cut or uncut, are paraphernal, and belong to the wife, unless the husband were a merchant. All the other articles that are of their own nature of promiscuous and common use, either to men or women, are not paraphernal, but fall under the communion of goods, unless they become peculiar and paraphernal by the gift and appropriation of the husband to her, such as a marriage-watch, rings, jewels, and medals. A purse of gold or other movables that, by the gift of a former husband, became properly the wife's goods and paraphernal, exclusive of the husband, are only to be reckoned as common movables *quoad* a second husband, unless they be of new gifted and appropriated by him to the wife again. Such gifts and presents as one gives to his bride before or on the day of the marriage, are paraphernal and irrevokable by the husband during that marriage, 1697. and belong only to the wife and her executors; but any gifts by the husband to the wife after the marriage-day are revokable, either by the husband making use of them himself, or taking them back during the marriage; but if the wife be in possession of them during the marriage or at her death, the same are not revokable by the husband thereafter. Cabinets, coffers, &c., for holding the paraphernalia, are not paraphernalia, but fall under the communion of goods. Some of the Lords were for making anything given the next morning after the marriage, paraphernalia, called the *morning gift* in our law; but the Lords esteemed them man and wife then, and [the gift] so irrevokable. ^[197]

John, late Archbishop of Glasgow, having JAN. 30. applied to the king for permission to go to Scotland 'for recovery of his health,' obtained a letter granting him the desired liberty under certain restrictions. On the ensuing 16th of March, there is an ordinance of the

Privy Council, appointing the town of Cupar, in Fife, and four miles about the same, as the future residence of the ex-prelate, provided he give sufficient caution for keeping within these bounds, and entering into no contrivance or correspondence against the government.

On the 15th of April, the archbishop, having found no ‘convenient lodging for his numerous family in Cupar,’ was permitted, on his petition, to reside in the mansion of Airth, under the same conditions. Two months later, this was changed to ‘the mansion-house of Gogar, near to Airth, within the shire of Clackmannan.’ The archbishop does not appear to have been released from his partial restraint till February 1701.^[198]

Commenced an inquiry by a commission from FEB. the Privy Council into the celebrated case of *Bargarran’s Daughter*—namely, Christian Shaw, a girl of eleven years old, the daughter of John Shaw of Bargarran, in Renfrewshire. A solemn importance was thus given to circumstances which, if they took place now, would be slighted by persons in authority, and scarcely heard of beyond the parish, or at most the county. It was, however, a case highly characteristic of the age and country in which it happened.

In the parish of Erskine, on the south bank of the Clyde, stands Bargarran House, a small old-fashioned mansion, with some 1697. inferior buildings attached, the whole being enclosed, after the fashion of a time not long gone by, in a wall capable of some defence. Here dwelt John Shaw, a man of moderate landed estate, with his wife and a few young children. His daughter Christian had as yet attracted no particular attention from her parents or neighbours, though observed to be a child of lively character and ‘well-inclined.’

One day (August 17, 1696), little Christian having informed her mother of a petty theft committed by a servant, the woman broke out upon her with frightful violence, wishing her soul might be harled [dragged] through hell, and thrice imprecating the curse of God upon her. Considering the pious feelings of old and young in that age, we shall see how such an assault of terrible words might well impress the mind of a child, to whom all such violences must have been a novelty. The results, however, were of a kind which could scarcely have been anticipated. Five days afterwards, when Christian had been a short while in bed, and asleep, she suddenly started up

with a great cry, calling, 'Help! help!' and immediately sprung into the air, in a manner astonishing to her parents and others who were in the room. Then being put into another bed, she remained stiff and to appearance insensible for half an hour; after which, for forty-eight hours, she continued restless, complaining of violent pains through her whole body, or, if she dozed for a moment, immediately starting up with the same cry of irrepressible terror, 'Help! help!'

For eight days the child had fits of extreme violence, under which she was 'often so bent and rigid that she stood like a bow on her feet and neck at once,' and continued without the power of speech, except at short intervals, during which she seemed perfectly well. A doctor and apothecary were brought to her from Paisley; but their bleedings and other applications had no perceptible effect. By and by, her troubles assumed a different aspect. She seemed to be wrestling and fighting with an unseen enemy, and there were risings and fallings of her belly, and strange shakings of her whole body, that struck the beholders with consternation. She now began, in her fits, to denounce Catherine Campbell, the woman-servant, and an old woman of evil fame, named Agnes Naismith, as the cause of her torments, alleging that they were present in person cutting her side, when in reality they were at a distance. At this crisis, fully two months after the beginning of her ailments, her parents took her to Glasgow, to consult an eminent physician, named Brisbane, regarding her case. He

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states in his deposition,^[199] that at first he thought the child quite well; but after a few minutes, she announced a coming fit, and did soon after fall into convulsions, accompanied by heavy groanings and murmurings against two women named Campbell and Naismith; all of which he thought 'reducible to the effect of a hypochondriac melancholy.' He gave some medicines suitable to his conception of the case, and for eight days, during which the girl remained in Glasgow, she was comparatively well, as well as for eight days after her return home. Then the fits returned with even increased violence; she became as stiff as a corpse, without sense or motion; her tongue would be drawn out of her mouth to a prodigious length, while her teeth set firmly upon it; at other times it was drawn far back into her mouth. Her parents set out with her again to Glasgow, that she might be under the doctor's care; but as they were going, a new fact presented itself. She spat or took from her mouth, every now and then, parcels of hair of different colours, which she declared her two tormentors were trying to force down

her throat. She had also fainting-fits every quarter of an hour. Dr Brisbane saw her again (November 12), and from that time for some weeks was frequently with her. He says: 'I observed her narrowly, and was confident she had no human correspondent to subminister the straw, wool, cinders, hay, feathers, and such like trash to her; all which, upon several occasions, I have seen her pull out of her mouth in considerable quantities, sometimes after several fits, and sometimes after no fit at all, whilst she was discoursing with us; and for the most part she pulled out those things without being wet in the least; nay, rather as if they had been dried with care and art; for one time, as I remember, when I was discoursing with her, she gave me a cinder out of her mouth, not only dry, but hot, much above the degree of the natural warmth of a human body.' 'Were it not,' he adds, 'for the hairs, hay, straw, and other things wholly contrary to human nature, I should not despair to reduce all the other symptoms to their proper classes in the catalogue of human diseases.' Thereafter, as we are further informed, there were put out of her mouth bones of various sorts and sizes, small sticks of candle-fir, some stable-dung mingled with hay, a quantity of fowl's feathers, a gravel-stone, a whole gall-nut, and some egg-shells.

Sometimes, during her fits, she would fall a-1697.
reasoning, as it were, with Catherine Campbell about the course she was pursuing, reading and quoting Scripture to her with much pertinence, and entreating a return of their old friendship. The command which she shewed of the language of the Bible struck the bystanders as wonderful for such a child; but they easily accounted for it. 'We doubt not,' says the narrator of the case, 'that the Lord did, by his good spirit, graciously afford her a more than ordinary measure of assistance.'

Before leaving Glasgow for the second time, she had begun to speak of other persons as among her tormentors, naming two, Alexander and James Anderson, and describing other two whose names she did not know.

Returned to Bargarran about the 12th of December, she was at ease for about a week, and then fell into worse fits than ever. She now saw the devil in various shapes threatening to devour her. Her face and body underwent frightful contortions. She would point to places where her tormentors were standing, wondering why others did not see them as well as she. One of these ideal tormentors, Agnes Naismith, came in the body to see the child, spoke kindly, and prayed God to restore her health; after which Christian

always spoke of her as her defender from the rest. Catherine Campbell was of a different spirit. She could by no means be prevailed on to pray for the child, but cursed her and all her family, imprecating the devil to let her never grow better, for all the trouble she had brought upon herself. This woman being soon after imprisoned, it seemed as if from that time she also disappeared from among the child's tormentors. We are carefully informed that in her pocket was found a ball of hair, which was thrown into the fire, and after that time the child vomited no more hair.

The devil's doings at Bargarran having now effectually roused public attention, the presbytery sent relays of their members to be present in the house, and lend all possible spiritual help. One evening, Christian was suddenly carried off with an unaccountable motion through the chamber and hall, down the long winding stair, to the outer gate, laughing wildly, while 'her feet did not touch the ground, so far as anybody was able to discern.' She was brought back in a state of rigidity, and declared when she recovered that she had felt as one carried in a swing. On the ensuing evening, she was carried off in the same manner, and borne to the top of the house; thence, as she stated, by some men and 1697. women, down to the outer gate, where, as formerly, she was found lying like one dead. The design of her bearers, she said, was to throw her into the well, when the world would believe she had drowned herself. On a third occasion, she moved in the same unaccountable manner down to the cellar, when the minister, trying to bring her up again, felt as if some one were pulling her back out of his arms. On several occasions, she spoke of things which she had no visible means of knowing, but which were found to be true, thus manifesting one of the assigned proofs of possession, and of course further confirming the general belief regarding her ailments and their cause. She said that some one spoke over her head, and distinctly told her those things.

The matter having been reported with full particulars to the Privy Council, the commission before spoken of was issued, and on the 5th February it came to Bargarran, under the presidency of Lord Blantyre, who was the principal man in the parish. Catherine Campbell, Agnes Naismith, a low man called Anderson, and his daughter Elizabeth, Margaret Fulton, James Lindsay, and a Highland beggar-man, all of whom had been described as among Christian's tormentors, were brought forward and confronted with her; when it was fully seen that, on any of these persons

touching her, she fell into fits, but not when she was touched by any other person. It is stated that, even when she was muffled up, she distinguished that it was the Highland beggar who touched her. The list of the culprits, however, was not yet complete. There was a boy called Thomas Lindsay, who for a half-penny would pronounce a charm, and turn himself about *withershins*, or contrary to the direction of the sun, and so stop a plough, and cause the horse to break the yoke. He was taken up, and speedily confessed being in paction with the devil, and bearing his marks. At the same time, Elizabeth Anderson confessed that she had been at several meetings with the devil, and declared her father and the Highland beggar to have been active instruments for tormenting Christian Shaw. There had been one particular meeting of witches with the devil in the orchard of Bargarran, where the plan for the affliction of the child had been made up. Amongst the delinquents was a woman of rather superior character, a midwife, commonly called Maggie Lang, together with her daughter, named Martha Semple. These two women, hearing they were accused, came to Bargarran, to demonstrate their innocence; nor could Christian at first accuse Maggie; but after a while, a ball of hair was found where she had sat, and the afflicted girl declared this to be a 1697. charm which had hitherto imposed silence upon her. Now that the charm was broken, she readily pronounced that Mrs Lang had been amongst her tormentors.

In the midst of these proceedings, by order of the presbytery, a solemn fast was kept in Erskine parish, with a series of religious services in the church. Christian was present all day, without making any particular demonstrations.

On the 18th of February—to pursue the contemporary narration—‘she being in a light-headed fit, said the devil now appeared to her in the shape of a man; whereupon being struck in great fear and consternation, she was desired to pray with an audible voice: “The Lord rebuke thee, Satan!” which trying to do, she presently lost the power of her speech, her teeth being set, and her tongue drawn back into her throat; and attempting it again, she was immediately seized with another severe fit, in which, her eyes being twisted almost round, she fell down as one dead, struggling with her feet and hands, and, getting up again suddenly, was hurried violently to and fro through the room, deaf and blind, yet was speaking to some invisible creature about her, saying: “With the Lord’s strength, thou shalt

neither put straw nor sticks into my mouth.” After this she cried in a pitiful manner: “The bee hath stung me.” Then, presently sitting down, and untying her stockings, she put her hand to that part which had been nipped or pinched; upon which the spectators discerned the lively marks of nails, deeply imprinted on that same part of her leg. When she came to herself, she declared that something spoke to her as it were over her head, and told her it was Mr M. in a neighbouring parish (naming the place) that had appeared to her, and pinched her leg in the likeness of a bee.’

At another time, while speaking with an unseen tormentor, she asked how she had got those red sleeves; then, making a plunge along the bed at the supposed witch, she was heard as it were tearing off a piece of cloth, when presently a piece of red cloth rent in two was seen in her hands, to the amazement of the bystanders, who were certain there had been no such cloth in the room before.

On the 28th of March, while the inquiries of the commission were still going on, Christian Shaw all at once recovered her usual health; nor did she ever again complain of being afflicted in this manner.

The case was in due time formally prepared for trial; and seven persons were brought before an assize at Paisley, with the Lord Advocate as prosecutor, and an advocate assigned, according to the custom of Scotland, for the defence of the accused. It was a new commission which sat in judgment, comprehending, we are told, several persons not only ‘of honour,’ but ‘of singular knowledge and experience.’ The witnesses were carefully examined; full time was allowed to every part of the process, which lasted twenty hours; and six hours more were spent by the jury in deliberating on their verdict. The crimes charged were the murders of several children and persons of mature age, including a minister, and the tormenting of several persons, and particularly of Bargarran’s daughter. It is alleged by the contemporary narrator, Francis Cullen, advocate, that all things were carried on ‘with tenderness and moderation;’ yet the result was that the alleged facts were found to be fully proved, and a judgment of guilty was given.

It is fitting to remember here, that the Lord Advocate, Sir James Steuart, in his address to the jury, holds all those instances of clairvoyance and of flying locomotion which have been mentioned, as completely proved, and speaks as having no doubt of the murders and torments effected by the

accused. He insisted strongly on the devil's marks which had been found upon their persons; also on the coincidence between many things alleged by Christian Shaw and what the witches had confessed. From such records of the trial as we have, it fully appears that the whole affair was gone about in a reasoning way: the premises granted, everything done and said was right, as far as correct logic could make it so.

On the 10th of June, on the Gallow Green of Paisley, a gibbet and a fire were prepared together. Five persons, including Maggie Lang, were brought out and hung for a few minutes on the one, then cut down and burned in the other. A man called John Reid would have made a sixth victim, if he had not been found that morning dead in his cell, hanging to a pin in the wall by his handkerchief, and believed to have been strangled by the devil. And so ended the tragedy of *Bargarran's Daughter*.

The case has usually, in recent times, been treated as one in which there were no other elements than a wicked imposture on her part, and some insane delusions on that of the confessing victims; but probably in these times, when the phenomena of mesmerism have forced themselves upon the belief of a large and respectable portion of society, it will be admitted as more likely that the maledictions of Campbell 1697. threw the child into an abnormal condition, in which the ordinary beliefs of her age made her sincerely consider herself as a victim of diabolic malice. How far she might be tempted to put on appearances and make allegations, in order to convince others of what she felt and believed, it would be difficult to say. To those who regard the whole affair as imposture, an extremely interesting problem is presented for solution by the original documents, in which the depositions of witnesses are given—namely, how the fallaciousness of so much, and, to appearance, so good testimony on pure points of fact, is to be reconciled with any remaining value in testimony as the verifier of the great bulk of what we think we know.

About thirty years before this date, a certain Sir MAR. Alexander M'Culloch of Myreton, in the stewartry of Kirkcudbright, with two sons, named Godfrey and John, attracted the attention of the authorities by some frightfully violent proceedings against a Lady Cardiness and her two sons, William and Alexander Gordon, for the purpose of getting them extruded from their lands.^[200] Godfrey in time succeeded to the title, and to

all the violent passions of his father; but his property was wholly compromised for the benefit of his creditors, who declared it to be scarcely sufficient to pay his debts. Desperate for a subsistence, he attempted, in the late reign, by ‘insinuations with the Chancellor Perth,’ and putting his son to the Catholic school in Holyrood Palace, to obtain some favour from the law, and succeeded so far as to get assigned to him a yearly aliment of five hundred merks (about £28) out of his lands, being allowed at the same time to take possession of the family mansion of Bardarroch. From a complaint brought against him in July 1689 before the Privy Council, it would appear that he intromitted with the rents of the estate, and did no small amount of damage to the growing timber; moreover, he attempted to embezzle the writs of the property, with the design of annihilating the claims of his creditors. Insufferable as his conduct was, the Council assigned him six hundred merks of aliment, but only on condition of his immediately leaving Bardarroch, and giving up the writs of the estate. Yielding in no point to their decree, he was soon after ordered to be summarily ejected by the sheriff.^[201]

There was a strong, unsubdued Celtic element in the Kirkcudbright population, and Sir Godfrey M’Culloch reminds us 1697. entirely of a West Highland Cameron or Macdonald of the reign of James VI. What further embroilments took place between him and his old family enemies, the Gordons of Cardiness, we do not learn; but certain it is, that on the 2d of October 1690, he came to Bush o’ Bield, the house of William Gordon, whom twenty years before he had treated so barbarously, with the intent of murdering him. Sending a servant in to ask Gordon out to speak with some one, he no sooner saw the unfortunate man upon his threshold, than ‘with a bended gun he did shoot him through the thigh, and brak the bane thereof to pieces; of which wound William Gordon died within five or six hours thereafter.’^[202]

The homicide made his way to a foreign country, and thus for some years escaped justice. He afterwards returned to England, and was little taken notice of. William Stewart of Castle-Stewart, husband of the murdered Gordon’s daughter, offered to intercede for a remission in his behalf, if he would give up the papers of the Cardiness estate; but he did not accept of this offer. Perhaps he became at length rather too heedless of the vengeance that might be in store for him. It is stated that, being in Edinburgh, he was so hardy as to go to church, when a gentleman of Galloway, who had some

pecuniary interest against him, rose, and called out with an air of authority: ‘Shut the doors—there’s a murderer in the house!’^[203] He was apprehended, and immediately after subjected to a trial before the High Court of Justiciary, and condemned to be beheaded at the Cross of Edinburgh. The execution was appointed to take place on the 5th of March 1697;^[204] but on the 4th he presented a petition to the Privy Council, in which, while expressing submission to his sentence, he begged liberty to represent to their Lordships, ‘that as the petitioner hath been among the most unhappy of mankind in the whole course of his life, so he hath been singularly unfortunate in what hath happened to him near the period of it.’ He thought that ‘nobody had any design upon him after the course of so many years, and he flattered himself with hopes of life on many considerations, and specially believing that the only two proving witnesses would not have been admitted. Being now found guilty, he is exceedingly surprised and unprepared to die.’ On his petition for delay, the 1697. execution was put forward to the 25th March.

Sir Walter Scott has gravely published, in the *Minstrelsy of the Scottish Border*, a strange story about Sir Godfrey M’Culloch, to the effect that he had made friendship in early life with an old man of fairyland, by diverting a drain which emptied itself into the fairies’ chamber of dais; and when he came to the scaffold on the Castle Hill, this mysterious personage suddenly came up on a white palfrey, and bore off the condemned man to a place of safety. There is, however, too much reason to believe that Sir Godfrey really expiated the murder of William Gordon at the market-cross of Edinburgh. The fact is recorded in a broadside containing the unhappy man’s last speech, which has been reprinted in the *New Statistical Account of Scotland*. In this paper, he alleged that the murder was unpremeditated, and that he came to the place where it happened contrary to his own inclination. He denied a rumour which had gone abroad that he was a Roman Catholic, and recommended his wife and children to God, with a hope that friends might be stirred up to give them some protection. It has been stated, however, that he was never married. He left behind him several illegitimate children, who, with their mother, removed to Ireland on the death of their father; and there a grandson suffered capital punishment for robbery about the year 1760.^[205]

The Privy Council had an unpleasant affair upon its hands. Alexander Brand, late bailie of Edinburgh—a man of enterprise, noted for having introduced a manufacture of gilt leather hangings—had vented a libel under the title of ‘Charges and Gratuities for procuring the additional fifteen hundred pounds of my Tack-duty of Orkney and Zetland, which was the surplus of the price agreed by the Lords,’ specifying ‘sums of money, hangings, or other donatives given to the late Secretary Johnston; the Marquis of Tweeddale, late Lord High Chancellor; the Duke of Queensberry, then Lord Drumlanrig; the Earl of Cassillis; the Viscount of Teviot, then Sir Thomas Livingstone; the Lord Basil Hamilton; the Lord Raith, and others.’ He had, in 1693, along with Sir Thomas Kennedy of Kirkhill and Sir William Binning, late provosts of Edinburgh, entered into a contract with the government for five thousand stands of arms, at a pound sterling each, which, it was alleged, would have allowed them a good profit; yet, when abroad for the purchase of the arms, he wrote to his partners in the transaction, that they could not be purchased under twenty-six shillings the piece; and his associates had induced the Council to agree to this increased price, the whole affair being, as was alleged, a contrivance for cheating the government. To obtain payment of the extra sum (£1500), the two knights had entered into a contract for giving a bribe of two hundred and fifty guineas to the Earls of Linlithgow and Breadalbane, ‘besides a gratuity to James Row, who was to receive the arms.’ But no such sum had ever been paid to these two nobles, ‘they being persons of that honour and integrity that they were not capable to be imposed upon that way.’ Yet Kennedy and Binning had allowed the contract to appear in a legal process before the Admiralty Court, ‘to the great slander and reproach of the said two noble persons.’ In short, it appeared that the three contractors had proceeded upon a supposition of what was necessary for the effecting of their business with the Privy Council, and while not actually giving any bribes—at least, so they now acknowledged—had been incautious enough to let it appear as if they had. For the compound fault of contriving bribery and defaming the nobles in question, they were cast in heavy fines—Kennedy in £800, Binning in £300, and Brand in £500, to be imprisoned till payment was made.

Notwithstanding this result, there is no room to doubt that it had become a custom for persons doing business for the government to make ‘donatives’ to the Lords of the Privy Council. Fountainhall reports a case

(November 23, 1693) wherein Lord George Murray, who had been a partner with Sir Robert Miln of Barnton in a tack of the customs in 1681, demurred, amongst other things in their accounts, to 10,000 merks given yearly to the then officers of state. 'As to the donatives, the Lords [of Session] found they had grown considerably from what was the custom in former years, and that it looked like corruption and bribery: [they] thought it shameful that the Lords, by their decret, should own any such practice; therefore they recommended to the president to try what was the perquisite payment in wine by the tacksmen to every officer of state, and to study to settle [the parties]'.^[206]

From the annual accounts of the Convention of Royal Burghs, it appears that fees or gratuities to public officers with whom 1697. they had any dealing were customary. For example, in 1696, there is entered for consulting with the king's advocate anent prisoners, &c., £84, 16s. (Scots); to his men, £8, 14s.; to his boy, £1, 8s. Again, to the king's advocate, for consulting anent the fishery, bullion, &c., £58; and to his men, £11, 12s. Besides these sums, £333, 6s. 8d. were paid to the same officer as pension, and to his men, £60. There were paid in the same year, £11, 12s. to the chancellor's servants; £26, 13s. 4d. to the macers of the Council; and an equal sum to the macers of the Court of Session.

The Quakers of Edinburgh were no better used APR. 20. by the rest of the public than those of Glasgow. Although notedly, as they alleged, 'an innocent and peaceable people,' yet they could not meet in their own hired house for worship without being disturbed by riotous men and boys; and these, instead of being put down, were rather encouraged by the local authorities. On their complaining to the magistrates of one outrageous riot, Bailie Halyburton did what in him lay to add to their burden by taking away the key of their meeting-house, thus compelling them to meet in the street in front, where 'they were further exposed to the fury of an encouraged rabble.' They now entreated the Privy Council to 'find out some method whereby the petitioners (who live as quiet and peaceable subjects under a king who loves not that any should be oppressed for conscience' sake) may enjoy a free exercise of their consciences, and that those who disturb them may be discountenanced, reproved, and punished.' This they

implore may be speedily done, ‘lest necessity force them to apply to the king for protection.’

The Council remitted to the magistrates ‘to consider the said representation, and to do therein as they shall find just and right.’^[207]

St Kilda, a fertile island of five miles’
circumference, placed fifty miles out from the Hebrides, was occupied by a simple community of about forty families, who lived upon barley-bread and sea-fowl, with their eggs, undreaming of a world which they had only heard of by faint reports from a factor of their landlord ‘Macleod,’ who annually visited them. Of religion they had only caught a
confused notion from a Romish priest who stayed with them a short time about fifty years ago. It was at length thought proper that an orthodox minister should go among these simple people, and the above is the date of his visit.

JUNE 1.

1697.

‘M. Martin, gentleman,’ who accompanied the minister, and afterwards published an account of the island, gives us in his book^[208] a number of curious particulars about a personage whom he calls Roderick the Impostor, who, for some years bypast, had exercised a religious control over the islanders. He seems to have been, in reality, one of those persons, such as Mohammed, once classed as mere deceivers of their fellow-creatures for selfish purposes, but in whom a more liberal philosophy has come to see a basis of what, for want of a better term, may in the meantime be called ecstasism or hallucination.

Roderick was a handsome, fair-complexioned man, noted in his early years for feats of strength and dexterity in climbing, but as ignorant of letters and of the outer world as any of his companions, having indeed had no opportunities of acquiring any information which they did not possess. Having, in his eighteenth year, gone out to fish on a Sunday—an unusual practice—he, on his return homeward, according to his own account, met a man upon the road, dressed in a Lowland dress—that is, a cloak and hat; whereupon he fell flat upon the ground in great disorder. The stranger announced himself as John the Baptist, come direct from heaven, to communicate through Roderick divine instructions for the benefit of the people, hitherto lost in ignorance and error. Roderick pleaded unfitness for the commission imposed upon him; but the Baptist desired him to be of

good cheer, for he would instantly give him all the necessary powers and qualifications. Returning home, he lost no time in setting about his mission. He imposed some severe penances upon the people, particularly a Friday's fast. 'He forbade the use of the Lord's Prayer, Creed, and Ten Commandments, and instead of them, prescribed diabolical forms of his own. His prayers and rhapsodical forms were often blended with the name of God, our blessed Saviour, and the immaculate Virgin. He used the Irish word *Phersichin*—that is, verses, which is not known in St Kilda, nor in the Northwest Isles, except to such as can read the Irish tongue. But what seemed most remarkable in his obscure prayers was his mentioning ELI, with the character of our preserver. He used several 1697. unintelligible words in his devotions, of which he could not tell the meaning himself; saying only that he had received them implicitly from St John the Baptist, and delivered them before his hearers without any explication.' 'This impostor,' says Martin, 'is a poet, and also endowed with that rare faculty, the second-sight, which makes it the more probable that he was haunted by a familiar spirit.'

He stated that the Baptist communicated with him on a small mount, which he called *John the Baptist's Bush*, and which he forthwith fenced off as holy ground, forbidding all cattle to be pastured on it, under pain of their being immediately killed. According to his account, every night after he had assembled the people, he heard a voice without, saying: 'Come you out,' whereupon he felt compelled to go forth. Then the Baptist, appearing to him, told him what he should say to the people at that particular meeting. He used to express his fear that he could not remember his lesson; but the saint always said: 'Go, you have it;' and so it proved when he came in among the people, for then he would speak fluently for hours. The people, awed by his enthusiasm, very generally became obedient to him in most things, and apparently his influence would have known no restriction, if he had not taken base advantage of it over the female part of the community. Here his quasi-sacred character broke down dismally. The three lambs from one ewe belonging to a person who was his cousin-german, happened to stray upon the holy mount, and when he refused to sacrifice them, Roderick denounced upon him the most frightful calamities. When the people saw nothing particular happen in consequence, their veneration for him experienced a further abatement. Finally, when the minister arrived, and denounced the whole of his proceedings as imposture, he yielded to the

clamour raised against him, consented to break down the wall round the Baptist's Bush, and peaceably submitted to banishment from the island. Mr Martin brought him to Pabbay island in the Harris group, whence he was afterwards transferred to the laird's house of Dunvegan in Skye. He is said to have there confessed his iniquities, and to have subsequently made a public recantation of his quasi-divine pretensions before the presbytery of Skye.^[209]

Mr Martin, in his book, stated a fact which has since been the subject of much discussion—namely, that whenever the steward and his party, or any other strangers, came to St Kilda, the whole of the 1697. inhabitants were, in a few days, seized with a severe catarrh. The fact has been doubted; it has been explained on various hypotheses which were found baseless: visitors have arrived full of incredulity, and always come away convinced. Such was the case with Mr Kenneth Macaulay, the author of the amplest and most rational account of this singular island. He had heard that the steward usually went in summer, and he thought that the catarrh might be simply an annual epidemic; but he learned that the steward sometimes came in May, and sometimes in August, and the disorder never failed to take place a few days after his arrival, at whatever time he might come, or how often so ever in a season. A minister's wife lived three years on the island free of the susceptibility, but at last became liable to it. Mr Macaulay did not profess to account for the phenomenon; but he mentions a circumstance in which it may be possible ultimately to find an explanation. It is, that not only is a St Kildian's person disagreeably odoriferous to a stranger, but 'a stranger's company is, for some time, as offensive to them,' who complain that 'they find a *difficulty in breathing a light sharp air* when they are near you.'

The Privy Council, in terms of the 27th act of APR. 20. Queen Mary—rather a far way to go back for authority in such a matter—discharged all printers 'to print or reprint any pamphlets, books, or others, relating to the government, or of immediate public concern, until the same be seen, revised, and examined by the Earls of Lauderdale and Annandale, the Lord Advocate, Lord Anstruther, and Sir John Maxwell of Pollock,' under heavy penalties.^[210]

Margaret Halket, relict of the deceased Mr JUNE 17.
Henry Erskine, late minister of Chirnside, petitioned the Privy Council for the stipend of the bypast half year during which the parish had been vacant, she being 'left in a verie low and mean condition, with four fatherless children no way provided for, and other burdensome circumstances under which the petitioner is heavily pressed.' The petition was complied with.^[211]

This was the mother of the two afterwards famous preachers, Ebenezer and Ralph Erskine. The application of Mrs Erskine is given here as the type of many such, rendered unavoidable before the 1697.
present humane arrangements in behalf of the surviving relatives of the established clergy.

James Hamilton, keeper of the Canongate JULY 18.
Tolbooth, gave in a humble petition to the Privy Council, setting forth that 'for a long while bygone' he has 'kept and maintained a great many persons provided for recruiting the army in Flanders.' In this last spring, 'the prisoners became so tumultuous and rebellious, that they combined together and assassinat the petitioner's servants, and wounded them, and took the keys from them, and destroyed the bread, ale, and brandy that was in the cellar, to the value of eight pounds sterling.' 'Seeing the petitioner's due as formerly is two shillings Scots per night for himself, and twelve pennies Scots for the servants for each person,' in respect whereof he was 'liable for ane aliment of twenty merks monthly to the poor, besides the expense of a great many servants,' payment was ordered to him of £837, 17s. for house-dues for the recruits, during a certain term, and £107, 8s. for damages done by the mutiny.^[212]

In July 1697, in the prospect of a good harvest, JULY.
the permission to import grain free of duty was withdrawn. About the same time, a great quantity of victual which had been imported into Leith, was, on inspection, found to be unfit to be eaten, and was therefore ordered to be destroyed.

On the 28th of December, the Privy Council was informed of a cargo of two hundred bolls of wheat shipped in order to be transported to France, and, considering that 'wheat is not yet so low as twelve pounds Scots per

boll,’ it was proposed by the Lord Chancellor that it should be stopped; but this the Council thought ‘not convenient.’

The Master of Kenmure, Craik of Stewarton, and Captain Dalziel, son to the late Sir Robert Dalziel of Glenae, were accused before the Privy Council of having met in April last at a place called *Stay-the-Voyage*, near Dumfries, and there drunk the health of the late King James under the circumlocution of *The Old Man on the other Side of the Water*, as also of drinking confusion to his majesty King William, these being acts condemned by the late Convention as treasonable. The Master was absent, but the two other gentlemen were present as prisoners. The Lords, after hearing evidence, declared the charge not proven, and caused Craik and Dalziel to be discharged.

AUG. 3.

1697.

[\[213\]](#)

An Edinburgh tavern-bill of this date— apparently one for supper to a small party—makes us acquainted with some of the habits of the age. It is as follows, the sums being expressed in Scottish money:

SEP.

SIR JOHN SWINTON TO MRS KENDALL.

For broth,	£00 : 03 : 00
For rost mutton and cutlets,	01 : 16 : 00
For on dish of hens,	03 : 00 : 00
For harenes,	00 : 05 : 00
For allmonds and rasens,	01 : 06 : 00
For 3 lb. of confectiones,	07 : 16 : 00
For bread and ale,	01 : 00 : 00
For 3 pynts of clarite,	06 : 00 : 00
For sack,	02 : 16 : 00
For oysters fryed and raw,	03 : 16 : 00
For brandie and sugare,	00 : 06 : 00
For servants,	02 : 02 : 00
	£30 : 06 : 00

The sum in English money is equal to £2, 10s. 6½d. One remarkable fact is brought out by the document—namely, that claret was then charged at twenty pence sterling per quart in a public-house. This answers to a statement of Morer, in his *Short Account of Scotland*, 1702, that the Scots have ‘a thin-bodied claret at 10d. the mutchkin.’ Burt tells us that when he came to Scotland in 1725, this wine was to be had at one-and-fourpence a bottle, but it was soon after raised to two shillings, although no change had been made upon the duty.^[214] It seems to have continued for some time at this latter price, as in an account of Mr James Hume to John Hoass, dated at Edinburgh in 1737 and 1739, there are several entries of claret at 2s. per bottle, while white wine is charged at one shilling per mutchkin (an English pint).

An Edinburgh dealer advertises liquors in 1720 at the following prices: ‘Neat claret wine at 11d., strong at 15d.; white wine at 12d.; Rhenish at 16d.; old Hock at 20d.—all per bottle.’ Cherry sack 1697.
was 28d. per pint. The same dealer had English ale at 4d. per bottle.^[215]

Burt, who, as an Englishman, could not have any general relish for a residence in the Scotland of that day, owns it to be one of the redeeming circumstances attending life in our northern region, that there was an abundance of ‘wholesome and agreeable drink’ in the form of French claret, which he found in every public-house of any note, ‘except in the heart of the Highlands, and sometimes even there.’ For what he here tells us, there is certainly abundance of support in the traditions of the country. The light wines of France for the gentlefolk, and twopenny ale for the commonalty, were the prevalent drinks of Scotland in the period we are now surveying, while sack, brandy, and punch for the one class, and usquebaugh for the other, were but little in use.

Comparatively cheap as claret was, it is surprising, considering the general narrowness of means, how much of it was drunk. In public-houses and in considerable mansions, it was very common to find it kept on the tap. A rustic hostel-wife, on getting a hogshead to her house, would let the gentlemen of her neighbourhood know of the event, and they would come to taste, remain to enjoy, and sometimes not disperse till the barrel was exhausted. The Laird of Culloden, as we learn from Burt, kept a hogshead on tap in his hall, ready for the service of all comers; and his accounts are alleged to shew that his annual consumpt of the article would now cost

upwards of two thousand pounds. A precise statement as to quantity, even in a single instance, would here obviously be of importance, and fortunately it can be given. In Arniston House, the country residence of President Dundas, when Sheriff Cockburn was living there as a boy about 1750, there were sixteen hogsheads of claret used per annum.

Burt enables us to see how so much of the generous fluid could be disposed of in one house. He speaks of the hospitality of the Laird of Culloden as ‘almost without bounds. It is the custom of that house,’ says he, ‘at the first visit or introduction, to take up your freedom by *cracking his nut* (as he terms it), that is, a cocoa-shell, which holds a pint filled with champagne, or such other wine as you shall choose. You may guess, by the introduction, at the conclusion of the volume. Few go away sober at any time; and for the greatest part of his guests, in the conclusion, they cannot go at all.

‘This,’ it is added, ‘he partly brings about by 1697. artfully proposing after the public healths (which always imply bumpers) such private ones as he knows will pique the interest or inclinations of each particular person of the company, whose turn it is to take the lead to begin it in a brimmer; and he himself being always cheerful, and sometimes saying good things, his guests soon lose their guard, and then—I need say no more.

‘As the company are one after another disabled, two servants, who are all the while in waiting, take up the invalids with short poles in their chairs, as they sit (if not fallen down), and carry them to their beds; and still the hero holds out.’^[216]

Mr Burton, in his *Life of President Forbes*, states that it was the custom at Culloden House in the days of John Forbes—*Bumper John*, he was called—to prize off the top of each successive cask of claret, and place it in the corner of the hall, to be emptied in pailfuls. The massive hall-table, which bore so many carouses, is still preserved as a venerable relic; and the deep saturation it has received from old libations of claret, prevents one from distinguishing the description of wood of which it was constructed. Mr Burton found an expenditure of £40 sterling a month for claret in the accounts of the President.

At an early hour in the morning, seven gentlemen and two servants, all well armed, might have been seen leaving Inverness by the bridge over the Ness, and proceeding along the shore of the Moray Firth. Taking post in the wood of Bunchrew, they waited till they saw two gentlemen with servants coming in the opposite direction, when they rushed out into the road with an evidently hostile intent. The leader, seizing one of the gentlemen with his own hand, called out to his followers to take the other dead or alive, and immediately, by levelling their pistols at him, they induced him to give himself up to their mercy. The victorious party then caused the two gentlemen to dismount and give up their arms, mounted them on a couple of rough ponies, and rode off with them into the wild country.

This was entirely a piece of private war, in the style so much in vogue in the reign of the sixth James, but which had since declined, and was now approaching its final extinction. The leader of the assailants was Captain Simon Fraser, otherwise called the Master of Lovat, the same personage who, as Lord Lovat, fifty years after, came to a public death on Tower-hill.

The father of this gentleman had recently 1697. succeeded a grandnephew as Lord Lovat; but his title to the peerage and estates, although really good, had been opposed under selfish and reckless views by the Earl of Tullibardine, son of the Marquis of Athole, and brother of the widow of the late Lovat; and as this earl chanced to be a secretary of state and the king's commissioner to parliament, his opposition was formidable. Tullibardine's wish was to establish a daughter of the late lord, a child of eleven years old, as the heiress, and marry her to one of his own sons. His sons, however, were boys; so he had to bethink him of a more suitable bridegroom in the person of Lord Salton, another branch of the house of Fraser. Meanwhile, Captain Simon, wily as a cat, and as relentless, sought to keep up his juster interest by similar means. He first tried to get the young lady into his power by help of a follower named Fraser of Tenechiel; but Tenechiel took a fit of repentance or terror in the midst of his enterprise, and replaced the child in her mother's keeping. Lord Salton was then hurried northward to the Dowager Lady Lovat's house of Castle Downie, to woo his child-bride, and arrange for her being brought to safer lodgings in Athole. He went attended by Lord Mungo Murray, brother at once to the Earl of Tullibardine and the Dowager Lady Lovat. The Master, seeing no time was to be lost, brought a number of the chief gentlemen of his clan together at a house belonging to Fraser of Strichen, and had no

difficulty in taking them bound under oaths to raise their followers for the advancement of his cause. It was by their aid that he had seized on Lord Salton and Lord Mungo Murray at the wood of Bunchrew.

Lord Salton and his friend were conducted amidst savage shouts and drawn dirks to the house of Fanellan, and there confined in separate apartments. The fiery cross was sent off, and the coronach cried round the country, to bring the faithful Frasers to the help of their young chief. A gallows was raised before the windows of the imprisoned gentlemen, as a hint of the decisive measures that might be taken with them. They saw hundreds of the clansmen arrive at muster on the green, with flags flying and bagpipes screaming, and heard their chief taking from them oaths of fidelity on their bare daggers. When five hundred were assembled—a week having now elapsed since the first assault—the Master put himself at their head, and went with his prisoners to Castle Downie, which he took into his care along with its mistress. The child, however, was safe from him, for she had been already transferred to a refuge in her

1697.

uncle's country of Athole. Fraser was, of course, mortified by her escape; but he was a man fertile in expedients. He first dismissed his two prisoners, though not till Salton had bound himself under a forfeiture of eight thousand pounds to 'interfere' no more in his affairs. His plan was now to secure, at least, the dowager's portion of the late lord's means by marrying her. So, too, he calculated, would he embarrass the powerful Tullibardine in any further proceedings against himself.

That night, the lady's three female attendants were removed from her by armed men; and one of them, on being brought back afterwards to take off her ladyship's clothes, found her sitting in the utmost disorder and distress on the floor, surrounded by Fraser and his friends, himself trying by burned feathers to prevent her senses from leaving her, and the others endeavouring to divest her of her stays. Robert Monro, minister of Abertarf, then pronounced the words of the marriage-ceremony over her and the Master of Lovat. As the woman hurried out, she heard the screams of her mistress above the noise of the bagpipes played in the apartment adjacent to her bedroom; and when she came back next morning, she found the lady to appearance out of her judgment, and deprived of the power of speech. Lady Lovat was at this time a woman of about thirty-five years of age.

Such accounts of this outrage as reached the low country excited general horror, and Tullibardine easily obtained military assistance and letters of fire and sword against the Master of Lovat and his accomplices. The Master was not only supported by his father and other clansmen in what he had done, but even by the Earl of Argyle, who felt as a relative and old friend of the house, as well as an opponent of Tullibardine. On the approach of troops, he retired with his reluctant bride to the isle of Agais, a rough hill surrounded by the waters of the Beauly, where Sir Robert Peel spent the last summer of his life in an elegant modern villa, but which was then regarded as a Highland fastness. A herald, who ventured so far into the Fraser territory to deliver a citation, left the paper on a cleft stick opposite to the island. Fraser had several skirmishes with the government troops; took prisoners, and dismissed them, after exacting their oaths to harass him no more; and, in short, for a year carried on a very pretty guerrilla war, everywhere dragging about with him his wretched wife, whose health completely gave way through exposure, fatigue, 1697. and mental distress. In September 1698, he and nineteen other gentlemen were tried in absence, and forfeited for their crimes, which were held as treasonable—a stretch of authority which has since been severely commented on. At length, the Master—become, by the death of his father, Lord Lovat—tired of the troublous life he was leading, and by the advice of Argyle, went to London to solicit a pardon from the king. Strong influence being used, the king did remit all charges against him for raising war, but declined to pardon him for his violence to the Lady Lovat, from fear of offending Tullibardine. He was so emboldened as to resolve to stand trial for the alleged forced marriage; but it was to be in the style of an Earl of Bothwell or an Earl of Caithness in a former age. With a hundred Frasers at his back, did this singular man make his appearance in Edinburgh, in the second year before the beginning of the eighteenth century, to prefer a charge against the Earl of Tullibardine—perhaps the very last attempt that was made in Scotland to overbear justice. On the morning, however, of the day when the charge was to be made, his patron, Argyle, was informed by Lord Aberuchil, one of the judges (a Campbell), that if Fraser appeared he would find the judges had been *corrupted*, and his own destruction would certainly follow. He lost heart, and fled to England.^[217]

Sir Robert Dickson of Sorn-beg was one of a Nov. 9.
group of Edinburgh merchants of this age, who carried on business on a scale much beyond what the general circumstances of the country would lead us to expect. He at this time gave in a memorial to the king in London, bearing—‘In the year 1691, I with some others who did join with me, did engage ourselves to the Lords of your majesty’s Treasury in Scotland, by a tack [lease] of your customs and foreign excise, by which we did oblige ourselves to pay yearly, for the space of five years, the sum of twenty thousand three hundred pounds sterling. Conform to which tack, we continued as tacksmen during all the years thereof, and did punctually, without demanding the least abatement or defalcation, make payment of our whole tack-duty, save only the sum of six hundred pounds, which still remains in my hand unpaid, and which I am most willing to pay, upon the Lords of the Treasury granting me and my partners ane general discharge.’ Nevertheless, ‘the Lords of the Treasury have granted a warrant for seizing of my person, and committing me prisoner until I 1697.
make payment of the sum of two thousand and three hundred pounds sterling more, which they allege to be *due to the officers of state for wines*, and which I humbly conceive I and my partners can never be obliged to pay, it being no part of my contract. And I humbly beg leave to inform your majesty that, if such a custom be introduced, it will very much diminish your majesty’s revenue; for it is not to be thought that we nor any other succeeding tacksmen can give such gratification over and above our tack-duty without a considerable allowance, and this still prejudices your majesty’s interest. [Sir Robert seems to mean that, if farmers of revenue have to give gratuities to officers of state, these must be deducted from the sum agreed to be paid to his majesty.] They were so forward in the prosecution of the said warrant, that I was necessitat to leave the kingdom, and come here and make my application to your majesty.’ The memorial finally craved of the king that he would remit ‘the determination of the said wines’ to the Lords of Session.

The Lords of the Privy Council had, of course, the usual dislike of deputies and commissions for seeing appeals taken against their decisions to the principal authority, and they embraced the first opportunity of laying hold of the customs tacksman and putting him up in the Tolbooth. There he did not perhaps change his mind as to his non-liability in justice for two thousand three hundred pounds for presents of wine to the officers of state

in connection with the farming or tack of the customs, being a good ten per cent. upon the whole transaction; but he probably soon became sensible that the Privy Council of Scotland was not a body he could safely contend with. The Lord Advocate speedily commenced a process against him, on the ground of his memorial to the king falling under the statute of King James V. for severe punishment to those who *murmur* any judge spiritual or temporal, and prove not the same; and on this charge he was brought before the Council (1st of February 1698). It was shewn that the charge for gratuities was ‘according to use and wont,’ and that the memorial was a high misdemeanour against their lordships; therefore inferring a severe punishment. As might have been expected, Sir Robert was glad to submit, and on his knee to crave pardon of their lordships, who thereupon discharged him.^[218]

The reader, who has just seen some other 1697.
Edinburgh merchants punished for imputing to state-officers the possibility of their being bribed with money, will probably smile when he sees another in trouble so soon after, for remonstrating against the necessity he had been under of actually giving them bribes.

It had occurred to Mr Charles Ritchie, minister DEC. 28.
of the gospel, to be asked by Lieutenant Whitehead, of Colonel Sir John Hill’s regiment at Fort-William, to join him in marriage with the colonel’s daughter, and the ceremony was performed in the presence of several of the officers of the regiment, the minister professing to know of no impediment to the union of the young couple. For this fact, Mr Charles had been carried to Edinburgh, and put up in the Tolbooth, where he languished without trial for several months. He now petitioned for release or banishment, stating that he had been kept in jail all this time ‘without any subsistence,’ and ‘is reduced to the greatest extremity, not only for want of any mean of subsistence, but also by want of any measure of health.’

The Council, viewing his consent to banishment, granted him that boon, he enacting himself bound to depart ‘furth of the kingdom’ before the 1st of February, and never to return without his majesty’s or the Council’s warrant to that effect.^[219]

Throughout this year, there were protracted legal proceedings before the Privy Council, between Blair of Balthayock, in Perthshire, and Carnegie of Finhaven, in Forfarshire, in consequence of the latter having brought on a marriage between his daughter and a young minor, his pupil, Blair of Kinfauns, the relative of Balthayock. The affair ended in a condemnation of Finhaven and a fine of one hundred and fifty pounds, to be paid to Balthayock for his expenses in the action.

On the 20th September 1703, by which time Balthayock was dead, Finhaven presented a petition to the Privy Council, setting forth that he had not submitted to the sentence, but placed the sum of the fine in consignment, and thereupon was liberated. Balthayock had never called for the suspension; her majesty's late gracious indemnity had discharged the fine, 'the cause of which,' he alleged, 'was natural and ordinary, and the marriage every way suitable.' There might be demur to the last particular, as young Kinfauns, when led into the marriage with 1697. Carnegie's daughter, was only a boy. Nevertheless, the Council now ordained the money to be rendered back to the petitioner. [220]

The Court of Session had before it a remarkable 1698. JAN. 27. case, involving matters of the highest delicacy, regarding two prominent members of society. David Lord Cardross—son of the Lord Cardross whose piety had exposed him to sufferings all but the highest in the late reigns—was married in February 1697 to the daughter of Henry Fairfax of Hurst, in Berkshire, an heiress of ten thousand pounds. They were the grand-parents of the Chancellor Lord Erskine. He had been helped in the obtaining of this match by Sir John Cochrane, another eminent sufferer in the late times of trial. To secure his best services as *proxenata*, or, as it is called in Scotland, *black-foot*, Lord Cardross had given Sir John a bond, securing him a thousand pounds, if he should be able to effect the marriage. When the marriage was completed, Cochrane applied for the promised sum, but was met with the assertion that no money was fairly due, as the lady's hand had been obtained without his assistance. He sued Lord Cardross first in Westminster Hall, where the bond was declared void by the Lord Chancellor, as granted *ob turpem causam*, and now in the Court of Session for similar reasons, much to the enjoyment of all the lovers of gossip. Sir John, probably seeing public sentiment to be against him, gave up his claim

to the whole £1000 as a reward for his services, and restricted it to £600, as required to repay him for expenses he had incurred in Lord Cardross's lovesuit. Even this was denied to him, unless he could 'condescend' upon an account of special outlays in Lord Cardross's behalf. We do not hear of his doing anything in consequence of this award, and it is to be suspected that he lost some character by the transaction, as well as legal expenses, and got nothing in return.^[221]

Those who looked back with feelings of sympathy and pride to the sufferings of the patriots under the late reigns, must have had some painful feelings when they reflected on the present doings of some of them and their descendants. The Argyle of this day, though a man of both ability and spirit, highly qualified to serve his country, was now living in circumstances which certainly formed a marked contrast with the history of his grandfather and father. Being married unhappily—1698. his wife was a daughter of the Duchess of Lauderdale—he was induced to associate himself with another lady, for whose sake he seems to have in a great measure abandoned public life. Purchasing a house called Chirton, near Newcastle (which he bequeathed to his mistress), he was content to spend there in inglorious self-indulgence the days which ought to have been consecrated to the service of his country. Sad to say, this representative of pious martyrs died of bruises received in a house of evil fame at North Shields (September 1703). Even worse was the story of his Grace's brother, James, who carried off Miss Wharton, an heiress of thirteen, and forcibly married her (November 1690)—a crime, the proper consequences of which he escaped, while his instrument and assistant, Sir John Johnston of Caskieben, paid the penalty of an ignominious death at Tyburn. Worse still, the actual Gordon of Earlstoun, so renowned for his resolute conduct in the evil days, fell, more than twenty years after, under censure for a lapse in virtue of the highest class, and underwent the higher excommunication; 'but,' says Wodrow, 'they find the intimation of it will not be for edification, and people will still converse with him, do as they will; so the sentence is not pronounced.'

We have seen something of an old clan-feud FEB. 22. between the Laird of Mackintosh and his vassal, Macdonald of Keppoch. The Keppoch who had overthrown the chief at Inverroy in 1688, and

afterwards burned down his house of Dunachtan, was now dead; but in his son, Coll Macdonald, he had left a worthy successor. Coll was as defiant of the Mackintosh claims as his father had been, and, though he lived within ten miles of the well-established garrison of Fort-William, he seemed as utterly beyond the reach of the law as if he had haunted the wilds of Canada. It now became necessary to take sharp measures with him, in order to make good the rights of his superior.

The king, seeing 'it is below the justice of our government that any of our loyal subjects should be disappointed of the benefit of our laws,' was pleased to resort once more to that desperate remedy of letters of fire and sword which he had, to all subsequent appearance, employed once too often six years before in the case of the Glencoe Macdonalds. A commission was accordingly granted to Lachlan Mackintosh of that Ilk, to the governor for the time of Fort-William, Farquharson of Monaltrie, Farquharson of Invercauld, and a number of other gentlemen, 'to convocate our lieges in arms, and pass and search, seek, hunt, follow and 1698. take, and in case of resistance, pursue to the death Coll Macdonald [and a multitude of other persons specified, outlaws and fugitives from justice], and if any of them shall happen to flee to houses or strengths [then grants full power] to asseige the said houses or strengths, raise fire, and use all force and warlike engines that can be had for winning thereof,' slaughter of the persons pursued not to be imputed as a crime.^[222]

There was, in reality, nothing to prevent the same class of inhumanities flowing from this order as had followed on the Glencoe commission, if the officers intrusted with it had been disposed, as in the other case, to carry it out to the letter. It was effectual for its purpose without any extreme atrocities, and, three months after, we hear of a detachment from Fort-William to assist Mackintosh 'in maintaining his own lands against Keppoch and others, who may disturb him in the peaceable possession thereof.'

In a poem written in 1737, Coll Macdonald of Keppoch is spoken of as a kind of Rob Roy, who had fought against the government at Killiecrankie, Cromdale, and Dunblane; who had resisted the law regarding lands which he occupied, and been denounced rebel on that account; who 'from thefts and robberies scarce did ever cease;' but who had, nevertheless, not merely kept possession of his territory, but rather improved his circumstances; and

finally, four years ago, had died at home in peace. He was, says the poet in a note, ‘a man of low stature, but full of craft and enterprise: his life, if printed, would make an entertaining piece, whether one considers the depth of his genius, the boldness of his adventures, or the various turns of adverse fortune which he bore with uncommon steadiness, and had the art to surmount.’

A commission was granted by the Privy Council MAR. 1.
to Sir John Maxwell of Pollock, — Maxwell of Dalswinton, Hugh M’Guffock of Rusco, Adam Newall of Barskeroch, and four other gentlemen, to try, and, if guilty, adjudge to death, Elspeth M’Ewen and Mary Millar, now prisoners in the tolbooth of Kirkcudbright, ‘alleged guilty of the horrid crime of witchcraft, and [who] has committed several malefices.’

On the 26th of July, a committee of Privy Council reported that they had examined the proceedings of the commissioners in 1698.
the case of Elspeth M’Ewen (the report signed by the *Lord Advocate*), who had been pronounced guilty upon her own confession and the evidence of witnesses, ‘of a compact and correspondence with the devil, and of charms and of accession to malefices.’ It was ordered that the sentence of death against Elspeth should be executed, under care of the steward of Kirkcudbright and his deputies, on the 24th of August.

In July, a number of noblemen and gentlemen of Renfrewshire sent a letter to the Privy Council, setting forth the case of a young woman named Margaret Laird, of the Earl of Glencairn’s land in the parish of Kilmacolm. Since the 15th of May, ‘she hath been under an extraordinary and most lamentable trouble, falling into strange and horrible fits, judged by all who have seen her to be preternatural, arising from the devil and his instruments.’ In these fits, ‘she sees and distinctly converses with divers persons whom she constantly affirms to be her tormentors, and that both while the fits continue, and in the intervals wherein she is perfectly free of all trouble and composed.’ The persons named were of those formerly accused by ‘confessing witches.’ ‘In some of these fits there is such obstruction upon her external senses, that she neither sees nor feels bystanders, though in the meantime she sees and converses with any of her alleged tormentors when we cause any of them come before her; and at the

sight or touch of any of them, yea, even upon her essaying to name them when not present, she's thrown into the fits, and therein gives such an account of their circumstances (though otherwise unknown to her) as is very convincing.' The writers had been so impressed by the various facts brought under their notice, as proving fascination or witchcraft, that they found themselves obliged to make a representation of the case 'out of pity to the poor distressed damsel;' and they were the more solicitous about the affair, that the country people were in a state of such excitement, and so incensed against the alleged witches, that 'we fear something may fall out in their hands that the government would willingly prevent.'

The Council appointed a committee of inquiry, and ordered the sheriff of the county—the Earl of Eglintoun—to apprehend the suspected witches, 'that it may appear whether, after their being seized and committed, the said Margaret shall complain of their tormenting her or not.'

In September, Mary Morison, spouse of Francis Duncan, skipper, Greenock, was under accusation of witchcraft, but allowed to be at liberty within the city of Edinburgh, 'the said Francis her 1698. husband first giving bond that the said Mary shall keep the said confinement, and that he shall produce her before the Lords of Justiciary at any time to which she shall be cited before the 15th of November next, under a penalty of ten thousand pounds Scots.'

Mrs Duncan was detained as a prisoner in Edinburgh till the 15th November, although no such proof could be found against her as the Advocate could raise an action upon, her husband kept all the time away from his employment, and her 'numerous poor family' starving in neglect at home. On a petition setting forth these circumstances, and re-asserting her entire innocence, she was set at liberty.

The Lord Advocate soon after reported to the Privy Council a letter he had received from the sheriff of Renfrewshire, stating that 'the persons imprisoned in that country as witches are in a starving condition, and that those who informed against them are passing from them, and the sheriff says he will send them in prisoners to Edinburgh Tolbooth, unless they be quickly tried.' His lordship was recommended to ask the sheriff to support the witches till November next, when they would probably be tried, and the charges would be disbursed by the treasury. A distinct allowance of a groat

a day was ordered on the 12th of January 1699 for each of the Renfrewshire witches.^[223]

While the works of Satan were thus coming into new prominence, the clergy were determined not to prove remiss in their duty. We find the General Assembly of this year remitting to their ‘commission,’ ‘to give advice to presbyteries and ministers, upon application, against witchcraft, sorcery, and charming.’ In the ensuing year, they deliberated on an address to the Privy Council, for punishing witches and charmers; and the same subject comes up in the two subsequent years, in one instance in connection with ‘masquerades, balls, and stage-plays.’^[224]

An ‘unkindly cold and winter-like spring’ was threatening again to frustrate the hopes of the husbandman, ‘and cut off man and beast by famine.’ Already the dearth was greatly increased, and in many places ‘great want both of food and seed’ was experienced, while the sheep and cattle were dying in great numbers. In consideration of these facts, and of the abounding sins of profaneness, Sabbath-breaking, drunkenness, &c., ‘whereby the displeasure of God was manifestly provoked,’ a solemn humiliation and fast was ordered for the 17th of May within the synod of Lothian and Tweeddale, and the 25th day of the month for the rest of the kingdom.

MAY 10.

1698.

An edict of the same date strictly forbade the exportation of victual. One, dated the 7th July, orders that the girnels at Leith, which had been closed in hopes of higher prices, be opened, and the victual sold ‘as the price goes in the country, not below the last Candlemas fairs.’ On the 13th, there was an edict against regrating or keeping up of victual generally, threatening the offenders with forfeiture of their stocks. In September, the tolerance for importing of foreign grain was extended to the second Tuesday of November ensuing. On the 9th November, a proclamation stated that ‘through the extraordinary unseasonableness of the weather for some months past, and the misgiving of this year’s crop and harvest, the scarcity of victual is increased to that height, as threatens a general distress and calamity.’ Wherefore the exportation of grain was again strictly prohibited. A strong proclamation against forestalling and regrating appeared on the 15th of the same month.

A solemn fast was kept on the 9th of March 1699, on account of ‘the lamentable stroke of dearth and scarcity.’ During this spring there were officers appointed to search out reserved victual, and expose it at current prices; also commissioners to appoint prices in the several counties. We find the commissioners of supply for the county of Edinburgh, by virtue of powers intrusted to them by the Privy Council, ordaining in April maximum prices for all kinds of grain—an interference with the rights of property at which our forefathers never scrupled, notwithstanding the constant experience of its uselessness for the object in view. They fixed that, till September next, the highest price for the best wheat should be seventeen pounds Scots per boll, the best oats twelve pounds, and the best oatmeal sixteen shillings and sixpence per peck (half a stone).^[225]

‘These unheard-of manifold judgments continued seven years [?], not always alike, but the seasons, summer and winter, so cold and barren, and the wonted heat of the sun so much withholden, that it was discernible upon the cattle, flying fowls, and insects decaying, that seldom a fly or cleg was to be seen: our harvests not in the ordinary months;

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many shearing in November and December; yea, some in January and February; many contracting their deaths, and losing the use of their feet and hands, shearing and working in frost and snow; and, after all, some of it standing still, and rotting upon the ground, and much of it for little use either to man or beast, and which had no taste or colour of meal.

‘Meal became so scarce, that it was at two shillings a peck, and many could not get it. It was not then with many, “Where will we get siller?” but, “Where shall we get meal for siller?” I have seen, when meal was sold in markets, women clapping their hands and tearing the clothes off their heads, crying: “How shall we go home and see our children die of hunger? They have got no meat these two days, and we have nothing to give them!” Through the long continuance of these manifold judgments, deaths and burials were so many and common, that the living were wearied with the burying of the dead. I have seen corpses drawn in sleds. Many got neither coffin nor winding-sheet. I was one of four who carried the corpse of a young woman a mile of way, and when we came to the grave, an honest poor man came and said: “You must go and help to bury my son; he has lain dead these two days; otherwise, I shall be obliged to bury him in my own yard.” We went, and there were eight of us had to carry the corpse of that young man two miles, many neighbours looking on us, but none to help us.

I was credibly informed that in the north, two sisters on a Monday morning were found carrying the corpse of their brother on a barrow with bearing ropes, resting themselves many times, and none offering to help them. I have seen some walking about at sunsetting, and next day, at six o'clock in the summer morning, found dead in their houses, without making any stir at their death, their head lying upon their hand, with as great a smell as if they had been four days dead; the mice or rats having eaten a great part of their hands and arms.

'Many had cleanness of teeth in our cities, and want of bread in our borders; and to some the staff of bread was so utterly broken (which makes complete famine), that they did eat, but were neither satisfied nor nourished; and some of them said to me, that they could mind nothing but meat, and were nothing bettered by it; and that they were utterly unconcerned about their souls, whether they went to heaven or hell.

'The nearer and sorer these plagues seized, the sadder were their effects, that took away all natural and relative affections, so that husbands had no sympathy for their wives, nor wives for their 1698. husbands, parents for their children, nor children for their parents. These and other things have made me to doubt if ever any of Adam's race were in a more deplorable condition, their bodies and spirits more low, than many were in these years.

'The crowning plague of all these great and manifold plagues was, many were cast down, but few humbled; great murmuring, but little mourning; many groaning under the effects of wrath, but few had sight or sense of the causes of wrath in turning to the Lord: and as soon as these judgments were removed, many were lift up, but few thankful; even these who were as low as any, that outlived these scarce times, did as lightly esteem bread as if they had never known the worth of it by the want of it. The great part turned more and more gospel-proof and judgment-proof; and the success of the gospel took a stand at that time in many places of the land, but more especially since the Rebellion, 1715.

'King William his kindness is not to be forgotten, who not only relieved us from tyranny, but had such a sympathy with Scotland, when in distress of famine, that he offered all who would transport victual to Scotland, that they might do it custom-free, and have twenty pence of each boll.

‘I cannot pass this occasion without giving remarks upon some observable providences that followed these strange judgments upon persons who dwelt in low-lying fertile places, who laid themselves out to raise markets when at such a height, and had little sympathy with the poor, or those who lived in cold muirish places, who thought those who lived in these fertile places had a little heaven; but soon thereafter their little heavens were turned into little hells by unexpected providences.... There was a farmer in the parish of West Calder (in which parish 300 of 900 examinable persons wasted away, who at that time was reckoned worth 6000 merks of money and goods) that had very little to spare to the poor; the victual lay spoiling in his house and yard, waiting for a greater price. Two honest servant-lasses, whose names were Nisbet, being cast out of service (for every one could not have it; many said, they got too much wages that got meat for their work), these two lasses would not steal, and they were ashamed to beg; they crept into a house, and sat there wanting meat until their sight was almost gone, and then they went about a mile of way to that farmer’s yard, and ate four stocks of kail to save their lives. He found them, and drove them before him to the Laird of Baad’s, who was a justice-of-peace, that he might get them punished. The laird inquired what moved them to go by so many yards, and go to his. They said: “These in their way were in straits themselves, and he might best spare them.” The laird said: “Poor conscionable things, go your way—I have nothing to say to you.” One of them got service, but the other died in want; it was her burial I mentioned before, who was carried by us four. But so in a very few years he was begging from door to door, whom I have served at my door, and to whom I said: “Who should have pity and sympathy with you, who kept your victuals spoiling, waiting for a greater price, and would spare nothing of your fulness to the poor; and was so cruel to the two starving lasses, that you took them prisoners for four stocks of kail to save their lives? Ye may read your sin upon your judgment, if ye be not blind in the eyes of your soul, as ye are of one in your body, and may be a warning to all that come after you.”’^[226]

These striking and well-told anecdotes of the dearth are from the simple pages of Patrick Walker. The account he gives of the religious apathy manifested under the calamity is corroborated by a rhymster named James Porterfield, who was pleased to write a series of poems on three remarkable fires in Edinburgh, which he viewed entirely in the light of ‘God’s

Judgments against Sin’—such being indeed the title of his book,^[227] which he dedicated to the magistrates of the city. He says:

To awake us from our sin,
Horses and cattle have consumed been;
And straits and dearth our land have overswayed,
And thousand lives therewith have been dismayed;
Many through want of bread dropped at our feet,
And lifeless lay upon the common street:
These plagues made no impression on the flock,
And ministers seemed ploughing on a rock.

In the five or six years of this dearth, ‘the farmer was ruined, and troops of poor perished for want of bread. Multitudes 1698. deserted their native country, and thousands and tens of thousands went to Ireland, &c. During the calamity, Sir Thomas Stewart laid out himself, almost beyond his ability, in distributing to the poor. He procured sums from his brother, the Lord Advocate, and other worthy friends, to distribute, and he added of his own abundantly. His house and outer courts were the common resort of the poor, and the blessing of many ready to perish came upon him; and a blessing seemed diffused on his little farm that was managed for family use, for, when all around was almost blasted by inclement seasons and frosts in the years 1695–6–7, it was remarked here were full and ripened crops. The good man said the prayers of the poor were in it, and it went far.’^[229]

When the calamity was at its height in 1698, the sincere but over-ardent patriot, Fletcher of Salton, published a discourse on public affairs, in which he drew a lamentable picture of the condition of the great bulk of the people. He spoke of many thousands as dying for want of bread, whilst, ‘from unwholesome food, diseases are so multiplied among the poor people, that, if some course be not taken, this famine may very probably be followed by a plague.’ ‘What man,’ he adds, with a just humanity, ‘is there in this nation, if he have any compassion, who must not grudge every nice bit, and every delicate morsel he puts in his mouth, when he considers that so many are dead already, and so many at this minute struggling with death, not for want of bread, but of grains, which, I am credibly informed, have been eaten by some families, even during the preceding years of scarcity. And must not every unnecessary branch of our expense, or the least finery in our houses, clothes, or equipage, reproach us with our barbarity, so long as people born with natural endowments, perhaps not inferior to our own,

and fellow-citizens, perish for want of things absolutely necessary to life?’^[230] This generous outburst, at once accordant with the highest moral duty and the principles of political economy, stands somewhat in contrast with a sentiment often heard of among the rich in Ireland during the famine of 1847, to the effect, that keeping up their system of luxurious living was favourable to the poor, because giving employment for labour.

Sir Alexander Home of Renton, in Berwickshire, appears to have been of weak mind, and unhappy in his married life, his wife, Dame Margaret Scott, having for some years lived apart from him. He had so arranged his affairs, that his brother, Sir Patrick Home of Lumsden, advocate, was his heir, he retaining only a liferent, notwithstanding that he had a son, a boy, in life. The unfortunate gentleman being on his death-bed, Sir Patrick’s wife, Dame Margaret Baird, came to attend him (her husband being in England), and took up her residence in the principal room of the house, called the Chamber of Dais. At the same time came the alienated wife and her son, Robert Home, professing to understand that Sir Patrick had only accepted a factory for the payment of Sir Alexander’s debts, and for the behoof of his children. The dying man, hearing of his wife’s arrival, admitted her to an interview, at which he forgave her ‘the injuries and provocations he had received from her,’ but, at the same time, ordered her to depart, ‘telling those that interceded for her, that her behaviour was such that he could not keep her in his house, she being capable by her nature to provoke him either to do violence to her or himself.’ She contrived, however, to lurk in or about the house for a few days, till her poor husband was no more.

MAY 31.

1698.

There is then the usual ostentatious funeral—a large company assembled—a table of deals erected in the hall for their entertainment at dinner *before* the obsequies—the surviving brother, Sir Patrick, ostensibly master of the house, and his wife keeping state in it, but the widow and her boy cherishing their own purpose in some bye-place. When the company, duly refreshed, had departed with the corpse to Coldingham kirkyard, excepting a small armed guard left in the dining-room, Lady Renton, as she chose to call herself, came forth from her concealment, with sundry supporters, and desired her sister-in-law, Lady Patrick Home, to quit the chamber of dais, and give place to her. Lady Patrick refusing to go, the other lady threatened,

with most opprobrious language, to turn her out by violence; and for this purpose caused Mr John Frank, advocate, and a few other friends, to be called back from the funeral. Lady Patrick was, however, a full match for the widow. She reviled her and her friends, 'calling them villains, rascals, footmen, and vowing she would let them know [that] nobody had a right to the house but her Pate; and [if we are to believe the opposite party] she dreadfully over and over again cursed and swore with clapping of hands, that she would not stir off her bottom (having settled herself upon the resting-chyre) until the pretended lady and her 1698. brats were turned out of doors; railing and reproaching the [Lady Renton], calling her a disgrace to the family, and otherwise abusing her by most injurious and opprobrious language, and vowed and swore, if once her Pate were come from the burial, she would sit and see the [pretended lady] and her children, and all that belonged to her, turned down stairs, and packed to the yetts.' She then called in the guard from the dining-room, and incited them to turn her sister-in-law out of the house; which they declining to do, she broke out upon them as cowardly rascals that did not know their duty. She and her women, she said, had more courage than they. They at least protected her, however, from being turned out of the house by Lady Renton, which otherwise might have been her fate.

When Sir Patrick returned in the evening from the funeral, he approved of his lady's firmness, and intimated to Lady Renton his determination to keep possession of the house in terms of law, asserting that she had no title to any refuge there. Finding all other means vain, she contrived, while the chamber of dais was getting cleared of the temporary table, to possess herself of the key, and lock the door. A violent scene took place between her and Sir Patrick; but she could not be induced to give up the key of the chamber, and he finally found it necessary to get the door broken up. Then he learned that she had caused his bed to be carried away and locked up; and when all remonstrances on this point proved vain, he had to send, at a late hour, for the loan of a bed from a neighbour. Meanwhile, the widow herself was reduced to the necessity of keeping herself and her children immured in the footman's room, there being no other part of the house patent to her. Such was the posture of the relatives of the deceased gentleman on the night of his funeral.

The parties came with their respective complaints before the Privy Council, by whom the case was remitted to the decision of the Court of

Session. We learn from Fountainhall, that the Lords decided (June 24) against the widow as not being ‘infert’ (which Sir Patrick was); but the young Sir Robert carried on a litigation against his uncle for several years—first, for the reduction of his father’s disposition of the estate; and, secondly, when this was decided in his favour, in defence against Sir Patrick’s plea, that he, as heir-male and of provision to his father, was bound to warrant his father’s deed. On a decision being given in Sir Robert’s favour on this point also, the uncle appealed the case to the House of Peers; and ‘both of them did take their journey to London (though in the 1698. midst of winter) to see it prosecute.’ Here, in 1712, the interlocutors of the Court of Session were affirmed.^{[\[231\]](#)}

This day, being Sunday, the magistrates of JUNE 26. Aberdeen ‘seized a popish meeting at the house of one Alexander Gibb, merchant in their town.’ They ‘found the altar, mass-book, bell, cross, images, candles, and incense, the priests’ vestments, and a great many popish books, the value of ane hundred pounds sterling, and imprisoned Alexander Gibb and one John Cowie, a trafficking papist, who calls himself a Quaker;’ but by a secret communication with the house of George Gray, merchant, ‘the priests who were at the meeting did escape.’

The Privy Council thanked the magistrates ‘for their good service in this affair,’ and ordered them to send Gibb, Cowie, and Gray to Edinburgh, under a guard, with ‘all the popish books, vestments, and other popish trinkets, and particularly the book of their popish baptisms, confirmations, or marriages.’ The magistrates were also enjoined to send ‘a list of the names and designations of all the persons which they can learn were at the said popish meeting’ to the Lord Advocate; and to secure ‘all popish schoolmasters or schoolmistresses, or breeders of youth in the popish religion, and all priests and trafficking papists found in their bounds.’

Lieutenant Vandraught was ordered (July 28) eight pounds, to requite his expenses in bringing Alexander Gibb, John Cowie, and George Gray as prisoners from Aberdeen, along with the vestments, images, trinkets, and popish books which had been taken on the above occasion. A few days after, George Gray convinced the Lords that he was a sound Protestant, and that, having only possessed his house since June last, he was unaware of the communication with the adjacent one through which the priests were

supposed to have escaped; indeed, was innocent of the whole matter; wherefore they immediately ordered him to be set at liberty.

The Council ordered the articles taken to be carried back to Aberdeen, the silver chalice, crucifix, and all other silver-work to be melted down, and the proceeds given to the poor of the burgh, and all the other articles ‘to be carried to the mercat-cross, and the magistrates to see them burnt thereat by the hands of the common executioner.’

John Cowie remained in the Edinburgh Tolbooth 1698. till the 24th of November, notwithstanding an extremely low state of health, and stout protestations against his being a ‘trafficking papist’—that is, ‘one who endeavours to proselytise others to the Catholic faith.’ On a petition setting forth his unmerited sufferings, the Lords ordered him to be set free, but not without giving caution that he would henceforth live on the south side of the Tay.

Alexander Gibb (December 15) represented himself as having now suffered five months of wretched imprisonment, oppressed with sickness, poverty, and old age, being seventy-three years old. He was content to take freedom, on the condition of never returning to Aberdeen, ‘though he can hardly live elsewhere.’ The Lords liberated him on that condition, for the observance of which he had to give bond to the extent of five hundred merks.

In April 1699, notwithstanding the severe procedure in the recent case of the Catholics who met for worship at Aberdeen, it was found that the Duke of Gordon made bold to have such meetings in his ‘lodging’ in Edinburgh. If Macky is right in saying of him that ‘he is a Catholic because he was bred so, but otherwise thinks very little of revealed religion,’ we may suppose that his Grace was mainly induced by good-nature to allow of these dangerous assemblages. However this might be, the authorities made seizure of the Duke and a considerable number of people of all ranks, as they were met together in his house for mass. The whole party was soon after cited before the Privy Council, when his Grace and seven of the other offenders appeared. The Duke spoke so boldly of the laws against his faith and worship, that he was immediately sent prisoner to the Castle; three others were put in the Tolbooth. What was done with the rest, does not appear. After a fortnight’s imprisonment, the Duke made a humble apology, and was liberated.

In a letter from the king, dated at Loo, July 14th, the procedure of the Council in the case of the Duke's disrespectful expressions was approved of, the more so 'since those of that persuasion must be convinced they have met with nothing from us but the utmost lenity.' 'We have ever,' says William, 'been adverse from prosecuting any on account of their religion, so long as, in the exercise thereof, they have kept within the bounds of moderation; but when, in contempt of our lenity, they proceed to such an open and barefaced violation of the laws as tends evidently to the disturbance of the public peace, you may be assured we will never countenance nor protect them, but suffer the law and justice to have its due course.' It is difficult to see how the few Catholics 1698. of Edinburgh, if they were to be allowed their worship at all, could have conducted it more inoffensively than by meeting in a private house, or how it could be an offence on their part that the vulgar were liable to be provoked to outrage by the fact of their worshipping.

It was thought at this time, however, that 'popery' was becoming impudent, and an unusual number of priests was supposed to be going about the country. Considering the hazard with which 'the true Protestant religion' was threatened, the parliament, in May 1700, enacted a severe statute, which continued to be acted upon for many years afterwards, assigning a reward of five hundred merks for the detection of each priest and Jesuit, and ordaining that any one who was so by habit and repute, and refused to disclaim the character on oath, should be liable to banishment without further ceremony, under certification that, on returning, still a papist, he should be liable to death. Lay Catholics were in the same act declared incapable of succeeding to heritable property; and their incompetency to educate their children, formerly established, was confirmed.^[232] The identity of this act *in principle* with the dragooning system practised against the western hill-folk in 1685, is obvious.

Notwithstanding the crushing severity of this treatment, the professors of the Catholic religion in Scotland contrived to establish about this time, and to maintain, one seminary for at least the preparation of its priesthood; but it was of a character to impress more forcibly the sternness of Protestant prohibition than had there been none. It was literally a little cottage, situated on the bank of the Crombie Water, in a very sequestered situation among the mountains dividing Inveravon parish, in Banffshire, from the Cabrach, Glenbucket, and Strathdon, in Aberdeenshire. It was named *Scalan*, which

means an obscure or shadowy place, and the name was most appropriate. Here, far from the haunts of civilised man, hardly known but to a few shepherds, or the wandering sportsman, living on the proceeds of a small tract of mountain-ground, a priest superintended the education of eight or ten youths, designed for the most part to complete their course and take ordination on the continent; though, occasionally, the rite of ordination was performed at Scalán. This truly humble seminary, as singular a memorial of the tenacity of the human heart towards the 1698. religious tenets impressed on it as the Covenanters' moorland communion-tables or their mossy graves in the west, continued in existence at the close of the eighteenth century.^{[\[233\]](#)}

The African Company, undeterred by the JULY 26. opposition of the English mercantile class, had never for a moment, since the subscription of their stock in spring 1696, paused in their design. They caused six ships of good size to be built in Holland, and these they partially mounted with guns, with a view to defence in case of need, at the same time taking care to furnish them with an ample store of provisions, and of every conceivable article likely to be required in a new colony. Twelve hundred select men, many of them Highlanders, and not a few soldiers who had been discharged at the peace of Ryswick, mustered under a suitable number of officers, who were generally men of good birth, on board this little fleet. 'Neighbouring nations,' says Dalrymple, 'with a mixture of surprise and respect, saw the poorest kingdom of Europe sending forth the most gallant and the most numerous colony that had ever gone from the old to the new world.'

On the summer day noted, the colony left Leith, in five ships, amidst 'the tears, and prayers, and praises' of a vast multitude of people, all interested in the enterprise either by a mercantile concern in it, or as viewing it in the light of an effort to elevate the condition and character of their country. We are told by one who might have heard eye-witnesses describe the scene, and probably did so,^{[\[234\]](#)} that 'many seamen and soldiers whose services had been refused, because more had offered themselves than were needed, were found hid in the ships, and, when ordered ashore, clung to the ropes and timbers, imploring to go, without reward, with their companions.' The ships had a prosperous voyage to a point on the Gulf of Darien, which had been

previously contemplated as suitable for their settlement, though the order for the purpose was kept sealed till the expedition touched at Madeira. Landing here on the 4th of November, they proceeded to fortify the peninsula on one side of the bay, cutting a channel through the connecting isthmus, and erecting what they called Fort St 1698. Andrew, with fifty cannon. 'On the other side of the harbour [bay] there was a mountain a mile high, on which they placed a watch-house, which, in the rarefied air within the tropics, gave them an immense range of prospect, to prevent all surprise. To this place it was observed that the Highlanders often repaired to enjoy a cool air, and to talk of their friends whom they had left behind.' They purchased the land they occupied from the natives, and sent out friendly messages to all Spanish governors within their reach. The first public act of the colony was to publish a declaration of freedom of trade and religion to all nations.'^[235]

It does not belong to the plan of the present work to detail the history of the Darien adventure. Enough to say that a second expedition of six ships sailed in May and August 1699, and that this was soon followed by a third, comprising thirteen hundred men. Before the first of these dates, the first colony had fully experienced the difficulties of their position. One of their vessels happening to fall ashore near Carthagera, the crew and its master, Captain Pinkerton, were seized as pirates, and with difficulty spared from hanging. Hunger, dissension, and disease took possession of the settlement, and in June the survivors had to leave it, and sail for New York. When the second set of ships arrived, they found the place a desert, marked only by the numerous graves of the first settlers. The men of the second and third expeditions, brought together on that desolate spot, felt paralysed. Discontent and mutiny broke out amongst them. After one brilliant little effort against the Spaniards, the remainder of these unfortunate colonists had to capitulate to their enemies, and abandon their settlement (March 1700). It has been stated that not above thirty of them ever returned to their native country.

The failure of the Darien settlement was a death-blow to the African Company, the whole capital being absorbed and lost. So large a loss of means to so poor a country, amidst the home-troubles of famine and disease, was felt severely. It seemed to the people of Scotland that the hostility of the king's government, rather than that of the Spaniards, had been chiefly to blame for their misfortunes; and certainly there is some truth

in the allegation. Nevertheless, when the whole matter is viewed without national prejudice, it must be admitted that there was a radical want of prudential management and direction in the expedition to Darien, and that thus chiefly did Scotland lose the opportunity of 1698. possessing herself of the most important station for commerce in the world.

It is stated by Macky, in his *Characters*, that Mr Johnston, Secretary of State for Scotland (son of the celebrated Archibald Johnston of Warriston), was the person who carried the bill for the African Company through the Scottish parliament, and that it proved for a time his ruin as a statesman. ‘What was very strange, the Whigs, whose interest it was to support him, joined in the blow. This soured him so, as never to be reconciled all the king’s reign, though much esteemed.’^[236]

The records of parliament at this date present a AUG. 8. remarkable example of the mutability of fortune. Robert Miln had risen by trade to considerable distinction, and, in the latter years of Charles II., was one of two persons who farmed the entire customs and excise revenue of Scotland. He acquired lands—Binny and Barnton, in Lothian—and in 1686 was raised to a baronetage. He had, however, been unfortunate in some of his latter transactions, and become involved in large responsibilities for others; so that now he was in danger of having his person laid hold of by his creditors. On his petition, the parliament gave him a personal protection. Serious people, who remembered that Sir Robert, as bailie of Linlithgow, had conducted the burning of the Covenant there in 1662, would smile grimly, and draw inferences, when they heard of him as a suppliant in fear of a jail. Wodrow tells us that he subsequently died in bankrupt circumstances in ‘the Abbey;’^[237] that is, the sanctuary of Holyrood.

Warrant was given by the Privy Council to the SEP. 20. keeper of the Tolbooth, to provide meat and drink to the prisoners under his care, as per a list furnished by the Lord Advocate, at the rate of four shillings Scots *per diem*, to be paid by the Treasury.

From various orders by the Privy Council, it appears that a groat a day was at this time deemed a proper allowance for the subsistence of an

imprisoned witch, recruit, or any other person in humble life dependent for aliment on the public.

Jean Gordon, widow of Mr William Fraser, minister of Slaines, Aberdeenshire, had been for some years decayed in body and mind, so as probably to be a considerable burden to her surviving relatives. One morning in this month, she was found dead in her bed, and after the usual interval, she was duly interred. Soon after, some suspicions arose against Mr William Fraser, minister of the gospel, stepson of the deceased, to the effect that he had poisoned and bled her to death, although, as he alleged, he had been absent at Aberdeen at the time of her death. A warrant being obtained, the body was raised from the grave, and examined. No external mark of violence was discovered, and science did not then give the means of detecting the internal consequences of poison. It was resolved, however, to revive, in this instance, a mode of discovering murder, which has long been ranked with vulgar superstitions. The body being laid out in open view, Mr William Dunbar, minister of Cruden, prayed to God that he would discover the authors of any violence done to the deceased lady, if any there were; and then the persons present, one by one, including the suspected stepson, touched the body; 'notwithstanding whereof there appeared nothing upon the body to make the least indication of her having been murdered.' A precognition reporting all these circumstances, and making no charge against any one, was sent to the Lord Advocate.

OCT.
1698.

The friends of the deceased nevertheless continued to suspect the stepson, and caused him to be apprehended and thrown into Aberdeen jail. He lay there unaccused for three months, 'to the ruin of himself and his small family,' till at length they agreed to have him charged before the Commissioners of Justiciary for the Highlands. Hereupon (March 6, 1699) he petitioned the Privy Council for trial before the High Court of Justiciary; which was granted.^[238] What was the upshot of the affair does not appear.

It was reported by the Lord Advocate to the Privy Council that there had just been put into his hand *a challenge at sharps*, which had been sent by one fencing-master to another, 'to be

Nov. 29.

performed in the face of the school.’ He was told ‘it was but a business of sport, and that there was no hazard in it.’ Nevertheless, the Council recommended his lordship to inquire further into the matter, and report, or act as he might think of it.^[239]

Mr George Brown, a minister under banishment from Edinburgh on account of the performance of irregular marriages, came before the Privy Council for their favour in behalf of an instrument he had invented—called *Rotula Arithmetica*—‘whereby he is able to teach those of a very ordinary capacity who can but read the figures, to add, subtract, multiply, and divide, though they are not able otherwise readily to condescend [specify] whether seven and four be eleven or twelve.’ This instrument he set forth as calculated ‘for freeing the mind from that *rack of intortion* to which it is obliged in long additions, as some honourable persons of their Lordships’ number (with whom he had the honour to converse on that head) are able to instruct.’

DEC. 1.
1698.

The Lords treated this arithmetical nonjurant relentlessly, and both gave him a copyright in the *Rotula* for fourteen years, and allowed him to return to Edinburgh.

On the 13th December 1698, the Lords of the Council recommended the Lords of the Treasury to give ‘a reasonable allowance to Mr George Brown, minister, to be an encouragement to him for his inventing and making of his *Rotula Arithmetica*.’

His arithmetical machine comes up again three or four times in the Privy Council books during the next few years.

Charles Hope of Hopetoun had a band of DEC. 22.
workmen constantly engaged at his mines in the Leadhills, far up one of the higher vales of Lanarkshire. It not being worth while for each man to go singly some miles for his victuals, the proprietor was desirous of arranging that one should go and make marketing for himself and all the rest; but there was an obstacle—under terror of a late act against forestalling, no one could venture to sell so much grain to any single person as was required for this body of miners. Hopetoun^[240] was therefore obliged to address the Privy Council, setting forth the case, and craving a permission for his bailie to make purchases to the required amount, on full security that the victual so bought should not be ‘laid up or girkelled, or sold out to any other persons except the said workmen,’ and that it should be 1698.
‘given out and sold to the workmen at the price it was bought for in the market, and no higher.’ A dispensation from the act was granted to Hopetoun accordingly.

At the same time, a like concession was made in favour of ‘Robert Allan, chamberlain to the Earl of Marr,’ for the benefit of the men working in his lordship’s coal-mines; the same privilege was conferred on the Duke of Queensberry, for the workmen at his lead-mines, and ‘workmen builders at his Grace’s house [Drumlanrig];’ on the Earl of Annandale, for his servants and workmen; and on Alexander Inglis, factor for the colliers on the estate of Clackmannan. All these noblemen were members of the Privy Council.

Not long after (May 4, 1699), Roderick Mackenzie of Prestonhall was desirous of bringing a quantity of victual from his lands in Forfarshire, to be used at his residence in Mid-Lothian; but it was prevented by the magistrates of Dundee from being shipped there, upon pretence of a late act of Privy Council, allowing certain persons to prohibit the transporting of victual from the northern to the southern districts, if they should see fit. It was evident, argued Mackenzie, that this act was only designed to prevent a traffic in corn for profit at the expense of the lieges: his case was wholly different, as clearly appeared from the smallness of the quantity in question—namely, forty bolls of meal, twenty of malt, and thirty of oats.

On his petition, the Council allowed him to transport the victual, and enjoined that in doing so ‘he should not be troubled or robbed within the said town of Dundee, or liberties thereof, as they will be answerable.’^[243]

Foreigners were accustomed to come to DEC. 27.
Scotland with ships, and carry away multitudes of people to their own plantations, there to serve as labourers. There was now issued a strict proclamation against this practice, offenders to be held and treated as man-stealers.^[244]

Nevertheless, in November 1704, Captain William Hutcheson, of the province of Maryland, petitioned the Privy Council for liberty to transport to his country six young pickpockets and twenty-two degraded women, then in the correction-house of Edinburgh, who had all ‘of their own choice and consent’ agreed to go along with him; and the request was agreed to, under no other restriction than that he was not to carry 1698.
away any other persons, and should ‘aliment’ those whom he was to take away until they should leave the country.

Nearly about the same time, John Russell, merchant in Edinburgh, was allowed to carry off twenty persons, chiefly women, from the jails of the city, to the plantations.

Such were the facts in view when pamphleteers afterwards twitted the rebellious colonists with the taunt that the Adam and Eve of Maryland and Virginia came out of Newgate.

When the Bank of Scotland was started in 1695, 1699. JAN.
there were no notes for sums below five pounds. For the extension of the bank’s paper, there were now issued notes for twenty shillings—ever since a most notable part of the circulating medium in Scotland. These small notes readily got into use in Edinburgh and some parts of the provinces; yet the hopes which some entertained of their obtaining a currency in public markets and fairs were not at first realised—for, as one remarks thirty years later, ‘nothing answers there among the common people but silver money,^[245] even gold being little known amongst them.’^[246]

The funeral of Lady Anne Hall, wife of Sir JAN. 30.
James Hall of Dunglass, took place at the old church near her husband’s seat, and was attended by a multitude of the nobility and other distinguished persons. A quarrel happened between the respective coachmen of the Earls of Lothian and Roxburgh, for precedence, ‘which was very near engaging

the masters, but was prevented.’ It appears that the two noble earls were aspirants for promotion in the peerage, and thus were rendered more irritable.^[247]

After the *Mercurius Caledonius* had come to the end of its short and inglorious career in 1661, there was no other attempt at a newspaper in Scotland till 1680, when one was tried under the name of the *Edinburgh Gazette*. This having likewise had a short life, nineteen years more were allowed to elapse before the craving of the public mind for intelligence of contemporary events called for another effort in the same direction.

MAR. 2.

There was a gentleman hanging about Edinburgh, under the name of Captain Donaldson; originally in trade there; afterwards an officer in the Earl of Angus’s regiment, for which he had levied a company at his own charge. He had been wounded in seven places at the battle of Killiecrankie, and was confined for several weeks by the Highlanders in Blair Castle. Finally turned adrift at the peace of Ryswick, with no half-pay, he found himself in want of both subsistence and occupation, when he bethought him of favouring his fellow-citizens with periodical news.^[248] Having issued two or three trial-sheets, which were ‘approved of by very many,’ he now obtained from the Privy Council an exclusive right to publish ‘ane gazett of this place, containing ane abridgment of foraine newes, together with the occurrences at home;’ and the *Edinburgh Gazette* (the second of the name) accordingly began to make its appearance at the date marginally noted.

1699.

Wisely calculating that news were as yet but a poor field in our northern region, Donaldson supplemented the business of his office with a typographical device on which more certain dependence could be placed. He informed the Privy Council that he had fallen upon a wholly new plan for producing funeral-letters—namely, to have the principal and necessary parts done by characters ‘in fine writ,’ raised on ingots of brass, leaving blanks for names, dates, and places of interment. Stationery in this form would be convenient to the public, especially in cases of haste, ‘besides the decencie and ornament of a border of skeletons, mortheads, and other emblems of mortality,’ which he had ‘so contrived that it may be added or

subtracted at pleasure.’ The Lords, entering into Donaldson’s views on this subject, granted him a monopoly of his invention for nineteen years.

Very few months had the *Gazette* lived when it brought its author into trouble. On the 8th of June he was suddenly clapped in prison by the Privy Council, ‘for printing several things in his *Gazette* which are not truths, and for which he has no warrant.’ Five days after, he came before them with a humble petition, in which he set forth, that he had begun the *Gazette* under a sense of its probable usefulness, ‘notwithstanding he was dissuaded by most of his friends from attempting to undertake it, 1699.’ as a thing that could not defray the charges of printing, intelligence, &c.’ Trusting that their Lordships must now ‘see how useful it is,’ he begged them to overlook what was amiss in a late number, and ‘give him instructions how to act for the future.’ They liberated him, and at the same time made arrangements for having the *Gazette* duly revised by a committee of their own body before printing.^[249]

Donaldson will reappear before us under date February 19, 1705.

Robert Logan, cabinet-maker, professed to have made an invention which even the present inventive age has not seen repeated. He averred that he could make kettles and caldrons of wood, which could ‘abide the strongest fire,’ while boiling any liquor put into them, ‘as weel as any vessels made of brass, copper, or any other metal,’ with the double advantage of their being more durable and only a third of the expense. The Earl of Leven having made a verbal report in favour of the invention, Robert obtained a monopoly of it for ‘two nineteen years.’^[250]

Apostacy from the Protestant religion was held as a heinous crime in Scotland. By an act of James VI., all persons who had been abroad were enjoined, within twenty days after their return, to make public profession of their adherence to ‘the true faith;’ otherwise to ‘devoid the kingdom’ within forty days. By another statute of the same monarch, an apostate to popery was obliged to leave the country within forty days, ‘under highest pains.’

The faithfully Presbyterian Lord Advocate had now heard of a dreadful case in point. David Edie, formerly a bailie of Aberdeen, having been some

years abroad, was come home a papist, everywhere boldly avowing his apostacy; nay, he might be considered as a trafficking papist, for he had written a letter to Skene of Fintry, containing the reasons which had induced him to make this disastrous change. Already, the magistrates of his native city had had him up before them on the double charge of apostacy and trafficking; but 'he behaved most contemptuously and insolently towards them, saying: "They acted Hogan-Mogan-like; but he expected better times."' It was therefore become necessary to take 1699. the severest measures with him, 'to the terror of others to commit the like in time coming.'

On the 9th of November, David Edie was brought before the Privy Council, and charged by the Lord Advocate and Solicitor-general with the crime of apostacy, when he fully avowed his change of opinion, and likewise his having written on the subject to Skene of Fintry. He was consequently remitted to the Tolbooth of Edinburgh, to remain there a prisoner during the pleasure of the Council. They were, however, comparatively merciful with the ex-bailie, for, five days later, they called him again before them, and passed upon him a final sentence of banishment from the kingdom, he to be liberated in the meantime, in order to make his preparations, on his granting due caution for his departure within forty days.

The tacksmen of the customs and their officers JULY 17. were of course far from being popular characters. The instinct for undutied liquors was strong in the Scotch nature, and would occasionally work to unpleasant results. Two waiters, named Forrest and Hunter, went at the request of the tacksmen to Prestonpans, to try to verify some suspicions which were entertained regarding certain practices in that black and venerable village. Finding several ankers of sack and brandy hid in the house of Robert Mitchell, skipper, they carried them to the Custom-house, and as they were returning, they were assailed by a multitude of men and women, who 'fell desperately upon them, and did bruise and bleed them to ane admirable height,' robbing them, moreover, of their papers and fourteen pounds of Scots money. Things might have been carried to a worse extremity, had not the collector and others come up and diverted the rabble. As it was, one of the men was so severely wounded, as to lie for some time after in the chirurgeon's hands.

A few days after, information being given of an embezzlement at Leith, a few waiters were sent on the search, and finding a number of half-ankers of brandy in a chest in a house in the Coalhill, carried them off to the Custom-house, but were assailed on the way by a great rabble, chiefly composed of women, who beat them severely, and rescued the goods.

The Lord Advocate was ordered by the Privy Council to inquire into these doings, and take what steps might seem necessary.^[251]

Whenever a gentleman at this time returned 1699. JULY. from France, he became an object of suspicion to the government, on account of his having possibly had some traffickings with the exiled royal family, with views to the raising of disturbances at home. The Earl of Nithsdale having come from that country in July, a committee of the Privy Council was sent to speak with him, and ‘report what they find in the said earl’s deportment in France or since he came therefrom.’ A few days afterwards, he was formally permitted ‘to go home and attend to his own affairs.’ In November, Graham of Boquhapple, having returned from France ‘without warrant from his majesty,’ was put up in the old Tolbooth, there to remain *a close prisoner* till further order, but with permission for his family and a physician to visit him. At the end of February, Graham, having given an ingenuous account of himself as a worn-out old soldier of the Revolution, was liberated.^[252]

From Ross-shire, a new batch of witches was JULY 18. reported, in the persons of ‘John Glass in Spittal; Donald M’Kulkie in Drumnamerk; Agnes Desk in Kilraine; Agnes Wrath there; Margaret Monro in Milntown; Barbara Monro, spouse to John Glass aforesaid; Margaret Monro, his mother; Christian Gilash in Gilkovie; Barbara Rassa in Milntown; Mary Keill in Ferintosh; Mary Glass in Newton; and Erick Shayme.’ All being ‘alleged guilty of the diabolical crimes and charms of witchcraft,’ it was most desirable that they should be brought to a trial, ‘that the persons guilty may receive condign punishment, and others may be deterred from committing such crimes and malefices in time coming;’ but the distance was great, and travelling expensive; so it was determined to issue a commission to Robertson of Inshes and several other gentlemen of the district, for doing justice on the offenders.

The proceedings of Mr Robertson and his associates were duly reported in November, and a committee was appointed by the Privy Council to consider it, that they might afterwards give their opinion, ‘whether the sentence mentioned in the said report should be put in execution as pronounced or not.’ On the 2d of January 1700, the committee, composed of the judges Rankeillor and Halcraig, reported that Margaret Monro and Agnes Wrath had made confession—for them they recommended some arbitrary punishment. Against John Glass in 1699. Spittal, and Mary Keill in Ferintosh, it was their opinion that nothing had been proved. The Council consequently assoilzied these persons from the sentence which had been passed upon them by the local commissioners, and ordered their liberation from the jail of Fortrose. As to the other persons, they adopted the proposal of an arbitrary punishment, remitting to the committee to appoint what they thought proper.^[253] This is the first appearance of an inclination in the central authorities to take mild views of witchcraft.^[254] We are not yet, however, come to the last instance of its capital punishment.

On the 20th of November 1702, Margaret Myles was hanged at Edinburgh for witchcraft. According to a contemporary account: ‘The day being come, she was taken from the prison to the place of execution. Mr George Andrew, one of the preachers of this city, earnestly exhorted her, and desired her to pray; but her heart was so obdured, that she answered she could not; for, as she confessed, she was in covenant with the devil, who had made her renounce her baptism. After which, Mr Andrew said: “Since your heart is so hardened that you cannot pray, will you say the Lord’s Prayer after me?” He began it, saying: “Our Father which art in heaven;” but she answered: “Our Father which wart in heaven;” and by no means would she say otherways, only she desired he might pray for her. He told her: “How could she bid him pray for her, since she would not pray for herself.” Then he sung two verses of the 51st Psalm, during which time she seemed penitent; but when he desired her to say: “I renounce the devil,” she said: “I unce the devil;” for by no means would she say distinctly that she renounced the devil, and adhered unto her baptism, but that she unced the devil, and hered unto her baptism. The only sign of repentance she gave was after the napkin had covered her face, for then she said: “Lord, take me out of the devil’s hands, and put me in God’s.”’^[255]

The inventive spirit, of which we have seen so many traits within the last few years, had entered the mind of the poor Englishman, Henry Neville Payne, so long confined, without trial, under the care of the Scottish government, on account of his alleged concern in a Jacobite conspiracy. In a petition dated at Stirling Castle, he stated to the Privy Council, that ‘though borne down with age, poverty, and a nine years’ imprisonment, he is preparing an experiment for river navigation, whereby safer, larger, and swifter vessels may be made with far less charge than any now in use.’ As this experiment, however, owing to the straitened circumstances and personal confinement of the inventor, had cost ten times more than it otherwise would have done, so did he find it could not be perfected unless he were allowed personally to attend to it. He entreated that, however they might be determined to detain him in Scotland, they would, ‘in Christian compassion to his hard circumstances, permit him on his parole, or moderate bail, to have freedom within some limited confinement near this place, to go forth of the Castle, that he may duly attend his business, as the necessity of it requires.’

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The Council granted him liberty of half a mile’s range from the Castle, during a limited portion of the day, under a guard.^[256]

In his *Second Discourse on Public Affairs*, published in 1698, Fletcher of Salton made some statements regarding the multitude of the vagrant poor in Scotland which have often been quoted. He remarked that, owing to the bad seasons of this and the three preceding years, the evil was perhaps now greater than it had ever been; ‘yet there have always been in Scotland such numbers of poor, as by no regulations could ever be ordinarily provided for; and this country has always swarmed with such numbers of idle vagabonds, as no laws could ever restrain.’ He estimated the ordinary number of such people at a hundred thousand, and the present at two hundred thousand—‘vagabonds who live without any regard to the laws of the land, or even those of God and nature.’ ‘No magistrate,’ he says, ‘could ever discover which way one in a hundred of these wretches died, or that ever they were baptised. Many murders have been discovered among them; and they are not only a most unspeakable oppression to poor tenants (who, if they give not bread or some kind of provision to perhaps forty such villains in a day, are sure to be insulted by

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them), but they rob many poor people who live in houses distant from any neighbourhood. In years of plenty, many thousands of them meet together in the mountains, where they feast and riot for many days; and at country-weddings, markets, burials, and other the like public occasions, they are to be seen, both men and women, perpetually drunk, cursing, blaspheming, and fighting together.’

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To remedy this evil, Fletcher proposed in all seriousness what reads like Swift’s suggestion to convert the children of the Irish poor into animal food. He recommended that the great mass of the able-bodied of these superfluous mortals should be reduced to serfdom under such persons as would undertake to keep and employ them, arguing that slavery amongst ancient states was what saved them from great burdens of pauper population, and was a condition involving many great advantages to all parties. He was for hospitals to the sick and lame, but thought it would be well, for example and terror, to take three or four hundred of the worst of the others, commonly called *jockies*, and present them to the state of Venice, ‘to serve in the galleys against the common enemy of Christendom.’

Most of the patriot’s contemporaries probably acknowledged the existence of the evil which he described—though he probably exaggerated it to the extent of at least a third—but there is no appearance of the slightest movement having ever been made towards the adoption of his remedy. A modern man can only wonder at such a scheme proceeding from one whose patriotism was in general too fine for use, and who held such views of the late tyrannical governments, that he was for punishing their surviving instruments several years after the Revolution.^[257]

At the date noted, the government was revolving more rational plans for mitigating the evils of the wide-spread mendicancy. The Privy Council issued a proclamation, adverting to the non-execution of the laws for the poor during the time of the scarcity, but intimating that better arrangements were rendered possible by the plentiful harvest just realised. The plan ordered to be adopted was to build correction-houses at Edinburgh, Dumfries, Ayr, Glasgow, Stirling, Perth, Dundee, Aberdeen, and Inverness, each for the county connected with the burgh, into which the poor should be received: no allusion is made to the other counties. The poor were to be confined to the districts in which they

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had had residence for the last three years. It was ordained of each correction-house, that it should have ‘a large close sufficiently enclosed for keeping the said poor people, that they be not necessitat to be always within doors to the hurt and hazard of their health.’ And the magistrates of the burghs were commanded to take the necessary steps for raising these pauper-receptacles under heavy penalties.^[258]

It was customary for the Lords of Privy Council Nov. 9. to grant exclusive right to print and vend books for certain terms—being all that then existed as equivalent to our modern idea of copyright. Most generally, this right was given to booksellers and printers, and bore reference rather to the mercantile venture involved in the expense of producing the book, than to any idea of a reward for authorcraft. Quite in conformity with this old view of literary rights, the Council now conferred on George Mossman, stationer in Edinburgh, ‘warrant to print and sell the works of the learned Mr George Buchanan, in ane volume in folio, or by parts in lesser volumes,’ and discharged ‘all others to print, import, or sell, the whole or any part of the said Mr George his works in any volume or character, for the space of nineteen years.’

In conformity with the same view of copyright, another Edinburgh stationer, who, in 1684, had obtained a nineteen years’ title to print Sir George Mackenzie’s *Institutes of the Law of Scotland*, soon after this day was favoured with a renewal of the privilege, on his contemplating a second edition.

Robert Sanders, printer in Glasgow, had printed a large impression of a small book, entitled *Merchandising Spiritualised, or the Christian Merchant Trading to Heaven*, by Mr James Clark, minister at Glasgow; which, in Sanders’s opinion, was calculated to be ‘of 1699. excellent use to good people of all ranks and degrees.’ For his encouragement in the undertaking, he petitioned the Privy Council (July 13, 1703) for an exclusive right of publishing the book; and he was fortified in his claim by a letter from the author, as well as a ‘testificat from Mr James Woodrow, professor of divinity at Glasgow, anent the soundness of the said book.’ The Council, taking all these things into account, gave Sanders a licence equivalent to copyright for nineteen years.^[259]

The abundant harvest of 1699 was Nov. 30. acknowledged by a general thanksgiving. But, that the people might not be too happy on the occasion, the king, in the proclamation for this observance, was made to acknowledge that the late famine and heavy mortality had been a just retribution of the Almighty for the sins of the people; as likewise had been ‘several other judgments, specially the frustrating the endeavours that have been made for advancing the trade of this nation.’ [The royal councillors were too good Christians, or too polite towards their master, to insinuate as a secular cause the subserviency of the king to English merchants jealous of Scottish rivalry.] For these reasons, he said, it was proper, on the same day, that there be solemn and fervent prayers to God, entreating him to look mercifully on the sins of the people, and remove these, ‘the procuring causes of all afflictions,’ and permit that ‘we may no more abuse his goodness into wantonness and forgetfulness.’

The people of Scotland were poor, and lived in the most sparing manner. When they made an honourable attempt to extend their industry, that they might live a little better, their sovereign permitted the English to ‘frustrate the endeavour.’ He then told them to humble themselves for the sins which had procured their afflictions, and reproached them with a luxury which they had never enjoyed. The whole affair reminds one of the rebuke administered by Father Paul to the starved porter in *The Duenna*: ‘Ye eat, and swill, and drink, and gormandise,’ &c.

Notwithstanding the abundance of the harvest, DEC. 14. universally acknowledged a fortnight before by solemn religious rites, there was already some alarm beginning to arise about the future, chiefly in consequence of the very natural movements observed among possessors of and dealers in grain, for reserving the stock against 1699. eventual demands. There now, therefore, appeared a proclamation forbidding export and encouraging import, the latter step being ‘for the more effectual disappointing of the ill practices of forestalled and regraters.’^[260]

We have at this time a curious illustration of the DEC. 7. slowness of all travelling in Scotland, in a petition of Robert Irvine of

Corinhaugh to the Privy Council. He had been cited to appear as a witness by a particular day, in the case of Dame Marjory Seton, relict of Lewis Viscount of Frendraught, but he did not arrive till the day after, having been ‘fully eight days upon the journey that he usually made in three,’ in consequence of the unseasonableness of the weather, by which even the post had been obstructed. The denunciation against him for nonappearance was discharged.^[261]

A case of a singular character was brought before the Court of Justiciary. In the preceding July, a boy named John Douglas, son of Douglas of Dornock, attending the school of Moffat, was chastised by his teacher, Mr Robert Carmichael, with such extreme severity that he died on the spot. The master is described in the indictment as beating and dragging the boy, and giving him three lashings without intermission; so that when ‘let down’ for the third time, he ‘could only weakly struggle along to his seat, and never spoke more, but breathed out his last, and was carried dying, if not dead, out of the school.’ Carmichael fled, and kept out of sight for some weeks, ‘but by the providence of God was discovered and seized.’

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‘The Lords decerned the said Mr Robert to be taken from the Tolbooth of Edinburgh by the hangman under a sure guard to the middle of the Landmarket, and there lashed by seven severe stripes; then to be carried down to the Cross, and there severely lashed by six sharp stripes; and then to be carried to the Fountain Well, to be severely lashed by five stripes; and then to be carried back by the hangman to the Tolbooth. Likeas, the Lords banish the said Mr Robert furth of this kingdom, never to return thereto under all highest pains.’^[262]

Robert Carmichael was perhaps only unfortunate in some constitutional weakness of his victim. An energetic use of the lash was the rule, not the exception, in the *old school*—nay, even down to times of which many living persons may well say, ‘quæque miserrima vidi, et quorum pars magna fui.’ In the High School of Edinburgh about 1790, one of the masters (Nicol) occasionally had twelve dunces to whip at once, ranking them up in a row for the purpose. When all was ready, he would send a polite message to his colleague, Mr Cruikshank, ‘to come and hear his *organ*.’ Cruikshank having come, Mr Nicol would proceed to administer

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a rapid cursory flagellation along and up and down the row, producing a variety of notes from the patients, which, if he had been more of a scientific musician, he might have probably called a *bravura*. Mr Cruikshank was sure to take an early opportunity of inviting Mr Nicol to a similar treat.

One of the most conspicuous persons at this time JAN.
in Scotland—one of the few, moreover, known out of his own country, or destined to be remembered in a future age—was Dr Archibald Pitcairn. He practised as a physician in Edinburgh, without an equal in reputation; but he was also noted as a man of bright general talents, and of great wit and pleasantry. His habits were convivial, after the manner of his time, or beyond it; and his professional Delphi was a darkling tavern in the Parliament Close, which he called the Greping Office (*Latinè*, ‘Greppa’), by reason of the necessity of groping in order to get into it. Here, in addition to all difficulties of access, his patients must have found it a somewhat critical matter to catch him at a happy moment, if it was true, as alleged, that he would sometimes be drunk twice a day. It is also told of him that, having given an order at home, that when detained overnight at this same Greping Office, he should have a clean shirt sent to him by a servant next morning, the rule was on one occasion observed till the number of clean shirts amounted to six, all of which he had duly put on; but, behold, when he finally re-emerged and made his way home, the whole were found upon him, one above the other! Perhaps these are exaggerations, shewing no more than that the habits of the clever doctor were such as to have excited the popular imagination. It was a matter of more serious moment, that Pitcairn was insensible to the beauties of the Presbyterian polity and the logic of the Calvinistic faith—being for this reason popularly labelled as an atheist—and that, in natural connection with this frame of opinion, he was no admirer of the happy revolution government.

He had, about this time, written a letter to his friend, Dr Robert Gray, in London; and Captain Bruce, a person attached to 1700.
the service of the Duke of Hamilton, had sent it to its destination under a cover. It fell, in London, into the hands of the Scottish Secretary, Seafield, who immediately returned it to the Lord Chancellor in Edinburgh, as one of a dangerous character towards the government. The Lord Chancellor immediately caused Dr Pitcairn and Captain Bruce to be apprehended and

put into the Tolbooth, each in a room by himself. On the letter being immediately after read to the Privy Council (January 16), they entirely approved of what had been done, and gave orders for a criminal process being instituted before them against the two gentlemen.



Dr Pitcairn.

On the 25th of January, Pitcairn was brought before the Council on a charge of contravening various statutes against *leasing-making*—that is, venting and circulating reproaches and false reports against the government. He was accused of having, on a certain day in December, written a letter to Dr Gray in reference to an address which was in 1700. course of signature regarding the meeting of parliament. This, he said, was going on unanimously throughout the nation, only a few courtiers and Presbyterian ministers opposing it, and that in vain; ‘twice so many have signed since the proclamation anent petitioning as signed it before.’ ‘He bids him [Dr Gray] take notice that there is one sent to court, with a title different, to beguile the elect of the court, if it were possible.’ ‘And all the corporations and all the gentlemen have signed the address, and himself

among the rest; and it is now a National Covenant, and, by Jove, it would produce a national and universal ——; to which he adds that he is thinking after a lazy way to reprint his papers, but hopes there shall be news ere they are printed, and that he is calculating the force of the *musculi abdominis* in digesting meat, and is sure they can do it, *une belle affaire*.’

In the letters of charge brought forward by the Lord Advocate, it was alleged that there were here as many falsehoods as statements, and the object of the whole to throw discredit on the government was manifest. One of his allegations was the more offensive as he had sought to confirm it ‘by swearing profanely as a pagan, and not as a Christian, “by Jove, it will produce a national and universal ——,” which blank cannot be construed to have a less import than a national and universal overturning.’ Seeing it clearly evidenced that he had ‘foolishly and wickedly meddled in the affairs of his majesty and his estate, he ought to be severely punished in his person and goods, to the terror of others to do the like in time coming.’

Dr Pitcairn, knowing well the kind of men he had to deal with, made no attempt at defence; neither did he utter any complaint as to the violation of his private correspondence. He pleaded that he had written in his cups with no evil design against the government, and threw himself entirely on the mercy of the Council. His submission was accepted, and he got off with a reprimand from the Lord Chancellor, after giving bond with his friend Sir Archibald Stevenson, under two hundred pounds sterling, to live peaceably under the government, and consult and contrive nothing against it.^[263]

This is the date of a conflagration in Edinburgh, FEB. 3. which made a great impression at the time, and was long remembered. It broke out in one of the densest parts of the city, in 1700. a building between the Cowgate and Parliament Close, about ten o’clock of a Saturday night. Here, in those days, lived men of no small importance. We are told that the fire commenced in a closet of the house of Mr John Buchan, being that below the residence of Lord Crossrig, one of the judges. Part of his lordship’s family was in bed, and he was himself retiring, when the alarm was given, and he and his family were obliged to escape without their clothes. ‘Crossrig, naked, with a child under his oxter [armpit], happing for his life,’ is cited as one of the sad sights of the night. ‘When people were sent into his closet to help out with his cabinet and papers, the

smoke was so thick that they only got out a small cabinet with great difficulty. Albeit his papers were lying about the floor, or hung about the walls of his closet in pocks, yet they durst not stay to gather them up or take them ... so that that cabinet, and his servant [clerk]’s lettron [desk], which stood near the door of the lodging, with some few other things, was all that was saved, and the rest, even to his lordship’s wearing-clothes, were burnt.’^[264] According to an eye-witness, the fire continued to burn all night and till ten o’clock on Sunday morning, ‘with the greatest *frayor* and vehemency that ever I saw a fire do, notwithstanding that I saw London burn.’^[265] ‘The flames were so terrible, that none durst come near to quench it. It was a very great wind, which blew to such a degree, that, with the sparks that came from the fire, there was nothing to be seen through the whole city, but as it had been showers of sparks, like showers of snow, they were so thick.’^[266]

‘There are burnt, by the easiest computation, between three and four hundred families; the pride of Edinburgh is sunk; from the Cowgate to the High Street, all is burnt, and hardly one stone left upon another. The Commissioner, the President of Parliament, the President of the Court of Session [Sir Hugh Dalrymple], the Bank [of Scotland], most of the lords, lawyers, and clerks were burnt, besides many poor families. The Parliament House very nearly [narrowly] escaped; all registers confounded [the public registers being kept there]; clerks’ chambers and processes in such a confusion, that the lords and officers of state are just now met in Ross’s tavern, in order to adjourn the session by reason of 1700. the disorder. Few people are lost, if any at all; but there was neither heart nor hand left among them for saving from the fire, nor a drop of water in the cisterns. Twenty thousand hands flitting [removing] their trash, they knew not where, and hardly twenty at work. Many rueful spectacles, &c.’^[267]

The Town Council recorded their sense of this calamity as a ‘fearful rebuke of God,’ and the Rev. Mr Willison of Dundee did not omit to improve the occasion. ‘In Edinburgh,’ says he, ‘where Sabbath-breaking very much abounded, the fairest and stateliest of its buildings, in the Parliament Close and about it (to which scarce any in Britain were comparable), were on the fourth of February (being the Lord’s Day), burnt down and laid in ashes and ruins in the space of a few hours, to the astonishment and terror of the sorrowful inhabitants, whereof I myself was

an eye-witness. So great was the terror and confusion of that Lord's Day, that the people of the city were in no case to attend any sermon or public worship upon it, though there was a great number of worthy ministers convened in the place (beside the reverend ministers of the city) ready to have prayed with or preached to the people on that sad occasion, for the General Assembly was sitting there at the time. However, the Lord himself, by that silent Sabbath, did loudly preach to all the inhabitants of the city,' &c.^[268]

Some of the houses burnt on this occasion, forming part of the Parliament Square, were of the extraordinary altitude of fourteen stories, six or seven of which, however, were below the level of the ground on the north side. These had been built about twenty years before by Thomas Robertson, brewer, a thriving citizen, who is described in his epitaph in the Greyfriars' churchyard as 'remarkable for piety towards God, loyalty towards his prince, love to his country, and civility towards all persons;' while he was also, by these structures, 'urbis exornator, si non conditor.'^[269] But Robertson, as youngest bailie, had given the Covenant out of his hand to be burnt at the Cross in 1661; and 'now God in his providence hath sent a burning among his lands, so that that which was eleven years a-building, was not six hours of burning. Notwithstanding this, he was a good man, and lamented to his death the burning of the Covenant; he was also very helpful to the Lord's prisoners during the late persecution.'^[270]

There being no insurance against fire in those 1700. days, the heirs of Robertson were reduced from comparative affluence to poverty, and the head of the family was glad to accept the situation of a captain in the city guard, and at last was made a pensioner upon the city's charge.^[271]

Amongst the burnt out has been mentioned the Bank of Scotland. 'The directors and others concerned did with great care and diligence carry off all the cash, bank-notes, books, and papers in the office; being assisted by a party of soldiers brought from the Castle by the Earl of Leven, then governor thereof, and governor of the bank, who, with the Lord Ruthven, then a director, stood all the night directing and supporting the soldiers, in keeping the stair and passage from being overcrowded. But the Company lost their lodging and whole furniture in it.'^[272]

Lord Crossrig, who suffered so much by this fire, tells us in his *Diary*, that in the late evil times—that is, before the Revolution—he had been a member of a society that met every Monday afternoon ‘for prayer and conference.’ Since their deliverance, such societies had gone out of fashion, and profanity went on increasing till it came to a great height. Hearing that there were societies setting up in England ‘for reformation of manners,’ and falling in with a book that gave an account of them, he bethought him how desirable it was that something of the sort should be attempted in Edinburgh, and spoke to several friends on the subject. There was, consequently, a meeting at his house in November 1699, at which were present Mr Francis Grant (subsequently Lord Cullen); Mr Matthew Sinclair; Mr William Brodie, advocate; Mr Alexander Dundas, physician, and some other persons, who then determined to form themselves into such a society, under sanction of some of the clergy. The schedule of rules for this fraternity was signed on the night when the fire happened.

‘This,’ says Crossrig, ‘is a thing I remark as notable, which presently was a rebuke to some of us for some fault in our solemn engagement there, and probably Satan blew that coal to witness his indignation at a society designedly entered into in opposition to the Kingdom of Darkness, and in hopes that such an occurrence should dash our society in its infancy, and discourage us to proceed therein. However, blessed be our God, all who then met have continued steadfast ever since ... and we have had many meetings since that time, even during the three months that I lived at the Earl of Winton’s lodging in the Canongate....

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Likeas, there are several other societies of the same nature set up in this city.’^[273]

The burning out of the Bank of Scotland was not more than twenty days past, when a trouble of a different kind fell upon it. ‘One Thomas M’Gie, who was bred a scholar, but poor, of a good genius and ready wit, of an aspiring temper, and desirous to make an appearance in the world, but wanting a fund convenient for his purpose, was tempted to try his hand upon bank-notes. At this time all the five kinds of notes—namely, £100, £50, £20, £10, and £5—were engraven in one and the same character. He, by artful razing, altered the word five in the *five*-pound note, and made it *fifty*. But good providence discovered the villainy before he had

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done any great damage, by means of the check-book and a record kept in the office; and the rogue was forced to fly abroad. The check-book and record are so excellently adapted to one another, and well contrived; and the keeping them right, and applying thereof, is so easy, that no forgery or falsehood of notes can be imposed upon the bank for any sum of moment, before it is discovered. After discovering this cheat of M‘Gie, the company caused engrave new copper-plates for all their notes, each of a different character, adding several other checks; so that it is not in the power of man to renew M‘Gie’s villainy.’^[274]

The glass-work at Leith made a great complaint FEB.
regarding the ruinous practice pursued by the work at Newcastle, of sending great quantities of their goods into Scotland. The English makers had lately landed at Montrose no less than two thousand six hundred dozen of bottles, ‘which will overstock the whole country with the commodity.’ On their petition, the Lords of the Privy Council empowered the Leith Glass Company to send out officers to seize any such English bottles and bring them in for his majesty’s use.^[275]

The ill-reputed governments of the last two MAR. 14.
reigns put down unlicensed worship among the Presbyterians, on the ground that the conventicles were schools of disaffection. The present government acted upon precisely the same principle, in crushing attempts at the establishment of Episcopal meeting-houses. The commission of the General Assembly at this time represented to the 1700.
Privy Council that the parishes of Eyemouth, Ayton, and Coldingham^[276] were ‘very much disturbed by the setting up of Episcopal meeting-houses, whereby the people are withdrawn from their duty to his majesty, and all good order of the church violat.’ On the petition of the presbytery of Chirnside, backed by the Assembly Commission, the Privy Council ordained that the sheriff shut up all these meeting-houses, and recommended the Lord Advocate to ‘prosecute the pretended ministers preaching at the said meeting-houses, not qualified according to law, and thereby not having the protection of the government.’^[277]

This policy seems to have been effectual for its object, for in the statistical account of Coldingham, drawn up near the close of the eighteenth century, the minister reports that there were no Episcopalians in his parish. It is but one of many facts which might be adduced in opposition to the popular doctrine, that persecution is powerless against religious conviction.

Notwithstanding the many serious and the many calamitous things affecting Scotland, there was an under-current of pleasantries and jocularities, of which we are here and there fortunate enough to get a glimpse. For example—in Aberdeen, near the gate of the mansion of the Earl of Errol, there looms out upon our view a little cozy tavern, kept by one Peter Butter, much frequented of students in Marischal College and the dependents of the magnate here named. The former called it the *Collegium Butterense*, as affecting to consider it a sort of university supplementary to, and necessary for the completion of, the daylight one which their friends understood them to be attending. Here drinking was study, and proficiency therein gave the title to degrees. Even for admission, there was a *theme* required, which consisted in drinking a particular glass to every friend and acquaintance one had in the world, with one more. Without these possibly thirty-nine or more articles being duly and unreservedly swallowed, the candidate was relentlessly excluded. On being accepted, a wreath was conferred, and Master James Hay, by virtue of the authority resting in him under the rules of the foundation, addressed the

1700.

neophyte:

Potestatem do tibi que
Compotandi bibendique,
Ac summa pocula implendi,
Et haustus exhauriendi,
Cujusve sint capacitatis,
E rotundis aut quadratis.
In signum ut manumittaris,
Adornet caput hic galerus,
Quod tibi felix sit faustumque,
Obnixte comprecor multumque.

There were *theses*, too, on suitably convivial ideas—as, for example:

'Gainst any man of sense,
Asserimus ex pacto,
Upon his own expense,

*Quod vere datur ens
Potabile de facto....*

If you expect degrees,
Drink off your cup and fill,
We're not for what you please:
Our absolute decrees
Admit of no free-will....

The longer we do sit,
The more we hate all quarrels,
(Let none his quarters flit),
The more we do admit
Of *vacuum* in barrels. &c.

Or else:

For to find out a parallax
We'll not our minds apply,
Save what a toast in Corbreed^[278] makes us;
Whether the moon moves on her axis,
Ask Black and Gregory.^[279]

That bodies are *à parte rei*,
To hold we think it meetest;
Some cold, some hot, some moist, some dry,
Though all of them ye taste and try,
The fluid is the sweetest.

Post sextam semi hora
At night, no friend refuses
To come *lavare ora*;
Est melior quam Aurorâ,
And fitter for the Muses, &c.

A diploma conferred upon George Durward, 1700.
doubtless not without very grave consideration of his pretensions to the
honour, is couched in much the same strain as the theses:

To all and sundry who shall see this,
Whate'er his station or degree is,
We, Masters of the Buttery College,
Send greeting, and to give them knowledge,
That George Durward, *præsentium lator*,
Did study at our *Alma Mater*
Some years, and hated foolish projects,
But stiffly studied liquid logics;
And now he's as well skilled in liquor
As any one that blows a bicker;
For he can make our college theme

A syllogism or enthymeme....
 Since now we have him manumitted,
 In arts and sciences well fitted,
 To recommend him we incline
 To all besouth and north the line,
 To black and white, though they live as far
 As Cape Good-Hope and Madagascar,
 Him to advance, because he is
Juvenis bonæ indolis, &c.

We have, however, no specimen of the wit of this fluid university that strikes us as equal to a *Catalogus Librorum in Bibliothecâ Butterensi*; to all external appearance, a dry list of learned books, while in reality comprehending the whole paraphernalia of a tavern. It is formally divided into ‘Books in large folio,’ ‘Books in lesser folio,’ ‘Books in quarto,’ ‘Books in octavo,’ and ‘Lesser Volumes,’ just as we might suppose the university catalogue to have been. Amongst the works included are: ‘Maximilian Malt-kist de principiis liquidorum—Kircherus Kettles de eodem themate—Bucket’s Hydrostaticks—Opera Bibuli Barrelli, ubi de conservatione liquoris, et de vacuo, problematice disputatur—Constantinus Chopinus de philosophicis bibendi legibus, in usum Principalis, curâ Georgii Leith [described in a note as a particularly assiduous pupil of the college] 12 tom.—Compendium ejus, for weaker capacities—Barnabius Beer-glass, de lavando gutture—Manuale Gideonis Gill, de Syllogismis concludentibus—Findlay Fireside, de circulari poculorum motu,’ &c. One may faintly imagine how all this light-headed nonsense would please Dr Pitcairn, as he sat regaling himself in the Greping Office, and how the serious people would shake their heads at it when they perused it at full length, a few years afterwards, in Watson’s *Collection of Scots Poems*.

The commissioners of the General Assembly, considering the impending danger of a late harvest and consequent scarcity, and the other distresses of the country, called for the 29th day of August being solemnised by a fast. In the reasons for it, they mention the unworthy repining at the late providences, and ‘that, under our great penury and dearth, whilst some provoked God by their profuse prodigality, the poorest of the people, who suffered most, and who ought thereby to have been amended, have rather grown worse and worse.’

Duncan Robertson, a younger son of the deceased Laird of Struan, had fallen out of all good terms with his mother, apparently in consequence of some disputes about their respective rights. Gathering an armed band of idle ruffians, he went with them to his mother's jointure-lands, and laid them waste; he went to a 'room' or piece of land occupied by his sister Margaret, and carried off all that was upon it; he also 'laid waste any possession his other sister Mrs Janet had.' When a military party, posted at Carie, came to protect the ladies, he fired on it, and afterwards plainly avowed to the commander that his object was to dispossess his mother and her tenants. By this cruel act, Lady Struan and her other children had been 'reduced to these straits and difficulties, that they had not whereupon to live.'

The Privy Council gave orders for the capture of Duncan Robertson, and his being put in the Tolbooth of Edinburgh, and kept there till further orders.^[280]

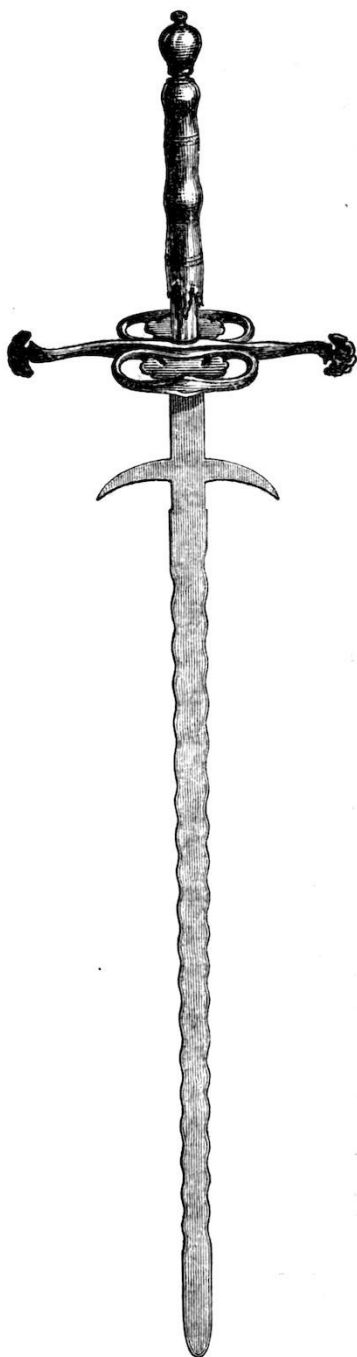
AUG. 2.

A band of persons, usually called Egyptians or gipsies, used to go about the province of Moray in armed fashion, helping themselves freely to the property of the settled population, and ordinarily sleeping in kilns near the farmhouses. There seems to have been thirty of them in all, men and women; but it was seldom that more than eight or ten made their appearance in any one place. It was quite a familiar sight, at a fair or market in Banff, Elgin, Forres, or any other town of the district, to see nearly a dozen sturdy Egyptians march in with a piper playing at their head, their matchlocks slung behind them, and their broadswords or dirks by their sides, to mingle in the crowd, inspect the cattle shewn for sale, and watch for bargains passing among individuals, in order to learn who was in the way of receiving money. They would be viewed with no small suspicion and dislike by the assembled rustics and farmers; but the law was unable to put them entirely down.

Nov. 16.

1700.

James Macpherson, who was understood to be the natural son of a gentleman of the district by a gipsy mother, was a conspicuous or leading man in the band; he was a person of goodly figure and great strength and daring, always carrying about with him—how acquired we cannot tell—an example of the two-handed swords of a former age, besides other weapons. He had a talent for music, and was a good player on the violin. It has been stated that some traits of a generous nature occasionally shone out in him;



Macpherson's Sword.

but, on the whole, he was merely a Highland cateran, breaking houses and henroosts, stealing horses and cattle, and living recklessly on the proceeds, like the tribe with which he associated.

Duff, Laird of Braco, founder of the honours and wealth of the Earls of Fife, took a lead at this time in the public affairs of his district. He formed the resolution of trying to give a check to the lawless proceedings of the Egyptians, by bringing their leaders to justice. It required some courage to face such determined ruffians with arms in their hands, and he had a

1700.

further difficulty in the territorial prejudices of the Laird of Grant, who regarded some of the robbers as his tenants, and felt bound, accordingly, to protect them from any jurisdiction besides his own.^[281] This remark bears particularly upon two named Peter and Donald Brown, who had lived for half a year at a place closely adjacent to Castle-Grant, and the former of whom was regarded as captain of the band.

Finding Macpherson, the Browns, and others at the 'Summer's Eve Fair in Keith, the stout-hearted Braco made up his mind to attack them. To pursue a narrative which appears to be authentic: 'As soon as he observed them in the fair, he desired his brother-in-law, Lesmurdie, to bring him a dozen stout men, which he did. They attacked the villains, who, as they had several of their accomplices with them, made a desperate resistance. One of them made a pass at Braco with his hanger, intending to run him through the heart; but it slanted along the outside of the ribs, and one of his men immediately stabbed the fellow dead. They then carried Macpherson and [Peter] Brown to a house in Keith, and set three or four stout men to guard them, not expecting any more opposition, as all the rest of the gang were fled. Braco and Lesmurdie were sitting in an upper room,

concerting the commitment of their prisoners, when the Laird of Grant and thirty men came calling for them, swearing no Duff in Scotland should keep them from him. Braco, hearing the noise of the Grants, came down stairs, and said, with seeming unconcern and humour: “That he designed to have sent them to prison; but he saw they were too strong a party for him to contend with, and so he must leave them;” but, without losing a moment, he took a turn through the market, found other two justices of peace, kept a court, and assembled sixty stout fellows, with whom he retook the two criminals, and sent them to prison.’^[282]

James Macpherson, the two Browns, and James Gordon, were brought before the sheriff of Banffshire at Banff, on the 7th of November 1700, charged with ‘being habit and repute Egyptians and vagabonds, and keeping the markets in their ordinary manner of thieving and purse-cutting’ ... being guilty also of ‘masterful bangstrie and oppression.’ A procurator appeared on the part of the young Laird of Grant, demanding surrender of the two Browns, to be tried in the court of his regality, within whose bounds they had lived, and offering a *culreach* or pledge for them;^[283] but the demand was overruled, on the ground that the Browns had never been truly domiciliated there. Witnesses were adduced, who detailed many felonies of the prisoners. They had stolen sheep, oxen, and horses; they had broken into houses, and taken away goods; they had robbed men of their purses, and tyrannously oppressed many poor people. It was shewn that the band was in the habit of speaking a peculiar language. They often spent whole nights in dancing and debauchery, Peter Brown or Macpherson giving animation to the scene by the strains of the violin. An inhabitant of Keith related how Macpherson came to his house one day, seeking for him, when, not finding him, he stabbed the bed, to make sure he was not there, and, on going away, set the ale-barrel aflowing. The jury gave a verdict against all the four prisoners; but sentence was for the meantime passed upon only Macpherson and Gordon, adjudging them to be hanged next market-day.^[284]

Macpherson spent the last hours of his life in composing a tune expressive of the reckless courage with which he regarded his fate. He marched to the place of execution, a mile from the town, playing this air on his violin. He even danced to it under the fatal tree. Then he asked if any one in the crowd would accept his fiddle, and keep it as a memorial of Macpherson; and finding no one disposed to do so, he broke the instrument

over his knee, and threw himself indignantly from the ladder. Such was the life and death of a man of whom one is tempted to think that, with such qualities as he possessed, he might, in a happier age, have risen to some better distinction than that which unfortunately he has attained.^[285]

1700.

At this date one of the most remarkable of the precursors of Watt in the construction of the steam-engine, comes in an interesting manner into connection with Scotland. Captain Thomas Savery, an Englishman, ‘treasurer to the commissioners of sick and wounded,’ had, in 1696, described an engine framed by himself, and which is believed to have been original and unsuggested, ‘in which water is raised not only by the expansive force of steam, but also by its condensation, the water being raised by the pressure of the atmosphere into receivers, from which it is forced to a greater height by the expansive force of the steam.’^[286] He had obtained a patent for this engine in 1698, to last for thirty-five years.

1701. JAN. 25.

We have seen that there were busy-brained men in Scotland, constantly trying to devise new things; and even now, Mr James Gregory, Professor of Mathematics in the Edinburgh University—a member of a family in which talent has been inherent for two centuries—was endeavouring to bring into use ‘a machine invented by him for raising of water in a continued pipe merely by lifting, without any suction or forcing, which are the only ways formerly practised, and liable to a great many inconveniences.’ By this new machine, according to the inventor, ‘water might be raised to any height, in a greater quantity, and in less space of time,’ than by any other means employing the same force. It was useful for ‘coal-pits or mines under ground.’ On his petition, Mr Gregory obtained an exclusive right to make and use this machine for thirty-one years.

1701.

Another such inventive genius was Mr James Smith of Whitehill, who for several years made himself notable by his plans for introducing supplies of water into burghs. Smith had caught at Savery’s idea, and made a paction with him for the use of his engine in Scotland, and now he applied to the Estates for ‘encouragement.’ He says that, since his bargain with Captain Savery, he ‘has made additions to the engine to considerable advantage, so that, in the short space of an hour, there may be raised thereby no less than the quantity of twenty tuns of water to the height of fourteen fathoms.’ Any

member of the honourable house was welcome to see it at work, and satisfy himself of its efficiency; whence we may infer that an example of it had come down to Edinburgh. In compliance with his petition, Smith was invested with the exclusive power of making the engine and dealing with parties for its use during the remainder of the English patent.^[287]

Savery's steam-engine, however, was a seed sown upon an infertile soil, and after this date, we in Scotland at least hear of it no more.

It pleased the wisdom of the Scottish legislature (as it did that of the English parliament likewise) to forbid the export of wool and of woolly skins, an encouragement to woollen manufacturers at home, at the expense, as usual, of three or four times the amount in loss to the rest of the community. At this date, Michael Allan, Dean of Guild in Edinburgh, came before the Privy Council to shew that, in consequence of the extreme coldness and backwardness of the late spring, producing a mortality of lambs, there were many thousands of lambs' skins, or *morts*, which could not be manufactured in the kingdom, and would consequently be lost, but which would be of value at Dantzic and other eastern ports, where they could be manufactured into clothing. He thought that property to the value of about seven thousand pounds sterling might thus be utilised for Scotland, which otherwise 'must of a necessity perish at home, and will be good for nothing;' and the movement was the more desirable, as the return for the goods would be in 'lint, hemp, iron, steel, pot-ashes, and knaple, very useful for our manufactures, and without which the nation cannot possibly be served.'

JULY 10.

1701.

The Council called in skinnners, furriers, and others to give them the best advice, and the result was a refusal to allow the skins to be exported.

Rather more than a twelvemonth before (June 4, 1700), it was intimated to the Privy Council by 'the manufactory of Glasgow,' that one Fitzgerald, an Irish papist, 'has had a constant trade these three years past of exporting wool and woollen yarn to France, and that he has at this present time combed wool and woollen yarn to the value of three thousand pounds sterling ready to be exported, to the great ruin of the nation, and of manufactories of that kind.' The Council immediately sent orders to the magistrates of Glasgow to take all means in law for preventing the exportation of the articles in question.^[288]

A petition on an extraordinary subject from the magistrates and town-council of Elgin, was before the Privy Council. Robert Gibson of Linkwood had been imprisoned in their Tolbooth as furious, at the desire of the neighbouring gentry, and for the preservation of the public peace. In the preceding October, when the magistrates were in Edinburgh on business before the Privy Council, Gibson set fire to the Tolbooth in the night-time, and there being no means of quenching the flames, it was burnt to the ground. Their first duty was to obtain authority from the Privy Council to send the incendiary in shackles to another place of confinement, and now they applied for an exemption from the duty of receiving and confining prisoners for private debts till their Tolbooth could be rebuilt. They obtained the required exemption until the term of Whitsunday 1703.

FEB. 20.

Wodrow relates a story of the mysterious disappearance of a gentleman (chamberlain of a countess) dwelling at Linlithgow, and esteemed as a good man. A gentleman at Falkirk, with whom he had dealings, sent a servant one afternoon desiring him to come immediately. His wife would not allow him to travel that evening, and the servant departed without him. Long before daylight next morning, the chamberlain rose and prepared for his journey, but did not omit family worship. In the part of Scripture which he read (Acts xx.), occurred the sentence, 'you shall see my face no more.'

FEB.

1701.

Whether this occurred by chance or not is not known, but he repeated the passage twice. After departing, he returned for his knife; again he returned to order one of his sons not to go out that day. By daylight his horse was found, with an empty saddle, near Linlithgow Bridge (a mile west of the town), and no search or inquiry made then, or for a considerable time after, sufficed to discover what had become of him. Wodrow states the suspicion of his being murdered, but as he had taken only some valuable papers with him, and viewing the fact of his being a steward, it does not seem difficult to account for his disappearance on a simpler hypothesis.^[289]

The contract for a marriage between Sir John Shaw of Greenock and Margaret Dalrymple, eldest daughter of the Lord President of the Court of Session, being signed to-day, 'there was an entire

MAR. 1.

hogshead of claret drunk' by the company assembled on the occasion. At the marriage, not long after, of Anne, a younger daughter of the Lord President, to James Steuart, son of the Lord Advocate, 'the number of people present was little less,' being just about as many as the house would hold. A marriage was, in those days, an occasion for calling the whole connections of a couple of families together; and where the parties belonged, as in these cases, to an elevated rank in society, there was no small amount of luxury indulged in. Claret was, in those days, indeed, but fifteen, and sack eighteen pence, while ale was three-halfpence, per bottle, so that a good deal of bibulous indulgence cost little.

The expenditure upon the clothes of a bride of quality was very considerable. Female fineries were not then produced in the country as they are now, and they cost probably twice the present prices. We find that, at the marriage of a daughter of Smythe of Methven to Sir Thomas Moncrieff of that Ilk, Bart., in December of this very year, there was a head suit and ruffles of cut work at nearly six pounds ten shillings; a hood and scarf at two pounds fifteen shillings; a silk under-coat nearly of the same cost; a gown, petticoat, and lining, at between sixteen and seventeen pounds; garters, at £1, 3s. 4d.: the entire outfit costing £109, 18s. 3d.^[290]

When Mrs Margaret Rose, daughter of the Laird of Kilravock, was married in 1701, there was an account from Francis Brodie, merchant in Edinburgh, for her wedding-clothes, including 1701. seventeen and a quarter ells of flowered silk, £11, 13s.; nine and a quarter ells of green silk shagreen for lining, £2, 14s.; six and a half ells of green galloon, 19s. 6d.; with other sums for a gown and coat, for an under-coat, and an undermost coat; also, for a pair of silk stockings, 12s.; a necklace and silk handcurcher, 8s.; and some thirty or forty other articles, amounting in all to £55, 8s. 9d. sterling. This young lady carried a tocher of 9000 merks—about nine times the value of her marriage outfit—to her husband, John Mackenzie, eldest son of Sir Alexander Mackenzie of Coul.

At the marriage of Anne Dalrymple to Mr James Steuart, 'the bride's favours were all sewed on her gown from top to bottom, and round the neck and sleeves. The moment the ceremony was performed, the whole company ran to her, and pulled off the favours; in an instant, she was stripped of them all. The next ceremony was the garter [we have seen what it cost], which the bridegroom's man attempted to pull from her leg, but she dropped it on

the floor; it was a white and silver ribbon, which was cut in small parcels, [a piece] to every one in company. The bride's mother then came in with a basket of favours belonging to the bridegroom; those and the bride's were the same with the bearings of their families—hers, pink and white; his, blue and gold colour.' 'The company dined and supped together, and had a ball in the evening; the same next day at Sir James Steuart's. On Sunday, there went from the President's house to church three-and-twenty couple, all in high dress. Mr Barclay, then a boy, led the youngest Miss Dalrymple, who was the last of them. They filled the galleries of the [High] Church from the king's seat to the wing loft. The feasting continued till they had gone through all the friends of the family, with a ball every night.'

[\[291\]](#)

It was not yet three years since the people of Scotland were dying of starvation, and ministers were trying to convince their helpless flocks that it was all for their sins, and intended for their good. Yet now we have a commission issued by the government, headed as usual with the king's name, commanding that all loads of grain which might be brought from Ireland into the west of Scotland, should be staved and sunk, and this, so far as appears, without a remark from any quarter as to the horrible impiety of the prohibition in the first place, and the proposed destruction of the gifts of Providence in the second.

MAR. 14.

1701.

[\[292\]](#)

An example of the simple inconvenience of these laws in the ordinary affairs of life is presented in July 1702. Malcolm M'Neill, a native of Kintyre, had been induced, after the Revolution, to go to Ireland, and become tenant of some of the waste lands there. Being now anxious to settle again in Argyleshire, on some waste lands belonging to the Duke of Argyle, he found a difficulty before him of a kind now unknown, but then most formidable. How was he to get his stock transported from Ballymaskanlan to Kintyre? Not in respect of their material removal, but of the laws prohibiting all transportation of cattle from Ireland to Scotland. It gives a curious idea of the law-made troubles of the age, that Malcolm had to make formal application to the Privy Council in Edinburgh for this purpose. On his petition, leave to carry over two hundred black-cattle, four hundred sheep, and forty horses, was granted. It is a fact of some significance, that the duke appears in the sederunt of the day when this

permission was given. That without such powerful influence no such favour was to be obtained, is sufficiently proved by the rare nature of the transaction.

We find, in January 1700, that the execution of 1700. JAN. 9. the laws against the importation of Irish cattle and horses had been committed to Alexander Maxwell, postmaster at Ayr, who seems to have performed his functions with great activity, but not much good result. He several times went over the whole bounds of his commission, establishing spies and waiters everywhere along the coast. By himself and his servants, sometimes with the assistance of soldiers, he made a great number of seizures, but his profits never came up to his costs. Often, after a seizure, he had to sustain the assaults of formidable rabbles, and now and then the cattle or horses were rescued out of his hands. For six weeks at a time he was never at home, and all that time not thrice in his bed—for he had to ride chiefly at night—but on all hands he met with only opposition, even from the king's troops, 'albeit he maintains them and defrays all their charges when he employs them.' On his petition (January 9, 1700), he was allowed a hundred pounds by the Privy Council as an encouragement to persevere in his duty.

In the autumn of 1703, an unusual anxiety was shewn to enforce the laws against the importation of provisions from Ireland and from England. Mr Patrick Ogilvie of Cairns, a brother of the Lord 1700. Chancellor, Earl of Seafield, was commissioned to guard the coasts between the Sound of Mull and Dumfries, and one Cant of Thurston to protect the east coast between Leith and Berwick, with suitable allowances and powers. It happened soon after that an Irish skipper, named Hyndman, appeared with a vessel of seventy tons, full of Irish meal, in Lamlash Bay, and was immediately pounced upon by Ogilvie. It was in vain that he represented himself as driven there by force of weather on a voyage from Derry to Belfast: in spite of all his pleadings, which were urged with an air of great sincerity, his vessel was condemned.

Soon after, a Scottish ship, sailing under the conduct of William Currie to Londonderry, was seized by the Irish authorities by way of reprisal for Hyndman's vessel. The Scottish Privy Council (February 15, 1704) sent a remonstrance to the Duke of Ormond, Lord Lieutenant of Ireland, setting forth this act as 'an abuse visibly to the breach of the good correspondence

that ought to be kept betwixt her majesty's kingdoms.' How the matter ended does not appear; but the whole story, as detailed in the record of the Privy Council, gives a striking idea of the difficulties, inconveniences, and losses which nations then incurred through that falsest of principles which subordinates the interests of the community to those of some special class, or group of individuals.

Ogilvie was allowed forty foot-soldiers and twenty dragoons to assist him in his task; but we may judge of the difficulty of executing such rules from the fact stated by him in a petition, that, during the interval of five weeks, while these troops were absent at a review in the centre of the kingdom, he got a list of as many as a hundred boats which had taken that opportunity of landing from Ireland with victual. Indeed, he said that, without a regular independent company, it was impossible to prevent this traffic from going on.^[293]

We do not hear much more on this subject till January 1712, when Thomas Gray, merchant in Irvine, and several other persons, were pursued before the Court of Session for surreptitious importation of Irish victual, by Boswell and other Ayrshire justices interested in the prices of Scottish produce. The delinquents were duly fined. Fountainhall, after recording the decision, adds a note, in which he debates on the principles involved in the free trade in corn. 'This importation of meal,' says he, 'is good for the poor, plenty making it cheap, but it sinks the gentlemen's 1700. rents in these western shires. Which of the two is the greater prejudice to the bulk of the nation? *Problema esto*: where we must likewise balance the loss and damage we suffer by the exporting so much of our money in specie to a foreign country to buy it, which diminishes our coin *pro tanto*: But if the victual was purchased in Ireland by exchange of our goods given for it, that takes away that objection founded on the exporting of our money.'^[294]

John Lawson, burgess of Edinburgh, was 1701. APR. 15. projector of an Intelligence-office, to be established in the Scottish capital, such as were already planted in London, Paris, Amsterdam, and other large cities, for 'recording the names of servants, upon trial and certificate of their manners and qualifications, whereby masters may be provided with honest servants of all sorts, and servants may readily know what masters are unprovided'—and 'the better and more easy discovery of all bargains, and

the communication and publishing all proposals and other businesses that the persons concerned may think fit to give notice and account of, for the information of all lieges.’

He had been at pains to learn how such offices were conducted in foreign countries, and had already set up a kind of register-office for servants in Edinburgh, ‘to the satisfaction and advantage of many, of all ranks and degrees.’ There was, however, a generation called *wed-men* and *wed-wives*, who had been accustomed, in an irregular way, to get employers for servants and nurses, and servants and nurses for masters and mistresses. It was evident to John that his intelligence-office could never duly thrive unless these practitioners were wholly suppressed. He craved exclusive privileges accordingly from the Privy Council—that is, that these wed-men and wed-wives be discharged ‘on any colour or pretence’ from meddling with the hire of servants, or giving information about bargains and proposals—though ‘without prejudice [he was so far modest] to all the lieges to hire servants and enter into bargains, and do all other business upon their own proper knowledge, or upon information gratuitously given.’

Honest John seems to have felt that something was necessary to reconcile the authorities to a plan obviously so much for his own interest. The religious feeling was, as usual, a ready resource. He reminded the Lords that there had been great inconveniences from the 1701. dishonest and profligate servants recommended by the wed-men and wed-wives; nay, some had thus been intruded into families who had not satisfied church-discipline, and did not produce testimonials from ministers! He held out that he was to take care ‘that all such as offer themselves to nurse children shall produce a certificate of their good deportment, in case they be married, and if not, that they have satisfied the kirk for their scandal, or have found a caution so to do.’

One great advantage to the public would be, that gentlemen or ladies living in the country could, by correspondence with the office, and no further trouble or expense, obtain servants of assured character, ‘such as master-households, *gentlemen*, valets, stewards, pages, grieves, gardeners, cooks, porters, coachmen, grooms, footmen, postilions, young cooks for waiting on gentlemen, or for change-houses; likewise *gentlewomen* for attending ladies, housekeepers, chambermaids, women-stewards and cooks, women for keeping children, ordinary servants for all sorts of work in

private families, also taverners and ticket-runners, with all sorts of nurses who either come to gentlemen's houses, or nurse children in their own'—for so many and so various were the descriptions of menials employed at that time even in poor Scotland.

With regard to the department for commercial intelligence, it was evident that 'men are often straitened how and where to inquire for bargains they intend,' while others are equally 'at a loss how to make known their offers of bargains and other proposals.' The latter were thus 'obliged to send clapps, as they call them,^[295] through the town, and sometimes to put advertisements in gazettes, which yet are noways sufficient for the end designed, for the clapps go only in Edinburgh, and for small businesses, and the gazette is uncertain, and gazettes come not to all men's hands, nor are they oft to be found when men have most to do with them, whereas a standing office would abide all men, and be ever ready.'

The Council complied with Lawson's petition in every particular, only binding him to exact no more fee than fourteen shillings Scots (1s. 2d.), where the fee is twelve pounds Scots (£1 sterling) or upwards, and seven shillings Scots where the fee is below that sum.

The infant library of the Faculty of Advocates having been burnt out of its original depository in the Parliament Square, a new receptacle was sought for it in the rooms under the Parliament House—the Faculty and the Edinburgh magistrates concurring in the request—and the Privy Council complied, only reserving the right of the high constable to view and search the place 'the time of the sitting of parliament'—a regulation, doubtless, held necessary to prevent new examples of the Gunpowder Treason.

JULY 3.

1701.

Lord Basil Hamilton, sixth son of the Duchess of Hamilton—a young man endeared to his country by the part he had taken in vindicating her rights in the Darien affair—lost his life by a dismal accident, leaving but one consolation to his friends, that he lost it in the cause of humanity. Passing through Galloway, with his brother the Earl of Selkirk and some friends, he came to a little water called the Minnick, swelled with sudden rain. A servant went forward to try the ford, and was

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carried away by the stream. Lord Basil rushed in to save the man, caught him, but was that moment dismounted, and carried off by the torrent; so he perished in the sight of his brother and friends, none being able to render him any assistance. It was a great stroke to the Hamilton family, to the country party, and indeed to the whole of the people of Scotland. Lord Basil died in his thirtieth year.

On the evening of the next day, the Earl of Selkirk came, worn with travel, to the gate of Hamilton Palace, to tell his widowed mother of her irreparable loss. But, according to a story related by Wodrow, her Grace was already aware of what had happened. ‘On the Wednesday’s night [the night of the accident] the duchess dreamed she saw Lord Basil and Lord Selkirk drowned in a water, and she thought she said to Lady Baldoon [Lord Basil’s wife], “Charles and Basil are drowned,” Charles being the Earl of Selkirk. The Lady Baldoon, she thought, answered: “Lord Selkirk is safe, madam; there is no matter.” The duchess thought she answered: “The woman’s mad; she knows not her lord is dead;” and that she [Lady Baldoon] added: “Is Basil dead? then let James [the duke] take all: I will meddle no more with the world.” All this she [the duchess] told in the Thursday morning, twelve hours or more before Lord Selkirk came to Hamilton, who brought the first word of it.’^[296]

Four men were tried at Perth for theft by the commissioners for securing the peace of the Highlands, and, being found guilty, were liable to the punishment of death. The Lords, however, were pleased to adjudge them to the lighter punishment of perpetual servitude, not in the plantations, as we have seen to be common, but at home, and the panels to be ‘at the court’s disposal.’ One of them, Alexander Steuart, they bestowed as a gift on Sir John Areskine of Alva, probably with a view to his being employed as a labourer in the silver-mine which Sir John about this time worked in a glen of the Ochils belonging to him.^[297] Sir John was enjoined to fit a metal collar upon the man, bearing the following inscription: ‘Alex^r. Steuart, found guilty of death for theft, at Perth, the 5th of December 1701, and gifted by the justiciars as a perpetual servant to Sir John Areskine of Alva;’ and to remove him from prison in the course of the ensuing week.^[298] The reality of this strange proceeding has been brought home to us in a surprising

DEC. 5.
1701.

manner, for the collar, with this inscription, was many years ago dredged up in the Firth of Forth, in the bosom of which it is surmised that the poor man found a sad refuge from the pains of slavery. As a curious memorial of past things, it is now preserved in our National Museum of Antiquities.

The reader will perhaps be surprised to hear of a silver-mine in the Ochils, and it may therefore be proper, before saying anything more, that we hear what has been put on record on this subject.

‘In the parish of Alva, a very valuable mine of silver was discovered about the commencement of the last century^[299] by Sir James [John] Erskine of Alva, in the glen or ravine which separates the *Middle-hill* from the *Wood-hill*. It made its first appearance in small strings of silver ore, which, being followed, led to a large mass of that metal. A part of this had the appearance of malleable silver, and was found on trial to be so rich as to produce twelve ounces of silver from fourteen ounces of ore. Not more than £50 had been expended when this valuable discovery was made. For the space of thirteen or fourteen weeks, it is credibly affirmed that the proprietor obtained ore from this mine to the value of £4000 per week. When this mass was exhausted, the silver ore began to appear in smaller quantities; symptoms of lead and other metals 1701. presented themselves, and the search was for the present abandoned.’^[300]

It is related that Sir John, walking with a friend over his estate, pointed out a great hole, and remarked: ‘Out of that hole I took fifty thousand pounds.’ Then presently, walking on, he came to another excavation, and, continued he: ‘I put it all into *that* hole.’

Nevertheless, the search was renewed by his younger brother, Charles Areskine, Lord Justice-Clerk, but without the expected fruit, though a discovery was made of cobalt, and considerable quantities of that valuable mineral were extracted even from the rubbish of his predecessor’s works. In 1767, Lord Alva, the son of the Lord Justice-Clerk, bestowed a pair of silver communion-cups upon the parish of Alva, with an inscription denoting that they were fashioned from silver found at the place.

The granting of Steuart as ‘a perpetual servant’ to Sir John Areskine sounds strangely to modern ears; but it was in perfect accordance with law and usage in Scotland in old times; and there was even some vestige of the usage familiar to Englishmen at no remote date, in laws for setting the poor to work in workhouses. The act of the Highland justiciars was the more

natural, simple, and reasonable, that labourers in mines and at salt-works were regarded by the law of Scotland as ‘necessary servants,’ who, without any paction, by merely coming and taking work in such places, became bound to servitude for life, their children also becoming bound if their fathers in any way used them as assistants. Such is the view of the matter coolly set down in the *Institutes* of Mr John Erskine (1754), who further takes leave to tell his readers that ‘there appears nothing repugnant, either to reason, or to the peculiar doctrines of Christianity, in a contract by which one binds himself to perpetual service under a master, who, on his part, is obliged to maintain the other in all the necessities of life.’ It appears that the salters and miners were transferred with the works when these were sold; but a right in the masters to dispose of the men otherwise, does not appear to have been a part of the Scots law.

In the year 1743, there appears to have been a disposition among the bondsmen of the coal-mines in Fife and Lothian to assert their freedom. Fifteen men who worked in the Gilmerton coal-works having absented themselves in October, and gone to work at other 1701. collieries, their master, Sir John Baird of Newbyth, advertised them, so that no other master might break the act of parliament by entertaining them, and also that the deserters might be secured. In the same year, the Marquis of Lothian had to complain of three boys who ran away from his colliery at Newbattle, and took refuge amongst the people of another estate, supposed to have been that of the Viscount Oxenford. He accordingly addressed the following letter to that nobleman:

‘NEWBATTLE, *July the 21st, 1743.*

‘MY LORD—Being told Sir Robert Dixon is not at home, I am equally satisfied that Mr Biger should determine the use and practice of coal-masters in such cases, if he pleases to take the trouble, which I suppose is all your lordship is desirous to know before you let me have these boys that ran away from my colliery, and was entertained by your people; but if I mistake your intention, and you think it necessary I prove my title to them in law, I am most willing to refer the whole to Mr Biger, and therefore am ready to produce my evidence at any time you please to appoint, and if my claim is found to be good, shall expect the boys be returned without my being obliged to find them out. My lord, I am not so well acquainted with Mr Biger as to ask the favour; therefore hopes your lordship will do it, and wish it may be determined soon, if convenient. I beg my best respects to Lady Orbiston; and am, my lord,

‘Your lordship’s most obedient
‘and humble Servant,
‘LOTHIAN.’

‘P. S.—I have not the smallest pretensions to the faither of these boys, and should have pleasure in assisting you if I could spare any of my coaliers.’^[301]

Whether Mr Gibson of Durie had been dealt with in the same manner by his colliers, we do not know; but in November he advertised for hands, offering good and regularly paid wages, and ‘a line under his hand, obliging himself to let them go from the works at any time, upon a week’s warning, without any restraint whatever.’ He would also accept a loan of workers from other coal-proprietors, and oblige himself ‘to restore them when demanded.’^[302]

I must not, however, forget—and certainly it is a curious thing to remember—that I have myself seen in early life 1701. native inhabitants of Scotland who had been slaves in their youth. The restraints upon the personal freedom of salters and colliers—remains of the villainage of the middle ages—were not put an end to till 1775, when a statute (15 Geo. III. 28) extinguished them. I am tempted to relate a trivial anecdote of actual life, which brings the recentness of slavery in Scotland vividly before us.

About the year 1820, Mr Robert Bald of Alloa, mining-engineer, being on a visit to Mr Colin Dunlop, at the Clyde Ironworks, near Glasgow, found among the servants of the house an old working-man, commonly called Moss Nook, who seemed to be on easy terms with his master. One day, Mr Bald heard the following conversation take place between Mr Dunlop and this veteran:

‘Moss Nook, you don’t appear, from your style of speaking, to be of this part of the country. Where did you originally come from?’

‘Oh, sir,’ answered Moss Nook, ‘do you not know that your father brought me here long ago from Mr M’Nair’s of the Green [a place some miles off, on the other side of the river]? Your father used to have merry-meetings with Mr M’Nair, and, one day, he saw me, and took a liking to me. At the same time, Mr M’Nair had taken a fancy to a very nice pony belonging to your father; so they agreed on the subject, and *I was niffered away for the pony*. That’s the way I came here.’

The man had, in short, been a slave, and was exchanged for a pony. To Mr Bald’s perception, he had not the least idea that there was anything singular or calling for remark in the manner of his leaving the Green.

A Scottish clergyman resident in England—the 1702. same who lately ‘promoted contributions for the printing of Bibles in the Irish language, and sent so many of them down to Scotland, and there is no news he more earnestly desires to know than what the G[eneral] A[ssembly] doth whenever it meeteth for promoting the interests of the Gospel in the Highlands’—at this time started a scheme for ‘erecting a library in every presbytery, or at least county, in the Highlands.’ He had been for some time prevented from maturing his plan by bodily distempers and faint hopes of success; but now the scheme for sending libraries to the colonies had encouraged him to come forward, and he issued a printed paper explaining his views, and calling for assistance. His great 1702. object was to help the Highland Protestant clergy in the matter of books, seeing that, owing to their poverty, and the scarcity of books, few of them possessed property of that kind to the value of twenty shillings; while it was equally true, that at the distance they lived at from towns, the borrowing of books was with most of them impossible. It was the more necessary that they should be provided with books, that the Romish missionaries were so active among the people: how could the clergy encounter these adversaries without the knowledge which they might derive from books? ‘The gross ignorance of the people in those parts, together with some late endeavours to seduce the inhabitants of the isle of Hirta to a state of heathenism,^[303] make it very necessary that they be provided with such treatises as prove the truth of the Christian religion. At the same time, the excellent parts and capacities of the ministers generally throughout the Highlands give good ground to expect much fruit from such a charity.’

The promoter of the scheme felt no hesitation in asking assistance in the south, because the poverty of Scotland—‘occasioned chiefly by their great losses at sea, the decay of trade, the great dearth of corn, and the death of cattle for some years together—renders the people generally unable to do much in the way of charity. Nevertheless, there are not wanting those amongst them, who, amidst their straits and wants, are forward to promote this or any other good design, even beyond their power.’ He hoped no native would take offence at this confession, the truth of which ‘is too much felt at home and known abroad to be denied.... But if any are so foolish as to censure this paragraph, their best way of confutation is to take an effectual and speedy course to provide a competent number of libraries for such parts of our native country as need them most.’

He even went so far as to draw up a set of rules for the keeping and lending of the books—a very stringent code certainly it is; ‘but,’ says he, ‘they who know the world but a little, and have seen the fate of some libraries, will reckon the outmost precaution we can use little enough to prevent what otherwise will be unavoidable. It’s a work of no small difficulty to purchase a parcel of good books for public advantage; nor is it less difficult to preserve and secure them for 1702. posterity, when they are purchased.’^[304]

A Memorial concerning the Highlands, published at Edinburgh in the ensuing year, described them as full of ignorance and heathenism. Most of the people were said to be unacquainted with the first principles of Christianity; a few had been ‘caught by the trinkets of popery.’ While there were schools at Inverness, Forres, Keith, Kincardine O’Neil, Perth, &c.—places closely adjacent to the Highlands—there were none in the country itself, excepting one at Abertarf (near the present Fort-Augustus, in Inverness-shire), which had been erected by charitable subscription, but where it was found nearly impossible to get scholars unless subsistence was provided for them. In remote places, children remained unbaptised for years. In the country generally, theft and robbery were esteemed as ‘only a hunting, and not a crime;’ revenge, in matters affecting a clan, even when carried the length of murder, was counted a gallantry; idleness was a piece of honour; and blind obedience to chiefs obscured all feeling of subjection to civil government.^[305]

It was under a sense of the unenlightened state of the Highlands, and particularly of the hold which the Catholic religion had obtained over the Gael, that the ‘Society for the Propagation of Christian Knowledge’ was soon after formed by a combination of the friends of Presbyterian orthodoxy. It was incorporated in 1709, at which time a strong effort was made by the courts of the Established Church to promote contributions in its behalf, though under some considerable discouragements. Wodrow tells us that this Society was originated by a small knot of gentlemen, including Mr Dundas of Philipston, clerk of the General Assembly; Sir H. Cunningham, Sir Francis Grant [Lord Cullen], Commissary Brodie, Sir Francis Pringle, and Mr George Meldrum, who, about 1698, had formed themselves into a society for prayer and religious correspondence. Writing now to Mr Dundas about the subscriptions, and enclosing twenty-five pounds as a contribution from the presbytery of Paisley, he apologises for

the smallness of the sum in proportion to the importance of the object, and says: 'The public spirit and zeal for any good designs is much away from the generality here.' 'The truth is,' says he, regarding another matter, 'the strait of this part of the country is so great, through 1702.

the dearth of victual, that our collections are very far from maintaining our poor, and our people ... are in such a pet with collections for bridges, tolbooths, &c., that when any collection is intimate, they are sure to give less that day than their ordinary.'^[306] Nevertheless, the Society was able to enter on a course of activity, which has never since been allowed to relax.

The scheme of presbyterial libraries was realised in 1705 and 1706 to the extent of nineteen, in addition to which fifty-eight local libraries were established; but these institutions are understood to have been little successful and ill supported. In 1719, the Christian Knowledge Society had forty-eight schools established, increased to a hundred and nine in 1732, and to two hundred at the close of the century. Its missionary efforts were also very considerable. Such, however, were the natural and other difficulties of the case, that a writer described the people in 1826 as still 'sunk in ignorance and poverty.'^[307] It is not merely that schools must necessarily be few in proportion to geographical space, and school-learning, therefore, difficult of attainment, but the Highlander unavoidably remains unacquainted with many civilising influences which the communication of thought, and observation of the processes of merchandise and the mechanical trades, impart to more fortunate communities. The usual consequence of the introduction of Christianity to minds previously uneducated has been realised. It has taken a form involving much of both old and new superstition, along with feelings of intolerance towards dissent even in the most unessential particulars, such as recall to men in the south a former century of our history.

It is remarkable that, while the bulk of the Highland population were unschooled and ignorant, there were abundance of gentlemen who had a perfect knowledge of Latin, and even composed Latin poetry. Nor is it less important or more than strictly just to observe that, amidst all the rudeness of former times in the Highlands, there was amongst the common people an old traditional morality, which included not a little that was entitled to admiration. To get a full idea of what this was, one must peruse the writings of Mrs Grant and Colonel Stewart. The very depredations so often spoken

of could hardly be said to involve a true turpitude,
being so much connected as they were with national and clan feelings.

1702.

Captain Simon Fraser of Beaufort, who had long
been declared rebel for not appearing to answer at the Court of Justiciary on
the charge of rape brought against him by the dowager Lady Lovat,^[308] was
described at this time as living openly in the country as a free liege, ‘to the
contempt of all authority and justice.’ The general account given of his
habits is rather picturesque. ‘He keeps in a manner his open residence
within the lordship of Lovat, where, and especially in Stratherrick,^[309] he
further presumes to keep men in arms, attending and guarding his person.’
These he also employed in levying contributions from Lady Lovat’s tenants,
and he had thus actually raised between five and six thousand merks.
‘Proceeding yet to further degrees of unparalleled boldness, [he] causes
make public intimation at the kirks within the bounds on the Lord’s Day,
that all the people be in readiness with their best arms when advertised.’
The tenants were consequently so harassed as to be unable to pay her
ladyship any rents, and there were ‘daily complaints of these strange and
lawless disorders.’

FEB. 10.

The Council granted warrants of intercommuning against the culprit, and
enjoined his majesty’s forces to be helpful in apprehending him.^[310] We find
that, in the month of August, Fraser had departed from the country, but his
interest continued to be maintained by others. His brother John, with thirty
or forty ‘loose and broken men,’ went freely up and down the countries of
Aird and Stratherrick, menacing with death the chamberlains of the Lady
Lovat^[311] and her husband, Mr Alexander Mackenzie of Prestonhall, if they
should uplift the rents in behalf of their master and mistress, and threatening
the tenants in like manner, if they should pay their rents to those persons.
The better to support this lawless system, John kept a garrison of armed
gillies in the town of Bewly, ‘the heart of the country of Aird,’ entirely at
the cost of the tenants there. Within the last few weeks, they had taken from
the tenants of Aird ‘two hundred custom wedders and lambs,’ and, breaking
up the meal-girnels of Bewly, they had supplied themselves with sixty bolls
of meal. At the beginning of July, Fraser, younger
of Buchrubbin, and two accomplices, came to the house of Moniack, the
residence of Mr Hugh Fraser, one of the lady’s chamberlains, ‘and having

1702.

by a false token got him out of his house,' first reproached him with his office, and then 'beat him with the butts of their guns, and had murdered him if he had not made his escape.'

Mr Hugh Fraser and Captain John Mackenzie, 'conjunct bailie and chamberlain,' applied for protection to the Highland commission of justiciary, who ordered a small military party to go and maintain the law in the Aird. But it was very difficult to obtain observance of law in a country where the bulk of the people were otherwise minded. The introduction of soldiers only added to the fierceness of the rebellious Frasers, who now sent the most frightful threats to all who should take part with Lady Lovat and her husband.

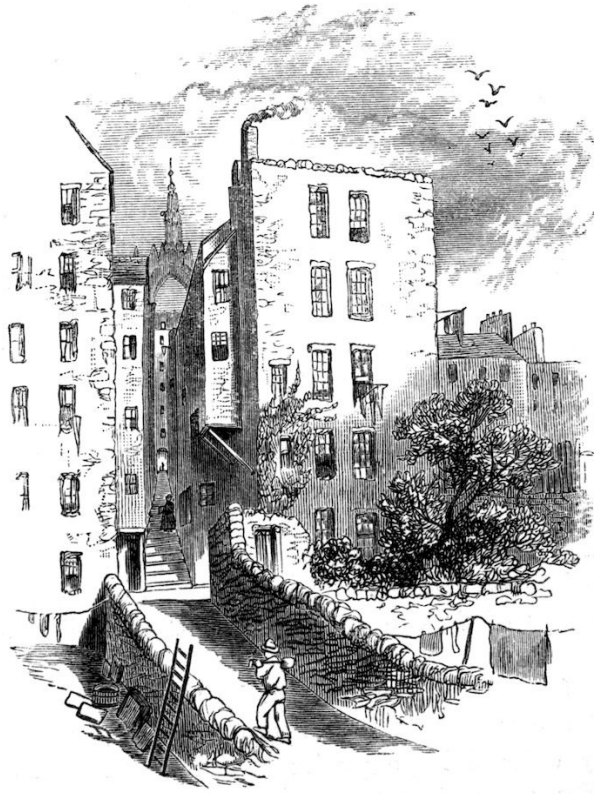
On the 5th of August, John Fraser came from Stratherrick with a party of fifty armed followers, and gathering more as he passed through the Aird, he fell upon the house of Fanellan, where Captain Mackenzie and the ten soldiers were, with between two and three hundred men, calling upon the inmates to surrender, on pain of having the house burnt about their ears if they refused. They did refuse to yield, and the Frasers accordingly set fire to the house and offices, the whole of which were burnt to the ground. Captain Mackenzie, Hugh Fraser of Eskadale, the ten soldiers and their commander, Lieutenant Cameron, besides a servant of Prestonhall, were all taken prisoners. Having dismissed the soldiers, the Frasers carried the rest in a bravadoing triumph through the country till they came to the end of Loch Ness. There dismissing Lieutenant Cameron, they proceeded with the two bailies and the servant to Stratherrick, everywhere using them in a barbarous manner. The report given nine days after in Edinburgh says of the prisoners, whether they be dead or alive is unknown.

The Privy Council, feeling this to be 'such an unparalleled piece of insolence as had not been heard of in the country for an age,' instantly ordered large parties of troops to march into the Fraser countries, and restore order.

On the 8th of September, the Council sent Brigadier Maitland and Major Hamilton their thanks 'for their good services done in dispersing the Frasers,' and, a few days after, we find orders issued for using all endeavours to capture John Fraser. Captain Grant's 1702.
company remained in Stratherrick till the ensuing February.^{[\[312\]](#)}

At ten o'clock in the evening, Colonel Archibald Row arrived express at Edinburgh with the news of the king's death. King William died in Kensington Palace at eight o'clock in the morning of Sunday the 8th instant: it consequently took three days and a half for this express to reach the Scottish capital, being a day more than had been required by Robert Carey, when he came to Edinburgh with the more welcome intelligence of the demise of Queen Elizabeth, ninety-nine years before.

MAR. 11.



House of Lord Advocate Steuart, at bottom of Advocates' Close, west side.

REIGN OF QUEEN ANNE: 1702–1714.

The death of King William without children (March 8, 1702), opened the succession to the Princess Anne, second daughter of the late King James. Following up the policy of her predecessor, she had not been more than two months upon the throne, when, in conjunction with Germany and Holland, she proclaimed war against the king of France, whose usurpation of the succession to Spain for a member of his family, had renewed a general feeling of hostility against him. This war, distinguished by the victories of the Duke of Marlborough, lasted till the peace of Utrecht in 1713. The queen had been many years married to Prince George of Denmark, and had had several children; but all were now dead.

King William left the people of Scotland in a state of violent discontent, on account chiefly of the usage they had received in the affair of Darien. Ever since the Revolution, there had been a large party, mainly composed of the upper classes, in favour of the exiled dynasty. It was largely reinforced, and its views were generally much promoted, by the odium into which the government of William III. had fallen, and by the feelings of jealousy and wrath which had been kindled against the whole English nation. This was not a natural state of things for Scotland, for the bulk of the people, Presbyterian at heart, could have no confidence in a restored sovereign of the House of Stuart; but anger had temporarily overcome many of the more permanent feelings of the people, and it was hard to say what course they might take in the dynastic difficulties which were impending.

In 1700, the English parliament, viewing the want of children to both William and the Princess Anne, had settled the crown of England upon the Electress Sophia of Hanover, daughter of the Princess Elizabeth, daughter of King James I., she being the nearest Protestant heir; thus excluding not only the progeny of James II., but that of several elder children of the

Princess Elizabeth, all of whom were of the Roman Catholic religion. It was highly desirable that the Scottish Estates should be induced to settle the crown of Scotland on the same person, in order that peace might be preserved between the two kingdoms; but the discontents of the Scotch stood in the way. Not that there existed in Scotland any insuperable desire for another person, or any special objection to Sophia; the great majority would probably have voted, in ordinary circumstances, for this very course. But Scotland had been wronged and insulted; it was necessary to shew the English that this could not be done with safety to themselves. She had a claim to equality of trading privileges: it was right that she should use all fair means to get this established. Accordingly, in 1703, the Scottish parliament passed two acts calculated to excite no small alarm in the south: one of them, styled the Act of Security, ordaining that the successor of Queen Anne should not be the same person with the individual adopted by the English parliament, unless there should be a free communication of trade between the two countries, and the affairs of Scotland thoroughly secured from English influence; the other, providing that, as a means of enforcing the first, the nation should be put under arms. The queen, after some hesitation, was obliged to ratify the Act of Security. In the debates on these measures, the Scottish parliament exhibited a degree of eloquence which was wholly a novelty, and the memory of which long survived. It was a remarkable crisis, in which a little nation, merely by the moral power which animated it, contrived to inspire fear and respect in one much its superior in numbers and every other material element of strength.

The general sense of danger thus created in England proved sufficient to overcome that mercantile selfishness which had inflicted so much injustice upon Scotland. It came to be seen, that the only way to secure a harmony with the northern kingdom in some matters essential to peace, was to admit it to an incorporating union, in which there should be a provision for an equality of mercantile privileges. To effect this arrangement, accordingly, became the policy of the English Whig ministry of Queen Anne. On the other hand, the proposition did not meet a favourable reception in Scotland, where the ancient national independence was a matter of national pride; nevertheless, there also a parliamentary sanction was obtained for the preliminary steps.

In May 1706, the Commissioners, thirty from each nation, met at Westminster, to deliberate on the terms of the proposed treaty. It was soon

agreed upon that the leading features of the act should be—a union of the two countries under one sovereign, who, failing heirs of the queen, should be the Electress of Hanover or her heir; but each country to retain her own church establishment and her own laws—Scotland to send sixteen representative peers and forty-five commoners to the British parliament—Scottish merchants to trade freely with England and her colonies—the taxes to be equalised, except that from land, which was to be arranged in such a way that when England contributed two millions, Scotland should give only a fortieth part of the sum, or forty-eight thousand pounds; and as the English taxes were rendered burdensome by a debt of sixteen millions, Scotland was to be compensated for its share of that burden by receiving, as ‘an Equivalent,’ about four hundred thousand pounds of ready money from England, which was to be applied to the renovation of the coin, the discharge of the public debts, and a restitution of the money lost by the African Company.

When these articles were laid before the Scottish Estates in October, they produced a burst of indignant feeling that seemed to overspread the whole country. The Jacobite party, who saw in the union only the establishment of an alien dynasty, were furious. The clergy felt some alarm at the prelatial element in the British parliament. The mass of the people grieved over the prospect of a termination to the native parliament, and other tokens of an ancient independence. Nevertheless, partly that there were many men in the Estates who had juster views of the true interests of their country, and partly that others were open to various influences brought to bear upon their votes, the act of union was passed in February 1707, as to take effect from the ensuing 1st of May. The opposition was conducted principally by the Duke of Hamilton, a Jacobite, and, but for his infirmity of purpose, it might have been more formidable. The Duke of Queensberry, who acted on this occasion as the queen’s commissioner to parliament, was rewarded for his services with an English dukedom. The Privy Council, the record of whose proceedings has been of so much importance to this work, now came to an end; but a Secretary of State for Scotland continued for the next two reigns to be part of the apparatus of the central government in the English metropolis.

Of the discontent engendered on this occasion, the friends of the exiled Stuarts endeavoured to take advantage in the spring of 1708, by bringing a French expedition to the Scottish coasts, having on board five thousand

men, and the son of James II., now a youth of twenty years of age. It reached the mouth of the Firth of Forth, and many of the Jacobite gentry were prepared to join the young prince on landing. But the Chevalier de St George, as he was called, took ill of small-pox; the British fleet under Admiral Byng came in sight; and it was deemed best to return to France, and wait for another opportunity.

The Tory ministry of the last four years of Queen Anne affected Scotland by the passing of an act of Toleration for the relief of the persecuted remnant of Episcopalians, and another act by which the rights of patrons in the nomination of clergy to charges in the Established Church were revived. The Whigs of the Revolution felt both of these measures to be discouraging. During this period, in Scotland, as in England, the Cavalier spirit was in the ascendancy, and the earnest Whigs trembled lest, by complicity of the queen or her ministers, the Pretender should be introduced, to the exclusion of the Protestant heir. But the sudden death of Anne on the 1st of August 1714, neutralised all such schemes, and the son of the then deceased Electress Sophia succeeded to the British throne, under the name of George I., with as much apparent quietness as if he had been a resident Prince of Wales.

On the principle that minute matters, which 1702. JULY. denote a progress in improvement, or even a tendency to it, are worthy of notice, it may be allowable to remark at this time an advertisement of Mr George Robertson, apothecary at Perth, that he had lately set up there ‘a double Hummum, or Bath Stove, the one for men, and the other for women, approven of by physicians to be of great use for the cure of several diseases.’ A hummum is in reality a Turkish or hot-air bath. We find that, within twenty years after this time, the chirurgeons in Edinburgh had a *bagnio*, or hot bath, and the physicians a cold bath, for medical purposes.

The *Edinburgh Gazette* which advertises the Perth hummum, also announces the presence, in a lodging at the foot of the West Bow of Edinburgh, of Duncan Campbell of Ashfield, chirurgeon to the city of Glasgow, who had ‘cutted nine score persons [for stone] without the death of any except five.’^[313] There was also a mysterious person, styled ‘a gentleman in town,’ and ‘to be got notice of at the Caledonian Coffee-house,’ who had ‘had a secret imparted to him by his father, an eminent

physician in this kingdom, which, by the blessing of God, certainly and safely cures the phrenzie’—also ‘convulsion-fits, vapours, and megrims—in a few weeks, at reasonable rates, and takes no reward till the cure is perfected.’

In the same sheet, ‘G. Young, against the Court of Guard, Edinburgh,’ bespoke favour for ‘a most precious eye-water, which infallibly cures all distempers in the eyes, whether pearl, web, catracht, blood-shot dimness, &c., and in less than six times dressing has cured some who have been blind seven years.’

The custom of vending quack medicines from a public stage on the street—of which we have seen several notable examples in the course of the seventeenth century—continued at this time, and 1702. for many years after, to be kept up. Edinburgh was occasionally favoured with a visit from a famous practitioner of this kind, named Anthony Parsons, who, in announcing his arrival in 1710, stated the quality of his medicines, and that he had been in the habit of vending them on stages for thirty years. In October 1711, he advertised in the *Scots Postman*—‘It being reported that Anthony Parsons is gone from Edinburgh to mount public stages in the country, this is to give notice that he hath left off keeping stages, and still lives in the Hammermen’s Land, at the Magdalen Chapel, near the head of the Cowgate, where may be had the ORVIETAN, a famous antidote against infectious distempers, and helps barrenness, &c.’ Four years later, Parsons announced his design of bidding adieu to Edinburgh, and, in that prospect, offered his medicines at reduced rates; likewise, by auction, ‘a fine cabinet organ.’^[314]

In April 1724, one Campbell, commonly called (probably from his ragged appearance) *Doctor Duds*, was in great notoriety in Edinburgh as a quack mediciner. He does not seem to have been in great favour with the populace, for, being seen by them on the street, he was so vexatiously assaulted, as to be obliged to make his escape in a coach. At this time, a mountebank doctor erected a stage at the foot of the Canongate, in order to compete with Doctor Duds for a share of business; but a boy being killed by a fall from the fabric the day of its erection, threw a damp on his efforts at wit, and the affair appears to have proved a failure.^[315]

The author just quoted had a recollection of one of the last of this fraternity—an Englishman, named Green—who boasted he was the third

generation of a family which had been devoted to the profession. ‘A stage was erected in the most public part of a town, and occupied by the master, with one or two tumblers or rope-dancers, who attracted the multitude. Valuable medicines were promised and distributed by a kind of lottery. Each spectator, willing to obtain a prize, threw a handkerchief, enclosing one or two shillings, on the stage. The handkerchief was returned with a certain quantity of medicines. But along with them, a silver cup was put into one to gratify some successful adventurer.’

‘Doctor Green, younger of Doncaster’—probably the second of the three generations—had occasion, in December 1725, to advertise the Scottish community regarding his ‘menial servant and 1702. tumbler,’ Henry Lewis, who, he said, had deserted his service with a week’s prepaid wages in his pocket, and, as the doctor understood, ‘has resorted to Fife, or some of the north-country burghs, with design to get himself furnished with a play-fool, and to set himself up for a doctor experienced in the practice of physic and chirurgery.’ Doctor Green deemed himself obliged to warn Fife and the said burghs, whither he himself designed to resort in spring, against ‘the said impostor, and to dismiss him as such.’^[316]

We have this personage brought before us in an amusing light, in May 1731, in connection with the King’s College, Aberdeen. He had applied to this learned sodality for a diploma as doctor of medicine, ‘upon assurances given under his hand, that he would practise medicine in a regular way, and give over his stage.’ They had granted him the diploma accordingly. Finding, afterwards, that he still continued to use his stage, ‘the college, to vindicate their conduct in the affair, and at the same time, in justice to the public, to expose Mr Green his disingenuity, recorded in the Register of Probative Writs his letter containing these assurances.’ They also certified ‘that, if Mr Green give not over his stage, they will proceed to further resentment against him.’^[317]

Down to this time there was still an entire faith among the common sort of people in the medical properties of natural crystals, perforated stones, ancient jet ornaments, flint arrow-heads, glass beads, and other articles. The custom was to dip the article into water, and administer the water to the patient. The Stewarts of Ardvorlich still possess a crystal which was once in great esteem throughout Lower Perthshire for the virtues which it could impart to simple water. A flat piece of ivory in the possession of Campbell

of Barbreck—commonly called *Barbreck's Bone*—was sovereign for the cure of madness. This article is now deposited in the Museum of the Scottish Antiquaries in Edinburgh. The *Lee Penny*—a small precious stone, set in an old English coin, still possessed by the Lockharts of Lee—is another and highly noted example of such charms for healing.

It was also still customary to resort to certain wells and other waters, on account of their supposed healing virtues, as we have seen to be the case a century earlier. Either the patient was brought to the water, and dipped into it, or a fragment of his clothing was brought and 1702. cast into, or left on the side of it, a shackle or tether of a cow serving equally when such an animal was concerned. If such virtues had continued to be attributed only to wells formerly dedicated to saints, it would not have been surprising; but the idea of medicinal virtue was sometimes connected with a lake or other piece of water, which had no such history. There was, for example, on the high ground to the west of Drumlanrig Castle, in Nithsdale, a small tarn called the Dow [*i. e.* black] Loch, which enjoyed the highest medical repute all over the south of Scotland. People came from immense distances to throw a rag from a sick friend, or a tether from an afflicted cow, into the Dow Loch, when, ‘these being cast in, if they did float, it was taken for a good omen of recovery, and a part of the water carried to the patient, though to remote places, without saluting or speaking to any one they met by the way; but, if they did sink, the recovery of the party was hopeless.’^[318] The clergy exerted themselves strenuously to put down the superstition. The trouble which the presbytery of Penpont had, first and last, with this same Dow Loch, was past expression. But their efforts were wholly in vain.^[319]

‘It pleased the great and holy God to visit this 1702. JULY 3. town [Leith], for their heinous sins against him, with a very terrible and sudden stroke, which was occasioned by the firing of thirty-three barrels of powder; which dreadful blast, as it was heard even at many miles distance with great terror and amazement, so it hath caused great ruin and desolation in this place. It smote seven or eight persons at least with sudden death, and turned the houses next adjacent to ruinous heaps, tirmed off the roof, beat out the windows, and broke out the timber partitions of a great many houses and biggings even to a great distance. Few houses in the town did escape some damage, and all this in a moment of time; so that the merciful conduct of Divine Providence hath been very admirable in the preservation of

hundreds of people, whose lives were exposed to manifold sudden dangers, seeing they had not so much previous warning as to shift a foot for their own preservation, much less to remove their plenishing.’ So proceeded a petition from ‘the distressed inhabitants of Leith’ to the Privy Council, on the occasion of this sore calamity. ‘Seeing,’ they went on to say, ‘that part of the town is destroyed and damnified to the value of thirty-six thousand nine hundred and thirty-six pounds, Scots money, by and attour several other damages done in several back-closes, and by and attour the household plenishing and merchant goods destroyed in the said houses, and victual destroyed and damnified in lofts, and the losses occasioned by the houses lying waste; and seeing the owners of the said houses are for the most part unable to repair them, so that a great part of the principal seaport of the nation will be desolate and ruinous, if considerable relief be not provided,’ they implored permission to make a charitable collection throughout the kingdom at kirk-doors, and by going from house to house; which prayer was readily granted.^[320]

The Earl of Kintore, who had been made Knight JULY 8.
Marischal of Scotland at the Restoration, and afterwards raised to the peerage for his service in saving the regalia from the English in 1651, was still living.^[321] He petitioned the Privy Council at this date on account of a pamphlet published by Sir William Ogilvie of Barras, in which his concern in the preservation of the regalia was unduly depreciated. His lordship gives a long recital on the subject, from which it after all appears that his share of the business was confined to his discommending obedience to be paid to a state order for sending out the regalia from 1702.
Dunnottar Castle—in which case it was likely they might have been taken—and afterwards doing what he could to put the English on a false scent, by representing the regalia as carried to the king at Paris. He denounces the pamphlet as an endeavour ‘to rob him of his just merit and honour, and likewise to belie his majesty’s patents in his favour,’ and he craved due punishment. Sir William, being laid up with sickness at Montrose, was unable to appear in his own defence, and the Council, accordingly, without hesitation, ordered the offensive brochure to be publicly burnt at the Cross of Edinburgh by the common hangman.

David Ogilvie, younger of Barras, was soon after fined in a hundred pounds for his concern in this so-called libel.^[322]

There is something unaccountable in the determination evinced at various periods to assign the glory of the preservation of the regalia to the Earl of Kintore, the grand fact of the case being that these sacred relics were saved by the dexterity and courage of the unpretending woman—Mrs Grainger—the minister’s wife of Kineff, who, by means of her servant, got them carried out of Dunnottar Castle through the beleaguering lines of the English, and kept them in secrecy under ground for eight years. See under March 1652.

The arrangements of the Post-office, as AUG. established by the act of 1695, were found to be not duly observed, in as far as common carriers presumed to carry letters in tracts where post-offices were erected, ‘besides such as relate to goods sent or to be returned to them.’ A very strict proclamation was now issued against this practice, and forbidding all who were not noblemen or gentlemen’s servants to ‘carry, receive, or deliver any letters where post-offices are erected.’

Inviolability of letters at the Post-office was not yet held in respect as a principle. In July 1701, two letters from Brussels, ‘having the cross upon the back of them,’ had come with proper addresses under cover to the Edinburgh postmaster. He ‘was surprised with them,’ and brought them to the Lord Advocate, who, however, on opening them, found they were ‘of no value, being only on private business;’ wherefore he ordered them to be delivered by the postmaster to the persons to whom they were directed.

Long after this period—in 1738—the Earl of 1702. Ilay, writing to Sir Robert Walpole from Edinburgh, said: ‘I am forced to send this letter by a servant twenty miles out of town, *where the Duke of Argyle’s attorney cannot handle it.*’ It sounds strangely that Lord Hay should thus have had to complain of his own brother; that one who was supreme in Scotland, should have been under such a difficulty from an opposition noble; and that there should have been, at so recent a period, a disregard to so needful a principle. But this is not all. Lord Ilay, in time succeeding his brother as Duke of Argyle, appears to have also taken up his part at the Edinburgh Post-office. In March 1748, General Bland, commander of the forces in Scotland, wrote to the Secretary of State, ‘that

his letters were opened at the Edinburgh Post-office; and I think this is done *by order of a noble duke*, in order to know my secret sentiments of the people and of his Grace. If this practice is not stopped, the ministers cannot hope for any real information.’ Considering the present sound administration of the entire national institution by the now living inheritor of that peerage, one cannot without a smile hear George Chalmers telling^[323] how the Edinburgh Post-office, in the reign of the second George, was ‘infested by two Dukes of Argyle!’

It will be heard, however, with some surprise, that the Lord Advocate may still be considered as having the power, in cases where the public interests are concerned, to order the examination of letters in the Post-office. So lately as 1789, when the unhappy duellist, Captain Macrae, fled from justice, his letters were seized at the Post-office by order of the Justice-clerk Braxfield.

The sport of cock-fighting had lately been introduced into Scotland, and a cock-pit was now in operation in Leith Links, where the charges for admission were 10*d.* for the front row, 7*d.* for the second, and 4*d.* for the third. Soon after, ‘the passion for cock-fighting was so general among all ranks of the people, that the magistrates [of Edinburgh] discharged its being practised on the streets, on account of the disturbances it occasioned.’^[324]

William Machrie, who taught in Edinburgh what 1702. he called ‘the severe and serious, but necessary exercise of the sword,’ had also given a share of his attention to cock-fighting—a sport which he deemed ‘as much an art, as the managing of horses for races or for the field of battle.’ It was an art in vogue over all Europe—though ‘kept up only by people of rank, and never sunk down to the hands of the commonalty’—and he, for his part, had studied it carefully: he had read everything on the subject, conversed and corresponded on it with ‘the best cockers in Britain,’ carefully observing their practice, and passing through a long experience of his own.

Thus prepared, Mr Machrie published in Edinburgh, in 1705, a brochure, styled *An Essay on the Innocent and Royal Recreation and Art of Cocking*, consisting of sixty-three small pages; from which we learn that he had been the means of introducing the sport into Edinburgh. The writer of a prefixed

set of verses evidently considered him as one of the great reformers of the age:

‘Long have you taught the art of self-defence,
Improved our safety then, but now our sense,
Teaching us pleasure with a small expense.’

For his own part, considering the hazard and expense which attended horse-racing and hawking, he was eager to proclaim the superior attractions of cocking, as being a sport from which no such inconveniences arose. The very qualities of the bird recommended it—namely, ‘his Spanish gait, his Florentine policy, and his Scottish valour in overcoming and generosity in using his vanquished adversary.’ The ancients called him an astronomer, and he had been ‘an early preacher of repentance, even convincing Peter, the first pope, of his holiness’s fallibility.’ ‘Further,’ says he, ‘if variety and change of fortune be any way prevalent to engage the minds of men, as commonly it is, to prefer one recreation to another, it will beyond all controversy be found in cocking more than any other. Nay, the eloquence of Tully or art of Apelles could never with that life and exactness represent fortune metamorphosed in a battle, as doth cocking; for here you’ll see brave attacks and as brave defiances, bloody strugglings, and cunning and handsome retreats; here you’ll see generous fortitude ignorant of interest,’ &c.

Mr Machrie, therefore, goes *con amore* into his subject, fully trusting that his treatise on ‘this little but bold animal could not 1702. be unacceptable to a nation whose martial temper and glorious actions in the field have rendered them famed beyond the limits of the Christian world;’ a sentence from which we should have argued that our author was a native of a sister-island, even if the fact had not been indicated by his name.

Mr Machrie gives many important remarks on the natural history of the animal—tells us many secrets about its breeding; instructs us in the points which imply strength and valour; gives advices about feeding and training; and exhibits the whole policy of the pit. Finally, he says, ‘I am not ashamed to declare to the world that I have a special veneration and esteem for those gentlemen, within and about this city, who have entered in society for propagating and establishing the royal recreation of cocking (in order to which they have already erected a cock-pit in the Links of Leith); and I earnestly wish that their generous and laudable example may be imitated in

that degree that, in cock-war, village may be engaged against village, city against city, kingdom against kingdom, nay, the father against the son, until all the wars in Europe, wherein so much Christian blood is spilt, be turned into the innocent pastime of cocking.'

Machrie advertised, in July 1711, that he was not the author of a little pamphlet on Duelling, which had been lately published with his name and style on the title-page—'William Machrie, Professor of both Swords.' He denounced this publication as containing ridiculous impossibilities in his art, such as 'pretending to parry a pistol-ball with his sword.' Moreover, it contained 'indiscreet reflections on the learned Mr Bickerstaff [of the *Tatler*],' 'contrary to his [Machrie's] natural temper and inclination, as well as that civility and good manners which his years, experience, and conversation in the world have taught him.'^[325]

The amusement of cock-fighting long kept a hold of the Scottish people. It will now be scarcely believed that, through the greater part of the eighteenth century, and till within the recollection of persons still living, the boys attending the parish and burghal schools were encouraged to bring cocks to school at Fasten's E'en (Shrove-tide), and devote an entire day to this barbarising sport. The slain birds and *fugies* (so the craven birds were called) became the property of the schoolmaster. The minister of Applecross, in Ross-shire, in his account of the parish, written about 1790, coolly tells us that the schoolmaster's income is 1702. composed of two hundred merks, with payments from the scholars of 1s. 6d. for English, and 2s. 6d. for Latin, and 'the cock-fight dues, which are equal to one quarter's payment for each scholar.'^[326]

A Short Account of Scotland, written, it is understood, by an English gentleman named Morer, and published this year, presents a picture of our country as it appeared to an educated stranger before the union. The surface was generally unenclosed; oats and barley the chief grain products; wheat little cultivated; little hay made for winter, the horses then feeding chiefly on straw and oats. The houses of the gentry, heretofore built for strength, were now beginning to be 'modish, both in fabric and furniture.' But 'still their avenues are very indifferent, and they want their gardens, which are the beauty and pride of our English seats.' Orchards were rare, and 'their apples, pears, and plums not of the best kind;' their cherries tolerably good;

‘for gooseberries, currants, strawberries, and the like, they have of each, but growing in gentlemen’s gardens; and yet from thence we sometimes meet them in the markets of their boroughs.’ The people of the Lowlands partly depended on the Highlands for cattle to eat; and the Highlanders, in turn, carried back corn, of which their own country did not grow a sufficiency.

Mr Morer found that the Lowlanders were dressed much like his own countrymen, excepting that the men generally wore bonnets instead of hats, and plaids instead of cloaks; the women, too, wearing plaids when abroad or at church. Women of the humbler class generally went barefoot, ‘especially in summer.’ The children of people of the better sort, ‘lay and clergy,’ were likewise generally without shoes and stockings. Oaten-cakes, baked on a plate of iron over the fire, were the principal bread used. Their flesh he admits to have been ‘good enough,’ but he could not say the same for their cheese or butter. They are ‘fond of tobacco, but more from the snish-box than the pipe.’ Snuff, indeed, had become so necessary to them, that ‘I have heard some of them say, should their bread come in competition with it, they would rather fast than their snish should be taken away. Yet mostly it consists of the coarsest tobacco, dried by the fire, and powdered in a little engine after the form of a *tap*, which they carry in their pockets, and is both a *mill* to grind and a *box* to keep it in.’

1702.



Dresses of the People of Scotland.—From Speed’s *Atlas*, 1676.

Stage-coaches did not as yet exist, but there were a few hackneys at Edinburgh, which might be hired into the country upon urgent occasions. 'The truth is, the roads will hardly allow them those conveniences, which is the reason that the gentry, men and women, choose rather to use their horses. However, their great men often travel with coach-and-six, but with so little caution, that, besides their other attendance, they have a lusty running-footman on each side of the coach, to manage and keep it up in rough places.'

Another Englishman, who made an excursion into Scotland in 1704, gives additional particulars, but to the same general purport. At Edinburgh, he got good French wine at 20*d.*, and Burgundy at 10*d.* a quart. The town appeared to him scarcely so large as York or Newcastle, but extremely populous, and containing abundance of beggars. 'The people here,' he says, 'are very proud, and call the ordinary tradesmen merchants.' 'At the best houses they dress their victuals after the French method, though perhaps not so cleanly, and a soup is commonly the first dish; and their reckonings are dear enough. The servant-maids attended without shoes or stockings.'

At Lesmahago, a village in Lanarkshire, he found the people living on cakes made of pease and barley mixed. 'They ate no meat, nor drank anything but water, all the year round; and the common people go without shoes or stockings all the year round. I pitied their poverty, but observed the people were fresh and lusty, and did not seem to be under any uneasiness with their way of living.'

1702.

In the village inn, 'I had,' says he, 'an enclosed room to myself, with a chimney in it, and dined on a leg of veal, which is not to be had at every place in this country.' At another village—Crawford-John—'the houses are either of earth or loose stones, or are *raddled*, and the roofs are of turf, and the floors the bare ground. They are but one story high, and the chimney is a hole in the roof, and the fireplace is in the middle of the floor. Their seats and beds are of turf earthed over, and raddled up near the fireplace, and serve for both uses. Their ale is pale, small, and thick, but at the most common minsh-houses [taverns], they commonly have good French brandy, and often French wine, so common are these French liquors in this country.'

Our traveller, being at Crawford-John on a Sunday, went to the parish church, which he likens to a barn. He found it 'mightily crowded, and two gentlemen's seats in it with deal-tops over them. They begin service here

about nine in the morning, and continue it till about noon, and then rise, and the minister goes to the minsh-house, and so many of them as think fit, and refresh themselves. The rest stay in the churchyard for about half an hour, and then service begins again, and continues till about four or five. I suppose the reason of this is, that most of the congregations live too far from the church to go home and return to church in time.’^[327]

The general conditions described by both of these travellers exhibit little, if any advance upon those presented in the journey of the Yorkshire squire in 1688,^[328] or even that of Ray the naturalist in 1661.^[329]

George Young, a shopkeeper in the High Street of Edinburgh, was appointed by the magistrates as a constable, along with several other citizens in the like capacity, ‘to oversee the manners and order of the burgh and inhabitants thereof.’ On the evening of the day noted, being Sunday, he went ‘through some parts of the town, to see that the Lord’s Day and laws made for the observance thereof were not violat.’ ‘Coming to the house of Marjory Thom, relict of James Allan, vintner, a little before ten o’clock, and finding in the house
1703. JAN. 24.
1703.
several companies in different rooms, [he] did soberly and Christianly expostulate with the mistress of the house for keeping persons in her house at such unseasonable hours, and did very justly threaten to delate her to the magistrates, to be rebuked for the same. [He] did not in the least offer to disturb any of her guests, but went away, and as [he was] going up the close to the streets, he and the rest was followed by Mr Archibald Campbell, eldest son to Lord Niel Campbell, who quarrelled him for offering to delate the house to the magistrates, [telling him] he would make him repent it.’ So runs George Young’s own account of the matter. It was rather unlucky for him, in his turn at this duty, to have come into collision with Mr Campbell, for the latter was first-cousin to the Duke of Argyle, and a person of too much consequence to be involved in a law which only works sweetly against the humbler classes, being, indeed, mainly designed for their benefit.

To pursue Young’s narrative. ‘Mr Archibald came next day with some others towards the said George his shop, opposite to the Guard [house], and called at his shop, which was shut by the hatch or half-door: “Sirrah, sirrah!” which George not observing, nor apprehending his discourse was

directed to him, Mr Archibald called again to this purpose: “I spoke to you, Young the constable.” Whereupon, George civilly desiring to know his pleasure, he expressed himself thus: “Spark, are you in any better humour to-day than you was last night?” George answered, he was the same to-day he was last night. “I was about my duty last night, and am so to-day. I hope I have not offended you; and pray, sir, do not disturb me.” Mr Archibald, appearing angry, and challenging George for his taking notice of Mrs Allan’s house, again asked him if he was in any better temper, or words to that purpose; [to which] George again replied, He was the same he was, and prayed him to be gone, because he seemed displeased. Whereupon Mr Archibald taking hold of his sword, as [if] he would have drawn it, George, being within the half-door, fearing harm, threw open the door, and came out to Mr Archibald, and endeavoured to catch hold of his sword. Mr Archibald did beat him upon the eye twice or thrice, and again took hold of his sword to draw and run at him; which he certainly had done, if not interrupted by the bystanders, who took hold of his sword and held him, till that the Town-guard seized Mr Archibald, and made him prisoner.’

Mr Campbell, being speedily released upon bail, did not wait to be brought before the magistrates, but raised a process 1702. against Young before the Privy Council, ‘intending thereby to discourage all laudable endeavours to get extravagancy and disorder [repressed].’ In the charge which he brought forward, Mr Campbell depicts himself as walking peaceably on the High Street, when Young attacked him, seized his sword, and declared him prisoner, without any previous offence on his part. The Guard thereafter dragged him to their house, maltreating him by the way, and kept him a prisoner till his friends assembled and obtained his liberation. The process went through various stages during the next few weeks, and at length, on the 9th of March, the Council found Young guilty of a riot, and fined him in four hundred merks (upwards of £22 sterling), to be paid to Mr Campbell for his expenses; further ordaining the offender to be imprisoned till the money was forthcoming.

To do the Duke of Argyle justice, his name does not appear in the list of the councillors who sat that day.

Sir John Bell, a former magistrate of Glasgow, MAR. 6. kept up a modest frame of Episcopal worship in that Presbyterian city,

having occasionally preachers, who were not always qualified by law, to officiate in his house. On the 30th of January, a boy-mob assailed the house while worship was going on, and some windows were broken. However, the magistrates were quickly on the spot, and the tumult was suppressed.

A letter from the queen to the Privy Council, dated the 4th February, glanced favourably at the Episcopalian dissenters of Scotland, enjoining that the clergy of that persuasion should live peaceably in relation to the Established Church, and that they should, while doing so, be protected in the exercise of their religion. It was a sour morsel to the more zealous Presbyterians, clergy and laity, who, not from any spirit of revenge, but merely from bigoted religious feelings, would willingly have seen all Episcopalians banished at the least. At Glasgow, where a rumour got up that some Episcopalian places of worship would be immediately opened under sanction of her majesty's letter, much excitement prevailed. Warned by a letter from the Lord Chancellor, the magistrates of the city took measures for preserving the peace, and they went to church on the 7th of March, under a full belief that there was no immediate likelihood of its being broken. The Episcopalians, however, were in some alarm about the symptoms of popular feeling, and it was deemed

1703.

necessary to plant a guard of gentlemen, armed with swords, in front of the door of Sir John Bell's house, where they were to enjoy the ministrations of a clergyman named Burgess. Some rude boys gathered about, and soon came to rough words with this volunteer guard, who, chasing them with their swords, and, it is said, violent oaths, along the Saltmarket, roused a general tumult amongst all who were not at church. The alarm soon passed into the churches. The people poured out, and flocked to the house where they knew that the Episcopalians were gathered. The windows were quickly smashed. The worshippers barricaded and defended themselves; but the crowd broke in with fore-hammers, though apparently hardly knowing for what purpose. The magistrates came with some soldiers; reasoned, entreated, threatened; apprehended a few rioters, who were quickly rescued; and finally thought it best to limit themselves to conducting the scared congregation to their respective homes—a task they successfully accomplished. 'Afterwards,' say the magistrates, 'we went and did see Sir John Bell in his house, where Mr Burgess, the minister, was; and, in the meantime, when we were regretting the misfortune that had happened to Sir John and his family, who had merited much from his civil carriage when a

magistrate in this place, it was answered to us by one of his sons present, that they had got what they were seeking, and would rather that that had fallen out than if it had been otherways.’

The Privy Council, well aware how distasteful any outrages against the Episcopalians would be at court, took pains to represent this affair in duly severe terms in their letters to the secretaries of state in London. They also took strong measures to prevent any similar tumult in future, and to obtain reparation of damages for Sir John Bell.

Generally, the condition of Episcopal ministers continued to be uncomfortable. In February 1705, Dr Richard Waddell, who had been Archdean of St Andrews before the Revolution, and was banished from that place in 1691, but had lately returned under protection of her majesty’s general indemnity, became the subject of repressive measures on the part of the Established Church. Letters of horning were raised against him by ‘John Blair, agent for the kirk,’ and, notwithstanding strong protestations of loyalty to the queen, he was ordained by the Privy Council once more ‘to remove furth of the town and parochine of St Andrews, and not return thereto.’^[330]

An elderly woman named Marion Lillie, 1703. APR. residing at Spott, in East Lothian, was in the hands of the kirk-session, on account of the general repute she lay under as a witch. Amidst the tedious investigations of her case in the parish register, it is impossible to see more than that she occasionally spoke ungently to and of her neighbours, and had frightened a pregnant woman to a rather unpleasant extremity by handling her rudely. The *Rigwoodie Witch*,^[331] as a neighbour called her, was now turned over to a magistrate, to be dealt with according to law; but of her final fate we have no account.

Spott is a place of sad fame, its minister having basely murdered his wife in 1570,^[332] and the estate having belonged to a gentleman named Douglas, whom we have seen concerned in the slaughter of Sir James Home of Eccles, and who on that account became a forfeited outlaw.^[333] The wife of a subsequent proprietor, a gambler named Murray, was daughter to the Lord Forrester, who was stabbed with his own sword by his mistress at Corstorphine in 1679.^[334] There is extant a characteristic letter of this lady to Lord Alexander Hay, son of the Earl of Tweeddale, on his bargaining,

soon after this time, for the estate, with her husband, without her consent—in which she makes allusion to the witches of Spott:

‘THES TO LORD ALEXANDER HAY.

‘SPOTT, 19 May.

‘This way of proceeding, my lord, will seem verely abrupte and inconsiderat to you; but I laye my count with the severest censer you or may malicious enemies can or will saye of me. So, not to be tedious, all I have to speak is this: I think you most absurd to [have] bought the lands of Spott from Mr Murray without my consent, which you shall never have now; and I hope to be poseser of Spott hous when you are att the divell; and believe me, my childrin’s curse and mine will be a greater moth in your estate than all your ladey and your misirable wretchedness can make up and pray [pay].

‘This is no letter of my lord Bell Heavins, and tho you saye, in spite of the divell, you’le buy it befor this time twell month, you may come to repent it; but thats non of my bisnes. I shall only saye this, you are basely impertinent to thrust me away in a hurrey from my hous at Whitsunday, when I designed not to go till Martinmis: and I wish the ghosts of all the
1703.
witches that ever was about Spott may haunt you, and make you the unfourtuntest man that ever lived, that you may see you was in the wrong in makeing aney such bargain without the consent of your mortal enemy,

CLARA MURRAY.’[\[335\]](#)

The country was at this time in a state of
JULY 1.
incandescent madness regarding its nationality, and the public feeling found expression through the medium of parliament. By its order, there was this day burned at the Cross of Edinburgh, by the hangman, a book entitled *Historia Anglo-Scotica*, by James Drake, ‘containing many false and injurious reflections upon the sovereignty and independency of this nation.’ In August 1705, when the passion was even at a greater height, the same fate was awarded by the legislature to a book, entitled *The Superiority and Direct Dominion of the Imperial Crown of England over the Crown and Kingdom of Scotland*; also to a pamphlet, called *The Scots Patriot Unmasked*, both being the production of William Atwood. On the same day that the latter order was given, the parliament decreed the extraordinary sum of £4800 (Scots?) to Mr James Anderson, for a book he had published, *A Historical Essay shewing that the Crown and Kingdom of Scotland is Imperial and Independent*. Nor was this all, for at the same time it was ordered that ‘Mr James Hodges, who hath in his writings served this nation,’ should have a similar reward.[\[336\]](#)

The Scottish parliament at this time patronised
SEP. 3.
literature to a considerable extent, though a good deal after the manner of the poor gentleman who bequeathed large ideal sums to his friends, and

comforted himself with the reflection, that it at least shewed good-will. Alexander Nisbet had prepared a laborious work on heraldry,^[337] tracing its rise, and describing all its various figures, besides ‘shewing by whom they are carried amongst us, and for what reasons,’ thus instructing the gentlefolk of this country of their ‘genealogical pennons,’ and affording assistance to ‘curious antiquaries’ in understanding ‘seals, medals, historie, and ancient records.’ But Alexander was unable of his own means to publish so large a work, for which it would be 1703. necessary to get italic types, ‘whereof there are very few in this kingdom,’ and which also required a multitude of copper engravings to display ‘the armorial ensigns of this ancient kingdom.’ Accordingly, on his petition, the parliament (September 3, 1703), recommended the Treasury to grant him £248, 6s. 8d. sterling ‘out of what fund they shall think fit.’^[338]

In 1695, the Scottish parliament forbade the sale AUG. 9. of rum, as interfering with the consumpt of ‘strong waters made of malt,’ and because the article itself was ‘rather a drug than a liquor, and highly prejudicial to the health of all who drink it.’ Now, however, Mr William Cochrane of Kilmaronock, John Walkenshaw of Barrowfield, John Forbes of Knaperna, and Robert Douglas, merchant in Leith, designed to set up a sugar-work and ‘stillarie for distilling of rum’ in Leith, believing that such could never be ‘more necessary and beneficial to the country, and for the general use and advantage of the lieges, than in this time of war, when commodities of that nature, how necessary soever, can hardly be got from abroad.’ On their petition, the designed work was endowed by the Privy Council with the privileges of a manufactory.

The steeple of the Tolbooth of Tain had lately SEP. 10. fallen in the night, to the great hazard of the lives of the prisoners, and some considerable damage to the contiguous parish church. On the petition of the magistrates of this poor little burgh, the Privy Council ordained a collection to be made for the reconstruction of the building; and, meanwhile, creditors were enjoined to transport their prisoners to other jails.

Nearly about the same time, voluntary collections were ordained by the Privy Council, for erecting a bridge over the Dee at the Black Ford; for the

construction of a harbour at Cromarty, ‘where a great quantity of the victual that comes to the south is loadened;’ and for making a harbour at Pennan, on the estate of William Baird of Auchmedden, in Aberdeenshire, where such a convenience was eminently required for the shelter of vessels, and where ‘there is likewise a millstone quarry belonging to the petitioner [Baird], from which the greatest part of the mills in the kingdom are served by sea.’

Amidst the endless instances of misdirected zeal and talent which mark the time, there is a feeling of relief and gratification even in so small and commonplace a matter as an application to the Privy Council, which now occurs, from Mr William Forbes, advocate, for a copyright in a work he had prepared under the name of *A Methodical Treatise of Bills of Exchange*. The case is somewhat remarkable in itself, as an application by an author, such applications being generally from stationers and printers.

1703. Nov. 11.

Usually, in our day, the opposing solicitors in a cause do not feel any wrath towards each other. It was different with two agents employed at this time in the Court of Session on different interests, one of them being Patrick Comrie, who acted in the capacity of ‘doer’ for the Laird of Lawers. To him, one day, as he lounged through the Outer House, came up James Leslie, a ‘writer,’ who entered into some conversation with him about Lawers’s business, and so provoked him, that he struck Leslie in the face, in the presence of many witnesses. Leslie appealed to the court, on the strength of an old statute which decreed death to any one guilty of violence in the presence of the Lords, and Comrie was apprehended. There then arose many curious and perplexing questions among the judges as to the various bearings of the case; but all were suddenly solved by Comrie obtaining a remission of his offence from the queen.^[339]

DEC.

In this year was published^[340] the first intelligent topographical book regarding Scotland, being ‘*A Description of the Western Isles*, by M. Martin, Gentleman.’ It gives accurate information regarding the physical peculiarities of these islands, and their numberless relics of antiquity,

besides many sensible hints as to means for improving the industry of the inhabitants. The author, who seems to have been a native of Skye, writes like a well-educated man for his age, and as one who had seen something of life in “busier scenes than those supplied by his own country. He has also thought proper to give an ample account of many superstitious practices of the Hebrideans, and to devote a chapter to the alleged power of *second-sight*, which was then commonly attributed to special individuals throughout the whole of Celtic Scotland. All this he does in the same sober painstaking manner in which he tells of matters connected with the rural economy of the people, fully shewing that he

1703.

himself reposed entire faith in the alleged phenomena. In the whole article, indeed, he scarcely introduces a single expression of a dogmatic character, either in the way of defending the belief or ridiculing it, but he very calmly furnishes answers, based on what he considered as facts, to sundry objections which had been taken against it. But for his book, we should have been much in the dark regarding a system which certainly made a great mark on the Highland mind in the seventeenth century, and was altogether as remarkable, perhaps, as the witch superstitions of the Lowlands during the same period.

He tells us—‘The second-sight is a singular faculty of seeing an otherwise invisible object, without any previous means used by the person that sees it, for that end. The vision makes such a lively impression upon the seers, that they neither see nor think of anything else, except the vision, as long as it continues, and then they appear pensive or jovial, according to the object which was represented to them.

‘At the sight of a vision, the eyelids of the person are erected, and the eyes continue staring until the object vanish. This is obvious to others who are by, when the persons happen to see a vision, and occurred more than once to my own observation, and to others who were with me.’

The seers were persons of both sexes and of all ages, ‘generally illiterate, well-meaning people;’ not people who desired to make gain by their supposed faculty, or to attract notice to themselves—not drunkards or fools—but simple country people, who were rather more apt to feel uneasy in the possession of a gift so strange, than to use it for any selfish or unworthy purpose. It really appears to have been generally regarded as an

uncomfortable peculiarity; and there were many instances of the seers resorting to prayers and other religious observances in order to get quit of it.

The vision came upon the seer unpremonishedly, and in all imaginable circumstances. If early in the morning, which was not frequent, then the prediction was expected to be accomplished within a few hours; the later in the day, the accomplishment was expected at the greater distance of time. The things seen were often of an indifferent nature, as the arrival of a stranger; often of a character no less important than the death of individuals. If a woman was seen standing at a man's left hand, it was a presage that she would be his wife, even though one of the parties might then be the mate of another. Sometimes several women would be seen standing in a row beside a man, in which case it was expected that the one 1703. nearest would be his first wife, and so on with the rest in their turns.

When the arrival of a stranger was predicted, his dress, stature, complexion, and general appearance would be described, although he might be previously unknown to the seer. If of the seer's acquaintance, his name would be told, and the humour he was in would be described from the countenance he bore. 'I have been seen thus myself,' says Martin, 'by seers of both sexes at some hundred miles' distance; some that saw me in this manner, had never seen me personally, and it happened according to their visions, without any previous design of mine to go to those places, my coming there being purely accidental.'

It will be remembered that, when Dr Johnson and Boswell travelled through the Hebrides in 1773, the latter was told an instance of such prediction by the gentleman who was the subject of the story—namely, M'Quarrie, the Laird of Ulva. 'He had gone to Edinburgh, and taken a man-servant along with him. An old woman who was in the house said one day: "M'Quarrie will be at home to-morrow, and will bring two gentlemen with him;" and she said she saw his servant return in red and green. He did come home next day. He had two gentlemen with him, and his servant had a new red and green livery, which M'Quarrie had bought for him at Edinburgh, upon a sudden thought, not having the least intention when he left home to put his servant in livery; so that the old woman could not have heard any previous mention of it. This, he assured us, was a true story.'

[^{\[341\]}](#)

Martin tells a story of the same character, but even more striking in its various features. The seer in this case was Archibald Macdonald, who lived

in the isle of Skye about the time of the Revolution. One night before supper, at Knockowe, he told the family he had just then seen the strangest thing he ever saw in his life; to wit, a man with an ugly long cap, always shaking his head; but the strangest thing of all was a little harp he had, with only four strings, and two hart's horns fixed in the front of it. 'All that heard this odd vision fell a laughing at Archibald, telling him that he was dreaming, or had not his wits about him, since he pretended to see a thing that had no being, and was not so much as heard of in any part of the world.' All this had no effect upon Archibald, 'who told them that they must excuse him if he laughed at them after the accomplishment of the vision.' Archibald returned to his own house, and within 1703.

three or four days after, a man exactly answering to the description arrived at Knockowe. He was a poor man, who made himself a buffoon for bread, playing on a harp, which was ornamented with a pair of hart's horns, and wearing a cap and bells, which he shook in playing. He was previously unknown at Knockowe, and was found to have been at the island of Barray, sixty miles off, at the time of the vision. This story was vouched by Mr Daniel Martin and all his family—relatives, we may presume, of the author of the book now quoted.

Martin relates a story of a predicted visit of a singular kind to the island of Egg; and it is an instance more than usually entitled to notice, as he himself heard of it in the interval between the vision and its fulfilment. A seer in that island told his neighbours that he had frequently seen the appearance of a man in a red coat lined with blue, having on his head a strange kind of blue cap, with a very high cock on the forepart of it. The figure always appeared in the act of making rude advances to a young woman who lived in the hamlet, and he predicted that it would be the fate of this girl to be treated in a dishonourable way by some such stranger. The inhabitants considered the affair so extremely unlikely to be realised, that they treated the seer as a fool. Martin tells that he had the story related to him in Edinburgh, in September 1688, by Norman Macleod of Graban, who had just then come from the isle of Skye, there being present at the time the Laird of Macleod, Mr Alexander Macleod, advocate, and some other persons. About a year and a half after, a few government war-vessels were sent into the Western Islands to reduce some of the people who had been out with Lord Dundee. Major Fergusson, who commanded a large military party on board, had no thought of touching at Egg, which is a very

sequestered island, but some natives of that isle, being in Skye, encountered a party of his men, and one of the latter was slain. He consequently steered for Egg, to revenge himself on the natives. Among other outrages, the young woman above alluded to was carried on board the vessel, and disgracefully treated, thus completely verifying the vision.

An instance of the second-sight, which fell under the observation of the clever statesman Viscount Tarbat, is related by Martin as having been reported to him by Lord Tarbat himself. While travelling in Ross-shire, his lordship entered a house, and sat down on an arm-chair. One of his retinue, who possessed the faculty of a seer, spoke to some 1703. of the rest, wishing them to persuade his lordship to leave the house, ‘for,’ said he, ‘a great misfortune will attend somebody in it, and that within a few hours.’ This was told to Lord Tarbat, who did not regard it. The seer soon after renewed his entreaty with much earnestness, begging his master to remove out of that unhappy chair; but he was only snubbed as a fool. Lord Tarbat, at his own pleasure, renewed his journey, and had not been gone many hours when a trooper, riding upon ice, fell and broke his thigh, and being brought into that house, was laid in the arm-chair to have his wound dressed. Thus the vision was accomplished.

It was considered a rule in second-sight, that a vision seen by one seer was not necessarily visible to another in his company, unless the first touched his neighbour. There are, nevertheless, anecdotes of visions seen by more than one at a time, without any such ceremony. In one case, two persons, not accustomed to see visions, saw one together, after which, neither ever enjoyed the privilege again. They were two simple country men, travelling along a road about two miles to the north of Snizort church, in Skye. Suddenly they saw what appeared as a body of men coming from the north, as if bringing a corpse to Snizort to be buried. They advanced to the river, thinking to meet the funeral company at the ford, but when they got there, the visionary scene had vanished. On coming home, they told what they had seen to their neighbours. ‘About three weeks after, a corpse was brought along that road from another parish, from which few or none are brought to Snizort, except persons of distinction.’

A vision of a similar nature is described as occurring to one Daniel Stewart, an inhabitant of Hole, in the North Parish of St Mary’s, in the isle of Skye; and it was likewise the man’s only experience of the kind. One

day, at noon, he saw five men riding northward; he ran down to the road to meet them; but when he got there, all had vanished. The vision was repeated next day, when he also heard the men speak. It was concluded that the company he saw was that of Sir Donald Macdonald of Sleat, who was then at Armadale, forty miles distant.

The important place which matrimony occupies in social existence, makes it not surprising that the union of individuals in marriage was frequently the alleged subject of second-sight. As already mentioned, when a woman stood at a man's left hand, she was expected to be his wife. It was also understood that, when a man was seen at a woman's left hand, he was to be her future husband. 'Several persons,' says 1703.

Martin, 'living in a certain family, told me that they had frequently seen two men standing at a young gentlewoman's left hand, who was their master's daughter. They told the men's names, and as they were the young lady's equals, it was not doubted that she would be married to one of them, and perhaps to the other, after the death of the first. Some time after, a third man appeared, and he seemed always to stand nearest to her of the three; but the seers did not know him, though they could describe him exactly. Within some months after, this man, who was last seen, did actually come to the house, and fulfilled the description given of him by those who never saw him but in a vision; and he married the woman shortly after. They live in the isle of Skye; both they and others confirmed the truth of this instance when I saw them.'

The Rev. Daniel Nicolson, minister of the parish of St Mary's, in Skye, was a widower of forty-four, when a noted seer of his flock, the Archibald Macdonald already spoken of, gave out that he saw a well-dressed lady frequently standing at the minister's right hand. He described her complexion, stature, and dress particularly, and said he had no doubt such a person would in time become the second Mrs Nicolson. The minister was rather angry at having this story told, and bade his people pay no attention to what 'that foolish dreamer, Archibald Macdonald,' had said, 'for,' said he, 'it is twenty to one if ever I marry again.' Archibald, nevertheless, persisted in his tale. While the matter stood in this position, it was related to Martin.

The minister afterwards attended a synod in Bute—met a Mrs Morison there—fell in love with her, and brought her home to Skye as his wife. It is

affirmed that she was instantly and generally recognised as answering to the description of the lady in Archibald's vision.

About 1652, Captain Alexander Fraser, commonly called the *Tutor of Lovat*, being guardian of his nephew, Lord Lovat, married Sybilla Mackenzie, sister of the Earl of Seaforth, and widow of John Macleod of Macleod. The Tutor, who had fought gallantly in the preceding year for King Charles II. at Worcester, was thought a very lucky man in this match, as the lady had a jointure of three hundred merks *per annum*!^[342] The marriage, however, is more remarkable on account of its having been *seen* many years before, during the lifetime of the lady's 1703. first husband. We have the story told with all seriousness, though in very obscure typography, in a letter which Aubrey prints^[343] as having been sent to him by a 'learned friend' of his in the Highlands, about 1694.

Macleod and his wife, while residing, we are to understand, at their house of Dunvegan in Skye, on returning one day from an excursion or brief visit, went into their nursery to see their infant child. To pursue the narration: 'On their coming in, the nurse falls a-weeping. They asked the cause, dreading the child was sick, or that the nurse was scarce of milk. The nurse replied the child was well, and she had abundance of milk. Yet she still wept. Being pressed to tell what ailed her, she at last said that Macleod would die, and the lady would shortly be married to another man. Being asked how she knew that event, she told them plainly, that, as they came into the room, she saw a man with a scarlet cloak and white hat betwixt them, giving the lady a kiss over the shoulder; and this was the cause of her weeping; all which,' pursues the narrator, 'came to pass. After Macleod's death [which happened in 1649], the Tutor of Lovat married the lady in the same dress in which the woman saw him.'

The Bishop of Caithness, a short while before the Revolution, had five daughters, one of whom spoke grudgingly of the burden of the family housekeeping lying wholly upon her. A man-servant in the house, who had the second-sight, told her that ere long she would be relieved from her task, as he saw a tall gentleman in black walking on the bishop's right hand, and whom she was to marry. Before a quarter of a year had elapsed, the prediction was realised; and all the man's vaticinations regarding the marriage-feast and company also proved true.

A curious class of cases, of importance for any theory on the subject, was that in which a visionary figure or spectre intervened for the production of the phenomena. A spirit in great vogue in the Highlands in old times—as, indeed, in the Lowlands also—was known by the name of *Browny*. From the accounts we have of him, it seems as if he were in a great measure identical with the drudging goblin of Milton, whose shadowy flail by night would thrash the corn

‘That ten day-labourers could not end.’

Among our Highlanders, he presented himself as a tall man. The servants of Sir Norman Macleod of Bernera were one night 1703. assembled in the hall of the castle in that remote island, while their master was absent on business, without any intimation having been given of the time of his probable return. One of the party, who had the second-sight, saw Browny^[344] come in several times and make a show of carrying an old woman from the fireside to the door; at last, he seemed to take her by neck and heels, and bundle her out of the house; at which the seer laughed so heartily, that his companions thought him mad. He told them they must remove, for the hall would be required that night for other company. They knew, of course, that he spoke in consequence of having had a vision; but they took it upon themselves to express a doubt that it could be so speedily accomplished. In so dark a night, and the approach to the island being so dangerous on account of the rocks, it was most unlikely that their master would arrive. In less than an hour, a man came in to warn them to get the hall ready for their master, who had just landed. Martin relates this story from Sir Norman Macleod’s own report.

The same Sir Norman Macleod was one day playing with some of his friends at a game called the Tables (in Gaelic, *palmermore*), which requires three on a side, each throwing the dice by turns. A 1703. critical difficulty arising as to the placing of one of the table-men, seeing that the issue of the game obviously must depend upon it, the gentleman who was to play hesitated for a considerable time. At length, Sir Norman’s butler whispered a direction as to the best site for the man into his ear; he played in obedience to the suggestion, and won the game. Sir Norman, having heard the whisper, asked who had advised him so skilfully. He answered that it was the butler. ‘That is strange,’ quoth Sir Norman, ‘for the butler is unacquainted with the game.’ On inquiry, the man told that he had

not spoken from any skill of his own. He had seen the spirit, Brownie, reaching his arm over the player's head, and touching with his finger the spot where the table-man was to be placed. 'This,' says Martin, 'was told me by Sir Norman and others, who happened to be present at the time.'

Sir Norman Macleod relates another case in which his own knowledge comes in importantly for authentication. A gentleman in the isle of Harris had always been 'seen' with an arrow in his thigh, and it was expected that he would not go out of the world without the prediction being fulfilled. Sir Norman heard the matter spoken of for many years before the death of the gentleman. At length the gentleman died, without any such occurrence taking place. Sir Norman was at his funeral, at St Clement's kirk, in Harris. The custom of that island being to bury men of importance in a stone chest in the church, the body was brought on an open bier. A dispute took place among the friends at the church door as to who should enter first, and from words it came to blows. One who was armed with a bow and arrows, let fly amongst them, and after Sir Norman Macleod had appeased the tumult, one of the arrows was found sticking in the dead man's thigh!

Martin was informed by John Morison of Bragir, in Lewis, 'a person of unquestionable sincerity and reputation,' respecting a girl of twelve years old, living within a mile of his house, who was troubled with the frequent vision of a person exactly resembling herself, who seemed to be always employed just as she herself might be at the moment. At the suggestion of John Morison, prayers were put up in the family, in which he and the girl joined, entreating that God would be pleased to relieve her from this unpleasant visitation; and after that she saw her double no more. Another neighbour of John Morison was haunted by a spirit resembling himself, who never spoke to him within doors, but pestered him constantly out of doors with impertinent questions. At the 1703. recommendation of a neighbour, the man threw a live coal in the face of the vision; in consequence of which, the spirit assailed him in the fields next day, and beat him so sorely, that he had to keep his bed for fourteen days. Martin adds: 'Mr Morison, minister of the parish, and several of his friends, came to see the man, and joined in prayer that he might be freed from this trouble; but he was still haunted by that spirit a year after I left Lewis.'

Another case in which the spirit used personal violence, but of an impalpable kind, is related by Martin as happening at Knockowe, in Skye,

and as reported to him by the family who were present when the circumstance occurred. A man-servant, who usually enjoyed perfect health, was one evening taken violently ill, fell back upon the floor, and then began to vomit. The family were much concerned, being totally at a loss to account for so sudden an attack; but in a short while the man recovered, and declared himself free of pain. A seer in the family explained the mystery. In a neighbouring village lived an ill-natured female, who had had some hopes of marriage from this man, but was likely to be disappointed. He had seen this woman come in with a furious countenance, and fall a-scolding her lover in the most violent manner, till the man tumbled from his seat, albeit unconscious of the assault made upon him.

Several instances of second-sight are recorded in connection with historical occurrences. Sir John Harrington relates that, at an interview he had with King James in 1607, the conversation having turned upon Queen Mary, the king told him that her death had been seen in Scotland before it happened, 'being, as he said, "spoken of in secret by those whose power of sight presented to them a bloody head dancing in the air." He then,' continues Harrington, 'did remark much on this gift.'^[345] It is related in May's *History of England*, that when the family of King James was leaving Scotland for England, an old hermit-like seer was brought before them, who took little notice of Prince Henry, but wept over Prince Charles—then three years old—lamenting to think of the misfortunes he was to undergo, and declaring he should be the most miserable of princes. A Scotch nobleman had a Highland seer brought to London, where he asked his judgment on the Duke of Buckingham, then at the height of his fortunes as the king's favourite. 'Pish!' said he, 'he will come to nothing. 1703.

I see a dagger in his breast!' In time the duke, as is well known, was stabbed to the heart by Lieutenant Felton.

In one of the letters on second-sight, written to Mr Aubrey from Scotland about 1693–94, reference is made to the seer Archibald Macdonald, who has already been introduced in connection with instances occurring in Skye. According to this writer, who was a divinity student living in Strathspey, Inverness-shire, Archibald announced a prediction regarding the unfortunate Earl of Argyle. He mentioned it at Balloch Castle (now Castle-Grant), in the presence of the Laird of Grant, his lady, and several others, and also in the house of the narrator's father. He said of Argyle, of whom few or none then knew where he was, that he would within two months

come to the West Highlands, and raise a rebellious faction, which would be divided in itself, and disperse, while the earl would be taken and beheaded at Edinburgh, and his head set upon the Tolbooth, where his father's head was before. All this proved strictly true.

Archibald Macdonald was a friend of Macdonald of Glencoe, and accompanied him in the expedition of Lord Dundee in 1689 for the maintenance of King James's interest in the Highlands. Mr Aubrey's correspondent, who was then living in Strathspey, relates that Dundee's irregular forces followed General Mackay's party along Speyside till they came to Edinglassie, when he turned and marched up the valley. At the Milltown of Gartenbeg, the Macleans joined, but remained behind to plunder. Glencoe, with Archibald in his company, came to drive them forward; and when this had been to some extent effected, the seer came up and said: 'Glencoe, if you will take my advice, you will make off with yourself with all possible haste. Ere an hour come and go, you'll be as hard put to it as ever you were in your life.' Glencoe took the hint, and, within an hour, Mackay appeared at Culnakyle, in Abernethy, with a party of horse, and chased the Macleans up the Morskaith; in which chase Glencoe was involved, and was hard put to it, as had been foretold. It is added, that Archibald likewise foretold that Glencoe would be murdered in the night-time in his own house, three months before it happened.

A well-vouched instance of the second-sight connected with a historical incident, is related by Drummond of Bohaldy, regarding the celebrated Highland paladin, Sir Ewen Cameron of Lochiel, who died at the age of ninety in 1719. 'Very early that morning 1703. [December 24, 1715] whereon the Chevalier de St George landed at Peterhead, attended only by Allan Cameron, one of the gentlemen of his bedchamber, Sir Ewen started, as it were, in a surprise, from his sleep, and called out so loud to his lady (who lay by him in another bed) that his king was landed—that his king was arrived—and that his son Allan was with him, that she awaked.' She then received his orders to summon the clan, and make them drink the king's (that is, the Chevalier's) health—a fête they engaged in so heartily, that they spent in it all the next day. 'His lady was so curious, that she noted down the words upon paper, with the date; which she a few days after found verified in fact, to her great surprise.' Bohaldy remarks that this case fully approved itself to the whole clan Cameron, as they heard their chief speak of scarcely anything else all that day.^[346]

Predictions of death formed a large class of cases of second-sight. The event was usually indicated by the subject of the vision appearing in a shroud, and the higher the vestment rose on the figure, the event was the nearer. 'If it is not seen above the middle,' says Martin, 'death is not to be expected for the space of a year, and perhaps some months longer. When it is seen to ascend higher towards the head, death is concluded to be at hand within a few days, if not hours, as daily experience confirms. Examples of this kind were shewn me, when the person of whom the observation was made enjoyed perfect health.' He adds, that sometimes death was foretold of an individual by hearing a loud cry, as from him, out of doors. 'Five women were sitting together in the same room, and all of them heard a loud cry passing by the window. They thought it plainly to be the voice of a maid who was one of the number. She blushed at the time, though not sensible of her so doing, contracted a fever next day, and died that week.'

In a pamphlet on the second-sight, written by Mr John Fraser, dean of the Isles, and minister of Tiree and Coll, is an instance of predicted death, which the author reports on his own knowledge. Having occasion to go to Tobermory, in Mull, to assist in some government investigations for the recovery of treasure in the vessel of the Spanish Armada known to have been there sunk, he was accompanied by a handsome servant-lad, besides other attendants.^[347] A woman came before he sailed, and, through the medium of a seaman, endeavoured to dissuade him 1703. from taking that youth, as he would never bring him back alive. The seaman declined to communicate her story to Mr Fraser. The company proceeded on their voyage, and met adverse weather; the boy fell sick, and died on the eleventh day. Mr Fraser, on his return, made a point of asking the woman how she had come to know that this lad, apparently so healthy, was near his death. She told Mr Fraser that she had seen the boy, as he walked about, 'sewed up in his winding-sheets from top to toe;' this she always found to be speedily followed by the death of the person so seen.

Martin relates that a woman was accustomed for some time to see a female figure, with a shroud up to the waist, and a habit resembling her own; but as the face was turned away, she never could ascertain who it was. To satisfy her curiosity, she tried an experiment. She dressed herself with that part of her clothes behind which usually was before. The vision soon after presented itself with its face towards the seeress, who found it to be herself. She soon after died.

Although the second-sight had sunk so much in Martin's time, that, according to him, there was not one seer for ten that had been twenty years before, it continued to be so much in vogue down to the reign of George III., that a separate treatise on the subject, containing scores of cases, was published in 1763 by an educated man styling himself *Theophilus Insulanus*, as a means of checking in some degree the materialising tendencies of the age, this author considering the gift as a proof of the immortality of the soul. When Dr Johnson, a few years later, visited the Highlands, he found the practice, so to speak, much declined, and the clergy almost all against it. Proofs could, nevertheless, be adduced that there are even now, in the remoter parts of the Highlands, occasional alleged instances of what is called second-sight, with a full popular belief in their reality.

Charles, Earl of Hopetoun,^[348] set forth in a 1704. JAN. 25. petition to the Privy Council, that in his minority, many years ago, his tutors had caused a windmill to be built at Leith for grinding and refining the ore from his lead-mines. In consequence of the unsettling of a particular bargain, the mill had been allowed to lie unused till now, when it required some repair in order to be fit for service. One John 1704. Smith, who had set up a saw-mill in Leith, being the only man *seen* in this kind of work, had been called into employment by his lordship for the repair of the windmill; but the wright-burgesses of Edinburgh interfered violently with the work, on the ground of their corporation privileges, 'albeit it is sufficiently known that none of them have been bred to such work or have any skill therein.' Indeed, some part of the original work done by them had now to be taken down, so ill was it done. It was obviously a public detriment that such a work should thus be brought to a stand-still. The Council, entering into the earl's views, gave him a protection from the claims of the wright-burgesses.

It is notorious that the purity of the Court of FEB. Session continued down to this time to be subject to suspicion. It was generally understood that a judge favoured his friends and connections, and could be 'spoken to' in behalf of a party in a suit. The time was not yet long past when each lord had a 'Pate'—that is, a dependent member of the bar

(sometimes called Peat), who, being largely fee'd by a party, could on that consideration influence his patron.

A curious case, illustrative of the character of the bench, was now in dependence. The heritors of the parish of Dalry raised an action for the realisation of a legacy of £3000, which had been left to them for the founding of a school by one Dr Johnston. The defender was John Joissy, surgeon, an executor of the testator, who resisted the payment of the money on certain pretexts. With the assistance of Alexander Gibson of Durie, a principal clerk of Session, Joissy gained favour with a portion of the judges, including the president. On the other hand, the heritors, under the patronage of the Earl of Galloway, secured as many on their side. A severe contest was therefore to be expected. According to a report of the case in the sederunt-book of the parish, the Lord President managed to have it judged under circumstances favourable to Joissy. The court having 'accidentally appointed a peremptor day about the beginning of February 1704 for reporting and deciding in the cause, both parties concluded that the parish would then gain it, since one of Mr Joissy's lords came to be then absent. For as my Lord Anstruther's hour in the Outer House was betwixt nine and ten of the clock in the morning, so the Earl of Lauderdale, as Lord Ordinary in the Outer House, behoved to sit from ten to twelve in the forenoon: for by the 21st act of the fourth session of the first 1704. parliament of King William and Queen Mary, it's statuted expressly, that if the Lord Ordinary in the Outer Houses sit and vote in any cause in the Inner House after the chap of ten hours in the clock, he may be *declined* by either party in the cause from ever voting thereafter therintill: yet such was the Lord President's management, that so soon as my Lord Anstruther returned from the Outer House at ten of the clock, and that my Lord Lauderdale was even desired by some of the lords to take his post in the Outer House in the terms of law: yet his lordship was pleased after ten to sit and vote against the parish, the president at that juncture having put the cause to a vote.'

The heritors, by the advice of some of the lords in their interest, gave in a declinature of Lord Lauderdale, on the ground of the illegality of his sitting in the Inner House after ten o'clock; whereupon, next morning, the Lord President came into the court in a great rage, demanding that all those concerned in the declinature should be punished as criminals. The leading decliner, Mr Ferguson of Cairoch, escaped from town on horseback, an hour before the macer came to summon him. The counsel, John Menzies of

Cammo, and the agent, remained to do what they could to still the storm. According to the naïve terms of the report, ‘the speat [flood] was so high against the parish and them all the time, that they behoved to employ all their friends, and solicit a very particular lord that morning before they went to the house; and my Lord President was so high upon’t, that when Cammo told him that my Lord Lauderdale, contrair to the act of parliament, sat after ten o’clock, his lordship unmannerly said to Cammo, as good a gentleman as himself, that it was a damned lie.’

Menzies, though a very eminent counsel, and the agent, found all their efforts end in an order for their going to jail, while a suitable punishment should be deliberated upon. After some discussion, a slight calm ensued, and they were liberated on condition of coming to the bar as malefactors, and there begging the Earl of Lauderdale’s pardon. The parish report states that no remedy could be obtained, for ‘the misery at that time was that the lords were in effect absolute, for they did as they pleased, and when any took courage to protest for remeid of law to the Scots parliament, they seldom or never got any redress there, all the lords being still present, by which the parliament was so overawed that not ane 1704. decreit among a hundred was reduced.’^[349]

It is strange to reflect, that among these judges were Lord Fountainhall and Lord Arniston, with several other men who had resisted tyrannous proceedings of the old government, to their own great suffering and loss. Wodrow promises of Halcraig, that, for his conduct regarding the test in 1684, his memory would be ‘savoury.’ The same author, speaking of the set in 1726 as dying out, says he wishes their places may be as well filled. ‘King William,’ he says, ‘brought in a good many substantial, honest country gentlemen, well affected to the government and church, and many of them really religious, though there might be some greater lawyers than some of them have been and are. But, *being men of integrity and weight, they have acted a fair and honest part these thirty years*, and keep the bench in great respect. May their successors be equally diligent and conscientious!’^[350] Of course, by fairness and honesty, Wodrow chiefly meant soundness in revolution politics, and steadfast adherence to the established church.

Another instance of the vigorous action of the Lords in the maintenance of their dignity occurred in December 1701. A gentleman, named Cannon of

Headmark, having some litigation with the Viscount Stair and Sir James Dalrymple, his brother Alexander, an agent before the court, used some indiscreet expressions regarding the judges in a paper drawn up by him. Being called before the Lords, and having acknowledged the authorship of the paper, he was sent to prison for a month, ordered then to crave pardon of the court on his knees, and thereafter to be for ever debarred from carrying on business as an agent.^[351]

Some letters regarding a lawsuit of William Foulis of Woodhall in 1735–37, which have been printed,^[352] shew that it was even then still customary to use influence with the Lords in favour of parties, and the female connections appear as taking a large share in the business. One sentence is sufficient to reveal the whole system. ‘By Lord St Clair’s advice, Mrs Kinloch is to wait on Lady Cairnie to-morrow, to cause her to ask the favour of Lady St Clair to solicit Lady Betty Elphinston and Lady Dun’—the former being the wife of Lord Coupar, and the 1704. latter of Lord Dun, two of the judges. Lord St Clair’s hint to Mrs Kinloch to get her friend to speak to his own wife—he thus keeping clear of the affair himself—is a significant particular. Lord Dun, who wrote a moral volume, entitled *Advices*,^[353] and was distinguished for his piety, is spoken of by tradition as such a lawyer as might well be open to any force that was brought to bear upon him. The present Sir George Sinclair heard Mr Thomas Coutts relate that, when a difficult case came before the court, where Lord Dun acted alone as ‘ordinary,’ he was heard to say: ‘Eh, Lord, what am I to do? Eh, sirs, I wiss ye wad mak it up.’

It will be surprising to many to learn that the idea of having ‘friends’ to a cause on the bench was not entirely extinct in a reign which people in middle life can well recollect. The amiable Charles Duke of Queensberry, who had been the patron of Gay, was also the friend of James Burnett of Monboddo, and had exacted a promise that Burnett should be the next person raised to the bench. ‘On Lord Milton’s death (1767), the duke waited on his majesty, and reminded him of his promise, which was at once admitted, and orders were immediately given to the secretary of state [Conway] to make out the royal letter. The lady of the secretary was nearly allied to the family of Hamilton, and being most naturally solicitous about the vote which Mr Burnett might give in the great cause of which he had taken so much charge as a counsel, she and the Duchess of Hamilton and Argyle were supposed to have induced their brother-in-law, Mr Secretary

Conway, to withhold for many weeks the letter of appointment, and is even supposed to have represented Mr Burnett's character in such unfavourable colours to the Lord Chancellor Henley, that his lordship is reported to have jocosely declared, that if she could prove her allegations against that gentleman, instead of making him a judge, he would *hang* him. This delay gave rise to much idle conjecture and conversation in Edinburgh, and it was confidently reported that Mr Burnett's appointment would not take place till after the decision of the Douglas cause. Irritated by these insinuations against his integrity, he wrote to the Duke of Queensberry, declaring that if his integrity as a judge could be questioned in this cause, he should positively refuse to be trusted with any other; and so highly did he resent the opposition made by the secretary to his promotion, that he took measures for canvassing his native county, in order 1704. to oppose in parliament a ministry who had so grossly affronted him. The Duke of Queensberry, equally indignant at the delay, requested an audience of his majesty, and tendered a surrender of his commission as justice-general of Scotland, if the royal promise was not fulfilled. In a few days the letter was despatched, and Lord Monboddo took his seat in the court. [\[354\]](#)

Under the excitement created by the news of a FEB. 2. Jacobite plot, the zealous Presbyterians of Dumfriesshire rose to wreak out their long pent-up feelings against the Catholic gentry of their district. Having fallen upon sundry houses, and pillaged them of popish books, images, &c., they marched in warlike manner to Dumfries, under the conduct of James Affleck of Adamghame and John M'Jore of Kirkland, and there made solemn incrimination of their spoil at the Cross.

A number of 'popish vestments, trinkets, and other articles' having been found about the same time in and about Edinburgh, the Privy Council (March 14) ordered such of them as were not intrinsically valuable to be burned next day at the Cross; but the chalice, patine, and other articles in silver and gold, to be melted down, and the proceeds given to the kirk-treasurer. [\[355\]](#)

Notwithstanding this treatment, we find it reported in 1709, that 'papists do openly and avowedly practise within the city of Edinburgh and suburbs.' It was intimated at the same time, that there is 'now also a profane and deluded crew of enthusiasts, set up in this place, who, under pretence to the

spirit of prophecy, do utter most horrid blasphemies against the ever-glorious Trinity, such as ought not to be suffered in any Christian church or nation.’^[356]

Sir George Maxwell of Orchardton, in the stewartry of Kirkcudbright, having gone over to the Church of Rome, and the next heir, who was a Protestant, being empowered by the statute of 1700 to claim his estate, his uncle, Thomas Maxwell of Gelstoun, a man of seventy years of age, came forward on this adventure (June 1704), further demanding that the young baronet should be decerned to pay him six thousand merks as a year’s rent of his estate for employing George Maxwell of Munshes, a known papist, to be his factor, and five hundred more from Munshes 1704. himself for accepting the trust.

A petition presented by the worthy Protestant uncle to the Privy Council, makes us aware that George Maxwell of Munshes, ‘finding he would be reached for accepting the said factory, out of malice raised a lawburrows,’ in which Orchardton concurred, though out of the kingdom, against Gelstoun and his son, as a mere pretext for stopping proceedings; but he trusted the Lords would see through the trick, and defeat it by accepting the cautioners he offered for its suspension. The Council, doubtless duly indignant that a papist should so try to save his property, complied with Gelstoun’s petition.^[357]

A statute of the Sixth James, anno 1621—said to APR. 12. have been borrowed from one of Louis XIII. of France—had made it unlawful for any tavern-keeper to allow individuals to play in his house at cards and dice, or for any one to play at such games in a private house, unless where the master of the house was himself playing; likewise ordaining, that any sum above a hundred merks gained at horse-racing, or in less than twenty-four hours at other play, should be forfeited to the poor of the district. During the ensuing period of religious strictness, we hear little of gambling in Scotland, but when the spring was relaxed, it began to reappear with other vices of ease and prosperity. A case, reported in the law-books under July 1688, makes us aware, as by a peep through a curtain, that gentlemen were accustomed at that time to win and lose at play sums which appear large in comparison with incomes and means then general. It appears that Captain Straiton, who was well known afterwards as a busy Jacobite

partisan, won from Sir Alexander Gilmour of Craigmillar, at cards, in one night, no less than six thousand merks, or £338, 6s. 8d. sterling. The captain first gained four thousand, for which he obtained a bond from Sir Alexander; then he gained two thousand more, and got a new bond for the whole. An effort was made to reduce the bond, but without success.

Francis Charteris, a cadet of an ancient and honourable family in Dumfriesshire, and who had served in Marlborough's wars, was now figuring in Edinburgh as a member of the *beau monde*, with the reputation of being a highly successful gambler. There is a story told of him—but I cannot say with what truth—that, being at the Duke of Queensberry's one evening, and playing with the duchess, he was 1704. enabled, by means of a mirror, or more probably a couple of mirrors placed opposite each other, to see what cards she had in her hand, through which means he gained from her Grace no less a sum than three thousand pounds. It is added that the duke was provoked by this incident to get a bill passed through the parliament over which he presided, for prohibiting gambling beyond a certain moderate sum; but this must be a mistake, as no such act was then passed by the Scottish Estates; nor was any such statute necessary, while that of 1621 remained in force. We find, however, that the Town Council at this date issued an act of theirs, threatening vigorous action upon the statute of 1621, as concerned playing at cards and dice in public houses, as 'the occasion of horrid cursing, quarrelling, tippling, loss of time, and neglect of necessary business—the constables to be diligent in detecting offenders, on pain of having to pay the fines themselves.' Perhaps it was at the instigation of the duke that this step was taken.

From Fountainhall we learn that, about 1707, Sir Andrew Ramsay of Abbotshall lost 28,000 merks, to Sir Scipio Hill, at cards and dice, and granted a bond upon his estate for the amount. This being in contravention of the act of 1621, the kirk-treasurer put in his claim for all above 100 merks on behalf of the poor, but we do not learn with what success.

Sir Thomas Dalryell of Binns—grandson of the JULY 4. old bearded persecutor of the times of the Charleses—had for a long time past been 'troubled with a sore disease which affects his reason, whereby he is continually exposed to great dangers to his own person, by mobs, and others that does trouble him.' It was also found that 'by the force of his

disease, he is liable to squander away and dilapidate his best and readiest effects, as is too notourly known.’ Such is the statement of Sir Thomas’s nephew, Robert Earl of Carnwath; his sister, Magdalen Dalyell; and her husband, James Monteith of Auldcathie, craving authority, ‘for the preservation of his person and estate, and also for the public peace,’ to take him into custody in his house of Binns, ‘till means be used for his recovery;’ likewise power to employ a factor ‘for uplifting so much of his rents as may be necessar for his subsistence, and the employing doctors and apothecaries, according to the exigence of his present condition.’

The Council not only granted the petition, but ordained that the petitioners might order up a soldier or two at any 1704. time from Blackness, to assist in restraining the unfortunate gentleman.

This Sir Thomas Dalyell died unmarried, leaving his estates and baronetcy to a son of his sister Magdalen, grandfather of the present baronet. The case is cited as shewing the arrangements for a lunatic man of rank in the days of Queen Anne.

The central authorities were now little inclined JULY. to take up cases of sorcery; but it does not appear that on that account witches ceased to be either dreaded or punished. Country magistrates and clergy were always to be found who sympathised with the popular terrors on the subject, and were ready to exert themselves in bringing witches to justice.

At the village of Torryburn, in the western part of Fife, a woman called Jean Neilson experienced a tormenting and not very intelligible ailment, which she chose to attribute to the malpractices of a woman named Lillias Adie. Adie was accordingly taken up by a magistrate, and put in prison. On the 29th July, the minister and his elders met in session, called Lillias before them, and were gratified with an instant confession, to the effect that she had been a witch for several years, having met the devil at the side of a ‘stook’ on the harvest-field, and renounced her baptism to him, not without a tender embrace, on which occasion she found that his skin was cold, and observed his feet cloven like those of a stirk. She had also joined in midnight dances where he was present. Once, at the back of Patrick Sands’s house in Valleyfield, the festivity was lighted by a light that ‘came from darkness,’ not so bright as a candle, but sufficient to let them see each

other's faces, and shew the devil, who wore a cap covering his ears and neck. Several of the women she saw on these occasions she now delated as witches. The session met again and again to hear such recitals, and to examine the newly accused persons. There was little reported but dance-meetings of the alleged witches, and conversations with the devil, the whole bearing very much the character of what we have come to recognise as hallucinations or spectral illusions. Yet the case of Adie was considered sufficient to infer the pains of death, and she was burned within the sea-mark. There were several other solemn meetings of the session to inquire into the cases of the other women accused by Adie; but we do not learn with what result.

The extreme length to which this affair was carried may be partly attributed to the zeal of the minister, the Rev. Allan 1704. Logan, who is said to have been particularly knowing in the detection of witches. At the administration of the communion, he would cast his eye along, and say: 'You witch-wife, get up from the table of the Lord,' when some poor creature, perhaps conscience-struck with a recollection of wicked thoughts, would rise and depart, thus exposing herself to the hazard of a regular accusation afterwards. He used to preach against witchcraft, and we learn that, in 1709, a woman called Helen Key was accused before the Torryburn session of using some disrespectful language about him in consequence. She told a neighbour, it appears, that on hearing him break out against the witches, she thought him 'daft' [mad], and took up her stool and left the kirk. For this she was convicted of profanity, and ordained to sit before the congregation and be openly rebuked.^[358]

Rather earlier in the year, there was a remarkable outbreak of diablerie at the small seaport burgh of Pittenweem, in the eastern part of Fife. Here lived a woman named Beatrix or Beatie Laing, described as 'spouse to William Brown, tailor, late treasurer of the burgh,' and who must therefore be inferred to have been not quite amongst the poorer class of people. In a petition from the magistrates (June 13, 1704) to the Privy Council, it was stated that Patrick Morton was a youth of sixteen, 'free of any known vice,' and that, being employed by his father to make some nails for a ship belonging to one of the merchants in Pittenweem, he was engaged at that work in his father's smithy, when Beatrix Laing came and desired him to make some nails for her. He modestly refused, alleging that he was engaged in another job requiring haste, whereupon she went away 'threatening to be

revenged, which did somewhat frighten him, because he knew she was under a bad fame and reputed for a witch.'

Next day, as he passed Beatrix's door, 'he observed a timber vessel with some water and a fire-coal in it at the door, which made him apprehend that it was a charm laid for him, and the effects of her threatening; and immediately he was seized with such a weakness in his limbs, that he could hardly stand or walk.' He continued for many weeks in a languishing condition, in spite of all that physicians could do for him, 'still growing worse, having no appetite, and his body strangely emaciated. About the beginning of May, his case altered to the worse by his having such strange and unusual fits as did astonish all onlookers. His

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belly at times was distended to a great height; at other times, the bones of his back and breast did rise to a prodigious height, and suddenly fell,' while his breathing 'was like to the blowing of a bellows.' At other times, 'his body became rigid and inflexible, insomuch that neither his arms nor legs could be bowed or moved by any strength, though frequently tried.' His senses were 'benumbed, and yet his pulse [continued] in good order.' His head sometimes turned half about, and no force could turn it back again. He suffered grievous agonies. His tongue was occasionally drawn back in his throat, 'especially when he was telling who were his tormentors.' Sometimes the magistrates or minister brought these people to his house, and before he saw them, he would cry out they were coming, and name them. The bystanders would cover his face, bring in the women he had accused of tormenting him, besides others, and cause them to touch him in succession; when he expressed pain as the alleged tormentors laid their hands upon him, and in the other instances 'no effect followed.' It seemed to the magistrates that the young man was in much the same condition with 'that of Bargarran's daughter in the west.'

Beatrix, and the other accused persons, were thrown into the jail of the burgh by the minister and magistrates, with a guard of drunken fellows to watch over them. Beatrix steadily refused to confess being a witch, and was subjected to pricking, and kept awake for five days and nights, in order to bring her to a different frame of mind. Sorely wounded, and her life a burden to her, she at length was forced, in order to be rid of the torment, to admit what was imputed to her. It will thus be observed that the humane practice maintained during the whole of the late cavalier reigns, of only accepting *voluntary* confessions from persons taxed with witchcraft, was no

longer in force. The poor woman afterwards avowing that what she had told them of her seeing the devil and so forth was false, 'they put her in the stocks, and then carried her to the Thieves' Hole, and from that transported her to a dark dungeon, where she was allowed no manner of light, or human converse, and in this condition she lay for five months.' During this interval, the sapient magistrates, with their parish minister, were dealing with the Privy Council to get the alleged witches brought to trial. At first, the design was entertained of taking them to Edinburgh for that purpose; but ultimately, through the humane interference of the Earl of Balcarres and Lord Anstruther,^[359] two members of council 1704. connected with the district, the poor women were set at liberty on bail (August 12). This, however, was so much in opposition to the will of the rabble, that Beatrix Laing was obliged to decamp from her native town. 'She wandered about in strange places, in the extremity of hunger and cold, though she had a competency at home, but dared not come near her own house for fear of the fury and rage of the people.'

It was indeed well for this apparently respectable woman that she, for the meantime, remained at a distance from home. While she was wandering about, another woman, named Janet Cornfoot, was put in confinement at Pittenweem, under a specific charge from Alexander Macgregor, a fisherman, to the effect that he had been beset by her and two others one night, along with the devil, while sleeping in his bed. By torture, Cornfoot was forced into acknowledging this fact, which she afterwards denied privately, under equal terror for the confession and the retractation. However, her case beginning to attract attention from some persons of rank and education in the neighbourhood, the minister seems to have become somewhat doubtful of it, and by his connivance she escaped. Almost immediately, an officious clergyman of the neighbourhood apprehended her again, and sent her back to Pittenweem in the custody of two men.

Falling there into the hands of the populace, the wretched woman was tied hard up in a rope, beaten unmercifully, and then dragged by the heels through the streets and along the shore. The appearance of a bailie for a brief space dispersed the crowd, but only to shew how easily the authorities might have protected the victim, if they had chosen. Resuming their horrible work, the rabble tied Janet to a rope stretching between a vessel in the harbour and the shore, swinging her to and fro, and amusing themselves by pelting her with stones. Tiring at length of this sport, they let her down

with a sharp fall upon the beach, beat her again unmercifully, and finally, covering her with a door, pressed her to death (January 30, 1705). A daughter of the unhappy woman was in the town, 1704. aware of what was going on, but prevented by terror from interceding. This barbarity lasted altogether three hours, without any adequate interruption from either minister or magistrates. Nearly about the same time, Thomas Brown, one of those accused by the blacksmith, died in prison, ‘after a great deal of hunger and hardship;’ and the bodies of both of these victims of superstition were denied Christian burial.

The matter attracted the attention of the Privy Council, who appointed a committee to inquire into it, but the ringleaders of the mob had fled; so nothing could be immediately done. After some time, they were allowed to return to the town free of molestation on account of the murder. Well, then, might Beatrix Laing dread returning to her husband’s comfortable house in this benighted burgh. After a few months, beginning to gather courage, she did return, yet not without being threatened by the rabble with the fate of Janet Cornfoot; wherefore it became necessary for her to apply to the Privy Council for a protection. By that court an order was accordingly issued to the Pittenweem magistrates, commanding them to defend her from any tumults, insults, or violence that might be offered to her.

At the close of this year, George and Lachlan Rattray were in durance at Inverness, ‘alleged guilty of the horrid crimes of mischievous charms, by witchcraft and malefice, sorcery or necromancy.’ It being inconvenient to bring them to Edinburgh for trial, the Lords of Privy Council issued a commission to Forbes of Culloden, Rose of Kilravock, ... Baillie, commissary of Inverness, and some other gentlemen, to try the offenders. The judges, however, were enjoined to transmit their judgment for consideration, and not allow it to be put in execution without warrant from the Council.

On the 16th July 1706, a committee of Council took into consideration the verdict in the case of the two Rattrays, and finding it ‘agreeable to the probation,’ ordained the men to be executed, under the care of the magistrates of Inverness, on the last Wednesday of September next to come. This order is subscribed by Montrose, Buchan, Northesk, Forfar, Torphichen, Elibank, James Stewart, Gilbert Elliot, and Alexander Douglas.

The functions of the five Lords Commissioners of Justiciary being of the utmost importance, ‘concerning both the lives and fortunes of her majesty’s lieges,’ the parliament settled on these officers a salary of twelve hundred pounds Scots each, being about one hundred pounds sterling.^[360] They had previously had the same income nominally, but being payable by precept of the commissioners of the treasury, or the cash-keeper, it was, like most such dues, difficult to realise, and, perhaps, could scarcely be said to exist.

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At this time, the fifteen judges of the Court of Session had each two hundred pounds sterling per annum, the money being derived from a grant of £20,000 Scots out of the customs and interest on certain sums belonging to the court.^[361] Five of them, who were lords of the criminal court also, were, as we here see, endowed with a further salary, making three hundred in all. The situation of president—‘ane imployment of great weight, requiring are assiduous and close application,’ says the second President Dalrymple^[362]—had usually, in addition to the common salary, a pension, and a present of wines from the Treasury, making up his income to about a thousand a year. By the grace of Queen Anne, after the Union, the puisne judges of the Court of Session got £300 a year additional, making five hundred in all;^[363] and this was their income for many years thereafter, the president continuing to have one thousand per annum. In the salaries of the same officers at the present day—£3000 to a puisne civil judge, with expenses when he goes on circuit; £4800 to the President; and to the Lord Justice-clerk, £4500—we see, as powerfully as in anything, the contrast between the Scotland of a hundred and fifty years ago, and the Scotland of our own time.

Patrick Smith professed to have found out a secret ‘whereby malt may be dried by all sorts of fuel, whether coals, wood, or turf, so as to receive no impression from the smoke thereof, and that in a more short and less expensive manner than hath been known in the kingdom.’ He averred that ‘the drink brewn of the said malt will be as clear as white wine, free of all bad tincture, more relishing and pleasant to the taste, and altogether more agreeable to human health than the ale hath been heretofore known in the kingdom.’ Seeing how ‘ale is the ordinary drink of the inhabitants thereof,’ the public utility of the discovery was obvious.

AUG. 30.

Patrick announced himself to the Privy Council as willing to communicate his secret for the benefit of the country, if allowed during a certain term to use it in an exclusive manner, and sell the same right to others.

1704.

Their Lordships granted the desired privilege for nine years.

Ever since the year 1691, there had been a garrison of government soldiers in Invergarry House, in Inverness-shire, the residence of Macdonald of Glengarry. The proprietor esteemed himself a sufferer to the extent of a hundred and fifty pounds a year, by damages to his lands and woods, besides the want of the use of his house, which had been reduced to a ruinous condition; and he now petitioned the government for some redress, as well as for a removal of the garrison, the ‘apparent cause’ of planting which had long ago ceased, ‘all that country being still peaceable and quiet in due obedience to authority, without the least apprehension of disturbance or commotion.’

AUG. 30.

The Council ordered Macdonald to be heard in his own cause before the Lords of the Treasury, in presence of Brigadier Maitland, governor of Fort-William, that a statement might be drawn up and laid before the queen. ‘His circumstances,’ however, ‘being such, that he cannot safely appear before their Lordships without ane personal protection,’ the Council had to grant a writ discharging all macers and messengers from putting any captions to execution against him up to the 20th of September.

Before the time for the conference arrived, the Duke of Argyle put in a representation making a claim upon Glengarry’s estate, so that it became necessary to call in the aid of the Lord Advocate to make up the statement for the royal consideration.

The family of the Gordons of Gicht have already attracted our attention by their troubles as Catholics under Protestant persecution, and their tendency to wild and lawless habits. After two generations of silence, the family comes up again in antagonism to the law, but in the person of the husband of an heiress. It appears that the Miss Gordon of Gicht who gave birth to George Lord Byron, was not the first heiress who married unfortunately.

SEP. 16.

The *heretrix* of this period had taken as her husband Alexander Davidson, younger of Newton, who, on the event, became with his father (a rich man) bound to relieve the mother of his bride—‘the old Lady Gicht’—of the debts of the family, in requital for certain advantages conferred upon him. The mother had married as a second husband

1704.

Major-general Buchan, who commanded the Cavalier army after the death of Lord Dundee, till he was defeated by Sir Thomas Livingstone at Cromdale. By and by, Alexander Davidson, under fair pretences, through James Hamilton of Cowbairdie, borrowed from his mother-in-law her copy of the marriage-contract, which had not yet been registered; and when the family creditors applied for payment of their debts, he did not scruple to send them, or allow them to go to the old Lady Gicht and her husband for payment. They, beginning to feel distressed by the creditors, sought back the copy of the contract for their protection; but as no entreaty could induce Davidson to return it to Cowbairdie, they were obliged at last to prosecute the latter gentleman for its restitution.

Cowbairdie, being at length, at the instance of old Lady Gicht and her husband, taken upon a legal caption, was, with the messenger, John Duff, at the Milton of Fyvie, at the date noted, on his way to prison, when Davidson came to him with many civil speeches, expressive of his regret for what had taken place. He entreated Duff to leave Cowbairdie there on his parole of honour, and go and intercede with General Buchan and his wife for a short respite to his prisoner, on the faith that the contract should be registered within a fortnight, which he pledged himself should be done. Duff executed this commission successfully; but when he came back, Davidson revoked his promise. It chanced that another gentleman had meanwhile arrived at the Milton, one Patrick Gordon, who had in his possession a caption against Davidson for a common debt of a hundred pounds due to himself. Seeing of what stuff Davidson was made, he resolved no longer to delay putting this in execution; so he took Duff aside, and put the caption into his hand, desiring him to take Gicht, as he was called, into custody, which was of course immediately done.

In the midst of these complicated proceedings, a message came from the young Lady Gicht, entreating them to come to the family mansion, a few miles off, where she thought all difficulties might be accommodated. The whole party accordingly went there, and were entertained very hospitably till about two o’clock in the morning (Sunday), when the strangers rose to

depart, and Davidson came out to see them to horse, as a host was bound to do in that age, but with apparently no design of going along with them. Duff was not so far blinded by the Gicht hospitality, as to forget that he would be under a very heavy responsibility if he should allow Davidson to slip through his fingers. Accordingly, he reminded the 1704. laird that he was a prisoner, and must come along with them; whereupon Davidson drew his sword, and called his servants to the rescue, but was speedily overpowered by the messenger and his assistant, and by the other gentlemen present. He and Cowbairdie were, in short, carried back as prisoners that night to the Milton of Fyvie.

This place being on the estate of Gicht, Duff bethought him next day that, as the tenants were going to church, they might gather about their captive laird, and make an unpleasant disturbance; so he took forward his prisoners to the next inn, where they rested till the Sabbath was over. Even then, at Davidson's entreaty, he did not immediately conduct them to prison, but waited over Monday and Tuesday, while friends were endeavouring to bring about an accommodation. This was happily so far effected, the Earl of Aberdeen, and his son Lord Haddo, paying off Mr Gordon's claim on Davidson, and certain relatives becoming bound for the registration of the marriage-contract.

From whatever motive—whether, as alleged, to cover a vitiation in the contract, or merely out of revenge—Davidson soon after raised a process before the Privy Council against Cowbairdie, Gordon, and Duff, for assault and private imprisonment, concluding for three thousand pounds of damages; but after a long series of proceedings, in the course of which many witnesses were examined on both sides, the case was ignominiously dismissed, and Davidson decerned to pay a thousand merks as expenses. ^[364]

Cash being scarce in the country, a rumour arose DEC. —believed to be promoted by malicious persons—that the Privy Council intended by proclamation to raise the value of the several coins then current. The unavoidable consequence was a run upon the Bank of Scotland, which lasted twenty days, and with such severity, that at last the money in its coffers was exhausted, and payments at the bank were suspended; being the only stoppage or suspension, properly so called, which has ever taken place in this venerable institution since its starting in

1695, down to the present day, besides one of an unimportant character, to be afterwards adverted to. ‘That no person possessed of bank-notes should be a loser, by having their money lie dead and useless, the proprietors of the bank, in a general meeting, declared all bank-notes then current to bear interest from the day that payments were stopped, 1704. until they should be called in by the directors in order to payment.’^[365]

The Court of Directors (December 19) DEC. 19. petitioned the Privy Council to send a committee to inspect their books, and ‘therein see the sufficiency of the security to the nation for the bank-notes that are running, and to take such course as in their wisdom they might think fit, for the satisfaction of those who might have bank-notes in their hands.’

Accordingly, a committee of Council, which included Lord Belhaven, the President of the Court of Session, the Lord Advocate, and the Treasurer-depute, met in the bank-office at two o’clock next day; and having examined the accounts both in charge and discharge, found that ‘the bank hath sufficient provisions to satisfy and pay all their outstanding bills and debts, and that with a considerable overplus, exceeding by a fourth part at least the whole foresaid bills and debts, conform to an abstract of the said account left in the clerk of Council’s hands for the greater satisfaction of all concerned.’^[366]

This report being, by permission of the Privy Council, printed, ‘gave such universal satisfaction, that payments thereafter were as current as ever, and no stop in business, everybody taking bank-notes, as if no stop had been for want of specie, knowing that they would at last get their money with interest.

‘At this time, the Company thought fit to call in a tenth of stock [£10,000] from the adventurers, which was punctually paid by each adventurer [being exactly a duplication of the acting capital, which was only £10,000 before]; and in less than five months thereafter, the Company being possessed of a good cash, the directors called in the notes that were charged with interest, and issued new notes, or made payments in money, in the option of the possessors of the old notes. And very soon the affairs and negotiations of the bank went on as formerly, and all things continued easy until the year 1708.’^[367]

Notwithstanding the extreme poverty now DEC. universally complained of, whenever a man of any figure or importance died, there was enormous expense incurred in burying him. On the death, at this time, of Lachlan Mackintosh of Mackintosh—that is, the chief of the clan Mackintosh—there were funeral 1704. entertainments at his mansion in Inverness-shire for a whole month. Cooks and confectioners were brought from Edinburgh, at great expense, to provide viands for the guests, and liquors were set aflowing in the greatest profusion. On the day of the interment, the friends and dependants of the deceased made a procession, reaching all the way from Dalcross Castle to the kirk of Petty, a distance of four miles! ‘It has been said that the expense incurred on this occasion proved the source of pecuniary embarrassments to the Mackintosh family to a recent period.’^[368]

In the same month died Sir William Hamilton, who had for several years held the office of a judge under the designation of Lord Whitelaw, and who, for the last two months of his life, was Lord Justice-clerk, and consequently, in the arrangements of that period, an officer of state. It had pleased his lordship to assign the great bulk of his fortune, being £7000 sterling, to his widow, the remainder going to his heir, Hamilton of Bangour, of which family he was a younger son. Lord Whitelaw was buried in the most pompous style, chiefly under direction of the widow, but, to all appearance, with the concurrence of the heir, who took some concern in the arrangements, or at least was held as sanctioning the whole affair by his presence as chief mourner. The entire expenses were £5189 Scots, equal to £432, 8s. 4d. sterling, being more than two years’ salary of a judge of the Court of Session at that time. The lady paid the tradesmen’s bills out of her ‘donative,’ which was thought a singularly large one; but, by and by, marrying again, she raised an action against Bangour, craving allowance for Lord Whitelaw’s funeral charges ‘out of her intromission with the executry’—that is, out of the proceeds of the estate, apart from her jointure. The heir represented that the charges were inordinate, while his inheritance was small; but this view of the matter does not appear to have been conclusive, for the Lords, by a plurality, decided that the funeral expenses of a deceased person ‘must be allowed to the utmost of what his character and quality will admit, without regard to what small part of his fortune may come to his heir.’^[369] They did, indeed, afterwards modify this decision, allowing only just and necessary expenses; but, what is to our present

purpose, they do not appear to have been startled at the idea of spending as much as two years of a man's income in laying him under the soil.

The account of expenses at the funeral of a 1704.
northern laird—Sir Hugh Campbell of Calder, who died in March 1716—
gives us, as it were, the anatomy of one of these ruinous ceremonials. There
was a charge of £55, 15s. ‘to buy ane cow, ane ox, five kids, two wedders,
eggs, geese, turkeys, pigs, and moorfowl,’ the substantials of the
entertainment. Besides £40 for brandy to John Finlay in Forres, £25, 4s. for
claret to John Roy in Forres, £82, 6s. to Bailie Cattenach at Aberdeen for
claret, and £35 to John Fraser in Clunas for ‘waters’—that is, whisky—
there was a charge by James Cuthbert, merchant, of £407, 8s. 4d. for ‘22
pints brandy at 48s. per pint, 18 wine-glasses, 6 dozen pipes, and 3 lb. cut
tobacco, 2 pecks of apples, 2 gross corks, one large pewter flagon at £6, and
one small at £3, currants, raisins, cinnamon, nutmegs, mace, ginger,
confected carvy, orange and citron peel, two pair black shambo gloves for
women,’ and two or three other small articles. There was also £40 for flour,
£39, 12s. to the cooks and baxters, and ‘to malt brewn from the said Sir
Hugh’s death to the interment, sixteen bolls and ane half,’ £88. [Sir Hugh’s
body lay from the 11th to the 29th March, and during these eighteen days
there had been ale for all comers.] The outlay for ‘oils, cerecloth, and
frankincense,’ used for the body, was £60; for ‘two coffins, tables, and other
work,’ £110, 13s. 4d.; for the hearse and adornments connected with it
(inclusive of ‘two mortheads at 40s. the piece’), £358. With the expenses
for the medical attendant, a suit of clothes to the minister, and some few
other matters, the whole amounted to £1647, 16s. 4d., Scots money.^[370] This
sum, it will be observed, indicates a comparatively moderate funeral for a
man of such eminence; and we must multiply everything by three, in order
to attain a probable notion of the eating, the drinking, and the pomp and
grandeur which attended Lord Whitelaw’s obsequies.

The quantity of liquor consumed at the Laird of Calder’s funeral suggests
that the house of the deceased must have been, on such occasions, the scene
of no small amount of conviviality. It was indeed expected that the guests
should plentifully regale themselves with both meat and drink, and in the
Highlands especially the chief mourner would have been considered a
shabby person if he did not press them to do so. At the funeral of Mrs
Forbes of Culloden, or, to use the phrase of the day, Lady Culloden, her son
Duncan, who afterwards became Lord President of 1704.
the Court of Session, conducted the festivities. The company sat long and
drank largely, but at length the word being given for what was called the

lifting, they rose to proceed to the burialground. The gentlemen mounted their horses, the commonalty walked, and all duly arrived at the churchyard, when, behold, no one could give any account of the corpse! They quickly became aware that they had left the house without thinking of that important part of the ceremonial; and Lady Culloden still reposed in the chamber of death. A small party was sent back to the house to ‘bring on’ the corpse, which was then deposited in the grave with all the decorum which could be mustered in such anti-funereal circumstances.^[371]

Strange as this tale may read, there is reason to believe that the occurrence was not unique. It is alleged to have been repeated at the funeral of Mrs Home of Billie, in Berwickshire, in the middle of the eighteenth century.

In our own age, we continually hear of the vice of living for appearances, as if it were something quite unknown heretofore; but the truth is, that one of the strongest points of contrast between the past and the present times, is the comparative slavery of our ancestors to irrational practices which were deemed necessary to please the eye of society, while hurtful to the individual. This slavery was shewn very strikingly in the customs attending funerals, and not merely among people of rank, but in the humblest grades of the community. It was also to be seen very remarkably in the custom of pressing hospitality on all occasions beyond the convenience of guests, in drinking beyond one’s own convenience to encourage them, and in the customs of the table generally; not less so in the dresses and decorations of the human figure, in all of which infinitely more personal inconvenience was submitted to, under a sense of what was required by fashion, than there is at the present day.

Roderick Mackenzie, secretary to the African Company, advertised what was called *An Adventure for the Curious*—namely, a raffle for the possession of ‘a pair of extraordinary fine Indian screens,’ by a hundred tickets at a guinea each. The screens were described as being on sight at his office in Mylne’s Square, but only by ticket (price 5*d.*), in order to prevent that pressure of the mob which might otherwise be apprehended. In these articles, the public was assured, ‘the excellence of art vied with the wonderfulness of nature,’ for they represented a ‘variety of several kinds of living creatures, intermixed

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with curious trees, plants, and flowers, all done in raised, embossed, loose, and coloured work, so admirably to the life, that, at any reasonable distance, the most discerning eye can scarcely distinguish those images from the real things they represent,' Nothing of the kind, it was averred, had ever been seen in Scotland before, 'excepting one screen of six leaves only, that is now in the palace at Hamilton.'^[372]

A general arming being now contemplated under JAN. 5.
the Act of Security, it became important that arms should be obtained cheaply within the country, instead of being brought, as was customary, from abroad. James Donaldson, describing himself as 'merchant in Edinburgh,' but identical with the Captain Donaldson who had established the *Edinburgh Gazette* in 1699, came forward as an enterpriser who could help the country in this crisis. He professed to have, 'after great pains, found out ane effectual way to make machines, whereby several parts of the art and calling of smith-craft, particularly with relation to the making of arms, may be performed without the strength and labour of men, such as blowing with bellows, boring with run spindles, beating with hammers, [and] striking of files.' He craved permission of the Privy Council to set up a work for the making of arms in this economical way, with exclusive privileges for a definite period, as a remuneration.

The Council remitted the matter to the deacon of the smiths, for his judgment, which was very much putting the lamb's case to the wolf's decision. The worshipful deacon by and by reported that James Donaldson was well known to possess no mechanic skill, particularly in smith-work, so that his proposal could only be looked upon as 'ane engine to inhaunce a little money to supply his necessity.' The ordinary smiths were far more fit to supply the required arms, and had indeed a right to do so, a right which Donaldson evidently meant to infringe upon. In short, Donaldson was an insufferable interloper in a business he had nothing to do with. The Council gave force to this report by refusing Donaldson's petition.

Not satisfied with this decision, Donaldson, a few days later, presented a new petition, in which he more clearly explained 1705.
the kinds of smith-work which he meant to facilitate—namely, 'forging, boring, and beating of gun-barrels, cutting of files, [and] grinding and polishing of firearms,' He exhibited 'the model of the engine for boring and

polishing of gun-barrels, and demonstrated the same, so that their lordships commended the same as ingenious and very practicable.' He further disclaimed all idea of interfering with the privileges of the hammermen of Edinburgh, his 'motive being nothing else than the public good and honour of his country,' and his intention being to set up his work in a different place from the capital. What he claimed was no more than what had been granted to other 'inventors of engines and mechanical improvements, as the manufactures for wool and tow cards, that for gilded leather, the gunpowder manufacture, &c.'

The Lords, learning that much of the opposition of the hammermen was withdrawn, granted the privileges claimed, on the condition that the work should not be set up in any royal burgh, and should not interfere with the rights of the Edinburgh corporation.

Under strong external professions of religious conviction, rigorous Sabbath observance, and a general severity of manners, there prevailed great debauchery, which would now and then come to the surface. On this evening there had assembled a party in Edinburgh, who carried drink and excitement to such a pitch, that nothing less than a dance in the streets would satisfy them. There was Ensign Fleming of a Scots regiment in the Dutch service (son of Sir James Fleming, late provost of Edinburgh); there were Thomas Burnet, one of the guards; and John, son of the late George Galbraith, merchant. The ten o'clock bell had rung, to warn all good citizens home. The three bacchanals were enjoying their frolic in the decent Lawnmarket, where there was no light but what might come from the windows of the neighbouring houses; when suddenly there approaches a sedan-chair, attended by one or two footmen, one of them carrying a lantern. It was the Earl of Leven, governor of the Castle, and a member of the Privy Council, passing home to his aërial lodging. Most perilous was it to meddle with such a person; but the merry youths were too far gone in their madness to inquire who it was or think of consequences; so, when Galbraith came against one of the footmen, and was warned off, he answered with an imprecation, and, turning to Fleming and Burnet, told them what had passed. Fleming said it would be
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brave sport for them to go after the chair and overturn it in the mud; whereupon the three assailed Lord Leven's servants, and broke the lantern.

His lordship spoke indignantly from his chair, and Fleming, drawing his sword, wounded one of the servants, but was quickly overpowered along with his companions.

The young delinquents speedily became aware of the quality of the man they had insulted, and were of course in great alarm, Fleming in particular being apprehensive of losing his commission. After a month's imprisonment, they were glad to come and make public profession of penitence on their knees before the Council, in order to obtain their liberty.

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On a Sunday, early in the same month, four free-living gentlemen, including Lord Blantyre—then a hot youth of two-and-twenty—drove in a hackney-coach to Leith, and sat in the tavern of a Mrs Innes all the time of the afternoon-service. Thereafter they went out to take a ramble on the sands, but by and by returned to drinking at the tavern of a Captain Kendal, where they carried on the debauch till eight o'clock in the evening. Let an Edinburgh correspondent of Mr Wodrow tell the remainder of the story. Being all drunk—'when they were coming back to Edinburgh, in the very street of Leith, they called furiously to the coachman and post-boy to drive. The fellows, I think, were drunk, too, and ran in on the side of the causey, dung down [knocked over] a woman, and both the fore and hind wheel went over her. The poor woman cried; however, the coach went on; the woman died in half an hour. Word came to the Advocate to-morrow morning, who caused seize the two fellows, and hath been taking a precognition of the witnesses ... it will be a great pity that the gentlemen that were in the coach be not soundly fined for breach of Sabbath. One of them had once too great a profession to [make it proper that he should] be guilty now of such a crime.'

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The desire to see these scapegraces punished for what was called breach of Sabbath, without any regard to that dangerous rashness of conduct which had led to the loss of an innocent life, is very characteristic of Mr Wodrow's style of correspondents.

Donaldson's paper, *The Edinburgh Gazette*, which had been established in 1699, continued in existence; and in the intermediate time there had also been many flying broadsides printed and sold on the streets, containing accounts of

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extraordinary occurrences of a remarkable nature, often scandalous. The growing inclination of the public for intelligence of contemporary events was now shewn by the commencement of a second paper in Edinburgh, under the title of *The Edinburgh Courant*. The enterpriser, Adam Boig, announced that it would appear on Monday, Wednesday, and Friday, ‘containing most of the remarkable foreign news from their prints, and also the home news from the ports within this kingdom, when ships comes and goes, and from whence, which it is hoped will prove a great advantage to merchants and others within this nation (it being now altogether neglected).’ Having obtained the sanction of the Privy Council, he, at the date noted, issued the first number, consisting of a small folio in double columns, bearing to be ‘printed by James Watson in Craig’s Close,’ and containing about as much literary matter as a single column of a modern newspaper of moderate size. There are two small paragraphs regarding criminal cases then pending, and the following sole piece of mercantile intelligence: ‘LEITH, *Feb. 16.*—This day came in to our Port the *Mary Galley*, David Preshu, commander, laden with wine and brandy.’ There are also three small advertisements, one intimating the setting up of post-offices at Wigton and New Galloway, another the sale of lozenges for the kinkhost [chincough] at 8s. the box.

The superior enterprise shewn in the conducting of the *Courant*, aided, perhaps, by some dexterous commercial management, seems to have quickly told upon the circulation of the *Gazette*; and we must regret, for the sake of an old soldier, that the proprietor of the latter was unwise enough to complain of this result to the Privy Council, instead of trying to keep his ground by an improvement of his paper. He insinuated that Boig, having first undersold him by ‘giving his paper to the ballad-singers four shillings [4d. sterling] a quire below the common price, as he did likewise to the postmaster,’ did still ‘so practise the paper-criers,’ as to induce them to neglect the selling of the *Gazette*, and set forth the *Courant* as ‘preferable both in respect of foreign and domestic news.’ By these methods, ‘the *Courant* gained credit with some,’ though all its foreign news was ‘taken verbatim out of some of the London papers, and most part out of *Dyer’s Letter* and the *London Courant*, which are not of the best reputation.’ He, on the other hand, ‘did never omit any domestic news that he judged pertinent, though he never meddled with matters that he had

cause to believe would not be acceptable [flattery to the Privy Council], nor every story and trifling matter he heard.'

A triumphant answer to such a complaint was but too easy. 'The petitioner,' says Boig, 'complains that I undersold him; that my *Courant* bore nothing but what was collected from foreign newspapers; and that it gained greater reputation than his *Gazette*. As to the first, it was his fault if he kept the *Gazette* too dear; and I must say that his profit cannot but be considerable when he sells at my price, for all my news comes by the common post, and I pay the postage; whereas John Bisset, his conjunct [that is, partner], gets his news all by the secretary's packet free of postage, which is at least eight shillings sterling a week free gain to them. As to the second, I own that the foreign news was collected from other newspapers, and I suppose Mr Donaldson has not his news from first hands more than I did. But the truth is, the *Courant* bore more, for it always bore the home news, especially anent our shipping, which I humbly suppose was one of the reasons for its having a good report; and Mr Donaldson, though he had a yearly allowance from the royal burghs, never touched anything of that nature, nor settled a correspondent at any port in the kingdom, no, not so much as at Leith. As to the third, it's left to your Grace and Lordships to judge if it be a crime in me that the *Courant* had a greater reputation than the *Gazette*.'

Connected, however, with this controversy, was an unlucky misadventure into which Boig had fallen, in printing in his paper a petition to the Privy Council from Evander M'Iver, tacksman of the Scots Manufactory Paper-mills, and James Watson, printer, for permission to complete the reprinting of an English book, entitled *War betwixt the British Kingdoms Considered*. While these petitioners thought only of their right to reprint English books 'for the encouragement of the paper-manufactory and the art of printing at home, and for the keeping of money as much as may be in the kingdom,' the Council saw political inconvenience and danger in the book, and every reference to it, and at once stopped both the *Courant*, in which the advertisement appeared, and the *Gazette*, which piteously as well as justly pleaded that it had in no such sort offended. It was in the course of this affair that Donaldson complained of Boig's successful rivalry, and likewise of an invasion by another person of his monopoly of burial-letters.

After an interruption of three months, Adam Boig was allowed to resume his publication, upon giving strong assurance of more cautious conduct in future. His paper continued to flourish for several years. (See under March 6, 1706.)

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In the early part of 1704, the sense of indignity and wrong which had been inspired into the national mind by the Darien disasters and other circumstances, was deepened into a wrathful hatred by the seizure of a vessel named the *Annandale*, which the African Company was preparing for a trading voyage to India. This proceeding, and the subsequent forfeiture of the vessel before the Court of Exchequer, were defensive acts of the East India Company, and there can be little doubt that they were grossly unjust. In the subsequent autumn, an English vessel, named the *Worcester*, belonging to what was called the Two Million Company (a rival to the East India Company), was driven by foul weather into the Firth of Forth. It was looked upon by the African Company as fair game for a reprisal. On the 12th August, the secretary, Mr Roderick Mackenzie, with a few associates, made an apparently friendly visit to the ship, and was entertained with a bowl of punch. Another party followed, and were received with equal hospitality. With only eleven half-armed friends, he that evening overpowered the officers and crew, and took the vessel into his possession. In the present temper of the nation, the act, questionable as it was in every respect, was sure to meet with general approbation.

MAR. 5.

Before Captain Green and the others had been many days in custody, strange hints were heard amongst them of a piratical attack they had committed in the preceding year upon a vessel off the coast of Malabar. The African Company had three years ago sent out a vessel, called the *Speedy Return*, to India, with one Drummond as its master, and it had never since been heard of. It was concluded that the people of the *Worcester* had captured the *Speedy Return*, and murdered its crew, and that Providence had arranged for their punishment, by sending them for shelter from a storm to the neighbourhood of Edinburgh. Vainly might it have been pointed out that there was no right evidence for even the fact of the piracy, still less for the *Speedy Return* being the subject of the offence. Truth and justice were

wholly lost sight of in the universal thirst for vengeance against England and its selfish mercantile companies.

Green, the captain of the *Worcester*, Mather, the chief-mate, Reynolds, the second-mate, and fifteen others, were tried at this date before the Court of Admiralty, for the alleged crime of attacking a 1705. ship, having English or Scotch aboard, off the coast of Malabar, and subsequently murdering the crew—no specific vessel or person being mentioned as the subjects of the crime, and no nearer date being cited than the months of February, March, April, or May 1703. The jury had no difficulty in bringing them in guilty, and they were all condemned to be hanged on the sands of Leith, the usual place for the execution of pirates.

The English government was thrown into great anxiety by this violent proceeding, but they could make no effectual resistance to the current of public feeling in Scotland. There the general belief in the guilt of Green and his associates was corroborated after the trial by three several confessions, admitting the piratical seizing of Drummond's vessel, and the subsequent murder of himself and his crew—confessions which can now only be accounted for, like those of witches, on the theory of a desire to conciliate favour, and perhaps win pardon, by conceding so far to the popular prejudices. The queen sent down affidavits shewing that Drummond's ship had in reality been taken by pirates at Madagascar, while himself was on shore—a view of the fact which there is now ample reason to believe to have been true. She also sent to the Privy Council the expression of her desire that the men should be respited for a time. But, beyond postponement for a week, all was in vain. The royal will was treated respectfully, but set aside on some technical irregularity. When the day approached for the execution of the first batch of the condemned, it became evident that there was no power in Scotland which could have saved these innocent men. The Council, we may well believe, would have gladly conceded to the royal will, but, placed as it was amidst an infuriated people, it had no freedom to act. On the fatal morning (11th April), its movements were jealously watched by a vast multitude, composed of something more than the ordinary citizens of Edinburgh, for on the previous day all the more ardent and determined persons living within many miles round had poured into the city to see that justice was done. No doubt can now be entertained that, if the authorities had attempted to save the condemned from punishment, the mob would have torn them from the Tolbooth, and hung every one of them

up in the street. What actually took place is described in a letter from Mr Alexander Wodrow to his father, the minister of Eastwood: ‘I wrote last night,’ he says, ‘of the uncertainty anent the condemned persons, and this morning things were yet at a greater uncertainty, for the current report was that an express was come for a reprieve. How this 1705. was, I have not yet learned; but the councillors went down to the Abbey [Palace of Holyrood] about eight, and came up to the Council-house about nine, against which time there was a strange gathering in the streets. The town continued in great confusion for two hours, while the Council was sitting, and a great rabble at the Netherbow port. All the guards in the Canongate were in readiness if any mob had arisen. About eleven, word came out of the Council [sitting in the Parliament Square] that three were to be hanged—namely, Captain Green, Mather, and Simson. This appeased the mob, and made many post away to Leith, where many thousands had been [assembled], and were on the point of coming up in a great rage. When the chancellor came out, he got many huzzas at first; but at the Tron Kirk, some surmised to the mob that all this was but a sham; upon which they assaulted his coach, and broke the glasses, and forced him to come out and go into Mylne’s Square, and stay for a considerable time.

‘The three prisoners were brought with the Town-guards, accompanied with a vast mob. They went through all the Canongate, and out at the Water-port to Leith. There was a battalion of foot-guards, and also some of the horse-guards, drawn up at some distance from the place of execution. There was the greatest confluence of people there that ever I saw in my life, for they cared not how far they were off, so be it they saw. Green was first execute, then Simson, and last of all Mather. They every one of them, when the rope was about their necks, denied they were guilty of that for which they were to die. This indeed put all people to a strange demur. There’s only this to alleviate it, that they confessed no other particular sins more than that, even though they were posed anent their swearing and drunkenness, which was weel known.’^[375]

The Scottish parliament was not much given to SEP. 11. the patronising of literature. We have, indeed, seen it giving encouragement to Adair’s maps of the coasts, and Slezer’s views of the king’s and other mansions; but it was in a languid and ineffective way, by reason of the lack

of funds. At this time, the assembled wisdom of the nation was pleased to pass an act enabling the town-council of Glasgow to impose two pennies ($\frac{1}{5}$ th of a penny sterling) upon the pint of ale brewn and vended in that town; and out of this 'gift in favours of the town of 1705. Glasgow,' as it was quite sincerely called, there was granted three thousand six hundred pounds (£300 sterling) to Mr James Anderson, writer to her majesty's signet, 'for enabling him to carry on an account of the ancient and original charters and seals of our kings in copper-plates.' Why the ale-drinkers of Glasgow should have been called upon to furnish the country with engraved copies of its ancient charters, was a question which probably no one dreamed of asking.

In February 1707, the parliament, then about to close its existence, ordered to Mr Anderson the further sum of £590 sterling, to repay him for his outlay on the work, with a further sum of £1050 to enable him to go on and complete it. This was done after due examination by a committee, which reported favourably of the curious and valuable character of his collections. Soon after, the parliament, in consideration of the great sufferings of the town of Dundee in the time of the troubles and at the Revolution, and of 'the universal decay of trade, especially in that burgh,' granted it an imposition of two pennies Scots on every pint of ale or beer made or sold in the town for twenty-four years; but this *gift* was *burdened* with a hundred pounds sterling *per annum* for six years to Mr James Anderson, as part of the sum the parliament had agreed to confer upon him for the encouragement of his labours. [\[376\]](#)

Died Alexander third Earl of Kincardine, Nov. unmarried, a nobleman of eccentric character. His father, the second earl, is spoken of by Burnet in the highest terms; his mother was a Dutch lady, Veronica, daughter of Corneille, Lord of Sommelsdyk and Spycke. [Readers of Boswell will remember his infant daughter Veronica, with whom Johnson was pleased, so named from the biographer's great-grandmother, Veronica, Countess of Kincardine.] The earl now deceased, probably through his parental connection with the Low Countries, had contracted the religious principles of the Flemish saint or seeress, Antonia Bourignon, which, like every other departure from pure Presbyterianism and the Westminster Confession, were detested in Scotland. Wodrow tells

us: ‘I have it from very good hands, Lieutenant-colonel Erskine^[377] and Mr Allan Logan, who were frequently with him, that 1705. the late Earl of Kincardine did fast forty days and nights after he turned Burrignianist, [and] lived several years after. He was very loose before he turned to these errors; and after a while being in them, he turned loose again, and died in a very odd manner. Many thought him possessed. He would have uttered the most dreadful blasphemies that can be conceived, and he told some things done at a distance, and repeated Mr Allan Logan’s words, which he had in secret, and told things it was impossible for anybody to know.’^[378]

The more active minds of the country continued constantly seething with schemes for the promotion of industry, and the remedy of the standing evil of poverty. In this year there was published an *Essay on the New Project of a Land Mint*, which might be considered a type of the more visionary plans. It rested on what would now be called one of the commonplaces of false political economy. The proposed Land Mint was a kind of bank for the issue of notes, to be given only on landed security. Any one intending to borrow, say a thousand pounds of these notes, pledged unentailed land-property to that amount, *plus* interest and possible expenses, undertaking to pay back a fifth part each year, with interest on the outstanding amount, till all was discharged. It was thought that, by these means, money would be, as it were, created; the country would be spirited up to hopeful industrial undertakings; and—everything requiring a religious aspect in those days—the people would be enabled to resist the designs of a well-known sovereign, ‘aiming now at a Catholic monarchy;’ for, while Louis XIV. might become sole master of the plate (that is, silver) of the world, what would it matter ‘if we and other nations should substitute another money, equal in all cases to plate?’ The only fear the author could bring himself to entertain, was as to possible counterfeiting of the notes. This being provided against by an ingenious expedient suggested by himself, there remained no difficulty and no fear whatever.^[379]

Although the incessant violences which we have 1706. MAR. seen mark an early period embraced by our Annals were no more, it cannot be said that the crimes of violent passion had 1705.

become infrequent. On the contrary, it appeared as if the increasing licence of manners since the Revolution, and particularly the increasing drunkenness of the upper classes, were now giving occasion for a considerable number of homicides and murders. We have seen a notable example of reckless violence in the case of the Master of Rollo in 1695. There was about the same time a Laird of Kininmont, who—partly under the influence of a diseased brain—was allowed to commit a considerable number of manslaughters before it was thought necessary to arrest him in his course.

Archibald Houston, writer to the signet in Edinburgh, acted as factor for the estate of Braid, the property of his nephew, and in this capacity he had incurred the diligence of the law on account of some portion of Bishops' rents which he had failed to pay. Robert Kennedy of Auchtyfardel, in Lanarkshire, receiving a commission to uplift these arrears, found it to be his duty to give Houston a charge of horning for his debt.

One day, Kennedy and his two sons left their MAR. 20. house in the Castle Hill of Edinburgh, to go to the usual place of rendezvous at the Cross, when, passing along the Luckenbooths, he was accosted by Mr Houston with violent language, referring to the late legal proceedings. Kennedy, if his own account is to be trusted, gave no hard language in return, but made an effort to disengage himself from the unseemly scene, and moved on towards the Cross. Houston, however, followed and renewed the brawl, when it would appear that Gilbert Kennedy, Auchtyfardel's eldest son, was provoked to strike his father's assailant on the face. The people now began to flock about the party—Kennedy again moved on; but before he had got many paces away, he heard the sounds of a violent collision, and turned back with his cane uplifted to defend his son. It is alleged that Kennedy fell upon Houston with his cane—he had no weapon on his person—and while he did so, young Gilbert Kennedy drew his sword, and, rushing forward, wounded Houston mortally in the belly. The unfortunate man died a few days afterwards.^[380]

Auchtyfardel's share in this transaction was held to infer his liability to an arbitrary punishment. Gilbert fled, and was outlawed, but afterwards was permitted to return home, and in time he succeeded to his father's estate. We hear of him in 1730, as having been brought by 1705. that sad act of his youth into a very serious and religious frame of life. He

was an elder of the church, and took great care of the morals of his servants. A maid, whom he on one occasion reprov'd severely, was led, by a diabolic spite, to mix some arsenic with the bread and milk which she prepared for the family breakfast, and the death of Houston had very nearly been avenged at the distance of twenty-four years from its occurrence. Happily, through the aid of a physician, the laird and his family escaped destruction.

[\[381\]](#)

A case more characteristic of the age than that of young Auchtyfardel occurred in the ensuing year. David Ogilvie of Cluny, having first thrust himself upon a funeral-party at the village of Meigle, and there done his best to promote hard drinking, insisted on accompanying two or three of the gentlemen on their way home, though his own lay another way. While proceeding along, he gave extreme annoyance to Andrew Cowpar, younger of Lochblair, by practical jokes of a gross kind, founded on the variance of sex in their respective horses. At length, Cowpar giving the other's horse a switch across the face, to make it keep off, Ogilvie took violent offence at the act, demanded Cowpar's whip under a threat of being otherwise pistolled, and, on a refusal, actually took out a pistol and shot his companion dead. The wretched murderer escaped abroad.

In January 1708, Robert Baird, son of Sir James Baird of Saughtonhall, had a drinking-match in a tavern at Leith, where he particularly insisted on his friend, Mr Robert Oswald, being filled drunk. On Oswald resisting repeated bumpers, Baird demanded an apology from him, as if he had committed some breach of good-manners. He refused, and thus a drunken sense of resentment was engendered in the mind of Baird. At a late hour, they came up to Edinburgh in a coach, and leaving the vehicle at the Nether Bow, were no sooner on the street, than Baird drew his sword, and began to push at Oswald, upon whom he speedily inflicted two mortal wounds. He fled from the scene, leaving a bloody and broken sword beside his expiring victim.

On the ground of its not being 'forethought felony,' Baird was some years afterwards allowed by the Court of Justiciary to have the benefit of Queen Anne's act of indemnity.

Early in this month, Scotland was honoured with a visit from the celebrated Daniel Defoe. His noted

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power and probity as a Whig pamphleteer suggested to the English ministry the propriety of sending him down for a time to Edinburgh, to help on the cause of the Union. He came with sympathies for the people of Scotland, founded on what they had suffered under the last Stuart reigns. Instead of believing all to be barren and hopeless north of the Tweed, he viewed the country as one of great capabilities, requiring only peace and industry to become a scene of prosperity equal to what prevailed in England. To this end he deemed an incorporating union of the two countries necessary, and it was therefore with no small amount of good-will that he undertook the mission assigned to him.

Even, however, from one regarding it so fraternally as Defoe, Scotland was little disposed to accept a recommendation of that measure. It was in vain that he published a complaisant poem about the people, under the name of *Caledonia*, in which he commended their bravery, their learning, and abilities. Vainly did he declare himself their friend, anxious to promote their prosperity by pointing to improved agriculture, to fisheries, to commerce, and to manufactures. The Edinburgh people saw him daily closeted with the leaders of the party for the hated union, and that was enough. His pen displayed its wonted activity in answers to the objectors, and his natural good-humour seems never to have failed him, even when he was assailed with the most virulent abuse. But his enemies did not confine themselves to words: threats of assassination reached him. His lodgings were marked, and his footsteps were tracked; yet he held serenely on in his course. He even entered upon some little enterprises in the manufacture of linen, for the purpose of shewing the people what they might do for themselves, if they would adopt right methods. It appears that, during the tumults which took place in Edinburgh while the measure was passing through parliament, he was in real danger. One evening, when the mob was raging in the street, he looked out of his window to behold their proceedings, and was nearly hit by a large stone which some one threw at him, the populace making a point that no one should look over windows at them, lest he might recognise faces, and become a witness against individual culprits.

Defoe spent sixteen months in Scotland on this occasion, rendering much modest good service to the country, and receiving for it little remuneration besides abuse. Amongst other fruits of his industry during the period is his laborious work, *The History of the Union of Great*

Britain. One could have wished a record tracing the daily life of this remarkable man in Scotland. “We only get an obscure idea of some of his public transactions. One of the few private particulars we have learned, is that he paid a visit to the Duke of Queensberry at Drumlanrig, and by his Grace’s desire, took a view of his estates, with a view to the suggestion of improvements.

Defoe revisited Scotland in the summer of 1708, on a mission the purpose of which has not been ascertained; and again in the summer of 1709. His stay on the last occasion extended to nearly two years, during part of which time, in addition to constant supplies of articles for his *Review* in London, he acted as editor of the *Edinburgh Courant* newspaper.^[382] (See the next article).

In a folio published this day by Captain James 1707. MAR. 6. Donaldson, under the title of the *Edinburgh Courant Reviewed*, we learn that the *Edinburgh Gazette*, which, as we have seen, was commenced in 1699, had now succumbed to fate: damaged by the persevering policy of Adam Boig of the *Courant*, the *Gazette* ‘of late has been laid aside, as a thing that cannot be profitably carried on.’

Donaldson here reviews the charges made against his paper, as to partiality and staleness of news, defends it to some extent, but practically admits the latter fault, by stating that he was about to remedy it. He was going to recommence the *Edinburgh Gazette* in a new series, in which he would ‘take a little more liberty, and give stories as they come,’ without waiting, as before, for their authentication, though taking care where they were doubtful to intimate as much. The *Gazette* did, accordingly, resume its existence on the 25th of the same month, as a twice-a-week paper. The first number contains three advertisements, one of a sale of house-property, another of the wares of the Leith glass-work, and a third as follows: ‘There is a gentleman in town, who has an secret which was imparted to him by his father, an eminent physician in this kingdom, which by the blessing of God cures the Phrensie and Convulsion Fits. He takes no reward for his pains till the cure be perfyted. He will be found at the Caledonian Coffee-house.’

In a series of the *Gazette* extending from the commencement to the 140th number, published on the 2d September 1708, there is a remarkable sterility

of home-news, and anything that is told is told, in a 1707.
dry and sententious way. The following alone seem worthy of transcription:

‘LEITH, *May 19* [1707].—Last Saturday, about 50 merchant-ships, bound for Holland, sailed from our Road, under convoy of two Dutch men-of-war.’

‘EDINBURGH, *August 5*.—This day the Equivalent Money came in here from South Britain, in thirteen waggons drawn by six horses.’

Sep. 30.—‘*Dyer’s Letter* says: Daniel de Foe is believed by this time in the hands of justice at the complaint of the Swedish minister, and now a certain man of law may have an opportunity to reckon with him for a crime which made him trip to Scotland, and make him oblige the world with another *Hymn to the Pillory*.’

Strange to say, less than three years after this date, namely, in February 1710, the ‘unabashed Defoe’ was conducting the rival newspaper in Edinburgh—the *Courant*—succeeding in this office Adam Boig, who had died in the preceding month. The authority of Defoe for his editorship appears in the following decree of the Town Council:

‘Att Edinburgh the first day of February
j^m. vij^c. and ten years:

‘The same day The Councill authorized Mr Daniel Defoe to print the *Edinburgh Currant* in place of the deceast Adam Bog Discharging hereby any other person to print News under the name of the *Edinburgh Currant*.’

The advertisements are also very scanty, seldom above three or four, and most of these repeated frequently, as if they were reprinted gratuitously, in order to make an appearance of business in this line. The following are selected as curious:

May 13, 1707.—‘This is to give notice to all who have occasion for a black hersse, murning-coach, and other coaches, just new, and in good order, with good horses well accoutred, that James Mouat, coachmaster in Lawrence Ord’s Land at the foot of the Canongate, will serve them thankfully at reasonable rates.’

‘Ralph Agutter of London, lately come to Edinburgh, Musical Instrument-maker, is to be found at Widow Pool’s, perfumer of gloves, at her house in Stonelaw’s Close, a little below the Steps; makes the Violin,

Bass Violin, Tenor Violin, the Viol de Gambo, the Lute Quiver, the Trumpet Marine, the Harp; and mendeth and putteth in order and stringeth all those instruments as fine as any man whatsoever in the three kingdoms, or elsewhere, and mendeth the Virginal, Spinnat, and Harpsichord, all at reasonable rates.'

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Oct. 16.—'There is just now come to town the Excellent Scarburray Water, good for all diseases whatsoever except consumption; and this being the time of year for drinking the same, especially at the fall of the leaf and the bud, the price of each chopin bottle is fivepence, the bottle never required, or three shilling without the bottle. Any person who has a mind for the same may come to the Fountain Close within the Netherbow of Edinburgh, at William Mudie's, where the Scarsburray woman sells the same.'

August 12, 1708.—'George Williamson, translator [*alias* cobbler] in Edinburgh, commonly known by the name of Bowed Geordie, who swims on face, back, or any posture, forwards or backwards; plums, dowks, and performs all the antics that any swimmer can do, is willing to attend any gentleman, and to teach them to swim, or perform his antics for their divertisement: is to be found in Luckie Reid's at the foot of Gray's Close, on the south side of the street, Edinburgh.'

In September 1707, it is advertised that at the Meal Girdel of Primrose, oatmeal, the produce of the place, was sold at four pounds Scots the boll for the crop of 1706, while the crop of the preceding year was £3, 13s. 4d.; in the one case, 6s. 8d.; in the other, 6s. 4d. sterling.

The Master of Burleigh—eldest son of Lord Balfour of Burleigh, a peer possessed of considerable estates in Fife—had fallen in love with a girl of humble rank, and was sent abroad by his friends, in the hope that time and change of scene would save him from making a low marriage. He was heard to declare before going, that if she married in his absence, he would take the life of her husband. The girl was, nevertheless, married to Henry Stenhouse, schoolmaster of Inverkeithing. The Master was one of those hot-headed persons whom it is scarcely safe to leave at large, and who yet do not in general manifest the symptoms that justify restraint. Learning that his mistress was married, and to whom, he came at this date with two or three mounted servants to the door of the poor

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schoolmaster, who, at his request, came forth from amongst his pupils to speak to the young gentleman.

‘Do you know me?’ said Balfour.

‘No.’

‘I am the Master of Burleigh. You have spoken to my disadvantage, and I am come to fight you,’

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‘I never saw you before,’ said the schoolmaster, ‘and I am sure I never said anything against you.’

‘I must nevertheless fight with you, and if you won’t, I will at once shoot you.’

‘It would be hard,’ said the schoolmaster, ‘to force a man who never injured you into a fight. I have neither horse nor arms, and it is against my principles to fight duels.’

‘You must nevertheless fight,’ said the Master, ‘or be shot instantly;’ and so saying, he held a pistol to Stenhouse’s breast.

The young man continuing to excuse himself, Balfour at length fired, and gave the schoolmaster a mortal wound in the shoulder, saying with savage cruelty: ‘Take that to be doing with.’ Then, seeing that an alarm had arisen among the neighbours, he rode off, brandishing a drawn sword, and calling out: ‘Hold the deserter!’ in order to divert the attention of the populace. The unfortunate schoolmaster died in a few days of his wound.

The Master for a time escaped pursuit, but at length he was brought to trial, July 28, 1709, and adjudged to be beheaded at the Cross of Edinburgh, on the ensuing 6th of January. During this unusually long interval, he escaped from the Tolbooth by changing clothes with his sister. He was not again heard of till May 1714, when he appeared amongst a number of Jacobite gentlemen at the Cross of Lochmaben, to drink the health of James VIII. The family title had by this time devolved on him by the death of his father; but his property had all been escheat by sentence of the Court of Justiciary. His appearance in the rebellion of 1715, completed by attainder the ruin of his family, and he died unmarried and in obscurity in 1757.^[383]

A great flock of the *Delphinus Deductor*, or Ca’ing Whale—a cete about twenty-five feet long—came into the Firth of

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Forth, ‘roaring, plunging, and threshing upon one another, to the great terror of all who heard the same.’ It is not uncommon for this denizen of the arctic seas to appear in considerable numbers on the coasts of Zetland; and occasionally they present themselves on the shores of Caithness and Sutherlandshire; but to come so far south as the Firth of Forth is very rare: hence the astonishment which the incident seems to have created. The contemporary chronicler goes on to state: ‘Thirty-^{1707.} five of them were run ashore upon the sands of Kirkcaldy, where they made yet a more dreadful roaring and tossing when they found themselves aground, insomuch that the earth trembled.’ ‘What the unusual appearance of so great a number of them at this juncture [the union of the kingdoms] may portend shall not be our business to inquire.’^[384]

The fifteenth article of the treaty of Union^{AUG.} provided that England should pay to Scotland the sum of £398,085, 10s., because of the arrangement for the equality of trade between the two countries having necessitated that Scotland should henceforth pay equal taxes with England—a rule which would otherwise have been inequitable towards Scotland, considering that a part of the English revenue was required for payment of the interest on her seventeen millions of national debt. It was likewise provided by the act of Union, that out of this Equivalent Money, as it was called, the commissioners to be appointed for managing it should, in the first place, pay for any loss to be incurred by the renovation of the coin; in the second, should discharge the losses of the African Company, which thereupon was to cease; the overplus to be applied for payment of the comparatively trifling state-debts of Scotland, and to furnish premiums to the extent of £2000 a year for the improvement of the growth of wool for seven years—afterwards for the improvement of fisheries and other branches of the national industry.

Defoe, who was now living in Scotland, tells how those who hated the Union spoke and acted about the Equivalent. The money not being paid in Scotland on the very day of the incorporation of the two countries, the first talk was—the English have cheated us, and will never pay; they intended it all along. Then an idea got abroad, that by the non-payment the Union was dissolved; ‘and there was a discourse of some gentlemen who came up to the Cross of Edinburgh, and protested, in the name of the whole Scots

nation, That, the conditions of the treaty not being complied with, and the terms performed, the whole was void.’ At length, in August, the money came in twelve wagons, guarded by a party of Scots dragoons, and was carried directly to the Castle. Then those who had formerly been loudest in denouncing the English for not forwarding the money, became furious because it was come. They hooted at the train as it 1707. moved along the street, cursing the soldiers who guarded it, and even the horses which drew it. One person of high station called out that those who brought that money deserved to be cut to pieces. The excitement increased so much before the money was secured in the Castle, that the mob pelted the carters and horses on their return into the streets, and several of the former were much hurt.

It was soon discovered that, after all, only £100,000 of the money was in specie, the rest being in Exchequer bills, which the Bank of England had ignorantly supposed to be welcome in all parts of her majesty’s dominions. This gave rise to new clamours. It was said the English had tricked them by sending paper instead of money. Bills, only payable four hundred miles off, and which, if lost or burned, would be irrecoverable, were a pretty price for the obligation Scotland had come under to pay English taxes. The impossibility of satisfying or pleasing a defeated party was never better exemplified.

The commissioners of the Equivalent soon settled themselves in one of Mr Robert Mylne’s houses in Mylne’s Court, and proceeded to apply the money in terms of the act. One of their first proceedings was to send to London for £50,000 in gold, in substitution for so much of paper-money, that they might, as far as possible, do away with the last clamour. ‘Nor had this been able to carry them through the payment, had they not very prudently taken all the Exchequer bills that any one brought them, and given bills of exchange for them payable in London.’^[385] Defoe adverts to a noble individual—doubtless the Duke of Hamilton—who came for payment of his share of the African Company’s stock (£3000), with the interest, and who refused to take any of the Exchequer bills, probably thinking thus to create some embarrassment; but the commissioners instantly ordered the claim to be liquidated in gold.

Notwithstanding all the ravings and revilings about the Equivalent, Defoe assures us that, amongst the most malcontent persons he never found any

who, having African stock, refused to take their share of the unhallowed money in exchange for it. Even the despised Exchequer bills were all despatched so quickly, that, in six months, not one was to be seen in the country.

Out of the Equivalent, the larger portion—namely, £229,611, 4s. 8d.—went to replace the lost capital of the African Company, and so could not be considered as rendered to the nation at large. For 1707. ‘recoining the Scots and foreign money, and reducing it to the standard of the coin of England,’ £49,888, 14s. 11 1/6 d. was expended. There was likewise spent out of this fund, for the expenses of the commissioners and secretaries who had been engaged in carrying through the Union, £30,498, 12s. 2d. After making sundry other payments for public objects, there remained in 1713 but £16,575, 14s. 0 1/2 d. unexpended.^[386]

We shall afterwards see further proceedings in the matter of the Equivalent.

Walter Scott of Raeburn, grandson of the Quaker Raeburn who suffered so long an imprisonment for his opinions in the reign of Charles II.,^[387] fought a duel with Mark Pringle, youngest son of Andrew Pringle of Clifton. It arose from a quarrel the two gentlemen had the day before at the head-court of Selkirk. They were both of them young men, Scott being only twenty-four years of age, although already four years married, and a father. The contest was fought with swords in a field near the town, and Raeburn was killed. The scene of this melancholy tragedy has ever since been known as *Raeburn’s Meadow-spot*. OCT. 3.

Pringle escaped abroad; became a merchant in Spain; and falling, on one occasion, into the hands of the Moors, underwent such a series of hardships, as, with the Scottish religious views of that age, he might well regard as a Heaven-directed retribution for his rash act. Eventually, however, realising a fortune, he returned with honour and credit to his native country, and purchased the estate of Crichton in Edinburghshire. He died in 1751, having survived the unhappy affair of Raeburn’s Meadow-spot for forty-four years; and his grandson, succeeding to the principal estate of the family, became Pringle of Clifton.

The sixteenth article of the act of Union, while decreeing that a separate mint should be kept up in Scotland ‘under the same rules as the mint in England’—an arrangement afterwards broken through—concluded that the money thereafter used should be of the same standard and fineness throughout the United Kingdom. It thus became necessary to call in all the existing coin of Scotland, and substitute for it money uniform with that of England. It was at the same time provided by the act of Union, that any loss incurred by the renewal of the coin of Scotland 1707. should be compensated out of the fund called the Equivalent.^[388]

The business of the change of coinage being taken into consideration by the Privy Council of Scotland, several plans for effecting it were laid before that august body; but none seemed so suitable or expedient as one proposed by the Bank of Scotland, which was to this effect: ‘The Directors undertook to receive in all the species that were to be recoinced, at such times as should be determined by the Privy Council, and to issue bank-notes or current money for the same, in the option of the ingiver of the old species, and the Privy Council allowing a half *per cent.* to the Bank for defraying charges;’^[389] the old money to be taken to the mint and coined into new money, which should afterwards replace the notes.

Mr David Drummond, treasurer of the Bank, ‘a gentleman of primitive virtue and singular probity,’ according to Thomas Ruddiman—a hearty Jacobite, too, if his enemies did not belie him—had a chief hand in the business of the renovation of the coin, about which he communicated to Ruddiman some memoranda he had taken at the time.

‘There was brought into the Bank of Scotland in the year 1707:

	Value in Sterling Money.
Of foreign silver money,	£132,080 : 17 : 00
Milled Scottish coins [improved coinage subsequent to 1673],	96,856 : 13 : 00
Coins struck by hammer [the older Scottish coin],	142,180 : 00 : 00
English milled coin,	40,000 : 00 : 00
Total,	£411,117 : 10 : 00

‘This sum, no doubt, made up by far the greatest part of the silver coined money current in Scotland at that time; but it was not to be expected that the whole money of that kind could be brought into the bank; for the folly of a

few misers, or the fear that people might have of losing their money, or various other dangers and accidents, prevented very many of the old Scots coins from being brought in. A great part of these the goldsmiths, in aftertimes, consumed by melting them down; some of them have been exported to foreign countries; a few are yet [1738] in private hands.’^[390]

Ruddiman, finding that, during the time between 1707. December 1602 and April 1613, there was rather more estimated value of gold than of silver coined in the Scottish mint, arrived at the conclusion (though not without great hesitation), that there was more value of gold coin in Scotland in 1707 than of silver, and that the sum-total of gold and silver money together, at the time of the Union, was consequently ‘not less than nine hundred thousand pounds sterling.’ We are told, however, in the *History of the Bank of Scotland*, under 1699, that ‘nothing answers among the common people but silver-money, *even gold being little known amongst them*,’ and Defoe more explicitly says, ‘there was at this time *no Scots gold coin current, or to be seen, except a few preserved for antiquity*.’^[391] It therefore seems quite inadmissible that the Scottish gold coin in 1707 amounted to nearly so much as Ruddiman conjectures. More probably, it was not £30,000.

It would appear that the Scottish copper-money was not called in at the Union, and Ruddiman speaks of it in 1738 as nearly worn out of existence, ‘so that the scarcity of copper-money does now occasion frequent complaints.’

If the outstanding silver-money be reckoned at £60,000, the gold at £30,000, and the copper at £60,000, the entire metallic money in use in Scotland in 1707 would be under six hundred thousand pounds sterling in value. It is not unworthy of observation, as an illustration of the advance of wealth in the country since that time, that a private gentlewoman died in 1841, with a nearly equal sum at her account in the banks, besides other property to at least an equal amount.

In March 1708, while the renovation of the coinage was going on, the French fleet, with the Chevalier de St George on board, appeared at the mouth of the Firth of Forth, designing to invade the country. The Bank got a great alarm, for it ‘had a very large sum lying in the mint in ingots,’ and a considerable sum of the old coin in its own coffers, ‘besides a large sum in current species; all of which could not have easily been carried off and

concealed.’^[392] The danger, however, soon blew over. ‘Those in power at the time, fearing lest, all our silver-money having been brought into our treasury, or into the Bank, a little before, there should be a want of money for the expenses of the war, ordered the forty- 1707. shilling pieces to be again issued out of the banks; of which sort of coin there was great plenty at that time in Scotland, and commanded these to be distributed for pay to the soldiers and other exigencies of the public; but when that disturbance was settled, they ordered that kind of money also to be brought into the bank; and on a computation being made, it was found that the quantity of that kind, brought in the second time, exceeded that which was brought in the first time [by] at least four thousand pounds sterling.’^[393]

We are told by the historian of the Bank, that ‘the whole nation was most sensible of the great benefit that did redound from the Bank’s undertaking and effectuating the recoinage, and in the meantime keeping up an uninterrupted circulation of money.’ Its good service was represented to the queen, considered by the Lords of the Treasury and Barons of Exchequer, and reported on favourably. ‘But her majesty’s death intervening, and a variety of public affairs on that occasion and since occurring, the directors have not found a convenient opportunity for prosecuting their just claim on the government’s favour and reward for that seasonable and very useful service.’

Mr John Strahan, Writer to the Signet in Nov. 3. Edinburgh, was at this time owner of Craigcrook, a romantically situated old manor-house under the lee of Corstorphine Hill—afterwards for many years the residence of Lord Jeffrey. Strahan had also a house in the High Street of Edinburgh. He was the owner of considerable wealth, the bulk of which he ultimately ‘mortified’ for the support of poor old men, women, and orphans; a charity which still flourishes.

Strahan had a servant named Helen Bell to keep his town mansion, and probably she was left a good deal by herself. As other young women in her situation will do, she admitted young men to see her in her master’s house. On Hallowe’en night this year, she received a visit from two young artisans, William Thomson and John Robertson, whom she happened to inform that

on Monday morning—that is, the second morning thereafter—she was to go out to Craigcrook, leaving the town-house of course empty.

About five o'clock on Monday morning, accordingly, this innocent young woman locked up her master's house, and set forth on her brief journey, little recking that it was the last she would 1707. ever undertake in this world. As she was proceeding through the silent streets, her two male friends joined her, telling her they were going part of her way; and she gave them a couple of bottles and the key of the house to carry, in order to lighten her burden. On coming to a difficult part of the way, called the *Three Steps*, at the foot of the Castle Rock, the two men threw her down and killed her with a hammer. They then returned to town, with the design of searching Mr Strahan's house for money.

According to the subsequent confession of Thomson, as they returned through the Grassmarket, they swore to each other to give their souls and bodies to the devil, if ever either of them should inform against the other, even in the event of their being captured. In the empty streets, in the dull gray of the morning, agitated by the horrid reflections arising from their barbarous act and its probable consequences, it is not very wonderful that almost any sort of hallucination should have taken possession of these miserable men. It was stated by them that, on Robertson proposing that their engagement should be engrossed in a bond, a man started up between them in the middle of the West Bow, and offered to write the bond, which they had agreed to subscribe with their blood; but, on Thomson's demurring, this stranger immediately disappeared. No contemporary of course could be at any loss to surmise who this stranger was.^[394]

The two murderers having made their way into Mr Strahan's house, broke open his study, and the chest where his cash was kept. They found there a thousand pounds sterling, in bags of fifty pounds each, 'all milled money,' except one hundred pounds, which was in gold; all of which they carried off. Robertson proposed to set the house on fire before their departure; but Thomson said he had done wickedness enough already, and was resolved not to commit more, even though Robertson should attempt to murder him for his refusal.

Mr Strahan advertised a reward of five hundred merks for the detection of the perpetrator or perpetrators of these atrocities;^[395] but for some weeks no trace of the guilty men was discovered. At length, some suspicion

lighting upon Thomson, he was taken up, and, having made a voluntary confession of the murder and robbery, he expiated his offence in the Grassmarket.^[396]

1707.

A poor man named Hunter, a shoemaker in the Potterrow, Edinburgh, had become possessed of a 'factory' for the uplifting of ten or eleven pounds of wages due to one Guine, a seaman, for services in a ship of the African Company. The money was now payable out of the Equivalent, but certain signatures were required which it was not possible to obtain. With the aid of a couple of low notaries and two other persons, these signatures were forged, and the money was then drawn.

DEC. 9.

Detection having followed, the case came before the Court of Session, who viewed it in a light more grave than seems now reasonable, and remitted it to the Lords of Justiciary. The result reminds us of the doings of Justice, when she *did* act, in the reign of James VI. Hunter and Strachan, a notary, were hanged on the 18th of February, 'as an example to the terror of others,' says Fountainhall. Three other persons, including a notary, were glad to save themselves from a trial, by voluntary banishment. 'Some moved that they might be delivered to a captain of the recruits, to serve as soldiers in Flanders; but the other method was judged more legal.'^[397]

The parish of Spott, in East Lothian, having no communion-cups of its own, was accustomed to borrow those of the neighbouring parish of Stenton, when required. The Stenton kirk-session latterly tired of this benevolence, and resolved to charge half-a-crown each time their cups were borrowed by Spott. Spott then felt a little ashamed of its deficiency of communion-cups, and resolved to provide itself with a pair. Towards the sum required, the minister was directed to take all the foreign coin now in the box, as it was to be no longer current, and such further sum as might be necessary.

DEC. 30.

The parish is soon after found sanctioning the account of Thomas Kerr, an Edinburgh goldsmith, for 'ane pair of communion-cups, weighing 33 oz. 6 drops, at £3, 16s. per oz.,' being £126, 12s. in all, Scots money, besides 'two shillings sterling of drink-money given to the goldsmith's men.'^[398]

1707.

The Union produced some immediate effects of a remarkable nature on the industry and traffic of Scotland—not all of them good, it must be owned, but this solely by reason of the erroneous laws in respect of trade which existed in England, and to which Scotland was obliged to conform.

1708.

Scotland had immediately to cease importing wines, brandy, and all things produced by France; with no remeed but what was supplied by the smuggler. This was one branch of her public or ostensible commerce now entirely destroyed. She had also, in conformity with England, to cease exporting her wool. This, however, was an evil not wholly unalleviated, as will presently be seen.

Before this time, as admitted by Defoe, the Scotch people had ‘begun to come to some perfection in making broad cloths, druggets, and [woollen] stuffs of all sorts.’ Now that there was no longer a prohibition of English goods of the same kinds, these began to come in in such great quantity, and at such prices, as at once extinguished the superior woollen manufacture in Scotland. There remained the manufacture of coarse cloths, as Stirling serges, Musselburgh stuffs, and the like; and this now rather flourished, partly because the wool, being forbidden to be sent abroad, could be had at a lower price, and partly because these goods came into demand in England. Of course, the people at large were injured by not getting the best price for their wool, and benefited by getting the finer English woollen goods at a cheaper rate than they had formerly paid for their own manufactures of the same kinds; but no one saw such matters in such a light at that time. The object everywhere held in view was to benefit *trade*—that is, everybody’s peculium, as distinguished from the general good. The general good was left to see after itself, after everybody’s peculium had been served; and small enough were the crumbs usually left to it.

On the other hand, duties being taken off Scottish linen introduced into England, there was immediately a large increase to that branch of the national industry. Englishmen came down and established works for sail-cloth, for damasks, and other linen articles heretofore hardly known in the north; and thus it was remarked there was as much employment for the poor as in the best days of the woollen manufacture.

1708.

The colonial trade being now, moreover, open to Scottish enterprise, there was an immediate stimulus to the building of ships for that market. Cargoes of Scottish goods went out in great quantity, in exchange for colonial products brought in. According to Defoe, 'several ships were laden for Virginia and Barbadoes the very first year after the Union.'^[399]

We get a striking idea of the small scale on which the earlier commercial efforts were conducted, from a fact noted by Wodrow, as to a loss made by the Glasgow merchants in the autumn of 1709. 'In the beginning of this month [November],' says he, 'Borrowstounness and Glasgow have suffered very much by the fleet going to Holland, its being taken by the French. It's said that in all there is about eighty thousand pounds sterling lost there, *whereof Glasgow has lost ten thousand pounds*. I wish trading persons may see the language of such a providence. I am sure the Lord is remarkably frowning upon our trade, in more respects than one, since it was put in the room of religion, in the late alteration of our constitution.'^[400]

When one thinks of the present superb wealth and commercial distinction of the Queen of the West, it is impossible to withhold a smile at Wodrow's remarks on its loss of ten thousand pounds. Yet the fact is, that up to this time Glasgow had but a petty trade, chiefly in sugar, herrings, and coarse woollen wares. Its tobacco-trade, the origin of its grandeur, is understood to date only from 1707, and it was not till 1718 that Glasgow sent any vessel belonging to itself across the Atlantic. Sir John Dalrymple, writing shortly before 1788, says: 'I once asked the late Provost Cochrane of Glasgow, who was eminently wise, and who has been a merchant there for seventy years, to what causes he imputed the sudden rise of Glasgow. He said it was all owing to four young men of talents and spirit, who started at one time in business, and whose success gave example to the rest. *The four had not ten thousand pounds amongst them when they began*.'^[401]

Defoe tells us that, within little more than a year 1708. after the Union, Scotland felt the benefit of the liberation of her commerce in one article to a most remarkable extent. In that time, she sent 170,000 bolls of grain into England, besides a large quantity which English merchants bought up and shipped directly off for Portugal. The hardy little cattle of her pastures, which before the Union had been sent in large droves into England, being doubtless the principal article represented in the two hundred thousand pounds which Scotland was ascertained to obtain

annually from her English customers, were now transmitted in still larger numbers, insomuch that men of birth and figure went into the trade. Even a Highland gentleman would think it not beneath him to engage in so lucrative a traffic, however much in his soul he might despise the Saxons whose gluttony he considered himself as gratifying. It has often been told that the Honourable Patrick Ogilvie, whom the reader has already seen engaged in a different career of activity, took up the cattle-trade, and was soon after remonstrated with by his brother, the Earl of Seafield, who, as Chancellor of Scotland, had been deeply concerned in bringing about the Union. The worthy scion of nobility drily remarked in answer: ‘Better sell nowte than sell nations.’^[402]

A sketch given of a cattle-fair at Crieff in 1723 by an intelligent traveller, shews that the trade continued to prosper. ‘There were,’ says he, ‘at least thirty thousand cattle sold there, most of them to English drovers, who paid down above thirty thousand guineas in ready money to the Highlanders; a sum they had never before seen. The Highland gentlemen were mighty civil, dressed in their slashed waistcoats, a trousing (which is, breeches and stockings of one piece of striped stuff), with a plaid for a cloak, and a blue bonnet. They have a poniard knife and fork in one sheath, hanging at one side of their belt, their pistol at the other, and their snuff-mill before; with a great broadsword by their side. Their attendance was very numerous, all in belted plaids, girt like women’s petticoats down to the knee; their thighs and half of the leg all bare. They had also each their broadsword and poniard, and spake all Irish, an unintelligible language to the English. However, these poor creatures hired themselves out for a shilling a day, to drive the cattle to England, and to return home at their own charge.’^[403]

Previous to the Union, the Customs and Excise of Scotland were farmed respectively at £30,000 and £35,000 per annum,^[404] which, after every allowance is made for smuggling, must be admitted as indicative of a very restricted commercial system, and a simple and meagre style of living on the part of the people. At the Union, the British government took the Customs and Excise of Scotland into its own hands, placing them severally under commissions, partly composed of Englishmen, and also sending English officers of experience down to Scotland, to assist in establishing proper arrangements for collection. We learn from Defoe that all these new fiscal arrangements were unpopular. The anti-union spirit delighted in proclaiming them as the outward

1708. MAY 1.

symptoms of that English tyranny to which poor Scotland had been sold. Smuggling naturally flourished, for it became patriotic to cheat the English revenue-officers. The people not only assisted and screened the contrabandist, but if his goods chanced to be captured, they rose in arms to rescue them. Owing to the close of the French trade, the receiving of brandy became a favourite and flourishing business. It was alleged that, when a Dutch fleet approached the Scottish shores some months after the Union, several thousands of small casks of that liquor were put ashore, with hardly any effort at concealment.

Assuming the Excise as a tolerably fair index to the power of a people to indulge in what they feel as comforts and luxuries, the progress of this branch of the public revenue may be esteemed as a history of wealth in Scotland during the remarkable period following upon the Union. The summations it gives us are certainly of a kind such as no Scotsman of the reign of Queen Anne, adverse or friendly to the incorporation of the two countries, could have dreamed of. The items in the account of the first year ending at May 1, 1708, are limited to four—namely, for beer, ale, and vinegar, £43,653; spirits, £901; mum,^[405] £50; fines and forfeitures, £58; giving—when £6350 for salaries, and some other deductions, were allowed for—a net total of £34,898, as a contribution to the revenue of the country.

The totals, during the next eleven years, go on thus: £41,096, £37,998, £46,795, £51,609, £61,747, £46,979, £44,488, £45,285—this refers to the year of the Rebellion—£48,813, £46,649, £50,377. 1708.

On this last sum the charges of management amounted to £15,400. After this, the total net produce of the Excise, exclusive of malt, never again came up to fifty thousand pounds, till the year 1749. The malt tax, which was first imposed in 1725, then amounted to £22,627, making the entire Excise revenue of Scotland in the middle of the eighteenth century no more than £75,987. It is to be feared that increase of dexterity and activity in the smuggler had some concern in keeping down these returns at so low an amount;^[406] yet when large allowance is made on that score, we are still left to conclude that the means of purchasing luxuries remained amongst our people at a very humble point.

I am informed by a gentleman long connected with the Excise Board in Scotland, that the books exhibited many curious indications of the simplicity, as well as restrictedness, of all monetary affairs as relating to our

country in the reigns of Anne and the first George. According to a recital which he has been kind enough to communicate in writing, ‘The remittances were for the most part made in coin, and various entries in the Excise accounts shew that what were called *broad pieces* frequently formed a part of the moneys sent. The commissioners were in the habit of availing themselves of the opportunity of persons of rank travelling to London, to make them the bearers of the money; and it is a curious historical fact, that the first remittance out of the Excise duties, amounting to £20,000, was sent by the Earl of Leven, who delivered £19,000 of the amount at the proper office in London, retaining the other thousand pounds for his trouble and risk in the service. As the Board in Scotland could only produce to their comptroller a voucher for the sum actually delivered in London, he could not allow them credit for more. The £1000 was therefore placed “insuper” upon the accounts, and so remained for several years; until at last a warrant was issued by the Treasury, authorising the sum to be passed to the credit of the commissioners.’

After the middle of the century, the progress is such as to shew that, whether by the removal of repressive influences, or the imparting of some fresh spring of energy, the means of the people were at length undergoing a rapid increase. In 1761, including part of the first 1708. year of George III., the net total Excise revenue had sprung up to £100,985. It included taxes on glass (£1151), candles (£6107), leather (£8245), soap and paper (£2992), and wheel-carriages (£2308). The total had, however, receded fully fourteen thousand pounds by 1775. After that time, war increased the rate of taxation, and we therefore need not be surprised to find the Scottish Excise producing £200,432 in 1781. In 1790, when Robert Burns honoured this branch of the revenue by taking an office in it, it had reached but to the comparatively insignificant sum of £331,117. In 1808, being the hundredth year of its existence, it yielded £1,793,430, being rather more than *fifty-one* times its produce during the first year.^[407]

The Duke of Argyle resigning his place as an JUNE 1. extraordinary Lord of Session, in order to follow his charge in the army, his younger brother, the Earl of Ilay, succeeded him, though under twenty-five years of age; not apparently that he might take part in the decisions of the

bench, but rather that he might be a learner there, it ‘being,’ says Fountainhall, ‘the best school for the nobility to learn that is in Europe.’

The election of a knight to represent Ross-shire in the British parliament took place at Fortrose, under the presidency of the sheriff, Hugh Rose, of Kilravock. There was much dissension in the county, and the sheriff, whose son was elected, had probably reasons of his own for appointing the last day of the week for the ceremony. This, however, having led to travelling on Sunday, was taken into consideration by the synod some months later, as a breach of decorum on the part of the sheriff, who consequently received a letter from one of their number who had been appointed to administer their censure. It set forth how, even if the meeting had been dissolved on the Saturday evening, many could not have got home without breaking the fourth commandment; but Kilravock had caused worse than this, for, by making the meeting late in the day, he had ‘occasioned the affair to be protracted till the Sabbath began more than to dawn [two o’clock],’ and there had been ‘gross disorders,’ in consequence of late drinking in taverns. ‘Some,’ says the document, ‘who were in your own company, are said to have sung, shott, and danced in their progress to the ferry, without any check or restraint, as if they meant to spit in the face of all sacred and civil laws,’ The synod had found it impossible to keep silence and allow such miscarriages to remain unreprieved.

JUNE 26.

1708.

It is to be feared that Kilravock was little benefited by their censure, as he left the paper docketed in his repositories as ‘a comical synodical rebuke.’^[408]

That remarkable property of human nature—the anxiety everybody is under that all other people should be virtuous—had worked itself out in sundry famous acts of parliament, general assembly, and town-council, throughout our history subsequent to the Reformation. There was an act of Queen Mary against adultery, and several of Charles II. against profaneness, drunkenness, and other impurities of life. There was not one of William and Mary for the enforcement of the fifth commandment; but the general principle operated in their reign very

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conspicuously nevertheless, particularly in regard to profaneness and profanation of the Lord's Day. King William had also taken care in 1698 to issue a proclamation containing an abbreviate of all the acts against immorality, and in which that of Charles II. against cursing and beating of parents was certainly not overlooked, as neither were those against adultery. So far had the anxiety for respectable conduct in others gone in the present reign, that sheriffs and magistrates were now enjoined by proclamation to hold courts, once a month at least, for taking notice of vice and immorality, fining the guilty, and rewarding informers; moreover, all naval and military officers were ordered to exemplify the virtues for the sake of those under them, and, above all, see that the latter duly submitted themselves to kirk discipline.

An act of the town-council of Edinburgh 'anent prophaneness,' in August 1693, threatened a rigorous execution of all the public statutes regarding immoral conduct, such as swearing, sitting late in taverns, and desecration of the Lord's Day. It strictly prohibited all persons within the city and suburbs 'to brew, or to work any other handiwork, on the Lord's Day, or to be found on the streets, standing or walking idly, or to go in company or vague to the Castlehill [the only open space then within the city walls], public yards, or fields.' It discharged all going to 1708. taverns on that day, unseasonably or unnecessarily, and forbade 'all persons to bring in water from the wells to houses in greater quantities than single pints.' By another act in 1699, tavern-keepers were forbidden to have women for servants who had not heretofore been of perfectly correct conduct. All these denunciations were renewed in an act of February 1701, in which, moreover, there was a severe threat against barbers who should shave or trim any one on Sunday, and against all who should be found on that day carrying periwigs, clothes, or other apparel through the streets.

Not long after this, the Edinburgh council took into their consideration three great recent calamities—namely, the fire in the Kirk-heugh in February 1700; another fire 'which happened on the north side of the Land market, about mid-day upon the 28th of October 1701, wherein several men, and women, and children were consumed in the flames, and lost by the fall of ruinous walls;' and finally, 'that most tremendous and terrible blowing up of gunpowder in Leith, upon the 3d of July last;' and, reflecting on these things as tokens of God's wrath, came to the resolution, 'to be more watchful over our hearts and ways than formerly, and each of us in

our several capacities to reprove vice with zeal and prudence, and promote the execution of the laws for punishing the vicious.’

All originality is taken from a notorious parliamentary enactment of our time by a council act of April 1704, wherein, after reference to the great decay of virtue and piety, and an acknowledgment that ‘all manner of scandals and immoralities do daily abound,’ it is ordered that taverners, under strong penalties, shall shut at ten o’clock at night, all persons harbouring there at a later hour to be likewise punished.

Inordinate playing at cards and dice in taverns is instanced in a council act of about the same period, as one of the most flagrant vices of the time.

It is to be understood that the discipline of the church over the morals of congregations was at the same time in full vigour, although not now fortified by a power of excommunication, inferring loss of civil rights, as had been the case before the Revolution. Much was done in this department by fines, proportioned to the quality of offenders, and for the application of these to charitable uses there was a lay-officer, styled the Kirk-treasurer, who naturally became a very formidable person. The poems of Ramsay and others during the earlier half of the eighteenth century are full of waggish allusions to the terrible powers of even the ‘man’ or servant of the Kirk-treasurer; and in a parody of the younger Ramsay on the *Integer Vitæ* of Horace, this personage is set forth as the analogue of the Sabine wolf:

‘For but last Monday, walking at noon-day,
Conning a ditty, to divert my Betty,
By me that sour Turk (I not frightened) our Kirk-
Treasurer’s man passed.

And sure more horrid monster in the Torrid
Zone cannot be found, sir, though for snakes renowned, sir;
Nor does Czar Peter’s empire boast such creatures,
Of bears the wet-nurse.’^[409]

Burt, who, as an English stranger, viewed the moral police of Scotland with a curious surprise, broadly asserts that the Kirk-treasurer employed spies to track out and report upon private individuals; so that ‘people lie at the mercy of villains who would perhaps forswear themselves for sixpence.’ Sometimes, a brother and sister, or a man and his wife, walking quietly together, would find themselves under the observation of emissaries of the Kirk-treasurer. Burt says he had known the town-guard in Edinburgh under

arms for a night besetting a house into which two persons had been seen to enter. He at the same time remarks the extreme anxiety about Sabbath observance. It seemed as if the Scotch recognised no other virtue. 'People would startle more at the humming or whistling of a tune on a Sunday, than if anybody should tell them you had ruined a family.'^[410]

It must have been a great rejoicement to the gay people, when a Kirk-treasurer—as we are told by Burt^[411]—'having a round sum of money in his keeping, the property of the kirk, marched off with the cash, and took his neighbour's wife along with him to bear him company and partake of the spoil.'

The very imperfect success of acts and statutes for improving the habits of the people, is strongly hinted at by their frequent repetition or renewal. We find it acknowledged by the Town Council of Edinburgh, in June 1709, that the Lord's Day is still 'profaned by people standing on the streets, and vaguing to fields and gardens, and to the Castlehill; also by standing idle gazing out at windows, and children, apprentices, and other servants playing on the streets.'^[412]

1708.

James Stirling of Keir, Archibald Seton of Touch, Archibald Stirling of Carden, Charles Stirling of Kippendavie, and Patrick Edmondstone of Newton, were tried for high treason in Edinburgh, on the ground of their having risen in arms in March last, in connection with the French plan of invasion, and marched about for several days, encouraging others to rise in like manner, and openly drinking the health of the Pretender. Considering the openness of this treason, the charges against the five gentlemen were remarkably ill supported by evidence, the only witnesses being David Fenton, a tavern-keeper at Dunkeld; John Macleran, 'change-keeper' at Bridge of Turk; and Daniel Morison and Peter Wilson, two servants of the Laird of Keir. These persons were all free to testify that the gentlemen carried swords and pistols, which few people travelled without in that age; but as for treasonable talk, or drinking of treasonable healths, their memories were entirely blank. Wilson knew of no reason for Keir leaving his own house but dread of being taken up on suspicion by the soldiers in Stirling Castle. A verdict of Not Proven unavoidably followed.

Nov. 22.

^[413]

It has been constantly remembered since in Keir's family, that as he was riding home after the trial, with his servant behind him—probably Wilson—he turned about, and asked from mere curiosity, how it came to pass that his friend had forgotten so much of what passed at their parade for the Chevalier in March last, when the man responded: 'I ken very weel what you mean, laird; but my mind was clear to trust my saul to the mercy o' Heaven, rather than your honour's body to the mercy o' the Whigs.'

Sir James Hall of Dunglass was proprietor of a Nov. barony called Old Cambus. Within it was a 'room' or small piece of land belonging to Sir Patrick Home of Renton, a member of a family of whose hotness of blood we have already seen some evidences. To save a long roundabout, it had been the custom for the tenants of the 'room' to drive peats from Coldingham Muir through the Old Cambus grounds, but only on sufferance, and when the corn was off the fields, 1708. nor even then without a quart of ale to make matters pleasant with Sir James's tenants. Some dispute having now arisen between the parties, the tenant of Headchester forbade Sir Patrick Home's people to pass through his farm any more with their peats; and they, on the other hand, determined that they should go by that short passage as usual. The winter stock of fuel being now required, the time had come for making good their assumed right. Mr John Home, eldest son of Sir Patrick, accompanied the carts, with a few servants to assist in making way. A collision took place, attended with much violence on both sides, but with no exhibition of weapons that we hear of, excepting Mr John's sword, which, he alleged, he did not offer to draw till his horse had been 'beat in the face with a great rung [stick].' The affair was nevertheless productive of serious consequences, for a blacksmith was trod to death, and several persons were hurt. Had it happened eighty years earlier, there would have been both swords and pistols used, and probably a dozen people would have been killed.

The justices of the peace for Berwickshire took up the matter, and imposed a fine of fifty pounds upon Mr John Home, as the person chiefly guilty of the riot. He appealed to the Court of Session, setting forth several objections to the sentence. The Earl of Marchmont, whose daughter had married Sir James Hall, and two other members of the justice-court, ought to be held as disqualified by affinity to sit in judgment in the case. To this it

was answered, that Sir James was not the complainer, and his lady was dead. Home then alleged a right to the passage. It was shewn, on the other hand, that there never had been a passage save by tolerance and on consideration of the quart of ale; and though it had been otherwise, he ought to have applied to the magistrates, and not taken the law into his own hands: 'however one enters into possession, though cast in with a sling-stone, yet he must be turned out by order of law. The Lords would not hear of reversing the award of the justices; but they reduced the fine to thirty pounds.'^[414]

The family of the antiquary, Sir James Balfour, 1709. MAR.
to whom we owe the preservation of so many historical manuscripts, appears to have been a very unfortunate one. We have seen that his youngest son and successor, Sir Robert, was slaughtered in the reign of Charles II. by M'Gill of Rankeillour.^[415] The head 1709.
of a succeeding generation of the family, Sir Michael Balfour, was a quiet country gentleman, with a wife and seven children, residing at the semi-castellated old manor-house, which we now see standing a melancholy ruin, in a pass through the Fife hills near Newburgh. He appears to have had debts; but we do not anywhere learn that they were of serious extent, and we hear of nothing else to his disadvantage. One day in this month, Sir Michael rode forth at an early hour 'to visit some friends and for other business,' attended by a servant, whom, on his return home, he despatched on an errand to Cupar, telling him he would be home before him. From that hour, Denmill was never again seen. He was searched for in the neighbourhood. Inquiries were made for him in the towns at a distance. There were even advertisements inserted in London and continental newspapers, offering rewards for any information that might enable his friends to ascertain his fate. All in vain. 'There were many conjectures about him,' says a contemporary judge of the Court of Session, 'for some have been known to retire and go abroad upon melancholy and discontent; others have been said to be transported and carried away by spirits; a third set have given out they were lost, to cause their creditors compound, as the old Lord Belhaven was said to be drowned in Solway Sands, and so of Kirkton, yet both of them afterwards appeared. The most probable opinion was, that Denmill and his horse had fallen under night into some deep coal-

pit, though these were also searched which lay in his way home.’ At the distance of ten months from his disappearance, his wife applied to the Court of Session, setting forth that her husband’s creditors were ‘falling upon his estate, and beginning to use diligence,’ and she could not but apprehend serious injury to the means of the family, though these far exceeded the debts, unless a factor were appointed. We learn that the court could better have interposed if the application had come from the creditors; but, seeing ‘the case craved some pity and compassion,’ they appointed a factor for a year, to manage the estate for both creditors and relict, hoping that, before that time elapsed, it would be ascertained whether Denmill were dead or alive.^[416]

The year passed, and many more years after it, without clearing up the mystery. We find no trace of further legal proceedings regarding the missing gentleman, his family, or property. The fact itself 1709. remained green in the popular remembrance, particularly in the district to which Sir Michael belonged. In November 1724, the public curiosity was tantalised by a story published on a broadside, entitled *Murder will Out*, and professing to explain how the lost gentleman had met his death. The narrative was said to proceed on the death-bed confession of a woman who had, in her infancy, seen Sir Michael murdered by her parents, his tenants, in order to evade a debt which they owed him, and of which he had called to crave payment on the day of his disappearance. Stabbing him with his own sword as he sat at their fireside, they were said to have buried his body and that of his horse, and effectually concealed their guilt while their own lives lasted. Now, it was said, their daughter, who had involuntarily witnessed a deed she could not prevent, had been wrought upon to disclose all the particulars, and these had been verified by the finding of the bones of Sir Michael, which were now transferred to the sepulchre of his family. But this story was merely a fiction trafficking on the public curiosity. On its being alluded to in the *Edinburgh Evening Courant* as an actual occurrence, ‘the son and heir of the defunct Sir Michael’ informed the editor of its falsity, which was also acknowledged by the printer of the statement himself; and pardon was craved of the honourable family and their tenants for putting it into circulation. On making inquiry in the district, I have become satisfied that the disappearance of this gentleman from the field of visible life was never explained, as it now probably never will be. In time, the property was bought by a neighbouring gentleman, who did not require

to use the mansion as his residence. Denmill Castle accordingly fell out of order, and became a ruin. The fathers of people still living thereabouts remembered seeing the papers of the family—amongst which were probably some that had belonged to the antiquarian Sir James—scattered in confusion about a garret pervious to the elements, under which circumstances they were allowed to perish.

There was at this time a dearth of victual in MAY. Scotland, and it was considered to be upon the increase. The magistrates and justices of Edinburgh arranged means for selling meal in open market, though in quantities not exceeding a firlot, at twelve shillings Scots per peck. They also ordered all possessors of grain to have it thrashed out and brought to market before the 20th of May, reserving none to themselves, and forbade, on high penalties, any one to buy up 1709. grain upon the road to market.^{[\[417\]](#)}

A well-disposed person offered in print an expedient for preventing the dearth of victual. He discommended the fixing of a price at market, for when this plan was tried in the last dearth, farmers brought only some inferior kind of grain to market, ‘so that the remedy was worse than the disease.’ Neither could he speak in favour of the plan of the French king—namely, the confiscating of all grain remaining after harvest—for it had not succeeded in France, and would still less suit a country where the people were accustomed to more liberty. He suggested the prohibition of exportation; the recommending possessors of grain to sell it direct to the people, instead of victual-mongers; and the use of strict means for fining all who keep more than a certain quantity in reserve. This writer thought that the corn was in reality not scarce; all that was needed was, to induce possessors of the article to believe it to be best for their interest to sell immediately.^{[\[418\]](#)}

There is an ancient and well-known privilege, JULY 21. still kept up, in connection with the palace and park of Holyroodhouse, insuring that a debtor otherwise than fraudulent, and who has not the crown for his creditor, cannot have diligence executed against him there; consequently, may live there in safety from his creditors. At this time, the

privilege was taken advantage of by Patrick Haliburton, who was in debt to the extraordinary amount of nearly £3000 sterling, and who was believed to have secretly conveyed away his goods.

It being also part of the law of Scotland that diligence cannot be proceeded with on Sunday, the Abbey Lairds, as they were jocularly called, were enabled to come forth on that day and mingle in their wonted society.

It pleased Patrick Haliburton to come to town one Sunday, and call upon one of his creditors named Stewart, in order to treat with him regarding some proposed accommodation of the matters that stood between them. Mr Stewart received Patrick with apparent kindness, asked him to take supper, and so plied his hospitality as to detain him till past twelve o'clock, when, as he was leaving the house, a messenger appeared with a writ of caption, and conducted him to prison. Patrick considered himself as trepanned, and presented a complaint to the Court of Session, 1709. endeavouring to shew that a caption, of which all the preparatory steps had been executed on the Sunday, was the same as if it had been executed on the Sunday itself; that he had been treacherously dealt with; and that he was entitled to protection under the queen's late indemnity. The Lords repelled the latter plea, but 'allowed trial to be taken of the time of his being apprehended, and the manner how he was detained, or if he offered to go back to the Abbey, and was enticed to stay and hindered to go out.'^[419] The termination of the affair does not appear.

A case with somewhat similar features occurred in 1724. Mrs Dilks being a booked inmate of the Abbey sanctuary, one of her creditors formed a design of getting possession of her person. He sent a messenger-at-law, who, planting himself in a tavern within the privileged ground, but close upon its verge, sent for the lady to come and speak with him. She, obeying, could not reach the house without treading for a few paces beyond 'the girth,' and the messenger's concurrents took the opportunity to lay hold of her. This, however, was too much to be borne by a fairplay-loving populace. The very female residents of the Abbey rose at the news, and, attacking the party, rescued Mrs Dilks, and bore her back in triumph within the charmed circle.^[420]

The Rev. James Greenshields, an Irish curate, but of Scottish birth and ordination—having received this rite at the hands of the deposed Bishop of

Ross in 1694—set up a meeting-house in a court near the Cross of Edinburgh, where he introduced the English liturgy, being the first time a prayer-book had been publicly presented in Scotland since the Jenny Geddes riot of July 1637. Greenshields was to be distinguished from the nonjurant Scottish Episcopalian clergy, for he had taken the oath of abjuration (disclaiming the ‘Pretender’), and he prayed formally for the queen; but he was perhaps felt to be, on this account, only the more dangerous to the Established Church. It was necessary that something should be done to save serious people from the outrage of having a modified idolatry practised so near them. The first effort consisted of a process raised by the landlord of the house against Mr Greenshields, in the Dean of Guild’s court, on account of his having

1709.

used part of the house, which he took for a dwelling, as a chapel, and for that purpose broken down certain partitions. The Dean readily ordained that the house should be restored to its former condition. Mr Greenshields having easily procured accommodation elsewhere, it became necessary to try some other method for extinguishing the nuisance. A petition to the presbytery of Edinburgh, craving their interference, was got up and signed by two or three hundred persons in a few hours. The presbytery, in obedience to their call, cited Mr Greenshields to appear before them. He declined their jurisdiction, and they discharged him from continuing to officiate, under high pains and penalties.

Mr Greenshields having persisted, next Sunday,

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in reading prayers to his congregation, the magistrates, on the requirement of the presbytery, called him before them, and formally demanded that he should discontinue his functions in their city. Daniel Defoe, who could so cleverly expose the intolerance of the Church of England to the dissenters, viewed an Episcopalian martyrdom with different feelings. He tells us that Greenshields conducted himself with ‘haughtiness’ before the civic dignitaries—what his own people of course regarded as a heroic courage. He told them positively that he would not obey them; and accordingly, next Sunday, he read the service as usual in his obscure chapel. Even now, if we are to believe Defoe, the magistrates would not have committed him, if he had been modest in his recusancy; but, to their inconceivable disgust, this insolent upstart actually appeared next day at the Cross, among the gentlemen who were accustomed to assemble there as in an Exchange, and thus seemed to brave their authority! For its vindication, they were, says

Defoe, 'brought to an absolute necessity to commit him;' and they committed him accordingly to the Tolbooth.

Here he lay till the beginning of November, when, the Court of Session sitting down, he presented a petition, setting forth the hardship of his case, seeing that there was no law forbidding any one to read the English liturgy, and he had fully qualified to the civil government by taking the necessary oaths. It was answered for the magistrates, that 'there needs no law condemning the English service, for the introducing the Presbyterian worship explodes it as inconsistent,' and the statute had only promised that the oath-taking should protect ministers who had been in possession of charges. 'The generality of the Lords,' says 1709. Fountainhall, 'regretted the man's case;'^[421] but they refused to set him at liberty, unless he would engage to 'forbear the English service.' Amongst his congregation there was a considerable number of English people, who had come to Edinburgh as officers of Customs and Excise. It must have bewildered them to find what was so much venerated in their own part of the island, a subject of such wrathful hatred and dread in this.

Greenshields, continuing a prisoner in the Tolbooth, determined, with the aid of friends, to appeal to the House of Lords against the decision of the Court of Session. Such appeals had become possible only two years ago by the Union, and they were as yet a novelty in Scotland. The local authorities had never calculated on such a step being taken, and they were not a little annoyed by it. They persisted, nevertheless, in keeping the clergyman in his loathsome prison, till, after a full year, an order of the House of Lords came for his release. Meanwhile, other troubles befell the church, for a Tory ministry came into power, who, like the queen herself, did not relish seeing the Episcopalian clergy and liturgy treated contumeliously in Scotland. The General Assembly desired to have a fast on account of 'the crying sins of the land, irreligion, popery, many errors and delusions;' and they chafed at having to send for authority to Westminster, where it was very grudgingly bestowed. It seemed as if they had no longer a barrier for the protection of that pure faith which it was the happy privilege of Scotland, solely of all nations on the face of the earth, to enjoy. Their enemies, too, well saw the advantage that had been gained over them, and eagerly supported Greenshields in his tedious and expensive process, which ended (March 1711) in the reversal of the Session's decision. 'It is a tacit rescinding,' says Wodrow, 'of all our laws for the security of our worship, and that unhappy

man [an Irish curate of fifteen pounds a year, invited to Edinburgh on a promise of eighty] has been able to do more for the setting up of the English service in Scotland than King Charles the First was able to do.'

The Lords of Session decided this day on a Nov. 9. critical question, involving the use of a word notably of uncertain meaning. John Purdie having committed an act of immorality on which a parliamentary act of 1661 imposed a penalty of a hundred pounds in the case of 'a gentleman,' the justices of peace fined 1709. him accordingly, considering him a gentleman within the construction of the act, as being the son of 'a heritor,' or land-proprietor. 'When charged for payment by Thomas Sandilands, collector of these fines, he suspended, upon this ground that the fine was exorbitant, in so far as he was but a small heritor, and, as all heritors are not gentlemen, so he denied that he had the least pretence to the title of a gentleman. The Lords sustained the reason of suspension to restrict the fine to ten pounds Scots, *because the suspender had not the face or air of a gentleman*: albeit it was alleged by the charger [Sandilands] that the suspender's profligateness and debauchery, the place of the country where he lives, and the company haunted by him, had influenced his mien.'^[422]

An anonymous gentleman of Scotland, writing to the Earl of Seafield, on the improvement of the salmon-fishing in Scotland, informs us how the fish were then, as now, massacred in their pregnant state, by country people. 'I have known,' he says, 'a fellow not worth a groat kill with a spear in one night's time a hundred black fish or kipper, for the most part full of rawns unspawned.' He adds: 'Even a great many gentlemen, inhabitants by the rivers, are guilty of the same crimes,' little reflecting on 'the prodigious treasure thus miserably dilapidated.'

Notwithstanding these butcheries, he tells us that no mean profit was then derived from the salmon-fishing in Scotland; he had known from two to three thousand barrels, worth about six pounds sterling each, exported in a single year. 'Nay, I know Sir James Calder of Muirton alone sold to one English merchant a thousand barrels in one year's fishing.' He consequently deems himself justified in estimating the possible product of the salmon-

fishing, if rightly protected and cultivated, at forty thousand barrels, yielding £240,000 sterling, per annum.^[423]

At Inchinnan, in Renfrewshire, there fell out a 1710. FEB.
'pretty peculiar accident.' One Robert Hall, an elder, and reputed as an estimable man, falling into debt with his landlord, the Laird of Blackston, was deprived of all he had, and left the place. Two months before this date, he returned secretly, and being unable to live 1710.
contentedly without going to church, he disguised himself for that purpose in women's clothes. It was his custom to go to Eastwood church, but curiosity one day led him to his own old parish-church of Inchinnan. As he crossed a ferry, he was suspected by the boatman and a beadle of being a man in women's clothes, and traced on to the church. The minister, apprised of the suspicion, desired them not to meddle with him; but on a justice of peace coming up, he was brought forward for examination. He readily owned the fact, and desired to be taken to the minister, who, he said, would know him. The minister protected him for the remainder of the day, that he might escape the rudeness of the mob; and on the ensuing day, he was taken to Renfrew, and liberated, at the intercession of his wife's father.^[424]

The General Assembly passed an act, declaring MAY.
the marriage of Robert Hunter, in the bounds of the presbytery of Biggar, with one John [Joan] Dickson to be incestuous, the woman having formerly been the mother of a child, the father of which was grand-uncle to her present husband. The act discharged the parties from remaining united under pain of highest censure.

The church kept up long after this period a strict discipline regarding unions which involved real or apparent relationship. In May 1730, we find John Baxter, elder in Tealing parish, appealing against a finding of the synod, that his marriage with his deceased wife's brother's daughter's daughter, was incestuous. Two years later, the General Assembly had under its attention a case, which, while capable of being stated in words, is calculated to rack the very brain of whoever would try to realise it in his conceptions. A Carrick man, named John M'Taggart, had unluckily united himself to a woman named Janet Kennedy, whose former husband, Anthony

M'Harg, 'was a brother to John M'Taggart's grandmother, which grandmother was said to be natural daughter of the said Anthony M'Harg's father!' The presbytery of Ayr took up the case, and M'Taggart was defended by a solicitor, in a paper full of derision and mockery at the law held to have been offended; 'a new instance,' says Wodrow,' of the unbounded liberty that lawyers take.'^[425] The presbytery having condemned the marriage as incestuous, M'Taggart appealed in wonted form to the synod, which affirmed the former decision, and ordered a retraction of the offensive paper on pain of excommunication. The 1710. case then came before the General Assembly, who left it to be dealt with by its commission. It hung here for six years, during which it may be presumed that M'Taggart and his wife were either separated or only lived together under the load of presbyterial censure; and at length, in March 1738, it was sent back, along with the still older case of Baxter, by the commission to the Assembly itself.^[426] How it was ultimately disposed of, I have not learned.

What would these church authorities have thought of a recent act of the state of Indiana, which permits marriages with any of the relations of a deceased partner, and forbids the union of cousins!

'Some ill-disposed persons, said to be of the JUNE. suppressed parish of Barnweil [Ayrshire], set fire to the new church of Stair in the night-time; but it was quickly smothered. The occasion was thought to be the bringing the bell from Barnweil to Stair. I have scarce heard of such an instance of fire being wilfully set to a church.'—Wodrow.^[427] The parish of Barnweil having been suppressed, and half the temporalities assigned to the new parish of Stair, the inhabitants appear to have been exasperated beyond all bounds, and hence this offence.

David Bruce, a youth of fifteen, accompanied by AUG. 19. five companions of about the same age, all of the city of St Andrews, went out in a boat to amuse themselves, but, losing one of their oars, and being carried out to sea, they were unable to return. It was late in the evening before their friends missed them. A boat was sent in the morning in quest of them, but in vain. Meanwhile, the boys were tossed up and down along the waters, without being able to make any shore, although they were daily in

sight of land. At length, after they had been six days at sea without food or drink, an easterly wind brought them ashore at a place called *Hernheuch*, four miles south of Aberdeen, and fifty north of St Andrews. They were all of them in an exhausted condition, and two of them near death. By the direction of an honest countryman, John Shepherd, two of the boys were able to climb up the steep cliff beneath which their skiff had touched shore. Shepherd received them into his house, and lost no time in sending for help to Aberdeen. Presently, the Dean of Guild, Dr 1710. Gregory a physician, and Mr Gordon a surgeon, were on the spot, exerting themselves by all judicious means to preserve the lives of the six boys, five of whom entirely recovered.

Robert Bruce, goldsmith in Edinburgh, father of David Bruce, ‘in thankful commemoration of the preservation of his son,’ had a copperplate engraved by Virtue, with a full-length portrait of the lad, and a view of the six boys coming ashore in the boat. David Bruce was for many years head cashier of Drummond’s bank at Charing Cross, and lived till 1771.^[428]

‘One Robert Fleming, a very poor man, who SEP. taught an English school at Hamilton, was taken up for cheating some poor people with twenty-shilling notes, all wrote with his own hand, and a dark impression made like the seal of the Bank [of Scotland]. He was prosecuted for the forgery; and, on his own confession, found guilty, and condemned to death; but having been reprieved by her majesty several times, and at last during pleasure, he, after her majesty’s death, obtained a remission.’^[429]

This poor man, in his confession before the Lords who examined him, said he had forged fifty, but only passed four notes, the first being given for a shawl to his wife. ‘He declared that he intended to have coined crown-pieces; and the stamp he had taken in clay, which he shewed; but, which is most remarkable of all, [he] confessed that he made use of one of the Psalms, that he might counterfeit the print of the notes the better by practice, in writing over those letters that were in the Psalm, and which he had occasion to write in the bank-notes. My Lord Forglen had forgot what Psalm it was; but the man said the first words of the Psalm which appeared to him was to this purpose: “The eyes of the Lord behold the children of men;” which was truly remarkable.’^[430]

Died at Paisley Abbey, of small-pox, the Countess of Dundonald, celebrated for her beauty, and not less remarkable for her amiable and virtuous character. She left three infant daughters, all of whom grew in time to be noted 'beauties,' and of whom one became Duchess of Hamilton, and the other two the Countesses of Strathmore and Galloway. The death of the lovely young Lady Dundonald of a disease so loathsome and distressing, was deeply deplored by a circle of noble kindred, and lamented by the public in general, notwithstanding the drawback of her ladyship being an adherent of the Episcopal communion. Wodrow, who condemns the lady as 'highly prelati- cal in her principles,' but admits she was 'very devote and charitable,' tells us how, at the suggestion of Dr Pitcairn, Bishop Rose waited on the dying lady, while the parish minister came to the house, but was never admitted to her chamber. Wodrow also states, that for several Sundays after her death, the earl had sermon preached in his house every Sunday by Mr Fullarton, an Episcopalian, 'or some others of that gang;' and on Christmas Day there was an administration of the communion, 'for anything I can hear, distributed after the English way.' 'This,' adds Wodrow, 'is the first instance of the communion at Yule so openly celebrate in this country' since the Revolution.^[431]

Nov. 30.

1710.

The last time we had the Post-office under our attention (1695), it was scarcely able to pay its own expenses. Not long after that time, in accordance with the improved resources of the country, it had begun to be a source of revenue, though to a very small amount. It was conducted for three years before the Union by George Main, jeweller in Edinburgh, with an average yearly return to the Exchequer of £1194, 8s. 10d., subject to a deduction for government expresses and the expense (£60) of the packet-boat at Portpatrick. Immediately after that time, the business of the central office in Edinburgh was conducted in a place no better than a common shop, by seven officials, the manager George Main having £200 a year, while his accountant, clerk, and clerk's assistant had respectively £56, £50, and £25, and three runners or letter-carriers had each 5s. per week.

An act of the British parliament^[432] now placed the Scottish Post-office under that of England, but with 'a chief letter-office' to be kept up in Edinburgh. The charge for a letter from London to Edinburgh was

established at sixpence, and that for other letters at twopence for distances within fifty English miles, greater distances being in proportion. For the five years following the Union, there was an annual average gain of £6000—a striking improvement upon 1698, when Sir Robert Sinclair found he could not make it pay expenses, even with the benefit of a pension of £300 a year.

The light-thoughted part of the public was at this time regaled by the appearance of a cluster of small brochures printed in blurred type on dingy paper, being the production of William Mitchell, tin-plate worker in the Bow-head of Edinburgh, but who was pleased on his title-pages to style himself the *Tinklarian Doctor*. Mitchell had, for twelve years, been employed by the magistrates of the city as manager of the lighting of the streets, at the moderate salary of five pounds. He represented that his predecessor in the office had ten pounds; but ‘I took but five, for the town was in debt.’ The magistrates, doubtless for reasons satisfactory to themselves, and which it is not difficult to divine, had deprived him of his post. ‘Them that does them a good turn,’ says he, ‘they forget; but they do not forget them that does them an ill turn; as, for example, they keep on a captain [of the town-guard, probably] for love of Queensberry, for making the Union—I believe he never did them a good turn, but much evil to me, [as] he would not let me break up my shop-door the time of the fire, before my goods was burnt.’ The poor man here alludes to a calamity which perhaps had some share in driving his excitable brain out of bounds. Being now in comparative indigence, and full of religious enthusiasm, he took up at his own hands an office of which he boasted that no magistrate could deprive him, no less than that of giving ‘light’ to the ministers of the Church of Scotland, who, he argued, needed this service at his hands—‘otherwise God would not have raised me up to write to them.’ The ministers, he candidly informs us, did not relish his taking such a duty upon him, since he had never received any proper call to become a preacher: some of them called him a fool, and the principal of a college at St Andrews went the length of telling him to burn his books. But he acted under an inward call which would not listen to any such objections. He thought the spirit of God ‘as free to David and Amos the herds, and to James, John, and Simon the fishers, and Matthew and Levi the customers, as to any that will bide seven years at college.’ And, if to shepherds and fishermen, why not to a tin-plate worker or tinkler? ‘Out of the mouths of babes,’ &c.

1711. SEP.

The *Tinkler's Testament*, which was the great work of Mitchell, was heralded by an Introduction, dedicating his labours to Queen Anne. He claimed her majesty's protection in his efforts to illuminate the clergy, and hinted that a little money to help in printing his books would also be useful. He would willingly go to converse with her majesty; but he was without the means of travelling, and his 'loving wife and some 1711. small children' hindered him. This brings him to remark that, while he lived upon faith, 'my wife lives much upon sense,' as the wives of men of genius are very apt to do. After all, 'although I should come, I am nothing but a little black man, dull-like, with two scores upon my brow and a mole on my right cheek;' which marks 'I give to your majesty, in case any person come up in a counterfeit manner;' nevertheless, 'if I had clothes, I would look as big as some gentlemen.'^[433]

In this pamphlet, Mitchell abuses the ministers roundly for neglect of their flocks, telling that for six years the pastor of his parish had never once inquired for him. They would go and play at bowls, alleging it was for their health, and allow suffering souls to perish. It was as if he were employed by a gentleman to make lanterns—took the money—but never made the articles required, for want of which the gentleman's servants were hindered in their work, and perished in pits. 'Now whether think ye an immortal soul or my lanterns of most value? I will sell a good lantern at ten shillings [Scots], though it be made of brass; but the whole world cannot balance one soul.'

The *Tinkler's Testament* he dedicated to the Presbyterian ministers of Scotland, telling them 'not to be offended, although I be set over you by providence,' nor 'think that I shall be like the bishops that were before me—necessity gives me a right to be your overseer—necessity that hath neither law nor manners.' 'I know you will not hear of a bishop over you, and therefore I shall be over you, as a coachman to drive you to your duty.' He saw their deficiencies in what had happened in his own case. In his evil days, they never told him sufficiently of his sins. He might almost have supposed he was on the way to heaven for anything they said to him. It was affliction, not their ministrations, which had loosed him from the bonds of sin. Their own preachings were cold and worthless, and so were those of the young licentiates whom they so often engaged to hold forth in their stead. Here he applied another professional parable. 'You employ me to make a tobacco-box. I spoil it in the making. Whether is you or I obliged to pay the

loss? I think ye are not obliged to pay it. Neither
am I obliged to take these sermons off your hand.’ ‘Perhaps,’ he adds, ‘you trust in your elders.’ But ‘I may keep strange women in my house for them; I may stay out till twelve o’clock at night and be drunk for them: a cart-horse, when he comes up the Bow, may teach them their duty, for it will do its duty to the outmost of its power; and before it will disobey, it will fall to the ground.’ In short, the Tinkler had been used by these clergy with a lenity which he felt to be utterly inexcusable.

1711.

It is to be feared that the Tinkler was one of those censors whom no kind of conduct in persons of authority will please, for we find him in this brochure equally furious at the ministers for not preaching evangelical discourses, and for being so slack in telling their flocks of the weighty matters of the law. He threatens to tell very sad things of them at the great day, and yet he protests that it is not from hatred to them. If such were his feelings, he would not be at the pains to reprove them; still less would he have ever given Dean of Guild Neilson a speaking-trumpet for a seat in the kirk, not worth twenty shillings sterling, seeing it is but a back-seat, where he may fall asleep, and the minister never once call on him to sit up. ‘This,’ however, ‘is only a word by the by.’

One great charge which the Tinkler has to make against the clergy is, that they are afraid to preach freely to the consciences of men, for fear of angering the great. ‘If ye be feared to anger them, God will not be feared to anger you. “Cry aloud and spare not; tell the poor their transgressions, and the great folk their sins.”’ Then he proposes to relate something of the justice he had himself experienced. ‘The Laird of Cramond hath laid down a great cairn of stones before my shop-door, which takes away my light. They have lain near these two years (because he is rich). If I lay down but two carts-full, I believe they would not lie twenty-four hours. I pursued a man at court; I could both have sworn and proved that he was owing me; yet, because he had a blue cloak and a campaign wig, the judge would not take his oath, and would not take my word. I had a mind to buy a blue cloak, that I might get justice; but I was disappointed by the dreadful fire. I bought some wool from a man. He would not give it out of his house till I gave my bill. The goods was not weighed, and I feared they came not to so much money; yet the man persuaded me if it was not so, he would restore me the money back. I believed his word, because I

1711.

am a simple man. So I pursued the man, thinking to get my money. The

judge told me I would get no money, although there were a hundred pounds of it; so I went home with less money than I came out.... Ye will say, what is the reason there is so little justice; I shall tell you my opinion of it. I have a vote for choosing our deacon. A man comes to me and offers me a pint to vote for such a man. I take it because he never did me no ill, and because I am a fool-body. I vote for the man. So fool-tradesmen make fool-deacons, and fool-deacons make fool-magistrates, and fool-magistrates make fool-ministers. That is the reason there is so little justice in the city.' The crazy whitesmith has here touched a point of failure in democratic institutions which wiser men have overlooked.

This singular genius afterwards published a brochure, entitled *The Great Tinklarian Doctor Mitchell his Fearful Book, to the Condemnation of all Swearers*, at the end of which he announced another 'concerning convictions;' 'the like of it ye have not heard since Cromwell's days.' But probably the reader has now heard enough of the effusions of the white-ironsmith of the Bow-head.^{[\[434\]](#)}

Notwithstanding the severity of the laws against Catholic priests, and particularly that of 1701, which a proclamation two years back put into fresh vigour, there was at least one minister of the hated faith of Rome sheltered in Edinburgh. It would be curious to learn under what disguise he contrived to live in a city where all, except a handful of people, were disposed to tear him in pieces. From its being mentioned that his paraphernalia for worship belonged to Lady Seaforth, it may be surmised that he lived under her protection. Thomas Mackie, being now at last apprehended by the magistrates, and ordained to remove immediately out of Britain, was so bold as to call for a suspension of their act in the Court of Session, setting forth that he had lived for many years inoffensively in Edinburgh—the vestments, altar, crucifixes, &c., found in his house belonged to the Countess of Seaforth—he had not been taken in the act of saying mass, and it had not been proved that he was a priest—finally, and above all, the magistrates of Edinburgh were going beyond their powers in banishing any one forth of the island. The magistrates having answered these objections, the Lords ‘ordained him to enact himself to remove betwixt and a day out of the kingdom; and in case of refusal, to be imprisoned till a ship was ready to transport him.’^[435]

1711. Nov. 6.

Immemorial custom gave a right to the steward-depute of the stewartry of Kirkcudbright to get a mart cow out of every parish in his jurisdiction, being twenty-nine in number. He was not required to observe any particular form or ceremony in raising this mail, beyond sending an officer to the parish to pitch upon and seize the cow, and offer the owner five shillings Scots, called the Queen’s Money, which entitled him to relief from his fellow-parishioners, according to the value of their respective estates. In October 1711, William Lindsay of Mains, steward-depute under the Marquis of Annandale, principal steward, sent his officer, William Hislop, to take a cow from the parish of Southwick, and the man pitched upon a beast belonging to John Costein of Glensoane. John, however, ‘did violently oppose the officer in the execution of his office to uplift the cow; and making a convocation of his tenants and others, his complices, by force of arms resisted the officer, whom he beat and bruised with many strokes, and rescued his cow.’

1712. JAN. 14.

1712.

For this offence, Costein and his associates were now brought before the Court of Justiciary. They pleaded several objections to the custom, as a defence of their conduct; but all these were overruled by the Lords, and their offence was declared to be liable to an arbitrary punishment.^[436]

‘About the beginning of this month, Whiston’s *Primitive Christianity* came down to Edinburgh, and was seized in the booksellers’ shops by the magistrates.’^[437]

FEB.

‘The end of this last and the beginning of this month, we have some accounts of a sickness in Fife, from some of the crew of a ship that came out before their quarantine was performed; but it seems the Lord hath hitherto prevented it. It’s, indeed, a wonder we are not visited with some heavy rod.’^[438]

MAR.

The art of printing had fallen sadly off in Scotland during the latter half of the seventeenth century. James Watson^[439] points out truly that Bassandyne’s folio Bible of 1576, Arbuthnot’s first edition of Buchanan’s *History* in 1582, Andro Hart’s Bible of 1610, and the *Muses’ Welcome to King James* in 1618, were well printed books; the last of these Bibles so much so, that ‘many after-impressions of the Bible in folio, had, as the greatest commendation that could be made of them, at the foot of their title-pages, that they were “conform to the edition printed by Andro Hart.”’ Watson adds: ‘The folio Common Prayer-book, printed before the Troubles by Robert Young, then printer for this kingdom to the Royal Martyr, is a pregnant instance of this. I have with great pleasure viewed and compared that book with the English one in the same volume, printed about the same time by the king’s printer in England; and Mr Young’s book so far exceeded the other, that there could be no comparison made between them. You’ll see by that printed here, the master furnished with a very large fount, four sheets being inset together; a vast variety of curiously cut head-pieces, finis’s, blooming letters, fac-totums, flowers, &c. You’ll see the compositor’s part done with the greatest regularity and niceness in the Kalendar, and throughout the rest of the book; the pressman’s part done to a wonder in the red and black, and the whole printed in so beautiful and equal

a colour, that there is not any appearance of variation. But this good and great master was ruined by the Covenanters for doing this piece of work, and forced to fly the kingdom.’ 1712.

After the Restoration, one Archibald Hislop, a bookseller, with William Carron as his workman, produced a neat edition of Thomas à Kempis and some other small books. Some Dutchmen, who had been brought over to assist Hislop’s successor, John Cairns, also printed a few respectable volumes, including the acts of parliament, and Sir Robert Sibbald’s *Prodromus*; but all tendency to attain or maintain the level formerly attained, was checked by a monopoly which was granted to one Andrew Anderson in 1671. This Anderson, who seems to have come from Glasgow, was early in that year condemned by the Privy Council for a very faulty edition of the New Testament; yet, for ‘payment of a composition in exchequer and other weighty reasons,’ they immediately after granted him, as king’s printer, an exclusive right to print all kinds of lawful books in Edinburgh, with a right of supervision over all other typographers within the kingdom. He died in 1679; but his widow succeeded to the monopoly, and exercised it for some years with the greatest rigour, persecuting all who attempted to interfere with the business of printing. As might be expected, the productions of her own press were miserable beyond all example; she both produced bad and erroneous editions of the Bible, and much fewer of them than were required to satisfy the demands of the public. A restriction was at length put upon her privilege, so as to allow general printing to be executed by others; but she continued through the whole term of her patent to be the sole printer of the Scriptures in Scotland. Fac-similes of a few pages from her Bibles—in poor blurred type, almost unintelligible with errors, with italic letters employed wherever the Roman fount fell short, and some lines wholly without spaces between the words—would appal the reader. It plainly appears that no such functionary as a corrector was at any time kept by Mrs Anderson; nor was she herself able to supply the deficiency. The Bible being then almost the only school-book in use, we may imagine what unrequired difficulties were added to the task of gaining a knowledge of the elements of the English language. What, for example, was a poor child to make of the following passage in her duodecimo Bible of 1705: ‘Whysoulditbethoug tathingincredi ble w^tyou, y^t God should raise the dead?’ Mrs Anderson’s Bibles being of such a character, there was a great importation of English and foreign copies, but 1712.

only in despite of strenuous efforts on her part to keep them out. Strange to say, when now her government patent expired, she contrived to obtain the appointment of printer to the Church of Scotland. Her ability to buy up a heavy stock of acts of the General Assembly was what secured her this piece of otherwise most unmerited patronage.

Had the government patent expired a few years earlier, she might, for anything that appears, have obtained a renewal of it also. But, now that a Tory ministry was in power, this lucrative privilege was conferred on two zealous Jacobites—Mr Robert Freebairn, publisher, and Mr James Watson, printer. These gentlemen were better typographers than Mrs Anderson; and the Bibles they issued were much superior. But their Tory principles prevented them from long enjoying the privilege. Probably acting in the spirit of their patrons, they ‘seem to have exercised a discretionary power of declining to publish royal proclamations when they were not consonant with their own views; otherwise it is difficult to discover why the queen’s proclamation against unlawful intruders into churches and manses was printed, not by either of her majesty’s printers, but by John Reid in Bell’s Wynd.’^[440] This zeal led Freebairn, on the breaking out of the rebellion in 1715, to go to Perth with printing apparatus and materials, to act as printer for the person whom he called James the Eighth; and he consequently forfeited his patent.^[441] Politics now favoured Mrs Anderson. In partnership with an Englishman named Baskett, the king’s printer for England, she once more became the exclusive printer of the Scriptures in Scotland, and for forty-one years more! The Bibles produced during the greater part of that time were indeed a little better than those under the former patent—the general progress of the country necessitated some little improvement—but they were still far inferior to the unprivileged productions of the Scottish press during the same epoch.

There is a reflection which must, or ought somewhat to modify our feeling regarding this monstrous absurdity; namely, 1712. that the printing of the Scriptures was kept upon the footing of a monopoly, with the effect of poor work and high prices, till our own age, and that so lately as 1823 the patentees, in a legal document, set forth their expenses in erecting a printing-office and ‘other charges of various descriptions,’ as entitling them ‘to enjoy the relative profits and emoluments without interference from any quarter.’

Encouraged by the triumph of Mr Greenshields, MAR.
and the popularity of the Tory administration, the Scottish Episcopalians began in many places to introduce the liturgy of the Church of England. The old Scottish horror for that form of devotion was excited in a high degree; church-courts were full of terror and grief; in some parts, the mob was ready to make a new reformation. In the course of 1711, a good deal of pretty effectual work was done for the appeasing of the popular anxiety. According to a contemporary narration—‘Mr Honeyman, for using the Church of England liturgy at Crail, was prosecuted and deposed by the presbytery, and if the magistrates and people were not Episcopal, he had fallen under very severe punishments. It is but few months since Mr Dunbreck was libelled by the presbytery, prosecuted by the magistrates, and threatened by the Lord Advocate, for using the English liturgy in the Earl Marischal’s own house at Aberdeen, to whom he was chaplain. The Earl of Carnwath this summer was threatened to have his house burned over his head, if he continued the English service in it, and his chaplain thereafter forced to leave his family.’ In November 1711, the presbytery of Perth deposed Henry Murray, a pre-Revolution incumbent of Perth hitherto undisturbed, because he used the English service at baptisms and burials, and the liturgy in worship.^[442]

At the date of the present article, the two parties had what Wodrow calls ‘a little ruffle’ at Auchterarder—a bleak parish in Strathearn, which has at various times contrived to make a prominent appearance in ecclesiastical politics. The trouble arose in consequence of an attempt to use the funeral-service of the English Church at a funeral. ‘The common people,’ says Wodrow, ‘though not very Presbyterian in their principles, yet they reckoned the service popery, and could not away with it. When the corpse came to the churchyard, the women and country-1712.
people began and made a great mutiny. The Lord Rollo, a justice of the peace, interposed, but to no purpose. The Duke of Montrose’s bailie, Graham of Orchil, was there; and writes it was not Presbyterians, but the whole of the common people there; and they chased off the liturgy-man, and they behaved to bury in their wonted manner.’

Just at this crisis, the Tory administration of the Church-of-England-loving Anne interposed with an act of toleration for the distressed Episcopalians of Scotland, enabling clergymen, who had orders from Protestant bishops, and took the oaths of allegiance, assurance, and

abjuration, to celebrate divine service—using, if they chose, the English liturgy—and to perform baptisms and marriages, without molestation; only further enjoining such clergymen to pray for the queen, the Princess Sophia, and the rest of the royal family, under a penalty of twenty pounds. The church commission had fasts, and prayers, and addresses against the measure—even spoke of reviving the Solemn League and Covenant—but their resistance was in vain.

Hitherto, the western section of the country had been clear of this abomination; but, in November, to the great distress of the serious people of Glasgow, an attempt was made there to set up the Episcopal form of worship. The minister officiating was one Cockburn, ‘an immoral profane wretch, and very silly,’ according to Mr Wodrow, ‘a tool fit enough for beginning such a work;’ who, however, had prepared well his ground by qualifying to the government. A number of persons of social importance joined the congregation. ‘The Earl of Marr, and [the Laird of] Bannockburn were there lately with two coaches, and many go out of curiosity to see it.’^[443] The boys took the matter up in their usual decisive manner; but the Toleration Act compelled protection from the magistrates, and three town-officers stood guard at the chapel door. On the 27th of December, an English soldier having died, his officers wished to have him buried according to the solemn ritual of his church, and Mr Cockburn performed the ceremony in canonicals in the cathedral cemetery, the company all uncovered, and a rabble looking on with suppressed rage. The clergy took a look into the statute-book, to see if they should be obliged to endure this kind of insolence as well as the liturgy. Wodrow had hopes that Cockburn’s congregation would tire of supporting him, though

1712.

his ‘encouragement’ did not exceed twenty-two pounds a year, or that his free conversation and minced oaths would make them put him away. A foolish shoemaker who attended his chapel having lost his wife, Cockburn wished to have a second exhibition of the funeral-service; but the magistrates would not allow it. One day, he was baptising a soldier’s child at a house in the Gorbals, and great was the commotion which it occasioned among the multitude. On coming out, he was beset by a host of boys calling to him ‘Amen, Amen!’ the use of this word in the service being so odious to the public, that it had stuck to Cockburn as a nickname. For nearly two years were the religious feelings of the people outraged by the open and avowed practice of the ‘modified idolatry’ in the midst of them, when at

length a relief came with the Hanover succession. As soon as it was known that Queen Anne was no more, occidental human nature could no longer be restrained. On the evening of the 6th of August 1714, the little chapel was fairly pulled down, and the minister and his wife were glad to flee for their lives. So ended Episcopalian worship in Glasgow for a time.^[444] A few verses from a popular ballad will assist in giving us some idea of the local feelings of the hour:

‘We have not yet forgot, sir,
How Cockburn’s kirk was broke, sir,
The pulpit-gown was pulled down,
And turned into nought, sir.

.

Long-neckèd Peggie H[ome], sir,
Did weep and stay at home, sir,
Because poor Cockburn and his wife
Were forced to flee the town, sir.

.

The chess-window did reel, sir,
Like to a spinning-wheel, sir,
For Dagon he is fallen now;
I hope he’ll never rise, sir.’^[445]

A Dumfriesshire minister communicated to MAR. Wodrow an account he had got from the Laird of Waterside, a factor of the Duke of Queensberry, of a spectacle which the laird and many others had seen about sunset one evening in this month, about 1712. a mile from Penpont. ‘There appeared to them, towards the sea, two large fleets of ships, near a hundred upon every side, and they met together and fairly engaged. They very clearly saw their masts, tackling, guns, and their firing one at another. They saw several of them sunk; and after a considerable time’s engagement they sundered, and one part of them went to the west and another to the south.’

Wodrow goes on to relate what Mr James Boyes told him of shootings heard one morning about the same time in Kintyre. ‘The people thought it had been thunder, and went out to see what sort of day it was like to be. All appears clear, and nothing like thunder. There were several judicious people that saw, at some distance from them, several very great companies of soldiers marching with their colours flying and their drums beating, which

they heard distinctly, and saw the men walking on the ground in good order; and yet there were no soldiers at all in that country, nor has been a long time. They heard likewise a very great shooting of cannon: ... so distinct and terrible, that many of the beasts broke the harrow and came running home.'

Wodrow notes, at this time, a piece of bad taste MAY.
on the part of Sir James Hall of Dunglass, whose family had in recent times acquired by purchase that ancient possession of the Home family. The old burial-place of the Earls of Home had been turned by Sir James into a stable, and he resisted both the clamour of the public and the private remonstrance of the aggrieved family on the subject. 'Because the minister shewed some dislike at this unnatural thing, he is very uneasy to him.'

This act of Sir James Hall necessarily shocked Episcopalians; and to such an extent was the feeling carried, that a distinct pamphlet on the subject was published in London. The writer of this tells us, that, having made an excursion into Scotland in the summer of 1711, he tarried for a while at the post-house of Cockburnspath, and thus had an opportunity of seeing the 'pretty little church' near Dunglass House. He found that Sir James had gathered off all the grave-stones from the churchyard, to give scope for the growing of grass. He had 'made the nave of the church a stable for his coach-mares, and dug up the graves of the dead, throwing away their bones, to make way for a pavement for his horses.... He has made the choir a coach-house, and broken down the great east end 1712.
wall, to make a great gate to let his coaches in, that they may stand where the altar of God did stand. The turret is a pigeon-house, and over this new stable he has made a granary. There is also a building called an aile, adjoining the north side of the church, which is still a burying-place (still belonging to the Earl of Home), in which Sir James keeps hay for his horses, though his own first lady, who was daughter to Sir Patrick Home of Polwarth (now Earl of Marchmont), and his own only son, lie buried there.'

The writer states that Sir James's father, though 'of no family,' but only a lord mayor of Edinburgh, had kept this church in good repair all his lifetime, and bestowed upon it a new pulpit. The neighbouring gentlemen had remonstrated against the desecration, and one had offered to build for him separate conveniences such as he wanted, provided he would spare the

church; but all in vain. He adds: ‘Sir James is still as well esteemed by the whole party as ever he was, and in full communion with their kirk; nor could I learn of any reproof he ever had from his spiritual guides, the Mass Johns, upon this account; though ’tis most apparent that, had his Presbyterian holders-forth interposed, as they might and ought to have done, and as in other cases they are very apt to do when religion or even morality are not near so much concerned as here, Sir James durst not have attempted the doing this wicked thing.’

The writer goes on to remark what he calls the inconsistency of the Presbyterians in insisting that baptism shall always be performed in a church. ‘There are instances to be given, if need were, of their letting infants die without their baptism, rather than sprinkle them out of a church.’ ‘I shall mention but one other of their inconsistencies; ’tis that of their Judaical, if not Pharisaical observation of the Lord’s Day, which they call the Sabbath. This they set up most rigidly as their characteristic, though they pretend to admit of nothing as a principle, nor allow of any stated practice ecclesiastic, for which they have not a positive command in the Holy Scriptures. They despise the decrees and canons of the church, even in the early ages of it; nor does the unanimous consent of the primitive fathers of the first three centuries weigh with them; and yet I humbly think they must either take the observation of the first day of the week as the Lord’s Day or weekly Easter from the authority of the church; else it would puzzle them to get clear of the observation of the seventh day or Jewish Sabbath from the morality of the fourth commandment by any positive gospel precept.’^[446]

1712.

An ingenious piece of masked Jacobitism is described in a newspaper as taking place in the neighbourhood of Edinburgh. ‘Thursday last’—so runs the paragraph—‘being the anniversary of the birth and happy restoration of King Charles II., of ever-blessed memory, was solemnly observed by Charles Jackson, merchant in Edinburgh, who had the honour to have his majesty stand godfather to him in the church of Keith at his baptism; and his majesty, by assuming the name of Jackson, was happily preserved from his enemies’ hands, after his escape out of the Royal Oak. In consideration of these honours conferred upon him by his sacred majesty, and being lineally descended from a stock

MAY 29.

of the loyalists, he invited all such, by public advertisement, to solemnise that memorable day, at an enclosure called Charles's Field, lying a mile south from this city (where he hath erected a very useful bleaching-field), and there entertained them with diversity of liquors, fine music, &c. He had likewise a splendid bonfire, and a spacious standard erected, with a banner displayed upon it, whereon was very artfully drawn his sacred majesty in the Royal Oak, the bark wherein he made his escape, and the colonel who conducted him on board, taking leave of his majesty. The company round the bonfire drank her majesty, Queen Anne's [health], and the memory of the happy Restoration, with great joy and demonstrations of loyalty. The night concluded with mirth; and the standard being brought back to Mr Jackson's lodgings, carried by a loyal gentleman bareheaded, and followed by several others with trumpets, hautboys, and bagpipes playing before them, where they were kindly entertained.'^[447]

Whatever might be the personal delinquencies and shortcomings of the judges, they never could be charged with a disposition to let other people off too easily. On the contrary, one is always struck by the appearances of severity in their treatment of those who fell into their hands. Two men of a humble order, named Rutherford and Gray, had been induced by a low agent, named Alexander Pitblado, to adhibit their names as witnesses to a paper bearing to be a guarantee by Dean of Guild Warrender for the rent of a house occupied by one Isabel Guild, being the insignificant sum of £25 Scots. It became Pitblado's fortune—doubtless, not undeservedly—to be carried away as a recruit to Flanders. The guarantee was detected to be a forgery. Rutherford and Gray were taken into custody, and carried before the magistrates, where they readily admitted that Pitblado had induced them to give their signatures, on the assurance that Warrender had signed the paper.

The Lord Advocate thought the case worthy of the notice of the judges; so the two men were brought up to the court, with a statement of their offence against the 5th act 1681. It was determined that the matter was proper to be decided summarily, and the culprits made no objection to this course, for, as they said, they had not means of living in jail to wait for a more deliberate trial. It was also determined that the Lords could decide in the case with shut doors. Rutherford, now fearing that his fault inferred

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death, withdrew his former confession, but was at length prevailed on to confess once more, telling, what we can well believe to have been the truth, that he had been ensnared by Gray to do what he did in pure simplicity. 'The Lords considered that, though it was a very small sum, yet it was a dangerous case to let witnesses escape on pretence of simplicity, where they neither see the party sign nor own the subscription; therefore resolved to impose some stigma and censure to terrify others; and so ordained them to be brought on Wednesday, being the market-day, to the great door of the Parliament House, by the hand of the hangman, with a paper on their breasts bearing their crime, and there to stand betwixt ten and eleven in the forenoon, and from that to be conducted to the pillory at the Tron, and there to stand the other hour between eleven and twelve, with papers on their breast: and in regard Gray had seduced Rutherford to sign, they ordained his lug to be nailed to the Tron; and being informed that Rutherford was a notar, they deprived him, and declared them both infamous.'

Four days later, having in the interval undergone their sentence, they petitioned for liberation from jail, which was granted. Then, however, came in George Drummond, the Goodman of the Tolbooth, with a claim for his dues, which they were totally unable to pay. Before the Union, the Lords in such a case could throw the expense upon the Treasury; but now they were without any such resource, and neither could they 1712. force the jailer to pass from his demand. In this dilemma, they after all acted a humane part, and made up the necessary sum out of their own pockets.^[448]

The *Edinburgh Courant* intimated, in an JUNE 21. advertisement, that 'Robert Campbell, commonly known by the name of Rob Roy Macgregor, being lately intrusted by several noblemen and gentlemen with considerable sums for buying cows for them in the Highlands, has treacherously gone off with the money, to the value of £1000 sterling, which he carries along with him.' This is the first public reference to a person who has become the theme of popular legend in Scotland to an extent little short of Robin Hood in England, and finally has had the fortune to be embalmed in a prose fiction by one of the greatest masters in modern literature.

It is generally admitted that Rob Roy was a man of good birth and connections, though belonging to a family or clan which for upwards of a century had been under proscription, and obliged to live a rather skulking kind of life. He had become possessed in an honourable manner of certain lands on the skirts of Ben Lomond, in the county of Stirling, composed wholly of mountain-ground, and of little annual value, yet sufficient to maintain him, the principal place being Inversnaid, on the isthmus between the Lochs Lomond and Katrine, where hundreds of tourists now pass every summer-day, but which was considered a very outlandish situation in the time of Queen Anne. His family name being illegal by act of parliament, he had adopted that of Campbell, in compliment to the Argyle family, which patronised him. The business of purchasing Highland cattle at the Crieff and other markets, and getting them transferred to England, where they were to be fattened and consumed, was for some years after the Union a favourite one amongst gentlemen of good rank, and it attracted the sagacious and active mind of Robert Macgregor Campbell. With some funds supplied by his neighbours, and part of which, at least, is said to have come primarily from the Duke of Montrose, on an understanding that the lenders were to share in the profits, he entered on the traffic with spirit, and conducted it for a time with success; but the defalcations of a subordinate agent or partner, named Macdonald, cut short his career in trade, 1712. and left him in serious pecuniary difficulties. The aspect which the affair took at the Court of Session in Edinburgh was, that Robert Macgregor Campbell drew bills on Graham of Gorthie and other gentlemen for cattle he was to buy for them, realised the money, and then ‘did most fraudulently withdraw, and fled, without performing anything on his part, and thereby became unquestionably a notour and fraudulent bankrupt;’^[449] while in reality he was probably only the victim of a fraud, and obliged to keep out of the way in consequence of the unreasonable severities of the law towards men in his situation. It was a sufficiently barbarous measure to advertise an unfortunate man as a fraudulent bankrupt seeking to screen himself from justice; but the Duke of Montrose—in some other respects but a poor representative of his illustrious great-grandfather—went further: he caused his factor, Mr Graham of Killearn, to fall upon Macgregor’s poor little holding of Craigrostan and Inversnaid, and thrust out from it the wife and family of the late owner.

This treatment turned the milk of Macgregor's nature to bitterness, and it is not surprising, when the general condition of the country, and the ordinary strain of men's ideas in that age are considered, that he sought in a wild and lawless way to right himself with his oppressors—above all with the Duke of Montrose. From the rough country round Ben Lomond, he could any night stoop upon his Grace's Lowland farms, and make booty of meal and cattle. Strange to say, while thus setting the law at defiance, he obtained a certain steady amount of countenance and protection from both of the great Campbell chiefs, Argyle and Breadalbane. The government made an effort to impose a check upon his career by planting a little fort at Inversnaid;^[450] but Rob Roy, nevertheless, continued in his lawless course of life. On the side of Loch Lomond, near Inversnaid, 1712.

there is a cave formed by a flexure in the stratification of the mountain: here Rob occasionally took refuge when hard pressed. It is curious to reflect that this strange exemplification of predatory life was realised in a not very remote part of our island, in the days when Addison and Pope were regaling the refined people of London with the productions of their genius. Rob is described as a short, robust man, with bushy hair and beard, and legs covered so thickly with red hair as to resemble those of a Highland bull. His cognomen 'Roy' expresses his ruddy complexion. It is admitted that, amidst his wild life, he was not without humanity or feeling for the unfortunate, and, what is perhaps more strange, that he was a sagacious and politic sort of person, who never would go into any quarrel or contention which was not likely to result in some practical benefit or advantage. It was probably owing to this cool temperament, that, though he mustered a body of clansmen for the Stuart cause in 1715, he yet stood neutral at the battle of Sheriffmuir, alike afraid to offend King James, on the one hand, and his patron, the Duke of Argyle, on the other.

A singular and not very decent lawsuit took place at this time between the Earl of Bute and his stepmother, the Dowager Countess, widow of the first earl, by whom this family was first raised to any considerable distinction. When the deceased peer went to Bath in the spring of 1710, a few months before his death, he granted a liferent of 3300 merks (£183, 6s. 8d. sterling) to his lady. The present peer—father, by the way, of George III.'s celebrated minister—refused to pay this annuity, and JUNE.

the countess raised an action against him for it, and also for the annual rents of her own son's patrimony. The only objection presented by the earl in his defence was, that the lady had profited unduly already out of her husband's property, having at his death appropriated large sums of 'lying money.' The matter being referred to her oath, she acknowledged having had in hand at her lord's death forty pounds, with a purse containing 'sundry medals and purse-pennies given by the earl and others to her and her son, in which number there were some guineas; and the whole might be about £60 sterling.' She averred that 'she had nothing as the product of any trade she drove, except two or three ells of *alamode*;' ^[451] she 1712. had made nothing in her husband's lifetime by lending money; there had been presents from the tenants in kind and in money, and her husband had given them to her. The peer seems to have gained nothing by challenging the claims of his stepmother beyond the forty pounds of 'lying money.' ^[452]

The stricter Presbyterians, commonly called JULY 23. Cameronians—the people chiefly involved in the persecutions of the Stuart reigns—had been left unsatisfied by the Revolution, and were now as antagonistic to the presbyterian church as they had ever been to the late episcopacy. For years they held together, without ministers, or the means of getting any trained in their peculiar walk of doctrine; but at length one or two schismatics cast off by the church put themselves at their head, the chief being Mr John Macmillan, formerly minister of Balmaghie in Galloway. Oaths to the state, neglect of the Covenant, and general compliances with the spirit of the times, were the stumbling-blocks which these people regarded as disqualifying the national establishment for their allegiance.

The Cameronians chiefly abounded in the counties of Lanark, Dumfries, and Kirkcudbright, and their Canterbury was the small burgh of Sanquhar in Nithsdale. Whenever any remarkable political movement was going on in the country, these peculiar people were pretty sure to come to the cross of Sanquhar and utter a testimony on the subject. The last occasion when this was done was at the Union, a measure which it pleased 'the Antipopish, Antiprelatic, Antierastian, Antisectarian, *True* Presbyterian Church of Scotland' (for so they styled themselves), to regard as 'sinful,' because it

involved a sanction to that English prelatic system which the Solemn League and Covenant had bound the Scottish nation to extirpate.

While still brooding over the ‘land-ruining, God-provoking, soul-destroying, and posterity-ensnaring-and-enslaving Union,’ the act of toleration, so manifestly designed for a relief to the prelatists, came like a bellows to blow up the fire. Sundry meetings were held, and at length a general one at the upland village of Crawford-John (26th of May 1712), where it was finally decided on that the faithful and true church should renew the Solemn League and Covenant.

It was at a place called Auchensaugh, on the top of a broad mountain behind the village of Douglas, that the meeting was 1712. held for this purpose. The transaction occupied several days. On the first, there was a prayer for a proper frame of spirit, followed by a sermon, as this was again by an engagement to duties, amongst which the uprooting of all opinions different from their own was the most conspicuous. The people were dismissed with an exhortation from Mr Macmillan upon their ‘unconcerned carriage and behaviour.’ On the second day, it was reckoned that about seventeen hundred were present, including, however, many onlookers brought by curiosity. There was now read an acknowledgment of sins, and the people were invited to clear their consciences by declaring any of which they had been guilty. One confessed having made a rash oath; another that he had attended the Established Church; several that they had been married by the Erastian clergy. One, hearing of the sinfulness of tests and oaths, rather unluckily confessed his having sworn the Covenant at Lesmahago. A number had to deplore their having owned William and Mary as their lawful sovereigns. Mr Macmillan seems to have been a little perplexed by the innocent nature of their sins. After all this was at an end, the Solemn League was read and sworn to, article by article, with uplifted hands. A day of interval being allowed, there was a third of devotion. On the fourth, a Sunday, there was an administration of the communion, which must have been a striking sight, as eight tables were set out upon the moor, each capable of accommodating sixty persons. ‘It was a very extraordinary rain the whole time of the action.’

Even Wodrow, who has taken such pains to commemorate the sufferings of these people under prelacy, seems to have been unable to look with patience on their making such demonstrations against the church now

established.^[453] Such earnestness in intolerance, such self-confidence in opinion, cannot be read of in our age without strange feelings. After all, the Covenanters of Auchensaugh were good enough to invite the rest of the community to join them, 'being anxious to get the divisions which have long wrecked this church removed and remedied;' nay, they were 'willing, for peace and unity, to acknowledge and forsake whatever we can rationally be convinced to be bad in our conduct and management,'^[454] though it would have probably been a serious task for a 1712. General Assembly of angels to produce such a conviction.

About this time, and for long after, there flourished an enthusiast named John Halden, who considered himself, and a friend of his named James Leslie, as above all and peculiarly the proper representatives of the martyrs Cameron, Cargill, Hackston, Hall, Skeen, Balfour, &c., according to the tenor of the Rutherglen, Sanquhar, and Lanark Declarations. John, like his predecessors, declared not merely spiritual but temporal war against all the existing powers, seeing they had declined from the Covenant, exercised an Erastian power in the church, and were tyrants over the state. Nay, he declared war against 'the enemies of Christ' all over the world, denouncing the curse of Meroz against all who would not join him. Halden and Leslie, since there was no government they could submit to, professed their desire and endeavour to 'set up a godly magistracy, and form a civil state' themselves; and it is to be feared that the community remained grievously insensible to the offered blessing. The Lord Advocate did not even do them the honour to consider them dangerous. The only active step we hear of John Halden taking was to burn the Abjuration Oath at the Cross of Edinburgh, on the point of a dagger (October 28, 1712), proclaiming with a loud voice, as he went off up the High Street: 'Let King Jesus reign, and let his enemies be scattered!'

Dr Pitcairn, the prince of wits and physicians in JULY. his day, being an Episcopalian and a Jacobite, moreover a man of gay and convivial habits, did not stand in good repute among the severer of the Presbyterian clergy. Regarding many things connected with religion from a peculiar point of view, which was not theirs, he sometimes appeared to them, by the freedom of speech he assumed on such points, and by the cast of comicality which he gave them, to be little better than an unbeliever.

Wodrow in his Renfrewshire parish heard of him and his associates with serious concern. It was reported, he tells us, that ‘Dr Pitcairn and others do meet very regularly every Lord’s Day, and read the Scriptures, in order to lampoon and ridicule it. It’s such wickedness that, though we had no outward evidences, might make us apprehensive of some heavy rod.’^[455]

The Rev. James Webster, one of the Edinburgh clergy of that day, was distinguished by the highest graces as an 1712. evangelical preacher. He had been a sufferer under the ante-Revolution government, and hated a Jacobite with a perfect hatred. To the Jacobites, on the other hand, his high Calvinism and general severity of style were a subject of continual sarcasm and epigram; and it is not unlikely that Pitcairn had launched at him a few jokes which he did not feel over meekly. In a poem of Pitcairn’s, *Ad Adenas*, there is, indeed, a passage in which Mr Webster, as minister of the Tolbooth kirk, a part of St Giles’s, is certainly glanced at:

‘Protinus Ægidii triplicem te confer in ædem,
Tres ubi Cyclopes fanda nefanda boant.’

Perhaps this very remark gave rise to all that followed.

One day, in a company where the magistrates of Edinburgh were present, Mr Webster fell into conversation with Mr Robert Freebairn, the bookseller. The minister complained that, in his auctions, Freebairn sold wicked and prohibited books; in particular, he had lately sold a copy of Philostratus’s *Life of Apollonius Tyanæus*, which deists and atheists were eager to purchase, because it set forth the doings of that impostor as on a level with the miracles of Jesus. It being insinuated that these auctions ministered to an infamous taste, Mr Freebairn asked Mr Webster to ‘condescend upon persons;’ whereupon the latter unguardedly said: ‘Such persons, for example, as Dr Pitcairn, who is known to be a professed deist. As a proof of what I say, at that very sale where you found so many eager to purchase the *Life of Apollonius*, when some one remarked that a copy of the Bible hung heavy in comparison on your hands, Pitcairn remarked: “No wonder, for, you know, *Verbum Dei manet in æternum*,” which was a direct scoffing at the sacred volume.’

Pitcairn, having this conversation reported to him by Freebairn, took it with lamentable thin-skinnedness, and immediately raised an action against Webster before the sheriffs for defamation. Webster advocated the case to

the Lords, on the ground that the sheriffs were not the proper judges in such a matter; and, after a good deal of debating, the Lords, considering that the pursuer shewed too much keenness, while the defender appeared willing to give reasonable satisfaction, recommended the Lord-justice Clerk 'to endeavour to settle the parties amicably;' and so the affair seems to have ended.^[456]

In the early part of this month, the Rev. Mr Wodrow made an excursion into Galloway, and noted on the way several characteristic circumstances. 'I find,' he says, 'they have no great quantity of straw, and necessity has learned them to make thrift of fern or breckans, which grow there very throng [close]. They thatch their houses with them ... stript of the leaves ... and say it lasts six or eight years in their great storms.' He adverts to the moat-hills near some of the parish churches, and great cairns of stones scattered over the moors. Of a loch near Partan, he says: 'There seem to be tracks of roads into it upon all hands;' a description reminding us of the glacial grooves and scratches seen on rocks dipping into several of the Scottish lakes. 'I notice,' he says, 'all through the stewartry [of Kirkcudbright] the houses very little and low, and but a foot or two of them of stone, and the rest earth and thatch. I observe all the country moorish. I noticed the stones through many places of far more regular shapes than in this country [Renfrewshire]. On the water of Ken they are generally spherical [boulders]. Through much of the moorish road to Crogo, they are square and long. The strata that with us lie generally horizontally, there in many places lie vertical.'

1712. SEP.

The worthy martyrologist received from a Galloway minister, on this tour, an account of the witches who were rife in the parish of Balmaclellan immediately after the Revolution. 'One of them he got discovered and very clear probation of persons that saw her in the shape of a hare; and when taken she started up in her own shape. When before the judge, he observed her inclinable to confess, when of a sudden, her eyes being fixed upon a particular part of the room, she sank down in the place. He lifted her up and challenged her, whether her master had not appeared in that place. She owned it was so, confessed, and was execute. All this process is in the records of the presbytery, of which I am promised an abstract.'^[457]

Wodrow seems to have had a taste for geology, though the word did not then exist. He thus wrote to Edward Lluyd, August 26, 1709: 'My house [is]

within a quarter of a mile of the Aldhouse Burn, where you and I were *lithoscopying*. My pastoral charge does not allow me that time I once had, to follow out these subterranean studies, but my inclination is just the same as when I saw you, or rather greater, and I take it to be one of the best diversions from more serious work, and in itself a 1712. great duty, to view and admire my Maker in his works, as well as his word. I have got together some stone of our fossils hereabout, from our marl, our limestone, &c.’^[458]

The *Edinburgh Courant* newspaper contains SEP. 24. several notices of a flood which happened this day in the west of Scotland, generally admitted to be the greatest in memory. Wodrow, who calls it ‘the greatest for ane age,’ says it prevented all travelling for the time between Glasgow and Edinburgh. The lower parts of the western city were, as usual on such occasions, deep in water, to the ruin of much merchandise, and the imprisonment of (it is said) twelve hundred families in the upper parts of the houses. A boat sailed about in the Briggate. The house of Sir Donald Macdonald—a gentleman regarded with great jealousy in Glasgow on account of his unpopular religion—is described in one account as immersed to the depth of three fathoms; which is probably an exaggeration. But we may believe Wodrow when he tells us that ‘the water came up to the well in the Saltmarket.’

Great anxiety was felt at Glasgow for the safety of the fine old bridge, which had its arches ‘filled to the bree.’ Vast quantities of country produce and of domestic articles of all descriptions were brought down on the surface of the Clyde and other rivers of the province involved by the flood. Several lives were lost. At Irvine and other parts of Ayrshire, as well as in Renfrewshire, bridges were carried away, and great general damage inflicted. ‘A man and a woman were lost upon the water of Kelvin, and if the Laird of Bardowie had not sent his boat from his loch, to the said water of Kelvin, there had been a great many more people lost therein.’

If we are to believe the observant minister of Eastwood, the whole air at this season seemed ‘infected.’ He notes the frequency of madness in dogs, and that, owing to various epidemics, as ‘the galloping fever,’ sore throat, and measles, scarce a third of the people of Glasgow were able to appear in church.

‘I am told,’ he adds, ‘the Blantyre Doctor did presage this evil harvest and the floods; and they talk, but whether true or false I know not, that there is to be another and greater flood, wherein the Clyde shall be three steps up the Tolbooth stair in Glasgow.’

Mr Robert Monteath was at this time preparing 1712. DEC. his celebrated *Theater of Mortality*, a collection of the sepulchral inscriptions existing throughout Scotland. It had already cost him ‘eight years sore travel, and vast charges and expenses.’ He now advertised for assistance in his task, ‘desiring all persons who have any valuable epitaphs, Latin, prose or verse, English verse only, or any historical, chronological, or moral inscriptions,’ to send just and authentic copies of them to him ‘at his house in the College Wynd, Edinburgh.’ He took that opportunity of stating his hope that ‘all generous persons will cheerfully subscribe his proposals in a matter so pious, *pleasant*, profitable, and national.’^[459]

Died, Sir James Steuart, Lord Advocate for 1713. MAY 1. Scotland, aged about seventy-eight, greatly lamented by the Presbyterians, to whom he had ever been a steadfast friend. The General Assembly, in session at the time, came in a body to his funeral, which was the most numerously attended ever known in Edinburgh, the company reaching from the head of the close in which his lordship lived, in the Luckenbooths, to the Greyfriars’ Churchyard. For several years, bodily infirmity confined him to a chair; but his mind continued clear to the last. Sir James had shewn some unsteadiness to his principles in the reign of James II., but nevertheless was forced to fly his country, and he only returned along with King William, whose manifesto for Scotland he is understood to have written.

Great general learning, legal skill, and worldly policy, marked Sir James Steuart; but the most remarkable characteristic of the man, considering his position, was his deep piety. Wodrow, who speaks of him from personal knowledge, says: ‘His death was truly Christian, and a great instance of the reality of religion.... He had a great value for religion and persons of piety. He was mighty in the Scriptures; perfectly master of [them]; wonderful in prayer. That winter, 1706–7, when he was so long ill, he was in strange raptures in his prayers sometimes in his family. He used to speak much of his sense of the advantage of the prayers of the church, and in a very

dangerous sickness he had about thirteen years ago, he alleged he found a sensible turn of his body in the time of Mr George Meldrum's prayer for him. He never fell into any trouble but he gave up his name to be prayed for in all the churches of the city of Edinburgh. His 1713. temper was most sweet and easy, and very pleasant. He was a kind and fast friend, very compassionate and charitable.'^[460]

The Lord Drummond, eldest son of the exiled MAY 11. Earl of Perth, and his wife, Jean Gordon, daughter of the Duke of Gordon, had a son and heir born to them, the same who afterwards took a conspicuous part in the rebellion of 1745, which he did not long outlive. Politics, long adverse to the house of Drummond, smiled on the birth of this infant heir, for never since the Revolution did the Whig interest seem more depressed. Lord Drummond was encouraged by these circumstances to take a step which would have been dangerous a few years before. It is related as follows by Wodrow: 'The baptism of my Lord Drummond's son [was performed in October] at his own house by a popish bishop with great solemnity. The whole gentlemen and several noblemen about, were gathered together; and when the mass was said, there were very few of them went out. Several justices of peace and others were there. This is a fearful reproach upon the lenity of our government, to suffer such open insults from papists.'^[461]

Two months later, Wodrow notes: 'The papists are turning very open at Edinburgh, and all over Scotland there is a terrible openness in the popish party.' It is alleged in a popular contemporary publication, that there were fully forty Catholic priests living with little effort at concealment in Scotland; some of them very successful in winning over ignorant people to their 'damnable errors;' while 'one Mr Bruce, a popish bishop, had his ordinary residence in Perthshire, where he had his gardens, cooks, and other domestic servants, and thither the priests and emissaries of inferior rank resorted for their directions and orders.... Their peats and other fuel were regularly furnished them ... [they had] also their mass-houses, to which their blind votaries resorted almost as publicly as the Protestants did to their parish churches.'^[462]

Died Dr Archibald Pitcairn, a man in most respects so strongly contrasted with his recently deceased countryman, Sir James Steuart, as to impress very strongly the absurdity of trying to ascribe any particular line of character to a nation or any other large group of people. To nearly every idea associated with the word Scotsman, Pitcairn, like Burns and many other notable Caledonians, stands in direct antagonism: he was gay, impulsive, unworldly, full of wit and geniality, a dissenter from Calvinism, and a lover of the exiled house of Stuart. Conviviality shortened his life down to the same measure which a worn-out brain gave to Sir Walter Scott—sixty-one years. But he parted with the world in great serenity and good-humour, studying to make his last year useful for the future by writing out some of his best professional observations, and penning cheerful verses to his friends on his death-bed. In these, to the refutation of vulgar calumnies, he failed not to express his trust in a future and brighter existence:

OCT. 20.

1713.

‘Animas morte carere cano:
Has ego, corporibus profugas, ad Sidera mitto,
Sideraque ingressis otia blanda dico.’

Adding, in the Horatian spirit which marked him all through life:

‘Sed fuerint nulli, forsan, quos spondeo, coeli,
Nullaque sint Ditis numina, nulla Jovis;

.

Attamen esse hilares, et inanes mittere curas
Proderit, ac vitæ commoditate frui,
Et festos agitâsse dies, ævique fugacis
Tempora perpetuis detinuisse jocis.’[\[463\]](#)

A few months before his death, Pitcairn had completed a volume of his medical essays, to which he prefixed a page strongly significant of his political predilections: it contained the following words in large characters: ‘TO GOD AND HIS PRINCE *this Work is humbly Dedicated by* ARCHIBALD PITCAIRN,’ with the date, ‘June 10, 1713,’ being the well-known birthday of the said prince—namely, the Chevalier St George. Where practical matters are concerned, one sees in this volume the acuteness and good sense which gave the author his professional eminence. In theoretical matters, we find the absurdities which may be said to have been inseparable from medical science before either physiology or organic

1713.

chemistry was understood. The phenomena of digestion are described by Pitcairn as wholly physical and mechanical. It is also rather startling to find him patronising poultices of ovine and bovine excreta, and powders made of the human skull.

The volume was published posthumously, and in the friendly biography prefixed to it, we find a charming professional portrait—‘always ready to serve every one to the utmost of his power, and even at the risk of his own life—never sacrificing the health of his patients for any humour or caprice’—‘not concerned about fees’—‘went with greater cheerfulness to those from whom he could expect nothing but good-will, than to persons of the highest condition’—often, where needful, left marks of his charity, as well as his art, with the sick. ‘This virtue of charity was indeed quite his own in its manner, for he usually conducted it in such a way that those benefiting by it remained ignorant of his being their benefactor.’ It is also stated of him that he was of ‘a pleasant engaging humour; that life sat easy upon him in all circumstances; that he *despised many, but hated none.*’

In a country journey, Pitcairn discovered the learning and genius of Thomas Ruddiman, and he succeeded in bringing this remarkable man into a position which enabled him to exercise his talents. Ruddiman afterwards repaid the favour by gathering the many clever Latin poems of his patron, which he gave to the world in 1727. They are chiefly complimentary to the famous men on the cavalier side, or directly expressive of his political feelings; but some are general, and include such happy turns of thought as make us regret their not being in English. One of the most noted of his pieces was a brief elegy on the death of Dundee, which was translated into English by Dryden; and it must be acknowledged as *something* for a Scottish writer of Latin verses in that age, to have had men like Dryden and Prior for translators.

One cannot but reflect with pleasure on such connections amongst men of genius as that between Pitcairn and Ruddiman; and the association of ideas leads us to another anecdote connected with Pitcairn and to a similar purport. When the learned physician acted as 1713. professor at Leyden, he had amongst his pupils two men of great eventual eminence, Herman Boerhaave and Richard Mead, both of whom entertained a high sense of the value of his instructions. A son of Pitcairn having forfeited his life by appearing in the rebellion of 1715, Mead, then in great

favour in high places, went to Sir Robert Walpole to plead for the young man's pardon. 'If I have been able,' he said, 'to save your or any other man's life, I owe the power to this young man's father.' The claim was too strong, and put in too antithetic terms, to be resisted.

My old friend Alexander Campbell, editor of *Albyn's Anthology*, was intimately acquainted with a maiden daughter of Pitcairn, who lived till the closing decade of the eighteenth century. He spoke of having once asked her to accompany him to the theatre, to see Mrs Siddons, when the old lady said gaily: 'Aih, na, laddie; I have not been at ony playhouse since I gaed to ane in the Canongate wi' papa, in the year ten.'

'This month there was an incident at Glasgow Nov. which made a very great noise in the country. Mr Gray [one of the clergy] was visiting [his flock], and in some house meets with one Andrew Watson, a journeyman shoemaker, lately come into the town from Greenock.' On inquiry, he learned that this man did not attend his ministrations, and, asking the reason, he was told it was because he, the minister, had taken the oath of abjuration. He seemed a stiff, pragmatist fellow, and in the course of an altercation which ensued, he called Mr Gray perjured. A lay elder, accompanying Mr Gray, resented this expression of the shoemaker, and reported it to Bailie Bowman, who, sending for Watson, demanded if he called Mr Gray perjured. 'Yes, and I will so call every one who takes the oath of abjuration.' 'Do you own Mr Gray as your minister?' 'I will own no one who took that oath.' 'Do you own the magistrates?' 'No, if they have taken that oath.' Here was a rebel for the worthy magistrates and ministers of Glasgow to be cherishing in their community. It was not to be borne. Bailie Bowman clapped the man up in jail, till it should be determined what was to be his ultimate fate. After a day or two, the magistrates sent for him, and questioned him as he had been questioned before, when he not only gave the same answers, but subscribed a paper disowning both ministers and magistrates, on the ground of their having taken the aforesaid oath. 'They kept him in prison ten or twelve days, but 1713. could make nothing of him. They offered to let him out if he would confess he had given offence to the magistrates; but that he would not do.' There were some who cried out against this procedure as 'persecution,' and they took care that the man did not want for maintenance. The last we hear of the

matter is, that the magistrates ‘resolve to banish him the town.’ Wodrow, who relates this occurrence,^[464] soon after makes the observation, that ‘the Presbyterians are ill termed bigot and narrow-spirited:’ that character ‘does best agree to papists and prelatists.’

It was remarked that an unwholesome air DEC. prevailed at this time, causing many hasty deaths, and favouring small-pox, of which eighty children died within a little time in Eglesham parish. ‘I hear it observed,’ says Wodrow, ‘that in the summer-time never was known such a quantity of flees [flies.]’

Campbell of Lochnell having died about this 1714. JAN. 10. day, his son, a Jacobite, kept the corpse unburied till the 28th, in order that the burial might be turned to account, or made use of, for political purposes. It was customary for the obsequies of a Highland chief or gentleman to be attended by a vast multitude of people, who usually received some entertainment on the occasion. It seems to have been understood that those who came to Lochnell’s funeral were making a masked demonstration in favour of the exiled Stuart. Those of the opposite inclination deemed it necessary to attend also, in order to be a check upon the Jacobites. Hence it came to pass, that the inhumation of Lochnell was attended by two thousand five hundred men, well armed and appointed, five hundred being of Lochnell’s own lands, commanded by the famous Rob Roy, carrying with them a pair of colours belonging to the Earl of Breadalbane, and accompanied by the screams of thirteen bagpipes. Such a subject for a picture!^[465]

Keeping in view the article under September FEB. 1690, regarding the marriage of Walter Scott of Kelso with Mary Campbell of Silvercraigs, we may read with additional interest a letter by that person, written from Glasgow to his wife in February 1714, giving an account of the peculiar arrangements regarding her father’s 1714. funeral:

‘GLASGOW, Feb. 2, 1714.

‘MY DEAR—I left Edin^r upon fryday the 29th of the last. Dean of [Guild] Allane nor your sister either durst venture to travell to Glasgow with [me], on account of the season, but said that Mr Bell, Lisis younge husband, was there, whom Dean of Guild Allane had trusted with any business that could bee done for him. I called at Lithkow and saw Lissie, who was very kinde, was at Kilsyth all that night, came to Glasgow the next day, beeing Saturday, at twelve of the clock, and at two of the clock that day went down to the chesting of your father. He was buried yesterday att four a clock afternoon, beeing Monday the first instant, very devoutlie and honourable, for Blythswood had ordered all things proper and suitable to a nicety. All the gentlemen in the place, the magistrates, and the citiezens of best esteem and substance, accompanied the funerall in very good order. I carried his head, Blythswood on my right, and Alex. Bell, Lissies husband, on my left hand; other nerest relations and Sr James Campbell of Auchinbrook carried all the way. After the funerall, there was prepared in the large room of the Coffee-house a very handsome and genteele treat, to w^h the Magistrates and Gentlemen and friends were invited. The treat consisted of confections, sweet breads, and bisket of divers sorts, very fine and well done, and wines. There were at it upwards of thirtie. Wee are this day to look to his papers in presence of Bailie Bowman and town-clark, wherof you shall have account of after this. I have sent a letter to Sir Robert Pollock just now, whose answer I will wait. I am like to stay five days after this here, and the time I may stay in Edi^r depends on my success from Sir Ro^t Pollock. In the mean time let Robie^[466] be making himself ready, for his master told Dean of Guild that he thought he would bee readie to saill about the middle of this instant. When I come to Ed^r I shall know whither it will be needfull to send for him before I come home myselfe or not. I recommend you all to the protection of God, and am,

‘My dear, your

‘W. SCOTT.

REIGN OF GEORGE I.: 1714–1727.

The Tory ministry of Anne, which had certainly meditated some attempt at the restoration of the Stuart line, were paralysed, as we have seen, by her death, and allowed the accession of George of Hanover to take place without opposition. The new king had no sooner settled himself in London, than he displaced the late queen's advisers, and surrounded himself with the Whigs, whom he knew to be his only true friends. The sharpness of this proceeding, added to the general discontent, produced an almost immediate insurrection. Two of the ex-ministers—the Duke of Ormond and Lord Bolingbroke—went to France, and attached themselves to the exiled court. The Earl of Mar, after in vain attempting to obtain the favour of King George, repaired to his native country, and, on the 6th of September 1715, set up the standard of rebellion in Aberdeenshire, although he is said to have had no commission to that effect from the rival prince. This nobleman, who had acted as Secretary of State under the late government, was speedily surrounded with hundreds of armed men, chiefly of the Highland clans, who were willing to be led by him to battle.

The government had at this time only a few regiments in Scotland, not exceeding in all fifteen hundred men, and these could not be concentrated in one place, without leaving the rest of the country exposed. They were, however, put under the command of the Duke of Argyle, a young soldier who had served under Marlborough, and at one time commanded the British troops in Spain. The government could not well spare more men for service in Scotland, as England, being threatened with a corresponding invasion from France, required a large number of the disposable troops for its own defence, and also for the purpose of preventing a rising among the native Jacobites. An attempt was made to surprise Edinburgh Castle in behalf of the Chevalier, and it would have in all likelihood succeeded, but

for the folly of one or two of the conspirators. By this enterprise, if successful, the Duke of Argyle must have been disabled for keeping together his small army, and the whole of the south of Scotland would at once have fallen into the hands of the insurgent general, if he had been gifted with common energy to take it into his possession.

Mar entered Perth on the 28th of September, having with him about five thousand horse and foot, fully armed. Among his Highland adherents were the chieftains of Clanranald and Glengarry, the Earl of Breadalbane, and the Marquis of Tullibardine (eldest son of the Duke of Athole), all of whom brought their clansmen into the field. Among the Lowland Jacobites who had already joined him were the Earls of Panmure and Strathmore, with many of the younger sons of considerable families. On the 2d of October, a party of his troops performed the dexterous exploit of surprising a government vessel on the Firth of Forth opposite to Burntisland, and taking from it several hundred stand of arms, which it was about to carry to the north, for the purpose of arming the Whig Earl of Sutherland against his Jacobite neighbours. This gave a little *éclat* to the enterprise.

The government, in order to encourage loyalty at this dangerous crisis, obtained an act, adjudging the estates of the insurgents to such vassals, holding of them, as should remain at peace. The state-officers were also very active in apprehending suspected persons, especially in England. Some gentlemen in the northern counties, fearing that this would be their fate, met on the 6th of October at Rothbury, and soon increased to a considerable party. Among them were Mr Forster, member of parliament for Northumberland, and Lord Widdrington. They made an advance to Newcastle, but were deterred from attacking it. They then concentrated themselves at Hexham, and opened a communication with Lord Mar. About the same time, the Viscount Kenmure, and the Earls of Nithsdale, Wintoun, and Carnwath appeared in arms in the south of Scotland, with a considerable band of followers, and a junction was soon after effected between the two parties.

As the Earl of Mar was loath to leave the Highlands, where immense bands were mustering to join him, he resolved to make no attempt upon the Duke of Argyle, who had now posted his small force at Stirling Bridge, which forms the only free pass between the north and south of Scotland. The earl, however, thought it expedient to send a detachment of upwards of

two thousand of his infantry across the Firth of Forth, in order to co-operate with him, when the proper time should arrive, by falling upon the duke in flank. This party was placed under the command of Brigadier Mackintosh of Borlum, an old officer, who had been regularly trained under Marlborough. By making a feint at Burntisland, to which point they attracted the war-vessels on the firth, about sixteen hundred got safely over to East Lothian, and immediately marched upon Edinburgh, which was then defenceless. The provost, however, had time to call the Duke of Argyle to his aid, who entered the west gate of the city with five hundred horse, at the same time that Mackintosh was approaching its eastern limit. The insurgent chief turned aside to Leith, and barricaded his men in the old dismantled citadel of Cromwell. There he was called to surrender next day by the duke, but returned a haughty defiance, and the assailing party had to retire to wait for cannon. The brigadier took the opportunity that night to march back to East Lothian, where for a day or two he garrisoned Seton House, the princely seat of the Earl of Wintoun. The Duke of Argyle was obliged to leave him unmolested, in order to return to Stirling, upon which he learned that the Earl of Mar was marching with his whole force. The insurgent general was in reality only anxious to call him off from the party under Mackintosh. The capital being now protected by volunteers, that officer, in obedience to the commands of the Earl of Mar, marched to Kelso, where he formed a junction with the English and Lowland cavaliers.

There were now two Jacobite armies in Scotland—one at Perth, and another at Kelso. It was the obvious policy of both to have attempted to break up the Duke of Argyle's encampment, which was the sole obstacle to their gaining possession of Scotland; but this the Earl of Mar either found inconvenient or imprudent, and the party at Kelso was soon diverted to another scene of action. After a delay of some days, and much unhappy wrangling among themselves, it was determined by the leaders of this body to march into the west of England, where, as the country abounded with Jacobites, they expected to raise a large reinforcement. They therefore moved along the Border by Jedburgh, Hawick, and Langholm, followed by a government force much inferior to themselves in numbers, under the command of General Carpenter. On the 31st of October they entered England, all except a few hundred Highlanders, who had determined to go home, and who were mostly seized by the country people upon the march.

Hitherto, the insurrection had been a spontaneous movement of the friends of the Chevalier, under the self-assumed direction of the Earl of Mar. It was now put into proper form by the earl receiving a commission as generalissimo from the royal personage in whose behalf he was acting. Henceforth the insurgent forces were supported by a regular daily pay of threepence in money, with a certain quantity of provisions, the necessary funds being raised by virtue of the earl's commission, in the shape of a land-tax, which was rendered severer to the enemies than to the friends of the cause. The army was now increased by two thousand five hundred men brought by the Marquis of Huntly, eldest son of the Duke of Gordon, and nearly four thousand who arrived, under the charge of the Earl of Seaforth, from the North Highlands. Early in November, there could not be fewer than sixteen thousand men in arms throughout the country for the Stuarts, a force tripling that with which Prince Charles penetrated into England at a later and less auspicious period. Yet even with all, or nearly all this force at his command, the Earl of Mar permitted the Duke of Argyle to protect the Lowlands and the capital with about three thousand men.

At length, on the 10th of November, having gathered nearly all the forces he could expect, he resolved to force the pass so well guarded by his opponent. When the Duke of Argyle learned that Mar was moving from Perth, he resolved to cross the Forth and meet his enemy on as advantageous ground as possible on the other side, being afraid that the superior numbers of the insurgents might enable them to advance upon more points of the river than he had troops to defend. He drew up his forces on the lower part of a swelling waste called the Sheriffmuir, with the village of Dunblane in his rear. His whole force amounted to three thousand three hundred men, of whom twelve hundred were cavalry. Mar, reinforced on the march by the West Highland clans under General Gordon, advanced to battle with about nine thousand men, including some squadrons of horse, which were composed, however, of only country gentlemen and their retainers. Although the insurgents thus greatly outnumbered their opponents, the balance was in some measure restored by Mar's total ignorance of the military art, and the undisciplined character of his troops; while Argyle, on the other hand, had conducted armies under the most critical circumstances, and his men were not only perfectly trained, but possessed that superiority which consists in the mechanical regularity and firmness with which such troops must act. On the night of the 12th, the two

armies lay within four miles of each other. Next morning, they were arranged by their respective commanders in two lines, the extremities of which were protected by horse. On meeting, however, at the top of the swelling eminence which had been interposed between them, it was found that the right wing of each greatly outflanked the left wing of the other army. The commanders, who were stationed at this part of their various hosts, immediately charged, and as in neither case there was much force opposed to them, they were both to some extent successful. The Duke of Argyle beat back the left wing of the insurgents, consisting of Highland foot and Lowland cavalry, to the river Allan. The Earl of Mar, in like manner, drove the left wing of the royal army, which was commanded by General Whitham, to the Forth. Neither of these triumphant parties knew of what was done elsewhere, but both congratulated themselves upon their partial success. In the afternoon, the Earl of Mar returned with the victorious part of his army to an eminence in the centre of the field, whence he was surprised, soon after, to observe the Duke of Argyle leading back the victorious part of his army by the highway to Dunblane. The total want of intelligence on each side, and the fear which ignorance always engenders, prevented these troops mutually from attacking each other. The duke retired to the village; the earl drew off towards Perth, whither a large part of his army had already fled in the character of defeated troops: and thus the action was altogether indecisive. Several hundreds were slain on both sides; the Earl of Strathmore and the chieftain of Clanranald fell on the side of the insurgents; the Earl of Forfar on that of the royalists. The Duke of Argyle reappeared next morning on the field, in order to renew the action; but finding that Mar was in full retreat to Perth, he was enabled to retire to Stirling with all the spoils of the field, and the credit of having frustrated the design of the insurgent general to cross the Forth. Even that part of his army which was discomfited by the Earl of Mar, had nevertheless become possessed of the principal standard of the enemy.

This day was fatal to the cause of the Chevalier in another part of the kingdom. The large party of united Scots and English, under Forster, had penetrated to Lancashire, without gaining any such accessions of force as had been expected. On the 12th of November they were assailed in the town of Preston by a considerable force under General Willis, who had concentrated the troops of a large district in order to oppose their march. For this day, they defended themselves effectually by barricading the

streets; but next day the enemy was increased by a large force under General Carpenter, and the unfortunate Jacobites then found it necessary to surrender, upon the simple condition that they should not be immediately put to the sword. Forster, Kenmure, Nithsdale, Wintoun, and Mackintosh, with upwards of a hundred other persons of distinction, including a brave and generous young nobleman, the Earl of Derwentwater, were taken prisoners. The common men, in number about fourteen hundred, were disposed about the country in prisons, while their superiors were conducted to London, and, after being exposed in an ignominious procession on the streets—a mark of the low taste as well as of the political animosity of the time—imprisoned in Newgate on a charge of high treason.

The affairs of the Chevalier now began to decline in Scotland. The Earl of Sutherland, having established a garrison at Inverness, afforded to the Earl of Seaforth and the Marquis of Huntly an excuse for withdrawing their forces from Perth. Some of the other clans went home to deposit their spoil, or because they could not endure to be taunted for their bad behaviour at Sheriffmuir. The army being thus reduced to about four thousand men, various officers began to think of capitulating with the Duke of Argyle. To this there was one serious objection. In compliance with a pressing invitation which they had despatched in better times, they were daily expecting their prince to arrive amongst them. Nevertheless, the Earl of Mar was compelled to open a negotiation with the royalist general. In answer to their message, the duke informed them that he had no power to treat with them as a body, but would immediately send to court to ask for the required instructions. They were in this posture when the unfortunate son of James VII. landed (December 22) at Peterhead, and advanced to the camp to put himself at their head. The Earl of Mar and some other officers went to Fetteresso to meet him, and to apprise him of the present state of his affairs. Although greatly dejected by what he heard, and much reduced in health by a severe ague, he resolved to establish himself in royal state at Perth, in the hope of reanimating the cause. Advancing through Brechin and Dundee, he entered Perth in a ceremonious manner on the 9th of January; but he could not conceal his mortification, on finding how much his forces were reduced in number. It was, nevertheless, determined that he should be crowned at Scone on the 23d. If he was disappointed with his adherents, they were no less so with him. Whether from natural softness of character, or through the influence of his late malady, or from despair of his present circumstances,

he appeared exceedingly tame and inanimate; quite the reverse, in every respect, of the bold and stirring chief required for such an enterprise.

The Duke of Argyle, having now received large reinforcements from England, besides three thousand Dutch troops, sent in terms of the treaty of Utrecht, found himself as superior in numbers to the Earl of Mar as that general had been to him in the early part of the campaign. On the 23d of January, the day on which the Chevalier was to have been crowned, the royalist troops commenced their march upon Perth, through deep snow. To retard their progress, all the villages upon the road were burned by the insurgents. It was now debated at Perth whether they ought to remain within the town and defend themselves against the royal forces, who, in this weather, must suffer severely in the fields, or to march northward and disperse. A great part of the clans were anxious in the highest degree for a battle with the duke; but the safety of the Chevalier's person was a consideration which precluded all desperate hazards. It was resolved to vacate Perth. Accordingly, on the 30th of January, a day ominous to the House of Stuart, from its being the anniversary of the death of Charles I., the remains of the Highland army deployed across the river, then covered with thick ice, and marched to Dundee. The duke entered the town with his vanguard, only twelve hours after the rear-guard of the insurgents had left it. But the state of the roads rendered it impossible for him, with all the appurtenances of a regular army, to overtake the light-footed mountaineers. He followed on their track towards Aberdeen, at the distance of one or two marches behind them. At Montrose, the Chevalier and the Earl of Mar provided for their own safety by going on board a French vessel. The army, which had been fast declining by the way, was finally disbanded on the 7th of February at Aberdeen, after which every man shifted for himself. Thus ended the insurrection of 1715, an enterprise begun without concert or preparation, and which languished so much throughout all its parts, that it could hardly be considered in any other light than as an appearance of certain friends of the House of Stuart in arms.

The Earl of Derwentwater and the Viscount Kenmure were the only individuals of distinction who suffered death for this rebellion. They were beheaded on Tower Hill on the 24th of February. All the rest of the noblemen and gentlemen taken at Preston either made their escape from Newgate, which on this occasion manifested a peculiar irretentiveness, or were pardoned. About twenty inferior persons were executed. There were,

however, at least forty families of distinction in Scotland whose estates were forfeited. It is to be mentioned, to the honour of the Argyle family, that they counselled lenient measures, and set the example by not taking advantage of the law against such of their vassals as had forfeited their estates into their hands as superiors.

The miserable failure of this effort for the House of Stuart, and its dismal consequences, neither allayed the wishes nor extinguished the hopes of the Jacobite party. Firm in the principle of hereditary right, convinced that the prosperity and happiness of the country could only be secured through their legitimate prince, seeing in every shortcoming and error of the reigning house and ministry confirmation of their doctrines, they never once faltered in believing that a restoration was worthy of a civil war. They only admitted now, that, for success, the assistance of some foreign state was indispensable.

Unfortunately for the hopes of the party, the favour of France for the Stuart cause was at this time lost, in consequence of the necessity which the Regent Orleans felt himself under of cultivating the alliance of Britain, that he might strengthen himself against the Spanish branch of the House of Bourbon. Even a home could no longer be afforded by France for the unfortunate son of James VII.; and it now occurs, as a curious instance of the vicissitudes of fortune among historical persons, that the diplomate who negotiated for his expulsion beyond the Alps (the Earl of Stair) was the grandson of one whom James VII. had driven to Holland little more than thirty years before.

Rather oddly, while the Stuart party lost France, prospects opened to them in quarters wholly new. It pleased the half-crazed Charles XII. of Sweden to take umbrage at George I. for aid given to some of his enemies; and he formed the resolution to dethrone the British monarch, and replace his rival. There was only a total want of ships of war and transports for effecting this object. Even from the great rival of the Swede, Peter of Russia, some hopes were at one time entertained. At length, Spain, under the ambitious politics of her celebrated minister Alberoni, found it for her interest to take up in a decided manner the cause of the Stuart. In spring 1719, an expedition, comprehending a few companies of infantry and a considerable quantity of arms, passed from St Sebastian to the isle of Lewis, under the care of the Earl Marischal and the Marquis of

Tullibardine, designing to raise and arm the Highland clans. A landing was effected in Loch Alsh amongst the friendly Mackenzies, whose chief, the Earl of Seaforth, accompanied the expedition, and very quickly there were a thousand natives in arms, in addition to the Spanish companies. But a foreign force of such a trivial character was quite insufficient to induce a general rising. While the Jacobite chiefs lingered in Glenshiel, with only about fifteen hundred men in arms, a government force of rather superior numbers was conducted northward by General Wightman. It would have been easy to prevent this force from entering the Mackenzie country; but no attempt to that effect was made. The two parties came into conflict on the 11th of June, and the royal commander had 142 men killed and wounded, without accomplishing a decisive victory. It was seen, however, by the Jacobite chiefs, two of whom were wounded, that nothing more could be effected at present; and it was therefore arranged that the Spanish troops should next day surrender themselves, while the Highlanders should disperse. General Wightman was happy to carry southwards 274 Spanish prisoners, without attempting to inflict any punishment upon the rebels.

For some years afterwards, the agents of the Stuart prince were actively engaged in keeping up his interest in Scotland. A large proportion of the Highland clans and of the Lowland nobility and gentry, along with the entire body of the Episcopalian clergy, were his friends; but with the great bulk of the Presbyterian middle classes his pretensions found little favour, and in the constantly increasing comfort of the people through the pursuits of peaceful industry his chance was always becoming less. Having married a Polish princess, he became in 1720 the father of a prince named Charles Edward, who was destined to make one last and brilliant, but unsuccessful effort for the restoration of the family.

King George I., dying in June 1727, was quietly succeeded by his son George II., with little change in the Whig set of statesmen by which the affairs of the country had long been conducted. During the latter years of the first Hanover sovereign, the Duke of Argyle and his brother, the Earl of Ilay, were the men of chief influence in Scotland. It was a period remarkable in several respects, but particularly for the first decided development of the industrial energies of the people, and for considerable changes in their manners and habits. For a number of minor incidents, verging or trenching on the domain of political history, reference must be made to the chronicle.

The strong sense of religious duty at this time 1714. OCT.
connected with the observance of Sunday, is strikingly shewn in the conduct of the deputation sent by the Church of Scotland to present a loyal address to George I. on his accession. Reaching Barnby Moor on a Saturday night, and finding there was no place of public worship which they were ‘clear’ to attend within a reachable distance, ‘we resolved,’ says Mr Hart, ‘to spend the Lord’s Day as well as we could. So each having retired alone for some time in the morning, we breakfasted about ten of the clock, and after that Messrs Linning, Ramsay, Adams, Mr Linning’s man, and I, did shut our chamber-door, and went about worship. I read, sung, and prayed, and then we retired again to our several chambers, and met about two of the clock, and Mr Ramsay read, sung, and prayed; and after that we retired to our several chambers, and met between four and five, supped, and, after supper, Mr Linning read, sung, and prayed, and after we had sat a while we retired, and so prepared for bed. Thus we spent the Lord’s Day at Barnby Moor.’

It may be imagined that no small distress was given to the clergy generally two years after, when it was reported that Mr William Hamilton and Mr William Mitchell, in returning recently from London, had travelled post on a Sabbath-day, with the horn sounding before them. The presbytery of Edinburgh took up the case in great grief and concern, and called the two reverend brethren to give an explanation of their conduct, which fortunately they were able to do very satisfactorily. Arriving at Stilton on a Saturday night, and finding there was no accommodation for the next day but in a public-house, while there was no place where they could rightly join in worship nearer than Stamford—that is to say, no Presbyterian or dissenting meeting-house—they had been induced to start on their journey to the latter place next morning, when, as they were upon post-horses, it was a matter of course, and needful for safety, that they should have a boy going before to blow a horn. The presbytery was satisfied; but one strenuous brother, Mr James Webster, who was not distinguished by a charitable temper, or much moderation of words, broke out upon them on this score in his pulpit—not in a sermon, but in the course of his prayer—and was rebuked on this account by the presbytery.^[467]

1715. FEB.

For many years after the Revolution, the sombre religious feelings of the community forbade even an attempt at the revival of theatrical performances. If there was anywhere an inclination to see Shakspeare, Otway, Congreve, or Addison, put into living forms on the stage, it was restricted to the same obscurity in the breast which entertained it, as devotion to the mass or doubts regarding witchcraft. The plays and other examples of light literature of the age of Anne did at length begin to find their way from London to Edinburgh, there to meet a not wholly ungenial reception from at least that portion of society which professed Episcopacy, not to speak of a certain minority of the gay, who have usually contrived to exist even amidst the most gloomy puritanism. Time, moreover, was continually removing the stern men of the seventeenth century, to be replaced by others of gentler convictions. The natural love of amusement began to assert itself against the pride of asceticism and self-denial. Englishmen were constantly coming in as government officers, or in pursuit of business, and bringing with them new ideas. Thus it came to pass that, about the beginning of the Hanover dynasty, Scotland began to think that it might indulge now and then in a little merriment, and no great harm come of it. It must be owned, however, that during much of the eighteenth century, there was great truth in a simile employed in the preface to a play published in Edinburgh in 1668, which likened the drama in Scotland to ‘a swaggerer in a country church.’^[468]

The very first presentment of any public theatricals that can be authenticated, occurred in the early part of 1715, just before the breaking out of the unfortunate insurrection. We know little about it besides that a corps was then acting plays at the Tennis Court, near Holyrood Palace.^[469]

‘We have now,’ says a contemporary letter-writer, ‘got a playhouse set up here in the Tennis Court, to the great grief of all sober good people; and I am surprised to see such diversions as tend so much to corrupt men’s manners patronised and countenanced by some of whom I expected better things.... Mr Webster and several other ministers have given a testimony against them; and for so doing are mocked by a great many that you would scarce suspect. Particularly, Mr Webster is very much cried out against for saying no more but that whoever in his parish did attend these plays should be refused tokens to the sacrament of the Supper.’^[470]

The presbytery of Edinburgh was alive to the danger of allowing stage-plays to be acted within their borders, and adverted to the Canongate theatricals in great concern on the 23d of March 1715. ‘Being informed,’ they said, ‘that some comedians have lately come to the bounds of this presbytery, and do act within the precincts of the Abbey, to the great offence of many, by trespassing upon morality and those rules of modesty and chastity which our holy religion obligeth all its professors to a strict observance of, therefore the presbytery recommends to all their members to use all proper and prudent methods to discourage the same.’^[471] It is at the same time rather startling to find that three of the ministers who went as a deputation to pay the respects of the Church of Scotland to George I. on his accession in 1714—namely, Mitchell, Ramsay, and Hart—went at Kendal to see the comedy of *Love for Love* acted.

A celebrated total eclipse of the sun, which APR. 22. happened about nine o’clock in the morning of this day, made a great impression in Scotland, as in other parts of Europe, over which the entire shadow passed. The darkness lasted upwards of three minutes, during which the usual phenomena were observed among the lower animals. The Edinburgh bard, Allan Ramsay, heralded the event with a set of verses, embracing all the commonplaces connected with it; adding,

‘The unlearned clowns, who don’t our era know,
From this dark Friday will their ages shew,
As I have often heard old country men
Talk of Dark Monday^[472] and their ages then.’

Whiston, in his *Memoirs*, relates what will be to philosophical persons an amusing anecdote of this eclipse. When the accounts of it were published beforehand in the streets of London, telling when it would commence, and that it would be total, a Mohammedan envoy, from Tripoli, thought the English people were distracted in pretending to 1715. know what God Almighty would do; which his own countrymen could not do. ‘He concluded thus, that God Almighty would never reveal so great a secret to us unbelievers, when he did not reveal it to those whom he esteemed true believers. However, when the eclipse came exactly as we all foretold, he was asked again what he thought of the matter now; his answer

was, that he supposed we knew this by *art magique*; otherwise he must have turned Christian upon such an extraordinary event as this was.'

Mr James Anderson, so honourably known as JULY.
editor of the *Diplomata Scotiæ*, was rewarded for his public services by the appointment of Deputy Postmaster-general, in place of George Mein. A mass of his correspondence, preserved in the Advocates' Library, makes us acquainted with the condition in which he found postal matters, and the improvements which he effected during two or three subsequent years.

We learn that the horse-posts which existed many years back on some of the principal roads, had, ere this time, been given up, and foot-runners substituted, excepting perhaps upon what might be called the *aorta* of the system, from Edinburgh to Berwick. In this manner direct bags were conveyed as far north as Thurso, and westwards to Inverary. There were three mails a week from Edinburgh to Glasgow, and three in return; the runners set out from Edinburgh each Tuesday and Thursday, at twelve o'clock at night, and on Sundays in the morning, and the mails arrived at Glasgow on the evening of Wednesday and Friday, and on the forenoon of Monday. For this service the Post-office paid £40 sterling per annum, but from the fraudulent dealing of the postmaster of Falkirk, who made the payments, the runners seldom received more than from £20 to £25.

'After his appointment, Mr Anderson directed his attention to the establishment of horse-posts on the western road from Edinburgh. The first regular horse-post in Scotland appears to have been from Edinburgh to Stirling; it started for the first time on the 29th November 1715. It left Stirling at two o'clock afternoon, each Tuesday, Thursday, and Saturday, and reached Edinburgh in time for the night-mail to England. In March 1717, the first horse-post between Edinburgh and Glasgow was established, and we have the details of the arrangement in a memorial addressed to Lord Cornwallis and James Craggs, who jointly filled the office of Postmaster-general of Great Britain. The memorial states that 1715.

the "horse-post will set out for Edinburgh each Tuesday, and Thursday, at eight o'clock at night, and on Sunday about eight or nine in the morning, and be in Glasgow (a distance of thirty-six miles by the post-road of that time) by six in the morning on Wednesday and Friday in summer, and eight in winter, and both winter and summer will be on Sunday night." There

appears to have been a good deal of negotiation connected with the settlement of this post, in which the provost and bailies of Glasgow took part. After some delay, the matter appears to have been arranged to the satisfaction of all parties.

‘A proposition was made at this time to establish a horse-post between Edinburgh and Aberdeen, at a cost of £132, 12s. per annum, to supersede the foot-posts, which were maintained at a cost of £81, 12s. The scheme, however, appears not to have been entertained at that time by the Post-office authorities.

‘In the year 1715, Edinburgh had direct communication with sixty post-towns in Scotland, and in the month of August the total sum received for letters passing to and from these offices and Edinburgh, was £44, 3s. 1d. The postage on letters to and from London in the same month amounted to £157, 3s. 2d., and the postage for letters per the London road, amounted to £9, 19s., making the total sum for letters to and from Edinburgh, during that month, amount to £211, 5s. 3d.—equal to £2535, 3s. per annum.

‘In 1716, the Duke of Argyle, who had then supreme control in Scotland, gave orders to Mr Anderson to place relays of horses from Edinburgh to Inverness, for the purpose of forwarding dispatches to, and receiving intelligence from, the army in the Highlands under General Cadogan. These posts worked upon two lines of roads—the one went through Fife, and round by the east coast, passing through Aberdeen; the other took the central road viâ Perth, Dunkeld, and Blair Athole. These horse-posts were, however, discontinued immediately after the army retired.’^[473]

In October 1723, the authorities of the Edinburgh Post-office announced a thrice-a-week correspondence with Lanark, by means of the horse-post to Glasgow, and a runner thence to Lanark. The official *annonce* candidly owns: ‘This at first sight appears far about’ (it was transforming a direct distance of thirty-one miles into sixty-six). But ‘the Glasgow horse-post running all night makes the dispatch so quick, that 1715. the letters come this way to Lanark in twenty, or at most twenty-two hours, and from Lanark to Edinburgh in twenty-four hours at most.’

Two Renfrewshire gentlemen, of whose JULY 18. previous dealings with each other in friendship or business we get but an

obscure account, came to a hostile collision in Edinburgh. Mr James Houston, son of the deceased Sir Patrick Houston of that Ilk, was walking on a piece of pavement called the Plainstones, near the Cross, when Sir John Shaw of Greenock came up with a friend, and the two gentlemen, designedly or not, slightly jostled each other. Mr Houston put his hand to his sword, but had not time to draw it before Sir John fell a-beating him about the head and shoulders with his cane, which, however, flying out of his hand, he instantly took to his sword, and before the bystanders could interfere, passed it twice through Mr Houston's body.

It was at first thought the man was slain outright; but he was surviving in a sickly state in the ensuing January, when he raised a criminal prosecution against the knight of Greenock, and succeeded in obtaining from him a solatium to the amount of five hundred pounds.^[474]

On the breaking out of the Rebellion this month, SEP. there was a run upon the Bank of Scotland, rather encouraged by the directors than otherwise, from a desire to escape the responsibility and danger of keeping money during such a critical time. When the whole coin was drawn out, the Bank rendered up about thirty thousand pounds of public money which lay in its hands, that it might be lodged in the Castle, and then very calmly stopped payment, or rather discontinued business, intimating that their notes should bear interest till better times should return. In May 1716, the troubles being over, the Bank began to take in their notes and resume business as usual.^[475]

At this crisis, when a formidable insurrection SEP. 29. was breaking out, the officers intrusted with the support of the government were not in the enjoyment of that concord which is said to give strength. The Justice-clerk (Cockburn of Ormiston) was on bad terms with both the Earl of Ilay and the Lord Advocate, Sir David 1715. Dalrymple. The animosity between two of these men came to a consummation which might be said to prefigure the celebrated wig-pulling of Sir Robert Walpole and Lord Townshend. The Earl of Ilay writes at this date from Edinburgh: 'There has happened an accident which will suspend

the Justice-clerk's fury against me; for he and the King's Advocate have had a *corporal dispute*; I mean literally, for I parted them.'

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In a letter of this date, written at Musselburgh by the Rev. J. Williamson, minister of that place, some recent domestic events are alluded to—as 'the lamentable murder of Doctor Rule last week by Craigmillar's second son, and the melancholy providence of a jeweller's servant, who was under some dejection for some time, and did, on Monday last, immediately after sermon, at Leith, run into the sea deliberately, and drown himself.' There had been a new election of Scots peers at Holyrood for the first parliament of the new reign, and they were all of one sound loyal type—'a plain evidence of our further slavery to the English court.' In reference to this, a fruit-woman went about the Palace-yard, crying: 'Who would buy good pears, old pears, new pears, fresh pears—rotten pears, sixteen of them for a plack!'

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Died, William Carstares, Principal of the University of Edinburgh, noted as having been the intimate friend of King William, and his adviser about all Scottish affairs; for which reason, and his influence over the fortunes of the church, he was popularly known by the name of *Cardinal Carstares*. It must ever be considered a great honour to the Church of Scotland to have had the affectionate support of such a man. A sufferer under the severities of the pre-Revolution government, he inclined, when his day of power came, to use it with moderation. His temperate counsels and practice are believed to have had a great effect in smoothing the difficulties which at first surrounded the Presbyterian establishment. His probity and disinterestedness have been above all question. King William said 'he had known him long and well, and he knew him to be an Honest Man.' In the midst of the contentious proceedings of this period, to light upon the gentle prudence, the unostentatious worth, and the genial unselfishness of Carstares, has the effect of a fine, soothing melody amidst discord. There are a few anecdotes of this eminent man, which no one can read without feeling his heart improved.

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A newly widowed sister coming from the country to see him, when he was engaged in consultations of importance with some of the officers of state, he instantly left these personages and came to her; insisted, against her remonstrances, on staying a short while with her, and giving her a prayer of consolation; then, having appointed a more leisurely interview, he returned with the tears scarcely effaced from his countenance, to his noble company.

His charities, which were truly diffusive, were often directed to the unfortunate Episcopal clergy. One, named Caddell, having called upon him, he observed that the poor man's clothes were worn out, and discreditable to his sacred calling. Instantly ordering a suit to be prepared for a man of Caddell's size, he took care to have them first tried upon his own person when his friend next waited upon him. 'See,' said he, 'how this silly fellow has misfitted me! They are quite useless to me. They will be lost if they don't fit some of my friends. And, by the by, I daresay they might answer you. Please try them on, for it is a pity they should be thrown away.' Caddell, after some hesitation, complied, and found that the clothes fitted him exactly. With his hard-wrung permission, they were sent home to him, *and he found a ten-pound note in one of the pockets.*

It is said that many of the 'outed' clergy were in the custom of receiving supplies, the source of which they never knew till Mr Carstares's death. At his funeral, two men were observed to turn aside together, quite overcome by their grief. Upon inquiry, it was found they were two nonjurant ministers, whose families, for a considerable time, had been supported by the benefactions of him they were laying in the grave.^[478]

If the partisans of particular doctrines and formulæ were to try occasionally upon each other the effect of kindly good offices such as these, might they not sometimes make a little way with their opponents, instead of merely exasperating and hardening them, as, under existing circumstances, they almost invariably do?

John Kellie, corporal in the Earl of Stair's regiment, was put into the Edinburgh Tolbooth for killing John Norton, sergeant of the same regiment, in a duel near Stirling. He was liberated at the bar, on the 23d July ensuing.^[479]

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The fighting of duels by private soldiers, now never heard of, seems then to have been not uncommon. The *Edinburgh Courant* of February 16, 1725, states: ‘This morning, two soldiers of the regiment that lies in the Canongate were whipped for fighting a duel.’

The Whig government of George I., having now MAY 21. got the lay Jacobites effectually put down, bethought itself of the clergy of the defeated party, the Episcopalians, who had made several active demonstrations during the late insurrection, and constantly stood in a sort of negative rebellion, in as far as they never prayed for the king *de facto*. Under a prompting from a high quarter, the Commissioners of Justiciary now ordered the advocate-depute, Duncan Forbes, to proceed against such of the Episcopal clergy in Scotland as had not prayed for King George, or otherwise obeyed the late Toleration Act by registering orders from a Protestant bishop. The consequent proceedings reveal to us a curious view of the condition of Episcopacy at that time in Edinburgh—at once comprehending a large number of clergy, and existing in the greatest obscurity.

There were Mr William Abercrombie and Mr David Freebairn, Mr Robert Marshall and Mr William Wylie, each described as ‘preacher in the Episcopal meeting-house in Bailie Fyfe’s Close;’ Mr George Johnston, Mr Robert Keith, and Mr Andrew Lumsdain, severally described as ‘preacher in the Episcopal meeting-house in Barrenger’s Close;’ Mr Jasper Kellie, ‘preacher in the Episcopal meeting-house below the Fountain-well;’ Mr Thomas Rhind, ‘preacher in the Episcopal meeting-house in Sandilands’ Close;’ Mr George Grahame, ‘preacher and user of the English Liturgy in his own house, to which many do resort as an Episcopal meeting-house, in Canongate-head;’ Mr Andrew Cant, Mr David Lambie, Mr David Rankine, and Mr Patrick Middleton, ‘preachers in the Episcopal meeting-house in Skinner’s Close;’ Mr Henry Walker and Mr Patrick Home, each described as ‘preacher in the Episcopal meeting-house in Todrig’s Wynd;’ Mr Robert Calder, ‘preacher, sometimes in Edinburgh, sometimes in Tranent’ [the reputed author of *Scots Presbyterian Eloquence Displayed*]; Mr William Milne and Mr William Cockburn, ‘preachers in the 1716. Episcopal meeting-house in Blackfriars’ Wynd’ [the latter probably he who had lately been chased by the mob out of Glasgow]; Mr James Walker,

‘preacher in the Episcopal meeting-house in Dickson’s Close;’ Mr Alexander Sutherland, senior, and Mr Robert Chein, ‘preachers in the Episcopal meeting-house at the back of Bell’s Wynd.’ Thus, we see there were ten places of worship in Edinburgh—all in retired situations, and, strange to say, all within two hundred yards or so of each other; having in all twenty-two ministers; being considerably more than the number of the Established clergy then in Edinburgh; but in what poverty they lived may be partly inferred from the fact, that Thomas Ruddiman, the grammarian, when attending an Episcopal meeting-house in Edinburgh in 1703, paid only ‘forty shillings’ (3s. 4d.) for his seat for two years.^[480]

Besides the twenty-two Edinburgh clergy, there were Mr Arthur Miller, ‘preacher in the Episcopal meeting-house in Leith,’ and Mr Robert Coult and Mr James Hunter, ‘Episcopal preachers in Mussleburgh,’ all involved in the same prosecution.

The result of their trial was a sentence, applicable to all except Mr William Cockburn, forbidding them to exercise their ministerial functions till they should have fulfilled the requirements of the law, and americiating them in twenty pounds each for not praying for King George. The only visible difference between the old persecutions and this was, that there was a populace to howl in the one case, and not in the other. However, the authorities were humane. The magistrates of Edinburgh were content to see that letters of ordination were registered. When the Prince of Wales, acting as regent, some time after sent them a secretary of state’s letter, complaining that the sentence was not fully carried out—the object being to compel a praying for his father—the magistrates applied for instructions to the commissioners of Justiciary, and were told that, having once passed sentence, the court could do nothing more in the case. So the Episcopal meeting-houses in Bailie Fyfe’s, Barrenger’s, Sandilands’, and other closes went on as before.^[481]

William Mure of Caldwell travelling with a party of friends from Edinburgh to Ross-shire, came the first stage—namely, to the Queensferry—in a coach, and afterwards proceeded on horseback. Writing an account of his journey to his wife, from Chanonry, August 30, he says: ‘We came in coach to the Ferry on Friday; and though we were once overturned, yet none of us had any

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misfortune.’ Probably Mr Mure considered himself as getting off very well with but one overturn in a coach-journey of eleven English miles. He goes on: ‘We came that night to Perth, where the Master of Ross and Lady Betty met us. On Saturday, we came to Dunkeld, and were all night with the Duke of Athole. On Sunday, after sermon, we left the ladies there, and came to the Blair.’ The ladies probably had scruples about Sunday travelling; but Mr Mure, although a man of notably religious character, appears to have had none. ‘On Monday,’ he adds, ‘we made a long journey, and went to Glenmore, where my Lord Huntly’s fir-woods are. On Tuesday, we came to Kilravock’s house [Kilravock], and yesternight came here, which is the first town in the shire of Ross.’^[482] Thus a journey of about 170 miles occupied in all six days.

In April 1722, the king being about to visit Hanover, certain Scottish lords, amongst others, were appointed to attend him. It is intimated in a London paper of April 28,^[483] that they set out from Edinburgh for this purpose on the previous Monday, the 23d; and ‘the roads being laid with post-horses, they are expected here as to-morrow.’ That is, the journey would occupy in the way of posting from Monday to Sunday, or seven days. It was one day more than the time occupied in a journey from London to Edinburgh by the Duke of Argyle in September 1715, when he posted down in the utmost haste, with some friends, to take command of the troops for the resistance to the insurgent Earl of Mar.

It appears that about this time there were occasional packet-ships, by which people could travel between Edinburgh and London. In 1720, the *Bon Accord*, Captain Buchanan, was advertised as to sail for London on the 30th June, having good accommodation for passengers, and ‘*will keep the day, goods or no goods.*’ Two years later, the ‘*Unity* packet-boat of Leith’ was in like manner announced as to proceed to London on the 1st September, ‘goods or no goods, wind and weather serving, having good accommodation for passengers, and good entertainment.’ The master to be spoke with in the Laigh Coffee-house.^[484] But this mode of transit was occasionally attended with vicissitudes not much

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less vexatious than those of the pious voyager of the *Æneid*. For example, we learn from a paragraph in an Edinburgh newspaper, on the 15th November 1743, that the Edinburgh and Glasgow packet from London, ‘after having great stress of weather for *twenty days*, has lately arrived safe at Holy Island, and is *soon* expected in Leith harbour.’

During the decade 1720–30, return chaises for London, generally with six horses, are occasionally advertised. The small amount of travelling which then prevailed is marked by the fact, that we find such a conveyance announced on the 11th of May to set out homeward on the 15th or 16th, and on the 18th re-advertised as to go on the 2d or 3d of June, no one having come forward in the interval to take advantage of the opportunity. We find, however, in 1732, that a periodical conveyance had at length been attempted. The advertisement states, ‘that the Stage Coach continues to go from the Canongate for London, or any place on the road, every Wednesday fortnight. And if any gentleman want a *by-coach*, they may call at Alexander Forsyth’s, opposite to the Duke of Queensberry’s Lodging, where the coach stands.’

In May 1734, a comparatively spirited effort in the way of travelling was announced by John Dale and three other persons—namely, a coach to set out towards the end of this week [pleasant indefiniteness!] for London, or any place on the road, to be performed in nine days, or three days sooner than any other coach that travels the road.’

The short space between the two populous towns of Edinburgh and Leith must have been felt as a particularly favourable field for this kind of enterprise; and, accordingly, a ‘Leith stage’ was tried both in 1610 and 1660,^[485] but on both occasions failed to receive sufficient encouragement. In July 1722, we are informed that, on the 9th instant, ‘two stage-coaches are to begin to serve betwixt Edinburgh and Leith, and are to go *with or without company* every hour of the day. They are designed to contain six persons, each paying threepence during the summer, and fourpence during the winter for their fare.’

This day met at Edinburgh a set of commissioners appointed under a late act ‘to inquire of the estates of certain traitors, and of popish recusants, and of estates given to superstitious uses, in order to raise money out of them for the use of the public.’ The first and most prominent object was to appropriate the lands of the Scottish nobles and gentlemen who had taken part in the late insurrection for the House of Stuart. Four out of the six commissioners were Englishmen, members of the House of Commons, and among these was the celebrated Sir Richard Steele, fresh from the literary glories he had

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achieved in the *Tatler*, *Spectator*, and *Guardian*, from his sufferings in the Whig cause under Anne, and the consolatory honours he attained under the new monarch.

It was a matter of course that strangers of such distinction should be honoured in a city which received few such guests; and doubtless the government officials in particular paid them many flattering attentions. But the commissioners very soon found that their business was not an easy or agreeable one. There was in Scotland plenty of hatred to the Jacobite cause; but battling off its adherents at Sheriffmuir, and putting down its seminaries, the Episcopal chapels, was a different thing from seeing an order come from England which was to extinguish the names and fortunes of many old and honourable families, and turn a multitude of women and children out of house and home, and throw them upon the charity of their friends or the public. Most of the unfortunates, too, had connections among the Whigs themselves, with claims upon them for commiseration, if not assistance; and we all know the force of the old Scottish maxim—eternal blessings rest on the nameless man who first spoke it!—that *bluid is thicker than water*.

It was with no little surprise and no little irritation that these English Whig gentlemen discovered how hard it was to turn the forfeited estates into money, or indeed to make any decent progress at all in the business they came about. The first and most vexatious discovery they made was, that there was a code of law and frame of legal procedure north of the Tweed different from what obtained to the south of it. The act was framed with a regard to the practices of English law, which were wholly unknown and could not be recognised in Scotland. Then as to special impediments—first came the Scotch Court of Exchequer, with a claim under an act of the preceding year, imposing a penalty of five hundred pounds and loss of liferents and whole movables on every suspected man who did not deliver himself up before a certain day: all of the men engaged in the late insurrection had incurred this penalty; the affair came under the Exchequer department; and it was necessary to discriminate between what was forfeited by the one act and what was forfeited by the other. There was something more obstructive, however, than even 1716. the Scottish Exchequer. The commissioners discovered this in the form of a body called the Court of Session, or, in common language, ‘the Fifteen,’ who sat periodically in Edinburgh, exercising a mysterious influence over

property throughout the country, and indulging in certain phrases of marvellous potency, though utterly undreamed of in Southern Britain. Here is how it was. The act had, of course, admitted the preferable claims of the creditors of the traitors, and of those who had claims for marriage and other provisions on their estates. On petitions from these persons—in whose reality the commissioners had evidently a very imperfect faith—this Court of Session had passed what, in their barbarous jargon, they called *sequestrations* of the said estates, at the same time appointing factors to uplift the rents, for the benefit of the aforesaid persons in the first place, and only the commissioners in the second. What further seemed to the commissioners very strange was, that these factors were all of them men notably disaffected to the Revolution interest, most of them confidential friends, some even the relatives, of the forfeited persons, and therefore all disposed to make the first department of the account as large, and the second as small, as possible. Nor was even this all, for, as had been pointed out to them by some of the Established clergy of Forfarshire, these factors were persons dangerous to the government. For example, Sir John Carnegie of Pitarrow, factor on the Earl of Southesk's estate, was the man who, on the synod of Angus uttering a declaration in 1712 for the House of Hanover, had caused it to be burned at the head burgh of the shire. John Lumsdain, who was nominated to the charge of the estates of the Earl of Panmure, had greatly obstructed the establishment of the church in the district, and proved altogether 'very uneasy to presbyteries and synods.' Suppose the unruly king of Sweden should land on the east of Scotland, there were all the tenants of those large estates in the obedience of men who would hail his arrival and forward his objects!

The general result was, that the commissioners found themselves stranded in Edinburgh, as powerless as so many porpoises on Cramond sands, only treated with a little more outward respect. One proposal, indeed, they did receive (January 1717), that seemed at first to be a Scottish movement in their favour—namely, an offer from the Lord Advocate (Sir David Dalrymple), *with their concurrence*, to commence actions in the Court of Session for determining the claims of 1716. creditors; but, seeing in this only an endless vista of vexatious lawsuits, they declined it, preferring to leave the whole matter to be disposed of by further acts of the legislature.^{[\[486\]](#)}

By virtue of the treason-law for Scotland, passed SEP. 3.
immediately after the Union, the government this day suddenly removed eighty-nine rebel prisoners from Edinburgh to Carlisle, to be there tried by English juries, it being presumed that there was no chance of impartiality in Scotland. The departing troop was followed by a wail of indignant lament from the national heart. Jacobites pointing to it with mingled howls and jeers as a proof of the enslavement of Scotland—Whigs carried off by irresistible sympathy, and unable to say a word in its defence—attested how much the government did by such acts to retard the desirable amalgamation of the two nations. Under the warm feeling of the moment, a subscription was opened to provide legal defences for the unfortunate Scotsmen, and contributions came literally from all sorts and conditions of men. Even the Goodman of the Tolbooth gave his pound. The very government officials in some instances were unable to resist an appeal so thrilling.

The list includes the names of nineteen of the nobility—namely, Errol, Haddington, Rosebery, Morton, Hopetoun, Dundonald, Moray, Rutherglen, Cassillis, Traquair, March, Galloway, Kinnoull, Eglintoune, Elibank, Colville, Blantyre, Coupar, and Deskford, all for considerable sums. Amongst other entries are the following: Lady Grizel Cochrane, £6, 9s.; the Commissioners of Excise, £7, 10s. 6d.; Mr George Drummond, Goodman of the Tolbooth [Edinburgh], £1; John M'Farlane, Writer to the Signet, 10s. 9d.; the Merchant Company, £5; the Incorporation of Goldsmiths, £5; the Incorporation of Tailors, £5; the Incorporation of Chirurgeons, £5; the four Incorporations of Leith (aggregate), £53, 16s. 7d.; the Episcopal Clergy of Edinburgh, £8, 8s.; Magistrates of Haddington (and collected by them), £28; Society of Periwigmakers in Edinburgh, £24, 4s. 3d.; Inhabitants of Musselburgh, Inveresk, and Fisherrow, £20; collected by Lady Grizel Cochrane, at Dumbarton, £30; Colonel Charteris's lady, £5, 7s. 6d.; collected by Lady Grizel Cochrane, from sundry persons specified, £180.

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To do the government justice, the rebel prisoners 1716.
were treated mildly, not one of them being done to death, though several were transported. An attempt was made, two years later, by a commission of Oyer and Terminer sent into Scotland, to bring a number of other Jacobite delinquents to punishment. It sat at Perth, Dundee, and Kelso, without being able to obtain true bills: only at Cupar was it so far effective as to get bills against Lord George Murray, of the Athole family; Sir James Sharpe,

representative of the too famous archbishop; Sir David Threipland of Fingask; and a son of Moir of Stonywood; but it was to no purpose, for the trials of these gentlemen were never proceeded with.^[488]

Captain John Cayley (son of Cornelius Cayley of the city of York), one of the commissioners of his majesty's customs, was a conspicuous member of that little corps of English officials whom the new arrangements following on the Union had sent down to Scotland. He was a vain gay young man, pursuing the bent of his irregular passions with little prudence or discretion. Amongst his acquaintance in Edinburgh was a pretty young married woman—the daughter of Colonel Charles Straiton, well known as a highly trusted agent of the Jacobite party—the wife of John M'Farlane, Writer to the Signet, who appears to have at one time been man of business to Lord Lovat. Cayley had made himself notably intimate with Mr and Mrs M'Farlane, often entertained them at his country-house, and was said to have made some valuable presents to the lady. To what extent there was truth in the scandals which connected the names of Commissioner Cayley and Mrs M'Farlane, we do not know; but it is understood that Cayley, on one occasion, spoke of the lady in terms which, whether founded in truth or otherwise, infinitely more condemned himself. Perhaps drink made him rash; perhaps vanity made him assume a triumph which was altogether imaginary; perhaps he desired to realise some wild plan of his inflamed brain, and brought on his punishment in self-defence. There were all sorts of theories on the subject, and little positively known to give any of them much superiority over another in point of plausibility. A gentleman,^[489] writing from Edinburgh the second day after, says: 'I can hardly offer you anything but matter of fact, which was—that upon

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Tuesday last he came to her lodging after three o'clock, where he had often been at tea and cards: she did not appear till she had changed all her clothes to her very smock. Then she came into a sort of drawing-room, and from that conveyed him into her own bedchamber. After some conversation there, she left him in it; went out to a closet which lay at some distance from the chamber; [thence] she brought in a pair of charged pistols belonging to Mr Cayley himself, which Mr M'Farland, her husband, had borrowed from him some days before, when he was about to ride to the country. What further expressions there were on either side I know not; but

she fired one pistol, which only made a slight wound on the shackle-bone of his left hand, and slanted down through the floor—which I saw. The other she fired in aslant on his right breast, so as the bullet pierced his heart, and stuck about his left shoulder-blade behind. She went into the closet, [and] laid by the pistols, he having presently fallen dead on the floor. She locked the door of her room upon the dead body, [and] sent a servant for her husband, who was in a change-house with company, being about four afternoon. He came, and gave her what money he had in the house, and conducted her away; and after he had absented himself for about a day, he appeared, and afterwards declared before the Lords of Justiciary he knew nothing about it till she sent for him.... I saw his corps after he was cereclothed, and saw his blood where he lay on the floor for twenty-four hours after he died, just as he fell, so as it was a difficulty to straight him.’^[490]

Miss Margaret Swinton, a grand-aunt of Sir Walter Scott, used to relate to him and other listeners to her fireside-tales,^[491] that, when she was a little girl, being left at home at Swinton House by herself one Sunday, indisposed, while all the rest of the family were at church, she was drawn by curiosity into the dining-room, and there saw a beautiful female, whom she took for ‘an enchanted queen,’ pouring out tea at a table. The lady seemed equally surprised as herself, but presently recovering self-possession, addressed the little intruder kindly, in particular desiring her to speak first to her mother *by herself* of what she had seen. Margaret looked for a moment out of the window, and, when she turned about, the enchanted queen was gone! On the return of the family, she spoke to her mother of the vision, was praised for her discretion, and desired to keep the matter from all other persons—an injunction she strictly 1716. followed. The stranger was Mrs M‘Farlane, who, being a relative of the family, had here received a temporary shelter after the slaughter of Captain Cayley. She had vanished from Margaret Swinton’s sight through a panel-door into a closet which had been arranged for her concealment. The family always admired the sagacity shewn in asking Margaret to speak to her mother of what she had seen, but to speak to her *alone* in the first instance, as thus the child’s feelings found a safe vent. It will be remembered that Scott has introduced the incident as part of his fiction of *Peperil of the Peak*.

In the ensuing February, criminal letters were raised against Mrs M'Farlane by the Lord Advocate, Sir David Dalrymple, and the father and brother of the deceased, reciting that 'John Cayley having, on the 2d of October last, come to the house of John M'Farlane in order to make a civil visit, she did then and there shoot a pistol at John Cayley, and thereby mortally wounded him.' Not appearing to stand her trial, she was declared outlaw.^[492] Sir Walter Scott states it as certain, that she was afterwards enabled to return to Edinburgh, where she lived and died;^[493] but I must own that some good evidence would be required to substantiate such a statement.

The romantic nature of the incident, and the fact of the sufferer being an Englishman, caused the story of Mrs M'Farlane to be famed beyond the bounds of Scotland. Pope, writing about the time to Lady Mary Wortley Montagu, breaks out thus: 'Let them say I am romantic; so is every one said to be that either admires a fine thing or does one. On my conscience, as the world goes, 'tis hardly worth anybody's while to do one for the honour of it. Glory, the only pay of generous actions, is now as ill-paid as other just debts; and neither Mrs Macfarland for immolating her lover, nor you for returning to your lord, must ever hope to be compared to Lucretia or Portia.'^[494]

A newspaper which enjoyed a temporary OCT. 20. existence in Edinburgh^[495]—each number consisting of five small leaves—is vociferous with the celebrations of the anniversary of King George's coronation in Edinburgh, Glasgow, Aberdeen, Perth, and other Scottish towns. Ten days later, it proclaims with equal vehemence the rejoicings in the same places in honour of the birthday of the 1716. Prince of Wales. Paradings and firings of musketry by the troops, drinkings of loyal toasts from covered tables at the Cross, bonfires, ringings of bells, form the chief demonstrations. And it is notable that in Dundee, Brechin, and Aberdeen, which we know to have been in those days full of Jacobites, the symptoms of loyalty to Hanover are by many degrees the most ostentatious, there being the more need of course for the friends of the reigning house to exert themselves. In Dundee (where in reality the Jacobites were probably two to one), 'everybody looked cheerful, and vied who should outdo other in rejoicing, except some few of our Jacobite

neighbours, who, being like owls, loved darkness; but care will be taken that they spared not their money by being singular.’

Loyalty is altogether a paradox, appearances with it being usually in the inverse ratio of its actual existence, and the actuality in the inverse ratio of the deserving. No monarch ever enjoyed so much of it as Charles I. Since the days of his sons, when the bulk of the people of Scotland felt themselves under a civil and ecclesiastical tyranny, the demonstrations at market-crosses on royal birthdays had not been so violent as now, when a new family, about whom nobody cared or could care, occupied the throne. Nor did these again become equally loud till the time of George III., when Wilkes prosecutions, losses of American colonies, and unjustifiable wars with French reformers, made loyalty again a needful article, and king’s-health-drinkings in the highest degree desirable. On the other hand, when rulers are truly worthy of a faithful affection on the part of their people—as in our happy age—one never hears the word loyalty mentioned.

All through the reign of the first George and a great part of that of his successor, the newspaper estimate of human character seems to have had but one element—the attachment of the individual to ‘our present happy establishment in church and state.’ At the end of every paragraph announcing a choice of magistrates in Scotland, it is pointedly stated that they are all friends of the Hanover succession. Such things are, of course, simply the measure of the extent of hatred and indifferency with which the happy establishment and dynasty were regarded, as well as of the danger in which it was the fate of both to exist, from the eagerness of many to get them destroyed.

The same newspaper, while telling us of such grave things as Scottish nobles and gentlemen waiting in the Tower and in 1716. Carlisle Castle for death or for life, as an incensed government might please to dictate, gives us other notices, reminding us of the affecting truism breathed from every sheet of the kind in our own day, that all the affairs of human life, the serious, the comic, the important, the trivial, are constantly going on shoulder to shoulder together. We glance from a hard-wrung pardon for a dozen rebels, or an account of the execution of Sergeant Ainslie, hung over the wall of Edinburgh Castle for an attempt to render the fortress up to the Jacobites—to the let of the lands of Biggarshiels, which ‘sow above eighty bolls of oats,’ and have a good ‘sheepgang’ besides—or

to David Sibbald's vessel, the *Anne* of Kirkcaldy, which now lies in Leith harbour for the benefit of all who wish to transport themselves or their goods to London, and is to sail with all expedition—or to the fact that yesterday the Duke of Hamilton left Edinburgh for his country-seat, attended by a retinue of gentlemen—or to an announcement of Allan Ramsay's forthcoming poem of the *Morning Interview*—for all these things come jostling along together in one month. Nor may the following quaint advertisement be overlooked:

'A young gentlewoman, lately come from London, cuts hair extremely well, dresses in the newest fashion, has the newest fashioned patterns for beads, ruffles, &c., and mends lace very fine, and does all sort of plain work; also teaches young gentlewomen to work, and young women for their work. She does all manner of quilting and stitching. All the ladies that come to her on Monday and Thursday, have their hair cut for sixpence; at any other time, as reasonably as any in town; and dresses the beads on wires cheaper than any one. She lodges in the Luckenbooths, over against the Tolbooth, at one Mr Palmer's, a periwig-maker, up one pair of stairs.'

[\[496\]](#)

Since the Revolution, there had been a constant and eager pressure towards commerce and manufactures as a means of saving the nation from the wretched poverty with which it was afflicted. But as yet there had been scarcely the slightest movement towards the improvement of another great branch of the national economy—namely, the culture of the ground. The country was unenclosed; cultivation was only in patches near houses; farm establishments were clusters of hovels; the rural people, among whom the distinction of master and servant was little marked, lived in the most wretched manner. A large part of rent was paid in produce and by services. Old systems of husbandry reigned without disturbance. Little had yet been done to facilitate communications in the country by roads, as indeed little was required, for all goods were carried on horseback.

The first notable attempt at planting was by Thomas, sixth Earl of Haddington, about the time of the Union. From a love of common country sports, this young nobleman was called away by his wife, a sister of the first Earl of Hopetoun, who desired to see him engaged in planting, for which she had somehow acquired a taste. The domain they had to work upon was a tract of low ground surrounding their mansion of Tyninghame, composing

part of the coast of the Firth of Forth between North Berwick and Dunbar. Their first experiment was upon a tract of about three hundred acres, where it was believed that no trees could grow on account of the sea-air. To the marvel of all, Lord Haddington included, the *Binning Wood*, as it was called, soon became a beautiful sylvan domain, as it continues to this day. To pursue his lordship's own recital: 'I now took pleasure in planting and improving; but, because I did not like the husbandry practised in this country, I got some farmers from Dorsetshire. This made me divide my ground; but, as I knew the coldness of the climate, and the bad effects the winds had, I made stripes of planting between every enclosure, some forty, fifty, or sixty feet broad, as I thought best.... From these Englishmen we came to the knowledge of sowing and the management of grass-seeds. After making the enclosures, a piece of ground that carried nothing but furze was planted; and my wife, seeing the unexpected success of her former projects, went on to another.... There was a warren of four hundred acres, vastly sandy [near the mouth of the Tyne]. A gentleman who had lived some time at Hamburg, one day walking with her, said that he had seen fine trees growing upon such a soil. She took the hint, and planted about sixty or seventy acres of warren. All who saw it at the time thought that labour and trees were thrown away; but to their amazement, they saw them prosper as well as in the best grounds. The whole field was dead sand, with scarce any grass on it; nor was it only so poor on the surface, but continued so some yards down.'^[497] Such was the origin of the famous Tynninghame Woods, which now present eight hundred acres of the finest timber in the country. By means of his Dorsetshire farmers, too, Lord 1716. Haddington became the introducer of the practice of sowing clover and other grass-seeds.

Another early improver of the surface was Sir Archibald Grant of Monymusk (second baronet of the title), whose merits, moreover, are the more remarkable, as his operations took place in a remote part of the north. 'In my early days,' says he, 'soon after the Union, husbandry and manufactures were in low esteem. Turnips [raised] in fields for cattle by the Earl of Rothes and very few others, were wondered at. Wheat was almost confined to East Lothian. Enclosures were few, and planting very little; no repair of roads, all bad, and very few wheel-carriages. In 1720, I could not, in chariot, get my wife from Aberdeen to Monymusk. Colonel Middleton [was] the first who used carts or wagons there; and he and I [were] the first

benorth Tay who had hay, except very little at Gordon Castle. Mr Lockhart of Carnwath, author of Memoirs, [was] the first that attempted raising or feeding cattle to size.’^[498]

‘By the indulgence of a very worthy father,’ says Sir Archibald, ‘I was allowed [in] 1716, though then very young, to begin to enclose and plant, and provide and prepare nurseries. At that time there was not one acre upon the whole estate enclosed, nor any timber upon it but a few elm, sycamore, and ash, about a small kitchen-garden adjoining to the house [a very common arrangement about old Scotch country mansion-houses], and some straggling trees at some of the farmyards, with a small copsewood, not enclosed and dwarfish, and browsed by sheep and cattle. All the farms [were] ill-disposed and mixed, different persons having alternate ridges; not one wheel-carriage on the estate, nor indeed any one road that would allow it; and the rent about £600 sterling per annum, [when] grain and services [were] converted into money. The house was an old castle, with battlements and six different roofs of various heights and directions, confusedly and inconveniently combined, and all rotten, with two wings more modern of two stories only, the half of the windows of the higher rising above the roofs; with granaries, stables, and houses for all cattle and the vermin attending them close adjoining; and with the heath and muir reaching in angles or gushets to the gate, and much heath near. What land was in culture belonged to the farms, by which their cattle and 1716.

dung were always at the door. The whole land [was] raised and uneven, and full of stones, many of them very large, of a hard iron quality, and all the ridges crooked in shape of an S, and very high, and full of noxious weeds, and poor, being worn out by culture, without proper manure or tillage. Much of the land and muir near the house [was] poor and boggy; the rivulet that runs before the house in pits and shallow streams, often varying channel, with banks always ragged and broken. The people [were] poor, ignorant, and slothful, and ingrained enemies to planting, enclosing, or any improvements or cleanness; no keeping of sheep or cattle, or roads, but four months, when oats and bear (which was the only sorts of their grain) was on ground. The farmhouses, and even corn-mills, and manse and school, [were] all poor, dirty huts, [occasionally] pulled in pieces for manure, or [which] fell of themselves almost each alternate year.’^[499]

By Sir Archibald’s exertions, Monymusk became in due time a beautiful domain, well cultivated and productive, checkered with fine woods, in

which are now some of the largest trees to be seen in that part of Scotland.

There is reason to believe that the very first person who was effective in introducing any agricultural improvements into Scotland was an *English lady*. It was in 1706—the year before the Union—that Elizabeth Mordaunt, daughter of the famous Earl of Peterborough, married the eldest son of the Duke of Gordon, and came to reside in Scotland. A spark of her father's enterprising genius made her desire to see her adopted country put on a better aspect, and she took some trouble to effect the object, by bringing down to some of her father-in-law's estates English ploughs, with men to work them, and who were acquainted with the business of *fallowing*—heretofore utterly unknown in Scotland. Her ladyship instructed the people of her neighbourhood in the proper way of making hay, of which they were previously ignorant; and set an example in the planting of muirs and the laying out of gardens. Urged by her counsels, during the first twenty years of her residence in Scotland, two Morayland proprietors, Sir Robert Gordon of Gordonston, and a gentleman named Dunbar, and one Ross-shire laird, Sir William Gordon of Invergordon, set about the draining and planting of their estates, and the introduction of improved modes of culture, including the sowing of French grasses.^[500] It is rather 1716. remarkable that Scotland should have received her first impulse towards agricultural improvements from England, which we have in recent times seen, as it were, sitting at her feet as a pupil in all the various particulars of a superior rural economy.

We are informed that, after the close of the Nov. Rebellion, owing to the number of people cast loose thereby from all the ordinary social bonds, 'thefts, robberies, rapines, and depredations became so common [in the Highlands and their borders], that they began to be looked upon as neither shameful nor dishonourable, and people of a station somewhat above the vulgar, did sometimes countenance, encourage, nay, head gangs of banditti in those detestable villanies.' The tenants of great landlords who had joined the Whig cause were particularly liable to despoliation, and to this extent the system bore the character of a kind of guerilla warfare. Such a landlord was the Duke of Montrose, whose lands lying chiefly in the western parts of Perth, Stirling, and Dumbarton shires, were peculiarly exposed to this kind of rapine. His Grace, moreover, had so

acted towards Rob Roy, as to create in that personage a deep sense of injury, which the Highland moral code called for being wreaked out in every available method. Rob had now constituted himself the head of the broken men of his district, and having great sagacity and address, he was by no means a despicable enemy.

At the date noted, the duke's factor, Mr Graham of Killearn, came in the usual routine, to collect his Grace's Martinmas rents at a place called Chapel-eroch, about half-way between Buchanan House and the village of Drymen. The farmers were gathered together, and had paid in about two hundred and sixty pounds, when Rob Roy, with twenty followers, descended upon the spot from the hills of Buchanan. Having planted his people about the house, he coolly entered, took Mr Graham prisoner, and possessed himself of the money that had been collected, as well as the account-books, telling the factor that he would answer for all to the duke, as soon as his Grace should pay him three thousand four hundred merks, being the amount of what he professed himself to have been wronged of by the havoc committed by the duke upon his house at Craighrostan, and subsequently by the burning of his house at 1716. Auchinchisallen by the government troops. Mr Graham was permitted to write to the duke, stating the case, and telling that he was to remain a prisoner till his Grace should comply with Rob's demands, with 'hard usage if any party are sent after him.'

Mr Graham was marched about by Rob Roy from place to place, 'under a very uneasy kind of restraint,' for a week, when at length the outlaw, considering that he could not mend matters, but might only provoke more hostility by keeping his prisoner any longer, liberated him with his books and papers, but without the money.

Part of the duke's rents being paid in kind, there were *girnels* or grain stores near Chapel-eroch, into which the farmers of the district used to render their quotas of victual, according to custom. 'Whenever Rob and his followers were pressed with want, a party was detached to execute an order of their commanders, for taking as much victual out of these girnels as was necessary for them at the time.' In this district, 'the value of the thefts and depredations committed upon some lands were equal to the yearly rent of the lands, and the persons of small heritors were taken, carried off, and detained prisoners till they redeemed themselves for a sum of money,

especially if they had at elections for parliament voted for the government man.’^[501]

The duke got his farmers armed, and was preparing for an inroad on the freebooter’s quarters, when, in an unguarded moment, they were beset by a party of Macgregors under Rob’s nephew, Gregor Macgregor of Glengyle, and turned adrift without any of their military accoutrements. The duke renewed the effort with better success, for, marching into Balquhiddy with some of his people, he took Rob Roy prisoner. But here good-fortune and native craft befriended the outlaw. Being carried along on horseback, bound by a belt to the man who had him in charge, he contrived so to work on the man’s feelings as to induce him to slip the bond, as they were crossing a river, when, diving under the stream, he easily made his escape. Sir Walter Scott heard this story recited by the grandson of Rob’s friend, and worked it up with his usual skill in the novel bearing the outlaw’s name.

While these operations were going on, the commissioners on the Forfeited Estates were coolly reckoning up the little patrimony of Rob Roy as part of the public spoil of the late rebellion. It is 1716. felt as a strange and uncouth association that Steele, of *Tatler* and *Spectator* memory—kind-hearted, thoughtless Dicky Steele—should have been one of the persons who administered in the affairs of the ceteran of Craigrostan. In the final report of the commissioners, we have the pitiful account of the public gains from the ruin of poor Rob, Inversnaid being described as of the yearly value of £53, 16s. 8½d., and the total realised from it of purchase-money and interest, £958, 10s. There is all possible reason to believe, that it would have been a much more advantageous as well as humane arrangement for the public, to allow these twelve miles of Highland mountains to remain in the hands of their former owner.

Wonder-seekers were at this time regaled with a 1717. JAN. brochure stating how Mr John Gardner, minister near Elgin, fell into a trance, and lay as dead for two days, in the sight of many; and how, being put into a coffin, and carried to his parish church in order to be buried, he was heard at the last moment to make a noise in the coffin; which being opened, he was found alive, ‘to the astonishment of all present.’ Being then carried home, and put into a warm bed, he in a little time coming to himself, ‘related many strange things which he had seen in the other world.’ In the

same publication was a sermon which the worthy man had preached after his recovery.

Mr Gordon of Ellon, a rich merchant of APR. 29.
Edinburgh, lived in a villa to the north of the city, with a family composed of a wife, two sons, and a daughter, the children being all of tender age.^[502] He had for a tutor to his two boys a licentiate of the church, named Robert Irvine, who was considered of respectable attainments, but remarked for a somewhat melancholic disposition. A gloomy view of predestination, derived from a work by Flavel, had taken hold of Irvine's mind, which, perhaps, had some native infirmity, ready to be acted upon by external circumstances to dismal results.

The tutor, having cast eyes of affection upon a servant-girl in his employer's house, was tempted, one day, to take some liberties with her, which were observed and reported by his two 1717.
pupils. He was reprimanded by Mr Gordon for this breach of decorum, which, on an apology from him, was forgiven. The incident sunk into the man's sensitive nature, and he brooded upon it till it assumed proportions beyond the reality, and raised in his heart an insane thirst for revenge. For three days did the wretch revolve the idea of cutting off Mr Gordon's three children, and on the day here noted he found an opportunity of partially accomplishing his morbid desire. It was Sunday, and Mr and Mrs Gordon went to spend the latter part of the day with a friend in the city, taking their little daughter along with them. Irvine, left with the two boys, took them out for a walk along the then broomy slope where St Andrew Square and York Place are now situated. The children ran about gathering flowers and pursuing butterflies, while this fiend-transformed man sat whetting a knife wherewith to cut short their days. Calling the two boys to him, he upbraided them with their informing upon him, and told them that they must suffer for it. They ran off, but he easily overtook and seized them. Then keeping one down upon the grass with his knee, he cut the other's throat; after which he despatched in like manner the remaining one.

The insane nature of the action was shewn by its being committed in daylight in an open place, exposed to the view of multitudes who might chance to look that way from the adjacent city. A gentleman, enjoying his evening walk upon the Castle Hill, did obtain a tolerably perfect view of the

incident, and immediately gave an alarm. Irvine, who had already attempted to cut his own throat, but unsuccessfully, ran from his pursuers to the Water of Leith, thinking to drown himself there; but he was taken, and brought in a cart to prison, and there chained down to the floor, as if he had been a wild beast.

There was a summary process of law for murderers taken as he was *with the red hand*. It was only necessary to bring him next day before the judge of the district, and have sentence passed upon him. In this case, the judge was the Baron Bailie of Broughton, a hamlet now overwhelmed in the spreading streets of the New Town of Edinburgh, but whose court-house existed so lately as 1827.^[503] Till the abolition of heritable jurisdictions in 1747, the bailie of the Baron of Broughton could arraign a criminal before a jury of his own people, and do the highest 1717. judgment upon him. Irvine was tried by the bailie upon the 30th of April, and received sentence of death. During the brief interval before execution, which was but a day, the unhappy wretch was addressed by several clergymen on the heinousness of his crime, and the need of repentance, and, after a time, he began to exhibit signs of contrition. The bloody clothes of the poor children being then exhibited before him, he broke out in tears and groans, as if a new light was shed upon his mind, and he had been able to see his offence in its true character. He then sent a message to the bereaved parents, beseeching their Christian forgiveness to a dying man; and this they very kindly gave.

Irvine was next day hanged at Greenside, having first had his hands hacked off, and stuck upon the gibbet by the knife with which he had committed the murder. His body was thrown into a neighbouring quarry-hole.^[504]

Occurred this day at Edinburgh a thunder-storm, JUNE 10. attended with such remarkable effects, that an account of it was published on a broadside. It was little, perhaps, that it frightened the people off the streets, caused the garrison at the Castle to look well to the powder-magazine, and killed a man and a woman at Lasswade. What attracted particular attention was the fate of a tavern company at Canonmills, where two barbers from the Lawnmarket had come to celebrate the Pretender's birthday over a bottle of ale. They had just drunk to the health of their

assumed monarch—one of the company had remarked with a curse how the bells were not rung or the Castle guns fired on ‘the king’s’ birthday—when a great thunder-clap broke over the house. ‘The people on earth,’ cried one of the party, ‘will not adore their king; but you hear the Almighty is complimenting him with a volley from heaven.’ At that moment came a second stroke, which instantaneously killed one of the barbers and a woman, and scorched a gentleman so severely that he died in a few hours. The rest of the company, being amazed, sent to Edinburgh for doctors to take blood of the gentleman; but the doctors told them they could do no good. They tried to let blood of him, but found none. ‘Their bodies were as soft as wool.’

‘There is none more blind than them that will 1717.
not see: these men may see, if they wilfully will not shut their eyes, that Providence many times hath blasted their enterprises.... These men were contending for that which did not concern them; they were drinking, cursing, and passing reflections—which in all probability hath offended the King of Heaven to throw down his thunder, &c., a warning to all blasphemers, drunkards, swearers, licentious livers, and others.’^[505] It is a little awkward for this theory, that among the killed was but one of the Jacobite barbers, the other and equally guilty one escaping.

The capture of the *fugitate* Rob Roy seeming JUNE.
now an object worthy of the regard of the Duke of Athole, a negotiation took place between them, which ended in Rob being taken into custody of a strong party at Logierait, the place where his Grace usually exercised his justiciary functions, and where his prison accordingly was situated. The outlaw felt he had been deceived, but it did not appear that he could help himself. Meanwhile, the duke sent intelligence of the capture of Rob to Edinburgh, desiring a company of troops to be sent to receive him. Ultimately, however, the duke countermanded the military, finding he could send a sufficiently strong party of his own people to hand over the outlaw to justice.

While preparations were making for his transmission to the Lowlands, Rob entertained his guards with whisky, and easily gained their confidence. One day, when they were all very hearty, he made a business to go to the door to deliver a letter for his wife to a man who was waiting for it, and to

whom he pretended he had some private instructions to give. One of the guard languidly accompanied him, as it were for form's sake, having no fear of his breaking off. Macgregor was thus allowed to lounge about outside for a few minutes, till at last getting near his horse, he suddenly mounted, and was off to Stirlingshire like the wind.^[506]

To have set two dukes upon thief-catching within a twelvemonth or so, and escaped out of the clutches of both, was certainly a curious fate for a Highland cateran, partisan warrior, or whatever 1717. name he may be called by.

Sir Richard Steele appears not to have attended Nov. the business of the Forfeited Estates Commission in Edinburgh during the year 1716, but given his time, as usual, to literary and political pursuits in London, and to a project in which he had become concerned for bringing fish 'alive and in good health' to the metropolis. It was reported that he would get no pay for the first year, as having performed no duty; but those who raised this rumour must have had a very wrong notion of the way that public affairs were then administered. He tells his wife, May 22, 1717, in one of those most amorous of marital letters of his which Leigh Hunt has praised so much, that 'five hundred pounds for the time the commission was in Scotland is already ordered me.' It is strange to reflect that payment of coach-horses, which he, as a man of study, rarely used, and condemned as vain superfluities, was among the things on which was spent the property wrung out of the vitals of the poor Scotch Jacobites.

When the second year's session of the commissioners was about to commence in September 1717, Sir Harry Houghton appears to have proposed that Steele should go at the first, in which case the baronet proposed to relieve him in November; in case he did not go now, he would have to go in November, and stay till the end of January. He dallied on in London, only scheming about his journey, which, it must be admitted, was not an easy one in 1717. He informs his wife: 'I alter the manner of taking my journey every time I think of it. My present disposition is to borrow what they call a post-chaise of the Duke of Roxburgh [Secretary of State for Scotland]. It is drawn by one horse, runs on two wheels, and is led by a servant riding by. This rider and leader is to be Mr Willmot, formerly a carrier, who answers for managing on a road to perfection, by keeping

tracks, and the like.’ Next it was: ‘I may possibly join with two or three gentlemen, and hire a coach for ourselves.’ On the 30th of September, he tells Lady Steele: ‘The commission in Scotland stands still for want of me at Edinburgh. It is necessary there should be four there, and there are now but two; three others halt on the road, and will not go forward till I have passed by York. I have therefore taken places in the York coach for Monday next.’ On the 20th of October: ‘After many resolutions and irresolutions concerning my way of going, I go, God willing, to-morrow morning, by the Wakefield coach, on my way to York and 1717. Edinburgh.’ And now he did go, for his next letter is dated on the 23d from Stamford, to which place two days’ coaching had brought him.

An odd but very characteristic circumstance connected with Steele’s first journey to Scotland was, that he took a French master with him, in order that the long idle days and evenings of travelling might be turned to some account in his acquisition of that language, which he believed would be useful to him on his return. ‘He lies in the same room with me; and the loquacity which is usual at his age, and inseparable from his nation, at once contributes to my purpose, and makes him very agreeable.’

Steele was in Edinburgh on the 5th of November, and we know that about the 9th he set out on his return to London, because on the 11th he writes to his wife from Ayton on the third day of his journey, one (a Sunday) having been spent in inaction on the road. ‘I hope,’ says he, ‘God willing, to be at London, Saturday come se’ennight:’ that is to say, the journey was to take a fortnight. In accordance with this view of the matter, we find him writing on Friday the 15th from Pearce Bridge, in the county of Durham, ‘with my limbs much better than usual after my seven days’ journey from Edinburgh towards London.’ He tells on this occasion: ‘You cannot imagine the civilities and honours I had done me there, and [I] never lay better, ate or drank better, or conversed with men of better sense, than there.’^{[\[507\]](#)}

Brief as his visit had been, he was evidently pleased with the men he met with in the Scottish capital. All besides officials must have felt that he came about a business of malign aspect towards their country; but his name was an illustrious one in British literature, he was personally good-natured, and they could separate the great essayist from the Whig partisan and servant of the ministry. Allan Ramsay would be delighted to see him in his shop

‘opposite to Niddry’s Wynd head.’ Thomson, then a youth at college, would steal a respectful look at him as he stood amongst his friends at the Cross. From ‘Alexander Pennecuik, gentleman,’ a bard little known to fame, he received a set of complimentary verses,^[508] ending thus:

‘Scotia....
Grief more than age hath furrowèd her brow,
She sobs her sorrows, yet she smiles on you;
Tears from her crystal *lambics* do distil,
With throbbing breast she dreads th’ approaching ill,
Yet still she loves you, though you come to kill,
In midst of fears and wounds, which she doth feel,
Kisses the hurting hand, smiles on the wounding STEELE.’

Sir Richard spent part of the summer of 1718 in 1718. Edinburgh, in attendance upon the business of the commission. We find him taking a furnished house for the half-year beginning on the 15th of May (the Whitsunday term in Scotland), from Mr James Anderson, the editor of the *Diplomata Scotiæ*. But on the 29th July he had not come to take possession: neither could he say when he would arrive, till his ‘great affair’ was finished. He promised immediately thereupon to take his horses for Scotland, ‘though I do not bring my coach, by reason of my wife’s inability to go with me.’ ‘I shall,’ he adds, ‘want the four-horse stable for my saddle-horses.’

He appears to have taken the same house for the same period in 1719, and to have revisited Scotland in the same manner in 1720, when he occupied the house of Mr William Scott, professor of Greek in the Edinburgh University.^[509] There is a letter to him from Mr James Anderson in February 1721, thanking him for the interest he had taken in forwarding a scheme of the writer, to induce the government to purchase his collection of historical books. Steele was again residing in Edinburgh in October 1721, when we find him in friendly intercourse with Mr Anderson. ‘Just before I received yours,’ he says on one occasion, ‘I sent a written message to Mr Montgomery, advising that I designed the coach [Steele’s own carriage?] should go to your house, to take in your galaxy, and afterwards call for his star:’ pleasant allusions these probably to some party of pleasure in which the female members of Mr Anderson’s and Mr Montgomery’s families were to be concerned. In the ensuing month, he writes to Mr Anderson from the York Buildings Office in London, regarding an application he had had from

a poor woman named Margaret Gow. He could not help her with her petition; but he sent a small bill representing money of his own for her relief. ‘This trifle,’ he says, ‘in her housewifely hands, will make cheerful her numerous family at Collingtown.’^[510]

These are meagre particulars regarding Steele’s visits to Scotland, but at least serviceable in illustrating his noted kind-1718.heartedness.

‘Kind Richy Spec, the friend of a’ distressed,’

as he is called by Allan Ramsay, who doubtless made his personal acquaintance at this time.

There is a traditionary anecdote of Steele’s visits to Scotland, which has enough of truth-likeness to be entitled to preservation. It is stated that, in one of his journeys northward, soon after he had crossed the Border, near Annan, he observed a shepherd resting on a hillside and reading a book. He and his companions rode up, and one of them asked the man what he was reading. It proved to be the Bible. ‘And what do you learn from this book?’ asked Sir Richard. ‘I learn from it the way to heaven.’ ‘Very well,’ replied the knight, ‘we are desirous of going to the same place, and wish you would shew us the way.’ Then the shepherd, turning about, pointed to a tall and conspicuous object on an eminence at some miles’ distance, and said: ‘Weel, gentlemen, ye maun just gang by that tower.’ The party, surprised and amused, demanded to know how the tower was called. The shepherd answered: ‘It is the *Tower of Repentance*.’

It was so in verity. Some centuries ago, a Border cavalier, in a fit of remorse, had built a tower, to which he gave the name of *Repentance*. It lies near Hoddam House, in the parish of Cummertrees, rendered by its eminent situation a conspicuous object to all the country round.

We are informed by Richard Shiels that Steele, while in Scotland, had interviews with a considerable number of the Presbyterian clergy, with the view of inducing them to agree to a union of the Presbyterian and Episcopal churches—a ‘devout imagination,’ which one would have thought a very few such interviews would have been required to dispel. He was particularly struck with the singular and original character of James Hart, one of the ministers of Edinburgh, who is universally admitted to have been an excellent man, as he was a most attractive preacher. That strange

enthusiast, Mrs Elizabeth West, speaks of a discourse she once heard from him on a passage in Canticles: 'The king hath brought me into his chambers; we will be glad,' where he held forth, she says, 'on the sweet fellowship Christ and believers have together.' 'Oh,' she adds, 'but this was a soul-refreshing sermon to me!' What had most impressed the English moralist was the contrast between the good-humour and benevolence of Hart in his private character, and the severe style in 1718. which he launched forth in the pulpit on the subject of human nature, and on the frightful punishments awaiting the great mass of mankind in another state of existence. Steele called him on this account 'the Hangman of the Gospel.'^[511]

The only other recollection of Steele in Edinburgh which has ever come under the notice of the author, represents him, characteristically, as assembling all the eccentric-looking mendicants of the Scottish capital in a tavern in Lady Stair's Close, and there pleasing the whimsical taste of himself and one or two friends by witnessing their happiness in the enjoyment of an abundant feast, and observing all their various humours and oddities. Shiels also relates this circumstance, and adds that Steele afterwards confessed he had drunk in enough of native drollery to compose a comedy.

Lord Grange tells us, in his *Diary*, of a woman 1717. Nov. in humble life, residing in the Potterrow in Edinburgh, who had religious experiences reminding us of those of St Theresa and Antonia Bourignon, but consonant with orthodox Presbyterianism. Being taken, along with Mr Logan, the minister of Culross, to see her at 'Lady Aytoun's, at the back of the College,' he found her a woman between thirty and forty. At the communion in Leith, a month ago, she had striven to dwell upon the thought of Christ, and came to have 'clear uptakings of his sufferings.' She saw him on the cross, and his deserted sepulchre, 'as plainly as if she had been actually present when these things happened, though there was not any visible representation thereof made to her bodily eyes. She also got liberty to speak to him, and ask several questions at him, to which she got answers, as if one had spoken to her audibly, though there was no audible voice.' Lord Grange admits that all this was apt to look like enthusiasm or delusion; but 'far be it from me to say it is delusion.' Being once at a

communion in Kirkcaldy, ‘it was born in upon her—“Arise and eat, for thou hast a journey to make, a Jordan to pass through.”’ In passing across the Firth of Forth that afternoon, she was upset into the water, but sustained till a boat came to her rescue.

The pious judge seems to have desired much to keep up acquaintance with Jean Brown—for such was her name—and he went several times to see her at her little shop; but the place was so much 1717. crowded with ‘children and people coming in to buy such things as she sells,’ that his wish was frustrated. ‘Afterwards,’ he tells us, ‘I employed her husband [a shoemaker] to make some little things for me, mostly to give them business, and that I might thereby get opportunity now and then to talk with such as, I hope, are acquainted with the ways of God.’

Immediately after the Union, the shrewd-witted 1718. people of Glasgow saw the opportunity which was afforded them of making a profitable trade with the American colonies. They had as yet no vessels of their own, and little means of purchasing cargoes; but diligence, frugality, and patience made up for all deficiencies. There is scarcely anything in our national history more truly interesting than the early efforts of Glasgow in commerce. Her first ventures to Maryland and Virginia were in vessels chartered from Whitehaven. In each vessel, filled with goods, there went a supercargo, whose simple instructions were to sell as many as he could for tobacco, and return home as soon as he had sold all, or had got enough of the plant to fill his vessel, whether the goods were all sold or not, bringing home with him any that remained unsold. In this cautious way were the foundations of the wondrous wealth of Glasgow laid. It was not till now, eleven years after the Union, that the first vessel belonging to Glasgow crossed the Atlantic.

By that time, much of the tobacco-trade had come into the hands of Glasgow merchants. Bristol, Liverpool, and Whitehaven, which had heretofore been the great entrepôts of the trade, opened their eyes with some little surprise when they began to find Glasgow underselling them in this article even among their own retailers. It was the mere frugality of the Scottish traders which gave them this advantage. But the jealousy of their rivals refused to see the true cause. They entered in 1721 into a confederacy to destroy the tobacco-trade of Glasgow, petitioning in succession the

House of Lords and the House of Commons, with utterly unfounded complaints on the subject. The charges of fraud were declared groundless by the upper house; but, in the lower, the just defences of Glasgow were disregarded, through the interest made by her adversaries. 'New officers were appointed at the ports of Greenock and Port-Glasgow, whose private instructions seem to have been to ruin the trade, if possible, by putting all imaginable hardships upon it; bills of equity were exhibited against the merchants in the Court of Exchequer for no less than thirty-three ships' cargoes, by which they were commanded to 1718. declare, on oath, whether or not they had imported in these ships any, and how much, more tobacco than what had been exported, or had paid the king's duty. Vexatious lawsuits of every kind were stirred up against them. Every species of persecution, which malice, assisted by wealth and interest, could invent, to destroy the trade of Glasgow, was put in practice,' and in part successfully, the trade being reduced to a languishing condition, in which it remained for a number of years.^{[\[512\]](#)}

Quiet Mr Wodrow, in his neighbouring Renfrewshire parish, seems to have rather relished any loss or difficulty sustained by this industrious community, being apparently under an impression that wealth was apt to abate the godly habits of the people. He already recognised a party in the city who mocked at the ministry, and everything that was serious. Instead of seventy-two meetings for prayer, which he had known some years before, there were now but four or five; while in their place flourished club-meetings, at which foolish questions were discussed. He adverts to the blow struck at the tobacco-trade through the House of Commons, 'which they say will be twenty thousand pounds loss to that place. I wish it may be sanctified to them.'^{[\[513\]](#)}

We have seen a concert taking place in Edinburgh in 1694, and a very grand one, partly supported by amateurs, presented in celebration of St Cecilia's Day, in the ensuing year. We learn that there was now a weekly meeting of amateurs at the Cross Keys Tavern, kept by one Steil, who is noted as an excellent singer of Scottish songs, and who appears to have possessed a collection of instruments for the use of his guests. This meeting admitted of visitors of both sexes, and was a point of reunion for the *beau monde* of Edinburgh in days while as yet there were neither balls nor

theatres. Its being held in a tavern would be no objection to the ladies. Allan Ramsay, in singing the winter attractions of the city, does not forget that

‘Others can with music make you gay,
With sweetest sounds Corelli’s art display;’

And then adds a picture of the scene:

1718.

‘To visit and take tea the well-dressed fair
May pass the crowd unruffled in her chair;
No dust or mire her shining foot shall stain,
Or on the horizontal hoop give pain.
For beaux and belles no city can compare,
Nor shew a galaxy so made, so fair;
The ears are charmed, and ravished are the eyes,
When at the concert my fair stars arise;
What poets of fictitious beauties sing,
Shall in bright order fill the dazzling ring;
From Venus, Pallas, and the spouse of Jove,
They’d gain the prize, judged by the god of Love.’[\[514\]](#)

A writer of some ability and acuteness, who travelled over Scotland, and wrote an account of his journey, published in 1723, tells us that he was at several ‘consorts’ in Edinburgh, and had much reason to be pleased with the appearance of the ladies. He had never in any country seen ‘an assembly of greater beauties.’ It is not in point here, but it may be stated that he also admired their stately firm way of walking ‘with the joints extended and the toes out,’ and thought their tartan head-mantles of scarlet and green at church as gay as a parterre of flowers. At the same time, he knew them to be good housewives, and that many gentlemen of good estate were not ashamed to wear clothes of their wives’ and servants’ spinning.[\[515\]](#)

To return to music—it looks like a mark of rising taste for sweet sounds, that we have a paragraph in the *Edinburgh Courant* for July 12, 1720, announcing that Mr Gordon, who had lately been travelling in Italy for his improvement in music, was daily expected in Edinburgh, ‘accompanied with Signor Lorenzo Bocchi, who is considered the second master of the violoncello in Europe, and the fittest hand to join Mr Gordon’s voice in the consorts which he designs to entertain his friends with before the rising of the session.’ On the 28th of May 1722, at the request of several gentlemen of Glasgow, Mr Gordon was to give a ‘consort’ in that city; and immediately after we hear of him publishing ‘proposals for the improvement of music in Scotland, together with a most reasonable and

easy scheme for establishing a Pastoral Opera in Edinburgh.’^[516] Signor Bocchi seems to have been able to carve a 1718. professional position for himself in Edinburgh, for in 1726 we find him publishing there an opera of his own composition, containing twelve sonatas for different instruments—violin, flute, violoncello, &c., with a libretto in broad Scotch by Allan Ramsay, beginning:

‘Blate Johnnie faintly tauld fair Jean his mind.’

It was about this time that the native music of Scotland—those beautiful melodies which seem to have sprung up in the country as naturally and unperceivedly as the primroses and the gowans—were first much heard of to the south of the Tweed. William Thomson, who was a boy at the Feast of St Cecilia in 1695, had since grown up in the possession of a remarkably sweet voice for the singing of Scots songs, and having migrated to London, he was there so well received, that Scottish music became fashionable even amidst the rage there was at the same time for the opera and the compositions of Handel. A collection of Scottish songs, with the music, under the title of *Orpheus Caledonius*, was published by Thomson in London in 1725, with a dedication to the Princess of Wales, and republished in an extended form in 1733.

Of the other performers at the Feast of St Cecilia, a few were still flourishing. Adam Craig, a teacher of music, played second violin at the gentlemen’s concerts with high approbation. Matthew M’Gibbon was no more; but he had left a superior representative in his son William, who had studied under Corbet in London, and was now leader and first-violin at the concerts, playing the music of Corelli, Geminiani, and Handel with great skill and judgment. A collection of Scots tunes by William M’Gibbon, published in 1742 and subsequent years, was long in high repute.^[517] Of the St Cecilia amateurs we only hear now of Lord Colville, who seems to have been a great enthusiast, ‘a thorough master of music,’ and is said to have ‘understood counterpoint well.’ His instruments were the harpsichord and organ. He had made a large collection of music, much of it brought home to him from Italy.

‘The god of Music joins when Colvil plays,
And all the Muses dance to Haddington’s essays;
The charms are mutual, piercing, and compleat—
This in his art excels, and that in wit.’

Robert Lord Colville of Ochiltree (for it is 1718.
necessary so to distinguish him from Lord Colville of Culross) died
unmarried in March 1728, after having been in possession of the peerage
for fifty-seven years. Wodrow tells a gossip's story about his lordship
having 'walked' for some time after his apparent departure from the earth.
[\[518\]](#)

After a comparatively private form of entertainment had been in vogue
some years, the lovers of harmony in Edinburgh constituted themselves in
1728 into a regular society, with a governor and directors, the entire number
of members being seventy, and, for the sake of room, transferred their
meetings to St Mary's Chapel, where they continued to assemble for a long
course of years.[\[519\]](#) The progress of their gay science is marked by the
publication, in 1730, of a collection of Scots tunes for the harpsichord or
spinnet by Adam Craig, appropriately dedicated to the Honourable Lords and
Gentlemen of the Musical Society of Mary's Chapel, as 'generous
encouragers and promoters of music'—this collection being the first of the
kind that was published,[\[520\]](#) although there were several previous collections
containing Scottish tunes, mingled with others.

At this time the house of the Rev. Mr M'Gill, JUNE.
minister of Kinross, was represented as troubled with spirits. The first fact
that excited attention, was the disappearance of some silver spoons and
knives, which were soon after found in the barn, stuck up in straw, with a
big dish all nipped in pieces. Next it was found that no meat was brought to
table but what was stuck full of pins. The minister found one in an egg. His
wife, to make sure against trick, cooked some meat herself; but behold,
when presented at table, 'there were several pins in it, particularly a big pin
the minister used for his gown. Another day, there was a pair of

sheets put to the green, 1718. 1728. MAY.
among other people's, which were all nipped to pieces, and none of the
linens belonging to others troubled. A certain night several went to watch
the house, and as one was praying, down falls the press, wherein was
abundance of lime-vessels, all broke to pieces; also at one other time the
spirits, as they call them, not only tore the clothes that were locked up in a
coffer, to pieces, but the very laps of a gentlewoman's hood, as she was

walking along the floor, were clipped away, as also a woman's gown-tail and many other things not proper to mention. A certain girl, eating some meat, turned so very sick, that, being necessitate to vomit, [she] cast up five pins. A stone thrown down the chimney *wambled* a space on the floor, and then took a flight out at the window. There was thrown in the fire the minister's Bible, which would not burn; but a plate and two silver spoons melted immediately. What bread is fired, were the meal never so fine, it's all made useless. Is it not very sad that such a godly family, that employ their time no otherwise but by praying, reading, and serious meditation, should be so molested, while others who are wicked livers, and in a manner avowedly serve the Wicked One, are never troubled?' [\[522\]](#)

Wodrow, who relates these particulars, soon after enters in his note-book: 'I hear of a woman in Carstairs parish, that has been for some time troubled with apparitions, and *needs much sympathy*.' [\[523\]](#)

It seems to have been a season of unusual spiritual activity. During September, and for some time after, the house of William Montgomery, mason, at Burnside, Scrabster, near Thurso, in the extreme north of Scotland, was tormented in an unusual manner by cats, which flocked in great numbers in and about his dwelling, making a frightful noise. Montgomery himself was from home; but his wife was so much troubled by this unaccountable pest, as to be obliged to write to him requiring his return, as otherwise she would be obliged to remove to Thurso. The goodman did return, and became witness to the torment that was going on, as many as eight cats, totally unknown in the neighbourhood, being sometimes assembled about his fireside in a single evening, 'making the night hideous.' One servant-girl left service on account of the nightly disturbance. Another, who came in her place, called to her master one evening that 'the cats were speaking among themselves,' for so it 1718. had appeared to her they were doing, so human-like were their cries.

On a particular night, the 28th of November, Montgomery became unusually exasperated by these four-footed tormentors, and resolved to attack them with lethal weapons. One having got into a chest which had a hole in it, he watched with his drawn sword till he saw the creature put her head out at the hole, when he struck hard, yet failed to effect decapitation. Opening the chest, a servant named Geddes struck the animal with his master's dirk in her hinder quarter, pinning her to the timber; yet after all

she got out. Ultimately, Montgomery battered this cat pretty effectually, and threw her out as dead; nevertheless, they found she had disappeared by the morning. Five nights thereafter, some of the cats coming in upon Geddes in his bed, Montgomery dirked one, and battered its head, till it appeared dead, when he flung it out of doors. Before morning, it too had disappeared. He remarked that the wounds he inflicted brought no blood.

As it had been threatened that none should thrive in his house, William Montgomery entertained no doubt that there was witchcraft in the visitation. When an old woman in the neighbourhood fell ill, he became confirmed in his surmise, and thought himself justified in seeking the interference of the sheriff, though without particularising any delinquent. By this officer, the case was slighted as a piece of popular credulity and ignorance, till, one day in the ensuing February, a certain old woman named Margaret Nin-Gilbert, living in Owst, about a mile and a half from Montgomery's house, 'was seen by some of her neighbours to drop at her own door one of her legs from the middle.' So narrates the sheriff. He adds: 'She being under bad fame for witchcraft, the leg, black and putrefied, was brought to me; and immediately thereafter I ordered her to be apprehended and incarcerated.'

When old ladies begin to unhook their legs, and leave them in public places, it is evident there must be something in it. On the 8th of February, Margaret was examined in presence of two ministers, a bailie, and four merchants of Thurso, and confessed that she was in compact with the devil, who sometimes appeared to her as a great black horse, sometimes as a black cloud, and sometimes like a black hen. She owned to having been present as a cat in Montgomery's house, along with other women similarly transformed, when two of the latter had died of the 1718. wounds inflicted by Montgomery, and she had had her leg broken by him, so that in time it mortified and broke off. Margaret Olson, one of the women she accused, was examined for witch-marks; and several small coloured spots being detected, a needle was thrust in almost to the eye without exciting the least pain; but neither she nor any other person besides Nin-Gilbert could be induced to confess the practice of witchcraft.

Lord Advocate Dundas heard, some weeks after, what was going on in this remote corner of Scotland, and wrote a letter to the sheriff, finding fault with him for proceeding without consultation with the central authority. The local officer apologised on the ground, that he only acted for the Earl of

Breadalbane and Mr Sinclair of Ulbster, and had deemed it proper to communicate directly with them. In the course of a short time, Nin-Gilbert died in prison, and this seems to have been an end to the affair.^[524]

Hitherto, no sort of literary or scientific association had been formed in Scotland. For a long time bypast, almost the only learning that existed was theological, and there was but little of that. In this year, Thomas Ruddiman, who had distinguished himself in Edinburgh by editing the works of Buchanan, and composing the well-known *Rudiments of the Latin Tongue*, joined with the masters of the High School of the city in establishing there an association for improving each other in classical lore, ‘without meddling with the affairs of church or state.’ This body was afterwards joined by a young advocate, subsequently eminent as a judge and a philosophical writer under the name of Lord Kames; afterwards, Mr Archibald Murray and Mr James Cochran, advocates, and Mr George Wishart, one of the ministers of Edinburgh, with some others, became members. ‘Whether their conversations were preserved, or their dissertations published, cannot now be ascertained.’^[525]

This day was commenced a newspaper in DEC. 15. Edinburgh, the first that succeeded in thoroughly planting itself in Scotland, so as to obtain more than an ephemeral existence. It was the adventure of James M'Ewen, bookseller in Edinburgh, and came out under the title of *The Edinburgh Evening Courant*. The paper 1718. appeared in virtue of a formal authority from the magistrates and town-council, to whom M'Ewen was to be answerable for what he should print and publish; and, that this rule might be enforced, he was, ‘before publication, to give ane coppie of his print to [the] magistrates.’^[526] The *Courant* was announced as to contain ample accounts of foreign occurrences, and these derived, not through London prints, but directly from foreign journals. It was intended as a decidedly Whig print, in this respect differing from the *Caledonian Mercury*, which was not long after started in the Jacobite interest.

The *Courant* was from the first successful. James M'Ewen, writing from Edinburgh, January 17, 1719, to the Rev. Mr Wodrow, says: ‘As to our

newspaper, it thrives so far as to be very well liked by all, excepting the violent Jacobites, who hate it, for no other reason but because it is a true and impartial paper. Several gentlemen who were to have had the London papers sent them, have laid them aside, because this contains the substance not only of them, but of the foreign post also.'

In looking over, as it has been my fate to do, the early volumes of the *Courant*, one cannot but groan over the long, dry 'advices' from nearly all parts of Europe, and the wretched meagreness of the department of home intelligence, whole months often elapsing without so much as an obituary notice, or a ship's arrival at Leith. The reason of this unfortunate peculiarity was no other than the civic censorship under which the paper, as we see, was from the beginning placed. Even intelligence in the interest of the government was not in every instance safe. In the course of February 1723, the magistrates seized all the copies of a particular number of the paper, in which there had been an apparently simple paragraph. It regarded Mr Patrick Halden, then under trials before the judges of the Court of Session as presentee of the crown for a seat on the bench—he being a mere creature of the ministry unfit for the position. Fired at the words: 'We do not hear of any great discoveries yet made to his prejudice,' the judges inflicted this punishment upon the publisher, M'Ewen, who then announced the suppression of his paper, 'that our customers in the country may know why they cannot be served with that day's *Courant*, as also *why we have been so sparing all along of home news.*'

It is at the same time evident that the meagreness of the home news was in part caused by mere difficulty of obtaining 1718. authentic accounts of such matters. A rumour as to the death of a person of importance at a distance would arrive. Owing to the sluggishness of posts, its verity could not readily be ascertained. Inserting it on trust, the journalist too often found, in the course of a few days, that the announcement was unfounded. Such is a fair specimen of the way in which false intelligence occasionally got into circulation; and every such case, of course, operated as a motive to caution in future. The publishers, moreover, could not afford to keep sub-editors to go about and ascertain the verity of rumours. As an illustration of the difficulties hence arising—the *Caledonian Mercury* of March 3, 1724, contained the following paragraph: 'We hear that my Lord Arniston, one of the ordinary Lords of Session, is dead;' which was followed in the next number by: 'It was by mistake in our last that my Lord

Arniston was dead, occasioned by the rendezvous of coaches, &c., *hard by his lordship's lodging*, that were to attend the funeral of a son of the Right Honourable the Earl of Galloway; wherefore his lordship's pardon and family's is humbly craved.'

It affords a pleasing idea of the possible continuousness of sublunary things, that the then Whig, but now Conservative *Edinburgh Evening Courant*, which began its career in 1718, and its then Tory, but since liberal rival, the *Caledonian Mercury*, which originated about two years later, are still published in Edinburgh.

The enjoyment during thirty years of 'position' as an establishment, combined with the progressive ideas of the age, was now working some notable changes in the spirit of the Scottish Church.

There was still, of course, a general maintenance of the old doctrines and habits; all was to appearance as it had been—places of worship attended, Sunday observed, discipline kept up; in particular outlying presbyteries, there would even be found a majority of men of the old leaven. When, however, any strenuous Dumfriesshire or Galloway pastor seemed animated by aught of the zeal of a past age, and thereby excited troubles which came under the attention of the General Assembly, he was sure to be snubbed, and, if contumacious, deposed. If a presbytery of the ancient orthodoxy, labouring under fears of backslidings and defections, ventured to reassert, in a public manner, a doctrine that was beginning to be unfashionable, the General Assembly frowned on its forwardness. At 1718. the same time, Mr John Simson, professor of divinity at Glasgow, openly taught doctrines leaning to Arminianism, and even Arianism, and the same venerable court could not, for a number of years, be brought to do more than administer a gentle admonition.

It chanced, one day, that a worthy pastor, Mr Thomas Boston, found in a house which he was visiting a tattered treatise of the bright days of the civil war, written by one Edward Fisher, and entitled *The Marrow of Modern Divinity*. Turning over its leaves, he found it asserting orthodox Puritan doctrines with a simplicity and pathos all its own, particularly one which had lately been condemned by the General Assembly—namely, that, Christ being all in all, a forsaking of sins was not necessary 'to reinstate us in covenant with God.' Here seemed the proper remedy for the alarming

rationalism of the church, and very soon there appeared a new edition of the *Marrow*, under the care of Mr Thomas Hogg, minister of Carnock. The book immediately got into wide circulation, and produced a very decided impression on the public mind, insomuch that the General Assembly felt called upon to issue a prohibition against its being recommended or read.

Thus arose a once famous conflict generally recognised as the *Marrow Controversy*. Dissatisfied with the pronouncement of the church, twelve ministers, including Boston and Hogg, came forward with a Representation, in which they remonstrated in very free terms with the General Assembly, expressing themselves as grieved in an especial manner to find any disfavour shewn to that freedom from the covenant of works which true believers felt to be the chief branch of the precious liberty which Christ had given them, and ‘in which the eternal salvation of souls is wrapped up.’ For sending this paper, the twelve brethren were taken in hand by the Assembly’s commission, condemned, and ordered to stand a rebuke (1723); but, while submitting, for the sake of peace, they took care to utter a protest, which left no room for doubt that they remained unshaken in their opinions. The entire proceedings are far too voluminous for modern patience; but the importance of the affair is undoubted. The ‘Twelve Marrow Men’ may be said to have formed the nucleus of the dissent which was a few years after matured under the name of the Secession.^{[\[527\]](#)}

About eight o'clock this morning, at a spot a little west of Aberdeen, 'there appeared ane army, computed to be the number of 7000 men. This computation was made by a very judicious man, who had long been a soldier in Flanders, and is now a farmer at this place, who with about thirty other persons were spectators. This army was drawn up in a long line in battle-array, were seen to fall down to the ground, and start up all at once; their drums were seen to be carried on the drummers' backs. After it remained more than two hours, a person on a white horse rode along the line, and then they all marched towards Aberdeen, where the hill called the Stocket took them out of sight. It was a clear sunshine all that morning.'

1719. JAN. 29.

October 22d, a second vision of the same kind was seen on the same ground. 'About two thousand men appeared with blue and white coats, clear arms glancing or shining, white ensigns were seen to slap down, as did the former, at which time a smoke appeared, as if they had fired, but no noise. A person on a white horse also rode along the line, and then they marched towards the bridge of Dee. This vision continued on the ground from three hours in the afternoon, till it was scarce light to see them. It was a clear fine afternoon, and being the same day of the great yearly fair held at Old Aberdeen, was seen by many hundreds of people going home, as well as by above thirty that were at their own houses, about half a mile distant. It's observable that the people coming from the fair came through them, but saw nothing till they came up to the crowd that was standing gazing, who caused them to look back.'

[\[528\]](#)

On the night of the 2d of November, the river Don was dried up from a little below Kemnay down to near Old Aberdeen. It was so dry at Inverury and Kintore, that children of five or six years of age gathered up the fish, trouts, and eels, and many people going to a fair passed over dry-shod. The water slowly returned about the middle of the day. The same phenomenon was said to have happened in the Doveran at Banff two days later.

Nov. 2.

[\[529\]](#)

The Commissioners on the Forfeited Estates were left in 1716 in a position of discomfiture, in consequence of the impediments presented by Scottish law and Scottish national feeling. Acts of the legislature enabled them in subsequent years to overcome some of

1719.

their difficulties, and accomplish a tolerable portion of their mission. Not indeed without further impediments from the Court of Session, which, when their former decrees of sequestration were rendered void, and could no longer protect the friends of the forfeited persons in possession, gave efficacy to a new device of these friends, in the form of exceptions which declared that the forfeited persons had never been the real owners of the estates! In their report of 1720, they pathetically advert to this new difficulty, and, as an illustration of its absurdity, state a few cases, in which there had been decrees in favour of more pretended owners than one—Seaforth’s estates, for instance, were by one decree found to belong in full and absolute right to Kenneth Mackenzie of Assint, by another to William Martin of Harwood, by another to Hugh Wallace of Inglistown. For Mar’s estates, there were four of these visionary owners, and for Kenmure’s five! The exceptions were generally founded on conveyances and *dispositions* of the lands which were alleged to have been formerly executed by the attainted persons in favour of children and others. Notwithstanding these obstructions, the commissioners were enabled, in October 1719, to sell Panmure’s estates at £60,400 sterling, Winton’s at £50,482, Kilsyth’s at £16,000, and that of Robert Craw of East Reston at £2364.

By reversals of the decrees in the House of Lords, and the help of a new act, the Commissioners were enabled, in October 1720, to sell a further lot of estates—Southesk’s for £51,549, Marischal’s for £45,333, Linlithgow’s for £18,769, Stirling of Keir’s for £16,450, Threipland of Fingask’s for £9606, Paterson of Bannockburn’s for £9671, besides two others of trifling value. The purchase was in nearly all these cases made by a speculative London company, entitled *The Governor and Company of Undertakers for raising the Thames Water in York Buildings* (commonly called the ‘York Buildings Company’).^[530] The exceptions in the cases of Keir and Bannockburn were purchases probably made by friends of the former owners. For any other persons connected with 1719. Scotland to have come forward to buy these properties on their own account, inferred such an amount of public indignation, if not violence, as made the act impossible, even if there had been any recreant Scot, Whig or Tory, capable in his heart of such conduct.

We shall have occasion, under subsequent dates, to notice certain difficulties of a different and more romantic kind which beset the

Commissioners. But, meanwhile, it may be well to complete the history of their ordinary transactions.

Out of thirty estates left unsold in October 1720, they had succeeded within the ensuing three years in selling nineteen, of which the chief were Lord Burleigh's at £12,610, Macdonald of Sleat's at £21,000, and Mackenzie of Applecross's at £3550, the rest being of inconsiderable amount, though raising the entire sum to £66,236. The principal estate afterwards sold was that of John Earl of Mar at £36,000.

When the Commissioners closed their accounts in March 1725, it appeared that there was a total of £411,082 sterling paid and to be paid into the Exchequer, from which, however, was to be deducted no less than £303,995 of debts sanctioned by the Commissioners, and for which they had issued or were to issue debentures, and £26,120 allowed in the form of grants from the crown. There thus remained, of money realised for public use and to pay the expenses of the Commission, the sum of £84,043, 17s. 5¾d., while properties to the yearly value of £2594 remained undisposed of, including an item so small as 'Feu-duty of some cellars at Leith, part of the Abbacy of Aberbrothick, belonging to the late Earl of Panmure, 11s. 3½d.'

Some curiosity will naturally be felt to know the aggregate expenses of the Commission,^[531] and the balance of results which these left out of the eighty-four thousand pounds. There is a mixture of the ludicrous and sad in the problem, which may be expressed thus: money from the destruction (for public objects) of about fifty of the good old families of Scotland, £84,043; charges for the expense of the destruction, £82,936 = £1107! Walpole would find it hardly a decent purchase-money for a vote in the House of Commons.

By statute passed in 1718,^[532] arrangements had been made regarding the sum of £16,575, 14s.

0½d., which had been left over of the Equivalent money at the Union, after paying sundry claims out of it, and for a further debt of £230,308, 9s. 10d., due by England to Scotland since in equalisation of duties, together with a small sum of interest—the whole amounting to £248,550—also for enabling the king to constitute the bond-holders of this debt into a corporation, which, after St John's Day, 1719, should receive £10,000 annually as interest, until the debt should be redeemed.

DEC.
1719.

Now, the Bank of Scotland had been going on very quietly for some years, with its ten thousand pounds of paid-up capital, realising, as we can infer from some particulars, about a thousand a year of profit from its business. A prosperity so great could not then exist in Scotland without exciting some degree of envy, and also raising up thoughts of rivalry in a certain ardent class of minds. It began to be alleged that *the Bank*, as it was commonly called, was stinted in its means and frigid in its dealings; that it lacked enterprise; that it would be the better of an infusion of fresh blood, and so forth. It had many positive enemies, who tried to detract from its merits, and were constantly raising evil reports about it.^[533] Most deadly of all, there was now this Equivalent Company, with about a quarter of a million of debentures wherewith to engage in further mercantile enterprise, so as to make their ten thousand a year a little better. The boy, with his first shilling burning a hole in his pocket, was but a type of it.

In December 1719, a proposal came from a proprietor of Equivalent stock, to the effect that that stock should be added to the £100,000 stock of the Bank, but with nine-tenths of it returned by the Bank in notes, so that only £25,000 of it should in reality remain active in the new concern. It was proposed that, of the £10,000 of annual interest upon the Equivalent, the proprietors of Bank stock should thenceforward draw two-sevenths, being the proportion of £100,000 to £250,000; and of the £600 a year allowed for management of the Equivalent, the Bank was also to be allowed a proportion. In such a way might the Bank and Equivalent be brought into a union presumed to be beneficial to both parties.

The directors of the Bank received the 1719. proposition as an insidious attempt by a number of outsiders to get into the enjoyment of a portion of their time-bought advantages. They pointed out, in their answer, that the Equivalent stock being only in the receipt of 4 per cent. interest, while the profits of the Bank stock might be reckoned at not lower than 10, the proposal was inequitable towards the Bank. Besides, they did not want this additional stock, finding their present working capital quite sufficient. The proposer was thus repelled for the meantime; but he very quickly returned to the attack.

Under the guidance of this person, there was now formed what was called ‘The Edinburgh Society for insuring of Houses against Loss by Fire’—an arrangement of social life heretofore unknown in Scotland. But,

as often happens, no sooner was this design broached than another set of people projected one of the same kind, with only this slight difference, that, instead of being a company trading for profits, it was a mutual insurance society reserving all profits for the insured. Such was the origin, in 1720, of what afterwards, under the name of ‘the Friendly Society,’^[534] became a noted institution of the Scottish capital, and is still in a certain sense existing amongst us. The Edinburgh Society consequently got no insurance business.

It nevertheless kept together, under the care of a committee of secrecy, who gave out that they contemplated a still better project. For some time, they talked loudly of great, though unripe plans, by which they expected to ‘make Scotland flourish beyond what it ever did before.’ Then there arose a repetition of the old clamours about the Bank—it was too narrow, both in its capital and in its ideas; the directors were too nice about securities; the public required enlarged accommodation. At last, the Society plainly avowed that they were determined either to run down the Bank, or force a coalition with it. It was precisely one of the last century heiress-abductions, adapted to the new circumstances of the country and the advanced ideas of the age.

The opportunity seemed to be afforded by the share which Scotland took in the South-Sea scheme, large sums of specie being sent southward to purchase stock in that notable bubble. In such circumstances, it was assumed that the stock of coin in the Bank must have sunk to rather a low ebb. Having then gradually and unperceivedly 1719. gathered up the monstrous sum of £8400 in notes of the Bank, our Edinburgh Society came in upon it one morning demanding immediate payment. To their surprise, the money was at once paid, for in reality the kind of coin sent by speculators to London was different from that usually kept by the Bank, so that there had been hardly any abatement of its usual resources in coin. The Society tried to induce the cashiers of all the public establishments to follow their example, and draw out their money, but without success in any instance but that of the trustees of the Equivalent, who came very ostentatiously, and taking out their money, stored it up in the Castle. The public preserved a mortifying tranquillity under all these excitements, and the Bank remained unaffected.

The Edinburgh Society soon after sent the Bank a proposal of union, ‘for the prevention of mutual injuries, and the laying of a solid foundation for their being subservient and assisting to one another.’ It mainly consisted in an offer to purchase six hundred shares of the Bank, not as a new stock, but by surrender of shares held by the present proprietors, at £16, 13s. 4d. per share, or £10,000 in all, being apparently a premium of £6, 13s. 4d. on each £10 of the Bank’s paid-in capital. The Bank, however, as might have been expected, declined the proposal.

The passing of the famous Bubble Act soon after rendered it necessary for the Edinburgh Society to dissolve; but the Bank, nevertheless, like a rich heiress, continued to be persecuted by undesired offers of alliance. One, strange to say, came from the London Exchange Assurance Company. By this time (1722), it appears that the Bank had *twenty* thousand pounds of its capital paid up. It was proposed on the part of the London Assurance, that they should add £20,000, and have a half of the Bank’s profits, minus only an annual sum of £2500 to the old proprietors; which the Bank considered as equivalent to a borrowing of a sum of money at a dear rate from foreigners, when, if necessary, they could advance it themselves. Suppose, said the directors, that, after the London company had paid in their £20,000, the Bank’s profits were to rise to £7000 a year—and the authors of the proposal certainly contemplated nothing so low—this sum would fall to be divided thus: *first*, £2500 to the old Bank proprietors; *second*, the remaining £4500 to be divided between the Bank and the Exchange Assurance Company—that is, £2250 to the latter, being interest at the rate of 11 per cent. upon the money it had advanced—which money would be lying the same as dead in the Bank, there being no need for 1719. it. The Bank of Scotland declined the proposal of the London Royal Exchange Assurance Company, which doubtless would not be without its denunciations of Scotch caution on the occasion.

Robert Ker, who seems to have been an inhabitant of Lasswade, was a censor of morals much after the type of the Tinklarian Doctor. He at this time published *A Short and True Description of the Great Incumbrances and Damages that City and Country is like to sustain by Women’s Girded Tails, if it be not speedily prevented, together with a Dedication to those that wear them*. By girded tails he meant skirts framed upon hoops of steel,

like those now in vogue. According to Robert Ker, men were ‘put to a difficulty how to walk the streets’ from ‘the hazard of breaking their shin-bones’ against this metal cooperage, not to speak of the certainty of being called ill-bred besides. ‘If a man,’ says he, ‘were upon the greatest express that can be, if ye shall meet them in any strait stair or entry, you cannot pass them by without being stopped, and called impertinat to boot.’ Many are ‘the other confusions and cumbrances, both in churches and in coaches.’ He calls for alterations in staircases, and new lights to be broken out in dark entries, to save men from unchancy collisions with the fairer part of creation. Churches, too, would need to be enlarged, as in the old Catholic times, and seats and desks made wider, to hold these monstrous protuberances.

‘I wonder,’ says Ker, ‘that those who pretend to be faithful ministers do not make the pulpits and tents ring about thir sins, amongst many others. Had we the like of John Knox in our pulpits, he would not spare to tell them their faults to their very faces. But what need I admonish about thir things, when some ministers have their wives and daughters going with these fashions themselves?’

The ladies found a defender on this occasion in Allan Ramsay. He says:

‘If Nelly’s hoop be twice as wide
As her two pretty limbs can stride,
What then? will any man of sense
Take umbrage, or the least offence?....
Do not the handsome of our city,
The pious, chaste, the kind, the witty,
Who can afford it, great and small,
Regard well-shapen fardingale?....
Who watch their conduct, mien, and guise,
To shape their weeds as fits their case,
And place their patches as they please.’[\[535\]](#)

We learn with grief that our pathetic censor of 1719. the fair sex lived on bad terms with his own wife, and was imprisoned both in Dalkeith and in Edinburgh for alleged miscarriages towards her. One of his most furious outpourings was against a minister who had baptised a child born to him during his Dalkeith imprisonment, the rite being performed without his order or sanction.

‘All persons [in Edinburgh] desirous to learn the French tongue’ were apprised by an advertisement in the *Edinburgh Courant*, that ‘there is a Frenchman lately come to this city who will teach at a reasonable price.’ This would imply that there was no native French teacher in Edinburgh previously. In 1858, there were eleven, besides three belonging to our own country.

Public attention was at this time attracted by a JAN. report of devilish doings at Calder in Mid-Lothian, and of there being one sufferer of no less distinction than a lord’s son. It was stated that the Hon. Patrick Sandilands, a boy, the third son of Lord Torphichen, was for certain bewitched. He fell down in trances, from which no horse-whipping could rouse him. The renal secretion was as black as ink. Sometimes he was thrown unaccountably about the room, as if some unseen agent were buffeting him. Candles went out in his presence. When sitting in a room with his sisters, he would tell them of things that were going on at a distance. He had the appearance occasionally of being greatly tormented. As he lay in bed one night, his tutor, who sat up watching him, became sleepy, and in this state saw a flash of fire at the window. Roused by this, he set himself to be more careful watching, and in a little time he saw another flash at the window. The boy then told him that between these two flashes, he had been to Torryburn [a place twenty miles distant]. He was understood to have been thus *taken away* several times; he could tell them when it was to happen; and it was then necessary to watch him, to prevent his being carried off. ‘One day that he was to be waited on, when he was to be taken away, they kept the door and window close; but a 1720. certain person going to the door, he made shift and got there, and was lifted in the air, but was caught by the heels and coat-tails, and brought back.’ Many other singular and dreadful things happened, which unfortunately were left unreported at the time, as being so universally known. [\[536\]](#)

Lord Torphichen became at length convinced that his son was suffering under the diabolic incantations of a witch residing in his village of Calder, and he had the woman apprehended and put in prison. She is described as a brutishly ignorant creature, ‘knowing scarce anything but her witchcraft.’ She readily confessed her wicked practices; told that she had once given the devil the body of a dead child of her own to make a roast of; and inculcated

two other women and one man, as associates in her guilt. The baron, the minister, and the people generally accepted it as a time case of witchcraft; and great excitement prevailed. The minister of Inveresk, writing to his friend Wodrow (February 19), says: 'It's certain my lord's son has been dreadfully tormented. Mr Brisbane got one of the women to acknowledge an image of the child, which, on search, was found in another woman's house; but they did not know what kind of matter it was made of.'^[537] The time, however, was past for any deadly proceedings in such a case in the southern parts of Scotland; and it does not appear that anything worse than a parish fast was launched at the devil on the occasion. This solemnity took place on the 14th of January.

For the crazed white-ironsmith of the West Bow,^[538] the case of the Bewitched Boy of Calder had great attractions. He resolved—unfavourable as was the season for travelling—to go and examine the matter for himself. So, on the day of the fast, January 14, he went on foot in ill weather, without food, to Lord Torphichen's house at Calder, a walk of about twelve miles. 'I took,' says he, 'the sword of the spirit at my breast, and a small wand in my hand, as David did when he went out to fight against Goliath.' He found the servants eating and drinking, as if there had been no fast proclaimed; they offered him entertainment, which he scrupulously refused. 'Then I went to my lord and said, I was sent by God to cast the devil out of his son, by faith in Christ. He seemed to be like that lord who had the charge of the gate in Samaria. Then I said to him: "My lord, do you not believe me?" Then he bade me go and speak to

1720.

many ministers that was near by him; but I said I was not sent to them. Then he went to them himself, and spoke to them what I said; but they would not hear of it; so I went to three witches and a warlock, to examine them, in sundry places. Two of them denied, and two of them confessed. I have no time to relate here all that I said to them, and what they said; but I asked them, "When they took on in that service?" The wife said: "Many years;" and the man said: "It was ten years to him." Then I asked the wife: "What was her reason for taking on with the devil?" And she said: "He promised her riches, and she believed him." Then she called him many a cheat and liar in my hearing. Then I went to the man, because he was a great professor, and could talk of religion with any of the parish, as they that was his neighbours said, and he was at Bothwell Bridge fighting against the king; and because of that, I desired to ask questions at him; but

my lord's officer said: "His lord would not allow me." I said I would not be hindered neither by my lord nor by the devil, before many there present. Then I asked: "What iniquity he found in God, that he left his service?" He got up and said: "Oh, sir, are ye a minister?" So ye see the devil knows me to be a minister better than the magistrates. He said: "He found no fault in God; but his wife beguiled him;" and he said: "Wo be to the woman his wife!" and blamed her only, as Adam did his wife, and the woman blamed the devil; so ye see it is from the beginning. This is a caution to us all never to hearken to our wives except they have Scripture on their side. Then I asked at him: "Did he expect heaven?" "Yes," said he. Then I asked at him if he could command the devil to come and speak to me? He said: "No." Then I said again: "Call for him, that I may speak with him." He said again: "It was not in his power." Then my lord sent more servants, that hindered me to ask any more questions, otherwise I might have seen the devil, and I would have spoken about his son.'^[539]

On this fast-day, a sermon was preached in Calder kirk by the Rev. Mr John Wilkie, minister of Uphall, the alleged sorcerers being all present. Lord Torphichen subsequently caused the discourse to be printed. His boy in time recovered, and going to sea, rose by merit to the command of an East Indiaman, but perished in a storm. It brings us strangely near to this wild-looking affair, that the present tenth Lord 1720. Torphichen (1860) is only *nephew* to the witch-boy of Calder.

The exportation of some corn from Dundee FEB. 5. being connected unfavourably in the minds of the populace with a rise of the markets, a tumult took place, with a view to keeping the grain within the country. The mob not only took possession of two vessels loaded with *bear* lying in the harbour, the property of Mr George Dempster, merchant, but attacked and gutted the house, shops, cellars, and lofts of that gentleman, carrying off everything of value they contained, including twelve silver spoons, a silver salver, and two silver boxes, one of them containing a gold chain and twelve gold rings, some hair ones, and others set with diamonds. Dempster advertised that whoever shall discover to him 'the havers of his goods,' should have 'a sufficient reward and the owner's kindness, and no questions asked.'^[540]

A similar affair took place at Dundee nine years later. The country-people in and about the town then ‘carried their resentment so high against the merchants for transporting of victual, that they furiously mobbed them, carried it out of lofts, and cut the sacks of those that were bringing it to the barks.’^[541]

Died, Alexander Rose, who had been appointed MAR. 20. Bishop of Edinburgh just before the Revolution. He was the last survivor of the unfortunate episcopate of Scotland, and also outlived all the English bishops who forfeited their sees at the Revolution. Though strenuous during all these thirty-one years as a nonjuror—for which in 1716 he was deprived of a pension assigned him by Queen Anne—he is testified to by his presbyter Robert Keith as ‘a sweet-natured man.’^[542] His aspect, latterly, was venerable, and the gentleness of his life secured him the respect of laymen of all parties. Descended of the old House of Kilravock, he had married a daughter of Sir Patrick Threipland of Fingask, a family which maintained fidelity to the House of Stuart with a persistency beyond all parallel, never once swerving in affection from the days of the Commonwealth down to recent times. ‘Mr John Rose, son of the Bishop of Edinburgh,’ is in the list of rebels who pled guilty at Carlisle in December 1716. The good bishop, having come to his sister’s house in the Canongate, to see a brother who was there lying sick, had a sudden fainting-fit, and calmly breathed his last. He was buried in the 1720. romantic churchyard of Restalrig, which has ever since been a favourite resting-place of the members of the Scottish Episcopal communion.

There was a jubilation in Edinburgh on what APR. 28. appears to us an extraordinary occasion. The standing dryness between the king and Prince of Wales had come to a temporary end. The latter had gone formally to the palace, and been received by his father ‘with great marks of tenderness’ [the king was sixty, and the prince thirty-seven]. At a court held on the occasion, ‘the officers and servants on both sides, from the highest to the lowest, caressed one another with mutual civilities,’ and there were great acclamations from the crowd outside. The agreeable news having been received in the northern metropolis, the magistrates set the bells a-ringing, and held an entertainment for all persons of note then in town, at

which loyal toasts were drunk, with *feux de joie* from the City Guard. Demonstrations of a like nature took place at Glasgow—the music-bells rung—the stairs of the town-house covered with carpets—toast-drinking—and discharges of firearms from the Earl of Stair’s regiment. Nor was there a similar expression of joy wanting even in the Cavalier city of Aberdeen—where, however, such expressions were certainly more desirable.^[543]

One is startled at finding in the *Edinburgh Evening Courant* of this date the following advertisement: ‘Taken up a stolen negro: whoever owns him, and gives sufficient marks of his being theirs, before the end of two weeks from the date hereof, may have him again upon payment of expenses laid out upon him; otherwise the present possessor must dispose of him at his pleasure.’

MAY 2.

Yet true it is that colonial negro slaves who had accompanied their masters to the British shores, were, till fifty-five years after this period, regarded as chattels. One named Joseph Knight came with his master, John Wedderburn, Esq., to Glasgow in 1771, and remained with him as his bound slave for two years. A love-affair then set the man upon the idea of attempting to recover his liberty, which a recent decision by Lord Mansfield in England seemed to make by no means hopeless. With the help of friends, he carried his claim through a succession of courts, till a decision of the Court of Session in 1775 finally established that, however he might be a slave while in the West Indies, he, being now in Scotland, was a free man.

1720.

Horse-racing had for many years been considerably in vogue in Scotland. There were advertised in the course of this year—a race at Cupar in Fife; one at Gala-rig, near Selkirk, for a piece of plate given by the burgh, of £12 value; a race at Hamilton Moor for £10; a race on Lanark Moor for a plate of £12, given by the burgh; a race on the sands of Leith for a gold cup of about a hundred guineas value, and another, for a plate of £50 value, given by the city of Edinburgh; finally, another race at Leith for a silver punch-bowl and ladle, of £25 value, given by the captains of the Trained Bands of Edinburgh—the bowl bearing an inscription which smacks wonderfully like the produce of the brain of Allan Ramsay:

‘Charge me with Nantz and limpid spring,
Let sour and sweet be mixt;
Bend round a health syne to the king,
To Edinburgh captains next,
Wha formed me in sae blithe a shape,
And gave me lasting honours;
Take up my ladle, fill and lap,
And say: “Fair fa’ the donors.”’

The genius of Scott has lent an extraordinary OCT. 17.
interest to a murder perpetrated at this date. Nicol Mushet appears to have been a young man of some fortune, being described as ‘of Boghall,’ and he had studied for the profession of a surgeon; but for some time he had led an irregular and dissipated life in Edinburgh, where he had for one of his chief friends a noted profligate named Campbell of Burnbank, ordnance store-keeper in the Castle. The unhappy young man was drawn into a marriage with a woman named Hall, for whom he soon discovered that he had neither affection nor respect; and he then became so eager to be free from the connection, as to listen to a project by Burnbank for obtaining a divorce by dishonourable means. An obligation passed between the parties in November 1719, whereby a claim of Burnbank for an old debt of nine hundred merks (about £50) was to be discharged by Mushet, as soon as Burnbank should be able to furnish evidence calculated to criminate the woman. Burnbank then deliberately hired a wretch like himself, one Macgregor, a teacher of languages, to enter into a plot for placing Mrs Mushet in criminative circumstances; and some 1720.
progress was made in this plan, which, however, ultimately misgave. It was then suggested by Burnbank that they should go a step further, and remove the woman by poison. One James Mushet and his wife—a couple in poor circumstances—readily undertook to administer it. Several doses were actually given, but the stomach of the victim always rejected them. Then the project for debauching her was revived, and Mushet undertook to effect it; but it was not carried out. Dosing with poison was resumed, without effect; other plans of murder were considered. James Mushet undertook to knock his sister-in-law on the head for twenty guineas, and got one or two in hand by anticipation, part of which he employed in burying a child of his own. These diabolically wicked projects occupied Mushet, his brother, his brother’s wife, and Burnbank, in the Christian city of Edinburgh, during a

course of many months, without any one, to appearance, ever feeling the slightest compunction towards the poor woman, though it is admitted she loved her husband, and no real fault on her side has ever been insinuated.

At length, the infatuated Nicol himself borrowed a knife one day, hardly knowing what he wanted it for, and, taking his wife with him that night, as on a walk to Duddingston, he embraced the opportunity of killing her at a solitary place in the King's Park. He went immediately after to his brother's, to tell him what he had done, but in a state of mind which made all afterwards seem a blank to him. Next morning, the poor victim was found lying on the ground, with her throat cut to the bone, and many other wounds, which she had probably received in struggling with her brutal murderer.

Mushet was seized and examined, when he readily related the whole circumstances of the murder and those which had led to it. He was adjudged to be hanged in the Grassmarket on the ensuing 6th of January. His associate Burnbank was declared infamous, and sentenced to banishment. The common people, thrilled with horror by the details of the murder, marked their feelings in the old national mode by raising a cairn on the spot where it took place; and Mushet's Cairn has ever since been a recognised locality.^[544]

There was published this year in Edinburgh a small treatise at the price of a shilling, under the title of *Rules of Good* 1720. *Deportment and Good Breeding*. The author was Adam Petrie, who is understood as having commenced life as domestic tutor in the family of Sinclair of Stevenston, and to have ended it in the situation of a parish schoolmaster in East Lothian. He dedicated his treatise to the magistrates of Edinburgh, acknowledging them to be 'so thoroughly acquainted with all the steps of civility and good breeding, that it is impossible for the least misrepresentation of them to escape your notice.'

Adam sets out with the thesis, that 'a courteous way gilds a denial, sweetens the sharpness of truth ... sets off the defects of reason, varnishes slights, paints deformities ... in a word, disguises everything that is unsavoury.' Everything, however, required to have some reference to religion in that age, and Adam takes care to remind us that civility has a

divine basis, in the injunctions, 'Be courteous to all men,' and 'Give honour to whom honour is due.'

As to ordinary demeanour, Mr Petrie was of opinion that 'a gentleman ought not to run or walk too fast in the streets, lest he be suspected to be going a message.' 'When you walk with a superior, give him the right hand; but if it be near a wall, let him be next to it.' The latter rule, he tells us, was not yet followed in Scotland, though established in England and Ireland. 'When you give or receive anything from a superior, be sure to pull off your glove, and make a show of kissing your hand, with a low bow after you have done.' In this and some other instances, it strikes us that a too ceremonious manner is counselled; but such was the tendency of the time. There was, however, no want of rude persons. 'I have,' says Adam, 'seen some noblemen treat gentlemen that have not been their dependents, and men of ancients families than they could pretend to, like their dependents, and carry to the ambassadors of Jesus Christ as if they had been their footmen.'

Mr Petrie deemed it proper not to come amongst women abruptly, 'without giving them time to appear to advantage: they do not love to be surprised.' He also thought it was well 'to carry somewhat reserved from the fair sex.' One should not enter the house or chamber of a great person with a great-coat and boots, or without gloves—though 'it is usual in many courts that they deliver up their gloves with their sword before they enter the court, because some have carried in poison on their gloves, and have conveyed the same to the sovereign that way.'

1720.

Women, on their part, are equally advised against approaching superiors of their own sex with their gown tucked up. 'Nor,' says he, 'is it civil to wear a mask anywhere in company of superiors, unless they be travelling together on a journey.' In that case, 'when a superior makes his honours to her, she is to pull off her mask, and return him his salute, if it be not tied on.'

There is a good deal about the management of the handkerchief, with one general recommendation to 'beware of offering it to any, except they desire it.' We also are presented with a rule which one could wish to see more universally observed than it is, against making any kind of gesticulations or noises in company.

There were customs of salutation then, which it is now difficult to imagine as having ever been practised. 'In France,' says Adam, 'they salute

ladies on the cheek; but in Britain and Ireland they salute them on the lips.’ Our Scottish Chesterfield seems to have felt that the custom should be abated somewhat; or perhaps it was going out. ‘If,’ says he, ‘a lady of quality advance to you, and tender her cheek, you are only to pretend to salute her by putting your head to her hoods: when she advances, give her a low bow, and when you retreat, give her another.’ He adds: ‘It is undecent to salute ladies but in civility.’

Formulæ of address and for the superscription of letters are fully explained; but Adam could not allow ‘the Right Reverend Father in God the Lord Bishop of London’ to pass as an example of Episcopal style, without remarking that many have not ‘clearness’ to use such titles. Adam is everywhere inclined to an infusion of piety. He denounces ‘an irreligious tippling’ of coffee, tea, and chocolate, which he observed to be continually going on in coffee-houses, ‘because not one in a hundred asks a blessing to it.’ He is very much disposed, too, to launch out into commonplace morals. Rather unexpectedly in a lover of the politenesses, he sets his face wholly against cards and dice, stage-plays, and promiscuous dancing, adducing a great number of learned references in support of his views.

The editor of a very scarce reprint of this curious volume,^[545] remarks that, from the manifest sincerity of the author’s delineations of good breeding, and the graphic character of many of his scenes, it may fairly be presumed that they were painted from nature. We are told by the same writer, that ‘Helen Countess of Haddington, who died in 1768, at the advanced age of ninety-one, and to whom Petrie 1720. was well known, used to describe his own deportment and breeding as in strict accordance with his rules.’

James Dougal, writing the news of Edinburgh to 1721. JAN. 4. his friend Wodrow at Eastwood, has a sad catalogue to detail. ‘There was four pirates hanged at Leith this day ... very hardened. They were a melancholy sight, and there is three to be hanged next Wednesday. Nicol Mushet is to be hanged on Friday ... for murdering his wife: he appears to be more concerned than he was before. Ane woman brought from Leith is to die the first Wednesday of February for putting down [destroying] a child. Another man is laid up in prison, that is thought to have murdered his wife. The things falling out now are very humbling.’

He goes on to tell that several persons ‘in trouble of mind’ are frequently prayed for in Edinburgh churches. ‘But they do not name them but after such a manner—A man there is in such trouble (or a woman), and desires the congregation to praise God with them for signal deliverance that the Lord hath given them from great troubles that they have been in.’

The end of the letter is terrible: ‘There is some of the Lord’s people that lives here, that are feared for melancholy days, iniquity doth so abound, and profanity; and if there were not a goodly remnant in this town, it would sink.’^[546]

A sperm whale, ‘the richest that has ever been seen in this country,’ was advertised in the *Courant* as having come ashore in the Firth of Forth near Culross, and to be sold by public roup. JAN. 30.

At the end of June 1730, three wounded whales ran ashore at Kilrenny in Fife, on the property of Mr Bethune of Balfour. The produce, consisting of a hundred and forty-six barrels of *speck*, or blubber, and twenty-three barrels of spermaceti *speck*, was afterwards advertised for sale.

With regard to several of the forfeited estates which lay in inaccessible situations in the Highlands, the Commissioners had been up to this time entirely baffled, having never been able even to get surveys of them effected. In this predicament in a special manner lay the immense territory of the Earl of Seaforth, extending from Brahan Castle in Easter Ross across the island to Kintail, and including the large though unfertile island of Lewis. The districts of Lochalsh and Kintail, on the west coast, the scene of the Spanish invasion of 1719, were peculiarly difficult of access, there being no approach from the south, east, or north, except by narrow and difficult paths, while the western access was only assailable to a naval force. To appearance, this tract of ground, the seat of many comparatively opulent ‘tacksmen’ and cattle-farmers, was as much beyond the control of the six Commissioners assembled at their office in Edinburgh, as if it had been amongst the mountains of Tibet or upon the shores of Madagascar. 1721. OCT.

During several years after the insurrection, the rents of this district were collected, without the slightest difficulty, for the benefit of the exiled earl,

and regularly transmitted to him. At one time, a considerable sum was sent to him in Spain, and the descendants of the man who carried it continued for generations to bear ‘the Spanyol’ as an addition to their name.^[547] The chief agent in the business was Donald Murchison, descendant of a line of faithful adherents of the ‘high chief of Kintail’—the first of whom, named Murcho, had come from Ireland with Colin the son of Kenneth, the founder of the clan Mackenzie in the thirteenth century. The later generations of the family had been intrusted in succession with the keeping of Ellan Donan Castle, a stronghold dear to the modern artist as a picturesque ruin, but formerly of serious importance as commanding a central point from which radiate Loch Alsh and Loch Duich, in the midst of the best part of the Mackenzie country. Donald was a man worthy of a more prominent place in his country’s annals than he has yet attained; he acted under a sense of right which, though unfortunately defiant of acts of parliament, was still a very pure sense of right; and in the remarkable actions which he performed, he looked solely to the good of those towards whom he had a feeling of duty. A more disinterested hero—and he was one—never lived.

When Lord Seaforth brought his clan to fight for King James in 1715, Donald Murchison and a senior brother, John, went as field-officers of the regiment—Donald as lieutenant-colonel, and John as major. Sir Roderick I. Murchison, the distinguished geologist, great-grandson of John, possesses a large ivory and silver ‘mill,’ which once contained the commission sent from France to Donald, as colonel, bearing the inscription: ‘JAMES REX: FORWARD AND SPARE NOT.’ John fell at Sheriffmuir, 1721.^[548] in the prime of life; Donald, returning with the remains of the clan, was intrusted by the banished earl with the management of estates no longer legally his, but still virtually so, through the effect of Highland feelings in connection with very peculiar local circumstances. And for this task Donald was in various respects well qualified, for, strange to say, the son of the castellan of Ellan Donan—the Sheriffmuir colonel—had been ‘bred a writer’ in Edinburgh, and was as expert at the business of a factor or estate-agent as in wielding the claymore.

In bold and avowed insubordination to the government of George the First, the Mackenzie tenants continued for ten years to pay their rents to Donald Murchison, on account of their forfeited and exiled lord, setting at nought all fear of ever being compelled to repeat the payment to the commissioners.

In 1720, these gentlemen made a movement for asserting their claims upon the property. In William Ross of Easterfearn, and Robert Ross, a bailie of Tain, they found two men bold enough to undertake the duty of stewardship in their behalf over the Seaforth property, and also the estates of Grant of Glenmorrison and Chisholm of Strathglass. Little, however, was done that year beyond sending out notices to the tenants, and preparing for strenuous measures to be entered upon next year. The stir they made only produced excitement, not dismay. Some of the duine-wassels from about Loch Carron, coming down with their cattle to the south-country fairs, were heard to declare that the two factors would never get anything but leaden coin from the Seaforth tenantry. Donald was going over the whole country, shewing a letter he had got from the earl, encouraging his people to stand out; at the same time telling them that the old countess was about to come north with a factory for the estate, when she would allow as paid any rents which they might now hand to him. The very first use to be made of this money was, indeed, to bring both the old and the young countesses home immediately to Brahan Castle, where they would live as they used to do. Part of the funds thus acquired, he used in keeping on foot a party of about sixty armed Highlanders, whom, in virtue of his commission as colonel, he proposed to employ in resisting any troops of George the First which might be sent to Kintail. 1721.

Nor did he wait to be attacked, but, in June 1720, hearing of a party of excisemen passing near Dingwall with a large quantity of *aqua-vitæ*, he fell upon them, and rescued their prize. The collector of the district reported this transaction to the Board of Excise; but no notice was taken of it.

In February 1721, the two factors sent officers of their own into the western districts, to assure the tenants of good usage, if they would make a peaceable submission; but the men were seized, robbed of their papers, money, and arms, and quietly remanded over the Firth of Attadale, though only after giving solemn assurance that they would never attempt to renew their mission. Resenting this procedure, the two factors caused a constable to take a military party from Bernera barracks into Lochalsh, and, if possible, capture those who had been guilty. They made a stealthy night-march, and took two men; but the alarm was given, the two men escaped, and began to fire down upon their captors from a hillside; then they set fire to the bothy as a signal, and such a *coronach* went over all Kintail and Lochalsh, as made the soldiers glad to beat a quick retreat.

After some further proceedings, all of them ineffectual, the two factors were enabled, on the 13th of September, to set forth from Inverness with a party of thirty soldiers and some armed servants of their own, with the design of enforcing submission to their legal claims. Let it be remembered there were then no roads in the Highlands, nothing but a few horse-tracks along the principal lines in the country, where not the slightest effort had ever been made to smooth away the natural difficulties of the ground. In two days, the factors had got to Invermorriston; but here they were stopped for three days, waiting for their heavy baggage, which was storm-stayed in Castle Urquhart, and there nearly taken in a night-attack by a partisan warrior bearing the name of Evan Roy Macgillivray. The tenantry of Glenmorriston at first fled with their bestial; but afterwards a number of them came in and made at least the appearance of submission. The party then moved on towards Strathglass, while Evan Roy respectfully followed, to pick up any man or piece of baggage that might be left behind. At Erchless Castle, and at Invercannich, seats of the Chisholm, they held courts, and received the submission of a number of the tenants, whom, however, they subsequently found to be ‘very deceitful.’

There were now forty or fifty miles of the wildest Highland country before them, where they had reason to believe they should meet groups of murderous Camerons and Glengarry Macdonalds, 1721. and also encounter the redoubted Donald Murchison, with his guard of Mackenzies, unless their military force should be of an amount to render all such opposition hopeless. An appointment having been made that they should receive an addition of fifty soldiers from Bernera, with whom to pass through the most difficult part of their journey, it seemed likely that they would appear too strong for resistance; and, indeed, intelligence was already coming to them, that ‘the people of Kintail, being a judicious opulent people, would not expose themselves to the punishments of law,’ and that the Camerons were absolutely determined to give no further provocation to the government. Thus assured, they set out in cheerful mood along the valley of Strathglass, and, soon after passing a place called Knockfin, were reinforced by Lieutenant Brymer, with the expected fifty men from Bernera. There must have now been about a hundred well armed men in the invasive body. They spent the next day (Sunday) together in rest, to gather strength for the ensuing day’s march of about thirty arduous miles, by which they hoped to reach Kintail.

At four in the morning of Monday the 2d October, the party set forward, the Bernera men first, and the factors in the rear. They were as yet far from the height of the country, and from its more difficult passes; but they soon found that all the flattering tales of non-resistance were groundless, and that the Kintail men had come a good way out from their country in order to defend it. The truth was, that Donald Murchison had assembled not only his stated band of Mackenzies, but a levy of the Lewis men under Seaforth's cousin, Mackenzie of Kildun; also an auxiliary corps of Camerons, Glengarry and Glenmorriston men, and some of those very Strathglass men who had been making appearances of submission. Altogether, he had, if the factors were rightly informed, three hundred and fifty men with long Spanish firelocks, under his command, and all posted in the way most likely to give them an advantage over the invading force.

The rear-guard, with the factors, had scarcely gone a mile, when they received a platoon of seven shots from a rising ground near them to the right, with, however, only the effect of piercing a soldier's hat. The Bernera company, as we are informed, left the party at eight o'clock, as they were passing Lochanachlee, and from this time is heard of no more: how it made its way out of the country does not appear. The remainder still advancing, Easterfearn, as he rode a little before his men, had eight shots levelled at him from a rude breastwork near by, and was

1721.

wounded in two places, but was able to appear as if he had not been touched. Then calling out some Highlanders in his service, he desired them to go before the soldiers, and do their best, according to their own mode of warfare, to clear the ground of such lurking parties, so that the troops might advance in safety. They performed this service pretty effectually, skirmishing as they went on, and the main body advanced safely about six miles. They were here arrived at a place called Aa-na-Mullich (*Ford of the Mull People*), where the waters, descending from the Cralich and the lofty mountains of Kintail, issue eastwards through a narrow gorge into Loch Affaric. It was a place remarkably well adapted for the purposes of a resisting party. A rocky boss, called Tor-an-Beatich, then densely covered with birch, closes up the glen as with a gate. The black mountain stream, 'spear-deep,' sweeps round it. A narrow path wound up the rock, admitting only of passengers in single file. Here lay Donald with the best of his people, while inferior adherents were ready to make demonstrations at a little distance. As the invasive party approached, they received a platoon

from a wood on the left, but nevertheless went on. When, however, they were all engaged in toiling up the pass, forty men concealed in the heather close by fired with deadly effect, inflicting a mortal wound on Walter Ross, Easterfearn's son, while Bailie Ross's son was also hurt by a bullet which swept across his breast. The bailie called to his son to retire, and the order was obeyed; but the two wounded youths and Bailie Ross's servant were taken prisoners, and carried up the hill, where they were quickly divested of clothes, arms, money, and papers. Young Easterfearn died next morning. The troops faced the ambushade manfully, and are said to have given their fire thrice, and to have beat the Highlanders from the bushes near by; but, observing at this juncture several parties of the enemy on the neighbouring heights, and being informed of a party of sixty in their rear, Easterfearn deemed it best to temporise.

He sent forward a messenger to ask who they were that opposed the king's troops, and what they wanted. The answer was that, in the first place, they required to have Ross of Easterfearn delivered up to them. This was pointedly refused; but it was at length arranged that Easterfearn should go forward, and converse with the leader of the opposing party. The meeting took place at Bal-aa-na-Mullich (*the Town of the Mull Men's Ford*), and Easterfearn found himself confronted with Donald Murchison. It ended with Easterfearn giving up his papers, and 1721. covenanting, under a penalty of five hundred pounds, not to officiate in his factory any more; after which he gladly departed homewards with his associates, under favour of a guard of Donald's men, to conduct them safely past the sixty men lurking in the rear. It was alleged afterwards that the commander was much blamed by his own people for letting the factors off with their lives and baggage, particularly by the Camerons, who had been five days at their post with hardly anything to eat; and Murchison only pacified them by sending them a good supply of meat and drink. He had in reality given a very effectual check to the two gentlemen-factors, to one of whom he imparted in conversation that any scheme of a government stewardship in Kintail was hopeless, for he and sixteen others had sworn that, if any person calling himself a factor came there, they would take his life, whether at kirk or at market, and deem it a meritorious action, though they should be cut to pieces for it next minute.^{[\[549\]](#)}

A bloody grave for young Easterfearn in Beaulieu Cathedral concluded this abortive attempt to take the Seaforth estates within the scope of a law

sanctioned by statesmen, but against which the natural feelings of nearly a whole people revolted.^[550]

A newspaper advertisement informed the world 1721. DEC. that ‘There is a certain gentleman living at Glasgow, who has put forth a problem to the learned—proposing, if no man answer it, to do it himself in a few weeks—viz., Whether or not it is possible so to dispose a ship, either great or small, that, although she, or it, be rent in the bottom, and filled full of water, or however tossed with tempest, she, or it, shall never sink below the water; and also that the same may be reduced to practice.’^[551]

An election of a member of parliament for a 1722. APR. 27. Highland county was apt to bring forth somewhat strenuous sentiments, and the scene sometimes partook a good deal of the nature of a local civil war.

A representative of Ross-shire being to be chosen, there came, the night before, to Fortrose, the greatest man of the north, the Earl of Sutherland, heading a large body of armed and mounted retainers, who made a procession round the streets, while an English sloop-of-war, in friendly alliance with him, came up to the town and fired its guns. Hundreds of Highlanders, his lordship’s retainers, at the same time lounged about. The reason of all this was, that the opposition interest was in a decided majority, and a defeat to the Whig candidate seemed impending. When the election came on, there were thirty-one barons present, of whom eighteen gave their votes for General Charles Ross of Balnagowan, the remainder being for Captain Alexander Urquhart of Newhall. Hereupon, Lord Sutherland’s relative and friend, Sir William Gordon of Invergordon, sheriff of the county, retired with the minority, and went through the form of electing their own man, notwithstanding a protest from the other candidate. ‘Immediately after this separation, Colin Graham of Drynie, one of the deputy-lieutenants of the county, came into the court-house, with his sword in his hand, accompanied by Robert Gordon of Haughs and Major John Mackintosh, with some of the armed Highlanders whom they had posted at the door, with drawn swords and cocked firelocks, and did require the majority (who remained to finish the election), in the name of the Earl of Sutherland, to remove out of the house, otherwise they must expect worse treatment. Major Mackintosh said they would be dragged out by the heels. Upon which the barons protested against those violent proceedings,

declaring their resolution to remain in the court-house till the election was finished, though at the hazard of their lives; which they accordingly did.’^[552]

1722.

The Catholics had of late been getting up their heads in the north, especially in districts over which the Gordon family held sway; and the open practice of the Romish rites before large congregations in the Banffshire valleys, was become a standing subject of complaint and alarm in the church-courts. When at length the government obtained scent of the Jacobite plot in which Bishop Atterbury was concerned, it sympathised with these groans of the laden spirits in Scotland, and permitted some decided measures of repression to be taken.

APR. 29.

Accordingly, this day, being Sunday, as the Duchess-Dowager of Gordon—Elizabeth Howard, daughter of the Duke of Norfolk—was having mass performed at her house in the Canongate, Edinburgh, in the presence of about fifty professors like herself of the Catholic religion, Bailie Hawthorn, a magistrate of the Canongate, broke open the doors, and seized the whole party. The ladies were bailed, and allowed to depart; but the priest, Mr John Wallace, was marched to prison. We are informed by Wodrow that Wallace had been ordained a Protestant minister thirty-five years before.^[553] The Lord Advocate would not at first listen to any proposal for his liberation, though several persons of distinction came to plead for it; but at length bail was taken for him to the extent of a thousand merks Scots. Being indicted under the statute of 1700, he failed to stand his trial, and was outlawed.^[554]

Before the upbreak of this plot, considerable numbers of gentlemen under attainder daily presented themselves on the streets of Edinburgh, emboldened of course by the mildness of the government; but, one or two of them having been seized and put up in the Castle, it came to pass, 15th May, that not one was any longer to be seen. Mr Wodrow, who records these circumstances, expresses the feeling of the hour. ‘It’s certain we are in a most divided and defenceless state; divisions on the one hand, rancour and malice on the other, and a wretched indolence among too many. But the Lord liveth!’^[555]

AUG. 3.

The Canongate, which had so often, in the sixteenth century, been reddened with the best blood in Scotland, was still 1722. occasionally the scene of wild transactions, though arising amongst a different class of persons and from different causes. A local journalist chronicles a dreadful tragedy as occurring on its pavé at this date.

‘In the afternoon, Captain Chiesley and Lieutenant Moodie, both of Cholmly’s Regiment, which lies encamped at Bruntsfield Links, having quarrelled some time before in the camp, meeting on the street of the Canongate, the captain, as we are told, asked Mr Moodie whether he had in a certain company called him a coward? And he owning he had, the captain beat him first with his fist, and then with a cane; whereupon Mr Moodie drew his sword, and, shortening it, run the captain into the great artery. The captain, having his sword drawn at the same time, pushed at Mr Moodie, who was rushing on him with his sword shortened, and thus run him into the lower belly, of which in a few minutes he died, without speaking one word, having had no more strength or life left him than to cross the street, and reach the foot of the stair of his lodgings, where he dropped down dead. The captain lived only to step into a house near by, and to pray shortly that God might have mercy on his soul, without speaking a word more. ’Tis said Mr Moodie’s lady was looking over the window all the while this bloody tragedy was acting.’^[556]

A duel which happened about the same time between Captains Marriot and Scroggs proved fatal to both.

‘Four of those poor deluded people called AUG. 7. Quakers, two men and two women, came about noon to the Cross [of Edinburgh], when one of the women, who by her accent seemed to be of Yorkshire, after several violent agitations, said, that she was appointed by God to preach repentance to this sinful city; that a voice of mortality, as she called it, had sounded in her ears, and that desolation and all kinds of miseries would befall the inhabitants if they did not repent. After she had spoke about a quarter of an hour, a party of the city-guard carried her and the other three prisoners to the main guard.’

Some years after, one Thomas Erskine, a brewer, made himself conspicuous as a Quaker preacher in Edinburgh. One Saturday, January 17, 1736, he ‘made a religious peregrination through this city. He made his first

station at the Bow-head [reputed as the head-1722.
quarters of the saints in Edinburgh], where he pronounced woes and judgments on the inhabitants of the Good Town, if they did not speedily repent. Thence he walked to the Cross, where he recapitulated what he had evangelised by the way, and concluded with desiring his auditory to remember well what he had told them. However, he gave them forty days to think on't.'

One day, in the ensuing July, Erskine sent a notice to the quiet little country town of Musselburgh, to the effect that the Spirit had appointed him to hold forth to them in the marketplace at five in the afternoon; and, accordingly, at the appointed hour, he mounted the Cross, and discoursed to a large audience.^[557]

A second attempt was now made to obtainAUG. 29.
possession of the forfeited Seaforth estates for the government. It was calculated that what the two factors and their attendants, with a small military force, had failed to accomplish in the preceding October, when they were beat back with a fatal loss at *Aa-na-Mullich*, might now be effected by means of a good military party alone, if they should make their approach through a less critical passage. A hundred and sixty of Colonel Kirk's regiment left Inverness under Captain M'Neil, who had at one time been commander of the Highland Watch. They proceeded by Dingwall, Strath Garve, and Loch Carron, a route to the north of that adopted by the factors, and an easier, though a longer way. Donald Murchison, nothing daunted, got together his followers, and advanced to the top of Maam Attadale, a high pass from Loch Carron to the head of Loch Long, separating Lochalsh from Kintail. Here a gallant relative named Kenneth Murchison, and a few others, volunteered to go forward and plant themselves in ambush in the defiles of the Choille Van [White Wood], while the bulk of the party should remain where they were. It would appear that this ambush party consisted of thirteen men, all peculiarly well armed.

On approaching this dangerous place, the captain went forward with a sergeant and eighteen men to clear the wood, while the main body came on slowly in the rear. At a place called Altanbadn, in the Choille Van, he encountered Kenneth and his associates, whose fire wounded himself severely, killed one of his grenadiers, and wounded several others of the

party. He persisted in advancing, and attacked the handful of natives with sufficient resolution. They slowly withdrew, as 1722. unable to resist; but the captain now obtained intelligence that a large body of Mackenzies was posted in the mountain-pass of Attadale. It seemed as if there was a design to draw him into a fatal ambushade. His own wounded condition probably warned him that a better opportunity might occur afterwards. He turned his forces about, and made the best of his way back to Inverness. Kenneth Murchison quickly rejoined Colonel Donald on Maam Attadale, with the cheering intelligence that one salvo of thirteen guns had repelled the hundred and sixty *sidier roy*.^[558] After this, we hear of no renewed attempt to comprise the Seaforth property.

Strange as it may seem, Donald Murchison, two years after thus a second time resisting the government troops, came down to Edinburgh with eight hundred pounds of the earl's rents, that he might get the money sent abroad for his lordship's use. He remained a fortnight in the city unmolested. He would on this occasion appear in the garb of a Lowland gentleman; he would mingle with old acquaintances, 'doers' and writers; and appear at the Cross amongst the crowd of gentlemen who assembled there every day at noon. Scores would know all about his doings at Aa-na-Mullich and the Choille Van; but thousands might have known, without the chance of one of them betraying him to government.

General Wade, writing a report to the king in 1725, states that the Seaforth tenants, formerly reputed the richest of any in the Highlands, are now become poor, by neglecting their business, and applying themselves to the use of arms. 'The rents,' he says, 'continue to be collected by one Donald Murchison, a servant of the late earl's, who annually remits or carries the same to his master into France. The tenants, when in a condition, are said to have sent him free gifts in proportion to their several circumstances, but are now a year and a half in arrear of rent. The receipts he gives to the tenants are as deputy-factor to the Commissioners of the Forfeited Estates, which pretended power he extorted from the factor (appointed by the said commissioners to collect those rents for the use of the public), whom he attacked with above four hundred armed men, as he was going to enter upon the said estate, having with him a party of thirty of your majesty's troops. The last year this Murchison marched in a public manner to Edinburgh, to remit eight hundred pounds to France for his master's use, and remained fourteen days there 1722.

unmolested. I cannot omit observing to your majesty, that this national tenderness the subjects of North Britain have one for the other, is a great encouragement for rebels and attainted persons to return home from their banishment.’^[559]

Donald was again in Edinburgh about the end of August 1725. On the 2d of September, George Lockhart of Carnwath, writing from Edinburgh to the Chevalier St George, states, amongst other matters of information regarding his party in Scotland, that Daniel Murchison (as he calls him) ‘is come to Edinburgh, on his way to France’—doubtless charged with a sum of rents for Seaforth. ‘He’s been in quest of me, and I of him,’ says Lockhart, ‘these two days, and missed each other; but in a day or two he’s to be at my country-house, where I’ll get time to talk fully with him. In the meantime, I know from one that saw him, that he has taken up and secured all the arms of value in Seaforth’s estate, which he thought better than to trust them to the care and prudence of the several owners; and the other chieftains, I hear, have done the same.’^[560]

The Commissioners on the Forfeited Estates conclude their final report in 1725 by stating that they had not sold the estate of William Earl of Seaforth, ‘not having been able to obtain possession, and consequently to give the same to a purchaser.’

In a Whig poem on the Highland Roads, written in 1737, Donald is characteristically spoken of as a sort of cateran, while, in reality, as every generous person can now well understand, he was a high-minded gentleman. The verses, nevertheless, as well as the appended note, are curious:

‘Keppoch, Rob Roy, and Daniel Murchisan,
Cadets or servants to some chief of clan,
From theft and robberies scarce did ever cease,
Yet ‘scaped the halter each, and died in peace.
This last his exiled master’s rents collected,
Nor unto king or law would be subjected.
Though veteran troops upon the confines lay,
Sufficient to make lord and tribe a prey,
Yet passes strong through which no roads were cut,
Safe-guarded Seaforth’s clan, each in his hut.
Thus in strongholds the rogue securely lay,
Neither could they by force be driven away,
Till his attainted lord and chief of late
By ways and means repurchased his estate.’^[561]

‘Donald Murchison, a kinsman and servant to the Earl of Seaforth, bred a writer, a man of small stature, but full of spirit and resolution, fought at Dunblane against the government *anno* 1715, but continued thereafter to collect Seaforth’s rents for his lord’s use, and had some pickerings with the king’s forces on that account, till, about five years ago, the government was so tender as to allow Seaforth to re-purchase his estate, when the said Murchison had a principal hand in striking the bargain for his master. How he fell under Seaforth’s displeasure, and died thereafter, is not to the purpose here to mention.’

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The end of Donald’s career can scarcely now be passed over in this slighting manner. The story is most painful. The Seaforth of that day—very unlike some of his successors—was unworthy of the devotion which this heroic man had shewn to him. When his lordship took possession of the estates which Donald had in a manner preserved for him, he discountenanced and neglected him. Murchison’s noble spirit pined away under this treatment, and he died in the very prime of his days of a broken heart.^[562] He lies in a remote little churchyard on Cononside, in the parish of Urray, where, I am happy to say, his worthy relative, Sir Roderick I. Murchison, is at this time preparing to raise a suitable monument over his grave.

When Dr Johnson and James Boswell, in their journey to the Hebrides, 1773, came to the inn at Glenelg, they found the most wretched accommodation, and would have been without any comfort whatever, had not Mr Murchison, factor to Macleod in Glenelg, sent them a bottle of rum and some sugar, ‘with a polite message,’ says Boswell, ‘to acquaint us, that he was very sorry he did not hear of us till we had passed his house, otherwise he should have insisted on our sleeping there that night.’ ‘Such extraordinary attention,’ he adds, ‘from this gentleman to entire strangers, deserves the most honourable commemoration.’ This gentleman, to whom Johnson also alludes with grateful admiration of his courtesy in the *Journey to the Western Islands*, was a near relative of Donald Murchison.

A high wind shook the crops of Lothian, particularly damaging the pease. It was considered ‘a heavy stroke,’ as the people thereabouts lived much on pease-meal.

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1722.

Apropos to this fact, Wodrow speaks of an individual who had much ploughing to execute, and who found it advantageous to feed his horses on pease-bannocks: ‘he finds it a third cheaper [than corn], and his horses fatter and better.’^[563] It is curious that this farmer, ‘*abnormis sapiens*,’ came

to the same point which Baron Liebig has attained in our age, by scientific investigation, as to the nutritive qualities of pease.

The extensive coal-field of East Lothian gave occasion for several efforts in the mechanical arts, which might be regarded as early and before their time, when the general condition of the country is considered. Some years before the Revolution, the Earl of Winton had drained his coal-pits in Tranent parish, by tunnels cut for a long way through solid rock, on such a scale as to attract the attention of George Sinclair, professor of natural philosophy in Glasgow, who, in the preface to his extraordinary work, *Satan's Invisible World Discovered*, speaks of them as something paralleling the cutting of the Alps by Hannibal. Such a mode of taking off the water from a coal-mine, where the form of the ground admitted it, was certainly of great use in days when as yet there were no steam-engines to make the driving of pumps easy.^[564]

The forfeited estate of the Earl of Winton having been bought in 1719 by the York Buildings Company, a new and equally surprising addition was at this time made to the economy of the coal-works, in the form of a wooden railway, between one and two miles long, connecting the pits with the salt-works at Prestonpans and the harbour at Port-Seton. A work so ingenious, so useful, and foreshewing the iron ways by which, in our age, the industrial prospects of the world have been so much advanced, comes into strong relief when beheld in connection with the many barbarisms amidst which it took its rise. But the oddity of its associations does not end here, for, when a Highland army came down to the Lowlands twenty-three years afterwards, seeking with primitive arms to restore the House of Stuart, the first of its battles was fought on the ground crossed by this railway, and General Cope's cannon were actually fired against the clouded Camerons^[565] from a position on the railway itself!

There was published in Edinburgh a poem, 1723. JAN. entitled the *Mock Senator*—‘pretended to be translated from an Arabian manuscript, wherein, under feigned and disguised names, the author seems to lash some persons in the present administration.’ The magistrates—whom we have seen exercising a pretty sharp censorship over the newspaper press—‘committed to prison Mr Alexander Pennecuik, the

supposed author of this poem, and discharged the hawkers to sell or disperse the same.'^[566]

At this time, two criminalities of the highest class occurred amongst persons of rank in Scotland.

MAR.

On the 30th of March, Mrs Elizabeth Murray, 'lady to Thomas Kincaid, younger, of Gogar-Mains,' was found dead on the road from Edinburgh to that place, with all the appearance of having been barbarously murdered. It was at once, with good reason, concluded that the horrible act had been perpetrated by her own husband. He succeeded in escaping to Holland.^[567]

Pennecuik, the burgess-poet, has a poem on the murder of Mrs Kincaid by her husband, from which it would appear that she had been an amiable and long-suffering woman, and he a coarse and dissolute man. He adds a note at the end, 'Ensign Hugh Skene engaged in the plot.'^[568]

Only three weeks later (April 22), Sir James Campbell of Lawers was foully murdered at Greenock by his apparent friend, Duncan Campbell of Edramurkle. The facts are thus related in a contemporary letter. 'Lawers had been in a treaty of marriage with [Campbell of] Finab's daughter, which Edramurkle was very active to get accomplished, out of a seeming friendship for Lawers. After the marriage articles were agreed upon, they went together to make a visit to the young lady, and, in return, came to Greenock on Friday the 19th last [April], where they remained Saturday and Sunday—Edramurkle all the while shewing the greatest friendship for Lawers, and Lawers confiding in him as his own brother. Upon the Saturday, pretending to Lawers that he had use for a pistol, he got money from him to buy one, which accordingly he did, with ball and powder. The use he made of this artillery was to discharge two balls into Lawers's head, while he was fast asleep, betwixt three and four on Monday's morning; and which balls were levelled under his left eye, and went through his head, sloping to the back-bone of his neck ... he was found in a sleeping posture, and had not moved either eye or hand.

1723.

'The fellow went immediately off in a boat for Glasgow, and from thence came here [Edinburgh], the people in the house having no suspicion but that Lawers was asleep, till about eleven o'clock, when they found him as above, swimming in his blood. Upon recollection on several passages

which happened with respect to Duncan Campbell, they presently found him to have been the murderer, and caused the magistrates of Greenock write to the magistrates of Glasgow to apprehend him; but he being gone for Edinburgh, the provost wrote in to our provost here, whereupon there was a search here ... but the villain is not as yet found.

‘The occasion of this execrable murder is said by the murderer’s friends to be to prevent Lawers going back in the marriage, whereof he was then apprehensive; and being a relation of the bride’s, and very active in bringing on that courtship, the devil tempted him to that unparalleled cruelty. But we rather believe that it was to rifle his pockets, for his breeches were from under his head, and nothing but a Carolus and four shillings in them; whereas it is most certain that Lawers always carried a purse of gold with him, and more especially could not but have it when he intended to celebrate his marriage.’^[569]

Campbell was extensively advertised for as ‘a tall thin man, loot-shouldered, pock-pitted, with a pearl or blindness in the right eye,’ dressed in ‘a suit of gray Duroy clothes, plain-mounted, a big red coat, and a thin light wig, rolled up with a ribbon;’ ‘betwixt 30 and 40 years of age;’^[570] and a hundred guineas were offered for his apprehension; but we do not hear of his having ever been brought to justice.

Sir Alexander Murray of Stanhope, Peeblesshire, was one of those men who, possessed of some talent and insight, are so little under the government of common prudence and good temper, that they prove rather a trouble than a benefit to their fellow-creatures. In youth, during the life of his father, he married a beautiful and accomplished woman, Grizel Baillie, grand-daughter by her father of the patriot Robert Baillie of Jerviswood, unjustly put to death in 1684, and by her mother of

1723.

the eminent statesman Patrick Hume, Earl of Marchmont; but after four years of unhappy life, the lady had been separated from him in 1714, after which time she lived for a long series of years in her father’s family, in the enjoyment of universal esteem and respect. Sir Alexander was led by his ardent speculative mind into a series of projects which left him in the middle of life a broken man, and an object of pity to the public. His case is the more deplorable, that many of his ideas were founded upon a just conception of the wants and the capabilities of his country, and only

required means and favourable circumstances to have been carried out to his own and the general advantage.

At this date, he bought a great peninsula of Argyleshire territory, named Ardnamurchan, which he desired, by mining and improved methods of agriculture and social economy, to make a model for the redemption of the entire kingdom from barbarism, sloth, and poverty. He believed the mountains throughout much of the West Highlands and Hebrides to be crossed by mineral veins of great value, and that it was possible from these to realise a great amount of wealth. As to improvement of the surface, it was his belief—contrary to the general impression—that the best plan was to commence a course of improvement upon the tops of the hills. He had observed traces of ancient tillage on the high grounds of Peeblesshire, and, pondering on the matter, had come to see that, the high grounds being naturally most liable to humidity, from the clouds settling upon them, it was of importance to the low grounds that the higher should be drained first. This being effected, and the surplus water led along the hillsides in trenches or canals, he would have the administration of moisture over the surface in a great measure in his own hands. What the Argyleshire and Inverness chiefs thought of such a plan amidst their semi-diluvial existence, we do not learn, but we may imagine something of it.

Sir Alexander tells us that he found his barony of twenty-four Scots miles long occupied by 1352 persons, among whom there was not one devoted to any mechanic art or trade. He tells us that, in one year, he drained a large tract of hilly and boggy ground, one-fourth part of which next year yielded him a hundred and fifty pounds' worth of hay at fourpence per stone. He also commenced mining works, in connection with which there rose a village named New York, containing about 500 persons, many of whom were skilled English workmen. These mines, however, he afterwards leased to the York Buildings Company. He was the first 1723. person who introduced any kind of trade into the district, and he assures us that, in his efforts at general improvement he spent large sums of his own patrimony. Yet, while benefiting the inhabitants in this way, he was the subject of jealousy amongst the better class of people, who regarded him as an alien, a Lowlander, and a spy upon their actions. His cattle were hamstrung or stolen, and his sheep forced over precipices. The buildings on his property were set on fire. There were even plans formed to murder him, from which it was a wonder that he escaped. Strange to say, ten years of

such difficulties did not suffice to disgust him with Ardnamurchan, and he is found, first in 1732, and again in 1740, appealing to Walpole and to parliament for assistance to carry out his plans, all that he required being an abolition of the heritable jurisdictions which enslaved the lower classes to their landlords, and a flotilla of gun-boats to maintain law and order in the country.^[571]

An Edinburgh newspaper notices the death, on the 18th of May 1743, of Sir Alexander Murray of Stanhope, baronet, ‘to whom may be justly applied that beautiful passage from Seneca: “Ecce spectaculum dignum, ad quod respiciat Deus! ecce par Deo dignum, vir fortis cum malâ fortunâ compositus!”’ The writer of the article on Ardnamurchan in the *New Statistical Account of Scotland*, states that the plough has long passed over the site of New York, and that no trace of it remains in the district, excepting in a few English names scattered among the native population.

It may be remarked as to Sir Alexander’s mining schemes in Ardnamurchan, that in a portion of the district—namely, the valley of Strontian—lead-mines have been successfully worked at intervals since his time, the proprietor occasionally realising from £1000 to £1500 a year. The mineral strontites, from which was deduced the earth strontia, was discovered here, and named from Strontian. There was a prevalent belief in the reign of George II. that many valuable minerals might be obtained amongst the Highland mountains, if there were a possibility of working them. The actual discovery of marble in a few places served to support the notion. A very prosaic poet thus alludes to the matter about 1737:

‘No more with stucco need we vessels lade,
Enough thereof has been at Kelso made.^[572]
Nor need our *jamms* with foreign marble shine,
There’s beauteous marble at the Craig of Boin.
Yea, Ross and Sutherland rocks of marble shew,
Which vie in whiteness with the driven snow,
And black-veined marble is in Perthshire found,
Wherewith Banffhouse is ribatted around.’

The poet adds by way of explanation: ‘Craig of 1723. Boin is a rock of marble, veined and diversified with various colours, now a part of the Earl of Findlater’s estate, but formerly belonging to Mr Ogilvie of Boin, from whom Louis XIV. of France got so much of the said marble as finished one of the finest closets in Versailles.’ ‘Sir James Ramsay of

Banff, in Perthshire, after he had built his mansion-house, found out a quarry of jet-black marble, whereupon he pulled the freestone ribs out of the windows, and put marble ones in their place.’^[573]

Soon after this time, we find a society in activity at Edinburgh, ‘for promoting Natural Knowledge,’ which in 1743 invited ‘noblemen, gentlemen, and others, who have discovered or may discover any unusual kinds of earths, stones, bitumens, saline or vitriolic substances, marcasites, ores of metals, and other native fossils, whose uses and properties they may not have an opportunity of inquiring into by themselves, to send sufficient samples of them, with a short account of the places where and the manner in which they are found, directed to Dr Andrew Plummer, one of the secretaries to the Philosophical Society, and the Society undertake, by some of their number, to make the proper trials at their own charge, for discovering the nature and uses of the Minerals, and to return an answer to the person by whom they were sent, if they are judged to be of any use or can be wrought to advantage.’^[574]

To return to personal matters connected with the speculative baronet of Stanhope—the beauty, accomplishments, and moral graces of Lady Murray made it the more unfortunate that she should have been united to one who, with whatever merits, was of too unsteady nature to have ever made any woman happy. It is alleged that, on the second day of their wedded life, a ferocious and unsatisfiable jealousy took possession of his mind, in consequence of seeing his young wife dancing with a friend of his own named Hamilton. He could not dispossess himself of the idea that she loved another better than him. His behaviour to her 1723. would have proved him to have a slight touch of insanity in his composition, even if his ill-calculated projects had not been sufficient to do so. Lady Murray was an admired and popular person in both Scottish and English society. Amongst her friends, the chief authors of the day stood high. Gay introduces her into the group of goodly dames who welcomed Pope back from Greece—that is, congratulated him on his completion of the translation of Homer. After speaking of Lady Mary Wortley Montagu, he says:

‘The sweet-tongued Murray near her side attends.’

He here alluded to her fascinating powers as a songstress, which she is said to have exercised with marvellous effect in singing the songs of her native

land. Lady Murray wrote in her latter days a memoir of her parents, which was published in 1822, and is one of the most charming pieces of biography in the language.^[575]

On the 14th of October 1721, when Lady (then Mrs) Murray was living in her father's house in Westminster, a footman of her brother-in-law, Lord Binning, named Arthur Gray, a Scotsman, was led by an insane passion to invade her chamber in the middle of the night, armed with a drawn sword in one hand and a pistol in the other. All the rest of the family being asleep, she felt how far removed she was from help and protection, and therefore parleyed with the man in the gentlest terms she could use, to induce him to leave her room; but half an hour was thus spent in vain. At length, watching an opportunity, she pushed him against the wall, seized his pistol with one hand, and with another rang the bell. Gray then ran off. He was tried for the offence, and condemned to death, but reprieved. The affair made of course a great deal of noise, and was variously regarded, according to the feelings of individuals. All persons, good and amiable, like Mrs Murray herself, sympathised with her in the distress and agitation which it gave her, and admired the courage and presence of mind she had displayed. The poor outcast poet Boyse represented this generous view of the case in the verses *To Serena*, which he wrote in Mrs Murray's honour:

‘‘Twas night, when mortals to repose incline,
And none but demons could intrude on thine,
When wild desire durst thy soft peace invade,
And stood insulting at thy spotless bed.
Urged all that rage or passion could inspire,
Death armed the wretch's hand, his breast was fire.
You more than Briton saw the dreadful scene,
Nor lost the guard that always watched within,’ &c.^[576]

A different class of feelings was represented by Mrs Murray's friend, Lady Mary Wortley Montagu, who wrote a ballad on the occasion, full of levity and something worse, which may be found in the work quoted below.^[577] This *jeu d'esprit* Mrs Murray resented in a manner which was felt to be unpleasant by Lady Mary, who with difficulty obtained a reconciliation through the intercession of her sister, the Countess of Mar.^[578]

1723.

MAY 9.

An Edinburgh newspaper of this date makes an announcement of a very homely and simple kind, but from which one may nevertheless draw a few inferences illustrative of the age. It is ‘to give notice, that there is a fine bullock to the value of £20 sterling to be killed at Dalkeith the 14th of May, and to be exposed to sale the 16th instant; and whoever has a mind for any of the said bullock, let them repair to the fleshmarket of Dalkeith against the hours of nine and ten o’clock in the morning, on the said 16th day of May, where they shall be kindly entertained by the owners of the said ox: likewise you shall have him more reasonable in proportion than any beef was sold in Scotland this year of God. For your encouragement, you shall have his principal pieces, such as his back-sayes, his fore-sayes, breasts, runners, flanks, hook-bones, marrow-bones, collop-pieces, and rump-pieces, all at 4s. Scots per pound, and his other pieces at 3s. per pound; or, if you please to buy it by the lump without weighing, they shall be welcome. The said ox is two ells and one inch high; in length from the root of the ear to his hip-bone, two yards three quarters; it is calculated by all tradesmen that ever did see him, that he will have ten stone-weight of tallow in his belly. He is one of the same country breed, bought by George Lamb, drover in Greenlaw, from the Right Honourable Lord Hopetoun in the year 1721. There is none in this age ever did see any in this place of Britain like him; I doubt if any such as him be, or to be equalised in England at this day. He has been fed this two years, and he is only six years old just now.’^[579]

Mr Wodrow was never long without some 1723. AUG. perilous affair to grieve over. ‘We have,’ says he at this date, ‘lamentable accounts of the growth of Episcopal Jacobite meeting-houses in the north, especially in Angus. The Commission [of the General Assembly] has sent up an address about them.’^[580]

In the summer of the previous year, a chapel for the use of those in communion with the Church of England according to law, was opened at the foot of Blackfriars’ Wynd, in Edinburgh, with ‘an altar and pulpit handsomely adorned.’ The newspapers of the day inform us—‘Some impious persons, in contempt of all laws human and divine, have demolished several of the glass-windows; but it’s hoped that care will be taken to prevent such scandalous abuses in time coming.’^[581]

The summer of this year was remarked to be unusually dry and sultry, with little wind. The air seemed stagnant, and the water unwholesome. Vast abundance of flies resulted, and a bloody flux became prevalent. ‘In one quarter of the parish [of Eastwood, in Renfrewshire],’ says Wodrow, ‘I saw nineteen sick persons in one day [August 23], and all of them save one of the flux.’ ‘I have never seen so much sickness in Eastwood for twenty years.’^[582]

A symptom of the gradual softening away of the Nov. 7. sombre habits of the people was exhibited in the earlier part of this year, in the commencement of what was called *the Assembly* in Edinburgh, by which was meant an arrangement for a weekly meeting of the younger people of both sexes, for the purpose of dancing. The adventure was at first on a very modest scale, and the place of meeting—‘in the great hall in Patrick Steil’s Close’—might be considered as obscure.^[583] The people who patronised it were chiefly of those at once Tories in politics and 1723. Episcopalians in religion, who, all through the last century, stood in opposition to the general feelings and habits of their countrymen. They were doubtless well satisfied of the legitimate and even laudable character of their design; yet it appears they felt themselves put on the defensive before the public, and were not a little solicitous to give their project a fair appearance. It was loudly proclaimed that the improvement of manners, the imparting of a ‘genteel behaviour,’ was in view; the utility of healthful exercise was insinuated; and a great point was made of the balances to be handed to the poor, for whose benefit no regulated charitable institution as yet existed. Great care was also professedly taken to insure perfect propriety on the part of the company. The ball opened at four in the afternoon, and was rigorously closed at eleven. Without tickets, at *half-a-crown each*, there could be no admission. Discreet matrons held indisputable sovereignty over the scene, before whom no vice could dare to shew its face.

The Assembly, of course, met with opposition from the square-toed part of society. ‘Some of the ministers published their warnings and admonitions against promiscuous dancing, and in one of their printed papers, which was cried about the streets, it was said that the devils were particularly busy upon such occasions.’^[584] A paper pellet was launched, under the title of A

Letter from a Gentleman in the Country to his Friend in the City, with an Answer thereto, concerning the New Assembly; from which we learn that there were serious apprehensions, not only that these weekly meetings would introduce effeminate habits amongst the nobility and gentry, preventing them from serving their country in ‘the useful arts and sciences,’ but that they would encourage vice and prodigality, and thus prove ‘scandalous to religion, and of dangerous consequence to human society.’ The gentleman of the city was particularly distressed in remarking, that ‘the ordinary time spent in public worship each Lord’s Day comes short of the seven hours spent in the Assembly.’ He remarked, moreover, that Edinburgh was a place to which young men were sent for their education, and also to learn ‘merchandising’ and mechanical employments. These young persons would now be liable to be diverted from their proper pursuits in order to study how best to dress themselves for the Assembly, and how in that scene of levity they might best make favour with the fair. After attending there, they would most likely go to taverns. In short, they 1723. would be thoroughly depraved, and the objects of their parents in sending them to town entirely frustrated.

The institution was viewed with especial horror by the more stern professors of Presbyterianism, as folly appears from a book of Patrick Walker, written soon after, in which he reviews the vanities of the age generally. ‘Some years ago,’ he says, ‘we had a profane, obscene meeting, called the *Horn Order*;^[585] and now we have got a new assembly and public meeting called *Love for Love* ... all nurseries of profanity and vanity, and excitements to base lusts; so that it is a shame to speak of these things that are said and done amongst them. Some years ago, our women deformed their heads with *cock-ups*’ [‘some of them half a yard high, set with wires’]; ‘and now they deform their bodies with farthingales nine yards about; some of them in three stories, very unbecoming women professing godliness.... If we would allow ourselves to think or consider, we need not be so vain or look so high, being born heirs of wrath, and our bodies to go to a consuming stinking grave ... and considering the end of our clothing and how we came by them, to cover our nakedness and for warmth to our bodies, and that the sheep’s old clothes are our new.’

Patrick fairly wondered how any one that ever knew what it was to bow a knee in prayer, ‘durst crook a hough to fyke and fling at a piper’s and fiddler’s springs. I bless the Lord,’ says he, ‘that so ordered my lot in my

dancing-days, that made the fear of the bloody rope and bullets to my neck and head, the pain of boots, thumbikens, and irons, cold and hunger, wetness and weariness, to stop the lightness of my head and the wantonness of my feet.' He felt bound to denounce dancing as a 'common evil,' especially among young professors, and he was peculiarly indignant at there being a dancing tune called the *Cameronian March*, which he conceived to be a mockery of the worthy name of Richard Cameron. In Patrick's view, however, dancing was but a symptom of a general 1723. departure from the grave, correct habits of former times. 'In our speech,' says he, 'our Scripture and old Scots names are gone out of request; instead of Father and Mother, Mamma and Papa, training children to speak nonsense, and what they do not understand.' He likewise complains of 'a scandalous omission of the worship of God in families ... abounding amongst us in Edinburgh, the most part singing only a verse of a psalm and reading a chapter; on the Sabbath evening some pray and many not, and no more till the next Sabbath evening.' The open profanation of the Lord's Day he saw to be more and more abounding in Scotland. 'The throng streets, particularly fields, milk-houses, ale-houses in and about sinful Edinburgh, is a sad evidence of this; many going to the fields before sermons, and after sermons multitudes go to their walks.' He states that 'three in one parish in 1716, and nine together in a neighbour parish in 1717, all of them professors, went to the cornfields in these Sabbath mornings, and did shear so many sheaves of corn.'

The poet Allan Ramsay, who maintained a Horatian code of gaiety and enjoyment in the midst of puritanic soberness, strongly took part with the Assembly, and addressed its fair adherents in a poem which, with its prose dedication, has supplied us with some of the above facts. Allan may have had his heart in his theme, but little is to be said for the eloquence of his verses; nor were some of his views as to the pleasures of the Assembly at all calculated to do away with the prejudices of its opponents. We are told, however, that both in the case of the Assembly and that of the Playhouse, hereafter to be noticed, 'the ministers lost ground, to their great mortification, for the most part of the ladies turned rebels to their remonstrances.'^[586]

Two young men destined to be remembered by their country were in the habit of attending the Assembly: one of them a hard-headed, yet speculative genius, rising at the bar; the other a philandering, sentimental being,

absorbed in poetry and Jacobitism; their names Henry Home of Kames and William Hamilton of Bangour; at this time, living in bonds of strongest friendship. Hamilton one day addressed Home ‘in the Assembly,’ thus:

‘While, crowned with radiant charms divine,
Unnumbered beauties round thee shine;
When Erskine leads her happy man,
And Johnston shakes the fluttering fan;
When beauteous Pringle shines confest,
And gently heaves her swelling breast,
Her raptured partner still at gaze,
Pursuing through each winding maze;
Say, youth, and canst thou keep secure
Thy heart from conquering beauty’s power?

.

For me, my happier lot decrees
The joys of love that constant please....
My Hume, my beauteous Hume, constrains
My heart in voluntary chains....
Has she not all the charms that lie
In Gordon’s blush and Lockhart’s eye;
The down of lovely Haya’s hair,
Killochia’s shape or Cockburn’s air?’...

This affords us some idea of the beauties who gave its first attractions to the Assembly.

1723.

As a symptom of a good tendency, it is pleasant to notice at this date the establishment of a *Society for Improving in the Knowledge of Agriculture*, which proposed to hold quarterly general meetings in Edinburgh. The Marquis of Lothian, the Earl of Kinnoull, Lord Elibank, John Campbell, Esq., Lord Provost of Edinburgh, Sir George Dunbar of Mochrum, Sir Alexander Hope of Kerse, Mr Lumsden of Innergellie, Mr John Murray, one of the Clerks of Session, and Ronald Campbell of Balerno, W.S., are enumerated as amongst the constituent members.^[587] The Society in a short time comprehended three hundred of the principal landholders of Scotland. The centre and animating spirit of the fraternity is understood to have been a young Galloway gentleman, Robert Maxwell of Arkland, who about this time took a lease of the farm of Clifton-hall, near Edinburgh, and was there disposed to make experiments in improved husbandry.

Nov. 9.

The *Improvers*, as they were called, from the very first shewed a spirit of activity. In September 1724, we hear of them as being about to publish a book upon the fallowing of ground, the method of ordering ground for grass-seeds, the winning and cleaning of flax, and rules for bleaching linen cloth. At the same time, they patriotically entered into a resolution to discourage the use of smuggled foreign spirits by their personal example, and to use means for promoting the manufacture of spirits from native products.^[588]

A few of their doings appear to us in a somewhat 1723. ludicrous light. For example—in July 1732, they figure in a tradesman’s advertisement of *Punch Brandy*, as certifying it to be ‘a very nice and exact composition,’ after ‘trials of it both in drams and punch.’

Two years later, it goes equally out of its way, but with better excuse, in recommending the woollen cloths made by Andrew Gardner, merchant in Edinburgh, and Andrew Ross, clothier in Musselburgh, as ‘sufficient cloths’ from five to fifteen shillings a yard; the encouraging of which will tend to advance a branch of native industry, and prevent the pernicious exportation of wool.

Nevertheless, there is all fair reason to believe that the Improvers were really worthy of their name. A volume of their Transactions, which Maxwell edited in 1743, enables us to judge of the general scope of their efforts. Meeting once a fortnight at a house near Hope Park, they received queries from individuals throughout the country on agricultural subjects, took these into consideration, and prepared answers. Fallowing, manuring, enclosing, how to treat different kinds of soils, the merits of the Lucerne and St Foin grasses, were the chief subjects discussed; and it must be acknowledged that their transactions bear a general air of judgment and good sense, in addition to a most earnest desire to make two blades grow where one grew before, and so increase the general wealth of the country.

The president for a number of years was Thomas Hope of Rankeillor, a man who deserves to be better remembered than he is. He took, in 1722, a long lease of a marshy meadow to the south of Edinburgh, drained it, and made it into a fine park with shady walks for the recreation of the citizens. He had travelled in England, France, and Holland, to pick up hints for the improvement of agriculture, and he was indefatigable in his efforts to get these introduced at home. It was somewhere in prospect of his park that the

Society held its meetings. His relative, the contemporaneous Earl of Hopetoun, the Earl of Stair, the Earl of Ilay, Lord Cathcart, Lord Drummore, Sir John Dalrymple of Cousland, and Mr Cockburn of Ormiston, were other special zealots in the business of the Society, and whose names figure honourably in its transactions. It is particularly remembered, to the honour of the Earl of Stair, that he was the first to raise turnips in the open fields, and so laid the foundation of the most important branch of the store-husbandry of modern times.

When cattle were stolen in the Highlands, one of the means commonly taken for their recovery was to send an emissary into the supposed country of the thief, and offer a reward for his discovery. This was known among the Highlanders as *tascal-money*, and held in general abhorrence; yet it was sometimes effectual for its purpose.

1723. DEC.

The Camerons, living at issue with the government, had many disorderly men among them, and *tascal-money* became accordingly with them a peculiar abomination. To so great a height did this run, that a large portion of the clan voluntarily took oath to each other, over a drawn dirk, according to their custom, that they would never receive any such reward; otherwise might the weapon be employed in depriving them of their lives.

A *creagh* had taken place, and one of the Camerons was strongly suspected of having given information and taken the unclean thing. A few of his companions consequently called at his house one evening, and, pretending to have some business with him, took him out from his wife and family to a place at such distance as to be out of hearing, where they coolly deprived him of his life. The story is only related in the pages of Burt;^[589] but there is too good reason to believe in its verity. The reporter adds, that for the same offence, another was made away with, and never more heard of.

A more gay and easy style of ideas was everywhere creeping in, to replace the stern and sombre manners of former less happy times. The ever-watchful Mr Wodrow observed the process going on even in the comparatively serious city of Glasgow. He remarks at this time how the young men of that city are less religiously educated than formerly, and how, going abroad in mercantile capacities, they come back with the loose habits of other countries. At the university, the students were

1724. JAN.

beginning to evince a tendency to freedom of thought, and the statement of Trinitarian doctrines by the professors sometimes excited amongst them appearances of dissent and of derision. In the city where there had been a few years back seventy-two regular meetings for prayer, there were now four, while clubs for debating on miscellaneous, and often irreverent questions, were coming into vogue. The discipline of the church was beginning to be less regarded; delinquents receive countenance from society; women of improper character were 1724. occasionally seen on the open street! It seemed to Mr Wodrow that some desolating stroke was impending over the western city. Indeed, they had already lost twenty thousand pounds through the Custom-house difficulties regarding tobacco. 'I wish it may be sanctified to them.'

The worthy minister of Eastwood received soon after a small piece of comforting information from Orkney. A minister in that archipelago, being one Saturday detained from crossing a ferry to preach next day, was induced to break the Sabbath in order to fulfil his engagement, for which, as 'scandalous,' the presbytery processed him. It 'shews they are stricter there in discipline than we are.' On the other hand, the College lads at Glasgow, excited by the process of the presbytery and synod against the liberal Professor Simson, went the length of writing a play taking off the city clergy. 'Matters are come to a sad pass when people begin openly to mock and ridicule gospel ministers; that strikes at the root of all religion!'

Mr Wodrow's report about the state of religion in the army is contradictory. On one page, we hear a lamentation for some serious Christian officers who had left no successors; on another, there is rejoicing over several still living, of the highest religious practice, as Colonel Blackader, Colonel Erskine, Lieut.-colonel Cunninghame, and Major Gardiner of 'Stair's Gray Horse.' These were all of them men of the strictest morals, and who gave much of their time to religious exercises, Gardiner spending four hours every morning in 'secret religion.' Regarding the conversion of this last gentleman, whose fate it was to die on the field of Prestonpans, and to have his life written by Doddridge, Wodrow rather unexpectedly fails to give any trace of the strange tale told by his biographer regarding his conversion, remarking, on the contrary, that the change wrought on him a few years ago was 'gradual and insensible.'

The treatment of a bad class of insolvents at this period seems to have been considerably different from anything of the kind now in fashion. On this day, according to an Edinburgh newspaper, ‘one George Cowan, a Glasgow merchant, stood in the pillory here, with this inscription on his breast: GEORGE COWAN, A NOTORIOUS FRAUDULENT BANKRUPT.’

JAN. 29.

A Society for cultivating historical literature was established in Edinburgh, though not destined to make any great or permanent mark on the age. It took its rise among men of Whig professions, and, perhaps, its having party objects in view was mainly what forbade it to acquire stability or perfect any considerable work. At its head is found a man of no small merit as an editor of historical muniments, James Anderson. It included the names of the Rev. George Logan, afterwards noted for his controversies with Ruddiman; Charles M’Ky, professor of history in the Edinburgh University; and two or three other persons of less note.^[590] Mr Wodrow, whose laborious *History of the Sufferings of the Church of Scotland* had now been a couple of years before the world, was invited to join. The first business before this Society was to consider what could be done towards a new edition of the works of George Buchanan. These had been published in goodly form by Robert Freebairn in 1715—a credit to the Scottish press in externals, and in the learning of the editor, Thomas Ruddiman; but the Whigs had to regret that the annotations were in a strain sadly out of harmony with that of a democratic author; and hence their desire to see another edition. The Society was now holding meetings once a fortnight for the preparation of such a work, and were even disposed to ask that an edition contemplated in Holland should be delayed till theirs came out, in order that their views should obtain additional circulation;^[591] yet it never came to perfection, and the curtain of oblivion soon after falls upon the Historical Society.

FEB.

1724.

Gordon of Glenbucket had been invested by the Duke of Gordon in some lands in Badenoch by virtue of a wadset.^[592] The tenants, Macphersons, felt aggrieved at having a new landlord put over them, and refused to pay any rent. Glenbucket consequently raised a process at law for their ejection, a measure which was then as much

MAR.

calculated to engender murderous feelings in Scotland, as it has since been in Ireland.

Five or six of them, young fellows, the sons of gentlemen, including Alexander Macpherson, son of Breakachie; Andrew Macpherson, son of Benchar; and John Macpherson, nephew of Killihuntly, came one evening to Glenbucket's house, which they entered as seeming friends. He was sickly and under the influence of medicine, and was sitting on his low-framed bedstead, preparing to go to rest. They told him they had come to express their regret for the dispute which had happened—they were now resolved to acknowledge him as their landlord, and 1724. pay him rent—and they had only to entreat that he would withdraw from the legal proceedings he had entered upon. While addressing him in this manner, they gradually drew close to him, in order to prevent him from defending himself against their contemplated onslaught, for they knew his courage and vigour, and that he was not far from his arms. They then suddenly fell upon him with their dirks, and, having him for the moment at advantage, they gave him many wounds, though none that were deadly. He contrived, amidst the bustle, to lay hold of his broadsword, which lay on the tester of his bed; and thus armed, he soon drove his assassins from the house. Burt, who relates this incident,^[593] remarks, with just surprise, that it took place within sight of the barrack at Ruthven.^[594]

The young men above named, being believed to be the perpetrators of this crime, were soon after outlawed for failing to attend the summons of the Court of Justiciary. They were so far under terror of the law, that they found it necessary to 'take to the bent;' but they nevertheless continued with arms in their hands, and, in company with others who had joined them, lived tolerably well by spulyie committed on the Duke of Gordon's tenants in Badenoch.

In November 1725, General Wade is found sending a circular to the officers commanding the six Highland companies, ordering them, in compliance with a request from the duke, to use diligence in discovering and taking these outlaws, and any who might harbour them, in order to their being brought to justice. This effort, however, seems to have been attended with no good effect; and in the ensuing July, the duke wrote to the general, expressing his 'free consent that application be made for taking off the sentence of fugitation' against six associates of the assassins—namely, John

Macpherson in Bellachroan; Elias Macpherson in Coraldie; Alexander Macpherson, nephew to Killihuntly; William Macpherson, son to Essick; Donald Macpherson, son to John Oig Macpherson in Muccoul; and Lachlan Macpherson of Laggan, provided they delivered up their arms, and promised to live as obedient subjects to King George in future. His Grace at the same time expressed his opinion, that it was ‘absolutely necessary for the peace of Badenoch’ that the three principals in the attack on Glenbucket should be brought to justice. The general accordingly ordered fresh and vigorous efforts to be made for the apprehension of these persons.^[595] We learn from Burt that they were ultimately forced to take refuge in foreign countries.

1724.

The people of Edinburgh were regaled with the amusing spectacle of a *bank* beat through the city, by permission of King George, for recruits to the king of Prussia’s regiment of ultra-tall grenadiers. Two guineas of earnest-money were administered. A local chronicler assures his readers, that ‘those listed are men of such proper size and good countenances, as we need not be ashamed of them in foreign services.’^[596] A recruiting for the same regiment is noticed in Edinburgh four years later.

APR. 8.

The Rev. Mr J. Anderson, in a letter of this date, gives Mr Wodrow an account of a dumb gentleman, a Mr Gordon, who attracted great attention on account of the knowledge he appeared to have of things not patent to ordinary observation, and with which he had no visible means of becoming acquainted. The powers of *clairvoyance* occasionally attributed in old times to dumb persons have already been adverted to. Gordon, who was a man of respectable connections, and seventy years of age, a widower with three grown children, and supported chiefly by going about among his friends, had thoroughly excited the wonder of Mr Anderson.

APR. 10.

A lady, missing some brandy, asked Mr Gordon who had taken it; ‘upon which he went to the kitchen, and brought up one of the maid-servants, to whom, before her lady, he signed that she had stolen the keys of the cellar and taken it away ... the servant was forced to own all.’

On another occasion, ‘a gauger coming in, whom he had never seen before, he signed before the company present what 1724. was his business; that he had been a soldier, and how long he had been a gauger in this country, and how long in Fife, and that he had once been suspended, and again reponed, with several other particulars, which astonished the man, who owned all to be truth.’

‘A child of seven years of age engaging one of the company to play with pins at *Heads and Points*, the person soon got all his pins, the child having no skill to hide them. The lady, the mother of the child, told the person in jest she would win back the child’s pins; and, Gordon drawing near, he still directed her how to lay when the other person was hiding, and she never failed to win till all were got back.... When he gets money from ministers, he very oft signs whether they give it out of their own pocket or out of the poor’s box.... To a minister’s family here he signed, when he came to the house, where he was, and sometimes what he was doing—particularly at a certain hour, if he was shaving; which, upon the minister’s return, he owned to be true.’

Some, adds Mr Anderson, ‘think he has converse with a familiar spirit; and it’s certain that dumb people have frequently been their tools.’^[597]

There was profound peace, and the seasons for MAY. twelve years past had been favourable; yet we hear at this time of a general poverty in the land, and that, too, from a reporter in the neighbourhood of Glasgow, where, if anywhere, there had been some fruitful industry in consequence of the Union. Mr Wodrow’s statements are, indeed, to be taken with some caution, as his views of national wellbeing are apt to be distorted by his fears regarding changes of religious feeling and practice. Still, the picture he draws must have involved some, though not the whole truth.

He tells that under this peace ‘we are growing much worse. The gentry and nobility are either discontent or Jacobite, or profane; and the people are turning loose, worldly, and very disaffected. The poverty and debts of many are increasing, and I cannot see how it can be otherwise. There are no ways to bring specie into this country. Trade is much failed [the tobacco-trade of the Clyde had temporarily declined under the malignant efforts of the English ports]. Any trade we have is of that kind that takes money from among us, and brings in French brandy, Irish meal [oatmeal was but

fourpence a peck], tea, &c. Unless it be a few coals 1724.
from the west [the coal-field of Ayr and Renfrewshires], and some black-cattle from the south [Galloway], and many of these are not our breed, but Irish, I see no branch of our business that brings in any money. The prodigious run of our nobility and gentry to England, their wintering there, and educating their children there ... takes away a vast deal of money every year. It's plain we are overstocked with people, considering their idleness, and that makes the consumpt very great;' which 'will infallibly at length impoverish us. To say nothing of the vast losses many have sustained by the South Sea, York Buildings, our Fishing Company, and other bubbles. The Lord, for our sins, is angry, and frowns upon us, in outwards [*i. e.*, outward circumstances].'^[598]

In the district of Galloway (Kirkcudbright and Wigtonshires), where the basis of the population is Celtic, the idleness and consequent poverty of the people was peculiarly great. There was a prodigious number of small tenantry, of very indolent character, and who were accustomed to 'run out' or exhaust their land to the last extremity, cropping it two years for one of lea, of course without manure, and being at the same time generally several years behind in their rents. It was a state of things very like what our own advanced age has been fated strangely to see prevalent over large tracts of Ireland and of the Highlands of Scotland—a fearful misapplication and misplacement of human nature, with frightful natural consequences in chronic misery and disorganisation. The landlords, anxious to introduce a better system, began to subdivide and enclose their lands, in order to stock them with black-cattle, and to eject tenants hopelessly sunk in idleness and poverty.

Among those ejected on the estates of Gordon of Earlstoun and the Viscountess Kenmure, were two farmers of better means, whose only fault was that they would not engage for the solvency of their sub-tenantry; and these two now banded together to support each other in keeping possession of their holdings. Others readily came into this covenant. A common sense of suffering, if not wrong, pervading the country, raised up large bands of the miserable people, who, deeming the enclosures a symbol of the antagonist system, began to pull these down wherever they came. 'Their manner was to appoint a meeting on Tuesday, and continue together till Thursday, and then separate. They prepared 1724.
gavelochs [levers] and other instruments, and did their work most

dexterously. Herds and young boys first turned over the head and loose stones; then the women, with the hand and shoulders, turned down the dike; the men came last, and turned up the foundation.' A band of thirty of the *Levellers*, as they were ominously called, went to Kirkcudbright, and there published a manifesto, declaring the government of the country to be now in the hands of the tenantry, and ordering all who had any debates to come to them and get them determined.

The gentlemen of the district, irritated, and to some extent alarmed, called in a military force under Lord Crichton and a French Protestant refugee officer, Major Du Carry, to preserve the peace. The lairds of Heron and Murdoch, and Gordon of Earlstoun, were for strong measures; Murray of Broughton and Colonel Maxwell inclined to leniency and persuasion. Seven or eight of the ringleaders being taken up, a sort of fiery cross went through the country on the ensuing day, though a Sunday, ordering the people to assemble at three points for their defence; and a stand was actually made by about thirty against the attack of the troops. One of the gentlemen of the district had a horse wounded under him by a rioter. It seems to have been a fierce and determined encounter on the part of the Levellers; but it ended, as such encounters always end, in the defeat of the insurgent party, of whom sixteen were taken prisoners. As these were being carried away, a mob of women, strong in their weakness and their misery, assailed the soldiers, and one sprang like a wildcat upon a trooper, but only to be trampled under his horse. The soldiers succeeded in lodging their prisoners in Kirkcudbright tolbooth. At the trials which ensued, 'those who had any funds were fined; some were banished to the plantations; others were imprisoned. A respectable man, of the name of M'Laherty, who lived in Balmaghie parish ... on his being brought to trial, one of the justices admired a handsome Galloway which he rode, and the justice told him, if he would give him the Galloway, he would effect his acquittal, which he accordingly did.'^[599]

These severities brought the levelling system to a close in the stewartry of Kirkcudbright; it was kept up for some time later in Wigtonshire, but gradually died away there also. The country was left in the hands of the gentry and soldiery, without any effectual remedy 1724. being applied to the evils out of which the dike-breaking had sprung. Herds of miserable people continued going about Galloway, a subject of painful but fruitless compassion to the rest of their countrymen.^[600]

A venerable gentleman, just quoted, was able, in 1811, to give the following striking picture of the general manner of living of the Galloway rural population of 1724. ‘The tenants, in general,’ he says, ‘lived very meanly on kail, groats, milk, gradden grinded in querns turned by the hand, and the grain dried in a pot, together with a crock ewe^[601] now and then about Martinmas. They were clothed very plainly, and their habitations were most uncomfortable. Their general wear was of cloth, made of waulked plaiding, black and white wool mixed, very coarse, and the cloth rarely dyed. Their hose were made of white plaiding cloth, sewed together, with single-soled shoes, and a black or blue bonnet, none having hats but the lairds, who thought themselves very well dressed for going to church on Sunday with a black kelt-coat of their wife’s making.... The distresses and poverty felt in the country during these times ... continued till about the year 1735. In 1725, potatoes were first introduced into the stewartry [of Kirkcudbright] by William Hyland, from Ireland,^[602] who carried them on horses’ backs to Edinburgh, where he sold them by pounds and ounces. During these times, when potatoes were not generally raised in the country, there was for the most part a great scarcity of food, bordering on famine; for in the stewartry of Kirkcudbright and county of Dumfries, there was not as much victual produced as was necessary for supplying the inhabitants; and the chief part of what was required for that purpose was brought from the sand-beds of Esk in tumbling cars, on the Wednesdays, to Dumfries; and when the waters were high by reason of *spates*—there being no bridges—so that these cars could not come with the meal, I have seen the tradesmen’s wives, in the streets of Dumfries, crying because there was none to be got. At that period there was only one baker in Dumfries, and he made bawbee baps of coarse flour, chiefly bran, which he occasionally carried in creels to the fairs of Urr and Kirkpatrick. The produce of the country in general was gray corn, and you might have travelled from Dumfries to Kirkcudbright, which is twenty-seven miles, without seeing any other grain, except in a gentleman’s croft, which, in general, produced bear ^{1724.} or *bigg* for one-third part, another third in white oats, and the remaining third in gray oats. At that period there was no wheat raised in the country: what was used was brought from Teviot; and it was believed that the soil would not produce wheat.... Cattle were very low. I remember being present at the Bridge-end of Dumfries in 1736, when Anthony M’Kie, of Netherlaw, sold five score of five-year-old Galloway cattle in good

condition to an Englishman at £2, 12s. 6*d.* each; and old Robert Halliday, who was tenant of a great part of the Preston estate, told me that he reckoned he could graze his cattle on his farms for 2s. 6*d.* a head—that is to say, his rent corresponded to that sum.’[\[603\]](#)

Allan Ramsay, in some jocular verses, JULY 6.
compliments Mr David Drummond, advocate, for the victory he this day gained as an archer, in ‘shooting for the bowl’ at Musselburgh. The old gentleman had gained the prize of the silver arrow exactly fifty years before. These trivial facts suggest the existence of what was called a Royal Company of Archers all through the reigns of Anne and the first George, a sodality composed almost exclusively of the Jacobite aristocracy, and, in fact, a sort of masked muster for the cause of the exiled Stuart. Besides private convivial meetings, where doubtless much enigmatical affection for the old line of princes found vent, there was an annual meeting for a shooting-match, attended by a showy procession through the streets of Edinburgh, in order to impress the public with an idea of their numbers, and the rank and influence of the members. They had their captain-general, usually a nobleman of the highest rank; their first and second lieutenant-generals, their adjutant, and other officers; their colours, music, and uniforms; in short, a pretty effective military organisation and appearance. The dress, which they innocently believed to be after the ancient Roman model, was of tartan trimmed with green silk fringe, with a blue bonnet trimmed with green and white ribbons, and the badge of St Andrew in the front; their bows and swords hung with green and white ribbons; the officers being further distinguished by having the dress laid over with silver lace. The cavalier spirit of Allan Ramsay glowed at seeing these elegant specimens of the *Aristoi* of Scotland engaged at butts and rovers, and often poured itself forth in verses to their praise. Pitcairn, 1724.
Sir William Bennet of Grubbet, and Sir William Scott of Thirlstain, were equally ready to celebrate in Latin sapphics their contentions for the bowl and silver arrow at Musselburgh—drolly translated *Conchipolis* in their verses. There was a constant and obvious wish on the part of the society to look as ‘braid’^[604] as possible, and so let the world slily understand how many men of mark were in their hearts favourable to the still hoped for restoration.

The Royal Company had a particularly ostentatious parade in Edinburgh on the 10th of July 1732. Having assembled in the Parliament Square, a party of thirty-six was despatched under the Earl of Wemyss to the Duke of Hamilton’s lodging in Holyrood, to bring up the standard, on which, besides

other insignia, was depicted the national lion ramping in gold, with the significant motto, 'PRO PATRIA DULCE PERICULUM.' They then marched through the city to the Links in the following order, as described by a sympathising contemporary record:

'The Duke of Hamilton, captain-general, preceded by the Lord Bruce on horseback, with fine Turkish furniture, who acted as major-general in absence of the Earl of Crawford; next, the music, consisting of trumpets, hautboys, *cors-de-chasse*, alternately playing the proper march of the company, and answered by nine drums (all in the company's livery), and they again by the music-bells. Mr David Drummond, advocate, president of the council; Sir Archibald Primrose of Dunipace, and William Sinclair of Roslin, brigadiers, at the head of the first brigade. My Lord Viscount Oxford, brigadier, marched up the second brigade; my Lord Kinnaird, brigadier, the third; George Lockhart of Carnwath, brigadier, the fourth. The Earl of Wigton, second lieutenant-general, before the colours, which were carried by the Earl of Cassillis; and the Lord Rollo, supported by the Earl of Kilmarnock, and Master Thomas Lyon, brigadiers, led up the centre brigade; David Smith of Methven, brigadier, the sixth brigade; Sir Robert Stewart of Tillicultry, brigade the seventh; the eighth and last brigade by the Lord Cranston, brigadier, followed up by James Hepburn of Keith, and the Lord Gairlies, brigadiers, and closed in the rear by the Earl of Wemyss, first lieutenant-general; Colonel John Stewart, brother to Grantully, and Arthur Forbes of Pittencrief, acting as adjutants-general, on horseback, on the wings of the several brigades.

'In front of all marched the several decked 1724. horses, and other equipage, &c., of the several officers, which, being very rich and magnificent, made a very fine show; and after them, the silver arrow, carried by the company's officer.

'There was on this occasion an infinite crowd of spectators, who came from all quarters to see this splendid appearance, and who expressed their satisfaction by loud acclamations.

'The lord provost and magistrates saw the procession from a window, and were saluted by the several officers, as did General Wade from a balcony in the Earl of Murray's lodgings. The governor of Damascus came likewise to see the ceremony. Betwixt one and two o'clock, the company arrived in the Links, whence, after shooting for the arrow (which was won

by Mr Balfour of Forret), they marched into Leith in the same order; and after dinner, returned to the city, and saw acted the tragedy called *Macbeath*.’^[605]

It is very sad to reflect how the Earl of Kilmarnock and some others of this noble company came to ruin a few years after by carrying the play a little too far.

The magistrates of Edinburgh issued an edict JULY 15. proceeding upon a recital that disturbances have arisen, and may further arise, from gentlemen carrying firearms, and their servants wearing dirks and broadswords, in the streets, a practice ‘contrary to the rules of decency and good order;’ wherefore it was now strictly forbidden.^[606] It is to be remarked that in this prohibition there is no notice taken of the swords worn by gentlemen.

The danger arising to the government from JULY. having a rude people of disaffected sentiments and hardy warlike character seated in the north-west parts of Scotland, was now brought before it with sufficient urgency to cause the adoption of remedial measures. An effectual disarming act, the raising of armed companies in the pay of the government, the completion of a line of forts, and the formation of roads by which these should be accessible and the benefits of civilisation imparted to the country, were the chief means looked to for doing away with the Highland difficulty. A sensible English officer, General George Wade, was sent down to act as commander-in-chief of the troops in Scotland, and carry these measures into effect.

If we may believe a statement which there is all 1724. reason to believe except one—the character of its author, who was no other than Simon Lord Lovat—it was high time that something was done to enforce the laws in the Highlands. In William’s reign, there had been an armed watch and a severe justiciary commission; but they had long been given up; so, after a temporary lull, things had returned to their usual course. The garrisons at Fort William, Killicummin, and Inverness proved ineffectual to restrain the system of spoliation, or to put down a robbers’ tax

called *black-mail* [nefarious rent], which many paid in the hope of protection.

The method by which the country was brought under this tax is thus stated: ‘When the people are almost ruined by continual robberies and plunders, the leader of the band of thieves, or some friend of his, proposes that for a sum of money to be annually paid, he will press a number of men in arms to protect such a tract of ground, or as many parishes as submit to pay the contribution. When the contributions are paid, he ceases to steal, and thereby the contributors are safe. If he refuse to pay, he is immediately plundered. To colour all this villainy, those concerned in the robberies pay the tax with the rest, and all the neighbourhood must comply, or be undone.’^[607] Black-mail naturally prevailed in a marked manner in fertile lowland districts adjacent to the Highlands, as Easter Ross, Moray, and the Lennox.

Directly with a view to the prevention of robberies, and the suppression of this frightful impost, the government established six companies of native soldiery, selected from clans presumed loyal, and respectively commanded by Lord Lovat, Sir Duncan Campbell of Lochnell, Colonel Grant of Ballandalloch, Colonel Alexander Campbell of Finab, John Campbell of Carrick, and George Monro of Culcairn. The whole, consisting of four hundred and eighty men, were dressed in plain dark-coloured tartan, and hence were called the *Reicudan Dhu*, or Black Watch. Burt reports an allegation, that one of the commanders [Lord Lovat?] used to strip his tenants of their best plaids, wherewith to invest his men at a review. On the other hand, there were men of such birth and breeding in the corps, that they had *gillies* to do drudgery for them. They were posted in small parties throughout the more lawless parts of the country, and are represented as having been reasonably effective for their purpose.

For the disarming of the disaffected clans, Wade 1724. had his six native companies and four hundred troops of the line ready at Inverness to proceed with the work in June 1725; but the riot about the malt-tax at Glasgow delayed his measures, and it was not till the 10th of August that he marched in force towards the rendezvous of the Mackenzies at Brahan Castle. The heads of the clan saw it to be necessary to obey, or to appear to obey, and also to promise that in future the rents of their chief, the forfeited Earl of Seaforth, should be paid to the state, instead of to Donald

Murchison. The general on his part allowed them to understand that, very probably, if they made this submission, their chief would be pardoned and restored. One little concession they had to ask from the English general—let him spare them the humiliation of delivering their arms in the presence of the *Reicudan Dhu*. To this the general consented. He sent the native loyalists to guard the passes to the westward.

It must have been a solemn and interesting sight to an English officer of impressionable feelings, if such a being then existed, when the troops took up their position in front of that grand old Highland fortress, amidst scenery of the most magnificent kind, to receive the submission of a high-spirited people, who had resisted as long as resistance was possible. First came the gentlemen or *duine-wassels*, about fifty in number, to pay their respects to the general. Then followed in slow procession along the great avenue, the body of the clansmen, in parishes, forty or fifty in each, marching *four and four*, and bringing their arms on horses. On arriving in front of the house, they unloaded and deposited the weapons, drank the king's health, and slowly turned away.^[608] 'The chiefs of the several tribes, and other principal gentlemen of the country, dined the same day with the general, and great civilities and mutual assurances of good offices passed on both sides. They promised the general that the rents of the estate should be punctually paid to the crown, for the use of the public, and a dutiful submission [rendered] to his majesty's government.'^[609] Weapons to the number of 784 were given in; but in reality they were only the oldest and most worn of the arms possessed by this great clan. Donald Murchison had taken care previously to gather up all their best arms into some central 1724. store unknown to the government.^[610]

Following this example, and partly, it is alleged, induced by little favours extended or promised by the general, the rest of the Jacobite clans, the Macdonalds, Camerons, Macleods, &c., made an appearance of surrendering their arms at various appointed stations during the autumn. The entire number of articles given in was 2685. The total expense of the collection was about £2000, and the general gives us an idea of the true state of the case, beyond what he possessed himself, when he tells us that the articles for the most part were worth little more than the price of old iron.

General Wade received submissive letters from many of the chiefs and others who had been in the insurrection of 1715, all professing anxiety for pardon, and promising a quiet life in future. There was none more submissive than one from Rob Roy, who contrived to make it appear that his treason was against his will. 'It was my misfortune,' says he, 'at the time the Rebellion broke out, to be liable to legal diligence and caption, at the Duke of Montrose's instance, for debt alleged due to him. To avoid being flung into prison, as I must certainly have been, had I followed my real inclinations in joining the king's troops at Stirling, I was forced to take party with the adherents of the Pretender; for the country being all in arms, it was neither safe nor possible for me to stand neuter.' Of course, this was meant by Rob as merely a civil apology for deliberate rebellion. To give it confirmation, he told the general: 'I not only avoided acting offensively against his majesty's forces upon all occasions, but, on the contrary, sent his Grace the Duke of Argyle all the intelligence I could from time to time, of the situation and strength of the rebels; which I hope his Grace will do me the justice to acknowledge.' It is to be hoped that Rob was not here so dishonest as to speak the truth. There is ample reason to believe that the frank English general was imposed upon by the professions made by the Jacobite chiefs, for he reported to government that disaffection was much abated, and interested himself zealously for the pardon of several of the attainted gentlemen.

A poor woman named Margaret Dickson, an inhabitant of the parish of Inveresk, was tried under the act of 1690 for concealment of pregnancy in the case of a dead child. A defence was made for 1724. her that she was a married woman, though living separate from her husband; but it was of no avail. A broadside— SEP. 2. —which proceeds upon a strong approval of the text, that 'the works of God are works of wonder, and his ways past finding out'—gives a minute recital of the circumstances of her execution in the Grassmarket; how the hangman did his usual office of pulling down her legs; and how the body, having hung the usual time, was taken down and put into a coffin, the *cooms* of which were nailed fast at the gibbet-foot. It then proceeds. 'Being put into a cart, to transport her corpse to be interred in the churchyard of Inveresk, whither the magistrates had allowed her friends to carry her, there happened

a scuffle betwixt her friends and some surgeon-apprentices and others, their accomplices, on this side of the Society Port. One, with a hammer, broke down one of the sides of the cooms of the chest; which, having given some air, and, together with the jolting of the cart, set the blood and vitals agoing. The people intrusted with transporting her body having stopped at Peffermill to take a refreshment, and left her upon a cart in the highway, two joiners, from curiosity, came from a house to view the coffin, and, to their surprise, heard a noise within. Acquainting the persons concerned, they proposed to open the other side of the cooms of the chest, which, after some opposition, was agreed to. The coom being taken off, they perceived her to draw up her limbs. One Peter Purdie, a practitioner of phlebotomy, providentially breathed a vein, from which streamed blood, which recovered her so far, that twice she said: “O dear!” Being brought to her feet, she was supported by two to a brae-side, where the blood returned to her lips and cheeks, which promised a sudden recovery. Being laid upon blankets in a corn-cart, her head and body upheld by a woman, she was driven to Musselburgh, where she remained, at the magistrates’ command, all night; had restoratives and means of sustenance given her; was visited by Mr Robert Bonally, one of the ministers of that place, who prayed over her; and next morning was laid in a bed in her brother James Dickson, weaver, his house, whither a great many flock every day to see her, and not a few gave her money. She had little appearance of recovering her health or senses next day, and cried out to let her be gone, for she was to be executed on Wednesday, but is now pretty well—only complains of a pain in her neck. She went to church on Sunday last, and heard sermon, where the people were so anxious to see her, that the minister

1724.

was obliged to conduct her out of the churchyard to keep her from being trodden down by the multitude. She still remains in a hopeful way of recovering strength and judgment. May this amazing dispensation of Providence be sanctioned to her, and teach all who shall hear it to act a needy dependence upon, and live to the glory of God, to whom belong the issues of life and death!’^[611]

Another brief chronicler of the time informs us, that Maggie devoted the Wednesday ensuing upon that on which she was executed to solemn fasting and prayer, in gratitude for her deliverance, and had formed the resolution so to employ each recurring Wednesday during the remainder of her life.^[612] It is also stated that her husband, struck with a forgiving interest in her, took

her ultimately back to his house. She lived to have several children creditably born, and cried salt for many a day through the streets of Edinburgh, universally recognised and constantly pointed out to strangers as ‘Half-hangit Maggie Dickson.’

At the village of Gilmerton, four miles to the south of Edinburgh, the soft, workable character of the sandstone of the carboniferous formation, there cropping to the surface, tempted a blacksmith named George Paterson to an enterprise of so extraordinary a character, as to invest his name with distinction in both prose and rhyme. In the little garden at the end of his house, he excavated for himself a dwelling in the rock, composed of several apartments. Besides a smithy, with a fireplace or forge, there were—a dining-room, fourteen and a half feet long, seven broad, and six feet high, furnished with a bench all round, a table, and a bed-recess; a drinking-parlour, rather larger; a kitchen and bed-place for the maid; a liquor-cellar upwards of seven feet long; and a washing-house. In each apartment there was a skylight-window, and the whole were properly drained. The work cost the poor man five years of hard labour, being finished in the present year. Alexander Pennecuik, the burgess-bard of Edinburgh, furnished an inscription, which was carved on a stone at the entrance:

‘Here is a House and Shop Hewn in this Rock with my own Hands.

GEORGE PATERSON.

‘Upon the earth thrives villainy and wo,
But happiness and I do dwell below;
My hands hewed out this rock into a cell,
Wherein from din of life I safely dwell:
On Jacob’s pillow nightly lies my head,
My house when living, and my grave when dead:
Inscribe upon it when I’m dead and gone:
“I lived and died within my mother’s womb.”’

It is kept in remembrance that Paterson actually lived and practised his calling in this subterranean mansion for eleven years. Holiday-parties used to come from the neighbouring capital to see him and his singular dwelling; even judges, it is alleged, did not disdain to sit in George’s stone-parlour, and enjoy the contents of his liquor-cellar. The ground was held *in feu*, and the yearly duty and public burdens were

1724.

forgiven him, on account of the extraordinary labour he had incurred in making himself a home.^[613]

The idea of improving agricultural implements was hitherto unheard of in Scotland; but now a thrashing-machine was invented by Mr Michael Menzies, a member of the Scottish bar. On his request, the Society of Improvers sent a deputation to see it working at Roseburn, near Edinburgh; and these gentlemen reported upon it favourably.^[614] I am unable to say whether it was identical with a thrashing-machine advertised in July 1735, as to be had of Andrew Good, wright in College Wynd, Edinburgh; one to thrash as much as four men, £30; one to do as much as six, £45; and so on in proportion, ‘being about £7, 10s. for each man’s labour that the machine does, which is but *about the expense of a servant for one year.*’ It was held forth, regarding this machine, that for the driving of one equal to four men, most water-mills would suffice, and one so working was to be seen at Dalkeith.^[615]

It would appear, however, that the idea of a machine for thrashing had, after this time, completely fallen out of notice, as the one which has long been in use was, in its original form, the invention of Michael Stirling, farmer at Craighead, in the parish of Dunblane, who died in 1796, in the eighty-ninth year of his age.

‘This venerable man, when in the prime of life, had a strong propensity to every curious invention; and, after much thought 1724. and study, he prepared and finished, in 1748, a machine for thrashing his corn. The axis of the thrashing-board was placed perpendicular, and was moved by an inner wheel on the same axis with an outer one that went by water. The men stood round about these boards like lint-cleaners, each man with his sheaf, and performed the work with great rapidity [at the rate of sixteen bolls of oats *per diem*]. Mr Stirling’s neighbours were by no means struck with the invention, but laughed at it, and called him a maggoty fellow. The wonderful powers of the machine, however, drew the attention of strangers, who came and picked up models, and so were enabled to erect others both in Scotland and England.’^[616] Subsequently, Mr Meikle, at Alloa, obviated the inconvenience of the perpendicular arrangement of the axis, by laying it down in a horizontal form.

A machine for the winnowing of corn was, as far as can be ascertained, for the first time made in this island by Andrew Rodger, a farmer on the estate of Cavers in Roxburghshire, in the year 1737. It was after retiring from his farm to indulge a bent for mechanics, that he entered on this remarkable invention, and began circulating what were called *Fanners* throughout the country, which his descendants continued to do for many years.^[617] This machine is well known to have been the subject of a religious prejudice among our more rigid sectaries, as indicated anachronously by Scott in the conversation between Mause Headrig and her mistress—‘a new-fangled machine for dighting the corn frae the chaff, thus impiously thwarting the will o’ Divine Providence by raising wind for your leddyship’s use by human art, instead of soliciting it by prayer, or patiently waiting for whatever dispensation of wind Providence was pleased to send upon the shielinghill.’^[618] The ‘seceders’ are understood to have taken very strong ground in resistance to the introduction of fanners, deeming the wind as specially a thing made by God (‘he that createth the wind,’ *Amos* iv. 13), and therefore regarding an artificial wind as a daring and impious attempt to usurp what belonged to him alone. The author has been informed that an uncle of the late national poet, Robert Gilfillan, was extruded from a Fife congregation of this kind because of his persisting to use fanners.

About the end of this month, the people of 1725. JAN. Orkney were thrown into some excitement by the arrival of a suspicious-looking vessel among their usually quiet islands. She professed to be a merchantman bound for Stockholm; but her twenty-two guns and crew of thirty-eight men belied the tale. In reality, she was a pirate-ship, recently taken under the care of a reckless man named Gow, or Smith, who had already made her the means of perpetrating some atrocious villainies in more southern seas. His alleged connection with Caithness by nativity, and Orkney by education, was perhaps the principal reason for his selecting this part of the world as a temporary refuge till some of his recent acts should be forgotten. His conduct, however, was marked by little prudence. He used to come ashore with armed men, and hold boisterous festivities with the islanders. He also made some attempts to enter into social relations with the gentlemen of the country. It was even said that, during his brief stay, he made some way in the affections of a young gentlewoman, who little imagined his real character. It was the more unaccountable that he lingered thus in the islands, after ten of his people, who had recently been pressed

into his service, left his vessel, and made their escape in a boat—a circumstance that ought to have warned him that he could not long evade the notice of the law. In point of fact, the character of his ship and crew were known at Leith while he was still dallying with time in the taverns of Stromness.

At length, about the 20th of February, Gow left the southern and more frequented part of the Orkney group, and sailed to Calf Sound, at the north part of the island of Eday, designing to apply for fresh provisions and assistance to a gentleman residing there, who had been his school-fellow, Mr Fea, younger of Clestran. Chancing to cast anchor too near the island, the pirate found that his first duty must be to obtain the assistance of a boat to assist his men in bringing off the vessel. He sent an armed party of five under the boatswain to solicit this help from Mr Fea, who received them civilly, but immediately sent private orders to have his own boat sunk and the sails hidden. He took the party to a public-house, where he entertained them, and so adroitly did he manage matters, that ere long they were all disarmed and taken into custody. The people of the country and some custom-house officers had by this time been warned to his assistance.

Next day, a violent wind drove the vessel ashore on Calf Island, and Gow, without a boat, began to feel himself in a serious difficulty. He hung out a flag for a conference with Mr Fea, who 1725. consequently sent him a letter, telling him that his only chance now was to yield himself, and give evidence against his company. The wretch offered goods to the value of a thousand pounds for merely a boat in which he could leave the coast; but Mr Fea only replied by renewing his former advice. Some conferences, attended with considerable danger to Mr Fea, took place; and Gow ultimately came ashore on Calf Island, and was secured. It is narrated that when he found himself a prisoner, he entreated to be shot before he should have to surrender his sword. His men were afterwards made prisoners without much difficulty.

Gow and his company were transported to London, and tried by the Court of Admiralty on the 27th of May. Himself and eleven others were found guilty, and condemned. There was at first some difficulty in consequence of his refusing to plead. The court, finding him refractory on this point of form, at first tried to bring him to reason by gentle means; but when these proved ineffectual, he was ordered to the press-yard, there to be

pressed to death, after the old custom with those refusing to plead. His obstinacy then gave way, and his trial proceeded in due form, and he was condemned upon the same evidence as his companions. Nine were executed, of whom two—namely, Gow and his lieutenant, named Williams—were afterwards hung in chains.^[619]

The Scottish newspaper which first narrated the singular story of the capture of these men, remarked: ‘The gentleman who did this piece of good service to his country, will no doubt be taken notice of, and rewarded by the government.’ Sir Walter Scott relates from the tradition of the country what actually happened to Mr Fea in consequence of his gallantry. ‘So far from receiving any reward from government, he could not obtain even countenance enough to protect him against a variety of sham suits, raised against him by Newgate solicitors, who acted in the name of Gow and others of the pirate crew; and the various expenses, vexatious prosecutions, and other legal consequences in which his gallantry involved him, utterly ruined his fortune and his family.’^[620]

The Duke of Douglas, last direct descendant of the ancient and once powerful House of Douglas, was a person of such weak character as to form a dismal antithesis to the historical honours of the family—entitled to the first vote in parliament, to lead the van of the Scottish army, and to carry the king’s crown in all processions. Just turned thirty years of age, his Grace lived at his ancestral castle in Lanarkshire, taking no such part as befitted his rank and fortune in public affairs, but content to pass his time in the commonest pleasures, not always in choice society.^[621] Amongst his visitors was a young man named Ker, a natural son of Lord John Ker, the younger brother of the late Marquis of Lothian, and also brother to the Dowager-countess of Angus, the duke’s mother. This youth, as cousin to the duke, though under the taint of illegitimacy, presumed to aspire to the affections of his Grace’s only sister, the celebrated Lady Jane; and it is also alleged that he presumed to give the duke some advice about the impropriety of his keeping company with a low man belonging to his village. Under a revengeful prompting, it is said, from this fellow, the poor duke stole by night into the chamber of Mr Ker, and shot him dead as he lay asleep. Some servants, hearing the noise, came to his Grace’s room, and found him in great distress at the frightful act which

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he had committed, and which he made no attempt to deny. He was as speedily as possible conducted to Leith, and sent off in a vessel to Holland, there to remain until he could safely return.^[622]

The peerages being politely silent about this affair, we do not learn how or when the duke was restored to Scottish society. More than thirty years after, when turned of sixty, he married the daughter of a Dumbartonshire gentleman, a lady well advanced in life, by whom he had no children. Dr Johnson, who met the duchess as a widow at Boswell's house in 1773, speaks of her as an old lady who talked broad Scotch with a paralytic voice, and was scarcely intelligible even to her countrymen. Had the doctor seen her ten years earlier, when she was in possession of all her faculties, he would have found how much comicality and rough wit could be expressed in broad Scotch under the coif of a duchess. I have had the advantage of hearing it described by the late Sir James Steuart of Coltness, who was in Paris with her Grace in 1762, when she was also accompanied by a certain Laird of Boysack, and one or two other Scotch gentlemen, all bent on making the utmost of every droll or whimsical circumstance that came in their way. Certainly the language and style of ideas

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in which the party indulged was enough to make the hair of the *fastest* of our day stand on end. There was great humour one day about a proposal that the duchess should go to court, and take advantage of the privilege of the *tabouret*, or right of sitting on a low stool in the queen's private chamber, which it was alleged she possessed, by virtue of her late husband's ancestors having enjoyed a French dukedom (Touraine) in the fifteenth century. The old lady made all sorts of excuses in her homely way; but when Boysack started the theory, that the real objection lay in her Grace's fears as to the disproportioned size of the *tabouret* for the co-relative part of her figure, he was declared, amidst shouts of laughter, to have divined the true difficulty—her Grace enjoying the joke fully as much as any of them. Let this be a specimen of the mate of the last of the House of Douglas.

We have already seen that the favourite and

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ordinary beverage of the people before this date was a light ale, not devoid of an exhilarating power, which, being usually sold in pints (equal to two English quarts) at 2*d.*, passed in prose and verse, as well as common parlance, under the name of Twopenny. The government, conceiving they

might raise twenty thousand pounds per annum out of this modest luxury of the Scotch, imposed a duty of sixpence a bushel upon malt; and now this was to be enforced by a band of Excise officers.

The Scotch, besides the ignorant impatience of taxation natural to a people to whom fiscal deductions were a novelty, beheld in this measure a mark of the oppressive imperiousness of the British senate, and bitterly thought of what the Union had brought upon them. At Glasgow, this was a peculiarly strong feeling, its member of parliament, Mr Campbell of Shawfield, having taken a leading part in getting the malt-tax imposed. On the 23d June, when the act came into force, the populace gave many tokens of the wrath they entertained towards the excisemen who were putting it in practice; but no violence was used. Next day, there was shewn a continual disposition to gather in the streets, which the magistrates as constantly endeavoured to check; and a military party was introduced to the town. At length, evening having drawn on, the indignation of the populace could no longer be restrained. An elegant house which Shawfield had built for himself, and furnished handsomely, was attacked, and reduced to desolation, notwithstanding every effort of the magistrates to induce the mob to disperse. Next day, the mob rose again, and

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came to the town-house in the centre of the town, but in no formidable numbers. The military party was then drawn out by their commander, Captain Bushell, in a hollow square, in the centre of the crossing at the town-house, each side facing along one of the four streets which meet there; when, some stones being thrown at the soldiers, the officer gave way to anger, and without any order from the provost, fired upon the multitude, of whom eight were killed and many wounded. The multitude then flew to a guard-house where arms were kept, armed themselves, and, ringing the town-bell to give an alarm, were prepared to attack and destroy the comparatively small military party, when, at the urgency of the provost, the latter withdrew from the town, and sought refuge at Dumbarton.

The news of this formidable riot, or rather insurrection, created great excitement among a set of government authorities which had lately come into office, amongst whom was Mr Duncan Forbes as Lord Advocate. They took up the matter with a high hand. Attended by a large body of troops, Forbes marched to Glasgow, and seized the magistrates, under accusation of having favoured the mob, and bringing them to Edinburgh, clapped them up in the Tolbooth. Such, however, was the view generally taken of the malt-

tax, that the Glasgow provost and bailies were everywhere treated as martyrs for their country, and as they passed through the streets of Edinburgh to prison, some of the lately displaced government officials walked bareheaded before them. By an appeal to the Court of Justiciary, as to the legality of their mittimus, they were quickly liberated. The only effectual vengeance the government could inflict, was an act ordaining the community of Glasgow to pay Shawfield five thousand pounds as compensation for the destruction of his house. The feelings of the people of the west were grievously outraged by the conduct of the government in this affair, and the more so that they considered it as an injustice inflicted by friends. Was it for this, they asked, that they had stood so stoutly for the Whig cause on every trying occasion since the Revolution?

In August, the officials had a new trouble on their hands. The Edinburgh brewers intimated an intention to discontinue brewing ale. Duncan Forbes stood aghast at the idea of what might happen if the people were wholly deprived of their accustomed beverage. After all, the difficulty involved in a proposal to force men to go on in a trade against their will was not too great to be encountered in those days. The *Edinburgh Evening Courant* of the 26th of August, quietly informs us that ‘Mr Carr, 1725. engraver to the Mint, who kept a brewery in this city, and several others of the brewers, are incarcerated in the Canongate Tolbooth, for not enacting themselves to continue their trade of brewing, in terms of the Act of Sederunt of the Lords of Council and Session.’ ‘The Twopenny ale,’ adds this respectable chronicle, ‘begins to grow scarce here; notwithstanding which the city remains in perfect tranquillity.’ Long before the unimaginable crisis of an entire exhaustion of beer had arrived, forty of the brewers of Edinburgh, and ten of Leith, thought proper to resume work, and the dissolution of society was averted.^[623]

Such were the troubles which Scotland experienced a hundred and thirty-five years ago, at the prospect of a tax of twenty thousand pounds per annum!

Christian Shaw, daughter of the Laird of JULY. Bargarran, has been presented in her girlhood as the cause of a number of prosecutions for witchcraft, ending in the burning of no fewer than five women on Paisley Green.^[624] As this young lady grew up to woman’s estate,

she attained distinction of a better kind, as the originator of one of the great branches of industry for which her native province has since been remarkable. She was actually the first person who introduced the spinning of fine linen thread into Scotland. ‘Having acquired a remarkable dexterity in spinning fine yarn, she conceived the idea of manufacturing it into thread. Her first attempts in this way were necessarily on a small scale. She executed almost every part of the process with her own hands, and bleached her materials on a large slate in one of the windows of the house. She succeeded so well, however, in these essays, as to have sufficient encouragement to go on, and to take the assistance of her younger sister and neighbours. The then Lady Blantyre carried a parcel of her thread to Bath, and disposed of it advantageously to some manufacturers of lace.... About this time, a person who was connected with the family, happening to be in Holland, found means to learn the secrets of the thread-manufacture, which was carried on to a great extent in that country, particularly the art of sorting and numbering the threads of different sizes, and packing them up for sale, and the construction and management of the twisting and twining machines. This knowledge he communicated, on his return, to 1725. his friends in Bargarran, and by means of it they were enabled to conduct their manufacture with more regularity, and to a greater extent. The young women of the neighbourhood were taught to spin fine yarn, twining-mills were erected, correspondences were established, and a profitable business was carried on. *Bargarran thread* became extensively known, and being ascertained by a stamp, bore a good price.’^[625] By and by, the work was undertaken by others, and in time it became a leading manufacture of the district. About 1718, Christian Shaw married Mr Miller, the minister of Kilmaurs parish, and it is presumed she passed through the remainder of her life much in the same manner as other persons in that respectable grade.



The newspapers of the time at which we are now arrived, present the following advertisement: ‘The Lady Bargarran and her daughters having attained to a great perfection in making, whitening, and twisting of SEWING THREED, which is as cheap and white, and known by experience to be much stronger than the Dutch, to prevent people’s being imposed upon by other Threed, which may be sold under the name of Bargarran

Bargarran Coat of
Arms.

Threed, the Papers in which the Lady Bargarran, and her daughters at Bargarran, or Mrs Miller, her eldest daughter, at Johnston, do put up their Threed, shall, for direction, have thereupon the above coat of arms. Those who want the said Threed, which is to be sold from fivepence to six shillings per ounce, may write to the Lady Bargarran at Bargarran, or Mrs Miller at Johnston, near Paisley, to the care of the Postmaster of Glasgow; and may call for the samen in Edinburgh, at John Seton, merchant, his shop in the Parliament Close, where they will be served either in wholesale or retail: and will be served in the same manner at Glasgow, by William Selkirk, merchant in Trongate.'

Crawford, in his *History of Renfrewshire*, tells us that the coat-armorial worn by the Shaws of Bargarran bore—'azure, three covered cups or.' There is something amusingly characteristic in the wife and daughter of a far-descended Scottish gentleman beginning a business in 'threed,' and putting the family arms on their wares.

After the long period during which religious and political contentions absorbed or repressed the intellectual energies of the people, the first native who exhibited in his own country a purely scientific genius was Colin Maclaurin—a man of Highland extraction (born in 1698), whose biography relates that he was fitted to enter a university at eleven, mastered at twelve the first six books of Euclid in a few days without assistance, and gained the chair of mathematics in Marischal College, Aberdeen, at nineteen, after a competitive examination of ten days. Having gone to London, and there been introduced to Sir Isaac Newton, Dr Clark, Sir Martin Folks, and other cultivators of science, Maclaurin was encouraged to publish several mathematical treatises which gave him an established reputation while still a young man.

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At this time, the advanced years of Mr James Gregory, professor of mathematics in the university of Edinburgh, making it necessary that he should have an assistant, who should also be his successor, Mr Maclaurin became a candidate for the situation, with the recommendation of the illustrious Newton. The appointment lay with the magistrates and town council of Edinburgh, who were the patrons of the university—an arrangement which has been abolished in our age, with little regard to the rights of property, and still less to the practical good working of the

connection. On this occasion there were some circumstances alike honourable to Maclaurin, to Newton, and to the Edinburgh municipality. Sir Isaac, hearing there was a difficulty about salary for the new professor, the emoluments being reserved for the old one, wrote to the lord provost of the city as follows: 'I am glad to understand that Mr Maclaurin is in good repute amongst you for his skill in mathematics, for I think he deserves it very well, and, to satisfy you that I do not flatter him, and also to encourage him to accept the place of assisting Mr Gregory, in order to succeed him, I am ready (if you please to give me leave) to contribute twenty pounds per annum towards a provision for him till Mr Gregory's place becomes void, if I live so long.' The town council respectfully declined this generous offer, and made suitable arrangements otherwise for the young professor.

Colin Maclaurin amply justified the recommendation of Sir Isaac by the distinction he attained as a teacher, and his various original contributions to geometry and physics. A general impulse was given by him to the cultivation of science. When any remarkable experiment was reported from other countries, there was a general wish in 1725. Edinburgh to see it repeated by Maclaurin; and when any comet or eclipse was pending, his telescopes were sure to be in requisition. Unfortunately, the career of this brilliant geometer was cut short in consequence of a cold he caught while assisting to improve the defences of Edinburgh against the army of Prince Charles Edward. He lies under the south-west corner of the Greyfriars' Church, where a plain mural tablet arrests the attention of the student by telling that he was elected to his chair, *NEWTONO SUADENTE*, and calls on all to take as a consolation, in that field of grief and terror, the thought that the mind which was capable of producing such works must survive the frail body.

The post from Edinburgh to London continued Nov. 20. to be carried on horseback, and was of course liable to casualties of what now appear to us of a strange character. That which left Edinburgh on Saturday the 20th November 1725, was never heard of after it passed Berwick. 'A most diligent search has been made, but neither the boy, the horse, nor the packet, has yet been heard of. The boy, after passing Goswick, having a part of the sands to ride which divide the Holy Island

from the mainland, it is supposed he has missed his way, and rode towards the sea, where he and his horse have both perished.’^[626]

A mail due at Edinburgh one day at the close of January 1734, was apologised for by the postmaster as late. ‘It seems the post-boy who rides the stage from Haddington to Edinburgh is perished in the river Tyne, the mail this morning being taken out of that river.’ That due on the 10th of October in the preceding year did not reach its destination till the evening of the 11th. ‘It seems the post-boy [so called, although most likely a middle-aged man], who made the stage between Dunbar and Haddington, being in liquor, fell off. The horse was afterwards found at Linplum, but without the mail, saddle, or bridle.’^[627]

On the 9th December 1735, we have the following announcement: ‘The London post did not come on till this day at noon, on occasion of the badness of the roads.’—*Cal. Merc.*

As a variety upon these kinds of accident, and equally indicating the simplicity of the institution in those days, may be noticed a mistake of February 1720, when, ‘instead of the mail should 1725. have come in yesterday (Sunday), *we had our own mail of Thursday last returned*’—the presumption being that the mail for Edinburgh had been in like manner sent back from some unknown point in the road, to London. And this mistake happened once more in December 1728, the bag despatched on a Saturday night being returned the *second Sunday morning after*; ‘’tis reckoned this mistake happened about half-way on the road.’^[628]

The immediate practical business of the Post-office of Edinburgh appears to have been conducted, down to the reign of George I., in a shop in the High Street, by a succession of persons named Mean or Mein, the descendants of the lady who threw her stool at the bishop’s head in St Giles’s in 1637; thence it was promoted to a *flat* in the east side of the Parliament Close; thence, again, in the reign of George III., to a detached house behind the north side of the Cowgate. We find that, in 1718, it had a ‘manager’ at two hundred a year, a clerk at fifty, a comptroller, an assistant at an annual salary of twenty-five pounds, and three letter-carriers at five shillings a week. In 1748, this establishment was little changed, excepting that there were added an ‘apprehender of private letter-carriers,’ and a ‘clerk to the Irish correspondents.’^[629] There is a faithful tradition in the office, which I see no reason to doubt, that one day, not long after the rebellion of

1745, the London bag came to Edinburgh with but one letter in it, being one addressed to the British Linen Company.

In 1758, a memorial of traders to the Convention of Burghs expressed impatience with the existing arrangements of the post between Edinburgh and London, which, owing to a delay of about a day at Newcastle, and a pause at York, with other impediments, occupied 131 hours. It was urged that the three posts which passed weekly between the two capitals should depart from Edinburgh at such a time as, reaching Newcastle in 21 hours, they might be in time for immediate dispatch by the post thence to London, and so give a return to correspondence with the metropolis in seven or eight days, instead of about eleven, as at present.^[630]

It may be curious to trace the progress of business in this important office, as far as the central Scottish establishment is concerned. The number of persons employed in 1788 was 31; in 1828, it 1725. was 82; in 1840, when the universal penny post was set on foot, it reached 136; in 1860, it was 244. The number of letters delivered in Edinburgh in a week in 1824 was 27,381; in 1860, it amounted to 156,000. The number of letters passing through Edinburgh per week in 1824 was 53,000; in 1860, it was 420,000. At the same time, the number of bags despatched from Edinburgh daily was 369, weighing forty-nine hundredweight. At the time when these notes were drawn up, the establishment had become too large for a spacious and handsome building erected in 1819, and another office of ampler proportions was about to be erected.

Wodrow notes that at this time the merchants of 1725. Glasgow, in despair of the colonial tobacco-trade, were beginning to think of ventures in other directions, as the East Indies, and the Greenland whale-fishing. Meanwhile, a Fishery Company, some time since set up at Edinburgh, was languishing, the officials eating up more than the profit. 'As far as I can see,' says the worthy minister of Eastwood, 'till the Lord send more righteousness and equity, and of a public spirit, no company or copartnery among us will do any good.'

In the ensuing August, the same chronicler notes some important points in the progress of Glasgow, without giving us any hint of improvement in respect of righteousness. 'This summer,' says he, 'there seems to be a very great inclination through the country to improve our manufactory, and

especially linen and hemp. They speak of a considerable society in Glasgow of the most topping merchants, who are about to set up a manufactory of linen, which will keep six hundred poor people at work. The gentlemen, by their influence, seem much to stir up country-people, and to encourage good tradesmen, and some care is taken to keep linen and webs exactly to standard, and to see that the stuff be good and marketable.... What will come of it, I know not. I have seen frequent attempts of this nature come to very little.’^[631]

It is gratifying to think that the year 1725, which is so sadly memorable in the history of Glasgow on account of the ‘Shawfield Mob,’ really did become the epoch of that vast system of textile manufacture for which the city has since been so celebrated. The first efforts of her looms were confined to linen cloth, lawns, and cambrics. Seven 1725. years later, one of her enterprising citizens, a Mr Alexander Harvie, ‘at the risk of his life, brought away from Haerlem two inkle-looms and a workman,’^[632] and was thus enabled to introduce the manufacture of inkles into his native town, where it long flourished. The establishment of the cotton-manufacture in and around Glasgow was the work of a subsequent age, and need not be dwelt upon here.

Considering the engrossing nature of the pursuits of commerce, it is remarkably creditable to Glasgow that her university has always been maintained in a high state of efficiency, and that she has never allowed the honours of literature to be wholly diverted to her more serene sister of the east. So far had printing and publishing advanced in Glasgow in the reign of the second George, that, in 1740, a type-founding establishment was commenced there, being the first to the north of the Tweed. The immediate credit of this good work is due to Mr Alexander Wilson, a native of St Andrews. He subsequently became professor of practical astronomy in the Glasgow University, and there, in 1769, worked out the long-received theory of the solar spots, which suggests their being breaches in a luminous envelope of the sun’s body.

Favoured by the presence of a type-foundry, two citizens of Glasgow named Faulls, but who subsequently printed their name as Foulis, commenced the business of typography in 1741, and soon became distinguished for their accurate and elegant work, particularly in the printing of the classics. Eager to produce what might be esteemed an

immaculate edition of Horace, they caused the successive proof-sheets, after revision, to be hung up at the gate of the university, with the offer of a reward for the discovery of an error. Before 1747, the Messrs Foulis had produced editions of eighteen classics, all of them beautiful specimens of typography.

After all, the merchants of infant Glasgow were able to overcome the difficulties which an iniquitous rivalry threw in the way of their tobacco-trade. It went on gradually increasing till a sudden stop was put to it by the revolt of the American colonies, when it had reached an annual importation of about fifty thousand hogsheads, being the great bulk of what was consumed in the three kingdoms. In the early days of the trade, when capital was not abundant, the custom was for a very small group of the more considerable merchants to advance two or three hundred pounds each, and ask the lesser men around them to add such shares 1725. as they pleased; by these means to make purchase of goods suited for use in Virginia, which were sent out under the care of a supercargo, to be exchanged for a lading of tobacco. 'The first adventure ... was sent under the sole charge of the captain of the vessel. This person, though a shrewd man, knew nothing of accounts; and when he was asked by his employers, on his return, for a statement of how the adventure had turned out, told them he could give them none, but there were its proceeds, and threw down upon the table a large *hoggar* (stocking) stuffed to the top with coin [being of course the money-surplus of the goods sent out, after the cargo of tobacco was paid for]. The company conceived that if an uneducated person had been so successful, their gains would have been still greater if a person versed in accounts had been sent out. Under this impression, they immediately despatched a second adventure with a supercargo highly recommended for a knowledge of accounts, who produced to them a beautifully made-out statement of his transactions, but no *hoggar*.^[633]

Afterwards, the groups of adventurers associated little more than their credit in the getting up of cargoes of goods for the colonial market, and these were not in general paid till the return of the tobacco, at the distance perhaps of a twelvemonth. When the manager of the copartnery was ready to discharge its obligations, he summoned the various furnishers of the goods to a tavern, where, over a measure of wine to each, paid for by themselves, he handed them the amount of their various claims, receiving a discharged account in return. In such retreats all important matters of

business were then transacted. They were in many instances kept by the female relations of merchants who had not been successful in business; and in selecting one whereto to summon the furnishers of goods for payment, the manager would generally have an eye to a benevolent design in favour of the family of an associate of former days.

As the century rolled on, and transactions increased in magnitude, luxury and pride crept in, men learned to garnish their discourse with strange oaths, and the Wodrow pre-requisite of ‘righteousness’ was always less and less heard of. The wealth of the *Tobacco Lords*, as the men pre-eminent in the trade were called, reached an amount which made them the wonder of their country. One named Glassford, during the 1725. Seven Years’ War, had twenty-five vessels engaged in the business, and was said to trade for half a million.^[634] They formed a kind of aristocracy in their native city, throwing all tolerably successful industry in other walks into the shade. Old people, not long deceased, used to describe them as seen every day on the Exchange, or a piece of pavement in Argyle Street so called, walking about in long scarlet cloaks and bushy wigs, objects of awful respect to their fellow-citizens, who, if desirous of speaking to one of them on business, found it necessary to walk on the other side of the street, till they should be fortunate enough to catch his eye, and be signalled across. All this came to an end with the breaking out of the American war; when, however, the irrepressible energies and wealth of that wonderful people of the west speedily found new fields of operation—cotton, timber, iron, chemicals, ship-building, and (in sober sincerity) *what not?*

The Tennis Court theatricals of spring 1715 1726. probably did not long hold their ground. Thereafter, we hear of no further amusement of the kind being in any fashion attempted in Edinburgh till 1719, when ‘some young gentlemen’ performed *The Orphan* and the *Cheats of Scapin*, but most probably in a very private manner, though Allan Ramsay consented to introduce the performance with a prologue.^[635] Among the Wodrow pamphlets preserved in the Advocates’ Library, is a broadside containing ‘Verses spoken after the performance of Otway’s tragedy, called *The Orphan*, at a private meeting in Edinburgh, December 9, 1719, by a boy in the University [added in manuscript, “Mr Mitchell”].’ He ends with a threat to meet adverse critics in the King’s Park. Edinburgh was about the

same time occasionally regaled with the visits of a certain Signora Violante, who trooped about the three kingdoms for the exhibition of feats in tumbling and posture-making.^[636]

It would appear that the first Scottish theatricals not quite insignificant were presented in the winter 1725–26, when Anthony Aston, a performer not without his fame, came to Edinburgh with a company of comedians, and was so far favourably received that he ventured to return in the ensuing year. On that occasion, Allan Ramsay composed for him the following prologue, conveying to us some notion of the feelings with which the venture was regarded:

1726.

“‘Tis I, dear Caledonians, blythesome Tony,
That oft, last winter, pleased the brave and bonny,
With medley, merry song, and comic scene:
Your kindness then has brought me here again,
After a circuit round the Queen of Isles,
To gain your friendship and approving smiles.
Experience bids me hope—though, south the Tweed,
The dastards said: “He never will succeed:
What! such a country look for any good in,
That does not relish plays, nor pork, nor pudding!”
Thus great Columbus, by an idiot crew,
Was ridiculed at first for his just view;
Yet his undaunted spirit ne’er gave ground,
Till he a new and better world had found.
So I—laugh on—the simile is bold;
But, faith! ’tis just: for till this body’s cold,
Columbus-like, I’ll push for fame and gold.’^[637]

The prevalent feeling on the subject in authoritative circles may be inferred from the conduct of the magistracy and clergy. An act of council being passed, prohibiting Mr Aston from acting within the limits of their jurisdiction, the presbytery met, and appointed a deputation to wait upon the magistrates, and thank them ‘for the just zeal they had shewn in the matter.’ A committee was at the same time appointed to draw up an *act and exhortation* against the frequenting of stage-plays, which, by their order, was read from all the pulpits in the district.^[638]

Wodrow talks of Aston’s proceedings as ‘filling up our cup of sin.’ ‘Three or four noblemen—some of them ruling elders—combined to favour the comedians, giving them such a warrant as they thought their peerage entitled them to give. Three or four of the Lords of Session were favourable to them, and yet no direct interlocutor was given them, empowering them to

set up. The matter took several different shapes, and many different decisions were given by the Lords, which concerned circumstances rather than the direct lawfulness of their plays.' Wodrow speaks of a large attendance, especially at their tragedies, the *Mourning Bride* having had a run of three nights. 'A vast deal of money, in this 1726. time of scarcity, is spent this way most sinfully.' They even 'talk of building a public playhouse at Edinburgh.'

To the great vexation of the ecclesiastical authorities, the decree of the magistrates was appealed against in the Court of Session, with what were believed to be good hopes of success. Just at that crisis, we find Mr Wodrow writing in great concern on the subject, from his Renfrewshire manse, to Mr George Drummond, commissioner of customs in Edinburgh (November 27, 1727). He states that his parishioner, Lord Pollock, one of the judges, was unfortunately detained at home, being 'considerably failed, and very crazy;' so he could not attend the court to give his vote. 'I pray God may order matters so as to prevent my fears in this matter.... I desire to have it on my heart, and shall stir up some who, I hope, are praying persons, to be concerned in it. However it go, I think the magistrates of Edinburgh may have peace in the honest appearance they have made against those seminaries of idleness, looseness, and sin.'^[639]

There was, however, no legal means of putting down Mr Aston. The magistrates' interdict was suspended, and from that time the players had only to contend with public opinion.^[640]

Serious onlookers are eager to note other FEB. 12. symptoms of the alarming progress of levity. A private letter-writer remarks, under our marginal date, that, 'notwithstanding the general complaint of scarcity of money, there were never so many diversions in one winter.... There is scarce one night passes without either medley, concert, or assembly, and these entertainments generally conclude with some private marriage, of which we have a vast number ... such as Sir Edward Gibson and Mrs Maitland, a cousin of the Earl of Lauderdale; M'Dowal and a daughter of Dr Stirling; a son of Bailie Hay with Regent Scott's daughter; and my Lord Bruce is to be married regularly to Mrs Robertson, who has above £3000, this very night.'

A few days after, the same writer reports a private marriage as discovered between the son of Sir John Dalrymple and 'Matthew Crawford's daughter.'

‘Sir John seems pretty much disobliged that his son should not have asked his consent, though it’s thought he will soon get 1726. over all difficulties.’ The eccentric Earl of Rosebery ‘has been for a considerable time in prison, where it’s believed he will spend the remainder of his days with his good friend Burnbank.’

A few weeks later, an abduction in the old style was perpetrated by a Highlander upon ‘a niece of Mr Moubray the wright,’ not above twelve years of age, whose gouvernante had betrayed her upon a promise of a thousand merks, the young lady having £3000 of fortune. Mr Moubray ‘luckily caught them near to Queensferry, as they were coming to town to be married.’ ‘The gouvernante is committed to prison, as is also the gentleman.’^[641]

In May, Mr Wodrow adverts to a rumour that there were some clubs in Edinburgh, very secretly conducted, composed of gentlemen of atheistical opinions. They were understood to be offshoots of a similar fraternity in London, rejoicing in the name of the Hell-fire Club, as signifying the disregard of the members for the thing referred to. Wodrow whispers with horror, that the secretary of the Hell-fire Club, a Scotsman, was reported to have come to Edinburgh to plant these affiliated societies. ‘He fell into melancholy, as it was called, but probably horror of conscience and despair, and at length turned mad. Nobody was allowed to see him, and physicians prescribed bathing for him, and he died mad at the first bathing. The Lord pity us,’ concludes Mr Wodrow; ‘wickedness is come to a terrible height!’^[642]

There is among the Wodrow pamphlets a broadside giving an account of the Hell-fire Clubs, Sulphur Societies, and Demirep Dragons then in vogue. It includes a list of persons of quality engaged in these fraternities, and the various names they bore—as Elisha the Prophet, the King of Hell, Old Pluto, the Old Dragon, Lady Envy, the Lady Gomorrah, &c. An edict had been issued against them by the government, reciting that there was reason to suspect that, in the cities of London and Westminster, there were scandalous clubs or societies of young persons, who meet together, and in blasphemous language insult God and his holy religion, and corrupt the morals of one another. The justices of the peace were enjoined to be diligent in rooting out such schools of profanity.

The Hell-fire Club seems to have projected itself strongly on the popular imagination in Scotland, for the peasantry still occasionally speak of it with bated breath and whispering horror. Many wicked lairds are talked of, who belonged to the Hell-fire Club, and who came to bad ends, as might have been expected on grounds involving no reference to miracle.

1726.

Public combats with sword and rapier were among the amusements of the age. They took place regularly in London, at a place called the Bear Garden, and at an amphitheatre in the Oxford Road; likewise at Hockley. It seems scarcely credible that not only was this practice permitted, but it was customary for the men who were to cut and slash at each other in the evening, to parade through the streets in the forenoon, in fancy dresses, with drums beating and colours flying, as an advertisement of the performance.

Sometimes, when one of these modern gladiators attained to fame, he would go to a provincial city, and announce himself as willing to fight all-comers on a public stage for any sum that might be agreed upon. Such persons seem most frequently to have been natives of the sister-island. One Andrew Bryan, an Irishman, described as ‘a clean young man’—that is, a well-made, nimble person—came to Edinburgh, in June 1726, as a gladiatorial star, and challenged any who might choose to take him up. For days he paraded the streets with his drum, without meeting a combatant, and several gentlemen of the city began to feel annoyed at his vapourings, when at length the challenger was answered. There had at this time retired to Edinburgh an old Killiecrankie soldier, named Donald Bane—a man who had attained the distinction of a serjeantcy, who had taught the broadsword exercise, who had fought creditably in all the wars of William and Anne in succession, but was withal much of a scapegrace, though a good-humoured one, as fully appears from a little autobiography which he published, along with the rules of the art of defence. Though now sixty-two, and inclined to repent of much of his earlier career, Donald retained enough of his original spirit to be disposed to try a turn at sharps with Bryan; so, meeting him in the street one day, he sent his foot through the drum, as an indication that he accepted the challenge. Gentlemen were interested when they heard of it, and one learned person thought proper to compose for Bane a regular answer to the challenge in Latin verse—

‘Ipse ego, Donaldus Banus, formâ albus et altus,
Nunc huic Andreae thrasoni occurrere deero,’ &c.

The combat took place at the date noted, on a stage erected for the purpose behind Holyrood Palace, in the presence of a great number of noblemen, gentlemen, military officers, and others. It was conducted with much formality, and lasted several hours, with a variety of weapons; and not till Bryan had received seven wounds from his unscathed antagonist, did he feel the necessity of giving in. The victory of the Highland veteran seems to have given rise to great exultation, and he was crowned with praises in both prose and rhyme. He was compared to Ajax overcoming Thersites; and one Latin wit remarked in a quatrain, that the stains of the two former Donald Banes of Scottish history were wiped off by the third. A more fortunate result for us was the publication of Bane's autobiography,^[643] containing a number of characteristic anecdotes.

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Little more than two years after the combat of Bane and Bryan, a similar encounter is noted in the *Edinburgh Courant* as taking place in the Tennis Court at Holyrood, between 'Campbell the Scots, and Clerk the Irish gladiator,' when the former received a wound in the face, and the second sustained seven in the body.

At an election for the county of Roxburgh at Jedburgh, a quarrel arose between Sir Gilbert Elliot of Stobbs, a candidate, and Colonel Stewart of Stewartfield, who opposed him. Colonel Stewart, who was 'a huffing, hectoring person,' is said to have given great provocation, and gentlemen afterwards admitted that Stobbs was called upon by the laws of honour to take notice of the offence. According to a petition to the Court of Session from the son of Stewart, Elliot stabbed him as he sat in his chair on the opposite side of a table, with his sword by his side.

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The homicide took refuge in Holland, but was soon enabled by a pardon to return to his own country.^[644]

The correspondence of General Wade with the Secretary of State Townsend,^[645] makes us aware that at this time several of the attainted gentlemen of 1715 had returned to Scotland, in the hope of obtaining a pardon, or at least of being permitted to remain undisturbed. The general humanely pleads for their being pardoned on a formal

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submission. Amongst them was Alexander Robertson of Struan, chief of the clan Robertson, a gentleman who had fought for 1726. the Stuarts both at Killiecrankie and Sheriffmuir, and who is further memorable for his convivial habits and his gifts in the writing of pure, but somewhat dull English poetry.

In the year of the Revolution, being a youth of twenty at the university of St Andrews, Struan accepted a commission in some forces then hastily proposed to be raised for James VII.; and, keeping up this military connection, he joined the Highland army of Lord Dundee, but was taken prisoner by the enemy, September 1689, and thrown into the Edinburgh Tolbooth. Here a piece of Highland gratitude served him a good turn. Four years before, when the Perthshire loyalists were hounded out to ravage the lands of the unfortunate Argyle, the late Laird of Struan had, for humane reasons, pleaded for leave to stay at home and take care of the country. The now restored Earl of Argyle, remembering this kindness to his family, interceded for young Robertson, and procured his liberation in exchange for Sir Robert Maxwell of Pollock, who was in the hands of the Highlanders. Struan then passed into France, and joined the exiled king, hoping ere long to return and see the old *régime* restored; and in his absence, the Scottish parliament declared him forfeited. He spent many years of melancholy exile in France, enduring the greatest hardships that a gentleman could be subjected to, having no dependence but upon occasional remittances from his mother. Being at length enabled to return to Perthshire, he once more forfeited all but life by joining in the insurrection of 1715. For nine years more he underwent a new exile in the greatest poverty and hardship, while, to add to his mortifications, a disloyal sister, hight ‘Mrs Margaret,’ contrived to worm herself into the possession of his forfeited estates.

In France, Struan had for a fellow in misfortune a certain Professor John Menzies, under whom he had studied at St Andrews, and who seems to have been an old gentleman of some humour. There is extant a letter of Menzies to Struan, giving him advice about his health, and which seems worthy of preservation for the hints it gives as to the habits of these expatriated Scotch Jacobites. It bears to have been written in answer to one in which Struan had spoken of being ill:

‘PARIS, *March 20.*

‘D. S.—I have been out of town a little for my own health, which has kept me some days from receiving or answering your last, in which you speak of some indisposition of yours. I hope that

before now it is over of itself by a little quiet and temperance, and that thereby nature has done its own business, which it rarely fails to do when one gives it elbow-room, and when it is not quite spent. “When that comes, the house soon comes down altogether. This I have always found in my own case. Whenever I was jaded by ill hours and company, and the consequences of that, I have still retired a little to some convenient hermitage in the country, with two or three doses of rhubarb, and as many of salts. That washes the Augean stable, and for the rest I drink milk and whey, and sometimes a very little wine and water. No company but Horace and Homer, and such old gentlemen that drink no more now. I walk much, eat little, and sleep a great deal. And by this cool and sober and innocent diet, nature gets up its head again, and the horse that was jaded and worn out grows strong again, so that he can jog on some stages of the farce of life without stumbling or breaking his neck. This is a consultation I give you gratis from my own practice and never-failing experience, which is always the best physician. And I am satisfied it would do in your case, where I reckon nature is hail at the heart still, after all your cruel usage of it.

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‘As to all those pricklings and startings of the nerves, they come from the ill habit of the blood and body, brought on by ill diet and sharp or earthy wine, as your Orleans wine is reckoned to be—for there are crab-grapes as there are crab-apples, and sloes as well as muscadines.

‘There are great differences of constitutions. Those of a sanguine can drink your champagne or cyder all their life, and old Davy Flood has drunk punch these fifty years daily. Whereas a short time of the lemons that’s in punch would eat out the bottom of my stomach, or make me a cripple. Much champagne, too, would destroy my nerves, though I like its spirit and taste dearly. But it will not do, that is, it never did well with me when I was young and strong; now much less. My meaning in this dissertation about wine and constitutions is plainly this, first, to recommend to you frequent retraites, in order to be absolutely cool, quiet, and sober, with a little gentle physic now and then, in order to give time and help to nature to recover. And when you will needs drink wine—that it be of the hail and old south-country wines, Hermitage, Côté Rotis, Cahors, &c., with a little water still, since there is a heat in them.

‘As to any external tremblings or ailings of the nerves, pray make constant usage of Hungary-water to your head and nostrills, and behind your ears—of which I have found an infinite effect and advantage of a long time, for I have been very often in the very same case you describe, and these have always been my certain cures. *Repetatur quantum sufficit*, and I will warrant you.

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‘Write again, and God bless you.’^[646]

Struan was now successful in obtaining a pardon, and for the remainder of his days he lived in the cultivation of the bottle and the muse at his estate in Rannoch. Only prevented by old age from risking all once again in the adventure of Prince Charlie, he died quietly in 1749, having reached his eighty-first year. So venerable a chief, who had used both the sword of Mars and the lyre of Apollo in the cause of the Stuarts, could not pass from the world notelessly. His funeral was of a character to be described as a great provincial *fête*. It was computed that two thousand persons, including the noblemen and gentlemen of the district, assembled at his house to carry him to his last resting-place, which was distant eighteen English miles; and

for all of these there was entertainment provided according to their different ranks.^[647]

Having taken personal surveys of the Highlands in the two preceding years, General Wade was prepared, in this, to commence the making of those roads which he reported to be so necessary for the reduction of the country to obedience, peace, and civilisation. He contemplated that, after the example set by the Romans sixteen hundred years before, the work might be done by the soldiers, on an allowance of extra pay; and five hundred were selected as sufficient for the purpose. Engineers and surveyors he brought down from England, one being the Edmund Burt to whom we have been indebted for so much information regarding the Highlands at this period, through the medium of the letters he wrote during his long residence in this country.^[648]

‘In the summer seasons [during eleven years], 1726. five hundred of the soldiers from the barracks and other quarters about the Highlands were employed in those works in different stations. The private men were allowed sixpence a day, over and above their pay as soldiers. A corporal had eightpence, and a sergeant a shilling. But this extra pay was only for working-days, which were often interrupted by violent storms of wind and rain. These parties of men were under the command of proper officers, who were all subalterns, and received two shillings and sixpence *per diem*, to defray their extraordinary expense in building huts, making necessary provision for their tables from distant parts (unavoidable, though unwelcome visits), and other incidents arising from their wild situation.’^[649]

A Scottish gentleman, who visited the Highlands in 1737, discovered the roads completed, and was surprised by the improvements which he found to have arisen from them, amongst which he gratefully notes the existence of civilised places for the entertainment of travellers. It pleased him to put his observations into verse—rather dull and prosaic verse it is, one must admit—yet on that very account the more useful now-a-days, by reason of the clearness of the information it gives.^[650] After speaking of Wade’s success in carrying out the Disarming Act, and his suppression of disorders by the garrisons and Highland companies, he proceeds to treat of the roads, which had impressed him as a work of great merit. It seemed to him as an undertaking in no slight degree arduous, considering the limited means and

art which then existed, to extend firm roads across Highland morasses, to cut out paths along rough hillsides, and to protect the way when it was formed from the subsequent violent action of Highland torrents and inundations. One of the most difficult parts of the first road was that traversing the broad, lofty mountain called Corryarrack, near to Fort Augustus. It is ascended on the south side by a series of zigzags, no less than thirteen in number. The general expended great care and diligence in the work, even to the invention of a balsam for healing the wounds and hurts inflicted on the men by accident.

In the forming of the numerous bridges required upon the roads, there was one natural difficulty, in addition to all others, in the want of easily hewn stone. The bridge of five arches across the Tay at Weem was considered as a marvellous work at the time. In 1726. another part of the country, an unusually rugged river gave Wade and his people a great deal of trouble. The men, oppressed with heat during the day, and chilled with frosts as they bivouacked on the ground at night, were getting dispirited, when the general bethought him of a happy expedient.

‘A fatted ox he ordered to be bought,
The best through all the country could be sought.
His horns well polished and with ribbons graced,
A piper likewise played before the beast.
Such, were in days of yore for victims led,
And on the sacrifice a feast was made.
The ox for slaughter he devotes, and then
Gives for a gratis feast unto his men.
Quick and with joy a bonfire they prepare,
Of turf and heath, and brushwood fagots, where
The fatted ox is roasted all together;
Next of the hide they make a pot of leather,
In which the lungs and tripe cut down they boil,
With flour and tallow mixed in lieu of oil.
Then beef and pudding plentifully eat,
With store of cheering *Husque*^[651] to their meat.
Their spir’ts thus raised, their work becomes a play,
New vigour drives all former stops away.
The place from that received another name,
And OXBRIDGE rises to all future fame.’

We derive some interesting facts about Wade’s proceedings at this time from his correspondence, still in manuscript.^[652]

Writing to the Secretary of State, Lord Townsend, Edinburgh, 9th August 1726, he says: ‘I can with satisfaction assure your lordship that the

Disarming Act has fully answered all that was proposed by it, there being no arms carried in the Highlands but by those who are legally qualified; depredations are effectually prevented by the Highland companies; and the Pretender's interest is so low, that I think it can hope for no effectual assistance from that quarter.'

Dating from Killiwhimmen [Fort Augustus] on the 16th of the ensuing month, he tells his lordship:

'I have inspected the new roads between this place and Fort William, and ordered it to be enlarged and carried on for wheel-carriage over the mountains on the south side of Loch Ness, as far as the town of Inverness, so that before midsummer next there will be a good coach-road from that place, which before was not passable on Horseback

1726.

in many places. This work is carried on by the military with less expense and difficulty than I at first imagined it could be performed, and the Highlanders, from the ease and convenience of transporting their merchandise, begin to approve and applaud what they at first repined at and submitted to with reluctance.'

Writing, in September 1727, to Lord Townsend, he states that he had lately found the Highlands in perfect tranquillity, 'and the great road of communication so far advanced, that I travelled to Fort William in my coach-and-six, to the great wonder of the country people, who had never seen such a machine in those parts. I have likewise given directions for carrying on another great road southward through the Highlands from Inverness to Perth, which will open a communication with the low country, and facilitate the march of a body of troops when his majesty's service may require it.'

The general's coach-and-six had been brought to Inverness by the coast-road from the south, and Burt assures us that 'an elephant exposed in one of the streets of London could not have excited greater admiration. One asked what the chariot was. Another, who had seen the gentleman alight, told the first, with a sneer at his ignorance, it was a great cart to carry people in, and such like. But since the making of some of the roads, I have passed through them with a friend, and was greatly delighted to see the Highlanders run from their huts close to the chariot, and, looking up, bow with their bonnets to the coachman, little regarding us that were within. It is not unlikely that

they looked upon him as a kind of prime minister, that guided so important a machine.’^[653]

Wade, writing to Mr Pelham from Blair, 20th July 1728, says: ‘I am now with all possible diligence carrying on the new road for wheel-carriage between Dunkeld and Inverness, of about eighty measured English miles in length; and that no time may be lost in a work so necessary for his majesty’s service, I have employed 300 men on different parts of this road, that the work may be done during this favourable season of the year, and hope, by the progress they have already made, to have forty miles of it completed before the end of October,^[654] at which time the heavy rains make it impracticable to proceed in the work till the summer following.

‘There is so great a scarcity of provisions in this 1726.
barren country, that I am obliged to bring my biscuit, cheese, &c., for the support of the workmen, from Edinburgh by land-carriage, which, though expensive, is of absolute necessity. There is about fifteen miles of this road completely finished, and, I may venture to assure you, it is as good and as practicable for wheel-carriage as any in England. There are two stone-bridges building on the road that was finished last year between Inverness and Fort William, and two more are begun on this road, all which will, I hope, be completed by the middle of October. The rest that will be wanting will be eight or ten in number to complete the communication, which must be deferred to the next year.’

The Society of Improvers at this date made a JULY.
suggestion to the governors of George Heriot’s Hospital (magistrates and clergy of Edinburgh) which marks a degree of liberality and judgment far beyond what was to be expected of the age. They recommended that the boys of that institution, all being children of persons in reduced circumstances, should have instruction in useful arts imparted to them along with the ordinary elements of learning. Such a practice had already been introduced in Holland and France, and even in England (in workhouses), with the best effects. They at the same time recommended that the girls in the Merchant Maiden Hospital should be taught the spinning of flax and worsted, and be put in twos and threes weekly into the kitchen to learn house affairs. A committee was appointed to confer with the magistrates

upon this plan; but the matter was afterwards put into the hands of the Trustees for the Encouragement of Manufactures.^[655]

It would appear as if some practical result had followed, at least for a time, as in December 1730, the Edinburgh newspapers advert in terms of admiration to two girls of the Merchant Maiden Hospital, who, ‘upon being only three weeks taught the French method of spinning, have spun exceeding fine yarn at the rate of twelve and a half spindle to the pound avoirdupois, which is thought to be the best and finest that ever was done in this country.’

Inoculation, or, as it was at first called, *engrafting* for the small-pox, was reported from the East to British physicians as early as 1714, but neglected. Lady Mary Wortley Montagu, visiting Turkey with her husband, the British ambassador, found it in full vogue there, and reported it at once so safe and so effectual, that people came together as to a party of pleasure to have it performed upon them by old women. It was in March 1718 that her ladyship, viewing the matter in entire independence of all silly fears, submitted her infant son to the process. Finding it successful, she exerted herself, on her return to England, to have the practice introduced there, and, by favour of Caroline, Princess of Wales, gained her point against the usual host of objectors. Her own daughter was the first person inoculated in Great Britain. It was then tried on four criminals, reprieved for the purpose, and found successful. Two of the princess’s children followed, in April 1722. The process was simultaneously introduced into Boston, in Massachusetts.

Lady Mary tells us next year, that inoculation was beginning to be a good deal practised. ‘I am,’ says she, ‘so much pulled about and solicited to visit people, that I am forced to run into the country to hide myself.’^[656] Yet the fact is, that it made its way very slowly, having to encounter both the prejudices of medical men, who misapprehended its scientific nature, and the objections of certain serious people, who denounced it as ‘taking the Almighty’s work out of his hands.’^[657] Just as the two young princesses were recovering, appeared a pamphlet, in which the author argued that this new invention is ‘utterly unlawful, an audacious presumption, and a thing forbid in Scripture, in that express command: “Thou shalt not tempt the Lord thy God.”’ It would appear as if there never yet was any valuable

discovery made for the alleviation of misery, or the conferring of positive benefits on mankind, but there are some persons who find it irreligious, and would be rejoiced in seeing it fail. It must have been under such a spirit that some one inserted in the prints of the day a notice desiring ‘all persons who know anything of the ill success of inoculation, to send a particular account thereof to Mr Roberts, printer in Warwickshire.’ Only 897 persons (of whom seventeen died) were inoculated during the first eight years.^[658]

The operation appears not to have been introduced in Scotland till upwards of five years after its introduction in London. A letter of the date noted, from Mr R. Boyd in Edinburgh to the Rev. 1726.

Mr Wodrow at Eastwood, gives the following among other matters of familiar intelligence: ‘The story of Abercromby of Glassaugh’s child being inoculated in this country, and recovered of the small-pox, is in the written letter and some of the prints.’^[659] From the reference to a written letter—namely, a periodical holograph sheet of news from London—we may infer that the infant in question was inoculated there, and that the practice was as yet unknown in our country.

An interesting and singular scene was this day OCT. 19. presented in the streets of Edinburgh. Five men, named Garnock, Foreman, Stewart, Ferrie, and Russell, were executed at the Gallowlee on the 10th of October 1681, and their heads put up at the Cowgate Port, while their bodies were interred under the gallows. Some of their friends lifted and re-interred the bodies in the West Churchyard, and also took down the heads for a similar purpose; but, being scared, were obliged to inhume these relics, enclosed in a box, in a garden at Lauriston, on the south side of the city. On the 7th October of this year, the heads were discovered as they had been laid there forty-five years before, the box only being consumed. Mr Shaw, the owner of the garden, had them lifted and laid out in a summer-house, where the friends of the old cause had access to see them. Patrick Walker relates what followed. ‘I rejoiced,’ he says, ‘to see so many concerned grave men and women favouring the dust of our martyrs. There were six of us concluded to bury them upon the nineteenth day of October 1726, and every one of us to acquaint friends of the day and hour, being Wednesday, the day of the week upon which most of them were executed, and at 4 of the clock at night, being the hour that most of them went to their

resting graves. We caused make a compleat coffin for them in black, with four yards of fine linen, the way that our martyrs' corps were managed; and, having the happiness of friendly magistrates at the time, we went to the present Provost Drummond, and Baillie Nimmo, and acquainted them with our conclusions anent them; with which they were pleased, and said, if we were sure that they were our martyrs' heads, we might bury them decently and orderly.... Accordingly, we kept the foresaid day and hour, and doubled the linen, and laid the half of it below them, their nether jaws being parted from their heads; but being young men, their teeth

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remained. All were witness to the holes in each of their heads, which the hangman broke with his hammer; and, according to the bigness of their skulls, we laid their jaws to them, and drew the other half of the linen above them, and stufft the coffin with shavings. Some pressed hard to go thorow the chief parts of the city, as was done at the Revolution; but this we refused, considering that it looked airy and frothy, to make such show of them, and inconsistent with the solid serious observing of such an affecting, surprising, unheard-of dispensation: but took the ordinary way of other burials from that place—to wit, we went east the back of the wall, and in at Bristo Port, and down the way to the head of the Cowgate, and turned up to the churchyard, where they were interred closs to the Martyrs' Tomb, with the greatest multitude of people, old and young, men and women, ministers and others, that ever I saw together.'

A citizen of Edinburgh heard from a lady born in 1736 an account, at second-hand, of this remarkable solemnity—with one fact additional to what is stated by Walker. 'In the procession was a number of genteel females, all arrayed in white satin, as emblematical of innocence.'

A proceeding in which the same spirit was evinced is noted in the *Edinburgh Courant* of November 4, 1728. 'We hear that the separatists about Dumfries, who retain the title of Cameronians, have despatched three of their number to Magus Muir, in Fife, to find out the burial-place of Thomas Brown, Andrew ..., James Wood, John Clyde, and John Weddell, who were there execute during the Caroline persecution for being in arms at Bothwell Bridge, and have marked the ground, in order to erect a monument with an inscription like that of the Martyrs' Tomb in Greyfriars' Churchyard, to perpetuate the zeal and sufferings of these men.'

A few months later, we learn from the same sententious chronicler: ‘The Martyrs’ Tomb in the Greyfriars’ Churchyard is repaired, and there is added to it a compartment, on which is cut a head and a hand on pikes, as emblems of their sufferings, betwixt which is to be engraved a motto alluding to both.’

Died Sir Alexander Ogilvy of Forglen, Baronet, 1727. MAR. 30.
a judge of the Court of Session under the designation of Lord Forglen. There is no particular reason for chronicling the demise of a respectable but noteless senator of the College of Justice, beyond the eccentric and characteristic circumstances attending it. According to a note in the unpublished diary of James Boswell, the biographer of Dr Johnson—when Lord Forglen was approaching the end of his life, 1727.

he received a visit from his friend Mr James Boswell, advocate, the grandfather of the narrator of the anecdote. The old judge was quite cheerful, and said to his visitor: ‘Come awa, Mr Boswell, and learn to dee: I’m gaun awa to see your auld freend Cullen and mine. [This was Lord Cullen, another judge, who had died exactly a year before.] He was a guid honest man; but his walk and yours was nae very steady when you used to come in frae Maggy Johnston’s upon the Saturday afternoons.’ That the reader may understand the force of this address, it is necessary to explain that Mrs Johnston kept a little inn near Bruntsfield Links, which she contrived to make attractive to men of every grade in life by her home-brewed ale. It here appears that among her customers were Mr Boswell, a well-employed advocate, and Lord Cullen, a judge—one, it may be observed, of good reputation, a writer on moral themes, and with whose religious practice even Mr Wodrow was not dissatisfied.

Dr Clerk, who attended Lord Forglen at the last, told James Boswell’s father, Lord Auchinleck, that, calling on his patient the day his lordship died, he was let in by his clerk, David Reid. ‘How does my lord do?’ inquired Dr Clerk. ‘I houp he’s *weel*,’ answered David with a solemnity that told what he meant. He then conducted the doctor into a room, and shewed him two dozen of wine under a table. Other doctors presently came in, and David, making them all sit down, proceeded to tell them his deceased master’s last words, at the same time pushing the bottle about briskly. After the company had taken a glass or two, they rose to depart; but David

detained them. 'No, no, gentlemen; not so. It was the express will o' the dead that I should fill ye a' fou, and I maun fulfil the will o' the dead.' All the time, the tears were streaming down his cheeks. 'And, indeed,' said the doctor afterwards in telling the story, 'he did fulfil the will o' the dead, for before the end o' 't there was na ane o' us able to bite his ain thoomb.'^[660]

REIGN OF GEORGE II.: 1727–1748.

The accession of George II., while not disturbing in England that predominance of the great Whig nobles which had existed since the Revolution, and leaving the practical administration, as before, in the hands of Sir Robert Walpole, produced no change in the system of improvement which the Union had inaugurated. Under the rule of the Argyles, the Dalrymples, and one or two other eminent Whig families, with the mild and virtuous Duncan Forbes as Lord Advocate, the country enjoyed peace, and was enabled to develop its long dormant energies, in the pursuits of agriculture, of manufactures, and of commerce. All but a few of the Highland clans had apparently given their final submission to the Guelph dynasty; and though the Stuart cause was known to be upheld by some, it was generally thought that there was very little chance of further civil war on that subject.

The general tranquillity was broken in 1737 by a riot in Edinburgh, arising out of the harsh measures required for the enforcement of the Excise laws, and ending in the violent death of a public officer who had rendered himself obnoxious to the populace. For an account of this affair, reference is made to the chronicle.

About the same period, there was considerable agitation in the church, in consequence of the insubordination of a small group of clergymen, of ultra-evangelical views, who were at length, in 1740, expelled, and became the founders of a separate church under the name of the Associate Synod.

In 1744, Great Britain was engaged in a war which involved most of the great powers of Europe. The French minister, Cardinal de Tencin, conceived that an invasion of England on behalf of the House of Stuart would be an excellent diversion in favour of the arms of his country. The time was in reality long past for any effective movement of this kind. New

men and new things had extinguished all rational hopes in the Jacobite party. Still there were some chiefs in the Highlands who had never abandoned the Stuart cause. In the Lowlands, there were discontents which seemed capable of being turned to some account in effecting the desired revolution. Prince Charles Edward, the eldest son of the so-called Pretender, was an ardent-minded youth, eager to try a last chance for the restoration of his family. The Cardinal really made some preparations for an expedition to be conducted by the Prince; but it was prevented by a storm and an opposing English armament, from leaving the French coast. Disappointed of the promised aid, Charles secretly voyaged with seven friends to the western coast of Inverness-shire, and, landing there towards the close of July 1745, was soon surrounded by a few hundreds of friendly Camerons and Macdonalds. He raised his standard at Glenfinnan on the 19th of August, and expressed himself as determined with such as would follow him, to win back a crown, or perish in the attempt.

The best of the national troops being engaged in service abroad, the government could only oppose to this enterprise a few raw regiments under the commander-in-chief for Scotland, Sir John Cope. But Sir John, making an unlucky lateral movement to Inverness, permitted Prince Charles, with about eighteen hundred clansmen, to descend upon Perth unopposed, and even to take possession of Edinburgh. On the 21st of September, having returned by sea to the low country, Cope was encountered at Prestonpans by the Highlanders, and driven in a few minutes from the field. For several weeks, Prince Charles Edward held court at Holyrood, in undisputed possession of Scotland. Marching in November into England by the western border, he captured Carlisle, was well received at Manchester, and pushed on to Derby, where he was only a hundred and twenty-seven miles from London. But here the courage of his little council of chiefs gave way before the terrors of the three armies by which they seemed surrounded. Accomplishing a hurried, yet well-managed retreat to Scotland, they laid Glasgow under contribution, and came to a halt at Stirling, where many fresh clans joined them, making up an army of nine thousand men.

A well-appointed English army under General Hawley met Prince Charles Edward at Falkirk (January 17, 1746), and was driven back to Edinburgh with the loss of camp, cannon, and baggage. The king's second son, the Duke of Cumberland, soon after took command of the forces in Scotland, and on his advancing to Stirling, the Highland army made a hasty

retreat to Inverness, where they spent the remainder of the winter. As soon as the return of spring permitted the English army to march, it was conducted against the rebels by its royal commander. In a regular engagement which took place on Culloden Moor, near Inverness (April 16), the Highland army was broken and dispersed with great slaughter. Prince Charles fled to the west coast, and after several months of fugitive life, during which he endured incredible hardships, escaped back to France. The Duke advanced to Fort Augustus, and there superintended a system of burning, slaughtering, and despoliation, throughout the disaffected territory, by which he hoped to make further efforts for the House of Stuart impossible. These acts, and his having ordered a general slaughter of the wounded Highlanders on the field of battle, have fixed on him indelibly the appellation of 'the Butcher.'

Further to strike terror into the Jacobite party, two leaders of the rebel army, the Earl of Kilmarnock and Lord Balmerino, with about seventy prisoners of inferior rank, were put to death as traitors. Lord Lovat, who, while preserving an appearance of loyalty, had sent out his clan under his son, was afterwards tried and executed for treason. Scotland generally suffered for some time under a military oppression, for the government, in their ignorance of the country, did not see by how small a part of the community the late insurrection had been supported. It now effected, however, some measures which enlightened men had long felt to be wanting for the cause of civilisation. One of these was for a more effectual disarmament of the Highlanders; another for abolishing the use of their tartan habiliments, which it was supposed had a certain effect in keeping up their warlike spirit. There remained two acts of much more importance, passed in 1748. One took away the hereditary sheriffships and other jurisdictions of the nobility and gentry, so as to render the sovereign in Scotland, as heretofore in England, the fountain of all law and justice. In terms of this statute, the privileges taken away were compensated for by sums of money, amounting in all to £152,000. The other act abolished what was called the tenure of ward-holdings—that is, the holding of lands on the condition of going out to war whenever the superior desired. Tenants and the common people were thus for the first time in Scotland rendered independent of their landlords, or of the great men on whose property they lived. In fact, they now became for the first time a free people.

From the eagerness of the proprietors of the Equivalent Stock to be engaged in some profitable business, as detailed under December 1719, it might have been expected that they would sooner or later fall upon some mode of effecting their wishes. All attempts to come into connection with the Bank of Scotland having failed, they at length formed the bold design of setting up a new bank—bold, in as far as it was entirely a novelty, there being no thought of a second bank even in England, where business was conducted upon so much greater a scale than in Scotland. It seems to have been by engaging the good-will or interest of the Earl of Islay, that the object was attained. The Bank of Scotland in vain published a statement shewing how it was quite competent, with its thirty thousand pounds of paid-up capital, to conduct the business of the country, and really was conducting it satisfactorily. In vain did Scottish jealousy try to raise a cry about the large proportion of English shareholders in the new concern. It received a royal charter, which was the last document of the kind prepared before the king set out on his fatal visit to

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Hanover, and required a warrant from the new sovereign before the seal could be appended to it. The Earl of Islay was made governor, and the Lord President Dundas became deputy-governor. In December they opened their office, with a capital of £111,000; and in the first week of the new year, they began to issue notes ‘having his present majesty King George II.’s picture in front.’^[661] At first, these notes were expressed in Scots money; but the time had now come when the people of Scotland began pretty generally to adopt the English denominations, both in their accounts and in common parlance; so this fashion was not kept up by the Royal Bank above two years. It is unnecessary to remark that the new bank prospered, and now ranks second to none in respectability. But this only makes the more remarkable the dreary anticipations which were formed at the time by those whom it rivalled.

‘Whatever was said while the Equivalent Society’s charter with banking powers was a-seeking, or what has been said since the passing thereof, that there was no design of prejudicing the Old Bank—*nobody that knows the nature of banking does believe that two banks can be carried on in the same country*; for it is impossible to manage and keep them up, without interfering and rubbing upon one another, unless rules and regulations could be made to prevent it; and it is impossible to digest regulations for executing such a design, but what must make the interests of the two

companies reciprocal, and the product of their trade mutually to be communicated; and so two different offices, under distinct management and direction, would be a needless charge and trouble. Therefore the gentlemen of the [Old] Bank did from the beginning lay their account with an attack from an enemy, and a foreign one too, with home alliances.’^[662]

Following up this terrible view of the case, the Bank of Scotland, for some time before the new establishment was opened, discontinued lending money, as a matter of precaution, thus creating considerable distress among the mercantile classes, and of course justifying, so far, the establishment of a new source of accommodation. When the Royal Bank was fairly afloat, the Bank of Scotland proceeded to the yet greater extremity of calling up former loans, thus deepening the distress. ‘The country,’ says Mr Wodrow in a kind of despair, ‘is not able to bear both banks. The new bank would fain have the old coalescing with them; but they 1727. bear off. It’s a wonder to me how there’s any money at all in the country.’^[663]

A pamphlet having been published in the interest of the Bank of Scotland on this occasion—being the *Historical Account* already more than once quoted—another soon after appeared in justification of the Royal Bank, though professedly by a person unconnected with it.^[664] ‘It can be no secret,’ says this writer, ‘that a great number of people of all ranks were creditors to the public in Scotland by reason of offices civil and military, and that the Equivalent stipulated by the act of Union fell short of their payment; that in 1714 they obtained an act of parliament constituting the debts due to them, but that no parliament provision was made for a fund for their payment till the year 1719, when a second act was made, appropriating to that purpose a yearly fund of £10,000 sterling, payable out of the revenues of customs, Excise, &c., preferable to all payments except the civil list. Between the first and the second act, many of the proprietors, being doubtful that any provision would be made for them by parliament, and others being pressed by necessity, chose to dispose of their debentures (these were the legal vouchers ascertaining the debts due to the persons named in them) as they best could, and to the best bidder. Many of them were carried to London, but a very considerable part of them still remains in the hands of Scots proprietors, partly out of choice, partly by reason of some legal bars that lay in the way of issuing debentures, and partly by purchasing them back from England.’

In consequence of powers in the act of 1719, 'his late majesty did, by letters-patent in 1724, incorporate all persons who then were, or thereafter should be, proprietors of the debentures whereby that public debt was constituted, to the end that they might receive and distribute their annuity.' His majesty having at the same time promised powers and privileges to the corporation as they might request, it petitioned him for those of a bank in Scotland, which he and his successor complied with, limiting the power to 'such of the company as should, on or before Michaelmas 1727, subject their stock, or any share of it, to the trade of banking.'

There is, further, a great deal of angry controversial remark on the Old Bank; but the most material point is the allegation, that that institution 'divided 35, 40, 50 per cent.' by the use of 'other 1727. people's money.' The author adverts with bitterness to the harsh measures adopted by the Old Bank in prospect of rivalry. 'It is a hard thing,' says he, 'to defend the conduct of the Old Bank upon the prospect of a rivalry. Lending is superseded; a tenth is called from the proprietors, and all their debtors threatened with diligence for a certain part or for the whole of their debts, which diligence has since been executed.... Why did they carry their revenge (as it is universally known they did) to every one who had the least relation, alliance, friendship, or connection with the proprietors of that bank [the Royal]?... Why were the first examples of their wrath made out of the most known friends of the present establishment, and why were the disaffected remarkably and visibly spared?'

Considering that the Bank of Scotland had never yet had more than thirty thousand pounds sterling of capital paid up, the fact of the larger stock of the Royal, and their having £30,000 of specie to trade with distinct from their stock,^[665] become features of importance, as shewing the increasing business of the country.

From a folio broadside^[666] containing the 'Rules to be observed by such Persons as keep a Cash-accompt with the Royal Bank of Scotland,' it appears that 'no sum paid into the bank or drawn out of it, be less than 10*l.* sterling, nor have in it any fraction or part of a pound; and in case of fractions arising by the addition of interest at settling an accompt, such fractions are to be taken off by the first draught or payment thereafter made.' Sums of five pounds and upwards are now taken in and given out at all the Scottish banks (1860).

Witchcraft, now generally slighted by persons in authority in the south, was still a subject of judicial investigation in the far north. Wodrow, in his Renfrewshire manse, continued to receive accounts of any transactions in that way which might be going on in any quarter, and, under 1726, he is careful to note ‘some pretty odd accounts of witches’ which he had received from a couple of Ross-shire brethren. One of them, ‘at death,’ he says, and it is to be feared that her death was at the stake, ‘confessed that they had by sorcery taken away the sight of one of the eyes of an Episcopal minister, who lost the sight of his eye upon a sudden, and could give no reason of it.’^[667]

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Early in the ensuing year—if we may depend upon the authority quoted below^[668]—two poor Highland women, mother and daughter, natives of the parish of Loth, in Sutherlandshire, were accused of witchcraft before the sheriff-depute, Captain David Ross of Littledean, and condemned to death. The mother was charged with having ridden on the daughter, who had been transformed on the occasion into a pony, and shod by the devil. The girl made her escape, and was noted ever after, in confirmation of the charge, to be lame in both hands and feet. The mother suffered at Dornoch in June, being burned in a pitch-barrel. It has been handed down by tradition, that, ‘after being brought out to execution, the weather proving very severe, she sat composedly warming herself by the fire prepared to consume her, while the other instruments of death were making ready.’^[669] ‘It does not appear,’ says Sir Walter Scott in 1830, ‘that any punishment was inflicted for this cruel abuse of the law on the person of a creature so helpless; but the son of the lame daughter—himself distinguished by the same misfortune—was living so lately as to receive the charity of the present Marchioness of Stafford, Countess of Sutherland in her own right.’^[670]

For a generation, the linen manufacture had been passing through what might be called a prosperous infancy. A public paper in 1720 states that there was annually imported from Scotland into England the value of £100,000 in white linen, and as much in brown, the flax being of ‘a *spunsie* quality,’ which gave it a preference over the similar products of both Ireland and Germany.^[671] [The same document estimated the English woollen cloths exported to Scotland at £400,000 per annum.]

By an act of parliament passed this year, a Board of Trustees was established in Scotland for the administration of an annual sum set aside for

the encouragement of manufactories and fisheries. The sum at first given was four thousand pounds, which might be considered as calculated to go a great way in so poor a country. The activity and serviceableness of the Board was, in its earlier years, chiefly shewn in the promotion of the linen manufacture, which, under the stimulus afforded 1727. by premiums, rose from an export sale of 2,183,978 yards in 1727, to 4,666,011 in 1738, 7,358,098 in 1748, and 12,823,048 in 1764. It is curious, regarding an institution which has since occupied, as it still does, so conspicuous a place in the public eye, to trace the difficulties it had to contend with at starting, in consequence of the monetary vacuum produced by the conflict of the two banks. The Lord Advocate, Duncan Forbes, wrote on the 26th June 1728 to the Duke of Newcastle: ‘The trustees appointed by his majesty for taking care of the manufactures, proceed with great zeal and industry; but at present credit is run so low, by a struggle between the bank lately erected by his majesty and the old bank, that money can scarcely be found to go to market with.’^[672]

Wodrow, who never failed to hear of and note Oct. any misfortune that happened to Glasgow—hopeful, always, that it would be ‘laid to heart’—makes us aware of an obscure sorrow which was now beginning to beset the thriving burghers. ‘The vermin called bugs,’ he says, ‘are at present extremely troublesome at Glasgow. They say they are come over with timber and other goods from Holland. They are in many houses there, and so extremely prolific, there is no getting rid of them, though many ways have been tried. It’s not twenty year since they were known, and such as had them kept them secret. These six or seven years, they are more openly compleened of, and now the half of the town are plagued with them. This is chiefly attributed to the frequent alterations of servants, who bring them from house to house.’^[673]

Soon after, having occasion to deplore the death of Provost Peady, a person of great firmness and piety, he speaks of the many ‘strokes’ which the industrious city had met with of late. Their losses during 1727 had been reckoned at not less than twenty-eight thousand pounds sterling! ‘It’s a wonder to me how they stand throo.’ The worthy pastor of Eastwood would evidently have not been greatly distressed had his Glasgow neighbours been subjected to a repetition of a few of the plagues of Egypt, so needful were

they of something to check their growing fatness and pride. He might have been expected to hail the frogs with a fraternal feeling; and we can imagine him marking with hopefulness, not unmingled with sympathy, the spread of the murrain among the burghers' kine at the 1727. Cowcaddens. The present entomological corrective was evidently regarded by him with a satisfaction too deep to admit of many words.

Mr John Boyd gives his friend Wodrow an 1728. FEB. 8. account of a duelling affair which had befallen in Edinburgh. 'Ane officer in the Dutch Guards, son to Mr Walter Stewart, late Solicitor, was ill wounded by are officer in the Canongate [Lieutenant Pilkington, of Grove's Regiment]. The officer, when in custody of the constables, was rescued by the guard there, who carried him off; but at Musselburgh, the people there apprehended him, and made him and twenty-two guards prisoners, who were all brought to prison here.' There were hopes of the wounded man's recovery.^[674]

At four o'clock in the morning, a smart shock of MAR. 1. an earthquake was experienced in Edinburgh and throughout the south of Scotland, if not in other quarters. At Selkirk, every house was shaken, and some people were tumbled out of bed, but no damage was done.^[675]

Mr Wodrow was at this time informed 'by very MAR. good hands,' that there had been for some years in Edinburgh a little gambling fraternity, who made it their business to trace out and decoy young men of rank and fortune, and make plunder of them. 'One of them will lose fifty pounds in a night till the young spark be engaged; and then another comes and soon gains the whole; and, it may be, a third comes, and stands at the back of the person they design to rifle, and by signs and words unknown to others, discovers his game to the other; so by one method or other they are sure to win all at last.' It was alleged that the society would divide 25,000 merks [about £1400] a year by these vile practices—much calculated 'to fill our cup of judgments.'

As a trait of the time—On the news reaching Glasgow that an attempt to unseat Campbell of Shawfield had failed, his friends went down to Govan,

to celebrate the affair, and write a letter of congratulation to him. Mr William Wishart, a clergyman, deserted the synod then sitting, to go with them, and help in drawing up the letter. By and by, the minister left them; but they sat still till they became so befuddled, that it became necessary to bundle them into a boat, and so carry them back to the city. That evening, some other gentlemen of the same way of thinking, 1728. went through the streets of Glasgow, with a fiddler playing before them, and singing: ‘Up with the Campbells, and down with the Grahams!’ and it was a wonder that a riot was avoided.

About the same date, Mr Wodrow adverts to the fact, that Anthony Aston’s playhouse in Edinburgh was ‘much frequented;’ and amongst ‘persons of substance and leisure,’ there was consequently a great tendency to laxity of morals. There was even a talk of building a playhouse in Edinburgh. The manager, however, was not without his troubles. One Ross, ‘master of the Beau’s Coffee-house’—a son of Bishop Ross, and a great encourager of the playhouse—had sold a quantity of tickets, on which he was to be allowed a penny each; but he ultimately refused to take this commission, though amounting to about ten pounds—‘a vast sum,’ says Wodrow, ‘for tickets at a penny apiece in one coffee-house.’ Aston having reserved this money to himself, instead of accounting for it to his company, according to agreement, a terrible squabble arose among them, and a process was threatened before the magistrates, or some other court. How the matter ended, we do not hear.

To complete his general picture of the profaneness of the age, Mr Wodrow tells us that Allan Ramsay, the poet, got down books of plays from London, and lent them out at an easy rate—the beginning of Circulating Libraries in Scotland. Boys, servantwomen, and gentlemen, all alike took advantage of this arrangement, whereby ‘vice and obscenity were dreadfully propagated.’ Lord Grange complained of the practice to the magistrates, and induced them to make inspection of Ramsay’s book containing the names of the borrowers of the plays. ‘They were alarmed at it, and sent some of their number to his shop to look through some of his books; but he had notice an hour before, and had withdrawn some of the worst, and nothing was done to purpose.’^[676]

The conflict between the Bank of Scotland and its young and pretentious Whig rival, the Royal Bank, led to a temporary stoppage of payments at the former establishment, the last that ever took place. The Royal Bank ‘having all the public money given in to them, has at present worsted [the Bank of Scotland], and run them out of cash.’^[677] In their 1728. own advertisement on the occasion, they attribute the calamity to ‘the great embarrassment that has been upon credit and circulation of money in payments for some months bygone, arising from causes and by means well known both in city and country.’ In this very crisis, the Bank announced its dividend of four per cent, on its capital stock, but appropriating it as part of ten per cent, now called up from the shareholders, ‘the other sixty pounds Scots on each share to be paid in before the 15th of June.’ The directors at the same time ordered their notes to bear interest during the time that payment should be suspended.

It must have been a draught of very bitter gall to the Old Bank, when their young rival came ostentatiously forward with an announcement that, for the ‘relief of such people as wanted to go to market,’ they would give specie for the twenty-shilling notes of the Bank of Scotland till further notice.

The Bank of Scotland resumed paying its twenty-shilling notes on the 27th of June.

The convivialities indulged in at funerals were MAY 9. productive to-day of a tragedy long remembered in Scotland. Mr Carnegie of Lour, residing in the burgh of Forfar, had a daughter to be buried, and before the funeral, he entertained the Earl of Strathmore, his own brother James Carnegie of Finhaven, Mr Lyon of Bridgeton, and some others of the company, at dinner in his house. After the ceremony, these gentlemen adjourned to a tavern, and drank a good deal. Carnegie of Finhaven got extremely drunk. Lyon of Bridgeton was not so much intoxicated; but the drink made him rude and unmannerly towards Finhaven. Afterwards, the Earl of Strathmore went to call at the house of Mr Carnegie’s sister, Lady Auchterhouse, and the other gentlemen followed. Here it may be remarked that the whole of this group of persons were, like a large proportion of the Forfarshire gentry, of Jacobite prepossessions. The earl’s late brother and predecessor in the title had fallen at Sheriffmuir, on the Chevalier’s side; so

had Patrick Lyon of Auchterhouse, husband of the lady now introduced to notice, and brother of Bridgeton. The presence of a lady, and that lady a widowed sister-in-law, failed to make Bridgeton conduct himself discreetly. He continued his boisterous rudeness towards Finhaven; rallied him coarsely about his not being willing to marry one 1728. of his daughters to Lord Rosehill, about his having no sons, about his debts; took him offensively by the breast; and even used some rudeness towards the lady herself. In the dusk of the evening, the party sallied out to the street, and here Bridgeton went so far in his violence towards Finhaven as to push him into a deep and dirty kennel, which nearly covered him from head to foot with mire. Finhaven, now fully incensed, rose, and drawing his sword, ran up to Bridgeton, with deadly design; but the earl, seeing him advance, pushed Bridgeton aside, and unhappily received the lunge full in the middle of his own body. He died forty-nine hours after the incident.

Carnegie of Finhaven was tried on the ensuing 2d of August for premeditated murder; an absurd charge absurdly supported by long arguments and quotations of authority, in the style of that day. In his 'information,' the accused man called God to witness that he had borne no malice to the earl; on the contrary, he had the greatest kindness and respect for him. 'If it shall appear,' said he, 'that I was the unlucky person who wounded the earl, I protest before God I would much rather that a sword had been sheathed in my own bowels.' All that he admitted was: 'I had the misfortune that day to be mortally drunk, for which I beg God's pardon.' He declared that, being in this state at the time, he did not so much as remember that he had seen the earl when he came out of the kennel. The defence proposed for him by his counsel was, that, the circumstances of the case considered, he was not guilty of murder, but of manslaughter. Strange to say, the court, sacrificing rationality to form and statute, overruled the defence: they found the fact that the prisoner having really given the wound whereof the Earl of Strathmore died, to be relevant to infer the pains of law against him. The killing being indisputable, Carnegie would have been condemned if the jury should merely give a verdict on the point of fact. In these circumstances, his counsel, Robert Dundas of Arniston, stood forth to tell the jury that they were entitled to judge on the point of law as well as the point of fact. He asserted that the only object for their deliberation, was whether they could conscientiously say that Carnegie had committed *murder*, or whether his guilt was not diminished or annihilated by the

circumstances of the case. The jury, almost beyond expectation, gave a verdict of ‘Not Guilty,’ thus establishing a great constitutional principle.^[678]

The noted *fierté* of the Scottish nobility and gentry was beginning at this time to give way somewhat, under the general desire to promote the arts of industry, and partly because of the hopelessness of public employments for young scions of aristocracy in all but favoured Whig circles. We must not, therefore, be surprised when a tragical tale of this date brings before us the fact that Patrick Lindsay, described as heir-male of the grand old House of Lindsay of the Byres, and who, a few years afterwards, married a daughter of the sixteenth Earl of Crawford, was now an upholsterer in the Parliament Close of Edinburgh, and dean of guild for the city. Neither ought it to appear as incredible that one of his apprentices was a youth named Cairns, younger son of a gentleman of good estate residing at Cupar-Fife.

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The tale was simply this—that, on the evening noted, between eight and nine o’clock, Cairns was found in the shop expiring from the effects of a violent blow on the head, apparently inflicted by a hammer, while the box containing the guildry treasure was missing. It was believed that some vile people who then haunted the city, knowing of the box being kept in Lindsay’s shop, had formed a design to possess themselves of it, and had effected their end at the expense of murder, at the moment when the place was about to be closed for the night. A number of vagrants were taken up on suspicion, and the box was soon after found, empty.^[679]

Aaron Hill, a well-born English gentleman, who had been manager of Drury Lane Theatre, and wrote many well-received plays and poems—who, moreover, had travelled over Europe and some parts of Asia and Africa—is at this date found writing to his wife from what he calls ‘the Golden Groves of Abernethy,’ meaning the great natural forest of that name on Speyside, in the county of Elgin. It is a strange association of persons and things for a period when even of civilised Scotsmen scarcely ever one made his way north of the Grampians. It had come about, however, in a very natural way.

AUG. 18.

The York-Buildings Company, which had already formed connections with Scotland by the purchase of several of the forfeited estates, was induced to take a lease from Sir James Grant of Grant, of the magnificent

but hitherto useless pine-forest of Abernethy, 1728.
thinking they should be able to apply the timber for the use of the navy. Had the wood been only removable by land-carriage, it would have been useless, as before; but they had been led to understand that there was no difficulty in floating it down the Spey to the sea, where it might be shipped off for the south. Aaron Hill, who was a very speculative genius, having before this time headed a scheme for making olive-oil out of beech-nuts, and concocted a plan for settling a part of Carolina, made a journey to the Spey in 1726, and easily convinced himself of the practicability of the project. The Company, accordingly, commenced operations in 1728, with Mr Hill as their clerk. They sent a hundred and twenty-five work-horses, with a competent number of wagons, and apparatus of all the kinds required; they erected substantial wooden-houses, saw-mills, and an iron-foundry, all of them novelties regarded with wonder by the simple natives.^[680] They had also a salaried commissary to furnish provisions and forage. Tracks being formed through the forest, and men trained to the work, trees were felled to the number of forty or fifty in a day, and brought down to the bank of the river. There, under the direction of Mr Hill, they were bound in rafts of sixty or eighty, with deals laid upon the surface to form a platform; and for each such raft two men were held as sufficient to navigate it to the sea, one sitting with a guiding-oar at one end, and another at the other. Before this time, the natives had been accustomed to float down rafts of three or four trees tied together with a rope, the attendant sitting in a *curragh*, or boat of hide, from which he was ready to plunge into the stream when any impediment called for his interference.^[681] What a Drury Lane manager would think on witnessing a mode of navigation coeval with the first state of savagery, we cannot tell; but he had no little difficulty in inducing the people to adopt a more civilised mode of conducting his grand timber-rafts. Till he first went in one himself, to shew that there was no danger, not one of the Abernethy foresters would venture in so prodigious a craft. There was, in reality, something problematical in the undertaking, for the river was in some places partially blocked by sunken rocks; but the genius of Hill was equal to all emergencies. Taking advantage of 1728.
a dry season, when these shoals were exposed, he kindled immense wood-fires upon them, and when the rock was thus heated, he caused water to be thrown upon it, thus making it splinter, and so enable his men to break it up and clear the passage.

It was in high spirits that our poet wrote to his wife from the Golden Groves of Abernethy, for they were really productive of gold, no less than £7000 worth of timber being realised by his Company. ‘The shore of the Spey,’ says he, ‘is all covered with masts from 50 to 70 feet long, which they are daily bringing out of the wood, with ten carriages, and above a hundred horses.... In the middle of the river lies a little fleet of our rafts, which are just putting off for Findhorn harbour; and it is one of the pleasantest sights possible to observe the little armies of men, women, and children who pour down from the Highlands to stare at what we have been doing.’ What seems chiefly to have impressed the natives, was the liberality with which the business of wood-cutting was conducted. It seemed to them a wasteful extravagance, and if it be true that barrels of tar would be burned in bonfires, and barrels of brandy broached on joyful occasions among the people, five of whom died in one night in consequence, the imputation was not unjust. Nevertheless, the work was highly successful, and might have been carried on longer than it was, if the Company had not called away their people to work at their lead-mines.^[682]

During the time which Mr Hill spent in Scotland, he was received with great civilities by the Duke of Gordon and other eminent persons, and was complimented with the freedom of Aberdeen, Inverness, and other burghs. In his collected poems are found a number of short epigrammatic pieces which he wrote during his residence in Scotland; among the rest, his oft-printed epigram, beginning: ‘Tender-handed stroke a nettle.’ But Burt adds another, which he found scribbled on a window ‘at the first stage on this side Berwick:’

‘Scotland, thy weather’s like a modish wife,
Thy winds and rains for ever are at strife;
So Termagant awhile her bluster tries,
And when she can no longer scold—she cries!’

The engineer could not but wonder at Hill taking leave of the country in this strain, ‘after he had been so exceedingly 1728. complaisant to it, when here, as to compare its subterranean riches with those of Mexico and Peru.’

We must again return to Mr Wodrow for an AUG. account of the continued progress of gaiety in Scotland. It appears that part

of Anthony Aston's company of comedians migrated from Edinburgh to Glasgow, and were there favoured by Bailie Murdoch, 'who is too easy,' with permission to perform the *Beggars' Opera* in the Weigh-house. They had a good audience the first night, but on the few other nights of performance 'got not so much as to pay their music.' On the magistrates being blamed for the permission they had given, they recriminated on the ministers, who should have interfered in time. Mr Wodrow considered the ministers as here in fault; yet he could not exonerate the magistrates. 'Considering the noise made at Edinburgh by these strollers, and the brisk opposition made by the magistrates of Edinburgh, they [the magistrates of Glasgow] should have considered better before they allowed them.'

'Sabbath after, the ministers preached against going to these interludes and plays.... Mr Rob, of Kilsyth, went through all that was agoing about meeting-houses, plays, errors, and profaneness; and spared none, as I hear.'

This classing of the Episcopal meeting-houses with the ungodly theatre, reminds us of the ranging of popery and adultery together by the reformers. It would appear that in the summer of 1728 there was another histrionic company in Scotland, under a Mr Phipps, who announced that on the 29th October he would, 'at the desire of severals of the nobility and gentry of East Lothian,' act the *Beggars' Opera* at Haddington.

In March 1729, the *Edinburgh Courant* informs us that 'the Scots Company of Comedians, as they call themselves, have all of a sudden eloped, without counting with their creditors.'

Wodrow reports with much bitterness, in 1731, the rumours going about as to the success of the English comedians in Edinburgh. He says: 'It is incredible what numbers of *chairs, with men*, are carried to these places;' 'men' not choosing to walk to such amusements. 'For some weeks, they made fifty pound sterling every night, and that for six nights a week.' 'It's a dreadful corruption of our youth, and an eyelet to prodigality and vanity.'^[683]

A valuable Dutch East Indiaman having been lost in March, near the island of Lewis, an effort, involving some ingenuity, was made to recover the treasure on board, which was understood to amount to about £16,000 sterling. The Edinburgh newspapers remark to-day, the arrival of a Dutchman with 'a curious machine' designed for this purpose. Mr Mackenzie, younger of Delvin, a principal clerk of Session,

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and depute-admiral of those shores, was joined with Mr Alexander Tait, a merchant, in furnishing the expenses of this undertaking, in the hope of profit for themselves. The business was proceeded with during October, and with success. On the 19th, the populace of Edinburgh were regaled with the sight of several cart-loads of the recovered money, passing through their streets. The Dutch East India Company presently gave in a petition to the Court of Admiralty for an account of the treasure; which was accordingly furnished by Mr Mackenzie, and shewed that he had fished up £14,620, at an expense of £9000.

Mr Mackenzie was allowed to retain twenty thousand crowns and some doubloons, and ordered to deposit the rest in a box, subject to the future orders of the court.

‘The divers fishing for the spoils of the Dutch ship, found in and about her the dead bodies of two hundred and forty men, which they brought to land and buried.’^[684]

A few years ago, a coronation gold medal of Augustus II. of Poland was exhumed in the garden of the minister of Barra. At first, there was a difficulty of comprehending how such an object could have come there; at length the shipwreck of the Dutch vessel was called to recollection, as an explanation of the mystery.

About the close of 1728, the Edinburgh newspapers speak of a gentleman named Captain Row, who had come to Scotland invested with a privilege for raising treasure and other articles out of shipwrecked vessels, to last for ten years. For the next twelvemonth, we hear of him as exercising his ingenuity upon the remains of one of the Spanish Armada, which was sunk off Barra. Two brass cannon are first spoken of as recovered, and afterwards we hear of ‘several things of value.’

That extraordinary person, Simon Lord Lovat, Nov. who had resisted the troops of King William, and been outlawed by the Edinburgh Justiciary Lords, was now in the enjoyment of his title and estate, an active friend and partisan of the Whig- 1728. Hanoverian government, and captain of one of the six companies of its Highland militia In the early part of this month, he led sixty of these local soldiers on an expedition against the thieves of the north-west districts, and

captured no fewer than twenty-six in the course of a week. He searched for arms at the same time, but reported that these had been now pretty well gathered in; so he found none.

Although few Scotsmen have been the subjects of so much biography as Lord Lovat, there is one aspect in which he remains to be now for the first time viewed; and that is, as a newspaper paragraphist. During the dozen prosperous years which followed this date, the *Courant* and *Mercury* are every now and then presenting extracts of private letters from Inverness regarding the grand doings of 'Simon Lord Lovat, chief of the clan Fraser,' all of them in such a puffing style as would leave little doubt of their having been his own composition, even if we were not possessed of facts which betray it but too clearly.

On one occasion (May 1728) he is described as riding out from Inverness, with eighty well-mounted gentlemen of his clan, to meet and escort the Lords of the Circuit Court of Justiciary, as they were approaching the town. At another (September 1729), we find him parading his company of 'a hundred men, besides officers, sergeants, and drums,' before General Wade, when 'they made a very fine appearance, both as to the body of men and their new clothings, and they performed their exercises and firings so well, that the general seemed very well satisfied. And he told my Lord Lovat that he was much pleased at the performance and good appearance of his company.' We of course hear nothing of what the general's engineer, Mr Burt, has been so ill-natured as record, that Lovat had stripped private clansmen of any good plaids they had, in order to enable his company to make the better show.

In June 1733, we are informed through the *Mercury*, that a commission appointing Lord Lovat to be sheriff of the county, having come to Inverness, it was read in court, where Alexander Fraser of Fairfield sat to administer justice as his lordship's deputy. 'The gentlemen of the name of Fraser, who are very numerous in this town, together with the several relations and friends of the family of Lovat, expressed *an uncommon satisfaction* on seeing this commission renewed in his lordship's person, whose ancestors, above three hundred years ago, were sheriffs-principal of the shires of Inverness and Moray. And we learn 1728. that the rejoicings made all over the country, by the Frasers and their

friends, were in nothing short of those we had in town.’ So says a letter from Inverness, marked in the office-copy of the paper as ‘paid (2s. 6d.).’

Ten days afterwards appeared another paragraph: ‘Last week, the Right Honourable Simon Fraser of Lovat was married at Roseneath, in Dumbartonshire, to the Honourable Miss Primrose Campbell, daughter to the late John Campbell of Mamore, Esq.; sister to John Campbell, Esq., one of the Grooms of the Bedchamber to his Majesty, and first-cousin to his Grace the Duke of Argyle and Greenwich. A young lady of great beauty and merit.’ This was also ‘paid (2s. 6d.).’

The reader will perhaps relish another specimen: ‘INVERNESS, *July 18, 1735.*—Last post brought us the agreeable news of the Hon. John Campbell of Mamore his being appointed Lieutenant-colonel of the Inniskillen Regiment of Foot, a part whereof is now quartered here. This news gave great joy to all the Frasers, and well-wishers of the family of Lovat in this town, the Lord Lovat being married to a sister of the said Colonel Campbell; and there being for many ages a great friendship between the Campbells and the Frasers, last night all the gentlemen of the Frasers in this place, and the Grants, Monroes, and Cuthberts, relations and allies of the family of Lovat, met, and invited all the officers of the corps, garrison, and custom-house, with many other gentlemen of the first rank, to the Lord Lovat’s lodgings, where Baillie William Fraser, his lordship’s landlord and merchant, had prepared an elegant entertainment. There was great plenty of wine, when the healths of his Majesty, the Queen, Prince, Duke, and all the royal family were drunk, with those of the ministry, his Majesty’s forces by sea and land, Duke of Argyle, Earl of Ilay, General Wade, Colonel John Campbell, Lord Lovat, Colonel Hamilton and the corps; the healths of the Frasers, Grants, Monroes, &c., and all the fast friends of the family of Argyle, with many other loyal toasts. There were large bonfires, not only at my Lord Lovat’s lodgings, but on every hill in his lordship’s extensive country round this town. During the solemnity, the music-bells played, drums beat, and the private men of the company here were handsomely entertained, agreeable to their own taste, with barrels of beer, which they drank to the health of their new commander. After the gentlemen had stayed several hours at his lordship’s lodgings, they, with the music playing before them, proceeded to the market-cross, where was a 1728. table covered, with the foresaid toasts repeated, with huzzas and acclamations of joy.’ Marginally marked in the office-copy, ‘Paid 4s.’

The influenza, in a very virulent form, after Nov.
passing over the continent, came to England, and a fortnight after had made its way into Scotland. A cold and cough, with fever, laid hold of nearly every person, sometimes in a moment as they stood on their feet, and in some instances attended with raving. Wodrow of course entertained hopes that Glasgow would receive a good share of the calamity; but it proved less severe there than in some other places. He adverts, however, to the fact, that, owing to the ailment, ‘there was no hearing sermon for some time.’^[685]

The death of Alexander, second duke of Gordon, Nov. 28.
proved, through connected circumstances, a domestic event of great importance. We have seen the adherence of this powerful family to the Catholic faith a source of frequent trouble ever since the Reformation. Latterly, under the protection of the second duke, the ancient religion had been receiving fresh encouragement in the north. For this family to be at variance in so important a respect with the country at large, was unfortunate both for themselves and the country. It was an evil now at length to be brought to an end.

The Duchess—Henrietta Mordaunt, daughter of the Earl of Peterborough^[686]—finding herself left with the charge of a large family in tender years—the young duke only eight years old—took it upon her to have them educated in her own Protestant principles, and with a respect for the reigning family. It was such an opportunity as might not have occurred again for a century. We can see from her history as an introducer of improvements in agriculture, that she must have been a woman of considerable intellectual vigour; and hence it is the less surprising that she fully accomplished her object. She of course got great credit in all loyal quarters for what she did with her children. The General Assembly, in 1730, sent her a cordial letter of thanks. The government, in 1735, settled upon her a pension of £1000 a year. She survived her husband upwards of thirty years, living for the most part at Prestonhall, in the 1729.
county of Edinburgh—a forfeited estate which she had bought at a moderate price.

After all, there were some drawbacks to her Grace’s soundness in Protestant loyalty. While one of her sons, Lord Lewis—the ‘Lewie Gordon’ of Jacobite minstrelsy—‘went out’ for the House of Stuart in 1745, she

herself shewed a certain tendency that way, by laying out a breakfast for the Young Chevalier on the roadside at her park-gate, as he marched past, target on shoulder, on his way to England, for which single act of misapplied hospitality her Grace was deprived of her pension.

The *Edinburgh Courant* of February 24th 1729. FEB.
gravely records that, ‘some days ago, died a young man in the parish of Glencorse, who since Hallarday last hath been grievously tormented by wicked spirits, who haunted his bed almost every night. There was no formed disease upon him; yet he had extraordinary paroxysms, which could not proceed from natural causes. He vomited vast quantities of blood, which was like roasted livers, and at last, with violent cries, his lungs.’

Alexander, ninth Earl of Eglintoun, having died MAR. 20.
on the 18th of February, was this day buried in the family tomb in the west country, with the parade proper to his rank, according to the ideas of the age. One feature of the ceremonial was considered as so peculiar, that the *Caledonian Mercury* makes a paragraph of it alone. ‘There were between nine hundred and a thousand beggars assembled, many of whom came over from Ireland, who had £50 of that nobleman’s charity distribute among them.’

William Ged, ‘of the family of Balfarg,’ a JULY.
goldsmith in Edinburgh, and noted for the improvements he effected in his own business, chanced to be brought into connection with the art of typography by having to pay the workpeople of a printer to whom he was related. Possessing an ingenious and inventive mind, he conceived a plan for economising means in printing, by subjecting to the press, not ‘forms of types,’ as usual, but plates made by casting from those forms, thus at once saving the types from wear, and obtaining a means of printing successive editions of any amount without the necessity of setting up the types anew. He talked of this invention to a friend so early as 1725; but it was not till now that any active steps were taken towards realising it. With one Fenner, a bookseller of London, who happened to visit 1729.
Edinburgh, he entered at this date into a contract, by virtue of which the

project was to be prosecuted by Ged in England, with pecuniary means furnished by Fenner, the profits to be divided betwixt the parties. It was in a manner necessary to go to England for this purpose, as peculiar types were required, and there was not now any letter-founder in Scotland.

Ged was a simple, pure-hearted man, perhaps a good deal carried away from prudential considerations by the interest he felt in his invention. Fenner, and others with whom Ged came in contact in the south, were sharp and selfish people, not over-disposed to use their associate justly. The unfortunate projector had also to encounter positive treacheries, arising from the fear that his plan would injure interests already invested in the trade of printing. He spent several years between London and the university of Cambridge, and never got beyond some abortive experiments, which, however, might have been sufficient to convince any skilful printer of the entire practicability, as well as advantageousness of the scheme. With a deep sense of injury from Fenner and others, Ged returned to Edinburgh in 1733, a poorer, if not a wiser man than he had been eight years before.

It was impossible, however, that so magnificent an addition to the invention of Scheffer and Guttenberg as *stereotyping* should be suppressed. A few kind neighbours entered into a subscription to enable Ged to make a new effort in Scotland. Having a son named James, about twelve years old, he put him apprentice to a printer, that the boy might supply that technical skill which was wanting in himself. Before this child had been a year at his business, being allowed by his master to return to the office by himself at night for his father's work, he had begun to set up the types for an edition of Sallust in an 18mo size; and plates from the forms were finished by Ged in 1736. The impression from these constituted the *first stereotyped book*.

Several persons beyond the limits of the book-producing trades had a sense of Ged's merits. In 1740, when he sent a plate of nine pages of Sallust, and a copy of the book, to the Faculty of Advocates, as an explanation of his invention, they passed a resolution to appoint him some suitable gratification 'when their stock should be in good condition.'^[687] Mr Robert Smith, chancellor of the university of Cambridge, and the bishop of St Asaph's, were so favourably disposed to him, 1729. that in 1742 they made a movement for getting him established as printer to the university, that he might there introduce his plan; but it came to nothing. William Ged, the author of an invention which has unspeakably extended

the utility of the printing-press, died a poor man in 1749. The boy James, who had set the types of the Sallust, joined Prince Charles—for the family was of Jacobite inclinations—and, being apprehended in Carlisle in December 1745, he was condemned to death along with Colonel Townley. The only benefit ever derived by the Geds from their father's invention, was that the aforesaid Mr Robert Smith, by his interest with the Duke of Newcastle, saved the young stereotypist from the gallows.^[688]

The subsequent history of James Ged was unfortunate. 'After he had obtained his pardon, he followed his business for some time as a journeyman with Mr Bettenham: afterwards, he commenced master for himself in Denmark Court, in the Strand. Unsuccessful there, he privately shipped off himself and his materials for the other side of the Atlantic.' 'He went to Jamaica, where his younger brother was settled as a reputable printer, and died soon after his arrival in that island.'^[689]

The ancient church was honourably AUG. 6.
distinguished by its charity towards the poor, and more especially towards the diseased poor; and it was a dreary interval of nearly two centuries which intervened between the extinction of its lazar-houses and leper-houses, and the time when merely a civilised humanity dictated the establishment of a regulated means of succour for the sickness-stricken of the humbler classes. The date here affixed is an interesting one, as that when a hospital of the modern type was first opened in Scotland for the reception of poor patients.

The idea of establishing such an institution in Edinburgh was first agitated in a pamphlet in 1721, and there is reason to believe that the requirements of the rising medical school were largely concerned in dictating it. The matter fell asleep, but was revived in 1725, with a proposal to raise a fund of at least two thousand pounds sterling to carry it out. Chiefly by the activity of the medical profession, 1729.
this fund was realised; and now the first step of practical beneficence was taken by the opening of a house, and the taking in of a small number of patients, for whom six physicians and surgeons undertook to give attendance and medicine. The total number here received during the first year was the modest one of thirty-five, of whom nineteen were dismissed as cured.

Such was the origin of the Edinburgh Infirmary, which, small as it was at first, was designed from its very origin as a benefit to the whole kingdom, no one then dreaming that a time would come when every considerable county town would have a similar hospital. In 1735, the contributors were incorporated, and three years later, they began to rear a building for their purpose, calculated to accommodate seventeen hundred patients per annum, allowing six weeks' residence for each at an average. It is remarkable how cordially the upper classes and the heads of the medical profession concurred in raising and managing this noble institution, and how readily the industrious orders all over the country responded to the appeals made to their charity for its support. While many contributed money, 'others gave stones, lime, wood, slate, and glass, which were carried by the neighbouring farmers *gratis*. Not only many master masons, wrights, slaters, and glaziers gave their attendance, but many journeymen and labourers frequently gave their labour *gratis*; and many joiners gave sashes for the windows.' A Newcastle glass-making company generously glazed the whole house. By correspondence and personal intervention, money was drawn for the work, not only throughout England and Ireland, but in other parts of Europe, and even in America.^[690]

It has always been admitted that the prime moving spirit in the whole undertaking was George Drummond, one of the Commissioners of Customs, and on three several occasions Lord Provost of Edinburgh; a man of princely aspect and character, further memorable as the projector of the New Town. His merits in regard to the Infirmary have, indeed, been substantially acknowledged by the setting up of a portrait of him in the council-room, and a bust by Nollekins in the hall, the latter having this inscription, dictated by Principal Robertson: 'George Drummond, to whom this country is indebted for all the benefit which it derives from the Royal Infirmary.'^[691]

It is not unworthy of being kept in mind that, in 1729. the business of levying means from a distance, Drummond was largely assisted by an eccentric sister, named May, who had adopted the tenets of Quakerism, and occasionally made tours through various parts of Great Britain for the purpose of preaching to the people, of whom vast multitudes used to flock to hear her. She was a gentle enthusiast, of interesting appearance, and so noted did her addresses become, that Queen Caroline at length condescended to listen to one. We get some idea of her movements

in the summer of 1735, from a paragraph regarding her then inserted in a London newspaper: ‘We hear that the famous preaching maiden Quaker (Mrs Drummond, who preached before the queen), lately arrived from Scotland, intends to challenge the champion of England, Orator Henley, to dispute with him at the Bull and Mouth, upon the doctrines and tenets of Quakerism, at such time as he shall appoint.’

In the pages, moreover, of Sylvanus Urban, ‘a Lady’ soon after poured forth strains of the highest admiration regarding this

‘——happy virgin of celestial race,
Adorned with wisdom, and replete with grace;’

proclaiming that she outshone Theresa of Spain, and was sufficient in herself to extinguish the malignant ridicule with which men sometimes assail the capacities of women.^[692]

Human nature, however, is a ravelled hasp of rather mixed yarn, and it will be heard with pity that this amiable missionary of piety and charity was one of those anomalous beings who, without necessity or temptation, are unable to restrain themselves from picking up and carrying away articles belonging to their neighbours. The propensity, though as veritable a disease as any ever treated within the walls of her brother’s infirmary, threw a shade, deepening that of poverty, over the latter years of May Drummond. Only the enlightened and generous few could rightly apprehend such a case. Amongst some memoranda on old-world local matters, kindly communicated to me many years ago by Sir Walter Scott, I find one touching gently on the memory of this unfortunate lady, and directing my attention to ‘a copy of tolerably good elegiac verses,’ written on a picture in which she was represented in the character of Winter. Of these he quoted from memory, with some slight inaccuracies, the first and third of the following three:

1729.

‘Full justly hath the artist planned
In Winter’s guise thy furrowed brow,
And rightly raised thy feeble hand
Above the elemental glow.

I gaze upon that well-known face;
But ah, beneath *December*’s frost,
Lies buried all its vernal grace,
And every trait of *May* is lost.

Nor merely on thy trembling frame,
Thy wrinkled cheek, and deafened ear,
But on thy *fortunes* and thy *fame*,
Relentless Winter frowns severe.’^[693]

Sir Robert Monro of Foulis, in Ross-shire, ‘a very ancient gentleman,’ and chief of a considerable clan, died in the enjoyment of general esteem. Four counties turned out to shew their respect at his funeral. There were above six hundred horsemen, tolerably mounted and appalled. ‘The corpse was carried on a bier betwixt two horses, fully harnessed in deepest mourning. A gentleman rode in deep mourning before the corpse, uncovered, attended by two grooms and four running-footmen, all in deep mourning. The friends followed immediately behind the corpse, and the gentlemen [strangers] in the rear. The scutcheons,’ says the reporter, ‘were the handsomest I ever saw; the entertainment magnificent and full.’^[694]

SEP.

1729.

General Wade was now dating from ‘my hutt at Dalnacardoch,’ having been obliged for some time to station himself in the wilderness of Drumnachter, in order to get the road from Dunkeld to Inverness finished, and a shorter one planned as a branch to Crieff. The Lord Advocate Forbes wrote to him sympathisingly, acknowledging that ‘never was penitent banished into a more barren desert for his sins.’ Both gentlemen had their eyes open regarding a plotting among the Jacobites, of which the government had got some inkling, but of which nothing came.

SEP.

In the latter part of the month, the general advanced to Ruthven, in Badenoch, and there the people for the first time beheld that modern luxury—a coach. Everybody turned out to see it, for it was next to a prodigy among that simple people. Here Forbes met General Wade, and some sort of court of judicature was held by them; after which they parted, the advocate to return to Inverness, and Wade to Dalnacardoch.

The good-natured general had arranged for a fête to be held by those whom he jocularly called his *highwaymen*; and it must have been a somewhat picturesque affair. On a spot near Dalnaspidal, and opposite to the opening of Loch Garry, the working-parties met under their officers, and formed a square surrounding a tent. Four oxen were roasted whole, ‘in great order and solemnity,’ and four ankers of brandy were broached. The men dined *al fresco*; the general and his friend Sir Robert Clifton, with Sir

Duncan Campbell, Colonel Guest, Major Duroure, and a number of other gentlemen, were regaled in the tent. The beef, according to the general's own acknowledgment, was 'excellent,' and after it was partaken of, a series of loyal toasts was drunk amidst demonstrations of general satisfaction, the names of the Lord Advocate and his brother, John Forbes of Culloden, being not forgotten. There is something interesting in these simple jocosities, considering the grand engine of civilisation they were connected with.^[695]

The road from Ruthven to Fort Augustus, 1729.
involving the steep and difficult mountain of Corryarrick, and the most difficult part of the whole undertaking, was in the course of being completed in October 1731, when a gentleman signing himself 'N. M'Leod,' being probably no other than the Laird of Dunvegan, chanced to pass that way on his road to Skye, and gave in the newspapers an account of what he saw. 'Upon entering,' he says, 'into a little glen among the hills, lately called Laggan a Vannah, but now by the soldiers Snugburgh, I heard the noise of many people, and saw six great fires, about each of which a number of soldiers were very busy. During my wonder at the cause of this, an officer invited me to drink their majesties' healths. I attended him to each fire, and found that these were the six working-parties of Tatton's, Montague's, Mark Ker's, Harrison's, and Handyside's regiments, and the party from the Highland Companies, making in all about five hundred men, who had this summer, with indefatigable pains, completed the great road for wheel-carriages between Fort Augustus and Ruthven. It being the 30th of October, his majesty's birthday, General Wade had given to each detachment an *ox-feast*, and liquor; six oxen were roasted whole, one at the head of each party. The joy was great, both upon the occasion of the day, and the work's being completed, which is really a wonderful undertaking.'

Before dismissing General Wade, it may be mentioned that a permanent record of his engineering skill and courage in building Tay Bridge, in the form of a Latin inscription, was put upon that structure itself, being the composition of Dr Friend, master of Westminster School. But this, if the most classic, was not destined to be the most memorable memorial of the worthy general's labours. 'To perpetuate the memory of the marshal's chief exploit, in making the road from Inverness to Inverary, an obelisk is erected near Fort William, on which the traveller is reminded of his merits by the following naïf couplet:

“Had you seen these roads before they were made,
You would lift up your hands and bless General Wade.”^[696]

‘Long before the improvements of the Highlands were seriously thought of, Lord Kames, being, in 1773, at Inverness on the 1729.
circuit, gave, as a toast after dinner, “Roads and Bridges.” Captain Savage, of the 37th regiment, then at Fort George, sat near his lordship, and, being next asked for a toast, gave “Chaises and Horses,” to the annoyance of the entertainers, who thought it done in ridicule, though doubtless the captain only meant to follow out the spirit of Lord Kames’s sentiment.’—*Letter of the late H. R. Duff of Muirton to the author, 31st March 1827.*

In Scotland, oil-painting had had a morning-star OCT. 18.
in the person of George Jameson. Two ages of darkness had followed. About the beginning of the eighteenth century, a foreign artist, John Medina, found for a few years a fair encouragement for his pencil in the painting of portraits; and the Duke of Queensberry, as royal commissioner, conferred upon him the honour of knighthood.^[697] Then arose two native portrait-painters of some merit—John Alexander, who, moreover, was able to decorate a staircase in Gordon Castle with a tolerable picture of the Rape of Proserpine; and John Scougal, who has handed down to us not a few of the lords and gentlemen of the reign of Queen Anne.^[698] William Aikman, a disciple of Medina, followed, and was in vogue as a painter of portraits in Edinburgh about 1721. Such was the meagre history of oil-painting in Scotland till the end of the reign of the first George.

At that time, when wealth was following industry, and religious gloom beginning to give way to a taste for elegant amusements, the decorative arts were becoming comparatively prominent. Roderick Chalmers and James Norie, while ostensibly house-painters, aspired to a graceful use of the pencil, seldom failing, when they painted a set of panelled rooms, to leave a tolerable landscape from their own hands over the fireplaces; and in some of the houses in the Old Town of Edinburgh, these pieces are still seen to be far from contemptible. William Adam, father of the celebrated brothers, William and Robert, was the principal architect of the day. There was even a respectable line-engraver in Richard Cooper, the 1729.
person from whom Strange, some years after, derived his first lessons. While these men had a professional interest in art, there were others who

viewed it with favour on general grounds, and, from motives of public spirit, were willing to see it encouraged in the Scottish capital.

There was, accordingly, a design formed at this date for the erection of a sort of academy in Edinburgh, under the name of the School of St Luke, 'for the encouragement of painting, sculpture, architecture, &c.' A scheme of it, drawn up on parchment, described the principal practical object to be, to have a properly lighted and furnished room, where the members could meet periodically to practise drawing, &c., from the figure, or from draughts; lots to be drawn for the choice of seats. Private gentlemen who chose to contribute were invited to join in the design, though they might not be disposed to use the pencil. We find a surprisingly liberal list of subscribers to this document, including Lord Linton, Lord Garlies, and Gilbert Elliot; James M'Ewen, James Balfour, and Allan Ramsay, booksellers; the artists above mentioned, and about fifteen other persons. Amongst the rest was the name of Allan Ramsay, junior, now a mere stripling, but who came to be portrait-painter to George III.^[699]

The above is all that we know about this proposed School of St Luke. Very pleasant it is to know so much, to be assured that, in 1729, there was even a handful of men in the Scottish capital so far advanced in taste for one of the elegant arts, as to make a movement for its cultivation. As to the preparedness of the general mind of the country for the appreciation of high art, the following little narrative will enable the modern reader to form some judgment.

In December 1734, there was shewn in Edinburgh, 'at Mr Yaxley Davidson's, without the Cowgate Port,' a collection of curiosities, amongst which was included a said-to-be-valuable picture of Raphael, probably representing the Saviour on the Cross; also a view of the interior of St Peter's at Rome, as illuminated for the jubilee of 1700, 'the like never seen in Great Britain.' The exhibition lingered for a few weeks in the city with tolerable success, and was then removed to the tavern of one Murray at the Bridge-end, opposite to Perth.

Here, in consequence of 'a pathetic sermon' 1729. preached by one of the ministers, and certain printed letters industriously circulated on the subject of these works of art, a crowd of the meaner sort of people rose tumultuously on the 10th of July, and, crossing the Tay by the ferry-boat, proceeded to Murray's house, crying out: 'Idolatry! molten and

graven images! popery!’ and so forth. Then, surrounding the door, they attempted to enter for the purpose of dragging forth the pictures, and were only with difficulty withstood by the landlord, who, backed by his hostler, planted himself with a drawn cutlass in the doorway. Time was thus given for some gentlemen of Perth to come to the rescue, and also to allow of the Earl of Kinnoull’s bailie of regality to come forward in behalf of the peace; ‘whereupon the men concerned in the mob withdrew, the women still standing at the doors of the house, crying out: “Idolatry, idolatry, and popery!” and threatening still to burn the house, or have the pictures and graven images destroyed, till some dozens of the female ringleaders were carried over the river to Perth, the rest dispersing gradually of their own accord. Immediately after, the poor stranger was glad to make the best of his way, and went straight in a boat to Dundee, which the mobbers no sooner perceived, but they sent an express by land to that place to prompt some of the zealous there to mob him at landing.’

Apparently this message had taken effect, for we learn, a few days after, that the collection of curiosities, ‘having made a fine retreat from the late attack at the Bridge-end of Perth,’ are again on view in Edinburgh.^[700]

Amongst the ‘signs and causes of the Lord’s departure,’ adduced by the Seceders in a testimony published by them soon after this time, is the fact that ‘an idolatrous picture of our Lord and Saviour Jesus Christ was well received in some remarkable places of the land.’

Mr Wodrow was regaled at this time with a few Nov. additional chastisements for the city of Glasgow. Mrs Glen, who dealt largely in silks and Hollands, had broken down under a bill for three hundred pounds, with debt to tradesmen in the city for weaving cloth to the amount of five hundred! In the ensuing June, the town sustained ‘a very great loss’ by the breaking of a Scottish factor in Holland; no less than two thousand pounds sterling: only—and here was the 1729. great pity in the case—it was diffused over too many parties to be very sensibly felt.^[701]

About fifteen months after this date, the worthy pastor of Eastwood adverted to the ‘great losses, hardships, and impositions’ which the trade of Glasgow had recently undergone, and to the ‘several hundreds of working poor’ which hung as a burden upon the city. Notwithstanding all that—and

we can imagine his perplexity in recording the fact—the citizens were getting up a house of refuge for distressed people. ‘In a week or two, twelve hundred pounds was signed for, besides two hundred Mr Orr gives,’ and certain sums to be contributed by public bodies. What would he have thought if he could have been assured that, in little more than a century, Glasgow would, in a few weeks, and without difficulty, raise forty-five thousand pounds as its quota towards a national fund for the succour of the sufferers in the British army by a single campaign!

Lord Balmerino, son of the lord who had been DEC. 24.
the subject of a notable prosecution under the tyrannical government of Charles I.,^[702] was now residing in advanced age at his house in Coatfield Lane, in Leith. One of his younger sons, named Alexander (the immediate younger brother of Arthur, who made so gallant a death on Tower Hill in 1746), was leading a life of idleness and pleasure at the same place. As this young gentleman was now to be involved in a bloody affair which took place in Leith Links, it may be worth while to recall that, five years back, he was engaged on the same ground in an affair of gaiety and sport, which yet had some ominous associations about it. It was what a newspaper of the day calls ‘a solemn match at golf’ played by him for twenty guineas with Captain Porteous of the Edinburgh Town-guard; an affair so remarkable on account of the stake, that it was attended by the Duke of Hamilton, the Earl of Morton, and a vast mob of the great and little besides, Alexander Elphinstone ending as the winner.^[703] No one could well have imagined, as that cheerful game was going on, that both the players were, not many years after, to have blood upon their hands, one of them to take on the murderer’s mark upon this very field.

On the 23d of December 1729, the Honourable Alexander Elphinstone met a Lieutenant Swift of Cadogan’s regiment at 1729.
the house of Mr Michael Watson, merchant in Leith. Some hot words having risen between them, Elphinstone rose to depart, but before he went, he touched Swift on the shoulder with his sword, and dropped a hint that he would expect to receive satisfaction next morning on the Links. Next day, accordingly, the two gentlemen met at eleven in the forenoon in that comparatively public place (as it now appears), and fought a single combat with swords, which ended in Swift receiving a mortal wound in the breast.

Elphinstone was indicted for this act before the High Court of Justiciary; but the case was never brought forward, and the young man died without molestation at Leith three years after.

The merit of the invention of that noble 1730.
instrument, the Reflecting Telescope, is allowed to rest with David Gregory, a native of Scotland, although that of first completing one (in 1671) is due to the illustrious Newton. It was thought very desirable by Sir Isaac to substitute glass for metallic reflectors; but fifty years elapsed without the idea being realised, when at length, about this date, a very young Edinburgh artist, named James Short, ‘executed no fewer than six reflecting telescopes with glass specula, three of which were fifteen inches, and three nine inches in focal length,’ to which Professor Maclaurin gave his approbation, though ultimately their light was found fainter than was deemed necessary.

Two years afterwards, when Short had only attained the age of twenty-two, he began to enter into competition with the English makers of reflecting telescopes, but without attempting to make specula of glass. ‘To such perfection did he carry the art of grinding and polishing metallic specula, and of giving them the true parabolic figure, that, with a telescope of fifteen inches in focal length, he and Mr Bayne, Professor of Law in the University of Edinburgh, read the *Philosophical Transactions* at the distance of five hundred feet, and several times, particularly on the 24th of November and the 7th of December 1734, they saw the five satellites of Saturn together, an achievement beyond the reach of Hadley’s six-feet telescope.’

This ingenious man, attaining some celebrity for the making of reflecting telescopes, was induced, in 1742, to settle in London, where for a number of years he continued to use his remarkable talents 1730.
in this way, occasionally furnishing instruments at high prices to royal personages throughout Europe.^[704]

One William Muir, brother of two men who had OCT. 26.
recently been hanged at Ayr for theft, was this day tried before a jury, for housebreaking, by the Lord Provost of Edinburgh, acting as ‘High Sheriff

within burgh.’ The man was condemned to death, and the sentence was duly executed on the ensuing 2d of December, he dying penitent.^[705]

It seems strange to us, but about this time the condemnation of criminals to capital punishment by sheriffs of counties, and by the chief-magistrate of Edinburgh, was by no means infrequent, being entirely in accordance with the statutory arrangements of the country. Nay more, great territorial lords, especially in the Highlands, still acted upon their ancient privileges of pit and gallows. It is related that the Duke of Athole one day received at Blair an application from his baron-bailie for pardon to a man whom he had condemned to be hanged for theft, but who was a person of such merits otherwise that it seemed a pity to put justice in force against him. The Lord President Forbes, who had stopped to dine with his Grace in the course of a journey to Edinburgh, expressed his surprise that the power of pardoning a condemned criminal should be attributed to any person but the king. ‘Since I have the power of punishing,’ said the duke, ‘it is but right that I should have the power of pardoning.’ Then, calling a servant, he quietly added: ‘Send an express to Logierait, and order Donald Stewart, presently under sentence, to be set at liberty.’^[706]

We are now arrived at a time which seems to mark very decidedly a transition in Scotland from poverty to growing wealth, from the puritanic manners of the seventeenth century to the semi-licence and ease of the eighteenth, from narrow to liberal education, and consequently from restricted to expanded views. It may, therefore, be proper here to introduce a few general observations.

Although, only a few years back, we find Wodrow speaking of the general poverty, it is remarkable that, after this time, complaints on that point are not heard in almost any quarter. The 1730. influx of commercial prosperity at Glasgow had now fairly set in, and the linen manufacture and other branches of industry begin to be a good deal spoken of. Agricultural improvements and the decoration of the country by wood had now been commenced. There was great chafing under the taxation introduced after the Union, and smuggling was popular, and the revenue-officers were detested; yet the people had become able to endure the deductions made from their income. Thus did matters go on during the time between 1725 and 1745, making a slow but sensible advance—nothing

like what took place after the question of the dynasty had been settled at Culloden, but yet such as to very considerably affect the condition of the people. Much of this was owing to the pacific policy of Sir Robert Walpole, to whom, with all his faults, the British people certainly owe more than to any minister before Sir Robert Peel.

If we wish to realise the manners before this period, we must think of the Scotch as a people living in a part of Britain remote from the centre—peninsulated and off at a side—enjoying little intercourse with strangers; but, above all, as a people on whom the theology of the Puritans, with all their peculiar views regarding the forms of religion and the arrangements of a church, had taken a powerful hold. Down to 1730, all respectable persons in Scotland, with but the slightest exceptions, maintained a strictly evangelical creed, went regularly to church, and kept up daily family-worship. Nay, it had become a custom that every house should contain a small closet built on purpose, to which the head of the family could retire at stated times for his personal or private devotions, which were usually of a protracted kind, and often accompanied by great motions and groanings, expressive of an intense sense of human worthlessness without the divine favour. On Sunday, the whole family, having first gathered for prayers in the parlour, proceeded at ten to church. At half-past twelve, they came home for a light dinner of cold viands (none being cooked on this sacred day), to return at two for an afternoon service of about two hours. The remainder of the day was devoted to private devotions, catechising of children, and the reading of pious books, excepting a space of time set aside for supper, which in many families was a comfortable meal, and an occasion, the only one during the day, when a little cheerful conversation was indulged in. Invariably, the day was closed with a repetition of family prayers.

It was customary for serious people to draw up a written paper, in which they formally devoted themselves to the service of 1730. God—a sort of personal covenant with their Maker—and to renew this each year at the time of the celebration of the communion by a fresh signature with the date. The subscriber expressed his entire satisfaction with the scheme of Christian salvation, avowed his willingness to take the Lord to be his all-sufficient portion, and to be resigned to his will and providence in all things. He also expressed his resolution to be mortified to the world, and to engage heartily and steadfastly persevere in the performance of all religious duties. An earnest prayer for the divine help usually closed this document.

As all were trained to look up to the Deity with awe and terror, so, with the same feelings, were children accustomed to look up to their parents, and servants to their masters. Amongst the upper classes, the head of the family was for the most part an awful personage, who sat in a special chair by the fireside, and at the head of the table, with his hat on, often served at meals with special dishes, which no one else, not even guests, partook of. In all the arrangements of the house, his convenience and tastes were primarily studied. His children approached him with fear, and never spoke with any freedom before him. At meals, the lady of the house helped every one as she herself might choose. The dishes were at once ill-cooked and ill-served. It was thought unmeet for man that he should be nice about food. Nicety and love of rich feeding were understood to be hateful peculiarities of the English, and unworthy of the people who had been so much more favoured by God in a knowledge of matters of higher concern.

There was, nevertheless, a great amount of hospitality. And here it is to be observed, that the poverty of those old times had less effect on the entertainments of the higher classes than might have been expected. What helped the gentlefolks in this respect, was the custom of receiving considerable payments from their tenants in *kind*. This enabled them to indulge in a rude abundance at home, while their means of living in a town-house, or in an inn while travelling, was probably very limited. We must further remember the abundance of game in Scotland, how every moor teemed with grouse and black-cock, and every lake and river with fish. These furnished large supplies for the table of the laird, both in Lowlands and Highlands; and I feel convinced that the miserable picture drawn by a modern historian of the way of living among the northern chiefs is untrue to a large extent, mainly by his failure to take such 1730. resources into account.

A lady, born in 1714, who has left a valuable set of reminiscences of her early days, lays great stress on the home-staying life of the Scottish gentry. She says that this result of their narrow circumstances kept their minds in a contracted state, and caused them to regard all manners and habits different from their own with prejudice. The adult had few intelligent books to read; neither did journals then exist to give them a knowledge of public affairs. The children, kept at a distance by their parents, lived much amongst themselves or with underlings, and grew up with little of either knowledge or refinement. Restrained within a narrow social circle, they often

contracted improper marriages. It was not thought necessary in those days that young ladies should acquire a sound knowledge of even their own language, much less of French, German, or Italian; nor were many of them taught music or any other refined accomplishment. ‘The chief thing required was to hear them psalms and long catechisms, in which they were employed an hour or more every day, and almost the whole day on Sunday. They were allowed to run about and amuse themselves in the way they choosed, even to the age of woman, at which time they were generally sent to Edinburgh for a winter or two, to learn to dress themselves, and to dance, and see a little of the world. The world was only to be seen at church, at marriages, burials, and baptisms.... When in the country, their employment was in coloured work, beds, tapestry, and other pieces of furniture; imitations of fruits and flowers, with very little taste. If they read any, it was either books of devotion or long romances, and sometimes both.’

Previous to this time, the universal dress of the middle classes was of plain country cloth, much of it what was called *hodden gray*—that is, cloth spun at home from the undyed wool. Gentlemen of figure wore English or foreign cloth, and their clothes were costly in comparison with other articles. We find, for instance, a gentleman at his marriage, in 1711, paying £340 Scots for two suits, a night-gown, and a suit to his servant. Linen being everywhere made at home—the spinning executed by the servants during the long winter evenings, and the weaving by the village webster—there was a general abundance of napery and of under-clothing. Holland, being about six shillings an ell, was worn only by men of refinement. ‘I remember,’ says the lady aforesaid, ‘in the ‘30 or ‘31, of a ball where it was agreed that the company should be dressed in 1730.

nothing but what was manufactured in the country. My sisters were as well dressed as any, and their gowns were striped linen at 2s. 6d. per yard. Their heads and ruffles were of Paisley muslins, at 4s. 6d., with fourpenny edging from Hamilton; all of them the finest that could be had.... At the time I mention, hoops were constantly worn four and a half yards wide, which required much silk to cover them; and gold and silver were much used for trimming, never less than three rows round the petticoat; so that, though the silk was slight, the price was increased by the trimming. Then the heads were all dressed in laces from Flanders; no blondes or course-edging used: the price of these was high, but two suits would serve for life; they were not renewed but at marriage, or some great event. Who could not afford these

wore fringes of thread.’ In those days, the ladies went to church, and appeared on other public occasions, in full dress. A row of them so rigged out, taking a place in the procession at the opening of the General Assembly, used to be spoken of by old people as a fine show. When a lady appeared in undress on the streets of Edinburgh, she generally wore a mask, which, however, seems to have been regarded as simply an equivalent for the veil of modern times.

One marked peculiarity of old times, was the union of fine parade and elegant dressing with vulgarity of thought, speech, and act. The seemliness and delicacy observed now-a-days regarding both marriages and births were unknown long ago. We have seen how a bridal in high life was conducted in the reign of Queen Anne.^[707] Let us now observe the ceremonials connected with a birth at the same period. ‘On the fourth week after the lady’s delivery, she is set on her bed on a low footstool; the bed covered with some neat piece of sewed work or white sattin, with three pillows at her back covered with the same; she in full dress with a lappet head-dress and a fan in her hand. Having informed her acquaintance what day she is to see company, they all come and pay their respects to her, standing, or walking a little through the room (for there’s no chairs). They drink a glass of wine and eat a bit of cake, and then give place to others. Towards the end of the week, all the friends are asked to what was called the *Cummers’ Feast*.^[708] This was a supper where every gentleman brought a pint of wine to be drunk by him and his wife. The supper was a ham 1730. at the head, and a pyramid of fowl at the bottom. This dish consisted of four or five ducks at bottom, hens above, and partridges at top. There was an eating posset in the middle of the table, with dried fruits and sweetmeats at the sides. When they had finished their supper, the meat was removed, and in a moment everybody flies to the sweetmeats to pocket them. Upon which a scramble ensued; chairs overturned, and everything on the table; wrestling and pulling at one another with the utmost noise. When all was quiet, they went to the stoups (for there were no bottles), of which the women had a good share; for though it was a disgrace to be seen drunk, yet it was none to be a little intoxicat in good company.’

Any one who has observed the conduct of stiff people, when on special occasions they break out from their reserve, will have no difficulty in reconciling such childish frolics with the general sombreness of old Scottish life.

It is to be observed that, while puritanic rigour was characteristic of the great bulk of society, there had been from the Restoration a minority of a more indulgent complexion. These were generally persons of rank, and adherents of Episcopacy and the House of Stuart. Such tendency as there was in the country to music, to theatricals, to elegant literature, resided with this party almost exclusively. After the long dark interval which ensued upon the death of Drummond, Sir George Mackenzie, the ‘persecutor,’ was the first to attempt the cultivation of the belles-lettres in Scotland. Dr Pitcairn was the centre of a small circle of wits who, a little later, devoted themselves to the Muses, but who composed exclusively in Latin. When Addison, Steele, Pope, and Swift were conferring Augustine glories on the reign of Anne in England, there was scarcely a single writer of polite English in Scotland; but under George I., we find Ramsay tuning his rustic reed, and making himself known even in the south, notwithstanding the peculiarity of his language. These men were all of them unsympathetic with the old church Calvinism of their native country—as, indeed, have been nearly all the eminent cultivators of letters in Scotland down to the present time. We learn that copies of the *Tatler* and *Spectator* found their way into Scotland; and we hear not only of gentlemen, but of clergymen reading them. Allan Ramsay lent out the plays of Congreve and Farquhar at his shop in Edinburgh. Periodical amateur concerts were commenced, as we have seen, as early as 1717. The Easy Club—to 1730. which Ramsay belonged—and other social fraternities of the same kind, were at the same time enjoying their occasional convivialities in Edinburgh. A small miscellany of verse, published in Edinburgh in 1720, makes us aware that there were then residing there several young aspirants to the laurel, including two who have since obtained places in the roll of the British poets—namely, Thomson and Mallet—and also Mr Henry Home of Kames, and Mr Joseph Mitchell: moreover, we gather from this little volume, that there was in Edinburgh a ‘Fair Intellectual Club,’ an association, we must presume, of young ladies who were disposed to cultivate a taste for the belles-lettres. About this time, the tea-table began to be a point of reunion for the upper classes. At four in the afternoon, the gentlemen and ladies would assemble round a multitude of small china cups, each recognisable by the number of the little silver spoon connected with it, and from these the lady of the house would dispense an almost endless series of libations, while lively chat and gossip went briskly on, but

it is to be feared, in most circles, little conversation of what would now be called an intellectual cast. On these occasions, the singing of a Scottish song to an accompaniment on the spinet was considered a graceful accomplishment; and certainly no superior treat was to be had.



Lady playing on Spinet, with Violoncello Accompaniment.—From a volume entitled *Music for Tea-table Miscellany*, published by Allan Ramsay.

Two things at this period told powerfully in introducing new ideas and politer manners: first, the constant going and coming of sixty-one men of importance between their own country and London in attendance on parliament; and second, the introduction of a number of English people as residents or visitors into the country, in connection with the army, the excise and customs, and the management of the forfeited estates. This intercourse irresistibly led to greater cleanliness, to a demand for better house accommodation, and to at once greater ease and greater propriety of manners. The minority of the tasteful and the gay being so far reinforced, assemblies for dancing, and even in a modest way theatricals, were no longer to be repressed. The change thus effected was by and by confirmed, in consequence of young men of family getting into the custom of travelling for a year or two on the continent before settling at their professions or in the management of their affairs at home. This led, too, to a

1730.

somewhat incongruous ingrafting of French politeness on the homely manners and speech of the general flock of ladies and gentlemen. Reverting to the matter of house accommodation, it may be remarked that a floor of three or four rooms and a kitchen was then considered a mansion for a gentleman or superior merchant in Edinburgh. We ought not to be too much startled at the idea of a lady receiving gentlemen along with ladies in her bedroom, when we reflect that there were then few rooms which had not beds in them, either openly or behind a screen. It is a significant fact that, in 1745, there was in Inverness only one house which contained a room without a bed—namely, that in which Prince Charles took up his lodgings.

As a consequence of the narrowness of house accommodation in those days, taverns were much more used than they are now. A physician or advocate in high practice was to be consulted at his tavern, and the habits of each important practitioner in this regard were studied, and became widely known. Gentlemen met in tavern clubs each evening for conversation, without much expense, a shilling's reckoning being thought high—more generally, it was the half of that sum. 'In some of these clubs they played at backgammon or catch-honours for a penny the game.' At the consultations of lawyers, the liquor was sherry, brought in mutchkin stoups, and paid for by the employer. 'It was incredible the quantity that was drunk sometimes on those occasions.' Politicians met in taverns to discuss the affairs of state. One situated in the High Street, kept by Patrick Steil, was the resort of a number of the patriots who urged on the Act of Security and resisted the Union; and the phrase, *Pate Steil's Parliament*, 1730. occasionally appears in the correspondence of the time. It was in the same place, as we have seen, that the weekly concert was commenced. In the freer days which ensued upon this time, it was not thought derogatory to ladies of good rank that they should occasionally join oyster-parties in these places of resort.

Miss Mure, in her invaluable memoir, remarks on the change which took place in her youth in the religious sentiments of the people. A dread of the Deity, and a fear of hell and of the power of the devil, she cites as the predominant feelings of religious people in the age succeeding the Revolution. It was thought a mark of atheistic tendencies to doubt witchcraft, or the reality of apparitions, or the occasional vaticinative character of dreams. When the generation of the Revolution was beginning to pass away, the deep convictions as well as the polemical spirit, of the

seventeenth century gave place to an easier and a gentler faith. There was no such thing as scepticism, except in the greatest obscurity; but a number of favourite preachers began to place Christianity in an amiable light before their congregations. 'We were bid,' says Miss Mure, 'to draw our knowledge of God from his works, the chief of which is the soul of a good man; then judge if we have cause to fear.... Whoever would please God must resemble him in goodness and benevolence.... The Christian religion was taught as the purest rule of morals; the belief of a particular providence and of a future state as a support in every situation. The distresses of individuals were necessary for exercising the good affections of others, and the state of suffering the post of honour.' At the same time, dread of parents also melted away. 'The fathers would use their sons with such freedom, that they should be their first friend; and the mothers would allow of no intimacies but with themselves. For their girls the utmost care was taken that fear of no kind should enslave the mind; nurses were turned off who would tell the young of ghosts and witches. The old ministers were ridiculed who preached up hell and damnation; the mind was to be influenced by gentle and generous motives alone.'

A country gentleman, writing in 1729, remarks the increase in the expense of housekeeping which he had seen going on during the past twenty years. While deeming it indisputable that Edinburgh was now less populous than before the Union, 'yet I am informed,' says he, 'there is a greater consumption since, than before the Union, of all provisions, especially feshes and wheatbread. The butcher owns he now kills three of every species of cattle for every one he killed 1730. before the Union.' Where formerly he had been accustomed to see 'two or three substantial dishes of beef, mutton, and fowl, garnished with their own wholesome gravy,' he now saw 'several services of little expensive ashets, with English pickles, yea Indian mangoes, and catch-up or anchovy sauces.' Where there used to be the quart stoup of ale from the barrel, there was now bottled ale for a first service, and claret to help out the second, or else 'a snaker of rack or brandy punch.' Tea in the morning and tea in the evening had now become established. There were more livery-servants, and better dressed, and more horses, than formerly. French and Italian silks for the ladies, and English broadcloth for the gentlemen, were more and more supplanting the plain home-stuffs of former days.^[709] This writer was full of

fears as to the warrantableness of this superior style of living, but his report of the fact is not the less valuable.

It will be remembered that the Bank of Scotland, 1731. JULY.
soon after its institution in 1696, settled branches at Glasgow, Aberdeen, Montrose, and Dundee, all of which proving unsuccessful, were speedily withdrawn. Since then, no new similar movement had been made; neither had a native bank arisen in any of those towns. But now, when the country seemed to be making some decided advances in industry and wealth, the Bank resolved upon a new attempt, and set up branches in Glasgow, Aberdeen, Dundee, and Berwick. It was found, however, that the effort was yet premature, and, after two years' trial, these branches were all recalled.
[\[710\]](#)

It is to be observed that Glasgow, though yet unable to support a branch of a public bank, was not inexperienced in banking accommodation. The business was carried on here, as it had long ago been in Edinburgh, by private traders, and in intimate connection with other business. An advertisement published in the newspapers in July 1730 by James Blair, merchant, at the head of the Saltmarket in Glasgow, makes us aware that at his *shop* there, 'all persons who have occasion to buy or sell bills of exchange, or want money to borrow, or have money to lend on interest, or have any sort of goods to sell, or want to buy any kind of goods, or who want to buy sugar-house notes or other good bills, or desire to have such notes or bills discounted, or who want to have 1731.
policies signed, or incline to underwrite policies in ships or goods, may deliver their commands.'
[\[711\]](#)

The latter part of the year 1730 and earlier part OCT.
of 1731 were made memorable in England by the 'Malicious Society of Undertakers.' An inoffensive farmer or a merchant would receive a letter threatening the conflagration of his house unless he should deposit six or eight guineas under his door before some assigned time. The system is said to have begun at Bristol, where the house of a Mr Packer was actually set fire to and consumed. When a panic had spread, many ruined gamblers and others adopted the practice, in recklessness, or with a view to gain; but the

chief practitioners appear to have been ruffians of the lower classes, as the letters were generally very ill-spelt and ill-written.

In the autumn of 1731, the system spread to Scotland, beginning in Lanarkshire. According to Mr Wodrow, the parishes of Lesmahago and Strathaven were thrown into great alarm by a number of anonymous letters being dropped at night, or thrown into houses, threatening fire-raising unless contributions were made in money. Mr Aiton of Walseley, a justice of peace, was ordered to bring fifty guineas to the Cross-boat at Lanark; otherwise his house would be burnt. He went to the place, but found no one waiting. At the same time, there were rumours of strangers being seen on the moors. So great was the consternation, that parties of soldiers were brought to the district, but without discovering any person that seemed liable to suspicion.^[712]

James Erskine of Grange, brother of the 1732. JAN. 22. attainted Earl of Mar, and who had been a judge of the Court of Session since 1707, was fitted with a wife of irregular habits and violent temper, the daughter of the murderer Chiesley of Dalry.^[713] After agreeing, in 1730, to live upon a separate maintenance, she continued to persecute her husband in a personal and indecent manner, and further vented some threats as to her power of exposing him to the ministry for dangerous sentiments. The woman was scarcely mad enough to justify restraint, and, though it had been otherwise, there were in those days no asylums to which she could have been consigned. In these circumstances, the husband felt himself at liberty in conscience—pious man as he notably was—to have his wife spirited away by night from her lodgings in Edinburgh, hurried by night-journeys to Loch Hourn on the West Highland 1732. coast, and thence transported to the lonely island of Heskir, and put under the care of a peasant-farmer, subject to Sir Alexander Macdonald of Sleat. After two years, she was taken to the still more remote island of St Kilda, and there kept amongst a poor and illiterate people, though not without the comforts of life, for seven years more. It was not till 1740 that any friends of hers knew where she was. A prosecution of the husband being then threatened, the lady was taken to a place more agreeable to her, where she soon after died.

Lord Grange was one of those singular men who contrive to cherish and act out the most intense religious convictions, to appear as zealous leaders in church judicatories, and stand as shining lights before the world, while yet tainted with the most atrocious secret vices. Being animated with an extreme hatred of Sir Robert Walpole, he was tempted, in 1734, to give up his seat on the bench, in order that he might be able to go into parliament and assist in hunting down the minister. Returned for Clackmannanshire, he did make his appearance in the House of Commons, fully believing that he should ere long be secretary of state for Scotland under a new ministry. It unluckily happened that one of the first opportunities he obtained for making a display of oratory was on the bill that was introduced for doing away with the statutes against witchcraft.^[714] Erskine was too faithful a Presbyterian of the old type to abandon a code of beliefs that seemed fully supported by Scripture. He rose, and delivered himself of a pious speech on the reality of necromantic arts, and the necessity of maintaining the defences against them. Sir Robert is said to have felt convinced from that moment, that he had not much to fear from the new member for Clackmannanshire.

Disappointed, impoverished, out of reverence with old friends, perhaps somewhat galled in conscience, Erskine ere long retired in a great measure from the world. For some years before his death in 1754, he is said to have lived principally in a coffee-house in the Haymarket, as all but the husband of its mistress; certainly a most lame and impotent conclusion for one who had made such a figure in political life, and passed as such a ‘professor,’ in his native country.

On a stormy night in this month, Colonel Francis Charteris died at his seat of Stonyhill, near Musselburgh. The pencil of Hogarth, which represents him as the old profligate gentleman in the first print of the Harlot’s Progress, has given historical importance to this extraordinary man. Descended from an old family of very moderate fortune in Dumfriesshire—Charteris of Amisfield—he acquired an enormous fortune by gambling and usury, and thus was enabled to indulge in his favourite vices on a scale which might be called magnificent. A single worthy trait has never yet been adduced to redeem the

FEB.
1732.

character of Charteris, though it is highly probable that, in some particulars, that character has been exaggerated by popular rumour.^[715]

A contemporary assures us, that the fortune of Charteris amounted to the then enormous sum of fourteen thousand a year; of which ten thousand was left to his grandson, Francis, second son of the Earl of Wemyss.

‘Upon his death-bed,’ says the same writer, ‘he was exceedingly anxious to know if there were any such thing as hell; and said, were he assured there was no such place (being easy as to heaven), he would give thirty thousand.... Mr Cumming the minister attended him on his death-bed. He asked his daughter, who is exceedingly narrow, what he should give him. She replied that it was unusual to give anything on such occasions. “Well, then,” says Charteris, “let us have another flourish from him!” so calling his prayers. There accidentally happened, the night he died, a prodigious hurricane, which the vulgar ascribed to his death.’^[716]

A transaction, well understood in Scotland, but MAR. 12. unknown and probably incomprehensible in England—‘an inharmonious settlement’—took place in the parish of St Cuthbert’s, close to Edinburgh. A Mr Wotherspoon having been presented by the crown to this charge, to the utter disgust of the parishioners, the Commission of the General Assembly sent one of their number, a Mr Dawson, to effect the ‘edictal service.’ The magistrates, knowing the temper of the parishioners, brought the City Guard to protect the ceremony as it proceeded in the church; so the people could do nothing there. Their rage, however, being irrepressible, they came out, tore down the edict from the kirk-door, and seemed as if they would tear down the kirk itself. The City 1732. Guard fired upon them, and wounded one woman.^[717]

Owing to the difficulty of travelling, few of the JUNE 24. remarkable foreigners who came to England found their way to Scotland; but now and then an extraordinary person appeared. At this date, there came to Edinburgh, and put up ‘at the house of Yaxley Davidson, at the Cowgate Port,’ Joseph Jamati, Baculator or Governor of Damascus. He appeared to be sixty, was of reddish-black complexion, grave and well-looking, wearing a red cloth mantle trimmed with silver lace, and a red turban set round with

white muslin; had a gray beard about half a foot long; and was described as ‘generally a Christian.’ Assistance under some severe taxation of the Turkish pacha was what he held forth as the object of his visit to Europe. He came to Edinburgh, with recommendations from the Duke of Newcastle and other persons of distinction, and proposed to make a round of the principal towns, and visit the Duke of Athole and other great people. He was accompanied by an interpreter and another servant. It appears that this personage had a public reception from the magistrates, who bestowed on him a purse of gold. In consequence of receiving a similar contribution from the Convention of Burghs, he ultimately resolved to return without making his proposed tour.

Four years later, Edinburgh received visits, in succession, from two other Eastern hierarchs, one of them designated as archbishop of Nicosia in Cyprus, of the Armenian Church, the other being Scheik Schedit, from Berytus, near Mount Lebanon, of the Greek Church, both bringing recommendatory letters from high personages, and both aiming at a gathering of money for the relief of their countrymen suffering under the Turks. Scheik Schedit had an interpreter named Michel Laws, and two servants, and the whole party went formally in a coach ‘to hear sermon in the High Church.’^[718]

The Scottish newspapers intimate that on this day, between two and three afternoon, there was felt at Glasgow ‘a shock of an earthquake, which lasted about a second.’

JULY 11.

The six Highland companies were reviewed at Ruthven, in Badenoch, by General Wade, and were praised for their good state of discipline. ‘We of this country,’ says the reporter of the affair, ‘and, indeed, all the Highland and northern parts of the kingdom, have substantial reason to be well satisfied with them, since for a long time there has not been the least ground to complain of disorders of any kind; which we attribute to the vigilance of their officers, and a right distribution and position of the several companies.’^[719]

JULY 28.

1732.

Robert Trotter, schoolmaster of Dumfries, published a Compendium of Latin Grammar, ‘the conceitedness, envy, and errors’ of which were next year exposed in a brochure of *Animadversions* by John Love, the schoolmaster of Dumbarton. Not long after Love had thus disposed of Mr Trotter, he was himself put on the defensive before the kirk-session of his parish, on a charge of *brewing on a Sunday*. Probably the verb was only applicable in a neuter form—that is, nature, by continuing her fermenting process on the Sabbath, was the only delinquent—for the minister, ‘after a juridical trial, was obliged to make a public apology for having maliciously accused calumniated innocence.’^[720] Love, who was the preceptor of Tobias Smollett, afterwards distinguished himself by a controversy with the notorious Lauder, who, by forgery, tried to derogate from the fame of Milton.

Since 1598 we have not heard of any foreigners coming into Scotland to play dangerous tricks upon long tight ropes; but now, unexpectedly, a pair of these diverting vagabonds, one described as an Italian who had performed his wonders in all the cities of Europe, the other as his son, presented themselves. A rope being fixed between the Half-moon Battery in the Castle, and a place on the south side of the Grassmarket, two hundred feet below, the father slid down in half a minute. The son performed the same feat, blowing a trumpet all the way, to the astonishment of ‘an infinite crowd of spectators.’ Three days afterwards, there was a repetition of the performance, at the desire of several persons of quality, when, after sliding down, the father made his way up again, firing a pistol, beating a drum, and playing a variety of antics by the way, proclaiming, moreover, that here he could defy all messengers, sheriffs’ officers, and macers of the Court of Session. Being sore fatigued at the end of the performance, he offered a guinea to the sutler of the Castle for a draught of ale, which the fellow was churlish enough to refuse.

1733. MAY 14.

1733.

The two funambuli failed on a subsequent trial, ‘their equipage not at all answering.’ Not many weeks after, we learn that William Hamilton, mason in the Dean, trying the like tricks on a rope connected with Queensferry steeple, fell off the rope, and was killed.^[721]

In the course of this year, a body called the *Edinburgh Company of Players* performed plays in the Tailors' Hall, in the Cowgate. On the 6th June, they had the *Beggars' Opera* for the benefit of the Edinburgh Infirmary. They afterwards acted *Othello*, *Hamlet*, *Henry IV.*, *Macbeth*, and *King Lear*, 'with great applause.' In December, they presented before a large audience the *Tempest*, 'every part, and even what required machinery, being performed in great order.' In February 1734, the *Conscious Lovers* was performed 'for the benefit of Mrs Woodward,' 'the doors not to be opened till four of the clock, performance to begin at six.' In March, the *Wonder* is advertised, 'the part of the Scots colonel by Mr Weir, and that of his servant Gibby, in Highland dress, by Mr Wescomb; and all the other parts to the best advantage.' Allan Ramsay must have been deeply concerned in the speculation, because he appears in the office-copy of the newspaper (*Caledonian Mercury*) as the paymaster for the advertisements.

Nor was this nascent taste for the amusements of the stage confined to Edinburgh. In August, the company is reported as setting out early one morning for Dundee, Montrose, Aberdeen, &c., 'in order to entertain the ladies and gentlemen in the different stations of their circuit.' We soon after hear of their being honoured at Dundee with the patronage of the ancient and honourable society of freemasons, who marched in a body, with the grand-master at their head, to the playhouse, 'in their proper apparel, with hautboys and other music playing before them;' all this to hear the *Jubilee* and *The Devil to Pay*.

In December, the Edinburgh company was again in the Tailors' Hall, and now it ventured on 'a pantomime in grotesque characters,' costing something in the getting up; wherefore 'nothing less than full prices will be taken during the whole performance.' In consideration of the need for space, it was 'hoped that no gentleman whatever will take it amiss if they are refused admittance behind the scenes.' Soon 1733. after, we hear of the freemasons patronising the play of *Henry IV.*, marching to the house 'in procession, with aprons and white gloves, attended with flambeaux.' Mrs Bulkely took her benefit on the 22d January in *Oroonoko* and a farce, in both of which she was to play; but 'being weak, and almost incapable to walk, [she] cannot acquit herself to her friends' satisfaction as usual; yet hopes to be favoured with their presence.'

It is observable that the plays represented in the Cowgate house were all of them of classic merit. This was, of course, prudential with regard to popular prejudices. Persons possessed of a love of literature were very naturally among those most easily reconciled to the stage; and amongst these we may be allowed to class certain schoolmasters, who about this time began to encourage their pupils to recite plays as a species of rhetorical exercise.

On Candlemas, 1734—when by custom the pupils in all schools in Scotland brought gifts to their masters, and had a holiday—the pupils of the Perth Grammar School made an exhibition of English and Latin readings in the church before the clergy, magistrates, and a large miscellaneous auditory. ‘The Tuesday after, they acted *Cato* in the school, which is one of the handsomest in Scotland, before three hundred gentlemen and ladies. The youth, though they had never seen a play acted, performed surprisingly both in action and pronunciation, which gave general satisfaction. After the play, the magistrates entertained the gentlemen at a tavern.’^[722]

In August, ‘the young gentlemen of Dalkeith School acted, before a numerous crowd of spectators, the tragedy of *Julius Cæsar* and comedy of *Æsop*, with a judgment and address inimitable at their years.’ At the same time, the pupils in the grammar school of Kirkcaldy performed a piece composed by their master, entitled *The Royal Council for Advice, or the Regular Education of Boys the Foundation of all other National Improvements*. ‘The council consisted of a preses and twelve members, decently and gravely seated round a table like senators. The other boys were posted at a due distance in a crowd, representing people come to attend this meeting for advice: from whom entered in their turn and order, a tradesman, a farmer, a country gentleman, a nobleman, two schoolmasters, &c., and, last of all, a gentleman who complimented and congratulated the council on their noble design and worthy performances.’ The 1733. whole exhibition is described as giving high satisfaction to the audience.

This sort of fair weather could not last. At Candlemas, 1735, the Perth school-boys acted *George Barnwell*—certainly an ill-chosen play—twice before large audiences, comprising many persons of distinction; and it was given out that on the succeeding Sunday ‘a very learned moral sermon, suitable to the occasion, was preached in the town.’ Immediately after came the corrective. The kirk-session had nominated a committee to take

measures to prevent the school from being ‘converted into a playhouse, whereby youth are diverted from their studies, and employed in the buffooneries of the stage;’ and as for the moral sermon, it was ‘directed against the sins and corruptions of the age, and was very suitable to the resolution of the session.’

England was pleasingly startled in 1721 by the JULY.
report which came home regarding a singularly gallant defence made by an English ship against two strongly armed pirate vessels in the Bay of Juanna, near Madagascar. The East India Company was peculiarly gratified by the report, for, though it inferred the loss of one of their ships, it told them of a severe check given to a system of marine depredation, by which their commerce was constantly suffering.

It appeared that the Company’s ship *Cassandra*, commanded by Captain Macrae, on coming to the Bay of Juanna in July 1720, heard of a shipwrecked pirate captain being engaged in fitting out a new vessel on the island of Mayotta, and Macrae instantly formed the design of attacking him. When ready, on the 8th of August, to sail on this expedition, along with another vessel styled the *Greenwich*, he was saluted with the unwelcome sight of two powerful pirate vessels sailing into the bay, one being of 30, and the other of 34 guns. Though he was immediately deserted by the *Greenwich*, the two pirates bearing down upon him with their black flags, did not daunt the gallant Macrae. He fought them both for several hours, inflicting on one some serious breaches between wind and water, and disabling the boats in which the other endeavoured to board him. At length, most of his officers and quarter-deck men being killed or wounded, he made an attempt to run ashore, and did get beyond the reach of the two pirate vessels. With boats, however, they beset his vessel with redoubled fury, and in the protracted fighting which ensued, he suffered severely, though not without inflicting fully as much injury 1733.
as he received. Finally, himself and the remains of his company succeeded in escaping to the land, though in the last stage of exhaustion with wounds and fatigue. Had he, on the contrary, been supported by the *Greenwich*, he felt no doubt that he would have taken the two pirate vessels, and obtained £200,000 for the Company. [\[723\]](#)

The hero of this brilliant affair was a native of the town of Greenock, originally there a very poor boy, but succoured from misery by a kind-hearted musician or violer named Macguire, and sent by him to sea. By the help of some little education he had received in his native country, his natural talents and energy quickly raised him in the service of the East India Company, till, as we see, he had become the commander of one of their goodly trading-vessels. The conflict of Juanna gave him further elevation in the esteem of his employers, and, strange to say, the poor barefooted Greenock laddie, the protégé of the wandering minstrel Macguire, became at length the governor of Madras! He now returned to Scotland, in possession of ‘an immense estate,’ which the journals of the day are careful to inform us, ‘he is said to have made with a fair character’—a needful distinction, when so many were advancing themselves as robbers, or little better, or as truckling politicians. One of Governor Macrae’s first acts was to provide for the erection of a monumental equestrian statue of King William at Glasgow, having probably some grateful personal feeling towards that sovereign. It was said to have cost him £1000 sterling. But the grand act of the governor’s life, after his return, was his requital of the kindness he had experienced from the violer Macguire. The story formed one of the little romances of familiar conversation in Scotland during the last century. Macguire’s son, with the name of Macrae, succeeded to the governor’s estate of Holmains, in Dumfriesshire,^[724] which he handed down to his son.^[725] The three daughters, highly educated, and handsomely dowered, were married to men of figure, the eldest to the Earl of Glencairn (she was the mother of Burns’s well-known patron); the second to Lord Alva, a judge in the Court of Session; the third to Charles Dalrymple of Orangefield, near Ayr. Three years after his return from the East Indies, Governor Macrae paid a visit to Edinburgh, and 1733. was received with public as well as private marks of distinction, on account of his many personal merits.

An amusing celebration of the return of the East India governor took place at Tain, in the north of Scotland. John Macrae, a near kinsman of the great man, being settled there in business, resolved to shew his respect for the first exalted person of his hitherto humble clan. Accompanied by the magistrates of the burgh and the principal burgesses, he went to the Cross, and there superintended the drinking of a hogshead of wine, to the healths of the King, Queen, Prince of Wales, and the Royal Family, and those of

‘Governor Macrae and all his fast friends.’ ‘From thence,’ we are told, ‘the company repaired to the chief taverns in town, where they repeated the aforesaid healths, and spent the evening with music and entertainments suitable to the occasion.’^{[\[726\]](#)}

The tendency which has already been alluded to, DEC. 6.
of a small portion of the Scottish clergy to linger in an antique orthodoxy and strenuousness of discipline, while the mass was going on in a progressive laxity and subserviency to secular authorities, was still continuing. The chief persons concerned in the Marrow Controversy of 1718^[727] and subsequent years, had recently made themselves conspicuous by standing up in opposition to church measures for giving effect to patronage in the settlement of ministers, and particularly to the settlement of an unpopular presentee at Kinross; and the General Assembly, held this year in May, came to the resolution of rebuking these recusant brethren. The brethren, however, were too confident in the rectitude of their course to submit to censure, and the commission of the church in November punished their contumacy by suspending from their ministerial functions, Ebenezer Erskine of Stirling, William Wilson of Perth, Alexander Moncrieff of Abernethy, and James Fisher of Kinclaven.

The suspended brethren, being all of them men held in the highest local reverence, received much support among their flocks, as well as among the more earnest clergy. Resolving not to abandon the principles they had taken up, it became necessary that they should associate in the common cause. They accordingly met at this date in a cottage at Gairney Bridge near Kinross, and constituted themselves into a provisional presbytery, though without professing to shake off their connection 1733.
with the Established Church. It is thought that the taking of a mild course with them at the next General Assembly would have saved them from an entire separation. But it was not to be. The church judicatories went on in their adopted line of high-handed secularism, and the matter ended, in 1740, with the deposition of the four original brethren, together with four more who took part with them. Thus, unexpectedly to the church, was formed a schism in her body, leading to the foundation of a separate communion, by which a fourth of her adherents, and those on the whole the most religious people, were lost.

An immense deal of devotional zeal, mingled with the usual alloys of illiberality and intolerance, was evoked through the medium of 'the Secession,' The people built a set of homely meeting-houses for the deposed ministers, and gave them such stipends as they could afford. In

four years, the new body appeared as composed of twenty-six clergy, in three presbyteries. It was the first of several occasions of the kind, on which, it may be said without disrespect, both the strength and the weakness of the Scottish character have been displayed. A single anecdote, of the truth of which there is no reason to doubt, will illustrate the spirit of this first schism. There was a family of industrious people at Brownhills, near St Andrews, who adhered to the Secession. The nearest church was that of Mr Moncrieff at Abernethy, twenty miles distant. All this distance did the family walk every Sunday, in order to attend worship, walking of course an equal distance in returning. All that were in health invariably went. They had to set out at twelve o'clock of the Saturday night, and it was their practice to make all the needful preparations of dress and provisioning without looking out to see what kind of weather was prevailing. When all were ready, the door was opened, and the whole party walked out into the night, and proceeded on their way, heedless of whatever might fall or blow.

Our Scottish ancestors had a peculiar way of dealing with cases of ill-usage of women by their husbands. The cruel man was put by his neighbours across a tree or beam, and carried through the village so enthroned, while some one from time to time proclaimed his offence, the whole being designed as a means of deterring other men from being cruel to their spouses.

1734. JAN.

We have a series of documents at this date, illustrating the regular procedure in cases of *Riding the Stang* [properly, sting—meaning a beam]. John Fraser, of the burgh of regality of Huntly, had gone to John Gordon, bailie for the Duke of Gordon, complaining that some of his neighbours had threatened him with the riding of the stang, on the ground of alleged ill-usage of his wife. The first document is a complaint from Ann Johnston, wife of Fraser, and some other women, setting forth the reality of this bad usage: the man was so cruel to his poor spouse, that her neighbours were forced occasionally to rise from their beds at midnight, in order to rescue her from his barbarous hands. They justified the threat against him, as meant to deter him from continuing his atrocious conduct, and went on to crave of the bailie that he would grant them a *toleration of the stang*, as ordinarily practised in the kingdom, ‘being, we know, no act of parliament to the contrary.’ If his lordship could suggest any more prudent

1734.

method, they said they would be glad to hear of it ‘for preventing more fatal consequences.’ ‘Otherwise, upon the least disobliment given, we must expect to fall victims to our husbands’ displeasure, from which *libera nos, Domine.*’ Signed by Ann Johnston, and ten other women, besides two who give only initials.

Fraser offered to prove that he used his wife civilly, and was allowed till next day to do so. On that next day, however, four men set upon him, and carried him upon a tree through the town, thus performing the ceremony without authority. On Fraser’s complaint, they were fined in twenty pounds Scots, and decerned for twelve pounds of assythment to the complainer.^[728]

The execution of the revenue laws gave 1735. SEP. occasion for much bad blood. In June 1734, a boat having on board several persons, including at least one of gentlemanlike position in society, being off the shore of Nairn with ‘*unentrable goods*,’ the custom-house officers, enforced by a small party from the Hon. Colonel Hamilton’s regiment, went out to examine it. In a scuffle which ensued, Hugh Fraser younger of Balnain was killed, and two of the soldiers, named Long and Macadam, were tried for murder by the Court of Admiralty in Edinburgh, and condemned to be hanged on the 19th of November within flood-mark at Leith.

An appeal was made for the prisoners to the Court of Justiciary, which, on the 11th of November, granted a suspension of 1735. the Judge-admiral’s sentence till the 1st of December, that the case might before that day be more fully heard. Next day, the Judge-admiral, Mr Graham, caused to be delivered to the magistrates sitting in council a ‘Dead Warrant,’ requiring and commanding them to see his sentence put in execution on the proper day. The magistrates, however, obeyed the Court of Justiciary. Meanwhile, four of those who had been in the boat, and who had given evidence against the two soldiers on their trial, were brought by the custom-house authorities before the Judge-admiral, charged with invading and deforcing the officers, and were acquitted.

On the 5th December, the Court of Justiciary found that the Judge-admiral, in the trial of Long and Macadam, had ‘committed iniquity,’ and therefore they suspended the sentence indefinitely. On a petition three weeks after, the men were liberated, after giving caution to the extent of 300

marks, to answer on any criminal charge that might be exhibited against them before the Court of Justiciary.^[729]

Dancing assemblies, which we have seen Nov. 18.
introduced at Edinburgh in 1723, begin within the ensuing dozen years to be heard of in some of the other principal towns. There was, for example, an assembly at Dundee at this date, and an Edinburgh newspaper soon after presented a copy of verses upon the ladies who had appeared at it, celebrating their charms in excessively bad poetry, but in a high strain of compliment:

‘Heavens! what a splendid scene is here,
How bright those female seraphs shine!’ &c.

From the indications afforded by half-blank names, we may surmise that damsels styled Bower, Duncan, Reid, Ramsay, Dempster, and Bow—all of them names amongst the gentlefolks of the district—figured conspicuously at this meeting—

‘Besides a much more numerous dazzling throng,
Whose names, if known, should grace my artless song.’

The poet, too, appears to have paid 2s. 6d. for the insertion of his lines in the *Caledonian Mercury*.

From this time onward, an annual ball, given by ‘the Right Honourable Company of Hunters’ in the Palace of Holyroodhouse, is regularly chronicled. At one which took place on the 8th 1735.
January 1736—the Hon. Master Charles Leslie being ‘king,’ and the Hon. Lady Helen Hope being ‘queen’—‘the company in general made a very grand appearance, an elegant entertainment and the richest wines were served up, and the whole was carried on and concluded with all decency and good order imaginable.’ A ball given by the same fraternity in the same place, on the ensuing 21st of December, was even more splendid. There were two rooms for dancing, and two for tea, illuminated with many hundreds of wax-candles. ‘In the Grand Hall [the Gallery?], a table was covered with three hundred dishes *en ambiqu*, at which sate a hundred and fifty ladies at a time ... illuminated with four hundred wax-candles. The plan laid out by the council of the company was exactly followed out with the

greatest order and decency, and concluded without the least air of disturbance.'

On the 27th January 1737, 'the young gentlemen-burghers' of Aberdeen gave 'a grand ball to the ladies, the most splendid and numerous ever seen there;' all conducted 'without the least confusion or disorder.' The anxiety to shew that there was no glaring impropriety in the conduct of the company on these occasions, is significant, and very amusing.^[730]

The reader of this work has received—I fear not very thankfully—sundry glimpses of the frightful state of the streets of Edinburgh in previous centuries; and he must have readily understood that the condition of the capital in this respect represented that of other populous towns, all being alike deficient in any recognised means of removing offensive refuse. There was, it must be admitted, something peculiar in the state of Edinburgh in sanitary respects, in consequence of the extreme narrowness of its many closes and wynds, and the height of its houses. How it was endured, no modern man can divine; but it certainly is true that, at the time when men dressed themselves in silks and laces, and took as much time for their toilets as a fine lady, they had to pass in all their bravery amongst piles of dung, on the very High Street of Edinburgh, and could not make an evening call upon Dorinda or Celia in one of the alleys, without the risk of an ablution from above sufficient to destroy the most elegant outfit, and put the wearers out of conceit with themselves for a fortnight.

The struggles of the municipal authorities at sundry times to get the streets put into decent order against a royal 1735. ceremonial entry, have been adverted to in our earlier volumes. It would appear that things had at last come to a sort of crisis in 1686, so that the Estates then saw fit to pass an act^[731] to force the magistrates to clean the city, that it might be endurable for the personages concerned in the legislature and government, ordaining for this purpose a 'stent' of a thousand pounds sterling a year for three years on the rental of property. A vast stratum of refuse, through which people had made lanes towards their shop-doors and close-heads, was then taken away—much of it transported by the sage provost, Sir James Dick, to his lands at Prestonfield, then newly enclosed, and the first that were so—which consequently became distinguished for fertility^[732]—and the city was never again allowed to fall

into such disorder. There was still, however, no regular system of cleaning, beyond what the street sewers supplied; and the ancient practice of throwing ashes, foul water, &c., over the windows at night, graced only with the warning-cry of *Gardez l'eau*, was kept up in full vigour by the poorer and more reckless part of the population.

An Edinburgh merchant and magistrate, named Sir Alexander Brand, who has been already under our attention as a manufacturer of gilt leather hangings, at one time presented an overture to the Estates for the cleaning of the city. The modesty of the opening sentence will strike the reader: 'Seeing the nobility and gentry of Scotland are, when they are abroad, esteemed by all nations to be the finest and most accomplished people in Europe, yet it's to be regretted that it's always casten up to them by strangers, who admire them for their singular qualifications, that they are born in a nation that has the nastiest cities in the world, especially the metropolitan.' He offered to clean the city daily, and give five hundred a year for the refuse.^[733] But his views do not seem to have been carried into effect.

After 1730, when, as we have seen, great changes were beginning to take place in Scotland, increased attention was paid to external decency and cleanliness. The Edinburgh magistrates were anxious to put down the system of cleaning by ejectment. We learn, for example, from a newspaper, that a servant-girl having thrown foul water from a fourth story in Skinners' Close, 'which much abused a lady passing by, was brought before the bailies, and obliged to enact herself never to be 1735. guilty of the like practices in future. 'Tis hoped,' adds our chronicler, 'that this will be a caution to all servants *to avoid this wicked practice.*'

There lived at this time in Edinburgh a respectable middle-aged man, named Robert Mein, the representative of the family which had kept the post-office for three generations between the time of the civil war and the reign of George I., and who boasted that the pious lady usually called Jenny Geddes, but actually Barbara Hamilton, who threw the stool in St Giles's in 1637, was his great-grandmother. Mein, being a man of liberal ideas, and a great lover of his native city, desired to see it rescued from the reproach under which it had long lain as the most fetid of European capitals, and he accordingly drew up a paper, shewing how the streets might be kept comparatively clean by a very simple arrangement. His suggestion was, that

there should be provided for each house, at the expense of the landlord, a vessel sufficient to contain the refuse of a day, and that scavengers, feed by a small subscription among the tenants, should discharge these every night. Persons paying what was then a very common rent, ten pounds, would have to contribute only five shillings a year; those paying fifteen pounds, 7s. 6d., and so on in proportion. The projector appears to have first explained his plan to sundry gentlemen of consideration—as, for example, Mr William Adam, architect, and Mr Colin Maclaurin, professor of mathematics, who gave him their approbation of it in writing—the latter adding: ‘I subscribe for my own house in Smith’s Land, Niddry’s Wynd, fourth story, provided the neighbours agree to the same.’ Other subscribers of consequence were obtained, as ‘Jean Gartshore, for my house in Morocco’s Close, which is £15 rent,’ and ‘the Countess of Haddington, for the lodging she possessed in Bank Close, Lawnmarket, valued rent £20.’ Many persons agreed to pay a half-penny or a penny weekly; some as much as a half-penny per pound of rent per month. One lady, however, came out boldly as a recusant—‘Mrs Black refuses to agree, and *acknowledges she throws over.*’^[734]

Mr Mein’s plan was adopted, and acted upon to some extent by the magistrates; and the terrible memory of the ‘DIRTY LUGGIES,’ which were kept in the stairs, or in the passages within doors, as a necessary part of the arrangement, was fresh in the minds of old people whom I knew in early life. The city was in 1740 divided into twenty-nine 1735. districts, each having a couple of scavengers supported at its own expense, who were bound to keep it clean; while the refuse was sold to persons who engaged to cart it away at three half-pence per cart-load.^[735]

Five men, who had suffered from the severity of 1736. JAN. 9. the excise laws, having formed the resolution of indemnifying themselves, broke into the house of Mr James Stark, collector of excise, at Pittenweem, and took away money to the extent of two hundred pounds, besides certain goods. They were described as ‘Andrew Wilson, indweller in Pathhead; George Robertson, stabler without Bristoport [Edinburgh]; William Hall, indweller in Edinburgh; John Frier, indweller there; and John Galloway, servant to Peter Galloway, horse-hirer in Kinghorn.’ Within three days, the whole of them were taken and brought to Edinburgh under a strong guard.

Wilson, Robertson, and Hall were tried on the 2d of March, and condemned to suffer death on the ensuing 14th of April. Five days before that appointed for the execution—Hall having meanwhile been reprieved—Wilson and Robertson made an attempt to escape from the condemned cell of the Old Tolbooth, but failed in consequence of Wilson, who was a squat man, sticking in the grated window. Two days later, the two prisoners being taken, according to custom, to attend service in the adjacent church, Wilson seized two of the guard with his hands, and a third with his teeth, so as to enable Robertson, who knocked down the fourth, to get away. The citizens, whose sympathies went strongly with the men as victims of the excise laws, were much excited by these events, and the authorities were apprehensive that the execution of Wilson would not pass over without an attempt at rescue. The apprehension was strongly shared by John Porteous, captain of the town-guard, who consequently became excited to a degree disqualifying him for so delicate a duty as that of guarding the execution. When the time came, the poor smuggler was duly suspended from the gallows in the Grassmarket, without any disturbance; but when the hangman proceeded to cut down the body, the populace began to throw stones, and the detested official was obliged to take refuge among the men of the guard. Porteous, needlessly infuriated by this demonstration, seized a musket, and fired among the crowd, commanding his men to do the same. There was consequently a full fusillade, attended by the 1735. instant death of six persons, and the wounding of nine more.

The magistrates being present at the windows of a tavern close by, it was inexcusable of Porteous to have fired without their orders, even had there been any proper occasion for so strong a measure. As it was, he had clearly committed manslaughter on an extensive scale, and was liable to severe punishment. By the public at large he was regarded as a ferocious murderer, who could scarcely expiate with his own life the wrongs he had done to his fellow-citizens. Accordingly, when subjected to trial for murder on the ensuing 5th of July, condemnation was almost a matter of course.

The popular antipathy to the excise laws, the general hatred in which Porteous was held as a harsh official, and a man of profligate life, and the indignation at his needlessly taking so many innocent lives, combined to create a general rejoicing over the issue of the trial. There were some, however, chiefly official persons and their connections, who were not satisfied as to the fairness of his assize, and, whether it was fair or not, felt

it to be hard to punish what was at most an excess in the performance of public duty, with death. On a representation of the case to the queen, who was at the head of a regency during the absence of her husband in Hanover, a respite of six weeks was granted, five days before that appointed for the execution.^[736]

The consequent events are so well known, that it 1736. is unnecessary here to give them in more than outline. The populace of Edinburgh heard of the respite of Porteous with savage rage, and before the eve of what was to have been his last day, a resolution was formed that, if possible, the original order of the law should be executed. The magistrates heard of mischief being designed, but disregarded it as only what they called ‘cadies’ clatters;’ that is, the gossip of street-porters. About nine in the evening of the 7th September, a small party of men came into the city at the West Port, beating a drum, and were quickly followed by a considerable crowd. Proceeding by the Cowgate, they shut the two gates to the eastward, and planted a guard at each. The ringleaders then advanced with a large and formidable mob towards the Tolbooth, in which Porteous lay confined. The magistrates came out from a tavern, and tried to oppose the progress of the conspirators, but were beat off with a shower of stones. Other persons of importance whom they met, were civilly treated, but turned away from the scene of action. Reaching the door of the prison, they battered at it for a long time in vain, and at length it was found necessary to burn it. This being 1736. a tedious process, it was thought by the magistrates that there might be time to introduce troops from the Canongate, and so save the intended victim. Mr Patrick Lindsay, member for the city, at considerable hazard, made his way over the city wall, and conferred with General Moyle at his lodging in the Abbeyhill; but the general hesitated to act without the authority of the Lord Justice Clerk (Milton), who lived at Brunstain House, five miles off. Thus time was fatally lost. After about an hour and a half, the rioters forced their way into the jail, and seized the trembling Porteous, whom they lost no time in dragging along the street towards the usual place of execution. As they went down the West Bow, they broke open a shop, took a supply of rope, and left a guinea for it on the table. Then coming to the scene of what they regarded as his crime, they suspended the wretched man over a dyer’s pole, and having first waited to see that he was dead, quietly dispersed.

The legal authorities made strenuous efforts to identify some of the rioters, but wholly without success. The subsequent futile endeavour of the government to punish the corporation of Edinburgh by statute, belongs to the history of the country.

Considering how important have been the JUNE 24.
proceedings under the act of the ninth parliament of Queen Mary *Anentis Witchcrafts*, it seems proper that we advert to the fact of its being from this day repealed in the parliament of Great Britain, along with the similar English act of the first year of King James I. It became from that time incompetent to institute any suit for ‘witchcraft, sorcery, enchantment, or conjuration,’ and only a crime to pretend to exercise such arts, liable to be punished by a year’s imprisonment, with the pillory. There seems to be little known regarding the movement for abolishing these laws. We only learn that it was viewed with disapprobation by the more zealously pious people in Scotland, one of whom, Mr Erskine of Grange, member for Clackmannanshire, spoke pointedly against it in the House of Commons. Seeing how clearly the offence is described in scripture, and how direct is the order for its punishment, it seemed to these men a symptom of latitudinarianism that the old statute should be withdrawn. When the body of dissenters, calling themselves the Associate Synod in 1742, framed their Testimony against the errors of the established church and of the times generally, one of the specific things condemned was the repeal of the acts against witchcraft, which was declared to be ‘contrary to the express letter of the law of God, “Thou shalt not suffer a witch to 1736.
live.”’

Amongst the gay and ingenious, who patronised Nov. 8.
and defended theatricals, Allan Ramsay stood conspicuous. He entertained a kind of enthusiasm on the subject, was keenly controversial in behalf of the stage, and willing to incur some risk in the hope of seeing his ideal of a sound drama in Scotland realised. We have seen traces of his taking an immediate and personal interest in the performances carried on for a few years by the ‘Edinburgh Company of Comedians’ in the Tailors’ Hall. He was now induced to enter upon the design of rearing, in Edinburgh, a building expressly adapted as a theatre; and we find him going on with the

work in the summer of this year, and announcing that ‘the New Theatre in Carrubber’s Close’ would be opened on the 1st of November. The poet at the same time called upon gentlemen and ladies who were inclined to take annual tickets, of which there were to be forty at 30s. each, to come forward and subscribe before a particular day, after which the price would be raised to two guineas.

Honest Allan knew he would have to encounter the frowns of the clergy, and be reckoned as a rash speculator by many of his friends; but he never expected that any legislative enactment would interfere to crush his hopes. So it was, however. The theatre in Carrubber’s Close was opened on the 8th of November, and found to be, in the esteem of all judges, ‘as complete and finished with as good a taste as any of its size in the three kingdoms.’^[737] A prologue was spoken by Mr Bridges, setting forth the moral powers of the drama, and attacking its enemies—those who

‘From their gloomy thoughts and want of sense,
Think what diverts the mind gives Heaven offence.’

The Muse, it was said, after a long career of glory in ancient times, had reached the shores of England, where Shakspeare taught her to soar:

‘At last, transported by your tender care,
She hopes to keep her seat of empire here.
For your protection, then, ye fair and great,
This fabric to her use we consecrate;
On you it will depend to raise her name,
And in Edina fix her lasting fame.’

Alas! all these hopes of a poet were soon clouded.

1736.

Before the Carrubber’s Close playhouse had seen out its first season, an act was passed (10 Geo. II. chap. 28) explaining one of Queen Anne regarding rogues and vagabonds, the whole object in reality being to prevent any persons from acting plays for hire, without authority or licence by letters-patent from the king or his Lord Chamberlain.^[738] This put a complete barrier to the poet’s design, threw the new playhouse useless upon his hands,^[739] and had nearly shipwrecked his fortunes. He addressed a poetical account of his disappointment to the new Lord President of the Court of Session, Duncan Forbes, a man who united a taste for elegant literature with the highest Christian graces. He recites the project of the theatre:

‘Last year, my lord, nae farther gane,

A costly wark was undertane
By me, wha had not the least dread
An act would knock it on the head:
A playhouse new, at vast expense,
To be a large, yet bien defence,
In winter nights, 'gainst wind and weet,
To ward frae cauld the lasses sweet;
While they with bonny smiles attended,
To have their little failings mended.'

He asks if he who has written with the approbation of the entire country, shall be confounded with rogues and rascals, be twined of his hopes, and

'Be made a loser, and engage
With troubles in declining age,
While wights to whom my credit stands
For sums, make sour and thrawn demands?'

Shall a good public object be defeated?

'When ice and snaw o'erleads the isle,
Wha now will think it worth their while
To leave their gousty country bowers,
For the ance blythesome Edinburgh's towers,
Where there's no glee to give delight,
And ward frae spleen the langsome night?'

He pleads with the Session for at least a limited licence.

'... I humbly pray
Our lads may be allowed to play,
At least till new-house debts be paid off,
The cause that I'm the maist afraid of;
Which lade lies on my single back,
And I maun pay it ilka plack.'

Else let the legislature relieve him of the burden of his house,

1736.

'By ordering frae the public fund
A sum to pay for what I'm bound;
Syne, for amends for what I've lost,
Edge me into some canny post.'

All this was of course but vain prattle. The piece appeared in the *Gentleman's Magazine* (August 1737), and no doubt awoke some sympathy; but the poet had to bear single-handed the burden of a heavy

loss, as a reward for his spirited attempt to enliven the *beau monde* of Edinburgh.

Amongst other symptoms of a tendency to social enjoyments at this time, we cannot overlook a marked progress of freemasonry throughout the country. This day, the festival of the tutelar saint of Scotland, the Masters and Wardens of forty regular lodges met in St Mary's Chapel, in Edinburgh, and unanimously elected as their Grand Master, William Sinclair, of Roslin, Esq., representative of an ancient though reduced family, which had been in past ages much connected with freemasonry.

Nov. 28.

On St John's Day, 27th December, this act was celebrated by the freemasons of Inverness, with a procession to the cross in white gloves and aprons, and with the proper badges, the solemnity being concluded with 'a splendid ball to the ladies.'^[740]

The Edinburgh officials who had been taken to London for examination regarding the Porteous Riot, being now at liberty to return, there was a general wish in the city to give them a cordial reception. The citizens rode out in a great troop to meet them, and the road for miles was lined with enthusiastic pedestrians. The Lord Provost, Alexander Wilson, from modesty, eluded the reception designed for him; but the rest came through the city, forming a procession of imposing length, while bells rang and bonfires blazed, and the gates of the Netherbow, which had been removed since the 7th of September last, were put up again amidst the shouts of the multitude.

1737. JUNE 30.

A month later, one Baillie, who had given evidence before the Lords' Committee tending to criminate the magistrates, returned in a vessel from London, and had no sooner set his foot on shore than he found himself beset by a mighty multitude bent on marking their sense of his conduct. To collect the people, some seized and rang a ship's bell; others ran through the streets ringing small bells. 'Bloody Baillie is come!' passed from mouth to mouth. The poor man, finding that thousands were gathered for his honour, flung himself into the stage-coach for

1737.

Edinburgh, and was solely indebted to a fellow-passenger of the other sex for the safety in which he reached his home.

Captain Lind, of the Town-guard, having given similar evidence, was discharged by the town-council; but the government immediately after appointed him 'lieutenant in Tyrawley's regiment of South British Fusiliers at Gibraltar.'^[741]

It was still customary to keep recruits in prison 1738. FEB. 3. till an opportunity was obtained of shipping them off for service. A hundred young men, who had been engaged for the Dutch republic in Scotland, had been for some time confined in the Canongate Tolbooth, where probably their treatment was none of the best. Disappointed in several attempts at escape, they turned at length mutinous, and it was necessary to carry four of the most dangerous to a dungeon in the lower part of the prison. By this the rest were so exasperated, 'that they seized one of their officers and the turnkey, whom they clapped in close custody, and, barricading the prison-door, bade defiance to all authority. At the same time they intimated that, if their four comrades were not instantly delivered up to them, they would send the officer and turnkey to where the d—— sent his mother; so that their demand was of necessity complied with.'

During all the next day (Saturday) they remained in their fortress without any communication either by persons coming in or by persons going out. The authorities revolved the idea of a forcible attempt to reduce them to obedience; but it seemed better to starve them into a surrender. On the Sunday evening, their provisions being exhausted, they beat a chamade and hung out a white flag; whereupon some of their officers and a few officers of General Whitham's regiment entered into a capitulation with them; and, a general amnesty being granted, they delivered up their stronghold. 'It is said they threatened, in case of non-compliance with their articles, to fall instantly about eating the turnkey.'^[742]

Isabel Walker, under sentence of death at 1738. AUG. Dumfries for child-murder, obtained a reprieve through unexpected means. According to a letter dated Edinburgh, August 10, 1738, 'This unhappy creature was destitute of friends, and had none to apply for her but an only sister, a girl of a fine soul, that overlooked the improbability of success, and helpless and alone, went to London to address the great; and solicited so

well, that she got for her, first, a reprieve, and now a remission. Such another instance of onerous friendship can scarce be shewn; it well deserved the attention of the greatest, who could not but admire the virtue, and on that account engage in her cause.’^[743]

Helen Walker, who acted this heroic part, was the daughter of a small farmer in the parish of Irongray. Her sister, who had been under her care, having concealed her pregnancy, it came to be offered to Helen as a painful privilege, that she could save the accused if she could say, on the trial, that she had received any communication from Isabel regarding her condition. She declared it to be impossible that she should declare a falsehood even to save a sister’s life; and condemnation accordingly took place. Helen then made a journey on foot to London, in the hope of being able to plead for her sister’s life; and, having almost by accident gained the ear and interest of the Duke of Argyle, she succeeded in an object which most persons would have said beforehand was next to unattainable.

Isabel afterwards married her lover, and lived at Whitehaven for many years. Helen survived till 1791, a poor peasant woman, living by the sale of eggs and other small articles, or doing country work, but always distinguished by a quiet self-respect, which prevented any one from ever talking to her of this singular adventure of her early days. Many years after she had been laid in Irongray kirkyard, a lady who had seen and felt an interest in her communicated her story to Sir Walter Scott, who expanded it into a tale (*The Heart of Mid-Lothian*) of which the chief charm lies in the character and actings of the self-devoted heroine. It was one of the last, and not amongst the least worthy, acts of the great fictionist to raise a monument over her grave, with the following inscription:

‘This stone was erected by the Author of *Waverley* to the memory of HELEN WALKER, who died in the year of God 1791. This humble individual practised in real life the virtues with which fiction 1738. has invested the imaginary character of JEANIE DEANS; refusing the slightest departure from veracity, even to save the life of a sister, she nevertheless shewed her hardiness and fortitude in rescuing her from the severity of the law, at the expense of personal exertions which the time rendered as difficult as the motive was laudable. Respect the grave of poverty when combined with love of truth and dear affection.’

This month was commenced in Edinburgh a 1739. JAN.
monthly miscellany and chronicle, which long continued to fill a useful place in the world under the name of the *Scots Magazine*. It was framed on the model of the *Gentleman's Magazine*, which had commenced in London eight years before, and the price of each number was the modest one of sixpence. Being strictly a *magazine* or store, into which were collected all the important newspaper matters of the past month, it could not be considered as a literary effort of much pretension, though its value to us as a picture of the times referred to is all the greater. Living persons connected with periodical literature will hear with a smile that this respectable miscellany was, about 1763 and 1764, conducted by a young man, a corrector of the press in the printing-office which produced it, and whose entire salary for this and other duties was sixteen shillings a week.^[744]

A hurricane from the west-south-west, JAN. 14.
commencing at one in the morning, and accompanied by lightning, swept across the south of Scotland, and seems to have been beyond parallel for destructiveness in the same district before or since. The blowing down of chimneys, the strewing of the streets with tiles and slates, were among the lightest of its performances. It tore sheet-lead from churches and houses, and made it fly through the air like paper. In the country, houses were thrown down, trees uprooted by hundreds, and corn-stacks scattered. A vast number of houses took fire. At least one church, that of Killearn, was prostrated. Both on the west and east coast, many ships at sea and in harbour were damaged or destroyed. 'At Loch Leven, in Fife, great shoals of perches and pikes were driven a great way into the fields; so that the country people got horse-loads of them, and sold them at one penny per hundred.' The number of casualties to life and limb seems, after all, to have been small.^[745]

James, second Earl of Rosebery, was one who 1730.
carried the vices and follies of his age to such extravagance as to excite a charitable belief that he was scarcely an accountable person. In his father's lifetime, he had been several times in the Old Tolbooth for small debts. In 1726, after he had succeeded to the family title, he was again incarcerated there for not answering the summons of the Court of Justiciary 'for

deforcement, riot, and spulyie.’ A few years later, his estates are found in the hands of trustees.

At this date, he excited the merriment of the thoughtless, and the sadness of all other persons, by advertising the elopement of a girl named Polly Rich, who had been engaged for a year as his servant; describing her as a London girl, or ‘what is called a Cockney,’ about eighteen, ‘fine-shaped and blue-eyed,’ having all her linen marked with his cornet and initials. Two guineas reward were offered to whoever should restore her to her ‘right owner,’ either at John’s Coffee-house, or ‘the Earl of Roseberry, at Denham’s Land, Bristow, and no questions will be asked.’^[746]

The potato—introduced from its native South American ground by Raleigh into Ireland, and so extensively cultivated there in the time of the civil wars, as to be a succour to the poor when all cereal crops had been destroyed by the soldiery—transplanted thence to England, but so little cultivated there towards the end of the seventeenth century, as to be sold in 1694 at sixpence or eightpence a pound^[747]—is first heard of in Scotland in 1701, when the Duchess of Buccleuch’s household-book mentions a peck of the esculent as brought from Edinburgh, and costing 2s. 6d.^[748] We hear of it in 1733, as used occasionally at supper in the house of the Earl of Eglintoun, in Ayrshire.^[749] About this time, it was beginning to be cultivated in gardens, but still with a hesitation about its moral character, for no reader of Shakspeare requires to be told that some of the more uncontrollable passions of human nature were supposed to be favoured by its use.^[750]

At the date here noted, a gentleman, styled 1739. Robert Graham of Tamraver, factor on the forfeited estate of Kilsyth, ventured on the heretofore unknown step of planting a *field of potatoes*. His experiment was conducted on a half-acre of ground ‘on the croft of Neilstone, to the north of the town of Kilsyth.’ It appears that the root was now, and for a good while after, cultivated only on *lazy beds*. Many persons—amongst whom was the Earl of Perth, who joined in the insurrection of 1745—came from great distances to witness so extraordinary a novelty, and inquire into the mode of culture.

The field-culture of the potato was introduced about 1746 into the county of Edinburgh by a man named Henry Prentice, who had made a little money as a travelling-merchant, and was now engaged in market-gardening.^[751] His

example was soon extensively followed, and before 1760 the root was very generally reared in fields, as it is at present.

A frost, which began on the 26th of the previous month, lasted during the whole of this, and was long remembered for its severity, and the many remarkable circumstances attending it. We nowhere get a scientific statement of the temperature at any period of its duration; but the facts related are sufficient to prove that this was far below any point ordinarily attained in this country. The principal rivers of Scotland were frozen over, and there was such a general stoppage of water-mills, that the knocking-stones usually employed in those simple days for husking grain in small quantities, and of which there was one at nearly every cottage-door, were used on this occasion as means of grinding it. Such mills as had a flow of water, were worked on Sundays as well as ordinary days. In some harbours, the ships were frozen up. Food rose to famine prices, and large contributions were required from the rich to keep the poor alive.

1740. JAN.

1740.

The frost was severe all over the northern portion of Europe. The Thames at London being thickly frozen over, a fair was held upon it, with a multitude of shows and popular amusements. At Newcastle, men digging coal in the pits were obliged to have fires kindled to keep them warm; and one mine was through this cause ignited permanently. In the metropolis, coal became so scarce as to reach 70s. per chaldron; and there also much misery resulted among the poor. People perished of cold in the fields, and even in the streets, and there was a prodigious mortality amongst birds and other wild animals.

In consequence of the failure of the crop of this year, Scotland was now undergoing the distresses attendant upon the scarcity and high price of provisions. The populace of Edinburgh attacked the mills, certain granaries in Leith, and sundry meal-shops, and possessed themselves of several hundred bolls of grain, the military forces being too limited in number to prevent them. Several of the rioters being captured, a mob attempted their rescue, and thus led to a fusillade from the soldiery, by which three persons were wounded, one of them mortally. Great efforts

OCT.

were made by the magistracy to obtain corn at moderate prices for the people, by putting in force the laws against reservation of grain from market, and the dealing in it with a view to profit; also by the more rational method of subscriptions among the rich for the sale of meal at comparatively low rates to the poor. The magistrates of Edinburgh also invited importations of foreign grain (December 19), proclaiming that, in case of any being seized by mobs, the community should make good the loss.^[752]

George Whitfield, whose preachings had been 1741. JULY. stirring up a great commotion in England for some years past, came to Scotland, and for a time held forth at various places in the open air, particularly on the spot where the Edinburgh Theatre afterwards stood. ‘This gentleman,’ says a contemporary chronicler, ‘recommends the essentials of religion, and decries the distinguishing punctilios of parties; exclaims against the moral preachers of the age; preaches the doctrine of free grace according to the predestinarian scheme; 1741. mentions often the circumstance of his own regeneration, and what success he has had in his ministerial labours.’^[753] Having heard of the late secession from the Church of Scotland by a set of clergymen reputed to be unusually sanctimonious, he was eager to fraternise with them, and lost no time in preaching to the congregation of Mr Ralph Erskine at Dunfermline. But here he met unexpected difficulties. The Scottish seceders could not hold out the right hand of fellowship to one who did not unite with them in their testimony against defective churches. He was a man of too broad sympathies to suit them; so they parted; and Whitfield from that time fraternised solely with the established clergy.

About this time began a series of religious 1742. FEB. demonstrations, chiefly centering at Cambuslang on the Clyde, and long after recognised accordingly as the *Camb’slang Wark*. Mr Whitfield, in his visit of some months last year, had stirred up a new zeal in the Established Church. Mr M’Culloch, minister of Cambuslang, was particularly inflamed by his eloquence, and he had all winter been addressing his flock in an unusually exciting manner. The local fervour waxing stronger and stronger, a shoemaker and a weaver at length lent their assistance to it, and now it was breaking out in those transports of terror of hell-fire, prostrate

penitence, and rejoicing re-assurance, which mark what is called a *revival*. The meetings chiefly took place in a natural amphitheatre or holm, on the river's side, and were externally very picturesque. There seldom was wanting a row of patients in front of the minister, with their heads tied up, and pitchers of water ready to recover those who fainted. Early in the summer, Mr Whitfield returned to Scotland, and immediately came to lend his assistance to the work, both at Cambuslang, and in the Barony parish of Glasgow. 'From that time the multitudes who assembled were more numerous than they had ever been, or perhaps than any congregation which had ever before been collected in Scotland; the religious impressions made on the people were apparently much greater and more general; and the visible convulsive agitations which accompanied them, exceeded everything of the kind which had yet been observed.'^[754] The clergy of the establishment were pleased with what was going on, as it served to shew that their lamp was not gone out, thereby enabling them to hold up their heads against the taunts of the Secession as to growing lukewarmness and defection. And they pointed with pathetic 1742. earnestness to the many sinners converted from evil ways, as a proof that real good was done. On the other hand, the seceders loudly deplored 'the present awful symptom of the Lord's anger with the church and land, in sending them *strong delusion*, that they should *believe a lie*,' and ordained a day to be observed as a fast, in order to avert the evils they apprehended in consequence.^[755] A fierce controversy raged for some time between the two bodies, as to whether the Camb'slang Wark was of God or of the Devil, each person being generally swayed in his decision by his love for, or aversion to, the Established Church. A modern divine just quoted (Erskine), disclaims for them a miraculous character, but asserts, as matter of historic verity, that fully four hundred persons at Cambuslang underwent a permanent religious change, independent of those who were converted in like manner at Kilsyth. It is understood that the proceedings of the Associate Synod on the occasion have since been much deplored by their successors.

Public attention was strongly roused by an OCT. 10. accident of an uncommon kind which happened in the lowlands of Ross-shire. The church of Fearn parish was an old Gothic structure covered with

a heavy roof of flagstone. This day, being Sunday, while the parishioners were assembled at worship, the roof and part of the side-wall gave way, under the pressure of a load of prematurely fallen snow; and the bulk of the people present were buried under the ruins. The fortunate arrangement of the seats of the gentry in the side recesses saved most of that class from injury; and the minister, Mr Donald Ross, was protected by the sounding-board of his pulpit. There chanced to be present Mr James Robertson, the minister of Lochbroom, a man of uncommon personal strength and great dexterity and courage. He, planting his shoulder under a falling *lintel*, sustained it till a number of the people escaped. Forty poor people were dug out dead, and in such a state of mutilation that it was found necessary to huddle them all into one grave.^[756]

The period of the extinction of wild and dangerous animals in a country is of some importance, as an indication of its advance in civilisation, and of the appropriation of its soil for purely economic purposes. One learns with a start how lately the wolf inhabited the Highlands of Scotland. It is usually said that the species was extirpated about 1680 by the famous Sir Ewen Cameron of Locheil; but the tradition to that effect appears to be only true of Sir Ewen's own district of Western Inverness-shire, and there is reason to believe that the year at which this chronicle has arrived is the date of the death of the last wolf in the entire kingdom. The slayer of the animal is represented as being a notable Highland deer-stalker of great stature and strength, named Macqueen of Pall-a'-chrocain, and the Forest of Tarnaway in Morayland is assigned as the scene of the incident. The popular Highland narration on the subject is as follows:

'One winter's day, about the year before mentioned, Macqueen received a message from the Laird of Macintosh that a large "black beast," supposed to be a wolf, had appeared in the glens, and the day before killed two children, who, with their mother, were crossing the hills from Calder; in consequence of which a "Tainchel," or gathering to drive the country, was called to meet at a tryst above Fi-Giuthas, where Macqueen was invited to attend with his dogs. Pall-a'-chrocain informed himself of the place where the children had been killed, the last tracks of the wolf, and the conjectures of his haunts, and promised his assistance.

‘In the morning the “Tainchel” had long assembled, and Macintosh waited with impatience, but Macqueen did not arrive; his dogs and himself were, however, auxiliaries too important to be left behind, and they continued to wait until the best of a hunter’s morning was gone, when at last he appeared, and Macintosh received him with an irritable expression of disappointment.

“*Ciod e a’ chabhag?*—“What was the hurry?” said Pall-a’-chrocain.

‘Macintosh gave an indignant retort, and all present made some impatient reply.

‘Macqueen lifted his plaid, and drew the black bloody head of the wolf from under his arm—“*Sin e dhùibh*”—“There it is for you!” said he, and tossed it on the grass in the midst of the surprised circle.

‘Macintosh expressed great joy and admiration, and gave him the land called Sean-achan for meat to his dogs.’^[757]

Owing to a severe spring, a malady called ‘fever and cold’ prevailed in Edinburgh, and was spreading all over the country. On Sunday, the 8th May, fifty sick people were prayed for in the city churches, and in the preceding week there had been seventy burials in the Greyfriars, being three times the usual number.

1743. MAY.

For a number of years, the six independent companies of armed Highlanders, commonly called the Reicudan Dhu, or Black Watch, had been effective in keeping down that system of cattle-lifting which ancient prejudice had taught the Highlanders generally to regard as only a kind of clan warfare. But in 1739, the government was induced to form these companies into a regular regiment for service in the foreign war then entered upon; and in March of this year, they were actually sent into England, leaving the Highlands without adequate protection. The consequence was an immediate revival of old practices.

JULY.

In July of this year, it was reported to the Edinburgh newspapers that the highlands of Nairnshire were absolutely infested with depredators, who came by day as well as night, and drove off the cattle, not scrupling to kill the inhabitants when they were resisted. The proprietors were trying to form a watch or guard for the country; but these people often fell into complicity with the spoilers, or entered on a similar career themselves. The greatest

confusion and difficulty prevailed, and other districts were soon after involved in the same calamitous grievance.

One day in October, a party of nine *cearnochs* or *caterans*, well armed, came from Rannoch into Badenoch, and laid a large part of the district under contribution, 'forcing the people to capitulate for their lives at the expense of all they possessed,' and carrying off a great quantity of sheep. The gentlemen of the district hastily assembled with some of their people, but felt greatly at a loss on account of their want of arms. Nevertheless, with a few old weapons, they resolved to attack the depredators. A smoke seen on a distant hillside led them to the place where the robbers were halting. Their firearms were by this time useless with wet; yet they fell on with great courage, and obtained a victory, at the expense of a wound to one of their party. Four of the offenders were secured, and carried to the prison at Ruthven.^[758] It was hoped that the fate of this party would deter others; but the hope was not realised.

In March 1744, a general meeting of the gentlemen of the district of Badenoch took into consideration the sad state of their country. It was represented that, owing to the frequent thefts committed, the tenants were on the brink of utter ruin: some who paid not above fifteen pounds of rent, had suffered losses to the extent of a hundred. Evan Macpherson of Cluny, the leading man of the district, and a person of activity and intelligence, had been repeatedly entreated to undertake the formation and management of an armed watch, to be supported from such small contributions as could be raised; but he regarded the country as too poor to support such an establishment as would be necessary. Yet he now told them that, unless the king could protect them, he could suggest no other course than the putting of their own and the neighbouring districts under persons who could guard the country by their own armed retainers, and guarantee the restitution of lost goods to all such as would contribute to the necessary funds.

On the entreaty of his neighbours, Cluny, in May, did muster a number of his people, of honest character, whom he planted at the several passes through which predatory incursions were made, 'giving them most strict orders that these passes should be punctually travelled and watched night and day, for keeping off, intercepting, seizing, and imprisoning the villains, as occasion offered, and as strictly forbidding and discharging them to act

less or more in the ordinary way of other undertakers [leviers of black-mail], who, instead of suppressing theft, do greatly support it, by currying the favour of the thieves, and gratifying them for their diverting of the weight of theft from such parts of the countries as pay the undertaker for their protection, to such parts as do not pay them.'

Cluny is allowed to have tolerably well effected his purpose. The thieves, being hemmed in by him, and reduced to great straits, offered to keep his own lands skaithless if he would cease to guard those of his neighbours, a proposal to which, as might be expected, he gave no heed. They tried to evade his vigilance by taking a *spreath* of cattle from Strathnairn by boats across Loch Ness, instead of by the ordinary route; but he then set guards on the ferries of Loch Ness, albeit at a great additional expense. The lands of gentlemen who declined to contribute were as safe as those in the opposite circumstances. He was even able to restore some cattle taken from distant places, as Banffshire, Strathallan, and the Colquhoun's grounds near Dumbarton.^[759]

The Rev. Mr Lapslie, writing in 1795 the 1743. statistical account of his parish of Campsie, remarks with a feeling of wonder the fact that, so recently as 1744, his father 'paid black-mail to Macgregor of Glengyle, in order to prevent depredations being made upon his property; Macgregor engaging, upon his part, to secure him from suffering any *hardship* [hershship, that is, despoliation], as it was termed; and he faithfully fulfilled the contract; engaging to pay for all sheep which were carried away, if above the number of seven, which he styled a *lifting*; if below seven, he only considered it a piking; and for the honour of this warden of the Highland march, Mr John Lapslie having got fifteen sheep lifted in the commencement of the year 1745, Mr Macgregor actually had taken measures to have their value restored, when the rebellion broke out, and put an end to any further payment of black-mail, and likewise to Mr Macgregor's self-created wardenship of the Highland borders.'^[760]

We have seen that an abortive attempt was made OCT. in 1678 to set up a stage-coach between Edinburgh and Glasgow.^[761] Nothing more is heard of such a scheme till the present date, when John Walker, merchant in Edinburgh, proposed to the town council of Glasgow the setting up of a stage-coach between the two towns, for six persons,

twice a week, for twenty weeks in summer, and once a week during the rest of the year, receiving ten shillings per passenger, provided that he should have the sale of two hundred tickets per annum guaranteed.^[762] This effort was likewise abortive.

It was not till 1758, when the population of Glasgow had risen to about thirty-five thousand, that a regular conveyance for passengers was established between the two cities. It was drawn by four horses, and the journey of forty-two miles was performed in twelve hours, the passengers stopping to dine on the way. Such was the only stage-coach on that important road for thirty years, nor during that time did any acceleration take place. A young lady of Glasgow, of distinguished beauty, having to travel to Edinburgh about 1780, a lover towards whom she was not very favourably disposed, took all the remaining tickets, was of course her sole companion on the journey, entertained her at dinner, and otherwise found such means of pressing his suit, that she soon after became his wife. This was, so far as it goes, a very pretty piece of stage-coach romance; but, unluckily, the lover was unworthy of his good-fortune, and the lady, in a state of worse than widowhood, was, a few years after, the subject of the celebrated Clarinda correspondence of Burns.

Mr Palmer, the manager of the Bath Theatre, having succeeded in introducing his smart stage-coaches, one was established, in July 1788, between London and Glasgow, performing the distance (405 miles) in sixty-five hours. This seems to have led to an improvement in the conveyances between Edinburgh and the western city. Colin M'Farlane, of the Buck's Head Inn of Glasgow, announced, in the ensuing October, his having commenced a four-seated coach between the two cities every lawful day at eleven o'clock, thus permitting mercantile men to transact business at the banks and public offices before starting. 'In most of the coaches running at present,' says he, 'six are admitted, and three into a chaise, which proves very disagreeable for passengers *to be so situated for a whole day*. The inconvenience is entirely removed by the above plan.... Owing to the lightness of the carriage, and frequent change of horses, she arrives at Glasgow and Edinburgh as soon as the carriages that set off early in the morning.' 'Price of the tickets from both towns, 9s. 6d.'^[763] Notwithstanding this provocative to emulation, 'the Diligence' for Edinburgh was announced in 1789 as starting from the Saracen's Head each morning at nine, '*or at any other hour the two first passengers might agree on.*'^[764] It was not till

1799 that the time occupied by a stage-coach journey between these two cities was reduced so low as even six hours, being still an hour and a half beyond the time ultimately attained before the opening of the railway in 1842.

For some years the use of tea had been creeping 1744.
in amongst nearly all ranks of the people. It was thought by many reflecting persons, amongst whom was the enlightened Lord President Forbes, to be in many respects an improper diet, expensive, wasteful of time, and calculated to render the population weakly and effeminate. During the course of this year, there was a vigorous movement all over Scotland for getting the use of tea abated. Towns, parishes, and counties passed resolutions condemnatory of the Chinese leaf, and pointing strongly to the manlier attractions of beer. The tenants of William Fullarton of Fullarton, in 1744.
Ayrshire, in a bond they entered into on the occasion, thus delivered themselves: ‘We, being all farmers by profession, think it needless to restrain ourselves formally from indulging in that foreign and consumptive luxury called *tea*; for when we consider the *slender constitutions* of many of higher rank, amongst whom it is used, we conclude that it would be but an improper diet to qualify us for the more *robust* and *manly* parts of our business; and therefore we shall only give our testimony against it, and leave the enjoyment of it altogether to those who can afford to be *weak*, *indolent*, and *useless*.’

Lord Lovat, writing to the Lord President Forbes 1745. Oct.
on the 20th of this month, adverts to the effect of the civil broils in giving encouragement to men of prey in the Highlands. He says: ‘This last fortnight, my cousin William [Fraser], Struie’s uncle, that is married to Kilbockie’s daughter, and who is a very honest man, and she a good woman, had twenty fine cows stolen from him. The country [that is, the country people] went upon *the track*, and went into Lochaber and to Rannoch, and came up with the thieves in my Lord Breadalbane’s forest of Glenurchy. The thieves, upon seeing the party that pursued them, abandoned the cattle, and ran off; and William brought home his cattle, but had almost died, and all that was with him, of fatigue, cold, and hunger; but, indeed, it is the best-followed track that ever I heard of in any country. You

see how loose the whole country is, when four villains durst come a hundred miles, and take up the best cattle they could find in this country; for they think there is no law, and that makes them so insolent.’^[765]

The practice of stealing cattle in the Highlands has already been several times alluded to, as well as the system of compromise called *black-mail*, by which honest people were enabled in some degree to secure themselves against such losses. Down to 1745, there does not appear to have been any very sensible abatement of this state of things, notwithstanding the keeping up of the armed companies, professedly for the maintenance of law and order. Perhaps the black-mail caused there being less robbery than would otherwise have been the case, and also the occasional restoration of property which had been taken away; but it was of course necessary for the exactors of the mail to allow at least as much despoliation as kept up the occasion for the tax. Mr Graham of Gartmore, 1745. writing on this subject immediately after the close of the rebellion, enters into a calculation of the entire losses to the Highlands through robbery and its consequences.

‘It may be safely affirmed,’ he says, ‘that the horses, cows, sheep, and goats yearly stolen in that country are in value equal to £5000, and that the expenses lost in the fruitless endeavours to recover them, will not be less than £2000; that the extraordinary expenses of keeping [neat-]herds and servants to look more narrowly after cattle on account of stealing, otherwise not necessary, is £10,000. There is paid in black-mail or watch-money, openly or privately, £5000; and there is a yearly loss, by understocking the grounds, by reason of thefts, of at least £15,000; which is altogether a loss to landlords and farmers in the Highlands of £37,000 a year.

‘... The person chosen to command this *watch*, as it is called, is commonly one deeply concerned in the thefts himself, or at least that hath been in correspondence with the thieves, and frequently who hath occasioned thefts in order to make this watch, by which he gains considerably, necessary. The people employed travel through the country armed, night and day, under pretence of inquiring after stolen cattle, and by this means know the situation and circumstances of the whole country. And as the people thus employed are the very rogues that do these mischiefs, so one half of them are continued in their former businesses of stealing, that the business of the other half may be necessary in recovering.... Whoever

considers the shameful way these watches were managed, particularly by Barrisdale and the Macgregors, in the west ends of Perth and Stirling shires, will easily see into the spirit, nature, and consequences of them.’^[766]

Pennant informs us that many of the lifters of black-mail ‘were wont to insert an article by which they were to be released from their agreement, in case of any civil commotion; thus, at the breaking out of the last rebellion, a Macgregor (who assumed the name of Graham), who had with the strictest honour till that event preserved his friends’ cattle, immediately sent them word that from that time they were out of his protection, and must now take care of themselves.’

The same author justly remarks the peculiar code of morality which circumstances, partly political, had brought into existence in the Highlands, whereby cattle-stealing came to be considered 1745. rather as a gallant military enterprise than as theft. He says the young men regarded a proficiency in it as a recommendation to their mistresses. Here, however, it must be admitted, we only find the disastrous results of a general civil disorder arising from political disaffection and antagonisms.

Both Gartmore and Mr Pennant speak of ‘Barrisdale’ as a person who at this time stood in great notoriety as a levier of black-mail, or, as Barrisdale himself might have called it, a protector of the country. Descended from a branch of the Glengarry family, his father had obtained from the contemporary Glengarry, on wadset, permission to occupy a considerable tract of ground named Barrisdale, on the south side of Loch Hourn, and from this he had hereditarily derived the appellation by which he was most generally known, while his real name was Coll MacDonell, and his actual residence was at Inverie, on Loch Nevis. Although the government had kept up a barrack and garrison at Glenelg since 1723, Barrisdale carried on his practice as a cattle-protector undisturbed for a course of years, drawing a revenue of about five hundred a year from a large district, in which there were many persons that might have been expected to give him opposition. According to Pennant, ‘he behaved with genuine honour in restoring, on proper consideration, the stolen cattle of his friends.... He was indefatigable in bringing to justice any rogues that interfered with his own. He was a man of a polished behaviour, fine address, and fine person. He considered himself in a very high light, as a benefactor to the public, and preserver of

general tranquillity, for on the silver plates, the ornaments of his baldric, he thus addresses his broadsword:

“Hæ tibi sunt artes, pacis componere mores;
Parcere subjectis et debellare superbos.”^[767]

At the breaking out of the rebellion, Barrisdale and his son acted as partisans of the Stuart cause, the latter in an open manner, the consequence of which was his being named in the act of attainder. During the frightful time of vengeance that followed upon Culloden, the father made some sort of submission to the government troops, which raised a rumour that he had undertaken to assist in securing and delivering up the fugitive prince. What truth or falsehood there might be in the allegation, 1745.

no one could now undertake to certify; but certain it is, that, when a party of the Camerons were preparing, in September 1746, to leave the country with Prince Charles in a French vessel, they seized the Barrisdales, father and son, as culprits, and carried them to France, where they underwent imprisonment, first at St Malo, and afterwards at Saumur, for about a year. It was at the same time reported to London that the troops had found, in Barrisdale's house, ‘a hellish engine for extorting confession, and punishing such thieves as were not in his service. It is all made of iron, and stands upright; the criminal's neck, hands, and feet are put into it, by which he's in a sloping posture, and can neither sit, lie, nor stand.’^[768] This report must also remain in some degree a matter of doubt.

The younger Barrisdale, making his escape from the French prison, returned to the wilds of Inverness-shire, and was there allowed for a time to remain in peace. The father, liberated when Prince Charles was expelled from France, also returned to Scotland; but he had not been more than two days at his house in Knoydart, when a party from Glenelg apprehended him. Being placed as a prisoner in Edinburgh Castle, he died there in June 1750, after a confinement of fourteen months. The son was in like manner seized in July 1753, in a wood on Loch-Hourn-side, along with four or five other gentlemen in the same circumstances, and imprisoned in Edinburgh Castle. He was condemned upon the act of attainder to die in the Grassmarket on the 22d of May 1754, and while he lay under sentence, his wife, who attended him, brought a daughter into the world.^[769] He was, however, reprieved from time to time, and ultimately, after nine years' confinement, received a pardon in March 1762, took the oath of allegiance

to George III., and was made a captain in Colonel Graeme's regiment, being the same which was afterwards so noted under the name of the *Forty-second*. When Mr John Knox made his tour of the West Highlands in 1786, to propagate the faith in herring-curing and other modern arts of peace, he found 'Barrisdale'—that name so associated with an ancient and ruder state of things—residing at the place from which he was named. 'He lives,' says the traveller, 'in silent retirement upon a slender income, and seems by his appearance, conversation, and deportment, to have merited a better fate. He is about six feet high, proportionally made, and 1745. was reckoned one of the handsomest men of the age. He is still a prisoner, in a more enlarged sense, and has no society excepting his own family, and that of Mr Macleod of Arnisdale. Living on opposite sides of the loch, their communications are not frequent.'^[770]

It seems not inappropriate that this record of the old life of Scotland should end with an article in which we find the associations of the lawless times of the Highlands inosculating with the industrial proceedings of a happier age. A further extension of our domestic annals would shew how the good movements of the last fifteen years were now accelerated, and how our northern soil became, in the course of little more than a lifetime, one of the fairest scenes of European civilisation. Fully to describe this period—its magnificent industries, its rapid growth of intelligence, of taste, of luxury, the glories it achieved in literature, science, and art—would form a noble task; but it is one which would need to be worked out on a plan different from the present work, and which I should gladly see undertaken by some son of Caledonia who may have more power than I to do her story justice, though he cannot love or respect her more.

APPENDIX.

Having been favoured by the publishers of the *Courant* and *Mercury* with an inspection of such early volumes of their venerable journals as they respectively possess, I have caused a few curious but comparatively trivial paragraphs to be copied for insertion in this place. To these are added a few notices of a characteristic nature from other sources:

‘EDINBURGH, *September 19*.—Upon the 17th instant, the Right Honourable the Earl of Wemyss was married to the only child of Colonel Charteris, a fortune of five hundred thousand pounds sterling, English money, which probably in a short time may be double that sum. But that is nothing at all in comparison of the young lady herself, who is truly, for goodness, wit, beauty, and fine shapes, inferior to no lady of Great Britain; all which the very noble earl richly deserves, being a most complete and well-accomplished gentleman, and the lineal representative of a most noble, great, and ancient family in Scotland of five or six hundred years’ standing,’ &c.—*Contemporary Journal*.

1720. SEP.

‘Last week Sir Robert Sibbald of Kipps, M.D., Fellow of the Royal College of Physicians, died here in the 83d year of his age. He was a person of great piety and learning, and author of many learned and useful books, especially in natural history.’—*C. M.*

1722. AUG. 13.

On the 11th November 1723, a number of people proceeding from Galashiels and its neighbourhood to attend a fair at Melrose, and crossing the Tweed in a ferry-boat at Nether Barnsford, near what afterwards became Abbotsford, were thrown by the oversetting of the boat into the water, then in flood, and eighteen of them drowned. A boy named Williamson, son of a tradesman in Galashiels, was preserved in a wonderful way. Thrown at first to the bottom of the river, he caught a man by the hair of his head, and was thus enabled to rise to the surface. There he was kept afloat by grasping, first by a bundle of lint, and then a sackful of gray cloth, letting go each in succession as it became saturated with water. Then a deal from the ‘lofting’ of the boat came near him, and he grasped it firmly below his breast. Meanwhile he was moving rapidly down the stream. There was a place where formerly a bridge had been, and where three piers yet stood in the water. It was with difficulty he got through one of the spaces, and over a cascade on the lower side of the bridge. Sometimes, thrown on his back, he was under water for thirty or forty yards, but he never let go the deal. At length, after going considerably more than a mile in this manner, he was taken up by the West-house-boat, the manager of which had been warned of his coming, and of his possible

preservation, by a ploughman mounted on a horse which, escaping from the overset boat, had swum ashore, in time to admit of this rapid and dexterous movement—*C. M.*

There was this day buried in the Greyfriars' Churchyard, the wife of Captain Burd of Ford, 'thought to be the largest woman in Scotland.' 'Her coffin was a Scots ell and four inches wide, and two feet deep.'—*E. E. C.*

1724. JUNE 2.

'We hear that a Quaker woman is encouraged by our magistrates, in her proposal of setting up a woollen manufactory in this city, and obliging herself to employ all the strolling beggars in work, and to give them food and raiment.'—*E. E. C.*

1725. FEB. 18.

'Died William Clerk, brother to the deceased Sir John Clerk of Pennicuik; remarkable for his frequent peregrinations through Europe, which procured him the name of *Wandering Will.*'—*E. E. C.*

MAR. 13.

Died Marjory Scott, an inhabitant of Dunkeld, who appears to have reached the extraordinary age of a hundred years. An epitaph was composed for her by Alexander Pennecuik, but never inscribed, and it has been preserved by the reverend statist of the parish, as a whimsical statement of historical facts comprehended within the life of an individual:

1728. FEB. 26.

'Stop, passenger, until my life you read,
The living may get knowledge from the dead.
Five times five years I led a virgin life,
Five times five years I was a virtuous wife;
Ten times five years I lived a widow chaste,
Now tirèd of this mortal life I rest.
Betwixt my cradle and my grave hath been
Eight mighty kings of Scotland and a queen.
Full twice five years the Commonwealth I saw,
Ten times the subjects rise against the law;
And, which is worse than any civil war,
A king arraigned before the subjects' bar.
Swarms of sectarians, hot with hellish rage,
Cut off his royal head upon the stage.
Twice did I see old prelacy pulled down,
And twice the cloak did sink beneath the gown.
I saw the Stuart race thrust out; nay, more,
I saw our country sold for English ore;
Our numerous nobles, who have famous been,
Sunk to the lowly number of sixteen.
Such desolation in my days have been,
I have an end of all perfection seen!'[\[771\]](#)

'A person, who frequents the [King's] Park, having long noticed a man to come from a cleft towards the north-west of Salisbury Rocks, had the curiosity some days ago to climb the precipice, if possibly he might discover something that could invite him there. He found a shallow pit, which delivered him into a little snug room or vault hung with dressed leather, lighted from the roof, the window covered with a bladder. It is thought to have been the cave of a hermit in ancient times, though now the hiding-place of a gang of thieves.'—*E. E. C.*

OCT. 29.

‘Yesterday, one Margaret Gibson, for the crime of theft, was drummed through the city in a very disgraceful manner. Over her neck was fixed a board with spring and bells, which rung as she walked. At some inches distant from her face was fixed a false-face, over which was hung a fox’s tail. In short, she was a very odd spectacle.’—*E. E. C.*

NOV. 7.

‘A gentleman travelling to the south was attacked on Soutra Hill by two fellows armed with bayonets, who desired him to surrender his purse. The gentleman putting his hand beneath his jockey-coat, presented a pistol, and asked them whether that or his money were fittest for them. They earnestly begged he would spare their lives, for necessity had forced them to it, and they had never robbed any save one countryman an hour before of 6s. 8d. The gentleman put them to this dilemma, either to receive his bullets or cut an ear out of each other’s heads; the last of which with sorrowful hearts they performed.’—*E. E. C.*

DEC. 10.

1728.

The prospectus was issued of a weekly paper under the name of *The Echo*, to contain, besides news, literary matter for the instruction and amusement of society. The undertakers expressed themselves confident of assistance from ‘persons of taste, wit, and humour, with which they know our nation abounds.’ The price to be 2s. 6d. a quarter.—*E. E. C.*

DEC.

‘A fire broke out in the house of William Gib in Kittlenaked, and burnt four cows to death; but how the fire happened is not known.’—*E. E. C.*

DEC. 24.

‘We hear that the Lady Cherrytrees died some days ago in the 104th year of her age.’—*E. E. C.*

1729. JAN. 14.

‘Yesternight, two women were committed to the Guard for walking the streets in men’s apparel.’—*E. E. C.*

JAN. 28.

‘Yesternight, a company of night-ramblers demolished a vast many windows in the Cowgate and Grassmarket, broke down the seat and loosed the railing before Scott’s Land, and played the like tricks in several other places.’—*E. E. C.*

JAN. 30.

‘There are just now fifty recruits in the Canongate gaol, belonging to Halket’s Regiment, ready to be transported to Holland.’—*E. E. C.*

FEB. 4.

‘The Quakers are building a place of worship in Peebles’s Wynd. Though it be roofed, there is as yet no window in it; but some merrily observe these people have light within.’—*E. E. C.*

SEP.

‘On Thursday was interred, in the Greyfriars’ Churchyard, the corpse of Mr Andrew Cant, one of the ministers of this city at the Revolution, and since made a bishop of the clergy of the Episcopal Communion. He was esteemed a learned and eloquent preacher. He died in the 91st year of his age, and 64th of his ministry.’—*E. E. C.*

1730. APR. 27.

‘Last Thursday night, Mr Cockburn, son to my Lord Justice-clerk, was married to Miss Rutherford, daughter to the Laird of Fernilie.’ [This lady was the authoress of the song, beginning ‘I’ve seen the smiling of Fortune beguiling,’ to the tune of the *Flowers of the Forest*.]—*E. E. C.*

1731. MAR. 29.

‘There is one Mr David Burnet, officer of the Excise in Glasgow, died the 8th instant, and left £50 sterling to the poor of the parishes where he was officer in—namely, £10 to Edinburgh, £10 to Glasgow, £10 to Ayr, £10 to Hamilton,

APR. 12.

£10 to Carnwath, as an encouragement to these several places to deal kindly with the officers residing among them.’—*E. E. C.*

‘Yesternight.... Ferrier, Esq., late Provost of Dundee, was married to the heiress of Coldingknows, a handsome young lady of a considerable fortune; and we hear that he was attended by persons of distinction.’—*E. E. C.*

JULY 1.

‘Last Tuesday, died Mrs Heriot, late the widow of Mr James Watson, his Majesty’s Printer, by whom she had a very considerable estate, a great part of which comes to her present husband.’—*E. E. C.*

AUG. 26.

‘They write from Glasgow that one Robert Lyon is now living there, who was in the service of King Charles I.; aged 109 years. He has got a new set of teeth, and recovered his sight in a wonderful manner.’—*E. E. C.*

AUG. 30.

‘By a letter from Stonhive, we have an account that one John Anderson died there lately who could not be less than 108 years old, he having been about 16 at the fight of the Bridge of Dee, which happened in the 1639.’—*E. E. C.*

DEC. 21.

‘William Crawford, janitor of the High School at Edinburgh, somewhat in years, having been thrice proclaimed in the kirk, went thither with his friends, and stood some hours expecting his bride. At last he received a ticket from her in these terms: “William, you must know I am pre-engaged. I am so. I never could like a burnt cuttie. I have now by the hand my sonsie, menseful strapper, with whom I intend to pass my youthful days. You know, old age and youth cannot agree together. I must then be excused if I tell you I am not your humble servant.” The honest man, not taking it much to heart, only said: “Come, let us at least keep the feast on a feast-day. Dinner will be ready. Let us go drink, and drive care away. May never a greater misfortune attend an honest man!” Back to dinner they went, and from the company convened the bridegroom got a hundred merks, and all charges defrayed; with which he was as well satisfied as he who got madam.’—*C. M.*

1731. Nov.

‘Died William Eadie, bellman of the Canongate, Edinburgh, aged 120. He had buried the inhabitants of the Canongate thrice. He was 90 years a freeman, and married a second wife, a lusty young woman, after he was 100 years old.’—*C. M.*

Nov. 19.

‘Died John Gray, master of the Rope and Sail Manufactory at Edinburgh; eminent for his unparalleled skill in cutting whalebone.’—*C. M.*

1732. APR. 9.

In April, it was intimated from Kirkcaldy, that Margaret White of that place, aged 87, has lately cut eight fresh teeth. ‘Her husband,’ moreover, ‘is in hopes she may bring him also a new progeny, as she has recovered, with her new tusks, a blooming and juvenile air.’

These were encouraging facts for the aged; but what were they in comparison with the case of Jean Johnston of Old Deer, in Buchan! Being aged 80, and the widow of three husbands, she lately married for her fourth a young man of eighteen, who had since bound himself apprentice to a wheelwright. ‘She seems exceedingly well pleased with him, and remarks that, had it not been for the many changes of husbands she had been blessed with, she must have long ago been dead.’ She lived, too, in hopes of a fifth husband, should this one unfortunately not live long.

‘Thursday last,’ says the paper of June 5th, ‘a certain gray-haired hair-merchant in the Landmarket, aged between seventy and eighty, a very heavy and corpulent man, laid half a guinea that he should make the round of Hope Park in twenty minutes, which is reckoned about a Scots mile. He made it out in about *nineteen* minutes, but was so reduced before he reached the starting-post that he arrived there upon *all-fours*. On taking a dram, he reverted so well, that he offered to lay the same wager again instantly.’

The paper for 4th May related that, lately, ‘a young man, a merchant in Edinburgh, came to Leith to see a female friend take boat in order to cross the water. The boat being put off and near the pier-end before he came down, and he observing a rival in the boat with madame, was so exasperate, that in order to get at ’em, he jumped off the pier-end into the flood, and had actually perished by this passionate frolic, had not two of Montague’s regiment stepped down, and with both difficulty and danger, haled him out.’—C. M.

‘Died the Duchess of Buccleuch and Monmouth, Countess of Dalkeith, &c., aged about 90. She was relict of James Duke of Monmouth, natural son of Charles II., beheaded on Tower Hill, July 15, 1685. She had issue by the Duke, James, late Earl of Dalkeith, and Henry, late Earl of Deloraine. In 1688, she was again married to Charles Lord Cornwallis, and had issue a son and two daughters. By her death, an estate of £15,000 per annum, and the title of Duke of Buccleuch, descend to Francis, Earl of Dalkeith, her grandson.’—C. M.

FEB. 6.

Thomas Ruddiman gave in his paper an account of an incident at Musselburgh, such as a subsequent native, the late David M. Moir (Delta), would have delighted to paint in even greater breadth. The magistrates, according to ancient annual custom, had to perform the ceremony of riding round the marches of their burghal property. On this occasion, they were attended by their vassals and the burgesses, to the number of 700, all of them of course mounted and in their best array. ‘The trumpets and hautboys marched in front; then the magistrates and town council, followed by the gentlemen vassals, with the town standard; after them the several incorporations, distinguished by their respective shining new standards, and headed by the masters of the crafts. In this good order they marched out to the Links, making a gay appearance. But, alas! while they were marshalling, an unlucky difference arose between the weavers and the tailors, which should have the *pas* or precedence. In order to prevent effusion of the blood of his majesty’s good subjects, they agreed to submit the merits of the cause to the magistrates. The tailors argued that, as the precedence had previously fallen to them by lot, no opposition could now be offered in that respect. It was alleged, on the other hand, that they—the weavers—were *Men*, and as such preferable at all events to *Tailors*. This signal affront could not be digested. Accordingly, to work they went, without waiting the decision of authority; and while the weaver squadron were filing off to take the post of honour, with Captain Scott at their head, Adjutant Fairley, who acted in that capacity to the tailor squadron, directed a blow at the captain’s snout, which brought him to the ground. Thus were the two corps fiercely engaged, and nought was to be seen but heavy blows, hats off, broken heads, bloody noses, and empty saddles; till at last the plea of manhood seemed to go in favour of the needlemen, who took Scott, hero of the weavers, prisoner, disarmed him, and beat his company quite out of the field, though far more numerous. It was with the utmost difficulty that the weavers got their standard carried off, which they lodged in their captain’s quarters under the discharge of three huzzas: ’tis true the conquering tailors were then off the field, and at a mile’s distance. The weavers allege, in excuse of their retreat, that the butcher squadron had been ordered up to assist the tailors, and that they did not incline to engage with these men of blood.’—C. M.

OCT. 18.

1732.

A circumstance somewhat like the Tain entertainment, in honour of Governor Macrae, took place in Edinburgh, on this king’s birthday, which was observed with unusual rejoicings, on account of the recent stimulus to loyalty from the marriage of the Princess Royal to the Prince of Orange. ‘David Campbell, his Majesty’s Tailor for Scotland, came to this kingdom from Jamaica, purely on design to solemnise the day. He accordingly entertained at his lodgings in the Abbey his Majesty’s Blue Gowns [a set of licensed beggars, corresponding in number to the king’s years, which were now fifty], and at night he kept open table, where several gentlemen were entertained, all the royal healths were drunk, and those of every remarkable person of the illustrious name of Campbell, with the sound of trumpet and other music.’—C. M.

1733. OCT. 30.

The *Caledonian Mercury* gives a droll, chirping account of an association which, it is easy to see, had in view the prevention of an over-severe excise system for Scotland. Yesternight, says the paragraph, ‘there came on, at the Parrot’s Nest in this city, the annual election of office-bearers in the ancient and venerable *Assembly of Birds*; when the *Game-cock* was elected preses; the *Blackbird*, treasurer; the *Gled*, principal clerk; the *Crow*, his depute; and the *Duck*, officer; all birds duly qualified to our happy establishment, and no less enemies to the excise scheme. After which an elegant entertainment was served up; all the royal and loyal healths were plentifully drunk in the richest wines; *the glorious 205*; *all the bonny birds*, &c. On this joyful occasion nothing was heard but harmonious music, each bird striving to excel in chanting and warbling their respective melodious notes.’ The glorious 205, it may be remarked, were those members of the House of Commons who had recently thrown out a bill for increasing the tax on tobacco.

OCT.

‘John Park, some time dempster to the Court of Justiciary, and who lately stood a trial there for horse-stealing, was whipped through the city, pursuant to his sentence; by which also he stands condemned to transport himself, never again to return to Scotland, on pain of being whipped quarterly till he is again transported. He is a very old man, with a graceless gray head, gray beard, and but one hand, having left the other in some scrape.’—*C. M.*

1734. MAR. 6.

1734.

‘When Mr Adam Fergusson, minister of Killin, came to Perth to intimate the sentence of the commission (which looses Mr William Wilson’s pastoral relation in that burgh), Mr Fergusson was met in the suburbs by several of the inhabitants, who fell upon the gentleman, though vested with supreme authority, and attended by several armed men; yet they were all severely cudgelled, and obliged to retire, *re infectâ*.’—*C. M.*

APR. 19.

‘Died here, the Rev. Mr John Maclaren, one of the ministers of the city; esteemed a well-meaning man, and void of hypocrisy.’—*C. M.*

JULY 12.

‘On Saturday was se’nnight [Dec. 28, 1734], died at Balquhiddier, in Perthshire, the famous Highland partisan, *Rob Roy*.’—*C. M.*

1735. JAN. 9.

‘Died, in the 12th year of her age, the Lady Jane Campbell, fourth daughter to his Grace the Duke of Argyle.... His Grace has no male issue, but several daughters living, and it is the peculiar right of this family, that when they marry any daughters, their vassals are obliged to pay their portions, and are taxed in order to it, according to the number of their cattle.’—*C. M.*

JAN. 24.

We find at this time a beginning to that system of emigration to America by which the Highlands were so much depopulated during the eighteenth century. ‘The trustees for the colony of Georgia have projected a settlement of Highlanders from this country, and have actually sent round for Inverness and Cromarty a ship commanded by Captain Dunbar, to take in 160 men, women, and children, who are to be settled on the far boundary of the river Alatomaha, who will be a gallant barrier in case of a war with France and Spain. And Mr Oglethorpe, with the other trustees, are applying to the society in Scotland for Propagating Christian Knowledge to send a minister along with them who speaks Irish, with proper encouragement; and we are assured the society are so well satisfied with the project, that they have amply instructed their committee of directors to close in with it.’—*C. M.*

AUG. 18.

‘The annual friendly meeting of the gentlemen of the name of Wilson, was held at the house of Jean Wilson, spouse to Arthur Cumming, periwig-maker, opposite to the City Guard; the Right Hon. Alexander Wilson, Lord Provost of the city, preses. There were present about forty gentlemen and others of that clan, who were served at supper by persons of the name. The entertainment was sumptuous, and choice wines went merrily round.’—*C. M.*

1736. JAN. 19.

‘A very uncommon chain of events happened here [Lanark] t’other week. Elizabeth Fairy was proclaimed in order to marriage on Sunday, was accordingly married on Monday, bore a child on Tuesday; her husband went and stole a horse on Wednesday, for which he was banished on Thursday; the heir of this marriage died on Friday, and was decently interred on Saturday; all in one week.’—C. M.

JAN. 21.

‘The 4th inst., several young gentlemen of this place [Montrose] acted Mr Allan Ramsay’s celebrated *Pastoral Comedy*, for the diversion of the gentlemen and ladies of and about this town, with all the dresses suitable, and performed it with so much spirit and humour, as agreeably surprised the whole audience; to oblige whom they re-enacted it and the farce of the *Mock Doctor* two succeeding nights. The money taken, after deducting the necessary charges, being very considerable, was distributed among the poor.’—C. M.

FEB. 9.

‘This week, several gentlemen laid a wager that a horse, twenty-six years old, belonging to Mr. Pillans, brewer, should not draw 101 stone-weight up the West Bow to the Weigh-house; and yesterday it was surprisingly performed, one of the wagerers riding on the top of all.’—C. M.

MAR. 13.

Nine unfortunate young women—‘very naked and meagre beings’—‘made an *amende honorable* through the several streets of the city [of Edinburgh], the hangman attending them, and drums beating to the tune of *Cuckolds-come-dig*.’—C. M.

JULY 9.

1736.

While Allan Ramsay was preparing his playhouse, an Italian female rope-dancer, named Signora Violante, performed in Edinburgh and some other Scottish towns. It was announced that she danced a minuet on the rope, as well as it could be done on the floor—danced on a board placed loosely on the rope—danced on the rope with two boys fastened to her feet—danced with two swords at her feet—the rope being no thicker than penny whip-cord. In Edinburgh, the scene of her performances was the ‘Old Assembly Hall.’—C. M.

‘A grand convention was held of the adherents to the seceding ministers of the Church of Scotland, in a square plain on Braid Hills, two miles south of this city. About 10 before noon, Mr Thomas Mair, minister of Orwel, in Kinross-shire, opened the service of the day (standing in a pulpit reared up within a tent), with a sermon from Jeremiah i. 5. At noon, Mr William Wilson, one of the ministers of Perth, preached from Ezekiel xxii. 24, and afterwards baptized ten children, brought thither some 20, some 30 miles off. At four afternoon, Mr Ralph Erskine, one of the ministers of Dunfermline, preached from Hosea xxiii. 9, &c. The apparent tendency of these sermons was to excite devotion and fervour, a renewal of solemn engagements, to deprecate sin in general, and those of this corrupt age in particular: and it was observed that it was no proper expedient either to wash away sin, or indemnify the sinner, to purchase indulgences at the hand of the kirk-treasurer, and some other tenets that savoured of a popish tincture were soundly lashed. There were about 5000 hearers at each sermon (I mean of the household of faith), some of whom from South Britain and Ireland, besides the ungodly audience, consisting of many thousands, some of whom set fire to furze; others hunted the hare around ’em to create disturbance, a certain huntsman having laid a plot to carry off the collection. The convention dispersed at 7 at night.’—C. M.

1738. MAR. 22.

In consequence of a butcher’s dog going mad, and biting some others of her species, the magistrates of Edinburgh ordered the slaughter of all the butchers’ dogs in the city, and, commanding the seclusion of all other dogs whatsoever, put a shilling on the head of every one which should be found abroad. There then took place a crusade against the canine species, which seems to have been nearly the sole Scottish incident reported in London for the year. ‘The street cadies went very early into obedience to this edict; for

APR. 7.

the drum had scarce gone round to intimate the same, when they fell a-knocking on the head all suspicious or ill-affected curs, some of which they hanged on sign-posts, &c.; and with difficulty could they be restrained from killing the dogs that lead the blind about the streets, or attacking the ladies with their lap-dogs. A detachment of the City Guard was ordered down to the butcher-market, when they made very clean havoc of all the dogs there. Saturday, at noon, the town-officers being provided with large oaken clubs, went a dog-hunting, and killed every cur they could see or hear of; so that nothing was to be seen but chasing, hacking, and slashing, or heard other than the lamentation of butchers' wives, &c., for the loss of *Credit, Honesty, Turk, Twopenny, Cæsar, &c.*'

Three days later, the magistrates of Leith ordered all the dogs of their town to be put to death. Accordingly, the curs were driven into the harbour, and drowned, or else knocked on the head. 'Several gentlemen and others,' it is reported, 'have sent off their dogs to the country, and a certain writer has despatched his favourite *Tipsy* to Haddington in a cloak-bag. Patrick Kier in Multries-hill having tied up his dog, the beast gnawed the rope, and getting loose, rushed into the room on his master, and bit him severely. The dog was immediately killed, and Mr Kier carried to the sea and dipped.'—C. M.

Lord Lovat having occasion at this time to travel from his house of Beaufort, in Inverness-shire, to Edinburgh, with his two daughters, made an effort to get his coach ready, and, after two or three days spent in its repair, set out on his journey. Passing through Inverness without stopping, he came the first night to Corriebrough. To pursue his own narrative, as given in a letter to a friend:^[772] 'I brought my wheel-wright with me the length of Aviemore, in case of accidents, and there I parted with him, because he declared that my chariot would go safe enough to London; but I was not eight miles from the place, when on the plain road, the axle-tree of the hind-wheels broke in two, so that my girls were forced to go on bare horses behind footmen, and I was obliged to ride myself, though I was very tender, and the day very cold. I came with that equipage to Ruthven late at night, and my chariot was pulled there by force of men, where I got an English wheel-wright and a smith, who wrought two days mending my chariot; and after paying very dear for their work, and for my quarters two nights, I was not gone four miles from Ruthven, when it broke again, so that I was in a miserable condition till I came to Dalnakeardach, where my honest landlord, Charles M'Glassian, told me that the Duke of Athole had two as good workmen at Blaire as were in the kingdom, and that I would get my chariot as well mended there as at London. Accordingly, I went there and stayed a night, and got my chariot very well mended by a good wright and a good smith. I thought then that I was pretty secure till I came to this place. I was storm-stayed two days at Castle Drummond by the most tempestuous weather of wind and rain that I ever remember to see. The Dutches of Perth and Lady Mary Drummond were excessively kind and civil to my daughters and to me, and sent their chamberlain to conduct me to Dumblain, who happened to be very useful to us that day; for I was not three miles gone from Castle Drummond, when the axle-tree of my fore-wheels broke in two, in the midst of the hill, betwixt Drummond and the bridge of Erdoch, and we were forced to sit in the hill, with a boisterous day, till Chamberlain Drummond was so kind as to go down to Strath, and bring wrights, and carts, and smiths to our assistance, who dragged us to the plain, where we were forced to stay five or six hours till there was a new axle-tree made, be that it was dark night before we came to Dumblain, which is but eight miles from Castle Drummond, and we were all much fatigued. The next day, we came to Lithgow, and the day after that we arrived here, so that we were twelve days on our journey by our misfortunes, which was seven days more than ordinary.'

1740. JULY 30.

1740.

'Friday [Jan. 7], died William Mackintosh of Borlum, Esq., aged upwards of 80 years of age. He has been prisoner in the Castle these 15 years for his accession to the Rebellion 1715.'—E. E. C.

1743. JAN. 10.

'On Thursday last [Jan. 13], died the Honourable Colonel John Erskine of Carnock. He was a True Old Whig.'—E. E. C.

JAN. 17.

‘Friday, the place of one of the Principal Clerks of this city was conferred on Mr William Forbes, writer, he paying, as a consideration for the same, in room of Mr Home deceased, £1410 sterling.’—*E. E. C.*

JAN. 17.

APR. 14.

‘Thursday last, died at Sanquhar, William Kelloch, aged 111 years. He served the town as one of their common officers 96 years, and his son, now living, has served in the same station 70 years. He was a very honest man, had his senses to the last, and never made use of spectacles.’—*E. E. C.*

‘Notwithstanding the late execution of Margaret Stewart for child-murder, yet we are told that two more new-born children have since been found dead, with marks of violence on them.’—*E. E. C.*

MAY 9.

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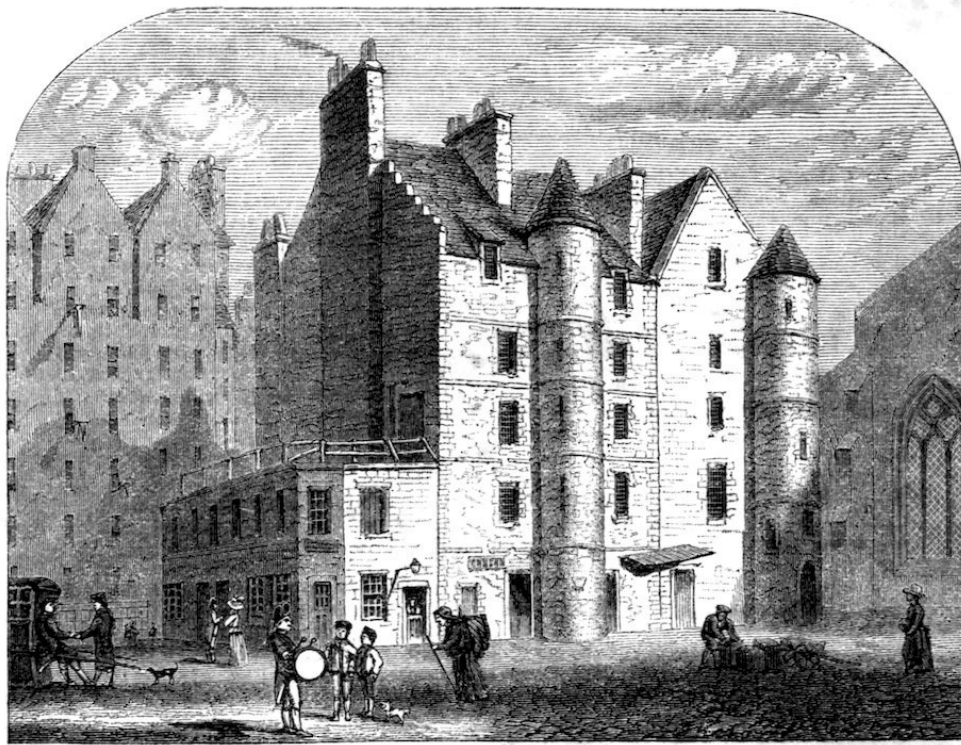
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THE END.

Edinburgh:
Printed by W. and R. Chambers.



Old Tolbooth, Edinburgh.

The state of the Leg-of-Mutton-School of verse^[242] in Scotland at the end of the seventeenth century, may be pretty fairly inferred from this specimen.]

1. A very animated review of these affairs will be found in Mr Burton's excellent *History*.

2. *Collection of Papers*, &c. London, Richard Janeway, 1689.

3. *Account of the Pope's Procession at Aberdene*, &c., reprinted in Laing's *Fugitive Poetry of the Seventeenth Century*.

4. *Biographia. Presbyteriana*, i. 221.

[5.](#) Under this title, a pamphlet, detailing the *outing* and *rabbling* of the clergy, was published in London in 1690.

[6.](#) Stewart's *Sketches of the Highlanders*, i. p. 99, note.

[7.](#) Wodrow's *Analecta*, i. 338.

[8.](#) *Life and Diary of Lieutenant-colonel Blackader of the Cameronian Regiment*. By Andrew Crichton. Edin. 1824.

[9.](#) Privy Council Record, MS., Gen. Register House, Edinburgh.

[10.](#) Home of Crossrig's *Diary*. Stevenson, Edinburgh, 1843.

[11.](#) *Domestic Annals of Scotland*, ii. 408, 432.

[12.](#) *Acts of Scottish Parliament*, ix. 12.

[13.](#) On the 12th February 1690, the Privy Council had under their notice the case of a man named Samuel Smith, who had been imprisoned in the Edinburgh Tolbooth for three years on a charge of theft, without trial, and ordained him to be set at large, there being 'no probation' against him.

[14.](#) Privy Council Record.

[15.](#) Privy Council Record, under February 22, 1698.

[16.](#) *Memoirs of Sir Ewen Cameron of Locheil* [by Drummond of Balhadics], p. 243.

[17.](#) *Memoirs of Sir Ewen Cameron of Locheil*, p. 254.

[18.](#) C. K. Sharpe in note to Law's *Memorials*.

[19.](#) Privy Council Record.

[20.](#) Justiciary Record.

[21.](#) Mrs Gibb seems to have been the person who managed the transmission or carrying between Edinburgh and Haddington.

[22.](#) Privy Council Record.

[23.](#) Privy Council Record.

[24.](#) Privy Council Record.

[25.](#) Privy Council Record.

[26.](#) Privy Council Record.

[27.](#) Privy Council Record.

[28.](#) Scots Acts, iii. 310.

[29.](#) Privy Council Record.

[30.](#) Contemporary broadsides.

[31.](#) *Domestic Annals*, ii. 384.

[32.](#) Privy Council Record.

[33.](#) Privy Council Record.

[34.](#) A picturesque glimpse of the Highland marauding of this period was obtained some years ago at second-hand from the memory of William Bane Macpherson, who died in 1777 at the age of a hundred. 'He was wont to relate that, when a boy of twelve years of age, being engaged as *buachaille* [herd-boy] at the *summering* [i. e., summer grazing] of Biallid, near Dalwhinnie, he had an opportunity of being an eye-witness to a *creagh* and pursuit on a very large scale, which passed through Badenoch. At noon on a fine autumnal day in 1689, his attention was drawn to a herd of black-cattle, amounting to about six score, driven along by a dozen of wild Lochaber men, by the banks of Loch Erroch, in the direction of Dalunchart in the forest of Alder, now Ardverikie. Upon inquiry, he ascertained that these had been "lifted" in Aberdeenshire, distant more than a hundred miles, and that the reivers had proceeded thus far with their booty free from molestation and pursuit. Thus they held on their way among the wild hills of this mountainous district, far from the haunts of the semi-civilised inhabitants, and within a day's journey of their home. Only a few hours had elapsed after the departure of these marauders, when a body of nearly fifty horsemen appeared, toiling amidst the rocks and marshes of this barbarous region, where not even a footpath helped to mark the intercourse of society, and following on the trail of the men and cattle which had preceded them. The troop was well mounted and armed, and led by a person of gentlemanlike appearance and courteous manners; while, attached to the party, was a number of horses carrying bags of meal and other provisions, intended not solely for their own support, but, as would seem from the sequel, as a ransom for the *creagh*. Signalling William Bane to approach, the leader minutely questioned him about the movements of the Lochaber men, their number, equipments, and the line of their route. Along the precipitous banks of Loch Erroch this large body of horsemen wended their way, accompanied by William Bane, who was anxious to see the result of the meeting. It bespoke spirit and resolution in those strangers to seek an encounter with the robbers in their native wilds, and on the borders of that country, where a signal of alarm would have raised a numerous body of hardy Lochaber men, ready to defend the *creagh*, and punish the pursuers. Towards nightfall, they drew near the encampment of the thieves at Dalunchart, and observed them busily engaged in roasting, before a large fire, one of the beeves, newly slaughtered.

'A council of war was immediately held, and, on the suggestion of the leader, a flag of truce was forwarded to the Lochaber men, with an offer to each of a bag of meal and a pair of shoes, in ransom for the herd of cattle. This offer, being viewed as a proof of cowardice and fear, was contemptuously rejected, and a reply sent, to the effect that the cattle, driven so far and with so much trouble, would not be surrendered. Having gathered in the herd, both parties prepared for action. The overwhelming number of the pursuers soon mastered their opponents. Successive discharges of firearms brought the greater number of the Lochaber men to the ground, and in a brief period only three remained unhurt, and escaped to tell the sad tale to their countrymen.'—*Inverness Courier*, August 17, 1847.

[35.](#) This post-boy appears to have been forty-four years old.

[36.](#) Lord Viscount Kingston was a cadet of the Winton family, and had delivered a Latin oration to Charles I., at his father's house of Seton, in 1633.

[37](#). In the parliament which sat down in September, robbing the post-packet was declared to be ‘robbery,’ to be punished with death and confiscation of movables.—*Scots Acts*.

[38](#). Privy Council Record.

[39](#). Privy Council Record.

[40](#). Privy Council Record. The privileges of Mr Hamilton were confirmed by the Estates in June 1693.

[41](#). Privy Council Record.

[42](#). Privy Council Record.

[43](#). A portrait of the house, and some particulars of the family, are to be found in Robert Stuart’s *Views and Notices of Glasgow in Former Times*, 4to, 1847.

[44](#). This must have been Lady Raeburn (Anne Scott of Ancrum).

[45](#). Probably his sister Isobel’s husband, described in Burke as Captain Anderson.

[46](#). *Acts of General Assembly*, 1690, p. 18.

[47](#). See page [10](#).

[48](#). *Melville Correspondence*, p. 150. The parliament, on the 18th July 1690, gave a warrant for subjecting one Muir or Ker to the torture, in order to expiscate the truth regarding the murder of an infant, of which he was vehemently suspected.

[49](#). Mr Burton, in his *History of Scotland from 1689 to 1748*, gives the following account of this nobleman: ‘The Earl of Crawford, made chairman of the Estates and a privy councillor, was the only statesman of the day who adopted the peculiar demeanour and scriptural language of the Covenanters. It is to him that Burnet and others attribute the severities against the Episcopal clergymen, and the guidance of the force brought to bear in the parliament and Privy Council in favour of a Presbyterian establishment.’

[50](#). *Melville Correspondence*. Privy Council Record.

[51](#). Privy Council Record.

[52](#). Privy Council Record.

[53](#). Privy Council Record.

[54](#). Privy Council Record.

[55](#). Burt’s *Letters*, i. 128.

[56](#). A phrase of the time, found in the Privy Council Record.

[57](#). John Callander, master-smith, petitioned the Privy Council in June 1689, regarding smith-work which he had executed for Edinburgh and Stirling Castles, to the amount of eleven hundred pounds sterling, whereof, though long due, he had ‘never yet received payment of a sixpence.’ On his

earnest entreaty, three hundred pounds were ordered to be paid to account. On the ensuing 23d of August, he was ordained to be paid £6567, 17s. 2d., after a rigid taxing of his accounts, Scots money being of course meant. Connected with this little matter is an anecdote which has been told in various forms, regarding the estate of Craigforth, near Stirling. It is alleged that the master-smith, failing to obtain a solution of the debt from the Scottish Exchequer, applied to the English treasury, and was there so fortunate as to get payment of the apparent sum in English money. Having out of this unexpected wealth made a wadset on the estate of Craigforth, he ultimately fell into the possession of that property, which he handed down to his descendants.^[58] John Callander was grandfather of a gentleman of the same name, who cultivated literature with assiduity, and was the editor of two ancient Scottish poems—*The Guberlunzie Man*, and *Christ's Kirk on the Green*. This gentleman, again, was grandfather to Mrs Thomas Sheridan and Lady Graham of Netherby.

^[58] *Sir James Campbell's Memoirs. A Week at the Bridge of Allan*, by Charles Rogers, 1853, p. 334.

^[59] Justiciary Records.

^[60] Privy Council Record.

^[61] Privy Council Record.

^[62] Record of Convention of Burghs, MS. in Council Chamber, Edinburgh.

^[63] Anderson's Prize Essay on the State of the Highlands in 1745, p. 95.

^[64] *New Stat. Acc. of Scotland*: Ross, p. 220.

^[65] Privy Council Record.

^[66] Dr John Brown: *Locke and Sydenham*, &c., 1858, p. 457.

^[67] The second edition of Tippermalloch was published in 1716, containing Dr Pitcairn's method of curing the small-pox. It professes to be superior to the first edition, being 'taken from an original copy which the author himself delivered to the truly noble and excellent lady, the late Marchioness of Athole, and which her Grace the present duchess, a lady no less eminent for her singular goodness and virtue than her high quality, was pleased to communicate to us and the public.'

^[68] *Analecta Scotica*, ii. 176.

^[69] Privy Council Record.

^[70] Crossrig's *Diary*.

^[71] Kilravock Papers, Spald. Club, p. 388.

^[72] Privy Council Record.

^[73] Privy Council Record.

^[74] *Life of Peden, Biogr. Presbyteriana*, i. 112.

^[75] Privy Council Record.

[76.](#) *Domestic Annals of Scotland*, ii. 29.

[77.](#) Criminal Proceedings, a Collection of Justiciary Papers in Library of the Society of Antiquaries of Scotland.

[78.](#) Macdonald of Glencoe bore the subordinate surname of M'Ian, as descended from a noted person named Ian or John.

[79.](#) Addressed to Sir Thomas Livingstone, commander-in-chief of the forces in Scotland.

[80.](#) See *Papers Illustrative of the Political Condition of the Highlands from 1689 to 1696*. Maitland Club. 1845.

[81.](#) Privy Council Record.

[82.](#) Privy Council Record.

[83.](#) This was the father of Mr Andrew Drummond, the founder of the celebrated banking-house in the Strand.

[84.](#) Privy Council Record.

[85.](#) From papers in possession of John Hall Maxwell, of Dargavel, Esq.

[86.](#) Privy Council Record. (See onward, under December 31, 1692, and July 13, 1697.)

[87.](#) Privy Council Record.

[88.](#) Fountainhall's *Decisions*, i. 693.

[89.](#) Privy Council Record.

[90.](#) Fountainhall's *Decisions*, i. 693.

[91.](#) *Domestic Annals of Scotland*, ii. 326.

[92.](#) *Mem. of John Earl of Stair by an Impartial Hand*, p. 7.

[93.](#) Murray's *Literary Hist. of Galloway*, p. 155.

[94.](#) Privy Council Record.

[95.](#) Minutes of Merchant Company, MS. in possession of the Company.

[96.](#) Fountainhall's *Decisions*, i. 518, 564.

[97.](#) *Ibid.*, i. 525.

[98.](#) *Ibid.*

[99.](#) Privy Council Record.

[100.](#) Privy Council Record.

[101.](#) Privy Council Record.

[102.](#) Privy Council Record.

[103.](#) Privy Council Record.

[104.](#) Privy Council Record.

[105.](#) In July 1695, there was a further act 'anent burying in Scots linen,' ordaining that none should be used for sepulchral purposes above twenty shillings Scots per ell, and also commanding that the nearest elder or deacon of the parish, with one or two neighbours, should be called by the friends of deceased persons to see that the shroud was in all respects conform to the acts thereanent.

[106.](#) *Wodrow Pamphlets*, Adv. Lib., vol. 115.

[107.](#) Privy Council Record.

[108.](#) *Acts of Scottish Parliament*, ix. 429.

[109.](#) Privy Council Record.

[110.](#) *Acts of Scottish Parliament*, ix. 420.

[111.](#) See *Domestic Annals of Scotland*, ii. 398.

[112.](#) Privy Council Record.

[113.](#) *Letter from a Gentleman in the Country to his Friend at Edinburgh*, &c. Edin. 1696.

[114.](#) Privy Council Record.

[115.](#) Fountainhall's *Decisions*, i. 590.

[116.](#) Privy Council Record.

[117.](#) Privy Council Record.

[118.](#) Privy Council Record.

[119.](#) *Scottish Journal*, ii. 200.

[120.](#) The troubles from the meeting-houses at Coldingham and two neighbouring parishes, led to their being entirely suppressed by the arm of the government in March 1700 [q. v.]

[121.](#) The above, and some other curious extracts from the parish register of Coldingham, are given in an interesting volume, entitled *History of the Priory of Coldingham*. By William King Hunter. Edinburgh, 1858.

[122.](#) *Analecta*, ii. 250. Wodrow tells us that Lady Dundee had been very violent against the Presbyterians, and 'used to say she wished that, that day she heard a Presbyterian minister, the house might fall down and smother her, which it did.'

[123.](#) *Analecta Scotica*, i. 187. Wodrow's *Analecta*, ii. 250.

[124.](#) William Livingstone survived his wife nearly forty years. In the *Caledonian Mercury* for February 6, 1733, is this paragraph: ‘We are assured private letters are in town, giving account, that on the 12th of last month, the Right Hon. the late Viscount Kilsyth died at Rome, in an advanced age, in perfect judgment, and a Christian and exemplary resignation.’

[125.](#) Privy Council Record.

[126.](#) *A Summer’s Divertisement of Mathematical and Mechanical Curiosities, being an Account of the Things seen at the House of Curiosities, near Grange Park.* Edinburgh: James Watson. 1695.

[127.](#) Nicolas’s spelling is here given *literatim*.

[128.](#) Privy Council Record.

[129.](#) From ‘a double of the oath’ in the *Kilravock Papers*, Spald. Club publication, p. 387.

[130.](#) Fountainhall’s *Decisions*, i. 629.

[131.](#) Privy Council Record.

[132.](#) ‘James Peedie of Roughill and John Anderson of Dowhill were the first merchants who brought a loading of cherry-sack into this city.’—*M’Ure’s Hist. Glasg.*, p. 250.

[133.](#) Arnot’s *Criminal Trials*, p. 163.

[134.](#) Chalmers’s *Life of Ruddiman*, p. 30. Bower’s *Hist. Univ. of Edinburgh*, ii. 153.

[135.](#) Privy Council Record.

[136.](#) Privy Council Record.

[137.](#) These legends appear to have been intended to read as follows: ‘Three years thou shalt have to repent, and note it well. Wo be to thee, Scotland! Repent and take warning, for the doors of heaven are already barred against thee. I am sent for a warning to thee, to flee to God. Yet troubled shall this man be for twenty days and three. Repent, repent, Scotland, or else thou shalt’——.

[138.](#) On the 7th of January 1696, the Privy Council gave licence to George Mossman, stationer in Edinburgh, to ‘print and sell a book entitled *A True Relation of an Apparition, Expressions, and Actings of a Spirit which infested the House of Andrew Mackie, in Ring-croft of Stocking, in the Parish of Rerrick, &c.*,’ with exclusive right of doing so for a year.

[139.](#) Privy Council Record.

[140.](#) *Caledonian Mercury*, Nov. 20, 1732.

[141.](#) Privy Council Record.

[142.](#) From *Information for his Majesty’s Advocate, &c., against James Edmonstoun of Newton*.

[143.](#) Maclaurin’s *Criminal Cases*, p. 10.

[144.](#) *Introductions, &c., to Waverley Novels*, i. 255.

[145.](#) *Acts of Scot. Par.*, ix. 452.

[146.](#) Hugh Miller's *Sketch-book of Popular Geology*, pp. 13, 14.

[147.](#) Privy Council Record.

[148.](#) A few of the subscriptions are here subjoined: For £1000 each, the Faculty of Advocates, John Anderson of Dowhill, Provost of Glasgow, the Earl of Annandale; Alexander Brand, merchant in Edinburgh; James Balfour, merchant in Edinburgh; George Clerk, merchant in Edinburgh; Daniel Campbell, merchant in Glasgow; Sir Robert Dickson of Sorn-beg, Andrew Fletcher of Salton, the town of Glasgow, John Graham younger of Dougalston, the Earl of Haddington, Lord Yester, Sir David Home of Crossrig, Sir John Home of Blackader, Sir Alexander Hope of Kerse, William Hay of Drumelzier, Sir James Hall of Dunglass, Lockhart of Carnwath, William Livingstone of Kilsyth; George Lockhart, merchant in Glasgow; the Merchant House of Glasgow, the Marquis of Montrose, Sir John Maxwell of Pollock, Sir Patrick Murray of Auchtertyre, Francis Montgomery of Giffen, William Morison of Prestongrange, William Nisbet of Dirleton, Sir James Primrose of Carrington, the Countess of Rothes, the Countess of Roxburgh, Lord Ross, Lord Ruthven, William Robertson of Gladney, the Earl of Sutherland, the Earl of Southesk, Viscount Strathallan, Viscount Stair, Sir John Swinton, Sir Francis Scott of Thirlstain, Sir John Shaw of Greenock; Thomas Spence, writer in Edinburgh; John Spreul, *alias* Bass John, merchant in Glasgow; the Marquis of Tweeddale, Viscount Tarbat; Robert Watson, merchant in Edinburgh; George Warrender, merchant there; and William Wardrop, merchant in Glasgow: for £1200, the Merchant Company of Edinburgh: for £1300, James Pringle of Torwoodlee: for £1500, the Earl of Argyle, William Lord Jedburgh, and Patrick Thomson, treasurer of Glasgow: for £2000, Mr Robert Blackwood, merchant in Edinburgh; Sir Robert Chiesley, Lord Provost of Edinburgh, John Lord Glenorchy, Lord Basil Hamilton, the Earl of Hopetoun, the Earl of Leven; William Menzies, merchant in Edinburgh; the town of Perth, Sir William Scott of Harden: for £3000, Lord Belhaven, the Good Town of Edinburgh, the Duchess of Hamilton, the Duke of Queensberry, the Easter Sugarie of Glasgow, and Sir John Stuart of Grandtully.

[149.](#) Scots Acts, *sub anno* 1695.

[150.](#) [Sinclair's] *Statistical Account of Scotland*, vi. 586.

[151.](#) In April 1703, John Dunbabbine, an Englishman, who in his own country had for several years followed the trade of pin-making 'to the satisfaction of all those with whom he had any dealing,' was now inclined to set up a work at Aberdeen, which he thought would be 'very much for the advantage of the kingdom [of Scotland] and all the inhabitants thereof.' All he required previously was his work being endowed with the privileges and immunities of a manufactory; which the Privy Council readily granted.

[152.](#) Privy Council Record.

[153.](#) Mr James Foulis and Mr John Holland are probably identical with the persons of the same names who received some encouragement from the parliament in April 1693, for the setting up of a manufacture of *Colchester Baises* in Scotland. See *Domestic Annals*, under that date.

[154.](#) See a pamphlet by Mr Holland, published in 1715, under the title of *The Ruine of the Bank of England and all Publick Credit inevitable*.

[155.](#) Exchange was not dealt in by the Bank of England, any more than the Bank of Scotland, during many of its earlier years.

[156.](#) *Account of the Bank of Scotland*, published in 1728.

[157.](#) *Acts of Scottish Parliament*, ix. 465.

[158.](#) *Culloden Papers*, Introduction, p. xlv.

[159.](#) Privy Council Record.

[160.](#) Patrick Walker's *Life of Donald Cargill*, *Biog. Pres.*, ii. 24.

[161.](#) Patrick Walker.

[162.](#) Ibid.

[163.](#) Privy Council Record.

[164.](#) Privy Council Record.

[165.](#) We have no means of knowing if this concert was connected with the enterprise of Beck and his associates, noticed under January 10, 1694. The name of Beck does not occur in the list of performers on this occasion.

[166.](#) W. Tytler, *Trans. Soc. of Antiq. of Scotland*, i. 506.

[167.](#) Ramsay's *Scribblers Lashed*.

[168.](#) Through her, as daughter of William first Duke of Queensberry, her descendant, the Earl of Wemyss, succeeded in 1810 to large estates in Peeblesshire and the earldom of March.

[169.](#) Privy Council Record.

[170.](#) Privy Council Record.

[171.](#) See under Feb. 2, 1693.

[172.](#) Privy Council Record.

[173.](#) Ibid.

[174.](#) Privy Council Record.

[175.](#) Privy Council Record.

[176.](#) Printed informations in the case. Justiciary Records.

[177.](#) *Acts of Scot. Parliament*.

[178.](#) Privy Council Record.

[179.](#) The authority for this is a very bad one—the scurrilous book called *Scots Presbyterian Eloquence Displayed*; but on such a point, with support from other quarters, it may be admitted.

[180.](#) Calamy's *Account of his Own Life*.

[181.](#) Watson's *Collection of Scots Poems*, 1709.

[182.](#) Privy Council Record.

[183.](#) A tolerably full detail of Mr Hepburn's persecutions is given in Struthers's *Hist. Scot. from the Union to 1748*. 2 vols.

[184.](#) Privy Council Record.

[185.](#) Scots Acts, vol. iii.

[186.](#) See *Domestic Annals*, under date August 24, 1669.

[187.](#) Privy Council Record.

[188.](#) Privy Council Record.

[189.](#) Records of Parliament and Privy Council.

[190.](#) *Acts of Scot. Parl.*, xi. 82.

[191.](#) Ibid.

[192.](#) *Acts of Scot. Parl.*, xi. 111.

[193.](#) Privy Council Record.

[194.](#) Privy Council Record.

[195.](#) The above account of the prosecution of Aikenhead is derived from Howell's *State Trials*, in which there has been printed a collection of documents on the case, collected by John Locke.

[196.](#) Preface to *Two Sermons, &c.*, by Mr Lorimer.

[197.](#) Foun., *Decisions*.

[198.](#) Privy Council Record, under various dates.

[199.](#) Signed at Glasgow, December 31, 1696.

[200.](#) *Domestic Annals*, sub July 9, 1668, vol ii. p. 321.

[201.](#) Privy Council Record.

[202.](#) Justiciary Record.

[203.](#) *New Stat. Acc. of Scotland*, iv. Wigton, 226.

[204.](#) Criminal Proceedings, &c., MS., in possession of Ant. Soc. Scot.

[205.](#) *New Stat. Acc. Scotland*, ut supra.

[206.](#) *Decisions*, i. 522.

[207](#). Privy Council Record.

[208](#). *A Voyage to St Kilda, &c.*, by M. Martin, Gent. 4th ed., 1753.

[209](#). Macaulay's *History of St Kilda*, 1766, p. 241.

[210](#). Privy Council Record.

[211](#). Ibid.

[212](#). Privy Council Record.

[213](#). Privy Council Record.

[214](#). *Letters from North of Scotland*, ii. 134 (2d ed.).

[215](#). *Edin. Courant*, May 1720.

[216](#). *Letters, &c.*, i. 135.

[217](#). Arnot's *Crim. Trials*, Anderson's *Hist. Fam. Fraser*, Carstares's *State Papers*.

[218](#). Privy Council Record.

[219](#). Privy Council Record.

[220](#). Privy Council Record.

[221](#). Fountainhall's *Decisions*, ii. 5.

[222](#). Privy Council Record.

[223](#). Privy Council Record.

[224](#). *Acts of General Assembly*.

[225](#). *Wodrow Pamphlets*, Adv. Lib.

[226](#). Under extremity of suffering during the dearth, in September 1699, one David Chapman, belonging to Crieff, broke into a lockfast place, and stole some cheese, a sugar-loaf, and about four shillings sterling of money. His sole motive for the crime, as he afterwards pleaded, was the desire of relieving his family from the pains of want. Apprehended that day, he confessed the crime, and restored the spoil; yet, being tried by the commissioner of justiciary for the Highlands, he was condemned to death.

On a petition, the Privy Council commuted the sentence to scourging through the town of Perth, and banishment to the plantations.[\[228\]](#)

[227](#). Published in 1702.

[228](#). Privy Council Record.

[229](#). *Coltness Collections*.

[230.](#) *Polit. Works of A. Fletcher*, edit. 1749, p. 85.

[231.](#) Privy Council Record. Fountainhall's *Decisions*.

[232.](#) *Scots Acts*, iii. 628.

[233.](#) [Leslie's] *Survey of the Province of Moray*, p. 280.

[234.](#) The father of the present Earl of Stair, Sir John Dalrymple, was born in 1726, and might have heard these particulars from his grand-uncle, the second President Dalrymple, who died in 1737. Sir John's *Memoirs of Great Britain* are here followed, therefore, as the best authority available.

[235.](#) Dalrymple's *Memoirs*.

[236.](#) *Memoirs of John Macky, Esq.*, 1733, p. 205.

[237.](#) *Acts of S. Parl.*, x. 136. Wodrow's *History*, i. 320.

[238.](#) Privy Council Record.

[239.](#) *Ibid.*

[240.](#) This gentleman, who became Earl of Hopetoun, first of the title, was married, on the 31st August 1699, to 'the very vertuous Lady Henrietta Johnston,' daughter of the Earl of Annandale. A congratulatory poem on the occasion contains the following passage:

May Hopetoun flourish still with Lady Hen-
Rietta, and have a stock of good children.^{[\[241\]](#)}

[241.](#) *Wodrow Pamphlets*, Adv. Lib.

[242.](#) See *Blackwood's Magazine*, ix. 345.

[243.](#) Privy Council Record.

[244.](#) *Ibid.*

[245.](#) Of this fact, the use of the word *siller* for money generally in Scotland is a notable memorial.

[246.](#) *Account of Bank of Scotland*, p. 6.

[247.](#) *Letter of Earl of Argyle, Carstares Papers*, 458.

[248.](#) James Donaldson seems to have been engaged in the poetic elegy trade; that is, the writing of deplorations in verse on great personages for sale in the streets: see an example of his verse of this description under November 1695. He seems also to have been the author of *Husbandry Anatomised, or an Enquiry into the Present Manner of Tilling and Manuring the Ground in Scotland*, 12mo, 1697; and of *A Picktooth for Swearers, or a Looking-glass for Atheists and Profane Persons, &c.*, small 4to, 1698. See *Scottish Elegiac Verses, with Notes*, 1847.

[249.](#) Privy Council Record.

[250.](#) Ibid.

[251.](#) Privy Council Record.

[252.](#) Privy Council Record.

[253.](#) Privy Council Record.

[254.](#) The Lord Rankeillor who assisted in giving things this favourable turn was paternal grandfather of Dr John Hope, well known towards the close of the last century as Professor of Botany in the Edinburgh University.

[255.](#) Quoted in *Scots Magazine*, Jan. 1810, 'from a collection of pamphlets in the possession of Mr Blackwood.'

[256.](#) Privy Council Record.

[257.](#) The irascible temper of Fletcher is well known, and his slaughter of an associate in the Monmouth expedition is a historical fact. A strange story is told of him in Mrs Calderwood of Polton's account of her journey in Holland (*Coltness Collections*). 'Salton,' she says, 'could not endure the smoke of tobacc, and as he was in a night-scoot [in Holland] the skipper and he fell out about his forbidding him to smoke. Salton, finding he could not hinder him, went up and sat on the ridge of the boat, which bows like an arch. The skipper was so contentious that he followed him, and on whatever side Salton sat, he put his pipe in the check next him, and whiffed in his face. Salton went down several times and brought up stones in his pocket from the ballast, and slipped them into the skipper's pocket that was next the water, and when he found he had loadened him as much as would sink him, he gives him a shove, so that over he hirsled. The boat went on, and Salton came down among the rest of the passengers, who probably were asleep, and fell asleep among the rest. In a little time, bump came the scoot against the side, on which they all damned the skipper; but, behold, when they called, there was no skipper; which would breed no great amazement in a Dutch company.'

[258.](#) Privy Council Record.

[259.](#) Privy Council Record.

[260.](#) Privy Council Record.

[261.](#) Ibid.

[262.](#) *Criminal Proceedings*, MS. Ant. Soc.

[263.](#) Privy Council Record.

[264.](#) *Act. Parl.* x. 284.

[265.](#) Letter of Mr Duncan Forbes of Culloden (father of the President). *Culloden Papers*.

[266.](#) *Memoirs of Elizabeth West*. Edinburgh, 1733.

[267.](#) D. Forbes's Letter, *ut supra*.

[268.](#) *Treatise on the Sanctification of the Lord's Day.*

[269.](#) Maitland's *History of Edinburgh*, p. 202.

[270.](#) *Elizabeth West.*

[271.](#) *Coltness Collections.*

[272.](#) *Historical Account of the Bank of Scotland*, 4to, p. 6.

[273.](#) *Diary of David Hume of Crossrig*, p. 69.

[274.](#) *Account of Bank of Scotland*, p. 7.

[275.](#) Privy Council Record.

[276.](#) As to the troubles from the Coldingham meeting-house, see under March 24, 1694.

[277.](#) Privy Council Record.

[278.](#) A *quaigh* or drinking-cup.

[279.](#) Alluding to a controversy between two of the Aberdeen professors on a question which we have seen revived in great fervour in our own day.

[280.](#) Privy Council Record.

[281.](#) Alexander Duff was descended from a race of gentry in Morayshire—the Duffs of Muldavit—and it stems to have been by saving, prudence, and good management that he was enabled to increase his share of the family possessions, and so far advance the prospects of his house, that it was ennobled in the next generation, and now ranks among the eight or ten families of highest wealth in Scotland. There is a characteristic story about Braco surveying one day an extensive tract of country containing several tolerable lairdships, when, seeing the houses in various directions all giving out signs of being inhabited by their respective families, he said: 'A' that reek sall come out o' ae lum yet!' and he made good his word by ultimately buying up the whole of that district.

[282.](#) The above narration appeared in the *Dumfries Journal* (newspaper).

[283.](#) The system of *culreach* or repledgiation was one of great antiquity in Scotland, but last heard of in the Highlands. So lately as 1698, George Earl of Cromarty obtained a charter, giving him this among other powers: If any of the indwellers and tenants of his lands should happen 'to be arrested or attached before any judge or judges, spiritual or temporal, in any time coming, to repledge and call them back to the privilege and liberty of the said court of bailiery and regality of Tarbat.'

[284.](#) Documents of the process in Spalding Club Miscellany, iii. 175.

[285.](#) Burns's fine ode on Macpherson will be remembered:

Sae rantingly, sae wantonly,
Sae dantly gaed he,
He played a spring and danced it round,
Beneath the gallows tree.

There was, however, an earlier celebration of the robber's hardihood on a broadside, a copy of which will be found in Herd's *Collection of Scottish Songs* (1776). See also a curious volume, entitled *Scottish Ballads and Songs* (Edinburgh, T. G. Stevenson, 1859).

A long two-handed sword is shewn in Duff House, the seat of the Earl of Fife, as that of Macpherson. It is a formidable weapon, 4 feet 3 inches long, and having a wavy-edged blade. It is obviously a mediæval weapon, yet, of course, may have been used in a later age.

March 4, 1701.—There was a petition to the Privy Council from Peter and Donald Brown, prisoners in the Tolbooth of Banff, representing that they had been condemned solely as 'repute vagabond Egyptians,' to be hanged on the 2d April. They claimed a longer day, 'either for their relief or due preparation;' and the Lords granted reprieve till the second Wednesday of June.

[286.](#) *Edinburgh Encyclopædia*, article 'Steam-engine.'

[287.](#) *Acts of S. Parl.*, x. 267.

[288.](#) Privy Council Record.

[289.](#) See a more remarkable case of the disappearance of a gentleman under March 1709.

[290.](#) See account for 'Mrs Margaret's wadding-cloaths,' given in full in the *Edinburgh Magazine* for October 1817.

[291.](#) Memoir by Elizabeth Mure of Caldwell [a lady who died in 1795, at the age of eighty-one], *Caldwell Papers*, i. 264.

[292.](#) Privy Council Record.

[293.](#) Privy Council Record.

[294.](#) Fountainhall's *Decisions*, ii.

[295.](#) It was an old mode of advertisement in country towns, down to the author's early years, to send an old woman through the streets with a wooden dish and a stick, to *clap* or beat upon it so as to gather a crowd, before whom she then gave her recital.

[296.](#) *Analecta*, i. 10.

[297.](#) Sir John had entered at the bar in the preceding year, and it is not improbable that he came into acquaintance with Steuart in a professional capacity.

[298.](#) Copy of the sentence printed in Wilson's *Prehistoric Annals of Scotland*, from one in the possession of the late Alexander Macdonald, Esq.

[299.](#) That is, the eighteenth century.

[300.](#) [Sinclair's] *Stat. Acc. of Scot.*, xviii. 578.

[301.](#) Collection of papers in Oxenford Castle.

[302.](#) *Ed. Ev. Courant*, Nov. 21, 1743.

[303.](#) Alluding, probably, to the affair of the Impostor Roderick. See under June 1, 1697.

[304.](#) *Copy of a Letter anent a Project for Erecting a Library in every Presbytery, or at least County, in the Highlands, from a Reverend Minister of the Scots Nation, now in England, to a Minister in Edinburgh.* Edinburgh, 1702. Small 4to, 6 leaves.

[305.](#) Wodrow Pamphlets, vol. xciii.

[306.](#) *Analecta Scotica*, ii. 366; iv. 235.

[307.](#) Anderson's *Prize Essay on the State of Knowledge in the Highlands*.

[308.](#) See under October 6, 1697.

[309.](#) A district on the south side of Loch Ness, in Inverness-shire.

[310.](#) Privy Council Record.

[311.](#) The daughter of the late peer.

[312.](#) Privy Council Record.

[313.](#) Mr Campbell had, in 1709, an action at law against Mungo Campbell of Netherplace, for recovery of fifty pounds which he charged for attendance upon him, and performance of the operation of lithotomy. It was represented on the other side that he had done his work with an unskilfulness which resulted in some most distressing injuries to his patient, and the Lords held that the seventeen guineas already paid was guerdon sufficient.—Fountainhall's *Decisions*, ii. 510.

[314.](#) Dalyell's *Musical Memoirs of Scotland*, p. 132.

[315.](#) *Edinburgh Evening Courant*.

[316.](#) *Edinburgh Evening Courant*, December 30, 1725.

[317.](#) *Edinburgh Evening Courant*.

[318.](#) From a description of the presbytery of Penpont, App. to Symson's *History of Galloway*. Edin. 1823.

[319.](#) A fairy legend connected with the Dow Loch, and illustrating the superstitious feeling with which it was regarded, has been communicated by a friend:

‘The farmer of Auchen Naicht, near the Dow Loch, was not in opulent circumstances. One day, during the pressure of some unusual calamity, he noticed, to his surprise, a cow browsing tranquilly by the side of the lake, and, on nearer inspection, found it to be a beautiful animal of large size, and perfectly white. She allowed herself to be driven home by him without resistance, and soon commended herself greatly to his wife by her tameness and exceeding opulence in milk. The result of her good qualities, and also her fruitfulness, was that a blessing seemed to have come with her to his house. He became rich in the possession of a herd of twenty fine cattle, all descended from the original White Cow.

‘After some years had elapsed, and all his other cattle had been used up, the goodman had to consider how he was to provide a winter's “mart” for his family—that is, a bullock to be killed and salted according to the then universal practice of the country. Should it be the mother or one of her comely daughters? The former was still in fine condition, highly suitable for the purpose; but then the

feeling connected with her—should they sacrifice in this manner the source of all their good-fortune? A consideration that she might fail in health, and be lost to them, determined them to make her the mart of the year. It is said that, on the morning which was to be her last, she shewed the usual affection to her mistress, who came to bid her a mournful farewell; but when the butcher approached with his rope and axe, she suddenly tore up the stake, and broke away from the byre, followed by the whole of her progeny. The astonished goodman and his wife were only in time to see the herd, in which their wealth consisted, plunge into the waters of the Dow Loch, from which they never re-emerged.'

[320](#). Privy Council Record.

[321](#). His lordship died in 1714.

[322](#). Privy Council Record.

[323](#). *Caledonia*, i. 881, *note*.

[324](#). Arnot's *Hist. Edinburgh*, 4to, p. 195. It would appear that the combativeness of the cock furnished in those days no insignificant part of the amusements of the English people. We find in the London newspapers of March 1720, the following paragraph, speaking strongly of the prevalence of the sport: 'On the last Monday of the month, there will be kept a famous *cocking* betwixt the gentlemen of Shropshire and Cheshire, at Mr George Smith's, at the Red Lion, at Whitchurch.'

[325](#). *Reliquiæ Scoticæ* (Edin. 1828).

[326](#). [Sinclair's] *Stat. Acc. Scot.* iii. 378.

[327](#). This tourist's manuscript, after lying for many years in the possession of Mr Johnes of Hafod, was printed by Mr Blackwood of Edinburgh in 1818.

[328](#). *Dom. Ann. of Scotland*, ii. 494.

[329](#). *Ibid.* ii. 282.

[330](#). Privy Council Record.

[331](#). A term expressive of a tough, lean person.

[332](#). *Domestic Annals of Scotland*, i. 68.

[333](#). *Ibid.* ii. 318.

[334](#). *Ibid.* ii. 401.

[335](#). *Letters of Lady Margaret Burnett*, Edinburgh, 4to, 1828, p. 63.

[336](#). *Acts of Scot. Parl.*, xi. 66, 221.

[337](#). EDINBURGH, *December 6, 1725*.—'Died Alexander Nisbet of that Ilk, so well known by being author of several elaborate Treatises of Heraldry, one of which treatises is now at the press, and will be shortly published, the author having finished the manuscript long before his death.'—*Edinburgh Evening Courant*.

[338](#). *Acts of Scot. Parl.*, xi. 85.

[339](#). Fountainhall's *Decisions*, ii. 203.

[340](#). By Andrew Bell in Cornhill, London.

[341](#). Boswell. *Tour to the Hebrides*, p. 401.

[342](#). Anderson's *Hist. Fam. of Fraser*, p. 110.

[343](#). *Miscellanies*, p. 189.

[344](#). John Brand, in his *Description of Orkney and Zetland*, 1703, says, with reference to the population of the latter group of islands: 'Not above forty or fifty years ago, almost every family had a Brownie, or evil spirit so called, which served them, to whom they gave a sacrifice for his service; as, when they churned their milk, they took a part thereof, and sprinkled every corner of the house with it for Brownie's use; likewise, when they brewed, they had a stone, which they called *Brownie's Stone*, wherein there was a little hole, into which they poured some wort for a sacrifice to Brownie. My informer, a minister in the country, told me that he had conversed with an old man, who, when young, used to brew, and sometimes read upon his Bible, to whom an old woman in the house said, that Brownie was displeased with that book he read upon, which if he continued to do, they would get no more service of Brownie. But he being better instructed from that book, which was Brownie's eyesore, and the object of his wrath, when he brewed he would not suffer any sacrifice to be given to Brownie, whereupon the first and second brewings were spilt, and for no use; though the wort worked well, yet in a little time it left off working, and grew cold; but of the *third* browst or brewing he had ale very good, though he would not give any sacrifice to Brownie, with whom they were no more troubled. I had also from the same informer, that a lady in Unst, now deceased, told him that when she first took up house, she refused to give a sacrifice to Brownie; upon which the first and second brewings misgave, but the third was good, and Brownie not being regarded nor rewarded, as formerly he had been, abandoned his wonted service. They also had stacks of corn called *Brownie's Stacks*, which, though they were not bound with straw-ropes, or any way fenced, as other stacks use to be, yet the greatest storm of wind was not able to blow any straw off them.

'Now, I do not hear of any such appearances the devil makes in these isles, so great and many are the blessings which attend a Gospel dispensation.'

[345](#). Harrington's *Nugæ Antiquæ*, by Park, 2 vols. 1804, i. 369.

[346](#). *Memoirs of Sir Ewen Cameron of Locheil*, 4to (Abbotsford Club), 1842, p. 24.

[347](#). This investigation occurred in the year 1665.

[348](#). Identical with Charles Hope of Hopetoun introduced under December 22, 1698.

[349](#). Original document quoted and abridged in a volume called *The Court of Session Garland*. Edinburgh: T. G. Stevenson. 1839.

[350](#). *Analecta*, iii. 364.

[351](#). Fountainhall's *Decisions*, ii. 125.

[352](#). See *Court of Session Garland*, p. 20.

[353](#). Published in 1754.

[354](#). Brewster's *Edinburgh Encyclopædia*, art. 'Burnett, James.'

[355](#). Privy Council Record.

[356](#). Petition against Mr Greenshields, 1709, Defoe's *History of the Union*, p. 21.

[357](#). Privy Council Record.

[358](#). Minutes of the Session of Torryburn, printed in a *Collection of Tracts on Witchcraft*, by David Webster. Edinburgh: 1820.

[359](#). Lord Anstruther was the same judge and privy-councillor whom we have seen concerned in the case of Aikenhead. He published a volume of Essays, in which he speaks not very handsomely of the fair sex. 'It is true,' says he, 'woman is subject to man; he is her head; but I may question if it was not rather inflicted as the punishment of her sin, than sprung from the prerogative of our nature. But it may be thought we retain some resentment at the first cause of our misery, and *by our innate love to the sex, they continue to be the bane of human life.*'—*Scottish Elegiac Verses*, note. p. 175.

[360](#). *Acts of S. Parl.*, xi. 180.

[361](#). Hume of Crossrig's *Diary*. Stevenson, Edin. 1843.

[362](#). Memorial by his Lordship, *Culloden Papers*, p. 35.

[363](#). Chamberlayne's *Pres. State of Great Britain*, 1718.

[364](#). Privy Council Record.

[365](#). *Account of the Bank of Scotland*, p. 7.

[366](#). Privy Council Record.

[367](#). *Account of the Bank, &c.*, p. 8.

[368](#). Anderson's *Essay on the Highlands*, 1827, p. 142.

[369](#). Fountainhall's *Decisions*, ii. 527.

[370](#). *Book of the Thaness of Cawdor* (Spald. Club), p. 417.

[371](#). This anecdote is related in a memoir of President Forbes (*Scots Magazine*, 1802), as having been derived from his lordship's own conversation.

[372](#). Broadside of the time.

[373](#). Privy Council Record.

[374](#). *Analecta Scotica*, i. 238.

[375](#). *Analecta Scotica*, ii. 59.

[376](#). The town of Kirkcaldy was at the same time favoured with a like imposition on its beer, with certain little drawbacks or burdens, as ten pounds a year to the professor of mathematics in King's College, Aberdeen, and twenty-five to the seven macers of parliament.

[377](#). Colonel Erskine had purchased the earl's estates in 1700.

[378](#). Wodrow's *Analecta*, i. 273.

[379](#). *Essays on a Land Mint*, Edinburgh, 1706. It would appear, from the records of parliament, that Dr Hugh Chamberlain was the author of this scheme.

[380](#). *Crim. Proc.*, MS. Ant. Soc.

[381](#). Wodrow's *Analecta*, iv. 115.

[382](#). Wilson's *Life of Defoe* (3 vols., 1830), *passim*.

[383](#). Maclaurin's *Criminal Cases*, p. 21. Wood's *Peerage*.

[384](#). Contemporary broadside.

[385](#). Defoe's *Hist. of Union*, p. 591.

[386](#). Statutes at large, v. 149.

[387](#). *Domestic Annals*, ii., 311.

[388](#). *Scots Acts*, iii. 810.

[389](#). *Hist. Acc. of the Bank of Scotland*, p. 9.

[390](#). Introduction to Anderson's *Diplomata*, reprint 1773, p. 174.

[391](#). *Hist. Union*, p. 598.

[392](#). *Historical Account of the Bank of Scotland*, p. 10.

[393](#). Ruddiman, *Introduction to Diplomata*.

[394](#). Wood's *History of Cramond*, p. 39, *note*.

[395](#). *Edinburgh Gazette*, Nov. 4, 1707.

[396](#). Wodrow reports a wild tale about the discovery of the guilty man. It is to the effect that Lady Craigcrook, a twelvemonth after the fact, dreamed she saw the murderer, whom she recognised as an old servant, kill the woman, and then hide the money in two old barrels filled with trash. Her husband made inquiry, and finding the man possessed of a suspicious amount of money, got him apprehended, and had his house searched, when he found his bags, which he readily identified, and a portion of the missing coin.—*Analecta*, iv. 171.

[397](#). Fountainhall's *Decisions*, ii. 409.

[398](#). Parish Register of Spott.

[399](#). Defoe's *Hist. Union*, pp. 602, 604.

[400](#). *Analecta*, i. 218.

[401](#). Mr Strang, who quotes this passage in his amusing book on the Clubs of Glasgow, states that these four gentlemen were Mr Cunninghame of Lainshaw, Mr Spiers of Elderslie, Mr Glassford of Dougalston, and Mr Ritchie of Busby—the estates here named being all purchased out of their acquired wealth.

[402](#). This anecdote was related to me by Sir Walter Scott, as derived from his mother, who had received part of her education under the care of the Hon. Patrick's widow.

[403](#). [Mackie's] *Journey through Scotland*, 1723, p. 194.

[404](#). The Customs and Excise in England brought in respectively £1,341,559 and £947,602.

[405](#). 'Mum, a species of fat ale, brewed from wheat and bitter herbs, of which the present generation only knew the name by its occurrence in revenue acts of parliament, coupled with cider, perry, and other excisable commodities.'—*The Antiquary*, chap. xi.

[406](#). This is partly shewn by the small sum (£431) set down in the year 1748 for 'spirit imported.'

[407](#). For the statistics of this article, the author is indebted to a manuscript volume containing an abstract of the Scottish Excise revenues, which has been kindly shewn to him by the gentleman above adverted to.

[408](#). *Genealogical Deduction of the Family of Rose of Kilravock*, Spald. Club publication, p. 397.

[409](#). The entire poem was published in the *Edinburgh Annual Register* for 1813.

[410](#). Burt's *Letters*, i. 194.

[411](#). *Letters*, i. 193.

[412](#). See a small volume containing all these acts, printed by the heirs of Andrew Anderson, Edinburgh, 1709.

[413](#). *State Trials*, fol. v. 630.

[414](#). Fountainhall's *Decisions*, ii. 556.

[415](#). *Dom. Annals of Scot.*, ii. 424.

[416](#). Fountainhall's *Decisions*, ii. 554.

[417](#). Act, Town Council of Edinburgh.

[418](#). Wodrow Coll. of Pamphlets. Adv. Lib.

[419](#). Fountainhall's *Decisions*, ii. 518.

[420](#). *Edinburgh Ev. Courant*, April 7, 1724.

[421](#). *Decisions*, ii. 524.

[422](#). Forbes's *Journal of the Session*, 1714, p. 352.

[423](#). Broadside printed by Reid, Bell's Wynd, Edinburgh, 1709.

[424](#). Wodrow's *Analecta*, i. 237.

[425](#). *Ibid.*, iv. 288.

[426](#). *Caledonian Mercury*, *passim*.

[427](#). *Analecta*, i. 283.

[428](#). *Scots Magazine*, 1771.

[429](#). *Hist. Acc. Bank of Scotland*, p. 10.

[430](#). Letter of Campbell of Burnbank. *Argyle Papers*, p. 187.

[431](#). *Analecta*, i. 309, 313.

[432](#). 9 Anne, c. 10.

[433](#). 'The Tinklarian Doctor, in one of his singular pamphlets addressed to the French king, and commencing: "Old Lewis, may it please your majesty," asks, "I would fain ken, Lewis, if ever you heard of me, for many times I have heard of you, and more in the pulpits than anywhere else; and if you were as oft at your own kirks in France as you are in our pulpits in Scotland, you'd be very sib [akin] to the kirk—so nearest the kirk, nearest the devil."'—Maidment's *Collection of Pasquils*, p. 74.

[434](#). In the catalogue of a sale by Messrs Puttock and Simpson, Leicester Square, London, June 1860, the following group of articles occurs:

'157 Mitchell (Will.), the "Tinklarian Doctor" of Edinburgh, Tracts by, viz.:

'*Inward and Outward Light to be Sold. A wonderful Sermon preached by the Tinklarian Doctor William Mitchell, in the sixty-first year of his age, concerning Predestination.* 1731.

'*Second Day's Journey of the Tinklarian Doctor.* 1733.

'*Short History, to the Commendation of the Royal Archers, with a Description of six of the Dukes in Scotland, especially Argyle, written by the Tinklarian Doctor, with a remarkable Colloquy in Verse at the end, entitled One Man's Meat is another Man's Poison.* 1734.

'*Voice (The) of the Tinklarian Doctor's last Trumpet, sounding for the Downfall of Babylon, and his last Arrow shot at her, &c.* 1737.

'*Prophecy of an Old Prophet, concerning Kings, and Judges, and Rulers, and of the Magistrates of Edinburgh, and also of the Downfall of Babylon, which is Locusts, who is King of the Bottomless Pit. Dedicated to all the Members of Parliament* (1737).

'*Revelation of the Voice of the Fifth Angel's Trumpet, &c.* Edinburgh, 1737.

'Tinklarian Doctor's Dream, concerning those Locusts who hath come out of the Smoke of the Pit, and hath Power to hurt all Nations, &c. The author refers to the Earl of Hyndford, and wishes he had the knowledge of the hangman of Perth! Edinb. 1739.

'Tinklarian (The) Doctor's Four Catechisms, all published separately. [Edinburgh] 1736, 1737, 1738.'

The auctioneers add: 'A singular and remarkably rare collection of eleven tracts. [The author] appears to have been a bookseller or petty chapman in a small way. The most illiterate (and sometimes obscene) language, applied to the aristocracy, is used in these works, and the most severe animosity is displayed towards the Catholics (in the advertisements at the end), because they would not accept, or purchase for a penny, the *Light*, &c. The works of this author are unmentioned by all Bibliographers, and we can trace only a single piece in the British Museum under the heading of the *Tinklarian Doctor*, but none of the above, neither do any occur in several other public libraries where reference has been made.'

[435](#). Fountainhall's *Decisions*, ii. 667.

[436](#). Crim. Proc. MS. Ant. Soc.

[437](#). Wodrow's *Analecta*.

[438](#). Ibid.

[439](#). *History of the Art of Printing*, Edinburgh, 1713.

[440](#). Lee's *Memorial for the Bible Societies*, 1824, p. 168.

[441](#). Watson was a man of some merit, and deserves to be remembered as the first publisher of a collection of Scottish poetry. His death, with the style of 'his majesty's printer,' on the 24th September 1722, is noticed by the *Edinburgh Courant*. He appears to have thriven by his patent, as the paragraph stating his widow's death, a few years later, adverts to the considerable means which had been left to her, and which she then left to a second husband.

[442](#). Brochure of two pages, *Miscellany Papers*, Adv. Lib.

[443](#). Wodrow's *Analecta*.

[444](#). Wodrow *Correspondence*, index.

[445](#). Wodrow MSS., Adv. Lib., and printed entire in *A New Book of Ballads*, Edinburgh, 1844. Lockhart admits that Cockburn was not one of the most respectable of the Episcopal clergy.

[446](#). *Strange News from Scotland, or Scotch Presbyterian Piety evidently proved by the Regard they shew to Consecrated Churches; a late Instance whereof may be seen at this Day at Dunglass, belonging to Sir James Hall, Bart., near Cockburnspath*. Sold by J. Morphew, near Stationers' Hall. 1712.

[447](#). *Courant* newspaper, quoted in *Reliquiæ Scoticæ*.

[448](#). Fountainhall's *Decisions*, ii. 735, 738.

[449](#). Sir Hugh Dalrymple's report of the case, quoted in Burton's *Criminal Trials*, i. 55.

[450](#). 'The building of Inversnaid Fort was contracted for by —— Nasmyth, builder in Edinburgh, grandfather of Alexander Nasmyth, the well-known landscape-painter. One winter-night, Mr Nasmyth and his party of workmen were roused from sleep in their lodging at the rising fort by some travellers, who piteously beseeched shelter from the snow-storm. On the door being opened, Rob Roy's men rushed in, and began to abuse the poor masons in a shocking manner; could scarcely be restrained from taking their lives; and finally drove or dragged them half-naked through the snow to a place where they dismissed them, after taking them solemnly bound by oath never to come back to that country. Mr Nasmyth, being held by government to a contract which he could not fulfil, was seriously injured in his means by this affair; but its worst consequence was the effect of the exposure of that dreadful night on his health. He sunk under his complaints about eighteen months after.'—*Information communicated by Mr James Nasmyth, late of Patrickcroft, near Manchester.*

[451](#). *Alamode*, 'a kind of thin silken manufacture.'—*Johnson*.

[452](#). Fountainhall's *Decisions*.

[453](#). *Analecta*, ii. 76.

[454](#). These expressions are from the *Engagement to Duties*, printed in Struthers's *Hist. Scot. from Union to 1748*.

[455](#). *Analecta*, i. 322.

[456](#). Fountainhall's *Decisions*, ii. 756.

[457](#). Wodrow's *Analecta*, ii. 85, 86.

[458](#). *Analecta Scotica*, i. 877.

[459](#). *Courant* newspaper, *Reliquiæ Scot.*

[460](#). *Analecta*, ii. 206.

[461](#). Wodrow's *Analecta*, ii. 254.

[462](#). P. Rae's *History of Rebellion of 1715–16*, p. 40.

[463](#). A congenial spirit, Matthew Prior, produced a sort of paraphrase of this piece:

'In total death suppose the mortal lie,
No new hereafter, nor a future sky,
Yet bear thy lot content, yet cease to grieve,
Why, ere Death comes, shouldst thou forbear to live?
The little time thou hast 'twixt instant now
And death's approach, is all the gods allow:
And of this little hast thou aught to spare
To sad reflection and corroding care?
The moments past, if thou art wise, retrieve
With pleasant memory of the bliss they give;
The present hour in present mirth employ,
And bribe the future with the hope of joy.'

[464](#). *Analecta*, ii. 261.

[465](#). From a private letter, dated Edinburgh, Feb. 20, 1714, *Analecta Scotica*, i. 14.

[466](#). His son Robert, father of Walter Scott, W.S. The youth was designed for the sea, but became disgusted with it in consequence of a shipwreck on the first voyage, and settled as a farmer at Sandyknowe, near Kelso.

[467](#). *Journal of Mr James Hart* (Edinburgh, 1832), *preface*.

[468](#). This play was entitled *Marciano, or the Discovery*, and was described on the title as having been 'acted with great applause before his Majesty's High Commissioner and others of the Nobility at the Abbey of Holyroodhouse on St John's Night.'

[469](#). George Chalmers, *Life of Ramsay*, quoting the *Scots Courant* for August and December, 1715. The Tennis Court still exists, but reduced to the condition of a smith's workshop.

[470](#). Alex. Maxwell to R. Wodrow, Edin., Feb. 15, 1715, in *Private Letters, now first printed from Orig. MSS.* Edin. 1829.

[471](#). Preface to the *Journal of Mr James Hart*. Edinburgh, 1832.

[472](#). Meaning the total solar eclipse which happened on the 29th of March 1652, of which see an account in *Domestic Annals*, vol. ii. p. 215.

[473](#). *Historical Summary of the Post-office in Scotland*. By T. B. Lang. (For private circulation.) Edinburgh, 1856.

[474](#). Justiciary Record. Sir John, soon after his collision with Mr Houston, was actively engaged in raising volunteers at Greenock for the suppression of the Rebellion.

[475](#). *Hist. Acc. Bank of Scotland*, p. 10.

[476](#). Orig. letter in Paper Office, quoted by George Chalmers, *Caledonia*, i. 870, *note*.

[477](#). *Private Letters, &c.*, Edin., 1829, p. 17.

[478](#). *Life of Carstares*, prefixed to his *State Papers*. Edinburgh, 1774.

[479](#). Notes on Old Tolbooth, *Scottish Journal*, p. 299.

[480](#). Chalmers's *Life of Ruddiman*, p. 37.

[481](#). Justiciary Record.

[482](#). *Caldwell Papers*, i. 235.

[483](#). *St James's Evening Post*.

[484](#). Newspaper advertisements.

[485](#). See *Domestic Annals* under those dates.

[486](#). *Reports of the Commissioners*, fol.

[487](#). The original subscription list is in possession of N. Fergusson Blair, of Balthayock, Esq.

[488](#). Burton's *History of Scotland*, ii. 218.

[489](#). Colonel Patrick Vans of Barnbarroch.

[490](#). *Scottish Elegiac Verses*, 1842.

[491](#). See Lockhart's *Life of Scott*, index.

[492](#). Justiciary Record.

[493](#). Notes to *Peeveril of the Peak*.

[494](#). Pope's Works, Roscoe's ed., ix. 34, 35.

[495](#). *The Scots Courant*.

[496](#). *Scots Courant*, Oct 24, 1716.

[497](#). *A Treatise on Forest Trees, in a Letter, &c.*, published at Edinburgh in 1761.

[498](#). Perhaps Sir Archibald was wrong here. See the account of Baldoon Park in this volume, under the date October 1696.

[499](#). *Spalding Club Miscellany*, ii. 97.

[500](#). The above facts are gathered from an anonymous volume, published in 1729, entitled *An Essay on the Means of Enclosing and Fallowing Scotland*.

[501](#). MS. of Graham of Gartmore, App. to Burt's *Letters*, 2d ed., ii. 349.

[502](#). Gordon of Ellon, son to a farmer in Bourtie—a merchant in Edinburgh, and once a bailie there, and a rich man. By him the house of Ellon was built anew in a handsome style.—*View of Diocese of Aberdeen*, Spal. Club, p. 301 (written about beginning of the 18th century).

[503](#). In February 1721, John Webster, a gardener, having committed murder upon a young woman named Campbell, 'on Heriot's Hospital ground, behind our town-wall,' was tried in the barony of Broughton, and condemned to die.

[504](#). *Celebrated Trials*, iii. 272 (name and date of incident there given erroneously). *Scottish Journal*, Oct. 23, 1847. Contemporary confession. *Notes and Queries*, Dec. 1859, quoting three numbers of the contemporary newspaper, the *Scots Courant*.

[505](#). Broadside reprinted in *Analecta Scotica*, i. 246.

[506](#). Letter of Rev. Mr Murray, dated Comrie Manse, 2d July, 1717; *Ant. Scot. Transactions*, iii. 296.

In a letter of Mr James Anderson, editor of the *Diplomata Scotiae*, to his son, Edinburgh, June 20, 1717, it is noted, as a recent event, that 'Rob Roi surrendered to D. Atholl, but not meeting with such things as he expected, has made his escape.'—*MSS., Adv. Library*.

[507](#). *Steele's Correspondence*, edited by John Nicholls. 2 vols. 1787.

[508](#). *Streams from Helicon*, 1720, p. 48.

[509](#). He wrote to his daughter on the 17th September and 7th October, 1720, from Edinburgh.—*Steele's Letters*.

[510](#). *Analecta Scotica*, i. 16.

[511](#). Cibber's [Shiels's] *Lives of the Poets*, iv. 118.

[512](#). Gibson's *History of Glasgow*, 1777, p. 208. It was asserted that the duties paid to government for tobacco brought to Glasgow between August 1716 and March 1722, amounted to no more than £2702. A representation for the Glasgow merchants shewed that the real sum was £38,047, 17s. 0¾d.—*Edin. Ev. Courant*, Jan. 21, 1723.

[513](#). Wodrow's *Analecta*, iii. 129.

[514](#). *The City of Edinburgh's Address to the Country*, Ramsay's *Poems*, i. 19.

[515](#). *Journey through Scotland* [by Macky?], 1723, p. 274.

[516](#). *Edinburgh Evening Courant*, June 14, 1722. 'On Tuesday last [19th January 1725], being the birthday of Prince Frederick, there was an extraordinary appearance of ladies and persons of distinction, at a musick opera in this city.'—*Ibid*.

[517](#). M'Gibbon died on the 3d October 1756, bequeathing the whole of his means to the Royal Infirmary of Edinburgh.

[518](#). 'My Lord Colville died in March last, and about Culross it is very currently believed that he has appeared more than once, and has been seen by severals. Some say that he appeared to Mr Logan, his brother-in-law [minister of Torry]; but he does not own it. Two of his servants were coming to the house, and saw him walking near them; and, if I remember, he called to them just in the same voice and garb he used to be in; but they fled from him, and came in, in a great fright. They are persons of credibility and gravity, as I am told.'[[521](#)]

[519](#). Arnot's *Hist. Edinburgh*, p. 379.

[520](#). Adam Craig died in October 1741. For this and several facts involved in the above article, I have to express my obligation to Mr David Laing's Introduction to Johnson's *Scots Musical Museum*.

[521](#). Wodrow's *Analecta*, iii. 519.

[522](#). *Analecta Scotica*, i. 195.

[523](#). *Ibid*. ii. 830.

[524](#). From documents printed in Law's *Memorials*.

[525](#). George Chalmers's *Life of Ruddiman*, p. 83.

[526](#). *Edin. Ev. Courant*, Feb. 18, 1850.

[527](#). Those who are desirous of further light upon the Marrow Controversy, may be referred to Struthers's *History of Scotland from the Union, &c.*, 2 vols. 8vo, which, by the way, is a book entitled to more notice than it has received. The worthy author, a self-educated working-man, has been led by his own taste to give details, not elsewhere to be easily met with, of the ecclesiastical proceedings of the earlier half of the eighteenth century, all of which he treats in the spirit of a strenuous old-

fashioned west-country Presbyterian. He is copious and severe about the Jacobite and Episcopalian movements, but slights the troubles of the Catholics as ‘beneath the dignity of history.’

[528](#). Letter of Alexander Jaffray of Kingsmills, to Sir Archibald Grant of Monymusk.—*Spalding Club Miscellany*, ii. 98.

[529](#). Jaffray’s letter, as above.

[530](#). ‘LONDON, *September 3, 1720*.—Last Wednesday, the York Buildings Company sent down to Scotland about sixty thousand pounds in guineas, guarded by a party of horse, being part of the purchase-money for forfeited estates. The same is to be lodged in the Exchequer at Edinburgh.’—*Newspapers of the day*.

[531](#). The Commissioners, who were engaged in their task for nearly nine years, seem to have had £1000 per annum each.

[532](#). 5 George I. cap. 20. *Statutes at large*, v. 152.

[533](#). Mr James Drummond, on the 26th May 1720, writes from Blair-Drummond to ‘Mr David Drummond, Treasurer of the Bank, Edinburgh:’ ‘I’m heartily glad the Bank holds out so well. Ther’s great pains taken in the countrey to raise evill reports upon it. I had occasion to find so in a pretty numerous company the other day; yet I did not find any willing to part with your notes at the least discount.’—*MSS. in possession of N. Fergusson Blair of Balthayock*.

[534](#). The arrangement of the Friendly Society consisted simply in a combination of house-proprietors, each paying in 100 merks per £1000 Scots, or a fifteenth of the value of the property, as a stock out of which to compensate for all damage by fire.

[535](#). *The Scribblers Lashed*. Ramsay’s *Poems*, i. 316.

[536](#). From a contemporary account appended to *Satan’s Invisible World Discovered*.

[537](#). Private Letters, &c.

[538](#). See under September 1711.

[539](#). Dr Mitchell’s *Strange and Wonderful Discourse concerning the Witches and Warlocks in Calder*, quoted in Sharpe’s edition of *Law’s Memorials*.

[540](#). *Edin. Evening Courant*.

[541](#). *Ibid*.

[542](#). Bishop Keith’s *Catalogue of the Scottish Bishops*.

[543](#). *Edin. Evening Courant*.

[544](#). From the documents printed in *Criminal Trials illustrative of the Heart of Mid-Lothian*. Edinburgh, 1818.

[545](#). Edinburgh, 1835.

[546](#). Private Letters, &c., p. 29.

[547](#). Sir Walter Scott mentions this little fact in the *Border Minstrelsy*.

[548](#). For a short time before the insurrection, he had acted as factor to Sir John Preston of Preston Hall, in Mid-Lothian, now also a forfeited estate, but of minor value.

[549](#). *Memorial of William and Robert Ross to the Commissioners on Forfeited Estates. Report of Commissioners*, printed for Jacob Tonson, 1724.—Traditional and topographical notes from a relative of Donald Murchison.

[550](#). It may be curious to contrast with the above account of the fight of Aa-na-Mullich, framed mainly from authentic documents, the following traditionary account, which has been communicated by Mr F. Macdonald, residing at Druidag Lodge, Lochalsh.

‘The first encounter that this famous man [Donald Murchison] had with the royal commissioner and troops was at the pass of Aa-na-Mullich, about a hundred yards from the end of Loch Affaric. He stationed himself and his Kintail men at the pass, on the north side of the river which empties itself into Loch Affaric, on a place called Tor-an-beithe, or Birch Hillock, where they had a good view of the enemy some miles off. On advancing towards this pass, Captain Monro of Fearn [mistake for Ross of Easterfearn], the royal commissioner, sent his son forward to reconnoitre on horseback, and when he appeared on the opposite side of the river, the poor fellow was shot at once, receiving a mortal wound. Upon hearing the report, and that Monro’s son was shot, the bulk of the royal troops wheeled round, and took to their heels, leaving Captain Monro with very few of his men to help in the painful duty of conveying his wounded son back. In this emergency, he implored Murchison to lend him some of his men to assist in carrying the wounded young man till he should be able to join his own fugitive troops; which, with his wonted generosity, he immediately complied with. They constructed a litter the best way they could, and retraced their steps to Beauly, which, however, they did not reach before the young man died. Murchison and his men followed, lest those troops who formerly fled should turn round and assault the men he had given to assist them. He followed as far as Knockfin on the heights of Strathglass.’ [Mr Macdonald ends by quoting two or three stanzas of a Gaelic poem composed by an old woman at Beauly, as they were passing with the dead body.]

[551](#). *Edinburgh Ev. Courant*.

[552](#). *Caledonian Mercury*, May 7, 1722.

[553](#). *Wodrow Correspondence*, ii. 640.

[554](#). Arnot’s *Crim. Trials*, p. 335.

[555](#). *Wodrow Correspondence*, ii. 646.

[556](#). *Cal. Mercury*, Aug. 7, 1722.

[557](#). *Caledonian Mercury*.

[558](#). English contemporary journals. Broadside account of the skirmish. Information from Lochcarron, MS.

[559](#). Wade’s Report in App. to 2d ed. of Burt’s *Letters*, 1822, vol. ii. p. 280.

[560](#). *Lockhart Papers*.

[561.](#) MS. poem on *Wade's Roads in Scotland*, dated 1737, in possession of the Junior United Service Club.

[562.](#) The traditional account of Donald Murchison, communicated by Mr F. Macdonald, states that the heroic commissioner had been promised a handsome reward for his services; but Seaforth proved ungrateful. 'He was offered only a small farm called Bundalloch, which pays at this day to Mr Matheson, the proprietor, no more than £60 a year; or another place opposite to Inverinate House, of about the same value. It is no wonder he refused these paltry offers. He shortly afterwards left this country, and died in the prime of life near Conon. On his death-bed, Seaforth went to see him, and asked how he was. He said: "Just as you will be in a short time," and then turned his back. They never met again.'

[563.](#) Wodrow's *Analecta*, ii. 368.

[564.](#) *New Statistical Account of Scotland*, art. *Tranent*.

[565.](#)

'The brave Locheil, as I heard tell,
Led Camerons on in clouds, man.'

Contemporary Ballad.

[566.](#) *Edinburgh Ev. Courant*, Jan. 29, 1723.

[567.](#) *Edinburgh Ev. Courant*, April 1, 1723. *Scot. Elegiac Verses*, p. 247.

[568.](#) MS., Advocates' Library.

[569.](#) Letter by Andrew M'Dowall (subsequently Lord Bankton) and J. M'Gowan. *Nugæ Scoticæ*, Edinburgh, 1829.

[570.](#) *Edinburgh Ev. Courant*, May 1723.

[571.](#) From pamphlets published by Sir Alexander Murray.

[572.](#) Probably some attempt had been made to turn to account the foliated gypsum beds which exist near Kelso.

[573.](#) Poem on the Highland Roads, Wade's MSS., in possession of Junior United Service Club.

[574.](#) *Edin. Ev. Courant*, August 22, 1743.

[575.](#) *Memoirs of George Baillie of Jerviswood and of Lady Grizel Baillie*, &c. 1822.

[576.](#) *Chalmers's Brit. Poets*, xiv. 576.

[577.](#) *Celebrated Trials*, 6 vols. 1825. Vol. iii. p. 395.

[578.](#) *Memoirs of Lady Grizel Baillie*.

[579.](#) *Edin. Ev. Courant*, May 9, 1723.

[580.](#) Wodrow's *Analecta*.

[581](#). This was the place of worship which Dr Johnson attended when in Edinburgh in 1773. It is now demolished.

[582](#). *Analecta*.

[583](#). It may be satisfactory to local antiquaries to know that this hall was situated in what was consequently called the *Assembly* (latterly, Old Assembly) *Close*, on the south side of the High Street. The assembly to be held on the 25th May 1736 was advertised as to take place ‘in their *new hall*, behind the City Guard.’ This last site was that afterwards occupied by a building used as an office by the Commercial Bank, now the Free Church of the Tron parish. A rent of £55 was paid for this new hall, which continued to be used for fifty years, although confessedly too small, and very inconvenient.

[584](#). Burt’s *Letters*, i. 193.

[585](#). The Horn Order and Crispin Knights are satirised in several pasquils of the time of Queen Anne as fraternities practising debauchery to an unusual degree. A satire on the Union says:

The Canongate know no cabals,
Nor knights of the Horn order;
And lights were not put out at balls,
When I was a dame of honour.

The Crispins, and the Crispin pins,
Wore things unknown unto us;
We ladies then thought shame to sin,
It cost pains to undo us, &c.

Maidment’s Collection of Pasquils, il. 75.

[586](#). Burt’s *Letters*, i. 193.

[587](#). *Caledonian Mercury*, November 14, 1723.

[588](#). *Edinburgh Ev. Courant*.

[589](#). *Letters from the North of Scotland*, ii. 143.

[590](#). Chalmers’s *Life of Ruddiman*, p. 75.

[591](#). Wodrow’s *Analecta*, iii. 142.

[592](#). Mortgage.

[593](#). Burt’s *Letters*, ii. 73.

[594](#). Alexander Pennecuik, of Edinburgh, has a poem entitled *A Curse on the Clan Macphersons, occasioned by the News of Glenbucket being murdered by them*:

‘May that cursed clan up by the roots be pluckèd,
Whose impious hands have killed the good Glenbucket!
Villains far worse than Infidel or Turk,
To slash his body with your bloody durk—

A fatal way to make his physic work!
Rob Roy and you fight 'gainst the noblest names,
The generous Gordons and the gallant Grahams.
Perpetual clouds through your black clan shall reign,
Traitors 'gainst God, and rebels 'gainst your king,
Until you feel the law's severest rigour,
And be extinguished like the base Macgregor!'

Pennecuik's *Poems*, MS., Adv. Lib.

[595](#). Wade's MSS., in possession of Junior United Service Club.

[596](#). *Edinburgh Ev. Courant*, April 9, 1724.

[597](#). *Private Letters, &c.*, p. 37.

[598](#). *Analecta*.

[599](#). Letter of John Maxwell of Munshes, writing, in 1811, from personal recollection of the incidents.—*Murray's Lit. Hist. Galloway*, p. 337.

[600](#). Wodrow's *Analecta*, iii. 152, 157, 170.

[601](#). 'A ewe which has given over bearing.'—*Jamieson*.

[602](#). That is, a native of Ireland.

[603](#). Letter of John Maxwell of Munshes to W. M. Herries of Spottes, dated February 1811.—*Murray's Lit. Hist. of Galloway*, Appendix, p. 337.

[604](#). See *Domestic Annals of Scotland*, under September 1583.

[605](#). *Caledonian Mercury* of the day.

[606](#). *Edin. Ev. Courant*.

[607](#). Lovat's Memorial to the King, Burt's *Letters*, 2d ed., ii. 264, App.

[608](#). Letter of General Guest, *Spalding Club Miscellany*, iii. 229.

[609](#). *Edinburgh Ev. Courant*, September 6, 1725. This paper remarks that the extent of country which belonged to the late Earl of Seaforth, and disarmed on this occasion, was no less than sixty miles in length and forty in breadth.

[610](#). Lockhart Papers.

[611](#). Miscellany Papers, Adv. Lib.

[612](#). *Ed. Ev. Courant*.

[613](#). D. Webster's *Account of Roslin Chapel, &c.*, Edinburgh, 1819.

[614](#). *Transactions of the Society of Improvers*.

[615](#). *Caledonian Mercury*, July 1735.

[616](#). [Sinclair's] *Stat. Acc. Scot.*, xx. 74.

[617](#). [Sinclair's] *Stat. Acc. Scot.*, viii. 525. A drawing and description of a winnowing-machine used in Silesia appears in the *Gentleman's Magazine* for 1747, as a thing unknown in England.

[618](#). *Old Mortality*, chap. vii.

[619](#). Newspapers of the day.

[620](#). Introduction to the *Pirate*—a novel, it need scarcely be remarked, founded on the story of Gow.

[621](#). 'LONDON, March 29, 1720.—Sunday evening the Duke of Douglas and the Earl of Dalkeith fought a duel behind Montague House, and both were wounded.'—*Newspapers of the day*.

[622](#). Wodrow's *Analecta*, iii. 208.

[623](#). *Lockhart Papers*. Wodrow's *Analecta*, iii. 210, et seq. Contemporary narration.

[624](#). See *antea*, under February 1697.

[625](#). Sinclair's *Statistical Acc. of Scotland*, article 'Erskine.

[626](#). Notice from the Edinburgh Post-office, Nov. 23, 1725.

[627](#). *Caledonian Mercury*, Oct. 1733, and Jan. 1734.

[628](#). *Edin. Ev. Courant*.

[629](#). Chamberlayne's *Present State of Great Britain* for the years cited.

[630](#). *Scottish Journal*, p. 208.

[631](#). Wodrow's *Analecta*.

[632](#). *New Stat. Acc. of Scot.*, vi. 157.

[633](#). Scrap-book of Dugald Bannatyne, quoted in *New Stat. Acc. of Scot.*, vi. 231.

[634](#). Smollett's *Humphry Clinker*.

[635](#). Ramsay's Works, i. 285.

[636](#). Arnot's *History of Edinburgh*, p. 366.

[637](#). Mr Jackson had heard that Aston's theatre was 'in a close on the north side of the High Street, near Smith's Land. A Mrs Millar at that time was esteemed a capital actress, and was also a very handsome woman. Mr Westcombe was the principal comedian. The scheme was supported by annual tickets, subscribed for by the favourers of the drama.'—*Hist. Scot. Stage*, p. 417.

[638](#). Arnot's *Hist. Edinburgh*, p. 366.

[639](#). *Analecta Scotica*, ii. 211.

[640](#). 'EDINBURGH, April 9, 1728.—Yesterday, Tony Astons, elder and younger, stage-players, were committed prisoners to the Tolbooth. 'Tis said they are charged with the crime of carrying off a young lady designed for a wife to the latter.'—*Ed. Ev. Courant*.

[641](#). Private Letters, &c.

[642](#). Wodrow's *Analecta*, iii. 309.

[643](#). Printed by James Duncan, Glasgow, 1728, pp. 168.

[644](#). Wodrow's *Analecta*, iii. 318.

[645](#). MS. in possession of the Junior United Service Club.

[646](#). *Struan Papers*, MS. The Earl of Mar, writing to Struan from Paris, January 6, 1724, says: 'Our poor friend John Menzies has been very near walking off the stage of life; but I now hope he may still be able to act out the play of the Restoration with us, though he must not pretend to a young part.' Among Struan's published poems is 'an Epitaph on his Dear Friend John Menzies;' from which it would appear that Menzies had died abroad, and been buried in unconsecrated ground.

[647](#). *History of the Robertsons of Struan.... Poems of Robertson of Struan*, Edinburgh, no date, p. 167.

[648](#). Feb. 4, 1755. 'At London, Edmund Burt, Esq., late agent to General Wade, chief surveyor during the making of roads through the Highlands, and author of the *Letters concerning Scotland*.'—*Scots Mag. Obituary*.

[649](#). Burt's *Letters*, ii. 189.

[650](#). This poem exists in MS. in the library of the Junior United Service Club, London.

[651](#). Usquebaugh, whisky.

[652](#). Library of the Junior United Service Club, London, to which body I have to express my obligations for the permission to inspect and make extracts.

[653](#). *Letters*, &c. i. 77.

[654](#). This road was completed in October 1729. See onward.

[655](#). *Select Transactions of the Society of Improvers*.

[656](#). Works of Lady Mary Wortley Montagu, Dalloway's ed., iii. 127.

[657](#). *Gentleman's Magazine*, iii. 515.

[658](#). *Cyc. of Pract. Medicine*, iii. 749.

[659](#). *Analecta Scotica*, ii. 322.

[660](#). *Boswelliana*, privately printed by R. Monckton Milnes, Esq.

[661](#). *Edinburgh Ev. Courant*.

[662](#). *Hist Acc. of the Bank of Scotland*, 1728.

[663](#). *Analecta*, iii. 476.

[664](#). *A Letter containing Remarks on the Historical Account of the Old Bank*, by a Gentleman concerned in neither Bank. Edin., James Davidson & Co., 1728.

[665](#). This is a statement of the pamphlet last quoted, p. 30.

[666](#). In British Museum, 8223 $\frac{c}{2}$ ($\frac{b}{2}$).

[667](#). *Analecta*, iii. 302.

[668](#). Burt's *Letters from the North of Scotland*, 2d ed., i. 230.

[669](#). Sharpe's Introduction to Law's *Memorials*, cvi.

[670](#). Scott's *Letters on Demonology and Witchcraft*, p. 328.

[671](#). Representation by the linen-drapers at the bar of the House of Commons, Jan. 1720.

[672](#). Letter in the Paper-office, quoted by Chalmers, *Caledonia*, i. 873, *note*.

[673](#). *Analecta*, iii. 452.

[674](#). Private Letters, &c., p. 59.

[675](#). *Edinburgh Ev. Courant*.

[676](#). Mr Wodrow relates that, about the same time, a number of ministers in England met occasionally together under the name of the Orthodox Club, and 'frequently their conversation is *gay* and jocose'—'*gay and*' being here a Scotch adverb meaning considerably.

[677](#). Private Letters, &c., p. 61.

[678](#). *State Trials*, ix. 26. Arnot's *Crim. Trials*, p. 190.

[679](#). Private Letters, &c., p. 64. Mr Lindsay was soon after lord provost and member for the city, in which latter capacity he made a remarkably good speech in the House of Commons on the bill for taking away the privileges of the corporation in consequence of the Porteous Riot. See *Gentleman's Magazine*, vii. 457.

[680](#). What seems sufficient to set this matter in a clear light is the fact that, up to this time, such a thing as a sawn deal was unknown in the Spey Highlands; they could only split a tree, and chip the pieces into something like a deal; and some of the upper rooms of Castle-Grant are actually floored of wood prepared in this manner.

[681](#). At the end of the voyage, he took the curragh upon his back, and trudged back to the point of departure. An example of this primitive kind of canoe was exhibited at the archæological museum connected with the British Association at Aberdeen, September 1859.

655. [682](#). [Leslie's] *Survey of the Province of Moray*, 1798, p. 267. Anderson's *British Poets*, viii.

[683](#). *Analecta*, *passim*.

[684](#). Private Letters, &c., p. 66; also newspapers of the day.

[685](#). Wodrow's *Analecta*, iv. 97.

[686](#). See under the year 1716 for some notice of her Grace's services to the country as a promoter of agricultural improvements.

[687](#). Faculty Records, quoted in *Analecta Scotica*, ii. 170. The plate of Sallust is now shewn under a glass-case in the Advocates' Library.

[688](#). *Biog. Memoirs of William Ged*. Nichols, London, 1781. To a daughter of Ged, it was proposed that the profits of this publication, if any, should be devoted; hence it may be inferred that the family continued poor.

[689](#). Mores's *Narrative of Block-printing, with Notes*, *apud* Topham and Willett's *Memoir on the Origin of Printing*. Newcastle, 1820.

[690](#). Maitland's *History of Edinburgh*, p. 460.

[691](#). Arnot's *History of Edinburgh*, p. 546.

[692](#). *Gentleman's Magazine*, v. 555.

[693](#). The remaining verses of the poem are thus given in the *Scots Magazine* for June 1773:

'Ah! where is now th' innumerable crowd,
That once with fond attention hung
On every truth divine that flowed,
Improved from thy persuasive tongue!

'Tis gone!—it seeks a different road;
Life's social joys to thee are o'er;
Untrod the path to that abode
Where hapless *Penury* keeps the door.

Drummond! thine audience yet recall,
Recall the young, the gay, the vain;
And ere thy tottering fabric fall,
Sound forth the deeply moral strain.

For never, sure, could bard or sage,
Howe'er inspired, more clearly shew,
That all upon this transient stage
Is folly, vanity, or woe.

Bid them at once be *warned* and taught—
Ah, no!—suppress th' ungrateful tale—

O'er every frailty, every fault,
Oblivion, draw *thy* friendly veil.

Tell rather what transcendent joy
Awaits them on th' immortal shore,
If well they *Summer's* strength employ,
And well distribute *Autumn's* store.

Tell them, if *Virtue* crown their bloom,
Time shall the happy period bring,
When the dark Winter of the tomb
Shall yield to everlasting *Spring*.'

[694](#). Letter by a clansman of the deceased. *Edin. Ev. Courant*.

[695](#). *Culloden Papers*, p. 111. *Edin. Ev. Courant*, Oct. 9, 1729. This chronicle adds: 'They named the bridge where the parties met OXBRIDGE.' A statement which appears somewhat inconsistent with one already made in our general account of the Highland roads.

General Stewart of Garth, in his interesting book on the Highland Regiments, makes an amusing mistake in supposing that General Wade here condescended to be entertained by a set of *cearnochs*, or cattle-lifters.

[696](#). Notes to 2d ed. of Burt's *Letters*. There being a distinction between natural tracks, such as formerly existed in the Highlands, and *made* roads, and 'made' being used here in a secondary and technical sense, it is not absolutely necessary to suppose, as has been supposed, that the author of this couplet was an *Irish* subaltern quartered at Fort William.

[697](#). In May 1711, the 'relict' of Sir John Medina, limner, advertised her having for sale 'a great many pictures of several of the nobility, gentry, and eminent lawyers of this nation,' at her lodging, 'the first stone land above the Tron Church, second story.'—*Ed. Ev. Courant*.

[698](#). Daniel Wilson states, in his work, *Edinburgh in the Olden Time*, that Scougal possessed Sir James Steuart's house in the Advocates' Close, and there fitted up an additional floor as a picture-gallery.

[699](#). The document is fully printed in the *Edin. Annual Register* for 1816.

[700](#). *Caledonian Mercury*.

[701](#). *Analecta*, iv. 86, 162.

[702](#). Minutely narrated in Burnet.

[703](#). *Caledonian Mercury*, April 6, 1724.

[704](#). Sir D. Brewster's *Life of Sir Isaac Newton*, 1855, i. 57

[705](#). *Edin. Ev. Courant*.

[706](#). Stewart's *Highland Regiments*, i. 49.

[707](#). *Dom. Annals*, under March 1, 1701.

[708](#). French, *commère*, a godmother.

[709](#). *An Essay on the Means of Inclosing Scotland*, 1729, p. 229.

[710](#). Records of the Bank, quoted in Chalmers's *Caledonia*, i. 873, *note*.

[711](#). *Edin. Ev. Courant*.

[712](#). Wodrow's *Analecta*.

[713](#). *Domestic Ann. Scot.*, ii. 495.

[714](#). See under June 24, 1736.

[715](#). It is rather curious that, in a subscription for the relief of the sufferers by a fire in the Lawnmarket of Edinburgh, in 1725, 'Colonel Francis Charteris, £4, 4s.' is the only contribution from a private individual. Uncharitable onlookers would probably consider this as intended for an insurance against another fire on the part of the subscriber.

[716](#). *Private Letters*, &c., p. 80.

[717](#). *Gentleman's Magazine*, ii. 674.

[718](#). *Caledonian Mercury*.

[719](#). *Cal. Mercury*, August 8, 1732.

[720](#). Chalmers's *Life of Ruddiman*, p. 136.

[721](#). *Caledonian Mercury*, May and July 1733.

[722](#). *Caledonian Mercury*, February 14, 1734.

[723](#). *Historical Register* for 1721, p. 253.

[724](#). July 21, 1744, died at his seat of Orangefield, in the shire of Ayr, James Macrae, Esq., late governor of Fort George.

[725](#). The son, Captain James Macrae, was a person of most unhappy history, having shot an innocent gentleman in a duel, and obliged, in consequence, to leave his native country.

[726](#). *Caledonian Mercury*, July and August 1733.

[727](#). See under 1718, pp. [440](#), [441](#) of this volume.

[728](#). A riding of the stang, attended with tragical results, happened in March 1736. George Porteous, smith at Edmondstone, having severely beaten and abused his wife, was subjected to the ignominy by his neighbours; which so highly 'affronted' him, that he went and hanged himself.—*Caledonian Mercury*.

[729](#). *Caledonian Mercury*, *passim*.

[730](#). Edinburgh newspapers, *passim*.

[731](#). James VII.'s *First Parliament*, chap. 12.

[732](#). [Sinclair's] *Stat. Acc. Scot.*, xviii. 362.

[733](#). Wodrow Pamphlets, vol. 275.

[734](#). From Mein's original paper, apparently prepared for publication, 1735. MS. in possession of Society of Antiquaries.

[735](#). Act of Town Council, August 29, 1740. Robert Mein died in 1776, at the age of ninety-three.

[736](#). Amongst the papers of General Wade, in the possession of the Junior United Service Club, is a letter addressed to him by a lady who felt interested in behalf of Porteous. It is here transcribed, with all its peculiarities of spelling, &c., as an illustration of the exceptive feeling above adverted to, and also as a curious memorial of the literary gifts then belonging to ladies of the upper classes. The writer appears to have been one of the daughters of George Allardice of Allardice, by his wife, Lady Anne Ogilvy, daughter of the fourth Earl of Findlater:

'I dute not Dear general waid but by this time yon may have heard the fattel sentence of the poor unhappy capt^t porteous how in six weeks time most dye if he riceve not speedy help from above, by the asistance of men of generosity and mercy such as you realy are it is the opinion of all thos of the better sort he has been hardly dealt by, being cond'mned but by a very slender proof, and tho he was much provokted by the mob and had the provest and magestrets order to fire which th'y now sheamfully deney nor had he the leeberty to prove it tho even in his own defence, but the generous major powl will assure you of the trouth, and yet tho the capt^t had thos crule orders it is proven my [by] commiserer wesly mr Drumond doctor horton and severel other gentel men of undouted crided he realy did not make use of them, that there eyes were fixed on him all the while and have declar'd upon oth he deed not fire, true it is he presented his firelock in hopes to frighten the mob when ane unlucky fellow at the same time and just by the capt^t fired which lead the two witness into the fatel mistake that has condmn'd him the unfortenat pannal both befor and after the dismal sentence protested befor god and the judges he was entierly inesent puting all thes circomstances to gether the miserable state he now is in most draw your generous pity on his side ther'for dr general waid continwa your uswal mercy and plead for him and as our sex are neturly compassinot and being now in the power of the quin, so generous a pleader as you may easely persuad, considring it is a thing of great concquenc to the whol army which yourself better knou then I can inform the duke of buccleugh, marques of Lowding [Lothian] Lord morton geneal myls all the commissioners and chiff baron are to join ther intrest with yours in this affair, by your own generous soul I beg again Dear sir you will do whats in your power to save him, thos that think right go not through this poor short life just for themselves which your good actions shou you oft consider, and as many just now put a sincer trust in your generous mercy I am sure they will not be disapointed throgh aney neglect of yours let this letter be taken notes of amongst the nomber you will reseve from your frinds in Scotland in behalf of the unfortunat capt which will intierly oblidge

Dear general waid
your most affectionate and most
obident humble servant

CATHARINE ALLARDICE.

'you would be sory for the unexresable los I have had of the kindest mother, and two sisters I am now at Mrs Lind's where it would be no smal satesfaction to hear by a Line or two I am not forgot by you drect for me at Mr Linds hous in Edenburg your letter will come safe if you are so

good as to writ Mr Lind his Lady and I send our best complements to you, he along with Lord aberdour and mr wyewel how has also wrot to his sister mrs pursal go hand in hand together makeing all the intrest they can for the poor capt and meet with great sucess they join in wishing you the same not fearing your intrest the generals Lady how is his great friend were this day to speak to the Justes clark but I have not since seen her, so that every on of compassion and mercy are equely bussey forgive this trouble and send ous hop'

[737](#). *Caledonian Mercury*.

[738](#). Statutes at large, vi. 51.

[739](#). In November 1737, the poet is found advertising an assembly (dancing-party) 'in the New Hall in Carrubber's Close;' subscription-tickets, two for a guinea, to serve throughout the winter season.—*Cal. Merc.*

[740](#). *Caledonian Mercury*.

[741](#). Newspapers of the time.

[742](#). *Caledonian Mercury*.

[743](#). *Daily Post*, Aug. 17, 1738, quoted in *Household Words*, 1850.

[744](#). His name was William Smellie. The fact is stated in his *Memoirs* by Robert Kerr, Edinburgh, 1811.

[745](#). *Scots Magazine*, January 1739.

[746](#). *Scottish Journal*, p. 313.

[747](#). Houghton's *Collections on Husbandry and Trade*, 1694.

[748](#). Arnot's *History of Edinburgh*, 4to, p. 201.

[749](#). Robertson's *Rural Recollections*, 1829.

[750](#). 'The man has not been dead many years who first introduced from Ireland the culture of the potato into the peninsula of Cantyre; he lived near Campbelton. From him the city of Glasgow obtained a regular supply for many years; and from him also the natives of the Western Highlands and Isles obtained the first plants, from which have been derived those abundant supplies on which the people there now principally subsist.'—Anderson's *Recreations*, vol. ii. (1800) p. 382.

[751](#). 'This singular individual died at Edinburgh [January 24, 1788]. In 1784, he sunk £140 with the managers of the Canongate Poor's House, for a weekly subsistence of 7s., and afterwards made several small donations to that institution. His coffin, for which he paid two guineas, with "1703," the year of his birth, inscribed on it, hung in his house for nine years previous to his death; and it also had affixed to it the undertaker's written obligation to screw him down with his own hands *gratis*. The managers of the Poor's House were likewise taken bound to carry his body with a hearse and four coaches to Restalrig Churchyard, which was accordingly done. Besides all this, he caused his grave-stone to be temporarily erected in a conspicuous spot of the Canongate Churchyard, having the following quaint inscription:

“HENRY PRENTICE,

DIED.

Be not curious to know how I lived;
But rather how yourself should die.”

—*Contemporary Obituaries.*

[752.](#) *Scots Magazine*, Oct. 1740. Act of Town Council, Dec. 19, 1740.

[753.](#) *Scots Magazine*, July 1741.

[754.](#) Moncrieff’s *Life of John Erskine, D.D.*, p. 110.

[755.](#) *Scots Magazine*, July 1742.

[756.](#) *Scots Magazine*, Oct. 1712. *New Statistical Acc. Scot.*, art. ‘Lochbroom,’ where many curious anecdotes of Robertson, called *Ministeir laidir*, ‘the Strong Minister,’ are detailed.

[757.](#) *Lays of the Deer Forest*, by the Messrs Stuart.

[758.](#) *Edin. Ev. Courant*, Nov. 15, 1743.

[759.](#) *Spalding Club Miscellany*, ii. 87.

[760.](#) *Old Statist. Acc. of Scot.*, xv. 379.

[761.](#) *Domestic Ann. of Scot.*, ii. 392.

[762.](#) *Memorabilia of Glasgow*, p. 502.

[763.](#) Newspaper advertisement.

[764.](#) Jones’s *Glasgow Directory*, quoted in Stuart’s *Notices of Glasgow in Former Times*.

[765.](#) *Culloden Papers*, p. 233.

[766.](#) Appendix to Burt’s *Letters*, 5th ed., ii. 359.

[767.](#) *Tour in Scotland*, i. 225; ii. 425.

[768.](#) *Gentleman’s Magazine*, xvi. 429.

[769.](#) *Scots Magazine*, 1750, 1753, 1754.

[770.](#) *Tour through the Highlands, &c.* By John Knox. 1787, p. 101.

[771.](#) [Sinclair’s] *Stat. Acc. Scot.*, xx. 424. The minister’s version is here corrected from one in the *Gentleman’s Magazine* for January 1733; but both are incorrect in the historical particulars, there having been during 1728 and the hundred preceding years no more than six kings of Scotland.

[772.](#) Printed in *Spalding Club Miscellany*, ii. 7.

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